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SUPREME COURT

OF THE

PHILIPPINES

FROM

OCTOBER 14, 1993 TO NOVEMBER 18, 1993

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2015

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REPORT OF CASES

DETERMINED IN THE

SUPREME COURT OF THE PHILIPPINES

EN BANC

[A.M. No. P-93-958. October 14, 1993]

HERMINIO VILLAMAYOR, *complainant, vs.* **TOMAS VERA CRUZ, JR.,** *respondent.*

SYLLABUS

POLITICAL LAW; ADMINISTRATIVE LAW; PUBLIC OFFICERS; PROCESS-SERVER; RECEIPT OF CASH FOR THE CANCELLATION OF BAILBOND AND ISSUANCE OF A STOLEN OFFICIAL RECEIPT FOR THE SAME CONSTITUTE GRAVE MISCONDUCT. — The recommendation of the Office of the Court Administrator is well-taken and as aptly stated by the said office: We do not hesitate to confirm that respondent Vera Cruz committed grave misconduct in office, dishonesty, and conduct prejudicial to the best interest of the service when he received the amount of ₱6,000.00 for the cancellation of a bailbond and issued a stolen official receipt for the same, and forged the signature of the authorized issuer under the pretext that he was the court employee duly authorized of processing bailbonds. For that he alone must suffer the consequences of his act. The Honorable Court had said before, and reiterates it again, as it has done in other cases, that the conduct and behavior of everyone connected with an office charged with the dispensation of justice, from the Presiding Judge to the lowliest clerk, should be circumscribed with the heavy burden of responsibility. His conduct at all times, must not only be characterized by propriety

and decorum but above else must be above suspicion. Indeed, every employee of the judiciary should be an example of integrity, uprightness and honesty. Respondent does not deserve to stay any longer in the judiciary.

D E C I S I O N

***PER CURIAM*:**

This is an administrative case against Tomas Vera Cruz, Jr., Process Server of the Regional Trial Court, Branch 25, Biñan, Laguna. The case stemmed from a letter-complaint dated September 14, 1990 of Herminio Villamayor, Executive Vice President, Philippine Phoenix Surety & Insurance Co., Inc., to the National Bureau of Investigation requesting investigation of what he believes to be a falsification of public document.

Hence, the Office of the Court Administrator directed the Hon. Judge Rodrigo V. Cosico, Executive Judge, Biñan, Laguna, to conduct the necessary investigation.

Acting thereon, Judge Cosico required Tomas Vera Cruz, Jr. to answer the complaint within 24 hours from notice. Thereafter, an investigation of the case was conducted.

In his Resolution dated June 23, 1993, Judge Cosico made a report of his findings, to wit:

In September 1983, the Philippine Phoenix Surety and Insurance, Inc. posted a bailbond for the provisional liberty of Frederick Doromal, who is accused of Homicide in Crim. Case No. 1966 before the Regional Trial Court of Laguna, Branch 25, Biñan, Laguna. As the accused jumped bail and the Surety Company was unable to produce the body of the accused, the Court ordered the forfeiture of the bond and the Surety Company was ordered to pay the amount of ₱6,000.00.

In compliance with the said forfeiture order, the Surety Company, thru its employee, Mr. Augusto C. Cabardo, paid the amount of ₱6,000.00 per O.R. No. 1700900 on October 17, 1988 and then moved for the cancellation of the bond and its release from further liabilities thereunder.

The Court denied the motion on the ground that it was found out that O.R. No. 1700900 was stolen and the signature of the issuer was forged.

The Trial Prosecutor who was ordered by the Court to investigate the matter, found out that O.R. No. 1700900 is a genuine official form but was stolen and ripped off from the booklet wherein it was contained. The three (3) court employees, namely, Joselito Paras, Gertrudes Sison, and Felix Marcellana, who were the ones authorized to keep and issue accountable forms in the Office of the Clerk of Court, Regional Trial Court, Biñan, Laguna, all denied having issued the questioned official receipt contending that the handwriting entries as well as the signature therein are not theirs.

The National Bureau of Investigation (NBI) which conducted an investigation took the statements of Mr. Joselito Paras and Mesdames Diana Asiño-Ramos and Emelina S. Almendral-Santos. The NBI also took the statements of Augusto C. Cabardo, principal witness for the complainant, and Tomas Vera Cruz, Jr., respondent in this case.

Mr. Augusto C. Cabardo testified that he was the Liaison Officer of the Philippine Phoenix Surety and Insurance, Inc. and was tasked with the filing and payment of bailbonds; that when he was verifying with RTC Branch 25 the writ of execution relative to the bailbond of Frederick Doromal, an employee referred him to respondent Totoy Vera Cruz; that he returned to the court to file a Motion for Nominal Forfeiture of Bond and again on September 30, 1988 to pay the amount of ₱6,000.00 as ordered by the court; that on October 17, 1988, Mr. Cabardo paid Totoy Vera Cruz, Jr. the amount of ₱6,000.00, for which the latter issued O.R. No. 1700900 M; that Totoy Vera Cruz filled up the receipt and handed Cabardo the receipt outside the room of said respondent; and that Atty. Banlaque of the Philippine Phoenix Surety and Insurance, Inc. brought him before Judge Minita Chico-Nazario and in her presence he pointed to Totoy Vera Cruz as the person to whom he paid the amount of ₱6,000.00 and who issued to him the questioned official receipt.

Denying the charge against him, respondent Tomas "Totoy" Vera Cruz, Jr. *y* Legasto averred that he never met Augusto C. Cabardo and did not receive the amount of ₱6,000.00 from the latter; that he would not sacrifice his honor and dignity considering his length of service in the government, which is 31 years, only for the amount of ₱6,000.00; and that what motivated the complainant in filing the complaint is only to harass him.

Upon being informed about the administrative charge against him, respondent Tomas "Totoy" Vera Cruz, Jr. filed an answer, the material allegations of which are stated above. His answer is a substantial reiteration of the counter-affidavit which he filed before the Ombudsman. He stated that he would not present any witness or any further evidence in his behalf and would just submit the case for resolution of the Executive Judge.

The pivotal issue to be resolved is, under the facts and law of the case, what offense, if any, was committed, and whether respondent may be held liable therefor.

There is no question that an act of dishonesty was committed in the instant case when the amount of ₱6,000.00 was received by respondent Tomas Vera Cruz, Jr. from Mr. Augusto C. Cabardo, Liaison Officer of the Philippine Phoenix Surety and Insurances, Inc., for which respondent issued a forged receipt, although he was not legally authorized to do so.

Mr. Joselito Paras testified that respondent Tomas Vera Cruz, Jr. binds court records and also deals with bonding matters (Annex "L"). For her part, Mrs. Emelina S. Almendral-Santos declared that respondent Tomas Vera Cruz, Jr. attended to the representative of Philippine Phoenix Surety and Insurance, Inc. when the latter was working for the bailbond of Frederick Doromal, for which bailbond the questioned official receipt was issued. It is significant to note that respondent did not deny that he was pinpointed by Augusto Cabardo in the presence of then Presiding Judge Minita Chico-Nazario.

Based on the foregoing facts, Judge Cosico concluded: (1) that there is preponderance of evidence clearly showing that respondent Tomas Vera Cruz, Jr. committed an act of dishonesty when he received the amount of ₱6,000.00 from Augusto Cabardo, for which he issued a forged receipt, knowing that he was not legally authorized to do so, and that the Philippine Phoenix Surety and Insurance, Inc. will be prejudiced thereby; (2) that he gives credence to the testimony of such disinterested witnesses as Augusto Cabardo, Joselito Paras, Diana Asiño-Ramos and Emelina Almendral-Santos; (3) that weighing contradictory and opposing statements, it has been held that greater credence must be given to the positive testimonies of the prosecution witnesses than to the denial of the defendant (*People vs. Olivar,* G.R.

No. 101577, November 13, 1992); (4) that as between the self-serving and uncorroborated testimony of the respondent and the positive and corroborated testimony of Augusto Cabardo, Joselito Paras, Diana Asiño-Ramos and Emelina S. Almendral-Santos, the testimony of the latter should prevail; and (5) that in accordance with Memorandum Circular No. 30, s. 1989 of the Civil Service Commission prescribing guidelines in the application of penalties in administrative cases in relation to Pres. Decree No. 807, dishonesty is classified as a grave offense with an imposable penalty of dismissal for the first offense. The investigating Judge thereupon recommended the penalty of forced resignation in lieu of dismissal.

The Office of the Court Administrator evaluated the foregoing findings and recommendation and in its Memorandum dated September 2, 1993, said office recommends the dismissal from the service of Tomas Vera Cruz, Jr. with forfeiture of all benefits.

The recommendation of the Office of the Court Administrator is well-taken and as aptly stated by the said office:

"We do not hesitate to confirm that respondent Vera Cruz committed grave misconduct in office, dishonesty, and conduct prejudicial to the best interest of the service when he received the amount of ₱6,000.00 for the cancellation of a bailbond and issued a stolen official receipt for the same, and forged the signature of the authorized issuer under the pretext that he was the court employee duly authorized of processing bailbonds. For that he alone must suffer the consequences of his act.

The Honorable Court had said before, and reiterates it again, as it has done in other cases, that the conduct and behavior of everyone connected with an office charged with the dispensation of justice, from the Presiding Judge to the lowliest clerk, should be circumscribed with the heavy burden of responsibility. His conduct at all times, must not only be characterized by propriety and decorum but above else must be above suspicion (*Jerios, Jr. vs. Reblando, Sr.*, 71 SCRA 126). Indeed, every employee of the judiciary should be an example of integrity, uprightness and honesty (*Ablanida vs. Intia,* Administrative Matter No. R-770-P, May 17, 1988).

Respondent does not deserve to stay any longer in the judiciary.

ACCORDINGLY, Tomas Vera Cruz, Jr. is hereby *DISMISSED* from service for grave misconduct, dishonesty, and conduct prejudicial to the best interests of the service, with forfeiture of all retirement benefits, and with prejudice to re-employment in any branch of the government, including government-owned and controlled corporations.

Let a copy of this Decision be forwarded to the Regional Trial Court, Branch 25, Biñan, Laguna and the Civil Service Commission.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, Puno, and *Vitug, JJ.,* concur.

Padilla and *Griño-Aquino, JJ.,* on leave.

FIRST DIVISION

[G.R. No. 102954. October 14, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **ALFREDO HANGAD, ALLAN ALULOD, RENE REYES, LEOPOLDO BALANGUE and RODELIO VIDAL,** *accused-appellants.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; FINALITY OF THE FACTUAL FINDINGS OF THE TRIAL COURT THEREON. — It is a settled doctrine that when the issue of credibility of witnesses is involved, appellate courts will generally not disturb the findings of the trial court, considering that the latter is in a better position

to decide the question since it had heard the witnesses and observed their deportment and manner of testifying during trial, unless certain facts of circumstances of weight have been overlooked, misunderstood or misapplied which, if considered, might affect the result of the case.

2. ID.; ID.; IDENTIFICATION OF THE ACCUSED; NOT SUFFICIENTLY ESTABLISHED. — There is no evidence that Decoroso Cajes moved closer than five meters from Lloyd and *vice-versa*. If he could not identify his co-worker at a distance of five meters except through the latter's voice, then indeed the place was poorly lit, in which case Lloyd could not reasonably be expected to see a gun much small than Decoroso, being poked and then fired at the latter. Moreover, considering that Lloyd himself was attacked and assaulted with one person holding him and another poking a gun at him, his attention would be focused at that time on his two attackers and on his own safety and survival. What is more logical under the circumstances is that since, as he claimed, he heard the sound of a gunshot and he was aware that Decosoro died from a gunshot wound, he merely inferred that there was a gun and that it was fired at Decoroso. Secondly, if indeed Lloyd was able to recognize the faces of the accused, it is highly unlikely that he would make a mistake in identifying the person who purportedly pointed a gun at him and from whom he tried to wrestle it. Yet, we note that on direct examination, he tapped the shoulder of the accused *Leopoldo Balangue* to confirm to the court that Balangue was the person in question, but on cross-examination, he pointed to accused Alfredo Hangad as the person who pointed the gun at him. No attempt was made by the prosecution to reconcile Lloyd's conflicting testimony on this very vital point. He did not say that he inadvertently tapped Leopoldo Balangue on the shoulder during the direct examination or that he erred in pointing at Vidal. It was the trial court which opined in its decision that Lloyd "later corrected himself and pointed to Alfredo Hangad." To us, it is not a simple case of correction. The tapping of Leopoldo Balangue expressed a thousand words of certainty, bordering on infallibility, that no one else except Leopoldo poked a gun at him. If subsequently, Lloyd knowingly changed his testimony without even giving the courtesy of an explanation, his alleged position identification of the person who poked the gun at him is placed in serious doubt, nay, altogether discredited.

The inevitable conclusion is that he was in fact unable to recognize the man either by face or by name and that his dramatic courtroom identification was contrived.

3. ID.; ID.; PROOF BEYOND REASONABLE DOUBT; NOT ESTABLISHED.— All told, the guilt of the accused has not been proven beyond reasonable doubt. Our minds cannot rest easy upon a conviction of the accused on the basis of the doubtful testimony of the lone eyewitness, Lloyd Mahinay.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.

Agustin M. Rocamora and *Wilson L. Dimaculangan* for accused-appellants.

D E C I S I O N

DAVIDE, JR., *J.*:

Accused appealed from the decision of Branch 50 of the Regional Trial Court of Palawan in Criminal Case No. 8816, promulgated on 8 August 1991,[1] finding all of them guilty of the murder of Decoroso Cajes in the evening of 14 November 1989 at Parola Beach in the city of Puerto Princesa, and sentencing each of them to suffer the penalty of *reclusion perpetua* and to pay, jointly and severally, the heirs of Decoroso Cajes the sums of ₱50,000.00 as indemnity for his death and ₱50,000.00 as moral damages.

The crime was allegedly committed on 14 November 1989 but the Information charging them of murder was filed only on 28 June 1990.[2] The basis of the filing of the Information were the sworn statements of witnesses Lloyd Mahinay and Ernesto Rosales taken by Police Sgt. Crisanto Pantollano on 26 February

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[1] Original Records (OR), 167-175; *Rollo*, 16-24. Per Judge Angel R. Miclat.

[2] OR, 1.

1990[3] and the paraffin test results finding Lloyd Mahinay and the accused positive for nitrates.[4] The Information alleges the qualifying circumstances of treachery and evident premeditation.

A plea of not guilty was entered by each of the accused during their arraignment on 25 September 1990.[5] Thereafter, trial on the merits ensued.

To establish its case, the prosecution presented Lloyd Mahinay and Ramon Pangilinan whose testimonies disclosed the following facts:

At 10:00 o'clock in the evening of 14 November 1989 while Lloyd Mahinay, a resident of Parola Beach, Barangay Bagong Silang, Puerto Princesa City, was on his way home, he met a group of five persons. One of them poked a gun at him and asked him his name while the other four surrounded him. He did not know the name of the gunwielder but he could see his face and estimate his height as the place was "not so dark because there was also moonlight." Then another person arrived and when he was about five meters away from Lloyd, three members of the group met this other person. Two of these three men held the newcomer while the third poked a gun at him. He tried to struggle and one of the five persons shouted "*Paputukan mo*." Another person from the group raised his hand and struck the man and the latter fell to the ground. The man was then shot. At this juncture, Lloyd tried to wrestle with the person who was pointing a gun at him but the gun fired towards the ground and the five panicked and ran away. Lloyd also panicked and ran towards the water and then to the place where his companions were. He told them that he was waylaid by a group of five men. He and his companions then returned to the place where he was waylaid to find out what happened to the other person. When Lloyd and his companions reached that place, they found the other person lying on the ground. He turned out to be his co-

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[3] OR, 2-3.

[4] *Id.*, 15-20-a.

[5] *Id.*, 25.

worker, Decoroso Cajes, whose voice Lloyd earlier recognized when Decoroso was held by the two men and he purportedly asked those who escorted him, "*Ano ba ito, wala naman akong kasalanan sa inyo*?" They then brought Decoroso to the hospital and laid him down on a bed, but the doctor who examined him told them that he was already dead.[6]

Per the *Post-Mortem* Findings[7] of Dr. Manuel R. Bilog, Assistant Head Health Officer of the City of Puerto Princesa, Decoroso Cajes sustained the following injuries:

> "= Abrasion with peripheral hematoma, upper lid (left) about 1" long, penetrated the whole thickness of the muscular tissues.
>
> = Gun Shot wound — mid occiput, with powder burns, circular, with penetration to the Cranium (skull) producing worn-out brain tissues. Bullet slug lodged & recovered about 2" below the wound of entrance underneath the skin."

The cause of death was "shock; hemorrhage, massive, intra and extra-cerebral; gunshot wound."

Lloyd did not know the names of the five persons until 9 October 1990 when he testified; but since he stated that he can recognize their faces, he was asked to identify them in court. So, he went down from the witness box and approached and tapped the shoulder of a person in the courtroom who gave his name as Leopoldo Balangue. Lloyd identified Balangue as the person who poked a gun at him.[8] He also pointed to four other persons in the courtroom as the companions of Balangue. They gave their names as Rene Reyes, Rodelio Vidal, Alfredo Hangad and Allan Alulod. When told to point to the person who allegedly shot Decoroso Cajes, Lloyd touched the shoulder of Rodelio Vidal.[9]

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[6] TSN, 9 October 1990, 6-8; 11-21.

[7] Exhibit "A"; OR, 46.

[8] TSN, 9 October 1990, 9-10.

[9] *Id.*, 14.

Ramon Pangilinan, a security guard, testified that at about 10:00 o'clock in the evening of 14 November 1989, while he was at his store near the Parola Beach, he heard "some voices in the cottage at the beach." At 10:30 o'clock, he saw a group of about four persons going out of the Parola Beach toward the *poblacion*. Not so long thereafter, the group of Decoroso Cajes followed the first group. Then he heard "a burst of a firearm," but he did not mind it. Later, a commotion occurred and he learned that Decoroso had been shot. That same evening he was interrogated by the police regarding the incident and he told the police that he "saw them (the first group) going out the parola beach"[10] but he could not identify any of them.[11]

The defense presented a totally different account of what occurred on the night of the incident. The trial court summarized the version of the defense as culled from its witnesses as follows:

"x x x the accused who are all students of PNAC-RIFT denied the accusation against them and maintained that at the time of the incident in question, they were all sleeping at the cottage of a certain Mrs. Abian whose son Eugene was their classmate at PNAC-RIFT, Puerto Princesa City.

Thus, at around three o'clock in the afternoon on November 14, 1989, Rene Reyes and some of his classmates, including all the accused, went to the house of Eugene Abian at the Parola Beach to help the latter and his mother in cooking since it was the birthday of Eugene. Two hours later, some more guests arrived and the birthday party started. After partaking of the food, the guests were served beer and the drinking spree started at around 7:00 p.m. Beer flowed that night up to about 9:00 p.m. when Rene and his classmates decided to rest already as they were very tired. Upon the suggestion of Mrs. Abian, they all slept and spent the night at the latter's cottage at the Parola Beach.

At around 12:00 midnight, Rene was awakened by one of his classmates so that they could bring Eugene to the hospital as the latter's mouth was frothing. Together with Allan Ramos, Ramon

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[10] TSN, 15 October 1990, 5-6.

[11] *Id.*, 10.

Aballa and the driver of the tricycle, Rene brought Eugene to the hospital. On their way to the hospital from the Parola Beach, they noticed a person sprawled on the ground along the road. But since they were in a hurry to bring Eugene to the hospital, they just evaded the said person. After having Eugene treated at the hospital, Rene and company proceeded home. (Testimony of Rene Reyes, Tsn: pp. 3-8, Oct. 22, 1990).

Lito Montero, a neighbor of Eugene Abian was the one who drove the tricycle that brought the latter to the hospital. He said they indeed noticed the person sprawled on the ground in the middle of the road about 90 to 100 meters away from the Parola Beach, but they just evaded him. (Testimony of Rene Reyes, Tsn: pp. 2-7, Oct. 23, 1990). He added that he did not hear any sound of a gunfire on the night of November 14, 1989 as he was then sleeping and was only awakened in order to drive the tricycle.

Accused Rodelio Vidal, Allan Alulod and Leopoldo Balangue likewise testified in Court and corroborated substantially the testimony of accused Rene Reyes. (Testimony of Rodelio Vidal, Allan Alulod and Leopoldo Balangue, Tsn: pp. 4-23, October 26, 1990) Accused Alfredo Hangad likewise corroborated substantially the testimonies of all his co-accused in the instant case. He further testified that during the said party, he and his companions exploded firecrackers. Moreover, in the afternoon of November 14, 1989 before going to Eugene's place at Parola Beach, he and his classmates were made to scatter fertilizer in the fishpond by the use of their hands. (Testimony of Alfredo Hangad, Tsn: pp. 4-14, November 7, 1990).

Dr. Manuel Bilog who conducted the autopsy on the deceased Decoroso Cajes, also testified on his autopsy report and as to the trajectory of the bullet. (Testimony of Dr. Manuel Bilog, Tsn: pp. 26-28, Nov. 7, 1990).

The forensic chemist of the National Bureau of Investigation Aida Viloria-Magsipoc was the one who conducted the paraffin examination on all the accused and witness Lloyd Mahinay. The former presented in Court copies of her Chemistry Reports finding all the accused and prosecution witness Lloyd Mahinay positive for gunpowder nitrates. (Testimony of Aida Viloria-Magsipoc, Tsn: pp. 2-21, Feb. 5, 1991)."[12]

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[12] OR, 168-169; *Rollo*, 17-18.

The trial court believed that the prosecution's lone eyewitness, Lloyd Mahinay, had positively identified those who attacked him and assaulted and killed Decoroso Cajes. It also found that the findings of the National Bureau of Investigation (NBI) not only sufficiently corroborated Mahinay's identification of the accused, they also "furnished concrete evidence that all the 5 accused were together at the time the victim was shot and killed in the evening of November 14, 1989 at Barangay Bagong Silang, Puerto Princesa City."[13] Treachery, the trial court further ruled, attended the killing because the victim was "unarmed" and was "suddenly and unexpectedly attacked." In addition, it found that conspiracy existed among the accused who "were animated by a joint purpose or design, concerted act and community of interest," and at the same time it noted that they "were boisterous and most likely under the influence of liquor having come from a birthday party with 2 of them armed with handguns [and] were disposed to commit trouble on that particular evening in question x x x. [T]hey accosted for no apparent reason any person they first met on the way."[14] The generic aggravating circumstances of abuse of superior strength and nighttime were considered against the accused but they were credited with the alternative circumstance of intoxication which was deemed not habitual.[15]

On the other hand, the trial court rejected the accused's version of the incident because having been positively identified, their defense of alibi fails. Moreover, they were unable to give a plausible explanation for the presence of gunpowder nitrates on their hands. Considering the testimony of the NBI chemist that nitrates from gunpowder are different from nitrates produced by firecrackers and fertilizers,[16] their claim that they handled fertilizers before the party and lighted firecrackers in the evening of the incident cannot be given any weight.

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[13] *Id*., 172; *Id.*, 21.

[14] OR, 170-171; *Rollo*, 20-21.

[15] *Id*., 175; *Id*., 24.

[16] *Id*., 173; *Id*., 22.

In their Notice of Appeal[17] filed on 3 September 1991, after their motion for reconsideration was denied by the trial court in its Order of 30 August 1991,[18] the accused informed the court that they were appealing the decision to the Court of Appeals. The records of the case were, however, forwarded to this Court in view of the penalty imposed. We accepted the appeal in the Resolution of 3 February 1992.

In their Appellants' Brief filed on 20 November 1992, the accused contend that the trial court erred in: (a) convicting them despite the failure of the prosecution to present the quantum of evidence required by the Constitution to secure a conviction beyond reasonable doubt; (b) interpreting the testimony of the NBI chemist regarding the presence of nitrates as conclusive evidence; (c) giving credence to the lone testimony of the single prosecution witness which was self-serving, biased, and gutted by doubt-inducing inconsistencies; and (d) interpreting the true but legally considered weak defense of alibi as an absolute principle — even in the absence of sufficient prosecution evidence.[19]

The accused maintain that the evidence of the prosecution was not sufficient to convict them. To them, the positive identification made by the prosecution's lone eyewitness is questionable for it followed the "almost ritualistic procedure where the prosecution witnesses are simply made to point out the accused on the bias of a simple 'if I see him I can identify him declaration,' and which accused are required to sit on an area conspicuously reserved for them where they can be easily tagged." They likened this procedure to a mock police line-up. Moreover, they characterize the testimony of Lloyd Mahinay as self-serving and biased. His error in positively identifying in court the person who allegedly poked a gun at him and his initial failure to recognize his co-worker, Decoroso Cajes, even while he was able to identify the accused with certainty exemplify

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[17] OR, 225.

[18] *Id*., 223.

[19] *Rollo*, 65.

the doubt surrounding Lloyd's ability to positively identify the real killer or killers.

They further contend that "while the NBI chemist was presented as an expert in her field of expertise, she is by no means an expert of renown whose probity is beyond question." Her testimony concerning specks and smudges of nitrates on their hands was ambiguous. They argue that if Rodelio Vidal was indeed the gunman who shot and killed Decoroso Cajes, he should have had more smudges on his hands than Lloyd Mahinay, which was not the case. The official reports themselves do not make a categorical finding that the nitrates came from gunpowder but only state that the subjects were positive of nitrates.

Finally, they stress that the weakness of the defense of alibi does not relieve the prosecution of its burden of proving their guilt beyond reasonable doubt. Where the prosecution's evidence is weak, the alibi of the defendant assumes importance.

The determination of the accused's guilt or innocence in this case hinges on the credibility of the prosecution's lone eyewitness, Lloyd Mahinay.

It is a settled doctrine that when the issue of credibility of witnesses is involved, appellate courts will generally not disturb the findings of the trial court, considering that the latter is in a better position to decide the question since it had heard the witnesses and observed their deportment and manner of testifying during trial, unless certain facts or circumstances of weight have been overlooked, misunderstood or misapplied which, if considered, might affect the result of the case.[20]

We have likewise consistently held that the testimony of a single witness, when credible and trustworthy, is sufficient to convict.[21]

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[20] See *People vs. Pascual,* 208 SCRA 393 [1992]; *People vs. Simon,* 209 SCRA 148 [1992]; *People vs. Florida,* 214 SCRA 227 [1992]; *People vs. Matrimonio,* 215 SCRA 613 [1992].

[21] See *People vs. Lee,* 204 SCRA 900 [1991]; *People vs. Dela Cruz,* 207 SCRA 632 [1992]; *People vs. Francisco,* 213 SCRA 746 [1992].

Our painstaking examination of the records and evaluation of the evidence leads us to no other conclusion than that the trial court overlooked or failed to appreciate vital facts and circumstances which cast doubt on the identification by Lloyd Mahinay of the accused as the murderers of Decoroso Cajes.

Firstly, Lloyd admitted that the place was not well-lit and that, although there was light coming from the moon, he could not recognize his co-worker, Decoroso Cajes, the victim, whom he claimed was only five meters away. Thus:

"Q How far was the deceased from you when he was first accosted by the 3 other persons?

A More or less this distance. (Witness pointing to the place he is sitting to the post which the parties estimated to be about 5 meters away).

Q From 5 meters away you could not recognize the deceased who was working with you in the same place for one year that is why you recognized him only through his voice?

A Yes, sir.

Q Why could you not recognize a person you have known for one year because you have worked together in the distance of 5 meters?.

ATTY. ROCAMORA:

May we make it of record that the question has been interpreted by the Honorable Court several times and witness has not answered the same.

A Because with that distance without the light you cannot readily recognize the person but if a person is near you can identify.

Q You mean to tell the Honorable Court that despite the fact that you said the moon was very bright you cannot recognize a person you have known for one year from 5 meters away, is that what you want the court to believe?

A I cannot, sir."[22]

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[22] TSN, 9 October 1990, 31-32.

There is no evidence that Decoroso Cajes moved closer than five meters from Lloyd and vice-versa. If he could not identify his co-worker at a distance of five meters except through the latter's voice, then indeed the place was poorly lit, in which case Lloyd could not reasonably be expected to see a gun much smaller than Decoroso, being poked and then fired at the latter. Moreover, considering that Lloyd himself was attacked and assaulted with one person holding him and another poking a gun at him, his attention would be focused at that time on his two attackers and on his own safety and survival. What is more logical under the circumstances is that since, as he claimed, he heard the sound of a gunshot and he was aware that Decoroso died from a gunshot wound, he merely inferred that there was a gun and that it was fired at Decoroso.

Secondly, if indeed Lloyd was able to recognize the faces of the accused, it is highly unlikely that he would make a mistake in identifying the person who purportedly pointed a gun at him and from whom he tried to wrestle it. Yet, we note that on direct examination, he tapped the shoulder of the accused Leopoldo Balangue to confirm to the court that Balangue was the person in question, but on cross-examination, he pointed to accused Alfredo Hangad as the person who pointed the gun at him. Thus, on cross-examination:

> "Q Who among the 5 accused you identified were the ones who held you?
>
> A This is the one who held me, at the other side, (pointing to the person who gave his name as Allan Alulod) and this person is the one who was holding the gun (witness pointing to the person who gave his name as Alfredo Hangad when asked)."[23]

No attempt was made by the prosecution to reconcile Lloyd's conflicting testimony on this very vital point. He did not say that he inadvertently tapped Leopoldo Balangue on the shoulder during the direct examination or that he erred in pointing at

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[23] TSN, 9 October 1990, 44-45.

Vidal. It was the trial court which opined in its decision that Lloyd "later corrected himself and pointed to Alfredo Hangad."[24] To us, it is not a simple case of correction. The tapping of Leopoldo Balangue expressed a thousand words of certainty, bordering on infallibility, that no one else except Leopoldo poked a gun at him. If subsequently, Lloyd knowingly changed his testimony without even giving the courtesy of an explanation, his alleged positive identification of the person who poked the gun at him is placed in serious doubt, nay, altogether discredited. The inevitable conclusion is that he was in fact unable to recognize the man either by face or by name and that his dramatic courtroom identification was contrived.

Thirdly, his testimony given in court on 9 October 1990 that he did not know the names of the accused until that day is inconsistent with his sworn statement taken on 26 February 1990,[25] where he solemnly admitted that he learned their names when they were taken to the NBI. Thus:

> "*06.–T: Nakilala mo ba kung sino-sino ang mga taong nakaaway ninyo ng mga sandaling iyon?*
>
> *S: Noong una po ay nakikilala ko lang sila sa kanilang taas at pangangatawan ngunit ng sila ay damputin ng mga Pulis at dalhin sa NBI ay nakilala ko sila na sina Allan Alulod, Alfredo Hangad, Rodelio Vidal, Rene Reyes at Leopoldo Balangue*."

We also wish to point out that in that same statement of Lloyd, the name *Alfredo Hangad* is written in ball pen in bold letters over the typewritten name *Noel Hernandez*, and the name *Rene Reyes* is written also in ball pen in bold letters over the typewritten name *Renato Balanque*. Since the sworn statement is supposed to be that of Lloyd Mahinay, they should have been

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[24] OR, 168.

[25] Marked as Exhibit "C" and also as Exhibit "2." This document is typewritten and was subscribed and sworn to on 26 February 1990 before Assistant City Prosecutor Nelia Yap-Fernandez of Puerto Princesa City; OR, 2.

initialed by him to show that he either made or authorized the superimpositions on those very substantive matters, *viz.*, the names of two of the assailants. But both superimpositions are not initialed by any person. These unexplained superimpositions cast a heavy toll on the truthfulness of Lloyd Mahinay's testimony. They even strongly suggest that it was the investigator himself who provided the names of the alleged assailants and fed them to the mouth of Lloyd and thereafter "corrected" the two names on the statement to conform to the paraffin test results of Alfredo Hangad and Rene Reyes.

Furthermore, it is obvious to us that Lloyd Mahinay had a motive to point to any of the accused as the gunman. He himself was a primary suspect because he was found positive for nitrates. To him, it became a matter of survival. His answers on cross-examination on this point are revealing:

"Q And it took you 3 months to give your statement to the police regarding this alleged incident?

A Yes, sir.

Q And you gave your statement to the police because you wanted to explain why powder burns were found in your hands, is that correct, Mr. Witness?

A Yes, sir.

Q That is why in the statement you specifically explained why you got powder burns in your hands?

A Yes, sir.

Q But during the month of November you did not go to the police and have your statement taken, Mr. Witness?

A I did not, sir.

Q During the month of December you did not go to the police and have your statement taken?

A No, sir.

Q During the month of January you did not go to the police to have your statement taken?

A I did not, sir.

Q It was only in February after the report on the paraffin test showed that you have a lot of powder burns in both hands that you went to the police to have your statement taken?

A Yes, sir."[26]

According to the findings of defense witness Aida Viloria-Magsipoc, Supervising Forensic Chemist in the Forensic Chemistry Section of the NBI, the paraffin tests of the left and right hands of Lloyd Mahinay showed that he was also positive for nitrates with specks located as follows:

"LEFT HAND:

1. One (1) speck, proximal third, first metacarpal;
2. One (1) speck, middle third, third metacarpal;
3. One (1) speck, proximal third, third metacarpal.

RIGHT HAND:

1. One (1) speck, middle third, distal phalange, thumb;
2. One (1) speck, distal third, proximal phalange, thumb;
3. One (1) speck, middle third, proximal phalange, thumb;
4. One (1) speck, distal third, first metacarpal;
5. One (1) speck, distal third, second metacarpal;
6. One (1) speck, distal third, proximal phalange, index finger;
7. One (1) speck, distal third, third metacarpal."[27]

and that the nitrates so found are from gunpowder.[28] She further declared that based on the number of nitrates specks and their distribution on the hands of the subjects, Lloyd Mahinay had "the greater possibility of firing the firearm" than accused Rene Reyes,[29] Allan Alulod,[30] Leopoldo Balangue,[31] Rodelio

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[26] TSN, 9 October 1990, 28-29.

[27] Exhibit "3"-Hangad; Exhibit "6"-all accused; OR, 15.

[28] TSN, 5 February 1991, 9-10.

[29] *Id*., 15-16.

[30] *Id*., 17-18.

[31] *Id*., 19-20.

Vidal[32] and Alfredo Hangad.[33] As testified by Lloyd Mahinay, he grappled for the possession of the gun pointed at him by one of the five persons who waylaid him, and that in the process a shot was fired therefrom toward the ground. It is not clear who pulled the trigger since there is neither an admission nor a denial from Lloyd that he did but definitely there was such a shot fired from the gun as admitted by Lloyd himself and confirmed by the result of the paraffin test on him.

That the evidence clearly indicate that the gun Lloyd grappled for was fired is crucial to us in the further assessment of the reliability of Lloyd's testimony. He testified that it was Rodelio Vidal who shot Decoroso Cajes and that two shots from two different guns, one which was poked at him and other poked at Decoroso, were actually fired. As earlier adverted to, however, prosecution witness Ramon Pangilinan testified that two groups of persons passed by near his store at Parola Beach going toward the *poblacion*, and that not so long after he "heard a burst of a firearm."[34] From this testimony, it is apparent that only one burst of gunfire or one shot was fired from a gun. If we are to give credence to the testimony of Lloyd Mahinay, this shot could be the one fired from the gun poked at him when he allegedly grappled for its possession. And since we seriously doubt that Lloyd actually saw Vidal fire the gun at Decoroso Cajes, the only scenario that opens itself to us or which we could reasonably reconstruct is that Lloyd himself was with that group that Ramon Pangilinan referred to as the group of Decoroso Cajes and a confrontation took place between Decoroso's group and the other, unidentified group in this way — someone from the latter confronted Lloyd with a gun; a rumble ensued thereafter between the two groups; there was a mad scramble for the possession of the firearm; Decoroso was hit by one from the other group and fell to the ground; and at that particular instance, any of the protagonists for the possession of the firearm must have

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[32] *Id*., 21.

[33] *Id*., 24.

[34] TSN, 15 October 1990, 3-4.

accidentally pulled the trigger and off went one bullet which hit Decoroso; all panicked and ran away.

If there was murder in the hearts of any of the accused, assuming that they did compose the other group, we find it hard to believe that Lloyd was not shot at but was just asked for his name when he was the first one to be waylaid, held by one and poked with a gun by another. The trial court did surmise or speculate on why the killing of Decoroso happened:

> "As the Court appreciates the evidence, the Court can only surmised [sic] that the unfortunate incident happened by reason of youthful exuberance. The 5 accused mostly in their late teens and another in his early twenties were students and definitely do not belong to the bad elements in town. Their attendance in the birthday celebration of their co-student where food and drinks flowed freely and made some or all of them affected by alcohol. In their youthful zest for thrill and excitement and uninhibited by alcohol, they set out to try and prove their manly ego around as they were with 2 handguns."

Conviction, however, cannot lie on mere surmises or speculation.

All told, the guilt of the accused has not been proven beyond reasonable doubt. Our minds cannot rest easy upon a conviction of the accused on the basis of the doubtful testimony of the lone eyewitness, Lloyd Mahinay.

WHEREFORE, the *appealed decision* of *Branch 50* of the *Regional Trial Court of Palawan* in *Criminal Case No. 8816* is *REVERSED* and the *accused-appellants ALFREDO HANGAD, ALLAN ALULOD, RENE REYES, LEOPOLDO BALANGUE* and *RODELIO VIDAL* are *ACQUITTED* with *costs de oficio.*

SO ORDERED.

Cruz (Chairman), Bellosillo, and *Quiason, JJ.,* concur.

Griño-Aquino, J., on official leave.

EN BANC

[A.M. No. RTJ-92-899. October 15, 1993]

LOLITA QUE LIM, *complainant, vs.* **JUDGE ROGER A. DOMAGAS,** *respondent.*

SYLLABUS

1. **JUDICIAL ETHICS; JUDGES; PUNISHING A PARTY WITH INDIRECT CONTEMPT WITHOUT A WRITTEN CHARGE AND OPPORTUNITY TO BE HEARD CONSTITUTE IGNORANCE OF THE LAW; CASE AT BAR. —** In the proceeding at bar, complainant Daniel Que Lim were punished for alleged contumacious refusal to bring the three (3) minor children before the respondent's court and on the part of Daniel Que Lim, alleged refusal to appear in court, without having been given an opportunity to rebut the charges and without having been notified by service of summons of the hearing of the *Habeas Corpus* case. In declaring the complainant and Daniel Que Lim guilty of indirect contempt and ordering their arrest without complying with Sec. 3(b) of Rule 71 of the Rules of Court respondent judge acted not only without or in excess of his jurisdiction but with gross ignorance of the law. Respondent Judge Domagas owes it to the public to know the law to be applied in a particular controversy. In so doing, he is called upon to exhibit more than just a cursory acquaintance with statutes and procedural rules. Notwithstanding respondent Judge's opinion regarding the urgency of the case, the law and settled jurisprudence should not be sacrificed for the sake of expediency.

2. **ID.; ID.; ID.; ABSENCE OF FRAUD, DISHONESTY OR CORRUPTION DOES NOT WARRANT DISCIPLINARY ACTION AGAINST JUDGES. —** As a matter of public policy, in the absence of fraud, dishonesty or corruption, the acts of a judge in his judicial capacity are not subject to disciplinary action, even though such acts are erroneous. However, while judges should not be disciplined for inefficiency on account merely of occasional mistakes or errors of judgment, it is imperative that they be conversant with basic legal principles like the one involved here. Fortunately for respondent Judge,

his order of 27 April 1992 was caught in time by the regular presiding judge and hence not actually enforced upon complainant; otherwise, a heavier penalty on respondent Judge would be called for.

R E S O L U T I O N

FELICIANO, *J.*:

This is an administrative complaint filed by Lolita Que Lim against Regional Trial Court Judge Roger A. Domagas, for gross ignorance of the law, inefficiency and incompetence, in respect of Special Proceeding No. 527, entitled "In the Matter of the Petition for *Habeas Corpus* of Daniel Christopher G. Lim, Kristine Marie G. Lim and Katrine Anne G. Lim." The present controversy arose from the following facts:

A petition for the issuance of a writ of *habeas corpus* was filed by Maria Adelinda Goze Lim, with Daniel Que Lim and herein complainant Lolita Que Lim as respondents, in Branch 2 of the Regional Trial Court of Tuguegarao, Cagayan. Respondent Judge Roger A. Domagas, while acting as pairing judge of said court, heard the case.

On 19 February 1992, respondent Judge Domagas issued an order requiring Lolita Que Lim and Daniel Que Lim to appear before the court, to produce and bring before the court the three (3) minor children subject of the proceedings and to explain the cause of their restraint over the said minors.[1] This order, however, was not served on Daniel Que Lim and Lolita Que Lim because they were not home at the time of service.

On 21 February 1992, another order similar in tenor to the 19 February 1992 order was issued by respondent Judge Domagas; this order was served on Lim Hua, the husband of Lolita Que Lim.[2]

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[1] Motion to declare respondents in contempt, Annex "F", p. 1; *Rollo*, p. 22.

[2] *Ibid*.

Apparently, the said order was not complied with by Daniel Que Lim and Lolita Que Lim because on 5 March 1992, a Motion to Declare Respondents in Contempt was filed by Maria Adelinda Goze Lim.

Acting on the Motion to Declare Respondents in Contempt, respondent Judge Domagas summarily issued the following order on 27 April 1992:

"Considering the Sheriff's report and return, the non-appearance of respondent Daniel Que Lim and non-production by him of the three (3) minor children, Daniel Christopher, Kristine Marie and Katrine Anne, all surnamed Lim, without any justification and considering further the order of the court dated March 26, 1992, whereby parties agreed to bring to court the said minors, the Court hereby penalizes Daniel Que Lim and Lolita Que Lim for contempt and hereby sentences them to prison until they produce before this court said three (3) minor children, said imprisonment not to exceed six (6) months.

Upon manifestation of Atty. Donato, let a hold departure order be issued against Daniel Que Lim and the said three (3) minor children and also against Lolita Que Lim.

Let a copy of this Order be furnished the Commission on Immigration and Deportation, Manila for its information and guidance and the NBI for the arrest of herein respondents."[3]

Subsequently, a Motion to Lift Warrant of Arrest and Motion for Reconsideration dated 29 April 1992 was filed by herein complainant Lolita Que Lim manifesting that she had never promised to bring the three (3) minor children to court. Complainant also averred that her co-respondent in the *Habeas Corpus* proceedings, Daniel Que Lim, was not properly served with summons. Lastly, complainant pointed out that because there was no notice and hearing on the Motion for Contempt, respondent Judge could not order her and Daniel Que Lim's arrest.[4]

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[3] Order dated 27 April 1992, Annex "A", *Rollo*, pp. 12-13.

[4] Motion to declare respondent's in contempt, Annex "H", p. 2; *Rollo*, p. 28.

Judge Teodoro L. Hernando, the regular presiding judge, upon finding that there was no basis for holding complainant and Daniel Que Lim guilty of contempt, issued an order dated 8 May 1992, lifting the warrants of arrest but maintaining the hold departure order.[5]

Before this Court, complainant reiterates the averments contained in her Motion to Lift Warrants of Arrest and Motion for Reconsideration in her complaint and adds that respondent Judge acted maliciously, whimsically and with gross ignorance of the law when he issued the questioned order of 27 April 1992.

For his part, respondent Judge Domagas, in his comment, maintains that he issued the questioned order pursuant to a 26 March 1992 order whereby complainant and Daniel Que Lim agreed to bring the minors before the court. Moreover, he felt that the petition for *Habeas Corpus* was urgent and he believed that the accused party "would be brought to custody pending the proceedings pursuant to the last paragraph of section 3, Rule 71 of the Rules of Court." Lastly, respondent Judge claims that since the 27 April 1992 order was never implemented, no actual damage was caused and therefore, the complaint should be dismissed.

After respondent's comment and complainant's reply were filed, the Court referred the matter to the Office of the Court Administrator. Deputy Court Administrator Juanito Bernad, after conducting an investigation, submitted his report to the Court dated 26 July 1993 with the recommendation that respondent Judge Domagas be fined five thousand pesos (₱5,000.00) for ignorance of the law.

The Court accepts the conclusion and recommendation reached by the Office of the Court Administrator, *except* for the amount of the fine.

What was involved in the case before respondent Judge was indirect contempt of court under section 3(b) of Rule 71 of the

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[5] Order dated 8 May 1992, Annex "I", *Rollo*, pp. 30-31.

Rules of Court, which requires that a written charge be filed and an opportunity given to the accused to be heard by himself or counsel, before the accused may be punished for contempt. Section 3(b) of Rule 71 provides:

"Sec. 3. *Indirect contempts to be punished after charge and hearing.* — After charge in writing has been filed, and an opportunity given to the accused to be heard by himself or counsel, a person guilty of any of the following acts may be punished for contempt;

x x x x x x x x x

(b) Disobedience of or resistance to a lawful writ, process, order, judgment, or command of a court; or injunction granted by a court or judge, x x x

x x x x x x x x x

In the proceeding at bar, complainant and Daniel Que Lim were punished for alleged contumacious refusal to bring the three (3) minor children before the respondent's court and on the part of Daniel Que Lim, alleged refusal to appear in court, without having been given an opportunity to rebut the charges and without having been notified by service of summons of the hearing of the *Habeas Corpus* case. In declaring the complainant and Daniel Que Lim guilty of indirect contempt and ordering their arrest without complying with the aforementioned rule, respondent judge acted not only without or in excess of his jurisdiction[6] but with gross ignorance of the law.[7]

Respondent Judge Domagas owes it to the public to know the law to be applied in a particular controversy. In so doing, he is called upon to exhibit more than just a cursory acquaintance with statutes and procedural rules.[8] Notwithstanding respondent Judge's opinion regarding the urgency of the case, the law and

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[6] *Felizmena v. Galano*, 131 SCRA 165 (1984); *Caluag v. Pecson*, 82 Phil. 8 (1948).

[7] See, generally, *Libarios v. Dabalos*, 199 SCRA 48 (1991); *Quizon v. Baltazar, Jr.*, 65 SCRA 293 (1975).

[8] *Ubongon v. Mayo*, 99 SCRA 30 (1980).

settled jurisprudence should not be sacrificed for the sake of expediency.

As a matter of public policy, in the absence of fraud, dishonesty or corruption, the acts of a judge in his judicial capacity are not subject to disciplinary action, even though such acts are erroneous.[9] However, while judges should not be disciplined for inefficiency on account merely of occasional mistakes or errors of judgment, it is imperative that they be conversant with basic legal principles like the one involved here.[10] Fortunately for respondent Judge, his order of 27 April 1992 was caught in time by the regular presiding judge and hence not actually enforced upon complainant; otherwise, a heavier penalty on respondent Judge would be called for.

ACCORDINGLY, the Court Resolved to *HOLD* respondent Judge Roger A. Domagas guilty of gross ignorance of the law and to *REQUIRE* him to pay a fine equivalent to Ten Thousand Pesos (₱10,000.00), with a *WARNING* that repetition of the same or similar offense will be met with a more severe penalty.

Narvasa, C.J., Cruz, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, Puno, and *Vitug, JJ.*, concur.

Padilla and *Griño-Aquino, JJ.*, on leave.

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[9] *Abad v. Bleza,* 145 SCRA 1 (1986); *Revita v. Rimando,* 98 SCRA 619 (1980).

[10] *Ubongon v. Mayo, supra; Ajeno v. Inserto,* 71 SCRA 166 (1976).

EN BANC

[G.R. No. 98084. October 18, 1993]

NEMESIO C. VIDAD, EXUPERIO BANTOTO, CRISTITO TEVES and LLOYD SIEGFRIED SIA, *petitioners, vs.* **REGIONAL TRIAL COURT OF NEGROS ORIENTAL, BRANCH 42, SOLICITOR GENERAL'S OFFICE, MARCELO M. BACALSO, NIEVA TIROL MONTES, GENEROSO CAPUYAN and TEOFILO GOMEZ,** *respondents*.

[G.R. No. 98922. October 18, 1993]

DR. TEOFILO E. GOMEZ, MARCELO BACALSO, NIEVA MONTES and GENEROSO CAPUYAN, *petitioners, vs.* **HON. JESUS TABILON, Presiding Judge of Branch 42, RTC-Dumaguete; NEMESIO VIDAD, EXUPERIO BANTOTO, CRISTETA TEVES and LLOYD SIEGFRIED SIA,** *respondents*.

[G.R. Nos. 100300-03. October 18, 1993]

DR. TEOFILO E. GOMEZ, MARCELO BACALSO, NIEVA MONTES and GENEROSO CAPUYANDR. TEOFILO E. GOMEZ, MARCELO BACALSO, NIEVA MONTES and GENEROSO CAPUYAN, *petitioners, vs.* **HON. JESUS TABILON, Presiding Judge of Br. 42, RTC-Dumaguete City, MARILYN S. NOBLE, ASTERIA R. ABLIR, ANITA R. EUMAGUE, LOVELLA E. UY, ELLUMINADA C. TAWING, REYNALDO CALLORA, JOSEFINA E. VILLAREAL, CECILIA P. ARBOLADO, *ET AL.,*** *respondents*.

SYLLABUS

1. POLITICAL LAW; ADMINISTRATIVE LAW; OFFICE OF THE SOLICITOR GENERAL; POWERS; SCOPE. — Presidential Decree 478, in part, provides: 1) The Office of

the Solicitor General shall represent the Government of the Philippines, its agencies and instrumentalities and its officials and agents in any litigation, proceeding, investigation or matter requiring the services of a lawyer. When authorized by the President of head of office concerned, it shall also represent government-owned or controlled corporations. The Office of the Solicitor General shall constitute the law office of the Government, and as such, shall discharge duties requiring the services of a lawyer. It shall have the following specific powers and functions: a) Represent the Government in the Supreme Court and the Court of Appeals in all criminal proceedings represent the Government and its officers in the Supreme Court, the Court of Appeals, and all other courts or tribunals in all civil actions and special proceedings in which the Government or any officer thereof in his official capacity is a party x x x. The above provisions are basically reiterated in the Administrative Code of 1987.

2. **ID.; PUBLIC OFFICERS; NOT IMMUNE FROM DAMAGES IN THEIR PERSONAL CAPACITIES ARISING FROM ACTS DONE IN BAD FAITH. —** The various complaints filed by the public school teachers allege bad faith on the part of the DECS officials. It cannot be pretended this early that the same could be impossible of proof. On the assumption that the plaintiffs are able to establish their allegations of bad faith, a judgment for damages can be warranted. Public officials are certainly not immune from damages in their personal capacities arising from acts done in bad faith; in these and similar cases, the public officials may not be said to have acted within the scope of their official authority, and no longer are they protected by the mantle of immunity for official actions.

3. **REMEDIAL LAW; DOCTRINE OF PRIMARY JURISDICTION; CONSTRUED. —** We see the court cases and the administrative matters to be closely interrelated, if not, indeed, interlinked. While no prejudicial question strictly arises where one is a civil case and the other is an administrative proceeding, in the interest of good order, it behooves the court to suspend its action on the cases before it pending the final outcome of the administrative proceedings. The doctrine of primary jurisdiction does not warrant a court to arrogate unto itself the authority to resolve a controversy the jurisdiction over which is initially lodged with an administrative body of special competence.

We see, in these petitions before us, no cogent reason to deviate from the rule.

APPEARANCES OF COUNSEL

Francisco D. Yap for petitioners.

D E C I S I O N

VITUG, *J.*:

A group of public school teachers in Negros Oriental held, starting 19 September 1990 and lasting until 21 September 1990, a mass action, or a strike from their school classes, to demand the release of their salaries by the Department of Budget. The teachers also assailed alleged corruption in the Department of Education, Culture and Sports (DECS).[1]

A return-to work order was promptly issued by DECS Regional Director Teofilo Gomez with a warning that if the "striking" school teachers were not to resume their classes within twenty-four hours, administrative charges would be filed.[2] The order not having been heeded, administrative complaints against the teachers concerned were thereupon filed. The teachers were each given five days from receipt of said complaints within which to submit their respective answers and supporting documents. Constituted to look into the cases was an investigation panel composed of three DECS lawyers, namely, Marcelo Baclaso, Nieva Montes and Generoso Capuyan.[3]

On 13 November 1990, a group of school teachers, who were administratively charged, filed with the Regional Trial Court of Dumaguete a complaint for injunction, prohibition and damages, with a prayer for preliminary injunction, against the

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[1] G.R. No. 98084, *Rollo*, 3, 81.

[2] G.R. No. 98084, Annex "1" Comment, 82.

[3] *Ibid*., Memorandum for Petitioners in G.R. No. 98084 and Respondents in G.R. Nos. 98912 and 100300-03, 146.

aforenamed DECS officials. A temporary restraining order, prohibiting the defendants from continuing with the administrative investigation, was forthwith granted by the court.[4]

The defendants filed their answer, later followed by a motion to dismiss. The school teachers, on their part, moved to strike out the appearance of the Office of the Solicitor General and to accordingly declare the defendants in default. Both motions of the plaintiffs and the defendants were denied by the court in its Order of 10 April 1991, *viz*:

> In the light of the foregoing, plaintiffs' motion to declare defendants in default, dated January 7, 1991, motion for reconsideration dated February 18, 1991 and defendants' motion to dismiss dated January 23, 1991, are all denied for lack of merit.
>
> SO ORDERED.[5]

From this denial, both parties filed with this Court their respective petitions for *Certiorari*, Prohibition and *Mandamus* under Rule 65 of the Rules of Court. The teachers' petition, that likewise impleaded as respondent, along with the DECS officials, the Office of the Solicitor General, was docketed as G.R. No. 98084 and that of the DECS officials as G.R. No. 98922. These cases were consolidated in this Court's resolution of 28 May 1991.[6]

Four other cases, raising like issues, were later also filed with the court below by other public school teachers concerned. The DECS officials, again represented by the Solicitor General, filed motions to dismiss, which the court similarly denied. A joint petition for *certiorari*, prohibition and *mandamus* was thence filed with this Court, docketed as G.R. Nos. 100300-03. This Court later resolved the petition to be likewise consolidated with G.R. No. 98084 and G.R. No. 98922 in its Resolution of 04 July 1991.[7]

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[4] G.R. No. 98084, Annex "3", Comment, 96.

[5] *Ibid*., Annex "K", Petition, 54-60.

[6] G.R. No. 98922, *Rollo*, 48.

[7] G.R. Nos. 100300-03, *Rollo*, 133.

The issues raised in these consolidated cases are —

(1) Whether or not the Office of the Solicitor General may properly represent the defendants in the Regional Trial Court cases;[8] and

(2) Whether or not the Regional Trial Court should have dismissed outright the said cases.[9]

It should be conceded that the various complaints against the DECS officials have prescinded from the administrative actions taken, and contemplated to be yet taken, against the public school teachers, the plaintiffs in the cases pending with the court *a quo*. The said complaints charge the defendants, all government officials, with having illegally withheld their salaries, having wrongfully filed administrative charges against the plaintiffs, having unjustifiably refused to inform the latter of the nature and cause of accusation upon which the charges were initiated, having inexcusably violated elemental due process, and having erroneously applied the law. The school teachers pray for actual and moral damages, plus attorney's fees, as well as for an order restraining the defendants from further proceeding with the administrative investigations.

The contention of the school teachers that the DECS officials are being sued *solely* in their private capacity certainly is not borne out by their above allegations and prayers. The root of the cases filed below deals, in fact, on the performance of official functions by the DECS officials. Whether the actions they have taken were proper or improper, or whether they have acted in good faith or bad faith, cannot, pending a full hearing that would aptly afford all parties an opportunity to ventilate their respective contentions, be yet determined. Until then, we must presume that official duties have been regularly performed.[10]

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[8] G.R. No. 98084.

[9] G.R. No. 98922 and G.R. Nos. 100300-03.

[10] Section 5 (m), Rule 131, Rules of Court.

Presidential Decree 478, in part, provides:

"1) The Office of the Solicitor General shall represent the Government of the Philippines, its agencies and instrumentalities and its officials and agents in any litigation, proceeding, investigation or matter requiring the services of a lawyer. When authorized by the President of head of office concerned, it shall also represent government-owned or controlled corporations. The Office of the Solicitor General shall constitute the law office of the Government, and as such, shall discharge duties requiring the services of a lawyer. It shall have the following specific powers and functions:

> "a) Represent the Government in the Supreme Court and the Court of Appeals in all criminal proceedings represent the Government and its officers in the Supreme Court, the Court of Appeals, and all other courts or tribunals in all civil actions and special proceedings in which the Government or *any officer thereof in his official capacity is a party*" (italics supplied).

x x x x x x x x x

The above provisions are basically reiterated in the Administrative Code of 1987.[11]

We accordingly hold that the Solicitor General did not act improperly in deciding to represent the DECS officials in the above cases.

The defendants' motions to dismiss the complaints have likewise been precipitately sought, and we see no reversible error in the denial thereof by the lower court. The various complaints filed by the public school teachers allege bad faith on the part of the DECS officials. It cannot be pretended this early that the same could be impossible of proof. On the assumption that the plaintiffs are able to establish their allegations of bad faith, a judgment for damages can be warranted. Public officials are certainly not immune from damages in their personal capacities arising from acts done in bad faith; in these and similar cases, the public officials may not be said to have acted within

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[11] Section 35 (i), Chapter 12, Title III, Book IV, Executive Order No. 292, as amended by Republic Act No. 6733.

the scope of their official authority, and no longer are they protected by the mantle of immunity for official actions.[12]

It was, nonetheless, inopportune for the lower court to issue the restraining orders. The authority of the DECS Regional Director to issue the return to work memorandum, to initiate the administrative charges and to constitute the investigating panel can hardly be disputed.[13]

We see the court cases and the administrative matters to be closely interrelated, if not, indeed, interlinked. While no prejudicial question strictly arises where one is a civil case and the other is an administrative proceeding, in the interest of good order, it behooves the court to suspend its action on the cases before it pending the final outcome of the administrative proceedings. The doctrine of primary jurisdiction does not warrant a court to arrogate unto itself the authority to resolve a controversy the jurisdiction over which is initially lodged with an administrative body of special competence. We see, in these petitions before us, no cogent reason to deviate from the rule.

WHEREFORE —

(1) The Petition in G.R. No. 98084 is *DISMISSED*;

(2) In G.R. No. 98922 (a) the Order of 10 April 1991, appealed from is *AFFIRMED*; (b) the writ of preliminary injunction issued by the lower court is *DISSOLVED*; and (c) the lower court is *DIRECTED* to suspend further hearings in its Civil Case No. 9789, until after a final determination on the administrative proceedings would have been made;

(3) In G.R. Nos. 100300-100303, inclusive, (a) the Joint Order of 28 May 1991, denying the motions to dismiss Civil Case No. 9877, No. 9879, No. 9882 and No. 9883 is *AFFIRMED*; (b) the writ of preliminary injunction issued by the lower court in said civil cases is *DISSOLVED*; and (c) the lower court is

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[12] *Rama v. Court of Appeals*, G.R. No. L-44484, 14 March 1987; *Correa v. GFI*, L-46096, 30 July 1979.

[13] See Section 38, Presidential Decree No. 807.

DIRECTED to suspend further hearings in the abovenumbered civil cases, until after a final determination would have been made on the administrative proceedings.

No costs.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, and *Puno, JJ.*, concur.

Padilla and *Griño-Aquino, JJ.,* on leave.

FIRST DIVISION

[G.R. Nos. 101000-01. October 18, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **BENJAMIN DE LA CRUZ, FREDDIE SOMBREA *alias* FEDERICO SOMBREA, NARCISO EDIO, GUILLERMO LAPORGA, JOSE BLANZA and EDUARDO PALMARES *alias* EDDIE PALMARES,** *accused-appellants.*

SYLLABUS

1. CRIMINAL LAW; JUSTIFYING CIRCUMSTANCES; SELF-DEFENSE; NOT APPRECIATED IN CASE AT BAR. — The plea of self-defense was correctly rejected by the trial court. The evidence is overwhelming that it was the group of the appellants that fell upon the victims and their companions while they were peacefully gathered on the hilltop. The claim that it was Castro's group that started the shooting is implausible, considering that no slugs or shells were found at the scene of the crime. These should have been scattered all over the place if it were true that the men on the hilltop had high-powered

rifles that began the volley of gunfire. The defense brief says they brought their firearms with them as they fled, which is the reason the weapons were not found on the hill. Did they also first pick up the incriminating shells and slugs?

2. ID.; QUALIFYING CIRCUMSTANCES; TREACHERY; CONSTRUED IN CASE AT BAR. — Treachery qualified the killings to murder as the appellants took the victims by surprise and thus insured the execution of their plan without risk to themselves. Curiously, none of the attackers was injured although they claimed to have been met with a hail of bullets from the men on the hilltop. It is no less strange that, despite their supposed positional advantage and superior fire power, the men on the hilltop bolted in fear when the appellants started shooting back, even as they ran uphill toward the enemy.

3. ID.; CONSPIRACY; CONSTRUED IN CASE AT BAR. — There is no doubt that a conspiracy existed among the appellants when, after dividing themselves into two groups, they surreptitiously climbed the hill to make their surprise attack. The six men acted in concert when they started shooting at their unsuspecting prey. They all had a common plan, which was to fall upon the men on the hilltop and kill them. The eyewitnesses testified that De la Cruz hit Catedrilla with a slingshot; that Blanza fired at him; that De la Cruz barred Castro's way as he sped down the hill, and that Sombrea fired twice at Castro, as so did the others. But it did not matter who fired the shots or wielded the knife that killed Catedrilla and Castro. The point is that whoever the actual killers were, all of them were directly involved. In a conspiracy, the act of one is the act of all and damns them all equally.

4. REMEDIAL LAW; EVIDENCE; ALIBI; CANNOT PREVAIL OVER POSITIVE IDENTIFICATION BY WITNESSES. — Palmares's alibi was also correctly disbelieved. There were several witnesses who placed him at the scene and time of the killings and saw him shoot at Castro. His claim that he arrived only at 10:00 o'clock that night as a member of the reinforcement team was belied by Acebuque and Pastolero, who said that when they went to the hilltop at 8:00 o'clock, he was already there. In fact, he aimed a gun at them and told them to raise their hands before allowing them to view the corpses.

5. ID.; ID.; CREDIBILITY OF WITNESSES; FINDINGS OF THE TRIAL COURT; RULE. — It is true that there were

other witnesses who corroborated Palmares, but as with all the witnesses, Judge Ricardo P. Galvez had the right and responsibility to assess their credibility. The assessment of the trial judge is usually received with respect if not indeed as conclusive on appeal, barring any showing of arbitrariness. The trial judge has a better opportunity than the appellate court to evaluate the demeanor of the witnesses. We go only by the sterile record. By contrast, the trial judge is able to directly observe the person on the stand and detect from his conduct the furtive lie that will itself expose the hidden truth.

6. ID.; ID.; ID.; NOT AFFECTED BY MINOR INCONSISTENCIES IN THEIR TESTIMONIES. — The defense faults the testimonies of the alleged eyewitnesses as peppered with contradictions and even with the mistaken identification of two of the accused. We find, however, that the inconsistencies are not of such a nature as to destroy the credibility of their testimonies as gauged, not separately, but in their totality. It is significant that the killings were committed in a matter of minutes and were attended with much surprise, confusion and fright. What happened on the hilltop was not a formal execution as by a firing squad with all the orderliness and solemnity of a ritual killing. It was a sudden attack. One moment the men on the hilltop were chatting quietly and the next moment the intruders were upon them with guns and knives. Two fell dead. The others fled in terror. It was over before they realized what had happened. Recalling that shocking incident later, the eyewitnesses for the prosecution could not be expected to narrate it in flawless detail or perfect concordance. For one thing, they could not have viewed the same incident from the same perspective and with the same composure (or lack of it). They also did not have the same degree of intelligence or powers of recollection, let alone articulation or vividness of language. In these circumstances, the eyewitnesses would naturally differ on some of the details of the killings without being deliberately untruthful. What is important is that there was basic agreement on the attack as a whole among all those who narrated how the killings were committed.

7. ID.; ID.; PRESUMPTION; REGULAR PERFORMANCE OF OFFICIAL DUTIES; DOES NOT INCLUDE THE RIGHT TO TAKE THE LAW INTO THEIR HANDS. — Appellant's plea that they were acting in the performance of their official

duties when they killed Castro and Catedrilla. Performance of duties does not include murder. The Court notes that these killings could have been whitewashed and the case conveniently closed with the commendation of the killers by the PC Provincial Commander. Without the intervention of the National Bureau of Investigation, the murders of Catedrilla and Castro would have been soon forgotten in the official records of the police as another justified punishment of alleged subversives. Murder is never justified, regardless of the victim. Mere suspicion of subversion is never a legal reason for summary execution. Even if they were members of the NPA — and there is no proof here of that suspicion — Castro and Catedrilla did not deserve to be shot down without trial, by decision and decree alone of the appellants. The appellants took the law into their own hands when they arbitrarily pronounced the guilt of the men on the hilltop and decided by themselves to impose the summary punishment of death. For their arrogant and lawless act they must and will be punished. But it will be in accordance with the law they have disdained, the law "which hears before it condemns, which proceeds upon inquiry and renders judgment only after trial," as the Bill of Rights ordains.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Rey M. Padilla for accused-appellants.

D E C I S I O N

CRUZ, *J.*:

Two men lay dead on a hilltop in Barangay Tahing, Calinog, Iloilo. One had two bullet wounds in his head, with points of entry at the nape. The other had been stabbed and shot in the abdomen and had another bullet wound in the head. Their names were John Castro and Roman Catedrilla.

The killers said the victims had been slain during a "shooting encounter" in the course of a "preventive patrol" against criminal elements, including members of the NPA. The PC Provincial

Commander of Iloilo officially commended them.[1] However, the National Bureau of Investigation conducted its own investigation and came to a different conclusion.[2] As a result, separate informations for the murder of Castro and Catedrilla were filed against the six herein appellants.

Of the six accused, Jose Blanza and Eduardo Palmares were members of the Integrated National Police detailed at Dueñas, Iloilo, while Freddie Sombrea and Guillermo Laporga belonged to the Integrated Civilian Home Defense Force (ICHDF). Benjamin de la Cruz and Narciso Edio were police informants.[3]

The evidence for the prosecution showed that on April 29, 1983, at about 6 o'clock in the evening, some men were gathered on a hilltop in the aforementioned *barangay*. Among them were John Castro, Roman Catedrilla, Mario Alcarde, Leopoldo Pastolero and Warlito Catedrilla. Upon seeing them, the appellants divided into two groups and made a sudden and simultaneous attack upon them. They killed Catedrilla on the spot.[4] The rest of his companions scampered in fright but Castro was unable to escape. As he ran downhill, he was felled with two shots that hit him in the neck.[5]

At around eight o'clock, *barangay* captain Romulo Acebuque, together with Leopoldo Pastolero, arrived at the hilltop to investigate the shooting. Palmares pointed a gun at them, asking them to raise their hands before they were allowed to see the corpses.[6] Warlito Catedrilla went to see his brother's body the following morning but left briefly to cut banana leaves to cover it. Upon his return, he was surprised to find that his brother's position had been changed, with the right hand now on his breast

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[1] Exhibit "3", Records, p. 647.

[2] Appellants' Brief, p. 79, *Rollo*; Records, pp. 731, 759.

[3] TSN, December 4, 1989, p. 3; January 28, 1988, p. 3; January 5, 1990, p. 4; June 9, 1989, p. 3; January 12, 1990, p. 3; August 18, 1989, p. 2.

[4] TSN, May 13, 1986, pp. 1-19.

[5] *Ibid*., p. 20.

[6] *Id*., pp. 24-25; July 2, 1987, pp. 3-5.

and the left hand extending to the side.[7] He was shocked when Blanza placed a pistol in his brother's right hand as someone took a picture of the act. The picture was presented as Exhibit "G."[8]

Except for Palmares, the appellants admitted killing Castro and Catedrilla but claimed self-defense. They said they were on a mission to investigate the strafing of Edio's house by a group led by Manuel Frias and were conducting a "preventive patrol" when they saw several persons on the hilltop. Their suspicions aroused, they divided themselves into two teams, one composed of four and the other of two members, and started ascending the hill. They were met with gunshots from above. They instinctively dropped to the ground and announced they were police officers but the men on the hilltop kept shooting at them. They returned fire until their adversaries retreated. When the exchange ceased, they found the lifeless bodies of Catedrilla and Castro. They sent for reinforcements, which arrived at 10 o'clock that same night, and stayed in the place until morning, when the investigators came.[9]

Palmares had a different defense. He denied any part in the shooting and said he was detailed at the Dueñas public market when it happened. He reported back to the police station at 8 o'clock that night and went to the scene of the crime only at 10 o'clock as a member of the reinforcement team.[10] His alibi was corroborated by the other appellants as well as Pat. Aujero and Gil Rosas.[11]

The plea of self-defense was correctly rejected by the trial court. The evidence is overwhelming that it was the group of the appellants that fell upon the victims and their companions while they were peacefully gathered on the hilltop. The claim

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[7] TSN, May 13, 1986, pp. 25-27.

[8] Records, p. 398.

[9] TSN, March 8, 1988, pp. 3-8; June 9, 1989, pp. 14-15, 23-24.

[10] TSN, January 28, 1988, pp. 3-5.

[11] TSN, June 9, 1989, p. 6; August 18, 1989, p. 17; December 4, 1989, p. 10; January 5, 1990, p. 10; January 12, 1990, pp. 11-12; March 8, 1988, p. 5; December 8, 1989, p. 10.

that it was Castro's group that started the shooting is implausible, considering that no slugs or shells were found at the scene of the crime.[12] These should have been scattered all over the place if it were true that the men on the hilltop had high-powered rifles that began the volley of gunfire. The defense brief says they brought their firearms with them as they fled, which is the reason the weapons were not found on the hill. Did they also first pick up the incriminating shells and slugs?

Palmares's alibi was also correctly disbelieved. There were several witnesses who placed him at the scene and time of the killings and saw him shoot at Castro.[13] His claim that he arrived only at 10 o'clock that night as a member of the reinforcement team was belied by Acebuque and Pastolero, who said that when they went to the hilltop at 8 o'clock, he was already there. In fact, he aimed a gun at them and told them to raise their hands before allowing them to view the corpses.

It is true that there were other witnesses who corroborated Palmares, but as with all the witnesses, Judge Ricardo P. Galvez had the right and responsibility to assess their credibility. The assessment of the trial judge is usually received with respect if not indeed as conclusive on appeal, barring any showing of arbitrariness. The trial judge has a better opportunity than the appellate court to evaluate the demeanor of the witnesses. We go only by the sterile record. By contrast, the trial judge is able to directly observe the person on the stand and detect from his conduct the furtive lie that will itself expose the hidden truth.

The defense faults the testimonies of the alleged eyewitnesses as peppered with contradictions and even with the mistaken identification of two of the accused. We find, however, that the inconsistencies are not of such a nature as to destroy the credibility of their testimonies as gauged, not separately, but in their totality.

It is significant that the killings were committed in a matter of minutes and were attended with much surprise, confusion and

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[12] TSN, December 4, 1989, p. 31.

[13] TSN, May 13, 1986, p. 16; August 12, 1986, pp. 8-12; December 4, 1986, pp. 5-7.

fright. What happened on the hilltop was not a formal execution as by a firing squad with all the orderliness and solemnity of a ritual killing. It was a sudden attack. One moment the men on the hilltop were chatting quietly and the next moment the intruders were upon them with guns and knives. Two fell dead. The others fled in terror. It was over before they realized what had happened.

Recalling that shocking incident later, the eyewitnesses for the prosecution could not be expected to narrate it in flawless detail or perfect concordance. For one thing, they could not have viewed the same incident from the same perspective and with the same composure (or lack of it). They also did not have the same degree of intelligence or powers of recollection, let alone articulation or vividness of language. In these circumstances, the eyewitnesses would naturally differ on some of the details of the killings without being deliberately untruthful. What is important is that there was basic agreement on the attack as a whole among all those who narrated how the killings were committed.

There is no doubt that a conspiracy existed among the appellants when, after dividing themselves into two groups, they surreptitiously climbed the hill to make their surprise attack. The six men acted in concert when they started shooting at their unsuspecting prey. They all had a common plan, which was to fall upon the men on the hilltop and kill them. The eyewitnesses testified that De la Cruz hit Catedrilla with a slingshot; that Blanza fired at him; that De la Cruz barred Castro's way as he sped down the hill, and that Sombrea fired twice at Castro, as so did the others.[14] But it did not matter who fired the shots or wielded the knife that killed Catedrilla and Castro. The point is that whoever the actual killers were, all of them were directly involved. In a conspiracy, the act of one is the act of all and damns them all equally.[15]

Treachery qualified the killings to murder as the appellants took the victims by surprise and thus insured the execution of

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[14] TSN, May 13, 1986, pp. 19-20; August 12, 1986, pp. 5-6; December 4, 1986, pp. 3-7; May 26, 1987, p. 9.

[15] *People v. Magalang*, 217 SCRA 571 (1993).

their plan without risk to themselves. Curiously, none of the attackers was injured although they claimed to have been met with a hail of bullets from the men on the hilltop. It is no less strange that, despite their supposed positional advantage and superior fire power, the men on the hilltop bolted in fear when the appellants started shooting back, even as they ran uphill toward the enemy.

Having arrived at the above conclusions, we see no need to discuss the appellants' plea that they were acting in the performance of their official duties when they killed Castro and Catedrilla. Performance of duties does not include murder.

The Court notes that these killings could have been whitewashed and the case conveniently closed with the commendation of the killers by the PC Provincial Commander. Without the intervention of the National Bureau of Investigation, the murders of Catedrilla and Castro would have been soon forgotten in the official records of the police as another justified punishment of alleged subversives. Murder is never justified, regardless of the victim. Mere suspicion of subversion is never a legal reason for summary execution. Even if they were members of the NPA — and there is no proof here of that suspicion — Castro and Catedrilla did not deserve to be shot down without trial, by decision and decree alone of the appellants.

The appellants took the law into their own hands when they arbitrarily pronounced the guilt of the men on the hilltop and decided by themselves to impose the summary punishment of death. For their arrogant and lawless act they must and will be punished. But it will be in accordance with the law they have disdained, the law "which hears before it condemns, which proceeds upon inquiry and renders judgment only after trial," as the Bill of Rights ordains.

WHEREFORE, the appeals are *DISMISSED* and the challenged decision is *AFFIRMED,* with costs against the accused-appellants. It is so ordered.

Davide, Jr., Bellosillo, and *Quiason, JJ.*, concur.

Griño-Aquino, J., on leave.

FIRST DIVISION

[G.R. No. 101191. October 18, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **MARIO A. BRAVO,** *accused-appellant.*

SYLLABUS

1. **REMEDIAL LAW; EVIDENCE; HEARSAY RULE; DYING DECLARATION IN CASE AT BAR AS AN EXCEPTION; PRESENT IN CASE AT BAR. —** The best witness was Elena herself, who complained to Natividad and later to her own daughter that it was Mario who attacked her. To Natividad she said: "*Pinalo ako ni Mario. May tama rin ako sa dibdib*." To Teofila she said: "*Pinalo ako ng asawa mo. Pinalo ako ni Mario*." As she died soon afterwards, these statements may be considered dying declarations, made with the consciousness of impending death. Elena, who was then already 80 years old, must have realized when she made these statements that she would not recover from her injuries. The statements may also be regarded as part of the *res gestae* as they were made soon after the startling occurrence without the opportunity for fabrication or concoction. The appellant's version of that incident is nothing if not absurd in light of the massive injuries sustained by Elena. It is inconceivable how one simple fall could have caused all the many serious and fatal injuries specified in the autopsy report. The defense now argues that if Mario had inflicted all these injuries, Elena should have said "*Pinagpapalo ako ni Mario*" and not "*Pinalo ako ni Mario*," suggesting only one single blow. This is semantic quibbling. A woman on the verge of violent death is not expected to be finicky about her grammar.

2. **ID.; ID.; PRESENTATION OF *CORPUS DELICTI*; NOT VITAL TO THE CAUSE OF THE PROSECUTION. —** The "failure" to present the blunt instrument that caused the injuries was not fatal to the prosecution. In fact, the instrument could have been Mario's hands. At any rate, we have held that: Likewise, the presentation or non-presentation of the weapons in evidence (the knife in stabbing and the carbine used in shooting the victim) is not vital to the cause of the prosecution.

Corpus delicti means the fact of the crime or that a crime has actually been perpetrated. It does not refer to the corpse of the victim or the weapon used to kill him. It is not therefore imperative that the weapons used in the commission of the crime be presented in court.

3. ID.; ID.; MOTIVE; PROOF THEREOF, NOT ESSENTIAL WHERE THE CULPRIT HAS BEEN POSITIVELY IDENTIFIED. — The appellant says he had no motive for killing his mother-in-law but there are testimonies to the effect that he often quarreled with her. He has not denied this. In any event, the familiar doctrine is that proof of motive is not essential where, as in this case, the culprit has been positively identified, significantly by no less than Mario's own daughter, Mary Joy. He had earlier told her to go to the bedroom, presumably so she would not see his attack upon her grandmother.

4. POLITICAL LAW; CONSTITUTIONAL LAW; JUDICIAL DEPARTMENT; DECISION RENDERED BY ANY COURT MUST EXPRESS CLEARLY AND DISTINCTLY THE FACTS AND THE LAW ON WHICH IT IS BASED; SATISFIED IN CASE AT BAR. — There is a queer assignment of error in the appellant's brief, *viz*., that the challenged decision does not contain "the facts of the case for or against and only of selected facts in favor of a party." It is argued that this is unconstitutional. The relevant constitutional provision is found in Article VIII, Section 14, which says that "no decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based." We do not find it has been violated in the challenged decision. It is for the judge to determine from the narration of facts, relevant or irrelevant, and the assertions by the parties, truthful or not, what actually happened in the case before him. Judge Dizon did this when he made what the appellant calls a "selective finding of facts." Of course, it had to be selective. That is how a trial judge separates the chaff from the grain, extracts the truth from the mass of conflicting claims, and determines the basis of the decision he will have to make.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Cirilo A. Bravo for accused-appellant.

D E C I S I O N

CRUZ, *J.*:

Fact imitated fiction when Mario Bravo, the herein accused-appellant, killed his mother-in-law, Elena Sta. Maria. He denied the killing, claiming that the old woman's death was due to an accident. The trial court disbelieved him and convicted him of murder.[1] He now asks this Court to reverse the decision on the ground that he is innocent.

At his trial before the Regional Trial Court of Malolos, Bulacan, the prosecution presented six witnesses, namely his wife Teofila,[2] his 11-year old daughter Mary Joy,[3] Natividad Sta. Maria,[4] Luisito Sta. Maria,[5] Maxima Rodriguez,[6] and Dr. Benito Caballero.[7] Only the accused-appellant testified in his defense.

Pieced together, the separate testimonies of the prosecution witnesses disclosed the following version of Elena's death.

In the morning of June 28, 1989, Mary Joy was studying in the living room of their house at Caingin, San Rafael, Bulacan. Her grandmother was in the kitchen and her father was in the yard. Her father told her to go to the bedroom and, rather cryptically, also not to mind anything she might later hear. Minutes later, she heard the sound as of a scuffle (*kalabog*) and then her grandmother's scream. She rushed out to see what was happening and found her father in the kitchen with his hands on her grandmother's head. The old woman was lying prostrate

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[1] Through Judge Agustin S. Dizon; *Rollo*, p. 16.

[2] TSN, February 21, 1990, pp. 2-14.

[3] TSN, January 24, 1990, pp. 2-10.

[4] TSN, November 17, 1989, pp. 3-14.

[5] TSN, November 20, 1989, pp. 2-12.

[6] TSN, October 6, 1989, pp. 2-12.

[7] TSN, December 20, 1989, pp. 2-9.

on the floor. Mary Joy ran out to call her other grandmother, Natividad Sta. Maria, whose house was nearby. On the way, she met her Lola Natividad, who had heard Elena call her name twice. Mary Joy told her what had happened and then went out with Rommel Munsayoc to fetch her mother from her office.[8]

Natividad proceeded to the house and saw Mario choking the helpless Elena, who looked very pale. The old woman's head was bleeding. Natividad loosened Mario's hold on Elena and asked him what he was doing. Mario slumped to the floor and said nothing. She told him to help her carry Elena to her bed and to get a piece of cloth to stop the bleeding. Mario complied. Elena moaned and said, "*Pinalo ako ni Mario. May tama rin ako sa dibdib*."[9]

Some neighbors, hearing the commotion, went to Elena's house and helped bring her to the hospital. Teofila Bravo, Mario's wife, followed and was able to talk to her mother, who said to her, "*Pinalo ako ng asawa mo. Pinalo ako ni Mario*."[10] Luisito Sta. Maria, who was only a foot away from her Tia Elena, also heard what she said.[11] Elena died that same day.

Dr. Benito Caballero, who conducted the autopsy on the victim, reported the cause of her death as "shock due to cerebral hemorrhage and brain concussion with internal hemorrhage, fractured ribs, ruptured lungs, pericardium due to multiple traumatic force in the head, neck, extremity, shoulder and chest."[12]

Mario maintained that all the injuries were caused by the victim's fall in the kitchen and not by any violence exerted by him on the old woman.[13] Elena was 80 years old at the time of her death. She usually wore a brace but she was not wearing

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[8] TSN, January 24, 1990, pp. 3-9.

[9] TSN, November 17, 1989, pp. 7-12.

[10] TSN, February 21, 1990, p. 7; *Ibid*., pp. 7-8.

[11] TSN, November 20, 1989, pp. 8-9.

[12] Exhibit "C", Original Records, p. 92.

[13] Brief for Accused-Appellant, p. 16.

it when she fell and sustained the fatal injuries.[14] When Elena fell, he immediately went to assist her and it was at this point that Natividad came upon them.[15] He said that Natividad had testified against him because he had quarreled with her over the bad odor coming from her poultry. He also questioned the motive of another prosecution witness, his neighbor Maxima Rodriguez, whom he had earlier denied the use of their artesian well.[16]

Mario's version of Elena's death was disputed by Dr. Caballero, who declared on cross-examination that the wounds sustained by Elena could not have been caused by the alleged fall on the kitchen floor. Neither could they have been the result of an earlier accident because all the fractures were new or fresh.[17]

After assessing the evidence, Judge Agustin S. Dizon found for the prosecution and disposed as follows:

WHEREFORE, in the light of the foregoing, the Court hereby finds the accused Mario Bravo guilty beyond reasonable doubt of the crime charged. Accordingly, he is hereby sentenced to suffer the penalty of *reclusion perpetua* together with all the accessory penalties provided by law and to indemnify the heirs of the victim Elena Sta. Maria the amount of ₱30,000.00 for her death.

We sustain his factual findings, which are adequately supported by the record. Like him, we are particularly persuaded by the narration made by the 11-year old Mary Joy, who knew that she was testifying against her own father. We do not think she invented a tale out of pure cloth to condemn her father to possibly the rest of his life in prison. Moreover, she was corroborated by the other witnesses, especially Natividad Sta. Maria, who came to succor Elena when she heard her call for help.

But the best witness was Elena herself, who complained to Natividad and later to her own daughter that it was Mario who

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[14] Order, September 13, 1989, Records, p. 21.

[15] TSN, August 15, 1990, pp. 8-10.

[16] *Ibid*., pp. 18-19, 23.

[17] TSN, December 20, 1989, pp. 10-12.

attacked her. To Natividad she said: "*Pinalo ako ni Mario. May tama rin ako sa dibdib*." To Teofila she said: "*Pinalo ako ng asawa mo. Pinalo ako ni Mario*."

As she died soon afterwards, these statements may be considered dying declarations, made with the consciousness of impending death.[18] Elena, who was then already 80 years old, must have realized when she made these statements that she would not recover from her injuries. The statements may also be regarded as part of the *res gestae* as they were made soon after the startling occurrence without the opportunity for fabrication or concoction.[19]

The appellant's version of that incident is nothing if not absurd in light of the massive injuries sustained by Elena. It is inconceivable how one simple fall could have caused all the many serious and fatal injuries specified in the autopsy report. The defense now argues that if Mario had inflicted all these injuries, Elena should have said "*Pinagpapalo ako ni Mario"* and not "*Pinalo ako ni Mario*," suggesting only one single blow. This is semantic quibbling. A woman on the verge of violent death is not expected to be finicky about her grammar.

The "failure" to present the blunt instrument that caused the injuries was not fatal to the prosecution. In fact, the instrument could have been Mario's hands. At any rate, we have held that:

> Likewise, the presentation or non-presentation of the weapons in evidence (the knife in stabbing and the carbine used in shooting the victim) is not vital to the cause of the prosecution. *Corpus delicti* means the fact of the crime or that a crime has actually been perpetrated. It does not refer to the corpse of the victim or the weapon used to kill him. It is not therefore imperative that the weapons used in the commission of the crime be presented in court.[20]

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[18] Section 37, Rule 130, Rules of Court; *People vs. Pama*, 216 SCRA 385; *People vs. Bocatcat*, 188 SCRA 175; *People vs. Nabor*, 185 SCRA 615.

[19] Section 42, Rule 130, Rules of Court; *People vs. Siscar*, 140 SCRA 316; *People vs. Roca*, 162 SCRA 696; *People vs. Became*, 72 SCRA 184.

[20] *People vs. Ferrera*, 151 SCRA 113.

The appellant says he had no motive for killing his mother-in-law but there are testimonies to the effect that he often quarreled with her.[21] He has not denied this. In any event, the familiar doctrine is that proof of motive is not essential where, as in this case, the culprit has been positively identified, significantly by no less than Mario's own daughter, Mary Joy. He had earlier told her to go to the bedroom, presumably so she would not see his attack upon her grandmother.

There is a queer assignment of error in the appellant's brief, *viz*., that the challenged decision does not contain "the facts of the case for or against and only of selected facts in favor of a party." It is argued that this is unconstitutional.

The relevant constitutional provision is found in Article VIII, Section 14, which says that "no decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based." We do not find it has been violated in the challenged decision. It is for the judge to determine from the narration of facts, relevant or irrelevant, and the assertions by the parties, truthful or not, what actually happened in the case before him. Judge Dizon did this when he made what the appellant calls a "selective finding of facts." Of course, it had to be selective. That is how a trial judge separates the chaff from the grain, extracts the truth from the mass of conflicting claims, and determines the basis of the decision he will have to make.

The other issues raised in the appellant's brief are not substantial enough to deserve anything less than short shrift. One does not argue only for the sake of argument. Arguments are not counted or measured but *weighed*.

We agree that Mario Bravo killed Elena Sta. Maria but find that treachery and evident premeditation, as alleged in the information, were not proved at the trial. The crime is nonetheless

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[21] Brief for Accused-Appellant, p. 28; TSN, February 21, 1990, pp. 13-16; November 17, 1989, pp. 5-6; November 20, 1989, p. 18.

still qualified as murder because it was, as also alleged in the information, committed with abuse of superior strength.[22] Mario Bravo was in the prime of life at 43 years of age. Elena Sta. Maria was near death because alone of her years when he dealt her the heavy blows that killed her.[23] This is a fact stranger than fiction that only the killer can explain.

WHEREFORE, the appeal is *DISMISSED* and the challenged decision is *AFFIRMED* except as here modified, particularly with regard to the civil indemnity, which is increased to ₱50,000.00 in accordance with the existing policy of the Court. It is so ordered.

Davide, Jr., Bellosillo, and *Quiason, JJ.*, concur.

Griño-Aquino, J., on leave.

FIRST DIVISION

[G.R. No. 110295. October 18, 1993]

COCA-COLA BOTTLERS PHILIPPINES, INC., *petitioner, vs.* **THE HONORABLE COURT OF APPEALS (Fifth Division) and MS. LYDIA GERONIMO,** *respondents*.

SYLLABUS

1. CIVIL LAW; PRESCRIPTION OF ACTIONS; RULE IN CASE OF ACTION FOUNDED ON QUASI-DELICT. —

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[22] Article 248 (1), Revised Penal Code; *People vs. Sadia,* 203 SCRA 62; *People vs. Malinao,* 184 SCRA 148; *People vs. Berbal,* 176 SCRA 202.

[23] TSN, August 15, 1990, p. 3; Order, September 13, 1989, Original Records, p. 21.

The public respondent's conclusion that the cause of action in Civil Case No. D-9629 is founded on quasi-delict and that, therefore, pursuant to Article 1146 of the Civil Code, it prescribes in four (4) years is supported by the allegations in the complaint, more particularly paragraph 12 thereof, which makes reference to the reckless and negligent manufacture of "adulterated food items intended to be sold for public consumption."

2. ID.; SPECIAL CONTRACTS; SALES; WARRANTY AGAINST HIDDEN DEFECTS; REMEDIES OF VENDEE IN RESPECT THERETO. — The vendee's remedies against a vendor with respect to the warranties against hidden defects of or encumbrances upon the thing sold are not limited to those prescribed in Article 1567 of the Civil Code which provides: "Art. 1567. In the case of Articles 1561, 1562, 1564, 1565 and 1566, the vendee may elect between withdrawing from the contract and demanding a proportionate reduction of the price, with damages in either case." The vendee may also ask for the annulment of the contract upon proof of error or fraud, in which case the ordinary rule on obligations shall be applicable. Under the law on obligations, responsibility arising from fraud is demandable in all obligations and any waiver of an action for future fraud is void. Responsibility arising from negligence is also demandable in any obligation, but such liability may be regulated by the courts, according to the circumstances. Those guilty of fraud, negligence, or delay in the performance of their obligations and those who in any manner contravene the tenor thereof are liable for damages.

3. ID.; QUASI-DELICT; LIABILITY THERETO MAY STILL EXIST DESPITE THE PRESENCE OF CONTRACTUAL RELATION. — The vendor could likewise be liable for quasi-delict under Article 2176 of the Civil Code, and an action based thereon may be brought by the vendee. While it may be true that the pre-existing contract between the parties may, as a general rule, bar the applicability of the law on quasi-delict, the liability may itself be deemed to arise from quasi-delict, *i.e.*, the act which breaks the contract may also be a quasi-delict. Thus, in *Singson vs. Bank of the Philippine Islands*, (23 SCRA 1117 [1968]) this Court stated: "We have repeatedly held, however, that the existence of a contract between the parties does not bar the commission of a tort by the one against the other and the consequent recovery of damages therefor. Indeed,

this view has been, in effect, reiterated in a comparatively recent case. Thus, in *Air France vs. Carrascoso*, involving an airplane passenger who, despite his first-class ticket, had been illegally ousted from his first-class accommodation and compelled to take a seat in the tourist compartment, was held entitled to recover damages from the air-carrier, upon the ground or tort on the latter's part, for, although the relation between the passenger and a carrier is 'contractual both in origin and nature x x x the act that breaks the contract may also be a tort.'" Otherwise put, liability for quasi-delict may still exist despite the presence of contractual relations.

4. ID.; ID.; BASIS OF LIABILITIES OF MANUFACTURER OR SELLER OF INJURY-CAUSING PRODUCTS; RULE. — Under American law, the liabilities of the manufacturer or seller of injury-causing products may be based on negligence, breach of warranty, tort, or other grounds such as fraud, deceit, or misrepresentation. Quasi-delict, as defined in Article 2176 of the Civil Code, (which is known in Spanish legal treatises as *culpa aquiliana*, *culpa extra-contractual* or *cuasi-delitos*) is homologous but not identical to tort under the common law, which includes not only negligence, but also intentional criminal acts, such as assault and battery, false imprisonment, and deceit.

APPEARANCES OF COUNSEL

Angara, Abello, Concepcion, Regala & Cruz Law Offices for petitioner.

Alejandro M. Villamil for private respondent.

D E C I S I O N

DAVIDE, JR., *J.*:

This case concerns the proprietress of a school canteen which had to close down as a consequence of the big drop in its sales of soft drinks triggered by the discovery of foreign substances in certain beverages sold by it. The interesting issue posed is whether the subsequent action for damages by the proprietress against the soft drinks manufacturer should be treated as one for breach of implied warranty against hidden defects or

merchantability, as claimed by the manufacturer, the petitioner herein, which must therefore be filed within six months from the delivery of the thing sold pursuant to Article 1571 of the Civil Code, or one for quasi-delict, as held by the public respondent, which can be filed within four years pursuant to Article 1146 of the same Code.

On 7 May 1990, Lydia L. Geronimo, the herein private respondent, filed a complaint for damages against petitioner with the Regional Trial Court (RTC) of Dagupan City.[1] The case was docketed as Civil Case No. D-9629. She alleges in her complaint that she was the proprietress of Kindergarten Wonderland Canteen located in Dagupan City, an enterprise engaged in the sale of soft drinks (including Coke and Sprite) and other goods to the students of Kindergarten Wonderland and to the public; on or about 12 August 1989, some parents of the students complained to her that the Coke and Sprite soft drinks sold by her contained fiber-like matter and other foreign substances or particles; she then went over her stock of soft drinks and discovered the presence of some fiber-like substances in the contents of some unopened Coke bottles and a plastic matter in the contents of an unopened Sprite bottle; she brought the said bottles to the Regional Health Office of the Department of Health at San Fernando, La Union, for examination; subsequently, she received a letter from the Department of Health informing her that the samples she submitted "are adulterated"; as a consequence of the discovery of the foreign substances in the beverages, her sales of soft drinks severely plummeted from the usual 10 cases per day to as low as 2 to 3 cases per day resulting in losses of from ₱200.00 to ₱300.00 per day, and not long after that she had to close shop on 12 December 1989; she became jobless and destitute; she demanded from the petitioner the payment of damages but was rebuffed by it. She prayed for judgment ordering the petitioner to pay her ₱5,000.00 as actual damages, ₱72,000.00 as compensatory damages, ₱500,000.00 as moral damages, ₱10,000.00 as exemplary damages, the amount

[1] Annex "C" of Petition; *Rollo*, 46-49.

equal to 30% of the damages awarded as attorney's fees, and the costs.[2]

The petitioner moved to dismiss[3] the complaint on the grounds of failure to exhaust administrative remedies and prescription. Anent the latter ground, the petitioner argued that since the complaint is for breach of warranty under Article 1561 of the Civil Code, it should have been brought within six months from the delivery of the goods pursuant Article 1571 of the said Code. In her Comment[4] thereto, private respondent alleged that the complaint is one for damages which does not involve an administrative action and that her cause of action is based on an injury to plaintiff's right which can be brought within four years pursuant to Article 1146 of the Civil Code; hence, the complaint was seasonably filed. Subsequent related pleadings were thereafter filed by the parties.[5]

In its Order of 23 January 1991,[6] the trial court granted the motion to dismiss. It ruled that the doctrine of exhaustion of administrative remedies does not apply as the existing administrative remedy is not adequate. It also stated that the complaint is based on a contract, and not on quasi-delict, as there exists a pre-existing contractual relation between the parties; thus, on the basis of Article 1571, in relation to Article 1562, the complaint should have been filed within six months from the delivery of the thing sold.

Her motion for the reconsideration of the order having been denied by the trial court in its Order of 17 April 1991,[7] the private respondent came to this Court via a petition for review

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[2] *Rollo*, 46-48.

[3] Annex "D" of Petition; *Rollo*, 58-59.

[4] Annex "E" of Petition; *Rollo*, 58-59.

[5] Reply to the Comment (Annex "F" of Petition); Rejoinder to Reply (Annex "G" of Petition); Surrejoinder (Annex "H" of Petition).

[6] Annex "I" of Petition; *Rollo*, 77-78. Per Judge Eloy R. Bello, Jr.

[7] Annex "J" of Petition; *Rollo*, 79-81.

on *certiorari* which we referred to the public respondent "for proper determination and disposition."[8] The public respondent docketed the case as CA-G.R. SP No. 25391.

In a decision promulgated on 28 January 1992,[9] the public respondent annulled the questioned orders of the RTC and directed it to conduct further proceedings in Civil Case No. D-9629. In holding for the private respondent, it ruled that:

"Petitioner's complaint being one for quasi-delict, and not for breach of warranty as respondent contends, the applicable prescriptive period is four years.

It should be stressed that the allegations in the complaint plainly show that it is an action for damages arising from respondent's act of 'recklessly and negligently manufacturing adulterated food items intended to be sold for public consumption' (p. 25, *rollo*). It is a truism in legal procedure that what determines the nature of an action are the facts alleged in the complaint and not those averred as a defense in the defendant's answer (I Moran 126; *Calo v. Roldan*, 76 Phil. 445; *Alger Electric, Inc. v. CA*, 135 SCRA 340).

Secondly, despite the literal wording of Article 2176 of the Civil Code, the existence of contractual relations between the parties does not absolutely preclude an action by one against the other for quasi-delict arising from negligence in the performance of a contract.

In *Singson v. Court of Appeals* (23 SCRA 1117), the Supreme Court ruled:

> 'It has been repeatedly held: that the existence of a contract between the parties does not bar the commission of a tort by the one against the other and the consequent recovery of damages therefor x x x. Thus in *Air France vs. Carrascoso*, x x x (it was held that) although the relation between a passenger and a carrier is "contractual both in origin and nature the act that breaks the contract may also be a tort.'

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[8] *Rollo*, 13, 39.

[9] Annex "A" of Petition; *Rollo*, 36-43. Per Associate Justice Ricardo L. Pronove, Jr., concurred in by Associate Justices Nicolas P. Lapeña, Jr. and Consuelo Ynares-Santiago.

Significantly, in American jurisprudence, from which Our law on Sales was taken, the authorities are one in saying that the availability of an action for breach of warranty does not bar an action for torts in a sale of defective goods."[10]

Its motion for the reconsideration of the decision having been denied by the public respondent in its Resolution of 14 May 1993,[11] the petitioner took this recourse under Rule 45 of the Revised Rules of Court. It alleges in its petition that:

"I

THE HONORABLE COURT OF APPEALS COMMITTED A GRAVE AND REVERSIBLE ERROR IN RULING THAT ARTICLE 2176, THE GENERAL PROVISION ON QUASI-DELICTS, IS APPLICABLE IN THIS CASE WHEN THE ALLEGATIONS OF THE COMPLAINT CLEARLY SHOW THAT PRIVATE RESPONDENT'S CAUSE OF ACTION IS BASED ON BREACH OF A SELLER'S IMPLIED WARRANTIES UNDER OUR LAW ON SALES.

II

COROLLARILY, THE HONORABLE COURT OF APPEALS COMMITTED A GRAVE AND REVERSIBLE ERROR IN OVERRULING PETITIONER'S ARGUMENT THAT PRIVATE RESPONDENT'S CAUSE OF ACTION HAD PRESCRIBED UNDER ARTICLE 1571 OF THE CIVIL CODE."[12]

The petitioner insists that a cursory reading of the complaint will reveal that the primary legal basis for private respondent's cause of action is not Article 2176 of the Civil Code on quasi-delict — for the complaint does not ascribe any tortious or wrongful conduct on its part — but Articles 1561 and 1562 thereof on breach of a seller's implied warranties under the

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[10] *Rollo*, 40-41. Citing 72 CJS Supp. Products Liability @ 9; *Guarino vs. Mine Safety Appliance Co.*, 44 ALR 3d 470, 255 N.E.2d 173; *Goldberg vs. Kollsman Instrument Corp.*, 12 N.Y.2d 432, 436, 191 N.E.2d 82-83; *Greco vs. S.S. Kresge Co.*, 12 N.E.2d 557, 561.

[11] Annex "B" of Petition; *Rollo*, 45.

[12] *Rollo*, 14-15.

law on sales. It contends that the existence of a contractual relation between the parties (arising from the contract of sale) bars the application of the law on quasi-delicts and that since private respondent's cause of action arose from the breach of implied warranties, the complaint should have been filed within six months from delivery of the soft drinks pursuant to Article 1571 of the Civil Code.

In her Comment the private respondent argues that in case of breach of the seller's implied warranties, the vendee may, under Article 1567 of the Civil Code, elect between withdrawing from the contract or demanding a proportionate reduction of the price, with damages in either case. She asserts that Civil Case No. D-9629 is neither an action for rescission nor for proportionate reduction of the price, but for damages arising from a quasi-delict and that the public respondent was correct in ruling that the existence of a contract did not preclude the action for quasi-delict. As to the issue of prescription, the private respondent insists that since her cause of action is based on a quasi-delict, the prescriptive period therefor is four (4) years in accordance with Article 1144 of the Civil Code and thus the filing of the complaint was well within the said period.

We find no merit in the petition. The public respondent's conclusion that the cause of action in Civil Case No. D-9629 is founded on quasi-delict and that, therefore, pursuant to Article 1146 of the Civil Code, it prescribes in four (4) years is supported by the allegations in the complaint, more particularly paragraph 12 thereof, which makes reference to the reckless and negligent manufacture of "adulterated food items intended to be sold for public consumption."

The vendee's remedies against a vendor with respect to the warranties against hidden defects of or encumbrances upon the thing sold are not limited to those prescribed in Article 1567 of the Civil Code which provides:

"ART. 1567. In the case of Articles 1561, 1562, 1564, 1565 and 1566, the vendee may elect between withdrawing from the contract

and demanding a proportionate reduction of the price, with damages in either case."[13]

The vendee may also ask for the annulment of the contract upon proof of error or fraud, in which case the ordinary rule on obligations shall be applicable.[14] Under the law on obligations, responsibility arising from fraud is demandable in all obligations and any waiver of an action for future fraud is void. Responsibility arising from negligence is also demandable in any obligation, but such liability may be regulated by the courts, according to the circumstances.[15] Those guilty of fraud, negligence, or delay in the performance of their obligations and those who in any manner contravene the tenor thereof are liable for damages.[16]

The vendor could likewise be liable for quasi-delict under Article 2176 of the Civil Code, and an action based thereon may be brought by the vendee. While it may be true that the pre-existing contract between the parties may, as a general rule, bar the applicability of the law on quasi-delict, the liability may itself be deemed to arise from quasi-delict, *i.e.*, the act which breaks the contract may also be a quasi-delict. Thus, in *Singson vs. Bank of the Philippine Islands*,[17] this Court stated:

"We have repeatedly held, however, that the existence of a contract between the parties does not bar the commission of a tort by the one against the other and the consequent recovery of damages therefor.[18] Indeed, this view has been, in effect, reiterated in a comparatively

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[13] The first remedy is known as the redhibitory action and the second, the *accion quanti minoris*. (TOLENTINO, A.M., *Commentaries and Jurisprudence on the Civil Code of the Philippines*, Vol. V, 1992 ed., 123).

[14] TOLENTINO, *supra*.

[15] Articles 1171 and 1172, Civil Code.

[16] Article 1170, Civil Code.

[17] 23 SCRA 1117 [1968]. See also *Araneta vs. De Joya*, 57 SCRA 59 [1974].

[18] Citing *Cangco vs. Manila Railroad*, 38 Phil. 768; *Yamada vs. Manila Railroad*, 33 Phil. 8; *Vasquez vs. Borja*, 74 Phil. 560.

recent case. Thus, in *Air France vs. Carrascoso*,[19] involving an airplane passenger who, despite his first-class ticket, had been illegally ousted from his first-class accommodation and compelled to take a seat in the tourist compartment, was held entitled to recover damages from the air-carrier, upon the ground of tort on the latter's part, for, although the relation between the passenger and a carrier is 'contractual both in origin and nature x x x the act that breaks the contract may also be a tort.'"

Otherwise put, liability for quasi-delict may still exist despite the presence of contractual relations.[20]

Under American law, the liabilities of the manufacturer or seller of injury-causing products may be based on negligence,[21] breach of warranty,[22] tort,[23] or other grounds such as fraud, deceit, or misrepresentation.[24] Quasi-delict, as defined in Article 2176 of the Civil Code, (which is known in Spanish legal treatises as *culpa aquiliana, culpa extra-contractual* or *cuasi-delitos*)[25] is homologous but not identical to tort under the common law,[26] which includes not only negligence, but also intentional criminal acts, such as assault and battery, false imprisonment, and deceit.[27]

It must be made clear that our affirmance of the decision of the public respondent should by no means be understood as

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[19] 18 SCRA 155 [1966].

[20] PARAS, E.L., *Civil Code of the Philippines,* vol. V, 1990 ed., 995-996, citing *Air France vs. Carrascoso and Singson vs. Bank of the Phil. Islands, supra.*

[21] 63 AM JUR 2d Products Liability § 25.

[22] *Id.*, § 91.

[23] *Id.*, § 123.

[24] *Id.*, § 153.

[25] Report of the Code Commission on the Proposed Civil Code of the Philippines, 161.

[26] *Vasquez vs. De Borja,* 74 Phil. 560 [1944].

[27] Report of the Code Commission on the Proposed Civil Code of the Philippines, 162.

suggesting that the private respondent's claims for moral damages have sufficient factual and legal basis.

IN VIEW OF ALL THE FOREGOING, the instant petition is hereby *DENIED* for lack of merit, with costs against the petitioner.

SO ORDERED.

Cruz, Bellosillo, and *Quiason, JJ.*, concur.

Griño-Aquino, J., on leave.

SECOND DIVISION

[A.M. No. P-93-825. October 20, 1993]

JUDGE ABRAHAM PRINCIPE, *petitioner, vs.* **ROMEO R. FLORENDO, DEPUTY SHERIFF,** *respondent.*

SYLLABUS

POLITICAL LAW; ADMINISTRATIVE LAW; SHERIFFS; DELAY IN THE SERVICE OF SUMMONS; DESERVES SANCTION. — The facts show neglect in the performance of duty on the part of respondent sheriff. He failed to serve the summons in Sp. Proceedings Case No. 4234 for more than two (2) years. His failure cannot be justified by the excuse that on January 28, 1991 when the summons was assigned to him, he had to accompany his brother to the Makati Medical Center for a brain scan and had to request that it be served by his fellow sheriff, Crisanto Flora. Respondent sheriff then utterly neglected for two (2) years to inquire from sheriff Flora whether said summons had been served. Certainly, two (2) years is too long a time for respondent sheriff to claim confusion due to the sickness of his brother to justify his neglect. The omission of respondent sheriff delayed the disposition of Sp. Proc. Case

No. 4234 to the prejudice of the right of the parties therein to speedy justice.

R E S O L U T I O N

PUNO, *J.*:

Respondent Romeo R. Florendo, Deputy Sheriff, RTC, Baguio City, is charged with delay in the service of summons.

The complaint was investigated by the Honorable Clarence J. Villanueva, Executive Judge, RTC, 1st Judicial Region, Baguio City. In his Report and Recommendation dated September 24, 1993, Judge Villanueva made the following factual findings, *viz*:

"It appears that on January 16, 1991, summons was issued in Special Proceedings Case No. 4234 entitled "*Jesus Adarme and Jed Arisdan Adarme vs. Dr. Edwin Adarme*" for Support, pending at Regional Trial Court, Branch 2, Tuguegarao, Cagayan, presided by complainant Judge Abraham Y. Principe; said summons was sent to the City Sheriff of Baguio City for service, it appearing that the defendant Dr. Edwin Adarme was a resident of the Baguio General Hospital at Baguio City. The said summons was assigned to Deputy Sheriff Romeo R. Florendo (the herein respondent) who actually signed for it in the log book of the City Sheriff on January 28, 1991. On March 25, 1993, Judge Principe issued an Order requiring the City Sheriff of Baguio City to explain the unwarranted and unreasonable delay in making the return of the summons in Special Proceedings Case No. 4234. In his Explanation dated April 6, 1993, respondent Deputy Sheriff admitted having received the summons but that he handed the said summons to his fellow sheriff Crisanto T. Flora, also of the Office of the Clerk of Court, RTC, Baguio City for service as he had to accompany his brother to the Makati Medical Center for a brain scan. From February 28, 1991 until the time when he received the Court Order dated March 25, 1993, respondent never inquired from his fellow sheriff whether the summons was ever served, so that it was only after a period of more than two (2) years that he inquired from his fellow sheriff about the summons in question. Deputy Sheriff Crisanto T. Flora whom respondent Florendo pointed as the fellow sheriff to whom he handed the summons for service was then directed to appear before the investigation body for questioning. In his testimony, Deputy Sheriff Flora averred that

he can no longer remember if the summons in question was ever served by him, and since there was no follow up or complaint for a long time, he presumed that said summons was served. However, when asked whether he remembers having been requested by respondent Florendo to serve the summons issued in Special Proceedings Case No. 4234, Deputy Sheriff Flora could not give a categorical answer although he said that in the past, respondent Florendo have (sic) asked him to serve court processes."

These findings are supported by evidence and We adopt the same.

The facts show neglect in the performance of duty on the part of respondent sheriff. He failed to serve the summons in Sp. Proceedings Case No. 4234 for more than two (2) years. His failure cannot be justified by the excuse that on January 28, 1991 when the summons was assigned to him, he had to accompany his brother to the Makati Medical Center for a brain scan and had to request that it be served by his fellow sheriff, Crisanto Flora. Respondent sheriff then utterly neglected for two (2) years to inquire from sheriff Flora whether said summons had been served. Certainly, two (2) years is too long a time for respondent sheriff to claim confusion due to the sickness of his brother to justify his neglect. The omission of respondent sheriff delayed the disposition of Sp. Proc. Case No. 4234 to the prejudice of the right of the parties therein to speedy justice. Respondent sheriff cannot escape liability which, however, should be mitigated considering that the offense appears to be his first.

IN VIEW WHEREOF, the respondent deputy sheriff Romeo R. Florendo of the Office of the Clerk of Court, RTC, Baguio City is suspended from office for fifteen (15) days without pay, effective upon receipt of this Resolution.

SO ORDERED.

Narvasa, C.J. (Chairman), Regalado, and *Nocon, JJ.*, concur.

Padilla, J., on leave.

THIRD DIVISION

[G.R. No. 89667. October 20, 1993]

JOSEPHINE B. BELCODERO, *petitioner, vs.* **THE HONORABLE COURT OF APPEALS, *ET AL.*,** *respondents*.

SYLLABUS

1. CIVIL LAW; HUSBAND AND WIFE; CONJUGAL PROPERTY; PROPERTY ACQUIRED BY EITHER SPOUSE DURING THE MARRIAGE IS CONJUGAL ALTHOUGH REGISTERED IN THE NAME OF ANOTHER PERSON.— The property remained as belonging to the conjugal partnership of Alayo and his legitimate wife Juliana. Under both the new Civil Code (Article 160) and the old Civil Code (Article 1407), "*all property* of the marriage is presumed to belong to the conjugal partnership, unless it be proved that it pertains exclusively to the husband or to the wife." This presumption has not been convincingly rebutted. It cannot be seriously contended that, simply because the property was titled in the name of Josefa at Alayo's request, she should thereby be deemed to be its owner. The property unquestionably was acquired by Alayo. Alayo's letter, dated 06 October 1959, to Magdalena Estate, Inc., merely authorized the latter to have the title to the property transferred to her name. The appellate court below, given the above circumstances, certainly cannot be said to have been without valid basis in concluding that the property really belonged to the lawful conjugal partnership between Alayo and his true spouse Juliana.

2. ID.; TRUSTS; A CONSTRUCTIVE TRUST WAS CREATED WHEN THE PROPERTY OF A SPOUSE WAS ADJUDICATED TO A COMMON LAW SPOUSE AFTER THE FORMER'S DEMISE.— It was at the time that the adjudication of ownership was made following Alayo's demise (not when Alayo merely allowed the property to be titled in Josefa's name which clearly was not intended to be adversarial to Alayo's interest), that a constructive trust was deemed to have been created by operation of law under the provisions of Article 1456 of the Civil Code.

3. ID.; ID.; ID.; THE PRESCRIPTIVE PERIOD FOR AN ACTION FOR RECONVEYANCE OF THE PROPERTY BY THE BENEFICIARIES IS 10 YEARS.— The applicable prescriptive period for an action seeking a reconveyance of the property by the beneficiaries thereof is ten (10) years (Article 1144, Civil Code). Ordinarily, that period starts from the establishment of the implied trust being the day when the cause of action would be considered to have accrued (Article 1150, Civil Code). Unfortunately for Josefa and Josephine, however, the property involved in this case is a realty titled under the Torrens System. The prescriptive period is thus to be counted from the time the transaction affecting the property is registered with the corresponding issuance of a new certificate of title. Between the time Transfer Certificate of Title No. 198840 was issued on 06 June 1974, and the filing of the action for the reconveyance of the property with the court *a quo* on 30 October 1980, barely a period of six (6) years and four (4) months had elapsed. The case has accordingly been initiated seasonably.

APPEARANCES OF COUNSEL

Jaime I. Infante and Joanes G. Caacbay for petitioner.

Lamberto C. Nanquil & Associates Law Office for private respondents.

D E C I S I O N

VITUG, *J.*:

This case involves the question of ownership over a piece of land acquired by a husband *while* living with a paramour and *after* having deserted his lawful wife and children. The property had been bought by the husband on installment basis prior to the effectivity of the Civil Code of 1950 but the final deed, as well as the questioned conveyance by him to his common law spouse, has ensued during the latter Code's regime. Now, of course, we have to likewise take note of the new Family Code which took effect on 03 August 1988.

Let us begin by paraphrasing the factual findings of the appellate court below.

The husband, Alayo D. Bosing, married Juliana Oday on 27 July 1927, with whom he had three children, namely, Flora, Teresita, and Gaido. In 1946, he left the conjugal home, and he forthwith started to live instead with Josefa Rivera with whom he later begot one child, named Josephine Bosing, now Josephine Belcodero.

On 23 August 1949, Alayo purchased a parcel of land on installment basis from the Magdalena Estate, Inc. In the deed, he indicated his civil status as, "married to Josefa R. Bosing," the common-law wife. In a letter, dated 06 October 1959, which he addressed to Magdalena Estate, Inc., he authorized the latter to transfer the lot in the name of his "wife Josefina R. Bosing." The final deed of sale was executed by Magdalena Estate, Inc., on 24 October 1959. A few days later, or on 09 November 1959, Transfer Certificate of Title No. 48790 was issued in the name of "Josefa R. Bosing, x x x married to Alayo Bosing, x x x."

On 6 June 1958, Alayo married Josefa even while his prior marriage with Juliana was still subsisting. Alayo died on 11 March 1967. About three years later, or on 17 September 1970, Josefa and Josephine executed a document of extrajudicial partition and sale of the lot in question, which was there described as "conjugal property" of Josefa and deceased Alayo. In this deed, Josefa's supposed one-half (½) interest as surviving spouse of Alayo, as well as her one-fourth (¼) interest as heir, was conveyed to Josephine for a ₱10,000.00 consideration, thereby completing for herself, along with her own one-fourth (¼) interest as the surviving child of Alayo, a full "ownership" of the property. The notice of extrajudicial partition was published on 04, 05 and 06 November 1970 in the Evening Post; the inheritance and estate taxes were paid; and a new Transfer Certificate of Title No. 198840 was issued on 06 June 1974 in the name of Josephine.

On 30 October 1980, Juliana (deceased Alayo's real widow) and her three legitimate children filed with the court *a quo* an action for reconveyance of the property. On the basis of the above facts, the trial court ruled in favor of the plaintiffs, and it ordered that —

"x x x Josephine Bosing execute a deed of reconveyance of the property in question to the legal heirs of the deceased Alayo D. Bosing, and that both defendants pay, jointly and severally, actual damages by way of attorney's fees and expenses in litigation, TEN THOUSAND (₱10,000.00) PESOS, and the sum of TEN THOUSAND (₱10,000.00) PESOS as moral damages, plus TEN THOUSAND (₱10,000.00) PESOS exemplary damages to prevent future frauds."

The defendants went to the Court of Appeals which affirmed the trial court's order for reconveyance but reversed the decision on the award for damages, thus —

WHEREFORE, the judgment appealed from is hereby AFFIRMED insofar as defendant Josephine Bosing is ordered to execute a deed of reconveyance of the property granting the same to the legal heirs of the deceased Alayo D. Bosing, and REVERSED insofar as it awards actual, moral and exemplary damages.[1]

Hence, the instant petition for review[2] submitting that —

1. THE RESPONDENT COURT ERRED IN NOT HOLDING THAT THE ACTION FOR RECONVEYANCE HAD LONG PRESCRIBED.
2. THE RESPONDENT COURT ERRED IN FINDING THAT, THE ACTION FOR RECONVEYANCE IS BASED UPON AN IMPLIED OR CONSTRUCTIVE TRUST.
3. THE RESPONDENT COURT ERRED IN NOT HOLDING THAT, THE PROPERTY IN QUESTION BELONGS EXCLUSIVELY TO THE PETITIONERS.
4. THE RESPONDENT COURT ERRED IN NOT GRANTING PETITIONERS' MOTION FOR NEW TRIAL BASED ON NEWLY DISCOVERED EVIDENCE, AND LIKEWISE ERRED IN HOLDING THAT EVEN IF A NEW TRIAL IS GRANTED THE SAME WOULD NOT SERVE A USEFUL PURPOSE.

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[1] Penned by Justice Minerva Gonzaga-Reyes, concurred in by Justices Santiago Kapunan and Ricardo Francisco.

[2] Ably presented by Atty. Jaime Infante.

We rule for affirmance.

The first three issues are interrelated, and the same will thus be jointly discussed.

Whether the property in question was acquired by Alayo in 1949 when an agreement for its purchase on installment basis was entered into between him and Magdalena Estate, Inc., or in 1959 when a deed of sale was finally executed by Magdalena Estate, Inc., the legal results would be the same. The property remained as belonging to the conjugal partnership of Alayo and his legitimate wife Juliana. Under both the new Civil Code (Article 160) and the old Civil Code (Article 1407), "*all property* of the marriage is presumed to belong to the conjugal partnership, unless it be proved that it pertains exclusively to the husband or to the wife." This presumption has not been convincingly rebutted.

It cannot be seriously contended that, simply because the property was titled in the name of Josefa at Alayo's request, she should thereby be deemed to be its owner. The property unquestionably was acquired by Alayo. Alayo's letter, dated 06 October 1959, to Magdalena Estate, Inc., merely authorized the latter to have the title to the property transferred to her name. More importantly, she implicitly recognized Alayo's ownership when, three years after the death of Alayo, she and Josephine executed the deed of extrajudicial partition and sale in which she asserted a one-half (½) interest in the property in what may be described as her share in the "conjugal partnership" with Alayo, plus another one-fourth (¼) interest as the "surviving widow," the last one-fourth (¼) going to Josephine as the issue of the deceased. Observe that the above adjudication would have exactly conformed with a partition in intestacy had they been the sole and legitimate heirs of the decedent.

The appellate court below, given the above circumstances, certainly cannot be said to have been without valid basis in concluding that the property really belonged to the lawful conjugal partnership between Alayo and his true spouse Juliana.

As regards the property relations between common-law spouses. Article 144 of the Civil Code merely codified the law

established through judicial precedents under the old code (*Margaret Maxey vs. Court of Appeals*, G. R. No. L-45870, 11 May 1984). In both regimes, the co-ownership rule had more than once been repudiated when either or both spouses suffered from an impediment to marry (*Jeroniza vs. Jose*, 89 SCRA 306). The present provisions under Article 147 and Article 148 of the Family Code did not much deviate from the old rules; in any case, its provisions cannot apply to this case without interdicting prior vested rights (Article 256, Family Code).

It was at the time that the adjudication of ownership was made following Alayo's demise (not when Alayo merely allowed the property to be titled in Josefa's name which clearly was not intended to be adversarial to Alayo's interest), that a constructive trust was deemed to have been created by operation of law under the provisions of Article 1456 of the Civil Code.

"Article 1456. If property is acquired through mistake or fraud, the person obtaining it is, by force of law, considered a trustee of an implied trust for the benefit of the person from whom the property comes.

The applicable prescriptive period for an action seeking a reconveyance of the property by the beneficiaries thereof is ten (10) years (Article 1144, Civil Code). Ordinarily, that period starts from the establishment of the implied trust being the day when the cause of action would be considered to have accrued (Article 1150, Civil Code). Unfortunately for Josefa and Josephine, however, the property involved in this case is a realty titled under the Torrens System. The prescriptive period is thus to be counted from the time the transaction affecting the property is registered with the corresponding issuance of a new certificate of title.[3] Between the time Transfer Certificate of Title No. 198840 was issued on 06 June 1974, and the filing of the action for the reconveyance of the property with the court *a quo* on 30 October 1980, barely a period of six (6) years and four (4) months had elapsed. The case has accordingly been initiated seasonably.

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[3] See Articles 708-709, 711, Civil Code; *Amerol vs. Bagumbaran*, 154 SCRA 396.

The four-year prescriptive period, mentioned in passing by the petitioners, would have had some value and relevance had the private respondents or their predecessor in interest been parties to the extrajudicial partition and sale. In that event, the latter's action could only then be predicated on a vitiation of consent[4] where the applicable statutory limitation would be four years.[5]

The last issue raises the supposed error in the rejection of a new trial on the basis of newly discovered evidence. We concur with the resolution of the appellate court below (on appellants' [petitioners herein] motion for reconsideration thereat), thus —

> Appellants' prayer for a new trial based upon what they claim is newly discovered evidence deserves scant consideration.
>
> Appellant proposes to prove (1) that Josefa Bosing sold certain property for ₱8,000.00 in 1948 and was therefore in a financial position to make the payments to Magdalena Estate Inc. and (2) that appellee Juliana Bosing got married in 1961 to one Burayos Ballit, and thus, "forfeited" her right to the conjugal partnership.
>
> The first ground is not meritorious. It is not newly discovered evidence. As described in appellants' Motion the documents were "not discovered or considered as necessary evidence during the trial of the case below" by the former counsel; it is therefore more properly considered as forgotten evidence, which the appellant knew or should have known during the trial (*Tesoro vs. Court of Appeals*, 54 SCRA 296; *Republic vs. Vda. de Castelvi*, 58 SCRA 336). Moreover, assuming the sale is proven, it does not follow that the proceeds were used to pay the lot in question; the payments were made in installments, not in one lump sum.
>
> Neither is the second ground deserving of merit. Assuming that the marriage to Ballit in 1961 is duly proven, and that this provided a cause for legal separation and consequent disqualification of the guilty spouse to succeed to the husband's intestate estate under Article 1002 of the Civil Code, the fact remains that no action for

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[4] Article 1390, Civil Code.

[5] Article 1391, *Ibid.*

legal separation was brought by the husband during his lifetime and within the period provided by law. It is too late to raise the issue at this time.

Accordingly, assuming that the Motion for New Trial complies with the formal requisites for such a motion (See *Minister of Natural Resources vs. Heirs of Orval Hughes, et al.*, GR No. 62662, prom. November 12, 1987), a question We don't find necessary to decide, a new trial would not serve a useful purpose in altering the result of the questioned decision.

WHEREFORE, the decision appealed from in the instant petition for review on *certiorari* is *AFFIRMED*.

SO ORDERED.

Feliciano, Bidin, Romero, and *Melo, JJ.*, concur.

FIRST DIVISION

[G.R. No. 107852. October 20, 1993]

GREGORIO N. ARUELO, JR., *petitioner, vs.* **THE COURT OF APPEALS, PRESIDING JUDGE, REGIONAL TRIAL COURT OF BULACAN, BRANCH 17, MALOLOS, BULACAN, and DANILO F. GATCHALIAN,** *respondents.*

SYLLABUS

1. POLITICAL LAW; ELECTIONS; ELECTION PROTEST; PROCEEDINGS THEREIN, GOVERNED BY THE RULES OF COURT. — Petitioner filed the election protest (Civil Case No. 343-M-92) with the Regional Trial Court, whose proceedings are governed by the Revised Rules of Court. Section 1, Rule 13, Part III of the COMELEC Rules of Procedure is not applicable to proceedings before the regular courts. As

expressly mandated by Section 2, Rule 1, Part I of the COMELEC Rules of Procedure, the filing of motions to dismiss and bill of particulars, shall apply only to proceedings brought before the COMELEC. It must be noted that nowhere in Part VI of the COMELEC Rules of Procedure is it provided that motions to dismiss and bill of particulars are not allowed in election protests or *quo warranto* cases pending before the regular courts.

2. ID.; ID.; DISTINGUISHED FROM PRE-PROCLAMATION CONTROVERSY. — The instant case is different from a pre-proclamation controversy which the law expressly mandates to be resolved in a summary proceeding. Pre-proclamation controversies should be summarily decided, consistent with the legislators' desire that the canvass of the votes and the proclamation of the winning candidate be done with dispatch and without unnecessary delay. Questions as those involving the appreciation of the votes and the conduct of the balloting, which require more deliberate and necessarily longer consideration, are left for examination in the corresponding election protest. An election protest does not merely concern the personal interests of rival candidates for an office. Over and above the desire of the candidates to win, is the deep public interest to determine the true choice of the people. For this reason, it is a well-established principle that laws governing election protests must be liberally construed to the end that the popular will, expressed in the election of public officers, will not, by purely technical reasons, be defeated.

3. ID.; COMMISSION ON ELECTIONS; NO POWER TO PROHIBIT THE FILING OF CERTAIN PLEADINGS IN THE REGULAR COURTS. — Constitutionally speaking, the COMELEC can not adopt a rule prohibiting the filing of certain pleadings in the regular courts. The power to promulgate rules concerning pleadings, practice and procedure in all courts is vested on the Supreme Court.

4. REMEDIAL LAW; CIVIL PROCEDURE; BILL OF PARTICULARS; ANSWER IN CASE OF DENIAL THEREOF; WHEN TO FILE; RULE. — Private respondent received a copy of the order of the Regional Trial Court denying his motion for a bill of particulars on August 6, 1992. Under Section 1 (b), Rule 12 of the Revised Rules of Court, a party has at least five days to file his answer after receipt of the order denying his motion for a bill of particulars. Private

respondent, therefore, had until August 11, 1992 within which to file his answer. The Answer with Counter-Protest and Counterclaim filed by him on August 11, 1992 was filed timely.

APPEARANCES OF COUNSEL

Pimentel, Apostol, Layosa & Sibayan Law Office for petitioner.
Venustiano S. Roxas & Associates for private respondent.

D E C I S I O N

QUIASON, *J.*:

This is a petition for *certiorari* and prohibition under Rule 65 of the Revised Rules of Court, to set aside the Decision of the Court of Appeals dated November 24, 1992 in CA-G.R. SP No. 28621, which ruled that the answer and counter-protest of respondent Danilo F. Gatchalian was filed timely and ordered the Regional Trial Court, Branch 17, Malolos, Bulacan to continue with the proceedings in Civil Case No. 343-M-92, the protest case filed by petitioner Gregorio N. Aruelo, Jr.

Aruelo and Gatchalian were rival candidates in the May 11, 1992 elections for the office of Vice-Mayor of the Municipality of Balagtas, Province of Bulacan. Gatchalian won over Aruelo by a margin of four votes, such that on May 13, 1992, the Municipal Board of Canvassers proclaimed him as the duly elected Vice-Mayor of Balagtas, Bulacan.

On May 22, 1992, Aruelo filed with the Commission on Elections (COMELEC) a petition docketed as SPC No. 92-130, seeking to annul Gatchalian's proclamation on the ground of "fraudulent alteration and tampering" of votes in the tally sheets and the election returns.

On June 2, 1992, Aruelo filed with the Regional Trial Court, Branch 17, Malolos, Bulacan, a petition docketed as Civil Case No. 343-M-92 protesting the same election. Aruelo, however, informed the trial court of the pendency of the pre-proclamation case before the COMELEC.

On June 10, 1992, Gatchalian was served an Amended Summons from the trial court, giving him five days within which to answer the petition. Instead of submitting his answer, Gatchalian filed on June 15, 1992 a Motion to Dismiss claiming that: (a) the petition was filed out of time; (b) there was a pending protest case before the COMELEC; and (c) Aruelo failed to pay the prescribed filing fees and cash deposit on the petition.

Meanwhile in SPC Case No. 92-130, the COMELEC on June 16, 1992 denied Aruelo's petition for non-compliance with Section 20 of R.A. No. 7166, which requires the submission of the evidence and documents in support of the petition to annul Gatchalian's proclamation (*Rollo*, p. 42).

The trial court on the other hand, issued an order dated July 10, 1992, denying Gatchalian's Motion to Dismiss and ordering him to file his answer to the petition within five days from notice, otherwise, "a general denial shall be deemed to have been entered" (*Rollo*, p. 45). The trial court also directed Aruelo to pay the deficiency in his filing fees, which the latter complied with. Gatchalian filed a Motion for Reconsideration of the order but the trial court denied the same on August 3, 1992.

On August 6, 1992, Gatchalian filed before the Court of Appeals, a petition for *certiorari* docketed as CA-G.R. SP No. 28621, which alleged grave abuse of discretion on the part of the trial court in denying his Motion to Dismiss and his Motion for Reconsideration.

Earlier, that is on July 23, 1992 Gatchalian filed before the trial court a Motion for Bill of Particulars, which was opposed by Aruelo. The trial court denied Gatchalian's motion in an order dated August 5, 1992, a copy of which was received by him on August 6, 1992.

On August 11, 1992, Gatchalian submitted before the trial court his Answer with Counter-Protest and Counterclaim, alleging *inter alia*, that Aruelo was the one who committed the election fraud and that were it not for the said fraud, Gatchalian's margin over Aruelo would have been greater. Gatchalian prayed for the dismissal of the petition, the confirmation of his election

and the award of damages. On the day the answer was filed, the trial court issued an order admitting it, and without Gatchalian's specific prayer, directed the revision of ballots in the precincts enumerated in Gatchalian's Counter-Protest and Construction. For this purpose, the trial court ordered the delivery of the contested ballot boxes to the Branch Clerk of Court.

On August 14, 1992, Aruelo filed with the trial court a Motion to Reconsider As Well As To Set Aside "Answer with Counter-Protest and Counterclaim" Filed Out of Time by Protestee. The trial court, on September 2, 1992, denied Aruelo's motion and forthwith scheduled the constitution of the revision committee.

On September 28, 1992, Aruelo prayed before the Court of Appeals for the issuance of a temporary restraining order or a writ of preliminary injunction to restrain the trial court from implementing the Order of August 11, 1992, regarding the revision of ballots. The Court of Appeals belatedly issued a temporary restraining order on November 9, 1992, after actual revision of the contested ballots ended on October 28, 1992.

Meanwhile, Gatchalian filed with the Court of Appeals on September 21, 1992 another petition for *certiorari* (CA-G.R. SP No. 28977), again alleging grave abuse of discretion on the part of the trial court in issuing the Order dated August 5, 1992, which denied his Motion for Bill of Particulars. The Court of Appeals, in its Resolution dated September 28, 1992, dismissed this petition for lack of merit.

On November 24, 1992, the Court of Appeals rendered a decision in CA-G.R. SP No. 28621, denying Gatchalian's petition, but declared, at the same time, that Gatchalian's Answer With Counter-Protest and Counterclaim was timely filed. The appellate court also lifted the temporary restraining order and ordered the trial court to "proceed with dispatch in the proceedings below" (*Rollo*, p. 212).

Hence, this petition.

Aruelo claims that in election contests, the COMELEC Rules of Procedure gives the respondent therein only five days from receipt of summons within which to file his answer to the petition

(Part VI, Rule 35, Sec. 7) and that this five-day period had lapsed when Gatchalian filed his answer. According to him, the filing of motions to dismiss and motions for bill of particulars is prohibited by Section 1, Rule 13, Part III of the COMELEC Rules of Procedure; hence, the filing of said pleadings did not suspend the running of the five-day period, or give Gatchalian a new five-day period to file his answer.

We do not agree.

Petitioner filed the election protest (Civil Case No. 343-M-92) with the Regional Trial Court, whose proceedings are governed by the Revised Rules of Court.

Section 1, Rule 13, Part III of the COMELEC Rules of Procedure is not applicable to proceedings before the regular courts. As expressly mandated by Section 2, Rule 1, Part I of the COMELEC Rules of Procedure, the filing of motions to dismiss and bill of particulars, shall apply only to proceedings brought before the COMELEC. Section 2, Rule 1, Part I provides:

"SEC. 2. Applicability. — These rules, except Part VI, shall apply to all actions and proceedings brought before the Commission. Part VI shall apply to election contests and *quo warranto* cases cognizable by courts of general or limited jurisdiction."

It must be noted that nowhere in Part VI of the COMELEC Rules of Procedure is it provided that motions to dismiss and bill of particulars are not allowed in election protests or *quo warranto* cases pending before the regular courts.

Constitutionally speaking, the COMELEC can not adopt a rule prohibiting the filing of certain pleadings in the regular courts. The power to promulgate rules concerning pleadings, practice and procedure in all courts is vested on the Supreme Court (Constitution, Art. VIII, Sec. 5 [5]).

Private respondent received a copy of the order of the Regional Trial Court denying his motion for a bill of particulars on August 6, 1992. Under Section 1 (b), Rule 12 of the Revised Rules of Court, a party has at least five days to file his answer after receipt of the order denying his motion for a bill of particulars.

Private respondent, therefore, had until August 11, 1992 within which to file his answer. The Answer with Counter-Protest and Counterclaim filed by him on August 11, 1992 was filed timely.

The instant case is different from a pre-proclamation controversy which the law expressly mandates to be resolved in a summary proceeding (B.P. Blg. 881, Art. XX, Sec. 246; COMELEC Rules of Procedure, Part V, Rule 27, Sec. 2; *Dipatuan v. Commission on Elections*, 185 SCRA 86 [1990]). Pre-proclamation controversies should be summarily decided, consistent with the legislators' desire that the canvass of the votes and the proclamation of the winning candidate be done with dispatch and without unnecessary delay. Questions as those involving the appreciation of the votes and the conduct of the balloting, which require more deliberate and necessarily longer consideration, are left for examination in the corresponding election protest (*Abella v. Larrazabal*, 180 SCRA 509 [1989]; *Alonto v. Commission on Elections*, 22 SCRA 878 [1968]).

An election protest does not merely concern the personal interests of rival candidates for an office. Over and above the desire of the candidates to win, is the deep public interest to determine the true choice of the people. For this reason, it is a well-established principle that laws governing election protests must be liberally construed to the end that the popular will, expressed in the election of public officers, will not, by purely technical reasons, be defeated (*Unda v. Commission on Elections*, 190 SCRA 827 [1990]; *De Leon v. Guadiz, Jr.*, 104 SCRA 591 [1981]; *Macasundig v. Macalangan*, 13 SCRA 577 [1965]; *Corocoro v. Bascara*, 9 SCRA 519 [1963]).

We find no grave abuse of discretion on the part of the Court of Appeals.

WHEREFORE, the petition is hereby *DISMISSED*.

SO ORDERED.

Cruz (Chairman) and *Bellosillo, JJ.*, concur.

Davide, Jr., J., in the result.

Griño-Aquino, J., on leave.

FIRST DIVISION

[G.R. Nos. L-31776-78. October 21, 1993]

THE COMMISSIONER OF CUSTOMS, *petitioner, vs.* **MANILA STAR FERRY, INC., UNITED NAVIGATION & TRANSPORT CORPORATION, CEABA SHIPPING AGENCY, INC., and THE COURT OF TAX APPEALS,** *respondents*.

SYLLABUS

1. **TAXATION; TARIFF AND CUSTOMS CODE; FORFEITURE OF VESSEL ENGAGED IN SMUGGLING; CONDITIONS FOR THE IMPOSITION THEREOF. —** The penalty of forfeiture is imposed on any vessel, engaged in smuggling if the conditions enumerated in Section 2530 of the Tariff and Customs Code (a) are compresent. These conditions are: (1) The vessel is "used unlawfully in the importation or exportation of articles into or from" the Philippines; (2) The articles are imported or exported into or from "any Philippine port or place, except a port of entry;" or (3) If the vessel has a capacity of less than 30 tons and is "used in the importation of articles into any Philippine port or place other than a port of the Sulu Sea, where importation in such vessel may be authorized by the Commissioner, with the approval of the department head."

2. **ID.; ID.; ID.; ID.; SATISFIED IN CASE AT BAR. —** There is no question that the vessel S/S Argo was apprehended while unloading goods of foreign origin onto the barge UN-L-106 and the tugboat Orestes, without the necessary papers showing that the goods were entered lawfully through a port of entry and that taxes and duties on said goods had been paid. The claim that the S/S Argo made an emergency call at the Port of Manila for replacement of crew members and had to stop at the Explosives Anchorage Area because it was carrying nitric acid, a dangerous cargo, cannot be upheld much less given credence by this Court. The facts found by the Court of Tax Appeals are in consonance with the findings of the Collector of Customs, and the Commissioner of Customs. Absent a showing of any irregularity or arbitrariness, the findings of fact of quasi-judicial and administrative bodies are entitled to great

weight and are conclusive and binding on this Court. Moreover, the Collector of Customs in S.I. No. 10009-C, Manila, ordered on July 28, 1966 the forfeiture of the subject cargo after finding that they were, in truth and in fact, smuggled article. Respondent Ceaba did not appeal from said order and the same has become final.

3. **ID.; ID.; ID.; ID.; "PORT OF ENTRY" AS AN EXCEPTION; CONSTRUED. —** Section 2530(a) unmistakable terms provides that a vessel engaged in smuggling "in a port of entry" cannot be forfeited. This is the clear and plain meaning of the law. It is not within the province of the Court to inquire into the wisdom of the law, for indeed, we are bound by the words of the statute. Neither can we put words in the mouths of the lawmakers. A *verba legis non est recedendum*. It must be noted that the Revised Administrative Code of 1917 from which the Tariff and Customs Code is based, contained in Section 1363(a) thereof almost exactly the same provision in Section 2530(a) of the Tariff and Customs Code, including the phrase "except a port of entry." If the lawmakers intended the term "port of entry" to mean "port of destination," they could have expressed facilely such intention when they adopted the Tariff and Customs Code in 1957. Instead of amending the law, Congress reenacted verbatim the provision of Section 1363(a) of the Revised Administrative Code of 1917. Congress, in the very same Article 2530 of the Tariff and Customs Code, used the term "port of destination" in subsections (c) and (d) thereof. This is a clear indication that Congress is aware of the distinction between the two wordings.

4. **ID.; ID.; ID.; ID.; ID.; FAILURE TO SUPPLY REQUISITE MANIFEST; SUBJECT TO FINE. —** Although the vessel cannot be forfeited, it is subject to a fine of not more than ₱10,000.00 for failure to supply the requisite manifest for the unloaded cargo under Section 2521 of Code.

5. **ID.; ID.; ID.; "VESSEL"; COVERAGE. —** The barge-lighter UN-L-106 and the tugboat Orestes, on the other hand, are subject to forfeiture under paragraph (c) of Section 2530 of the Tariff and Customs Code. The barge-lighter and tugboat fall under the term "vessel" which includes every sort of boat, craft or other artificial contrivance used, or capable of being used, as a means of transportation on water prescribes the

forfeiture of any vessel or aircraft into which shall be transferred cargo unladen contrary to law before the arrival of the vessel or aircraft at her port of destination. Manila was not the port of destination, much less a port of call of the S/S Argo, the importing vessel. The S/S Argo left Hongkong and was bound for Jesselton, North Borneo, Djakarta and Surabaja, Indonesia; and yet it stopped at the Port of Manila to unload the smuggled goods into the UN-L-106 and the Orestes.

6. ID.; ID.; ID.; PROCEEDINGS THEREIN ARE PROCEEDINGS *IN REM* AND ARE DIRECTED AGAINST THE *RES*. — Forfeiture proceedings are proceedings *in rem* and are directed against the *res*. It is no defense that the owner of the vessel sought to be forfeited had no actual knowledge that his property was used illegally. The absence or lack of actual knowledge of such use is a defense personal to the owner himself which cannot in any way absolve the vessel from the liability of forfeiture.

APPEARANCES OF COUNSEL

The Solicitor General for petitioner.
Tañada, Vivo & Tan for private respondents.
Valentino G. Castro & Associates for CEABA.

D E C I S I O N

QUIASON, *J.*:

This is a petition for review under Rule 44 of the Revised Rules of Court filed by the Commissioner of Customs to set aside the consolidated Decision dated September 30, 1969 of the Court of Tax Appeals in C.T.A. Cases Nos. 1836, 1837 and 1839, modifying his decision by ordering only the payment of a fine, in lieu of the forfeiture of private respondents' vessels used in the smuggling of foreign-made cigarettes and other goods.

Private respondents Manila Star Ferry, Inc. and the United Navigation & Transport Corporation are domestic corporations engaged in the lighterage business and are the owners and operators, respectively, of the tugboat Orestes and the barge-

lighter UN-L-106. Private respondent Ceaba Shipping Agency, Inc. (Ceaba) is the local shipping agent of the Chiat Lee Navigation Trading Co. of Hongkong, the registered owner and operator of the S/S Argo, an ocean-going vessel.

On June 12, 1966, the S/S Argo, the Orestes and the UN-L-106, as well as two wooden *bancas* of unknown ownership, were apprehended for smuggling by a patrol boat of the Philippine Navy along the Explosives Anchorage Area of Manila Bay. The patrol boat caught the crew of the S/S Argo in the act of unloading foreign-made goods onto the UN-L-106, which was towed by the Orestes and escorted by the two wooden *bancas*. The goods consisted of 330 cases of foreign-made cigarettes, assorted ladies' wear, clothing material and plastic bags, all of which were not manifested and declared by the vessel for discharge in Manila. No proper notice of arrival of S/S Argo was given to the local customs authorities.

Thereafter, seizure and forfeiture proceedings were separately instituted before the Collector of Customs for the Port of Manila against the S/S Argo (Seizure Identification Case No. 10009, Manila) and its cargo (S.I. No. 10009-C, Manila), the Orestes (S.I. No. 10009-A, Manila), the UN-L-106 (S.I. No. 10009-B, Manila) and the two *bancas* (S.I. No. 10009-D, Manila), charging them with violations of Section 2530 (a), (b) and (c) of the Tariff and Customs Code. Criminal charges were likewise filed against the officers and crew of said vessels and watercraft.

In the seizure and forfeiture proceedings, the Collector of Customs rendered a consolidated decision dated December 27, 1966, declaring the forfeiture of said vessels and watercraft in favor of the Philippine government by virtue of Section 2530 (a) and (b) of the Tariff and Customs Code.

All respondents therein, except the owner of the two wooden *bancas*, separately appealed the consolidated decision of the Collector of Customs for the Port of Manila to the Commissioner of Customs. In his Decision dated February 1, 1967, the Acting Commissioner of Customs found the Collector's decision to be in order and affirmed the same accordingly.

The same respondents separately elevated the matter to the Court of Tax Appeals (C.T.A. Cases Nos. 1836, 1837 and 1839), which in a consolidated decision dated September 30, 1989, substantially modified the decision of the Commissioner of Customs, stating thus:

"IN VIEW OF THE FOREGOING, the Manila Star Ferry, Inc., petitioner in C.T.A. Case No. 1836, and the United Navigation & Transport Corporation, petitioner in C.T.A. Case No. 1837, are each hereby ordered to pay a fine of five thousand pesos (₱5,000.00) and Ceaba Shipping Agency, Inc., petitioner in C.T.A. Case No. 1839, a fine of ten thousand pesos (₱10,000.00), within thirty days from the date this decision becomes final" (*Rollo*, p. 100).

It is this decision of the Court of Tax Appeals that is being questioned by the Commissioner of Customs before this Court.

On February 7, 1978, petitioner filed a Motion to Allow Sale of the Vessel (S/S Argo), informing this Court that the said vessel was deteriorating and depreciating in value, and was congesting the Cavite Naval Base where it was berthed. Petitioner prayed that it be allowed to sell the S/S Argo at the best possible price. The Court granted petitioner's motion.

An Urgent Motion for Modification was filed by respondent Ceaba, praying that it, instead of petitioner, be allowed to sell the S/S Argo through a negotiated sale and not a public sale. In a resolution dated May 12, 1978, this Court granted respondent Ceaba's motion, ordering it, however, to first pay the fine of ₱10,000.00 stated in the decision of the Commissioner of Customs and then "deposit the proceeds of the sale with a reputable commercial bank in an interest-bearing account in trust for whosoever will prevail in the cases at bar" (*Rollo*, p. 317). A manager's check in the amount of ₱10,000.00 was made payable to the Commissioner of Customs and was delivered by respondent Ceaba to the Cashier of the Supreme Court. In the Resolution of July 9, 1978, this payment was accepted, subject to the Court's decision in the case (*Rollo*, p. 327). The S/S Argo was sold, with this Court's approval, for ₱125,000.00 to one Severino Caperlac. The proceeds were subjected to a charging lien of

respondent Ceaba's attorneys in the amount of ₱315,000.00 (*Rollo*, p. 402).

The petition for review posits the theory that the subject vessels and watercraft were engaged in smuggling, and that the S/S Argo should be forfeited under Section 2530 (a), while the barge UN-L-106 and tugboat Orestes should be forfeited under Section 2530(c) of the Tariff and Customs Code.

Section 2530(a) and (c) of said law reads as follows:

"SECTION 2530. Property Subject to Forfeiture under Tariff and Customs Laws. — Any vessel or aircraft, cargo, articles and other objects shall, under the following conditions, be subject to forfeiture:

(a) Any vessel or aircraft, including cargo, which shall be used unlawfully in the importation or exportation of articles into or from any Philippine port or place except a port of entry; and any vessel which, being of less than thirty tons capacity shall be used in the importation of articles into any Philippine port or place except into a port of the Sulu sea where importation in such vessel may be authorized by the Commissioner, with the approval of the department head.

xxx xxx xxx

(c) Any vessel or aircraft into which shall be transferred cargo unladen contrary to law prior to the arrival of the importing vessel or aircraft at her port of destination."

The penalty of forfeiture is imposed on any vessel, engaged in smuggling if the conditions enumerated in Section 2530 (a) are compresent.

These conditions are:

(1) The vessel is "used unlawfully in the importation or exportation of articles into or from" the Philippines;

(2) The articles are imported or exported into or from "any Philippine port or place, except a port of entry;" or

(3) If the vessel has a capacity of less than 30 tons and is "used in the importation of articles into any Philippine port or place other than a port of the Sulu Sea, where importation in

such vessel may be authorized by the Commissioner, with the approval of the department head."

There is no question that the vessel S/S Argo was apprehended while unloading goods of foreign origin onto the barge UN-L-106 and the tugboat Orestes, without the necessary papers showing that the goods were entered lawfully through a port of entry and that taxes and duties on said goods had been paid. The claim that the S/S Argo made an emergency call at the Port of Manila for replacement of crew members and had to stop at the Explosives Anchorage Area because it was carrying nitric acid, a dangerous cargo, cannot be upheld much less given credence by this Court. The facts found by the Court of Tax Appeals are in consonance with the findings of the Collector of Customs, and the Commissioner of Customs. Absent a showing of any irregularity or arbitrariness, the findings of fact of quasi-judicial and administrative bodies are entitled to great weight and are conclusive and binding on this Court. (*Feeder International Line, Pte., Ltd v. Court of Appeals*, 197 SCRA 842 [1991]; *Jaculina v. National Police Commission*, 200 SCRA 489 [1991]). Moreover, the Collector of Customs in S.I. No. 10009-C, Manila, ordered on July 28, 1966 the forfeiture of the subject cargo after finding that they were, in truth and in fact, smuggled articles (*Rollo*, p. 7). Respondent Ceaba did not appeal from said order and the same has become final.

In its decision, the Court of Tax Appeals held that while the S/S Argo was caught unloading smuggled goods in Manila Bay, the said vessel and the goods cannot be forfeited in favor of the government because the Port of Manila is a port of entry (R.A. 1937, Sec. 701).

The Commissioner of Customs argues that the phrase "except a port of entry" should mean "except a port of destination," and inasmuch as there is no showing that the Port of Manila was the port of destination of the S/S Argo, its forfeiture was in order.

We disagree.

Section 2530(a) in unmistakable terms provides that a vessel engaged in smuggling "in a port of entry" cannot be forfeited. This is the clear and plain meaning of the law. It is not within the province of the Court to inquire into the wisdom of the law, for indeed, we are bound by the words of the statute. Neither can we put words in the mouths of the lawmakers. A *verba legis non est recedendum*.

It must be noted that the Revised Administrative Code of 1917 from which the Tariff and Customs Code is based, contained in Section 1363(a) thereof almost exactly the same provision in Section 2530(a) of the Tariff and Customs Code, including the phrase "except a port of entry." If the lawmakers intended the term "port of entry" to mean "port of destination," they could have expressed facilely such intention when they adopted the Tariff and Customs Code in 1957. Instead of amending the law, Congress reenacted verbatim the provision of Section 1363(a) of the Revised Administrative Code of 1917. Congress, in the very same Article 2530 of the Tariff and Customs Code, used the term "port of destination" in subsections (c) and (d) thereof. This is a clear indication that Congress is aware of the distinction between the two wordings.

It was only in 1972, after this case was instituted, when the questioned exception ("except a port of entry") in Section 2530(a) of the Tariff and Customs Code was deleted by P.D. No. 74.

Nevertheless, although the vessel cannot be forfeited, it is subject to a fine of not more than ₱10,000.00 for failure to supply the requisite manifest for the unloaded cargo under Section 2521 of Code, which reads as follows:

"SECTION 2521. Failure to Supply Requisite Manifests. — If any vessel or aircraft enters or departs from a port of entry without submitting the proper manifest to the customs authorities, or shall enter or depart conveying unmanifested cargo other than as stated in the next preceding section hereof, such vessel or aircraft shall be fined in a sum not exceeding ten thousand pesos."

x x x x x x x x x

The barge-lighter UN-L-106 and the tugboat Orestes, on the other hand, are subject to forfeiture under paragraph (c) of Section 2530 of the Tariff and Customs Code. The barge-lighter and tugboat fall under the term "vessel" which includes every sort of boat, craft or other artificial contrivance used, or capable of being used, as a means of transportation on water (R.A. No. 1937, Sec. 3514). Said section 2530(c) prescribes the forfeiture of any vessel or aircraft into which shall be transferred cargo unladen contrary to law before the arrival of the vessel or aircraft at her port of destination. Manila was not the port of destination, much less a port of call of the S/S Argo, the importing vessel. The S/S Argo left Hongkong and was bound for Jesselton, North Borneo, Djakarta and Surabaja, Indonesia; and yet it stopped at the Port of Manila to unload the smuggled goods onto the UN-L-106 and the Orestes.

Forfeiture proceedings are proceedings *in rem* (*Commissioner of Customs v. Court of Tax Appeals*, 138 SCRA 581 [1985] citing *Vierneza v. Commissioner of Customs*, 24 SCRA 394 [1968]) and are directed against the *res*. It is no defense that the owner of the vessel sought to be forfeited had no actual knowledge that his property was used illegally. The absence or lack of actual knowledge of such use is a defense personal to the owner himself which cannot in any way absolve the vessel from the liability of forfeiture (*Commissioner of Customs v. Court of Appeals, supra*; *U.S. v. Steamship "Rubi"*, 32 Phil. 228, 239 [1915]).

WHEREFORE, the consolidated Decision dated September 30, 1969 of respondent Court of Tax Appeals in C.T.A. Cases Nos. 1836, 1837 and 1839 is *MODIFIED* as follows: (1) that the S/S Argo through respondent Ceaba Shipping Agency, Inc. is ordered to pay a fine of ₱10,000.00, to be satisfied from the deposit of the same amount by respondent Ceaba to the Cashier of this Court per Resolution of July 9, 1978; (2) that the Cashier of this Court is ordered to release the said amount for payment to the Commissioner of Customs, within thirty (30) days from the date this decision becomes final; and (3) the tugboat Orestes and the barge-lighter UN-L-106 of respondents Manila Star Ferry, Inc. and the United Navigation & Transport Corporation

respectively, are ordered forfeited in favor of the Philippine Government.

SO ORDERED.

Cruz (Chairman), Griño-Aquino, Davide, Jr., and *Bellosillo, JJ.,* concur.

FIRST DIVISION

[G.R. No. 103973. October 21, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **AURORA ESCALONA *y* GIMPAYAN,** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; BURDEN OF PROOF IN CRIMINAL CASES; REQUIRES PROOF BEYOND REASONABLE DOUBT; NOT SATISFIED IN CASE AT BAR. — It is an ancient principle of our penal system that no one shall be found guilty of crime except upon proof beyond reasonable doubt. The trial court's reliance on the lone testimony of Pfc. Mabaet in convicting the appellant does not satisfy the quantum of evidence required in criminal cases, that is, proof beyond reasonable doubt. The lone testimony of a policeman may not be relied upon in imposing the capital penalty of life imprisonment upon the accused when there is serious doubt concerning his motive, in view of the appellant's testimony that bad blood exists between her husband and Pfc. Mabaet. The prosecution's failure to present the other members of the alleged buy-bust team casts serious doubts on the appellant's guilt. Considering the gravity of the penalty for the offense charged, courts should be careful in receiving and weighing the probative value of the testimony of an alleged poseur-buyer

especially when it is not corroborated by any of his teammates in the alleged buy-bust operation. The prosecution must rely on the strength of its own evidence and not on the weakness of the defense.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Reynaldo G. Elizalde for accused-appellant.

D E C I S I O N

GRIÑO-AQUINO, *J.*:

Appeal from the decision dated November 25, 1991 of the Regional Trial Court of Manila, Branch 16, convicting the appellant, Aurora Escalona *y* Gimpayan, of having violated Section 15, Article III, in relation to Section 2 (c), (f), (m), (o), Article I of Republic Act No. 6425, as amended (otherwise known as The Dangerous Drugs Law) and sentencing her to suffer the penalty of life imprisonment.

The case for the prosecution stands on the lone testimony of Pfc. Eduardo Mabaet alleging that:

Upon receipt of confidential information that one *alias* "Maricar" of 584 Interior San Andres Street, Malate, Manila, is the source of dangerous drugs (*shabu*) in Ermita, Manila, a buy-bust team composed of Pfc. Eduardo Mabaet, Pfc. Francisco Maniquiz, Pat. Arnulfo Castañeda and the informant was allegedly organized by P/Capt. Felix B. Garcia of the Anti-Narcotics Unit, Police Station No. 5, Western Police District.

After a week of surveillance, the team allegedly decided to strike on July 9, 1991 at about 1:30 o'clock in the morning. Pfc. Mabaet, allegedly disguised as a drug addict, and the informer posted themselves in front of the house of the suspect. When the suspect appeared, the informant addressed her thus: "*Bigyan mo ako ng* ₱200.00" (p. 97, *Rollo*). Pfc. Mabaet forthwith handed to her two marked ₱100.00 bills. The suspect entered her house. After a while, she came out of the house and handed to Pfc.

Mabaet a package supposed to contain *shabu* wrapped in aluminum foil.

After examining the contents of the package, Pfc. Mabaet gave the pre-arranged signal. Pfc. Maniquiz and Pat. Castañeda allegedly closed in and helped Pfc. Mabaet to arrest the suspect. Upon search of her person, Pfc. Maniquiz seized from her the two marked ₱100.00 bills and two small transparent plastic bags containing what was believed to be *shabu* residue.

Upon chemical analysis, the confiscated crystalline substance wrapped in aluminum foil and in two small plastic packets was confirmed to be methamphetamine hydrochloride or *shabu*.

The following information was filed against the appellant charging her with violation of Section 15, Article III in relation to Section 2 (c), (f), (m), (o), Article I of the Dangerous Drugs Law (RA 6425):

"That on or about July 9, 1991, in the City of Manila, Philippines, the said accused, not having been authorized by law to sell, dispense, deliver, transport or distribute any regulated drug, did then and there wilfully and unlawfully sell or offer for sale two (2) decks of white crystalline substance wrapped with aluminum foil and placed in small transparent plastic bag with markings known as '*SHABU*' containing *methamphetamine hydrochloride*, which is a regulated drug." (p. 16, *Rollo*.)

On arraignment, the accused pleaded "not guilty." After trial, the lower court rendered judgment convicting her as charged and sentencing her:

"I. To life imprisonment and to pay a fine of ₱20,000.00. She is to be accorded full benefits of her preventive imprisonment.

"II. To pay costs.

"The seized evidence shall be forfeited in favor of the Philippine Government." (p. 27, *Rollo*)

The accused appealed to this Court in due time seeking reversal of the decision on the grounds that the trial court erred:

1. in convicting the accused on the lone testimony of a police poseur-buyer, despite its severe inadequacies and inconsistencies;

2. in completely disregarding the defense of the accused, thus, erroneously convicting the accused in the process; and

3. in convicting the accused despite insufficiency of evidence and absence of proof beyond reasonable doubt, hence, contrary to the facts and the law.

These assignments of error boil down to the issue of the credibility of the lone prosecution witness.

It is an ancient principle of our penal system that no one shall be found guilty of crime except upon proof beyond reasonable doubt (*Perez vs. Sandiganbayan, et al.*, 180 SCRA 9).

The trial court's reliance on the lone testimony of Pfc. Mabaet in convicting the appellant does not satisfy the *quantum* of evidence required in criminal cases, that is, proof beyond reasonable doubt.

The lone testimony of a policeman may not be relied upon in imposing the capital penalty of life imprisonment upon the accused when there is serious doubt concerning his motive, in view of the appellant's testimony that bad blood exists between her husband and Pfc. Mabaet.

The prosecution's failure to present the other members of the alleged buy-bust team casts serious doubts on the appellant's guilt. Considering the gravity of the penalty for the offense charged, courts should be careful in receiving and weighing the probative value of the testimony of an alleged poseur-buyer especially when it is not corroborated by any of his teammates in the alleged buy-bust operation (*People vs. Honrada*, 204 SCRA 858). The prosecution must rely on the strength of its own evidence and not on the weakness of the defense (*People vs. Santillan*, 157 SCRA 534).

The final blow to the prosecution's case was dealt by the sworn statement dated December 2, 1991 of the confidential informant named Fernando Maronia who was supposedly with the buy-bust group and the one who allegedly introduced Pfc.

Mabaet to the appellant. He denied Pfc. Mabaet's allegation that he (Maronia) posed as buyer of marijuana cigarettes from the appellant. The relevant portions of his statement are quoted hereunder as follows:

"SINUMPAANG SALAYSAY"

"x x x x x x x x x

"4. Subalit hindi po totoo na ako ay bumili ng 'methamphetamine hydrochloride' o ang tinatawag na 'shabu' mula kay Gng. Escalona na sinasabi ni Pat. Mabaet;

"5. Na ako nga po ay naroroon upang iabot kay Gng. ESCALONA o kung tawagin sa amin ay 'Baby' ang isang hose ng tubig sapagkat sila ay kumukuha ng tubig sa gripo na malapit sa aming bahay;

"6. Ngunit wala po akong binibiling 'shabu' kay Baby at wala namang 'shabu' na ipinagbibili sa akin si Pat. Mabaet;

"7. Na wala pong iniabot si Gng. ESCALONA na sinasabing two (2) decks ng 'shabu' raw kay Pat. Mabaet, sa akin daw pong harapan. Ito po ay isang malaking pagkakamali;

"8. Kalungkot-lungkot pong pangyayari na ang pangalan ko ay nasangkot sa pangyayaring ito ng hindi ko nalalaman na ayon daw po sa testimonya ni Pat. Mabaet, subalit hindi po ito totoo;

"9. Na ginawa ko ang salaysay na ito upang ipabatid sa mga kinauukulan ang mga tunay na pangyayari at buong katotohanan sapagkat hindi maatim ng aking kalooban na may mga taong magdadanas ng hirap sa pangyayaring ito na marahil ay ako lamang ang makapagpapatunay o makapagbibigay liwanag;

"10. Na ginawa ko po ang salaysay na ito nang kusang-loob at walang nanakot, nagbayad, nagbigay ng gantimpala or anupa mang pangako para sa aking sarili at tahasang sinasabi ko na ang aking layunin lamang ay maituwid ang tunay na nangyari at bigyan ng linaw ang nangyari noong ika-9 ng Hulyo, 1991;"

11. Na handa po akong humarap sa hukuman at tumestigo upang liwanagin at bigyang katotohanan ang aking nabanggit dito sa anumang oras na ako ay kailanganin.

"Bilang patotoo, ako ay lumagda ngayong ika-2 ng Disyembre, 1991 sa Maynila, Pilipinas." (pp. 49-50, *Rollo*.)

As the prosecution's evidence in this case is insufficient to prove the appellant's guilt beyond a reasonable doubt, the judgment of conviction must yield to the constitutional presumption of her innocence (*Aguirre vs. People*, 155 SCRA 337).

WHEREFORE, the Court *ACQUITS* the accused, Aurora Escalona, of the charge against her and orders that she be immediately released from custody unless she is being held to answer for another offense. Costs *de oficio*.

SO ORDERED.

Cruz, Davide, Jr., Bellosillo, and *Quiason, JJ.*, concur.

FIRST DIVISION

[G.R. No. 104813. October 21, 1993]

HEIRS OF JOSE OLVIGA, NAMELY: PLACIDA S. OLVIGA, VIRGILIO OLVIGA, LOLITA OLVIGA, CARMENCITA O. ALPUERTO and JEANETTE OLILA, *petitioners, vs.* **THE HON. COURT OF APPEALS, ANGELITA R. GLOR, SERILINA G. JAMON, EMELITA G. MADELA, EMAN G. MANALO, MYRNA GLOR, FELIPE GLOR, GAUNDENCIO GLOR and CORNELIO GLOR,** *respondents*.

SYLLABUS

1. CIVIL LAW; PRESCRIPTION OF ACTIONS; RULE IN CASE OF AN ACTION FOR RECONVEYANCE OF A PARCEL OF LAND BASED ON IMPLIED OR CONSTRUCTIVE TRUST; EXCEPTION. — With regard to the issue of prescription, this Court has ruled a number of times before that an action for reconveyance of a parcel of land based on implied or constructive trust prescribes in ten

years, the point of reference being the date of registration of the deed or the date of the issuance of the certificate of title over the property. But this rule applies only when the plaintiff is not in possession of the property, since if a person claiming to be the owner thereof is in actual possession of the property, the right to seek reconveyance, which in effect seeks to quiet title to the property, doe not prescribe.

2. ID.; ID.; RULE FOR ACTIONS TO QUIET TITLE OVER A PROPERTY; *SAPTO vs. FABIANA*, (103 PHIL. 683), CITED. — In *Sapto vs. Fabiana*, 103 Phil. 683, 686-687, appellants' predecessors sold to appellees in 1931 a parcel of land. The sale was approved by the Provincial Governor of Davao but was never registered. Possession of the land was, however, transferred to Fabiana and the latter has been in possession thereof from 1931 up to the present. The widow and children of Samuel Sapto filed an action to recover the land. This Court in affirming the validity of the sale in favor of appellee (Fabiana) held: "No enforcement of the contract is in fact needed, since the delivery of possession of the land sold had consummated the sale and transferred title to the purchaser, registration of the contract not being indispensable as between the parties. Actually the action for conveyance was one to quiet title, *i.e.*, to remove the cloud cast upon appellee's ownership by the refusal of the appellants to recognize the sale made by their predecessors. This action accrued only when appellants initiated their suit to recover the land in 1954. Furthermore, it is an established rule of American jurisprudence (made applicable in this jurisdiction by Art. 480 of the New Civil Code) that actions to quiet title to property in the possession of the plaintiff are imprescriptible."

3. ID.; POSSESSION; ACTUAL POSSESSOR OF A PIECE OF LAND CLAIMING TO BE OWNER THEREOF MAY WAIT UNTIL HIS POSSESSION IS DISTURBED OR HIS TITLE IS ATTACKED; REASON THEREFOR. — In *Faja vs. Court of Appeals*, 75 SCRA 441, 446, this Court likewise reiterated the ruling that: "x x x There is settled jurisprudence that one who is in actual possession of a piece of land claiming to be owner thereof may wait until his possession is disturbed or his title is attacked before taking steps to vindicate his right, the reason for the rule being, that his undisturbed possession gives him a continuing right to seek the aid of a court of equity

to ascertain and determine the nature of the adverse claim of a third party and its effect on his own title, which right can be claimed only by one who is in possession. No better situation can be conceived at the moment for Us to apply this rule on equity than that of herein petitioners whose mother, Felipa Faja, was in possession of the litigated property for no less than 30 years and was suddenly confronted with a claim that the land she had been occupying and cultivating all these years, was titled in the name of a third person. We hold that in such a situation the right to quiet title to the property, to seek its reconveyance and annul any certificate of title covering it, accrued only from the time the one in possession was made aware of a claim adverse to his own, and it is only then that the statutory period of prescription commences to run against such possessor." In the case at bar, private respondents and their predecessors-in-interest were in actual possession of the property since 1950. Their undisturbed possession gave them the continuing right to seek the aid of a court of equity to determine the nature of the adverse claim of petitioners, who in 1988 disturbed their possession.

4. REMEDIAL LAW; APPEALS; FACTUAL FINDINGS OF THE LOWER COURTS; RULE AND EXCEPTION. — The Court of Appeals and the trial court correctly based their findings of fact on the testimonies of the parties and their witnesses. It can be said therefore that those conclusions are based on substantial evidence. No cogent reason exists to disturb them. As reiterated in a long line of decisions, it is beyond the province of this Court to make its own findings of facts different from those of the trial court as affirmed by the Court of Appeals. In petitions for review of decisions of the Court of Appeals, the jurisdiction of this Court is confined to a review of questions of law, except when the findings of fact are not supported by the records or are so glaringly erroneous as to constitute a serious abuse of discretion. The case at bar does not fall under the exceptions.

APPEARANCES OF COUNSEL

Natalio T. Paril, Jr. for petitioners.
Leovigildo L. Cerilla for private respondents.

D E C I S I O N

GRIÑO-AQUINO, *J.*:

This is a petition to review the decision of the Court of Appeals in CA-G.R. CV No. 30542, affirming *in toto* the decision of the Regional Trial Court of Calauag, Quezon ordering the defendants, heirs of Jose Olviga (petitioners herein), to reconvey the land in dispute to the plaintiffs, heirs of Cornelia Glor (now private respondents), and to pay attorney's fees and the costs of suit.

This case started as an action (Civil Case No. C-883) filed in the Regional Trial Court of Calauag, Quezon by Angelita Glor and her children against the heirs of Jose Olviga for reconveyance of a parcel of land, measuring 54,406 square meters (5.44 has), more or less, known as Lot 13, Pls-84 of the Guinayangan Public Land Subdivision.

The court, after due trial, rendered judgment in favor of the private respondents, the dispositive portion of which reads:

"WHEREFORE, and considering the foregoing judgment is hereby rendered in favor of the PLAINTIFFS and against the defendants as heirs of Jose Olviga to reconvey the land in dispute to the plaintiffs as heirs of Cornelio Glor Sr.; condemning the defendants jointly and severally to pay the plaintiffs attorneys fees of ₱5,000.00 plus the costs of the suit. The counterclaim interposed by the defendants is dismissed." (p. 12, *Rollo*.)

The judgment was appealed to the Court of Appeals by the defendants who raised several factual issues regarding possession and fraud, as well as legal issues involving prescription and purchaser in good faith, but the appellate court dismissed the appeal and affirmed *in toto* the decision of the trial court.

It was established by the evidence on record that the land in question was, in 1950, still forest land when Eutiquio Pureza, then only twelve years old, and his father cleared and cultivated it. In 1954, they introduced improvements such as, coconut trees, jackfruit, mangoes, avocado and bananas. When the area was

released for disposition, the Bureau of Lands surveyed the same in 1956 in the name of Eutiquio Pureza. Since then, the land has been known as Lot 13, Pls-84 of the Guinayangan Public Land Subdivision. Godofredo Olviga, a son of Jose Olviga then living with the latter, protested the survey but only with respect to a one-half-hectare portion "*sa dakong panulukan ng Amihanan-Silanganan.*" This protest or "*tutol*" (Exh. B) of Godofredo Olviga, brother of petitioners Virgilio Olviga and Lolita Olviga Olila, is of public record in the Bureau of Lands (Exh. B). In said document, Godofredo Olviga expressly admitted that the lot belonged to Eutiquio Pureza, except the ½ hectare portion claimed by him (Godofredo) which was included in the survey of Pureza's Lot 13.

In 1960, Eutiquio Pureza filed a homestead application over Lot 13. Without his application having been acted upon, he transferred his rights in said lot to Cornelio Glor in 1961. Neither the homestead application of Eutiquio nor the proposed transfer of his rights to Cornelio Glor was acted upon by the Director of Lands for reasons that the records of the Bureau of Lands do not disclose.

In 1967, Jose Olviga obtained a registered title for said lot in a cadastral proceeding, in fraud of the rights of Pureza and his transferee, Cornelio Glor and his family, who were the real and actual occupants of the land.

What must have happened, as found by the Court of Appeals, is that since Cornelio Glor, Sr. was sickly, and his wife (now widowed) Angelita Glor, was unschooled, they failed to follow up Pureza's homestead application over Lot 13 in the cadastral proceedings in the Municipal Court of Guinayangan Public Land Subdivision, Pls-84, Case 1 (Philcusa-Foa). In fact, they were not aware of the proceedings. Angelita Glor testified that *no notice was ever posted on Lot 13 about the proceedings* nor did anyone, not even the barangay captain, tell her about them. Neither did she receive any notice from the court sheriff or any court employee. This non-posting of the notice of the cadastral hearing on the land, or in the *barangay* hall, was confirmed by petitioner Virgilio Olviga himself who testified that he did not

notice any papers posted on the property in question (tsn., October 18, 1990, pp. 83-84). On the other hand, petitioners' father, Jose Olviga, claimed both Lots 12 and 13, which are adjoining lots, in the same cadastral proceedings. He falsely omitted in his answer mention of the fact that other persons were in possession of, and claiming adverse interest in, Lot 13 and that the land had been surveyed for Eutiquio Pureza, the former occupant who sold his interests to private respondents' parent, Cornelio Glor, in 1961. Glor was Olvigas' neighbor. As a result, both Lots 12 and 13 were declared *as uncontested* in the name of Jose Olviga (Exh. 7), and were registered in his name in 1967 in Original Certificate of Title, No. 0-12713 (Exh. 5). In 1971, Olviga requested that OCT No. 0-12713 be split into two (2) TCT's, one each for the two (2) lots. TCT Nos. T-103823 and T-103824 were issued for lots 12 and 13, respectively. Jose Olviga later transferred Lot 13 to his son-in-law, Jaime Olila and daughter, Lolita Olviga resulting in the cancellation of TCT No. T-03824 and the issuance of TCT No. T-241314 in the names of the spouses (Exh. 3).

It was also established that the spouses Jaime Olila and Lolita Olviga Olila, were not innocent purchasers for value of the land from their father, and have never been in possession. The Glors and their predecessors-in-interest (Cornelio Glor Sr., and Eutiquio Pureza) were the ones found to be in possession of the property.

From said findings and conclusions, the appellate court in its decision dated January 13, 1992, resolved the issues presented, thus:

"x x x whether or not plaintiffs' action is really one for quieting of title that does not prescribe; or assuming that their demand for the reconveyance of the lot in question prescribes in ten years, being based on an implied trust, whether their cause of action should be counted from the date of the issuance of the late Jose Olviga's title over said lot in 1967 and has, therefore, already prescribed, or whether the prescriptive period should be counted from the date plaintiffs acquired knowledge of said title sometime in 1988.

"The first question should be answered in the affirmative. x x x.

"x x x x x x x x x.

"But even assuming that plaintiffs' action for reconveyance, being based on an implied or constructive trust, prescribes in ten years, the lower court again correctly ruled that their cause of action should be considered to have accrued not from the date of registration of the title of Jose Olviga, defendants' predecessor-in-interest, over the lot in question in 1967, but *only from the time plaintiffs learned of such title in 1988*. x x x.

"x x x x x x x x x.

"All in all, therefore, the court *a quo* did not err in holding that plaintiffs' action against defendants-appellants for the reconveyance of the lot in question filed on April 10, 1989, or in less than a year after they learned of the issuance of a title over said lot to Jose Olviga, predecessor-in-interest of defendants, has not yet prescribed.

"WHEREFORE, the decision appealed from herein is AFFIRMED *in toto,* with costs against defendants-appellants." (pp. 48-51, *Rollo*.)

Petitioners now seek a review of the above decision. They allege that: (1) the present action has already prescribed; (2) the Court of Appeals erred when it ruled that the private respondents' cause of action accrued not in 1967 but in 1988; (3) that the Court of Appeals erred when it failed to consider that private respondents as mere homestead transferees cannot maintain an action for reconveyance; (4) that the Faja and Caragay-Layno cases have no bearing and direct application to the case at bar; and (5) that private respondents have not proven by preponderance of evidence their ownership and possession of the disputed land.

With regard to the issue of prescription, this Court has ruled a number of times before that an action for reconveyance of a parcel of land based on implied or constructive trust prescribes in ten years, the point of reference being the date of registration of the deed or the date of the issuance of the certificate of title over the property (*Vda. de Portugal vs. IAC*, 159 SCRA 178). But this rule applies only *when the plaintiff is not in possession of the property*, since if a person claiming to be the owner thereof is in actual possession of the property, *the right to seek reconveyance, which in effect seeks to quiet title to the property*, does not prescribe.

In *Sapto vs. Fabiana*, 103 Phil. 683, 686-687, appellants' predecessors sold to appellees in 1931 a parcel of land. The sale was approved by the Provincial Governor of Davao but was never registered. Possession of the land was, however, transferred to Fabiana and the latter has been in possession thereof from 1931 up to the present. The widow and children of Samuel Sapto filed an action to recover the land. This Court in affirming the validity of the sale in favor of appellee (Fabiana) held:

"No enforcement of the contract is in fact needed, since the delivery of possession of the land sold had consummated the sale and transferred title to the purchaser, registration of the contract not being indispensable as between the parties. Actually the action for conveyance was one to quiet title, *i.e.*, to remove the cloud cast upon appellee's ownership by the refusal of the appellants to recognize the sale made by their predecessors. This action accrued only when appellants initiated their suit to recover the land in 1954. Furthermore, it is an established rule of American jurisprudence (made applicable in this jurisdiction by Art. 480 of the New Civil Code) that actions to quiet title to property in the possession of the plaintiff are imprescriptible (44 Am. Jur. p. 47; *Cooper vs. Rhea*, 39 L.R.A. 930; *Inland Empire Land Co. vs. Grant County*, 138 Wash. 439, 245 Pac. 14)."

In *Faja vs. Court of Appeals*, 75 SCRA 441, 446, this Court likewise reiterated the ruling that:

"x x x There is settled jurisprudence that one who is in actual possession of a piece of land claiming to be owner thereof may wait until his possession is disturbed or his title is attacked before taking steps to vindicate his right, the reason for the rule being that his undisturbed possession gives him a continuing right to seek the aid of a court of equity to ascertain and determine the nature of the adverse claim of a third party and its effect on his own title, which right can be claimed only by one who is in possession. No better situation can be conceived at the moment for Us to apply this rule on equity than that of herein petitioners whose mother, Felipa Faja, was in possession of the litigated property for no less than 30 years and was suddenly confronted with a claim that the land she had been occupying and cultivating all these years, was titled in the name of a third person. We hold that in such a situation the right

to quiet title to the property, to seek its reconveyance and annul any certificate of title covering it, accrued only from the time the one in possession was made aware of a claim adverse to his own, and it is only then that the statutory period of prescription commences to run against such possessor."

In the case at bar, private respondents and their predecessors-in-interest were in actual possession of the property since 1950. Their undisturbed possession gave them the continuing right to seek the aid of a court of equity to determine the nature of the adverse claim of petitioners, who in 1988 disturbed their possession.

The other issues raised in the petition are factual.

The Court of Appeals and the trial court correctly based their findings of fact on the testimonies of the parties and their witnesses. It can be said therefore that those conclusions are based on substantial evidence. No cogent reason exists to disturb them. As reiterated in a long line of decisions, it is beyond the province of this Court to make its own findings of facts different from those of the trial court as affirmed by the Court of Appeals (*Vda. de Cailles vs. Mayuga*, 170 SCRA 347; *New Owners/ Management of TML Garments, Inc. vs. Zaragosa*, 170 SCRA 563). In petitions for review of decisions of the Court of Appeals, the jurisdiction of this Court is confined to a review of questions of law, except when the findings of fact are not supported by the records or are so glaringly erroneous as to constitute a serious abuse of discretion (*Lim vs. Court of Appeals*, 158 SCRA 307; *Samson vs. CA*, 141 SCRA 194; *Republic vs. IAC*, 144 SCRA 705). The case at bar does not fall under the exceptions.

WHEREFORE, findings no reversible error in the decision of the Court of Appeals, the petition for review is *DENIED*, with costs against the petitioners.

SO ORDERED.

Cruz, Davide, Jr., Bellosillo, and *Quiason, JJ.*, concur.

FIRST DIVISION

[G.R. No. 106454. October 21, 1993]

BENCIO CARAAN, *petitioner, vs.* **NATIONAL LABOR RELATIONS COMMISSION and BATANGAS LAGUNA TAYABAS BUS COMPANY (BLTBCO),** *respondents*.

SYLLABUS

1. LABOR AND SOCIAL LEGISLATION; TERMINATION OF EMPLOYMENT; LOSS OF TRUST AND CONFIDENCE; NOT ESTABLISHED IN CASE AT BAR. — While it is clear that the petitioner incurred a shortage of ₱100.00 in his fare collections on September 29, 1989 for failure to collect the fares of three (3) absconding passengers to whom he had issued tickets, or for failure to remit the full fares corresponding to the number of tickets issued during that particular trip, Caraan was not guilty of misappropriation or dishonesty meriting the company's loss of trust and confidence in him. Caraan was not guilty of misappropriation because the proceeds of the tickets which he gave to the three passengers had not yet come into his hands. He had received nothing from them that he could misappropriate. The most that he was guilty of was that he was a poor judge of the character of his passengers and that he neglected to do his duty to discharge them from the bus when they could not pay their fares. Caraan had no dishonest intent to defraud the bus company as shown by the following facts: 1. upon arrival in Batangas, he immediately disclosed the circumstances of his failure to collect the fares of 3 passengers by submitting a shortage slip for ₱100.00 (instead of ₱98.55 which was the actual cost of the tickets); 2. he went home in order to get money to reimburse the uncollected value of the unpaid tickets; and 3. he went to the bus company's head office in San Pablo City where he again disclosed the uncollected amount with the intention of remitting it directly, but he was advised by the administrative officer that the payroll for the preceding day had already been prepared and so the corresponding deduction would just be made in the next payroll. All these circumstances indicate his clear and honest purpose

to make good the company's loss. The management's act of reinstating him on August 29, 1991, as ordered by the labor arbiter, even though it had appealed that decision to the NLRC, indicates that his previous infractions were not so serious as to be unforgivable from the company's viewpoint.

2. ID.; ID.; DISMISSAL; A SEVERE PENALTY FOR SIMPLE NEGLIGENCE; CASE AT BAR. — The labor arbiter correctly observed that the nature of Caraan's work as a bus conductor involves inherent or normal occupational risks of incurring money shortages and uncollected fares. A conductor's job is to collect exact fares from the passengers and remit his collections to the company. While, ordinarily, failure to do that may look like a case of misappropriation of funds, or gross neglect of duty on the part of the employee, resulting in his employer's loss of trust and confidence in him, in the particular circumstances of this case, we find only a case of simple negligence not deserving the severe penalty of dismissal from the service.

APPEARANCES OF COUNSEL

Federico C. Leynes for petitioner.

Tanjuatco, Oreta, Tanjuatco, Berenguer & Corpus for private respondents.

D E C I S I O N

GRIÑO-AQUINO, *J.*:

The petitioner seeks, by this petition for *certiorari*, to annul the Resolutions dated January 31, 1992 and April 21, 1992, of the National Labor Relations Commission (NLRC) dismissing his complaint for illegal dismissal. He invokes the compassionate implementation of the social justice provisions of the Constitution rather than the strict application of his employer's harsh rules and regulations.

Bencio Caraan was employed by BLTBCO on April 19, 1984 as a bus conductor, with a salary of ₱103.00 per day plus five (5%) percent commission on ticket sales. On September 30,

1989, he was dismissed from the service for having incurred a cash shortage of ₱98.55 on his fare collections for the preceding day, September 29, 1989.

The records show that on September 29, 1989, Caraan was assigned as bus conductor of BLTBCO Aircon Bus No. DL-749 which left Plaza Lawton at 7:30 in the evening with 100 passengers, more or less, all of whom were issued tickets. A group of three passengers did not have enough money for the fare and pleaded with Caraan that they be allowed to pay their fares ₱32.85 each upon reaching the Chavez Pharmacy in Batangas City. Taking pity on them, Caraan acceded to their request. However, upon reaching Batangas City, another passenger who got off requested Caraan's assistance with his baggage. Caraan went up the bus to retrieve the passenger's baggage. He was dismayed to discover later that while he was so occupied, the three passengers who promised to pay their fares upon reaching Batangas City had already left the bus. Caraan immediately submitted a "shortage slip" for ₱100.00 to the company's pre-audit section in Batangas City, after which he went home to Talisay to procure money to enable him to redeem his shortage slip from the company's main office in San Pablo City. Upon reaching the office, he was informed by the administrative officer, Mr. Escaño, that the payroll had already been prepared, hence, the corresponding deduction for his shortage would just be effected in the next payroll.

An investigation of Caraan was conducted in writing in the form of questions and answers. Caraan explained the cause of his shortage. But thereafter, Caraan was no longer given any trip assignment.

On November 25, 1989, an official termination letter signed by Max Potenciano, Jr., Vice-President for Operations of BLTBCO, was received by Caraan. It mentioned the fact that his shortage of ₱100.00 on September 29, 1989 was his 33rd offense, the thirty-two other shortages, involving minimal amounts, totalled ₱146.80.

Caraan filed NLRC Case No. SRB-IV-2-3229-91 in the Department of Labor and Employment, charging the company with unfair labor practice and illegal dismissal.

On July 25, 1991, the labor arbiter rendered a decision declaring that complainant's dismissal was illegal and unjustified, and ordering his reinstatement to his former position effective August 1, 1991, with full backwages in the total sum of ₱26,951.60. The respondent bus company was further ordered to pay his attorney's fees.

BLTBCO appealed the decision in Case No. RAB-IV-2-3229-91 to the NLRC. It alleged that the labor arbiter erred in not finding that Caraan's dismissal was lawful for breach of trust and confidence because he had been found guilty of several offenses of misappropriation and/or dishonesty by reason of recurring shortages in his fare collections, the last of which occurred on September 29, 1989. The company argued that granting that malice may not be imputed to his shortage of ₱100.00, he should, nevertheless, be dismissed for grave misconduct and/or gross negligence because of recurring shortages in his daily collections.

In the meantime, the complainant has been actually reinstated by the respondent company to his former position as bus conductor starting August 29, 1991.

The NLRC rendered a Resolution on January 31, 1992, setting aside the labor arbiter's decision. A new one was entered "dismissing the illegal dismissal case x x x for lack of merit, however, directing respondent to pay complainant the amount of Two Thousand Six Hundred Ninety-Five and 17/100 (₱2,695.17) Pesos as financial assistance" (p. 23, *Rollo*).

Caraan filed a Motion for Reconsideration while BLTBCO asked for a Partial Reconsideration of the January 31, 1992 decision. Both motions were denied for lack of merit.

Petitioner filed the instant petition, alleging that the NLRC gravely abused its discretion in upholding his dismissal from employment as penalty for a minor offense, thereby violating his right to security of tenure.

We find merit in the petition.

While it is clear that the petitioner incurred a shortage of ₱100.00 in his fare collections on September 29, 1989 for failure to collect the fares of three (3) absconding passengers to whom he had issued tickets, or for failure to remit the full fares corresponding to the number of tickets issued during that particular trip, Caraan was not guilty of misappropriation or dishonesty meriting the company's loss of trust and confidence in him.

The labor arbiter correctly observed that the nature of Caraan's work as a bus conductor involves inherent or normal occupational risks of incurring money shortages and uncollected fares. A conductor's job is to collect exact fares from the passengers and remit his collections to the company. While, ordinarily, failure to do that may look like a case of misappropriation of funds, or gross neglect of duty on the part of the employee, resulting in his employer's loss of trust and confidence in him, in the particular circumstances of this case, we find only a case of simple negligence not deserving the severe penalty of dismissal from the service.

Caraan was not guilty of misappropriation because the proceeds of the tickets which he gave to the three passengers had not yet come into his hands. He had received nothing from them that he could misappropriate. The most that he was guilty of was that he was a poor judge of the character of his passengers and that he neglected to do his duty to discharge them from the bus when they could not pay their fares. Caraan had no dishonest intent to defraud the bus company as shown by the following facts:

1. upon arrival in Batangas, he immediately disclosed the circumstances of his failure to collect the fares of 3 passengers by submitting a shortage slip for ₱100.00 (instead of ₱98.55 which was the actual cost of the tickets);

2. he went home in order to get money to reimburse the uncollected value of the unpaid tickets; and

3. he went to the bus company's head office in San Pablo City where he again disclosed the uncollected amount with the intention of remitting it directly, but he was advised by the administrative officer that the payroll for the preceding day had already been prepared and so the corresponding deduction would just be made in the next payroll.

All these circumstances indicate his clear and honest purpose to make good the company's loss. The management's act of reinstating him on August 29, 1991, as ordered by the labor arbiter, even though it had appealed that decision to the NLRC, indicates that his previous infractions were not so serious as to be unforgivable from the company's viewpoint.

It is the policy of the State to assure the right of workers to security of tenure (Art. XII, Sec. 3, 1987 Constitution), as an act of social justice. In the present case, although Caraan asserts this right without the support of a union in pressing his claim, he nevertheless speaks no less forcefully for he has the Constitution behind him (*Dagupan Bus Co., Inc. vs. NLRC,* 191 SCRA 328).

While we do not condone Caraan's neglect of duty, we believe his negligence deserves a commensurate penalty short of the loss of his job.

WHEREFORE, the assailed resolutions of the National Labor Relations Commission are hereby set aside and the Labor Arbiter's decision is reinstated. Considering that the order for his reinstatement to his former position, without loss of seniority rights and benefits, has already been complied with by his employer as of August 28, 1991, the latter is hereby ordered to pay him his full back wages from September 30, 1989 to August 28, 1991, plus ten (10%) percent of the judgment as attorney's fees. Costs against the private respondent.

SO ORDERED.

Cruz, Davide, Jr., Bellosillo, and *Quiason, JJ.*, concur.

EN BANC

[G.R. No. 110280. October 21, 1993]

UNIVERSITY OF THE PHILIPPINES BOARD OF REGENTS and DR. OLIVIA C. CAOILI in her capacity as Secretary of the Board, *petitioners, vs.* **HON. ELSIE LIGOT-TELAN in her capacity as Presiding Judge of Branch 87, Regional Trial Court of Quezon City and RAMON P. NADAL,** *respondents.*

SYLLABUS

1. REMEDIAL LAW; REAL PARTY IN INTEREST; DEFINED. — A real party in interest is one "who stands to be benefited or injured by the judgment or the party entitled to the avails of the suit. Interest within the meaning of the rule means material interest, an interest in issue and to be affected by the decree, as distinguished from mere interest in the question involved, or a mere incidental interest."

2. ID.; ID.; U.P. BOARD OF REGENTS IS A REAL PARTY IN INTEREST IN A DISCIPLINARY ACTION AGAINST A STUDENT WHO VIOLATED THE RULES AND REGULATIONS OF THE SCHOOL. — The U.P. Board of Regents has an interest to protect inasmuch as what is in issue here is its power to impose disciplinary action against a student who violated the Rules and Regulations on Student Conduct and Disciplinary by withholding information in connection with his application for STFAP benefits, which information, if disclosed, would have sufficed to disqualify him from receiving the financial assistance he sought. Such dishonesty, if left unpunished, would have the effect of subverting a commendable program into which the University officials had devoted much time and expended precious resources, from the conceptualization to the implementation stage, to rationalize the socialized scheme of tuition fee payments in order that more students may benefit from the public funds allocated to the State University.

3. POLITICAL LAW; CONSTITUTIONAL LAW; DUE PROCESS; DENIAL, NOT A CASE OF. — It is gross error

to equate due process in the instant case with the sending of notice of the March 29, 1993 BOR meeting to respondent. University rules do not require the attendance in BOR meetings of individual whose cases are included as items on the agenda of the Board. This is not exclusive of students whose disciplinary cases have been appealed to the Board of Regents as the final review body.

4. **ID.; ID.; ID.; IN ADMINISTRATIVE PROCEEDINGS, ONLY SUBSTANTIAL EVIDENCE IS REQUIRED. —** In his July 12, 1991 certification aforementioned, Nadal admitted, although inconsistently, that his mother was a "TNT" who could not find a "stable, regular, well-paying employment" but that she was supporting the education of his brother with the help of another son. To our mind, this constitutes sufficient admission that Nadal withheld information on the income, however measly and irregular, of his mother. Unlike in criminal cases which require proof beyond reasonable doubt as basis for a judgment, in administrative or quasi-judicial proceedings, only *substantial evidence* is required, that which means more than a mere scintilla or relevant evidence as a reasonable mind might accept as adequate to support a conclusion, even if other minds equally reasonable might conceivably opine otherwise.

5. **ID.; ID.; BILL OF RIGHTS; ACADEMIC FREEDOM; THE TRIAL COURT CANNOT ISSUE A WRIT OF INJUNCTION TO CURTAIL A SCHOOL'S EXERCISE OF ACADEMIC FREEDOM. —** It is clear that the lower court should have restrained itself from assuming jurisdiction over the petition filed by Nadal. *Mandamus* is never issued in doubtful cases, a showing of a clear and certain right on the part of the petitioner being required. It is of no avail against an official or government agency whose duty requires the exercise of discretion or judgment. Hence, by issuing the writ of preliminary injunction, the lower court dared to tread upon legally forbidden grounds. For, by virtue of the writ, the University's exercise of academic freedom was peremptorily curtailed. Moreover, the door was flung wide open for Nadal to do exactly what the decision of the BOR prohibited him from doing and that is, to violate the suspension order by enrolling for the first semester of 1993-1994. It must have been with consternation that the University officials helplessly watched him complete his academic requirements for taking the Bar. In the event that he be allowed

to continue with his studies, he would, in effect render moot and academic the disciplinary sanction of suspension legally imposed upon him by the BOR's final decision of March 29, 1993. What is to prevent other aspirants for STFAP scholarships from misleading the University authorities by misrepresenting certain facts or as in instant case, withholding vital information and stating downright falsehoods, in their application forms with impunity? Not only would this undermine the authority of the U.P. to discipline its students who violate the rules and regulations of the institution but, more importantly, subvert the very concept and lofty intent to give financial assistance to poor but deserving students through the STFAP which, incidentally, has not ceased refining and modifying its operations.

6. LEGAL ETHICS; CODE OF PROFESSIONAL RESPONSIBILITY; APPLIED TO A SENIOR LAW STUDENT. — Let it not be forgotten that respondent aspires to join the ranks of the professionals who would uphold truth at all costs so that justice may prevail. The sentinels who stand guard at the portals leading to the hallowed Temples of Justice cannot be overzealous in admitting only those who are intellectually and morally fit. In those who exhibit duplicity in their student days, one spots the shady character who is bound to sow the seeds of chicanery in the practice of his profession. Having reached his senior year, respondent is presumably aware that the bedrock axiom, Canon I, Rule 1.01 of the Code of Professional Responsibility states: "A lawyer shall not engage in unlawful, *dishonest,* immoral or deceitful conduct." Further on, Canon 7, Rule 7.01 provides: "A lawyer shall be answerable for knowingly making a false statement or *suppressing a material fact* in connecting with his application for admission to the bar." Surely, it is not too early to warn entrants to the noble profession of law that honesty and integrity are requirements no less weighty than hurdling the Bar examinations. This is the reason why a certification of good moral character is one of the documents that must be submitted in applying to take said examination. In fact, a charge of immoral or deceitful conduct on the part of an applicant, when proved, is a ground for disqualifying him. To revert to the instant case, inasmuch as it has been shown sufficiently that respondent has committed an act of dishonesty in withholding vital information in connection with his application for STFAP benefits, all in blatant violation of

the Rules and Regulations on Student Conduct and Discipline of petitioner University, the latter's inherent power and authority to impose disciplinary sanction may be invoked and rightfully exercised.

APPEARANCES OF COUNSEL

U.P. Office of Legal Services for petitioners.
Bonifacio A. Alentajan for private respondent.

D E C I S I O N

ROMERO, *J.*:

In an effort to make the University of the Philippines (U.P.) truly the university of the people, the U.P. administration conceptualized and implemented the socialized scheme of tuition fee payments through the Socialized Tuition Fee and Assistance Program (STFAP), popularly known as the "*Iskolar ng Bayan*" program. Spawned by the public clamor to overcome what was perceived as the sharpening elitist profile of the U.P. studentry, the STFAP aspired to expand the coverage of government educational subsidies so as to include the deserving in the lower rungs of the socio-economic ladder.

After broad consultations with the various university constituencies by U.P. President Jose V. Abueva, the U.P. Board of Regents issued on April 28, 1988 a Resolution establishing the STFAP. A year later, it was granted official recognition when the Congress of the Philippines allocated a portion of the National Budget for the implementation of the program.

In the interest of democratizing admission to the State University, all students are entitled to apply for STFAP benefits which include reduction in tuition fees, living and book subsidies and student assistantships which give undergraduate students the opportunity to earn ₱12.00 per hour by working for the University.

Applicants are required to accomplish a questionnaire where, among others, they state the amount and source of the annual income of the family, their real and personal properties and

special circumstances from which the University may evaluate their financial status and need on the basis of which they are categorized into brackets. At the end of the application form, the student applicant, as well as his parent, signs a sworn statement, as follows:

"*Statement of the Student*

I hereby certify, upon my honor, that all the data and information which I have furnished are accurate and complete. *I understand that any willful misinformation and/or withholding of information will automatically disqualify me from receiving any financial assistance or subsidy, and may serve as ground for my expulsion from the University. Furthermore, if such misinformation and/or withholding of information on my part is discovered after I have been awarded tuition scholarship or any form of financial assistance, I will be required to reimburse all financial benefits plus the legal rate of interest prevailing at the time of reimbursement without prejudice to the filing of charges against me.* (Italics supplied)

Moreover, I understand that the University may send a fact-finding team to visit my home/residence to verify the veracity of the information provided in this application and I will give my utmost cooperation in this regard. I also understand that my refusal to cooperate with the fact-finding team may mean suspension or withdrawal of STFAP benefits and privileges.

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Student's Signature

Statement of the Applicant's Parent or Guardian

I hereby certify to the truthfulness and completeness of the information which my son/daughter/dependent has furnished in this application together with all the documents attached. I further recognize that in signing this application form, I share with my son/daughter/dependent the responsibility for the truthfulness and completeness of the information supplied herein. (Italics supplied)

Moreover, I understand that the University may send a fact-finding team to visit my home/residence to verify the information provided in this application and I will give my utmost cooperation in this regard. I also understand that my refusal to cooperate with the fact-

finding team may mean suspension or withdrawal of STFAP benefits and privileges of my son/daughter/dependent.

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Parent's/Legal Guardian's/Spouse's Signature"[1]

From the early stages of its implementation, measures were adopted to safeguard the integrity of the program. One such precautionary measure was the inclusion as one of the punishable acts under Section 2 (a) of the Rules and Regulations on Student Conduct and Discipline of the University the deliberate falsification or suppression/withholding of any material information required in the application form.

To further insure the integrity of the program, a random sampling scheme of verification of data indicated in a student's application form is undertaken. Among those who applied for STFAP benefits for School Year 1989-90 was Ramon P. Nadal, a student enrolled in the College of Law.

On March 14, 1991, a team composed of Arsenio L. Dona and Jose Carlo Manalo conducted a home investigation at the residence of Nadal at 31 Twinpeaks Drive, Blue Ridge, Quezon City. Ms. Cristeta Packing, Nadal's aunt, was interviewed and the team submitted a home visit report. Consolacion Urbino, Scholarship Affairs Officer II, found discrepancies between the report and Nadal's application form. Forthwith, she and Bella M. Villanueva, head of the Office of Scholarships and Student Services, presented the matter to the Diliman Committee on Scholarships and Financial Assistance.[2]

In compliance with the said Committee's directive, Bella Villanueva wrote Nadal informing him that the investigation showed that he had failed to declare, not only the fact that he had been maintaining a 1977 Corolla car which was owned by his brother but also the income of his mother who was supporting his brothers Antonio and Federico. Nadal was likewise informed

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[1] *Rollo*, p. 72.

[2] *Ibid.*, pp. 133-134.

that the Diliman Committee had reclassified him to Bracket 9 (from Bracket 4), retroactive to June 1989, unless he could submit "proofs to the contrary." Nadal was required "to pay back the equivalent amount of full school fees" with "interest based on current commercial rates." Failure to settle his account would mean the suspension of his registration privileges and the withholding of clearance and transcript of records. He was also warned that his case might be referred to the Student Disciplinary Tribunal for further investigation.[3]

On July 12, 1991, Nadal issued a certification stating, among other things, that his mother migrated to the United States in 1981 but because her residency status had not yet been legalized, she had not been able to find a "stable, regular, well-paying employment." He also stated that his mother, jointly with his brother Virgilio, Jr., was shouldering the expenses of the college education of his two younger brothers.[4]

Noting further discrepancies between Nadal's application form and the certification, the U.P. charged Nadal before the Student Disciplinary Tribunal (SDT) on August 23, 1991 with the following:

"That respondent RAMON P. NADAL (UP Student No. 83-11640), a student of the College of Law, UP System, Diliman, Quezon City, and STFAP (*ISKOLAR NG BAYAN*) recipient (Bracket 4 for SY 1989-1990; Bracket 5 for SY 1990-1991) in his applications for STFAP (*ISKOLAR NG BAYAN*) benefits which he filed for schoolyear 1989-1990, and schoolyear 1990-1991, with the Office of Scholarship and Student Services (formerly Scholarship and Financial Assistance Service) voluntarily and willfully withheld and did not declare the following:

(a) That he has and maintains a car (Toyota Corolla, Model 1977); and

(b) The income of his mother (Natividad Packing Nadal) in the U.S.A. in support of the studies of his brothers Antonio and Federico,

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[3] *Ibid.*, p. 74.

[4] *Ibid.*, pp. 75-76.

which acts of willfully withholding information is tantamount to acts of dishonesty in relation to his studies, in violation of paragraph (a), Section 2, of the Rules and Regulations on Student Conduct and Discipline, as amended. (Approved by the B.O.R. at its 876th meeting on 02 September 1976, amended at the 923rd B.O.R. meeting on 31 January 1980, and further amended at its 1017th B.O.R. meeting on 08 December 1988)."[5]

On October 27, 1992, after hearing, the SDT[6] rendered a decision in SDT Case No. 91-026 exculpating Nadal of the charge of deliberately withholding in his STFAP application form information that he was maintaining a Toyota Corolla car, but finding him guilty of "wilfully and deliberately withholding information about the income of his mother, who is living abroad, in support of the studies of his brothers Antonio and Federico,[7] which is tantamount to acts of dishonesty in relation to his studies in violation of paragraph [a], Section 2 of the Rules [now covered by paragraph (i), Section 2 of the Rules, as amended 25 June 1992]." As such, the SDT imposed upon Nadal the penalty of expulsion from the University and required him to reimburse all STFAP benefits he had received but if he does not voluntarily make reimbursement, it shall be "effected by the University thru outside legal action."[8]

The SDT decision was thereafter automatically elevated to the Executive Committee of U.P. Diliman for review pursuant to Sec. 20 of the U.P. Rules on Student Conduct and Discipline. On November 26, 1992, the Executive Committee, voting 13:4, affirmed the decision of the SDT; whereupon, Nadal appealed to the Board of Regents (BOR). The appeal was included in the agenda of the BOR meeting on January 25, 1993.[9]

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[5] *Ibid.*, p. 39.

[6] Composed of Fedor E. Santos as Chairman and Emmanuel J. de Guzman and Quintin R. Resurreccion as Members.

[7] Antonio was a dentistry student at the UERM while Federico was an economics student at the De la Salle University (*Rollo*, p. 85).

[8] *Rollo*, pp. 130, 150-151.

[9] *Ibid.*, pp. 153-154.

On January 18, 1993, upon her assumption to the Chairmanship of the Senate Committee on Education, thereby making her automatically a member of the BOR, Senator Leticia Ramos-Shahani wrote the BOR a letter expressing her view that, after a close review of Nadal's case by her legal staff, "it is only fair and just to find Mr. Nadal's appeal meritorious and his arguments worthy of belief. Consequently, he should be allowed to graduate and take the bar examinations this year."[10]

At its January 25, 1993 meeting, the BOR affirmed the decision of the SDT but because "the Board was willing to grant a degree of compassion to the appellant in view of the alleged status and predicament of the mother as an immigrant 'TNT' in the United States," the penalty was modified "from Expulsion to One Year Suspension, effective immediately, plus reimbursement of all benefits received from the STFAP, with legal interest." The BOR also decided against giving Nadal a certification of good moral character.[11]

Nadal forthwith filed a motion for reconsideration of the BOR decision, allegedly against the advice of his counsel.[12] The motion was placed on the agenda of the February 25, 1993 meeting of the BOR. A day before said date, Senator Shahani wrote the BOR another letter requesting that deliberation on Nadal's case be deferred until such time as she could attend a BOR meeting.

On March 15, 1993, the U.P. filed an opposition to Nadal's motion for reconsideration. Thereafter, the BOR held a special meeting to accommodate the request of Regent Shahani with Nadal's case as the sole item on its agenda. Again, Nadal's motion for reconsideration was included in the March 23, 1993 agenda but in view of the absence of Senator Shahani, the decision thereon was deferred.

At the special meeting of the BOR on March 28, 1993 at the Board Room of the Manila Polo Club in Forbes Park, Makati,

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[10] *Ibid.*, p. 155.

[11] Minutes of the 1057th Meeting of the BOR, *Rollo*, pp. 157-158.

[12] Petition, p. 10; *Rollo*, p. 11.

Regent Antonio T. Carpio raised the "material importance" of verifying the truth of Nadal's claim that earlier, he was a beneficiary of a scholarship and financial aid from the Ateneo de Manila University (AdeMU). Learning that the "certification issued by the AdeMU that it had not given Nadal financial aid while he was a student there was made through a telephone call," Regent Carpio declared that there was as yet "no direct evidence in the records to substantiate the charge." According to Carpio, if it should be disclosed that Nadal falsely stated that he received such financial aid, it would be a clear case of gross and material misrepresentation that would even warrant the penalty of expulsion. Hence, he cast a conditional vote that would depend on the verification of Nadal's claim on the matter.

U.P. President and concurrently Regent Jose V. Abueva countered by stating that "a decision should not be anchored solely on one piece of information which he considered irrelevant, and which would ignore the whole pattern of the respondent's dishonesty and deception from 1989 which had been established in the investigation and the reviews." He added that "the respondent's eligibility for his AdeMU high school scholarship and financial assistance from 1979 to 1983 does not in any way establish that he is 'not guilty as charged' before the SDT," since the formal charges against him do not include withholding of information regarding scholarship grants received from other schools.

At the said March 28, 1993 special meeting, the Board decided to go into executive session where the following transpired:

"The Chairman of the Board, together with the President, directed the Secretary to reflect in the minutes of the meeting the following decisions of the Board in executive session, with only the Board members present.

A vote was held by secret ballot on whether Ramon P. Nadal was guilty or not guilty as charged of willful withholding of information in relation to his application for Socialized Tuition and Financial Assistance Program (STFAP) benefits which he filed for Schoolyears 1989-1990 and 1990-1991 which is tantamount to act of dishonesty in relation to his studies, in violation of paragraph (a), Section 2

of the Rules and Regulations on Student Conduct and Discipline, as amended.

The Chairman gave the following results of the Board action during the Executive Session: four (4) voted guilty; three (3) voted not guilty; and three (3) gave conditional votes, pending verification with Father Raymond Holscher of Ateneo de Manila University of Ramon P. Nadal's statement in his STFAP application that he was granted scholarship while he was in high school. Should Ateneo confirm that Nadal had not received financial assistance, then the conditional votes would be considered as guilty, and if otherwise, then not guilty. The Chairman requested the President to make the verification as soon as possible the next day. In answer to a query, the Chairman clarified that once the information was received from Ateneo, there would be no need for another meeting to validate the decision.

The President reiterated his objections to the casting of conditional votes.

The Chairman himself did not vote."[13]

In the morning of March 29, 1993, the AdeMU issued a certification to the effect that Nadal was indeed a recipient of a scholarship grant from 1979 to 1983. That evening, the BOR met again at a special meeting at the Westin Philippine Plaza Hotel. According to Regent Carpio, in executive session, the BOR found Nadal "guilty" as the members voted as follows: six members — guilty, three members — not guilty, and three members abstained.[14] Consequently, the BOR imposed on Nadal the penalties of suspension for one (1) year effective March 29, 1993, non-issuance of any certificate of good moral character during the suspension and/or as long as Nadal has not reimbursed the STFAP benefits he had received with 12% interest per annum from March 30, 1993 and non-issuance of his transcript of records until he has settled his financial obligations with the university.[15]

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[13] Minutes of the 1061st (special) meeting of the BOR, *Rollo*, pp. 184-186.

[14] TSN of the May 25, 1993 hearing at the lower court in SP. Civil Case No. Q-93-15655; *Rollo*, p. 192.

[15] Petition, p. 13; *Rollo*, p. 14.

On March 30, 1993, Nadal wrote President Abueva a handwritten letter stating that "after learning of the latest decision" of the BOR, he had been "intensely concentrating on (his) job so that (he) can earn enough to be able to pay for (his) financial obligations to the University." Alleging that he was "now letting nature take its course," Nadal begged President Abueva not to issue any press release regarding the case.[16]

However, on April 22, 1993, Nadal filed in the Regional Trial Court of Quezon City a petition for *mandamus* with preliminary injunction and prayer for a temporary restraining order against President Abueva, the BOR, Oscar M. Alfonso, Cesar A. Buenaventura, Armand V. Fabella and Olivia C. Caoili. The petition prayed:

"After trial on the merits, judgment be rendered as follows:

a. Making the preliminary injunction permanent;

b. Ordering respondents to uphold and implement their decision rendered on 28 March 1993, exonerating petitioner from all the charges against him, and accordingly dismissing SDT Case No. 91-026;

c. Ordering respondents jointly and severally to pay petitioner litigation expenses of at least ₱150,000.00.

Other just and equitable reliefs are likewise prayed for."[17]

The motion for the issuance of a temporary restraining order and the writ of preliminary injunction was immediately set for hearing. At the May 10, 1993 hearing, the lower court declared that the only issue to be resolved was "whether or not the respondents in Civil Case No. 93-15665 violated (Nadal's) right to due process when it rendered a decision finding Nadal guilty of the charges against him" during the March 29, 1993 meeting. After the respondents had presented their first witness, Dr. Olivia C. Caoili, the lower court asked respondents' counsel whether they were amenable to maintaining the status quo. Said counsel

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[16] *Rollo*, p. 214.

[17] Petition, p. 14; *Rollo*, p. 15.

replied in the negative asserting the University's prerogative to discipline students found guilty of violating its rules of discipline.[18]

On the same day, the lower court[19] issued the following Order:

"The parties were heard on their respective positions on the incident (application for preliminary injunction and prayer for temporary restraining order and opposition thereto). For lack of material time set this for continuation on May 17 and 18, 1993 both at 2:30 p.m.

In the meantime, in order that the proceedings of this case may not be rendered moot and academic, the respondents herein, namely: Jose V. Abueva, President of the University of the Philippines and Vice-Chairman of the U.P. Board of Regents, Oscar M. Alfonso, Cesar A. Buenaventura and Armand V. Fabella, members of the U.P. Board of Regents, Olivia C. Caoili, the officers, agents, representatives, and all persons acting in their behalf, are hereby temporarily restrained from implementing their decision rendered on March 29, 1993 in Administrative SDT Case No. 91-026 entitled University of the *Philippines vs. Ramon P. Nadal*, as reflected in the Minutes of the 1062nd meeting of the Board of Regents, U.P. held at the Romblon Room, Westin Phil. Plaza, Manila, until further order from this Court.

SO ORDERED."

Thereafter, Nadal presented as witnesses Regents Emerenciana Y. Arcellana, Ariel P. Tanangonan, Leticia R. Shahani and Antonio T. Carpio. The University, on the other hand, presented Dr. Olivia Caoili and Nadal himself as a hostile witness. On May 29, 1993, the lower court issued the following Order:

"The petitioner complains that he was not afforded due process when, after the Board Meeting on SDT Case No. 91-026 on March 28, 1993 that resulted in a decision of "NOT GUILTY" in his favor, the Chairman of the U.P. Board of Regents, without notice to the herein petitioner, called another meeting the following day to deliberate on his (the Chairman's) MOTION FOR RECONSIDERATION, which this time resulted in a decision of "GUILTY." While the main issue of violation of due process raised

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[18] *Ibid.*, pp. 15-16 or pp. 16-17.

[19] Presided by Judge Elsie Ligot-Telan.

in the petition pends trial and resolution, the petitioner prays for the issuance of a writ of preliminary injunction prohibiting the respondents from further proceeding with SDT Case No. 91-026 and from suspending the petitioner for one year.

It is a basic requirement in the issuance of the preliminary injunctive writ that there must be a right to be protected. As the issue in the case at bar is due process in the March 29 Board meeting, there is, indeed, a right to be protected for, in administrative proceedings, a respondent's right to due process exists not only at the early stages but also at the final stage thereof.

With the circulation to the members of the Board of Regents, as well as to other UP personnel, of the Minutes of the March 29, 1993 meeting, even after this case had already been filed, the Court is convinced that there now exists a threat to the petitioner (respondent in SDT Case No. 91-026) that the decision of the Board of Regents finally finding him guilty of willfully withholding information material to his application for Socialized Tuition and Financial Assistance Program (STFAP) benefits, will be implemented at any time, especially during the enrollment period, and that this implementation would work injustice to the petitioner as it would delay him in finishing his course, and, consequently, in getting a decent and good paying job. The injury thus caused would be irreparable.

> 'Damages are irreparable within the meaning of the rule where there is no standard by which their amount can be measured with reasonable accuracy. Where the damage is susceptible of mathematical computation, it is not irreparable.' (*Social Security Commission v. Bayona, et al.*, G.R. No. L-13555, May 30, 1962).

IN VIEW OF THE FOREGOING, and so as not to render moot the issues in the instant proceedings, let a writ of preliminary injunction be issued restraining the respondents, their officers, agent(s), representatives, and all persons acting in their behalf, from further proceeding with SDT Case No. 91-026, and from suspending petitioner, upon the latter's filing a bond in the amount of ₱3,000.00.

IT IS SO ORDERED."[20]

Dispensing with the filing of a motion for reconsideration, the petitioners filed the instant petition for *certiorari* and

[20] *Rollo,* p. 241.

prohibition with prayer for the issuance of an injunction or temporary restraining order, raising the following issues: whether or not Nadal was denied due process in the administrative disciplinary proceedings against him, and, whether or not the respondent judge gravely abused her discretion in issuing the May 29, 1993 writ of preliminary injunction thereby preventing the BOR from implementing the one-year suspension penalty it had imposed on Nadal.

Before proceeding with the discussion of the merits of the instant petition, we shall confront a threshold issue raised by private respondent, namely, that Dr. Caoili, not having been authorized by the Board of Regents as a collegial body to file the instant petition, and Dr. Abueva, who verified the petition, not being the "Board of Regents" nor "the University of the Philippines," they are not the real parties in interest who should file the same.[21]

A real party in interest is one "who stands to be benefited or injured by the judgment or the party entitled to the avails of the suit. 'Interest' within the meaning of the rule means material interest, an interest in issue and to be affected by the decree, as distinguished from mere interest in the question involved, or a mere incidental interest."[22] Undoubtedly, the U.P. Board of Regents has an interest to protect inasmuch as what is in issue here is its power to impose disciplinary action against a student who violated the Rules and Regulations on Student Conduct and Discipline by withholding information in connection with his application for STFAP benefits, which information, if disclosed, would have sufficed to disqualify him from receiving the financial assistance he sought. Such dishonesty, if left unpunished, would have the effect of subverting a commendable program into which the University officials had devoted much time and expended precious resources, from the conceptualization

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[21] Comment, pp. 2-3; *Rollo*, pp. 244-245.

[22] *Republic v. Sandiganbayan*, G.R. No. 90667, November 5, 1991, 203 SCRA 310, 324; *Gan Hock v. Court of Appeals*, G.R. No. 70648, May 20, 1991, 197 SCRA 223, 230.

to the implementation stage, to rationalize the socialized scheme of tuition fee payments in order that more students may benefit from the public funds allocated to the State University.

Having specifically named Drs. Abueva and Caoili as respondents in the petition for *mandamus* that he filed below, Nadal is now estopped from questioning their personality to file the instant petition.[23] Moreover, under Sec. 7 of the U.P. Charter (Act 1870) and Sec. 11 of the University Code "all process" against the BOR shall be served on "the president or secretary thereof." It is in accordance with these legal provisions that Dr. Caoili is named as a petitioner. Necessarily, Dr. Abueva, the University President and member of the BOR, has to verify the petition. It is not mandatory, however, that each and every member of the BOR be named petitioners. As the Court has time and again held, an action may be entertained, notwithstanding the failure to include an indispensable party where it appears that the naming of the party would be but a formality.[24]

No longer novel, as this is not a case of first impression, is the issue on the right of an academic institution to refuse admission to a student arising from the imposition upon him of an administrative disciplinary sanction. In our recent decision in *Ateneo de Manila University v. Hon. Ignacio M. Capulong*,[25] wherein certain law students were dismissed for hazing resulting in the death of another, we held that the matter of admission of students is within the ambit of academic freedom and therefore, beyond the province of the courts to decide. Certain fundamental principles bear stressing.

One of the arguments of Nadal in his petition for *mandamus* below was that he was denied due process. To clarify, the so-called lack of due process referred only to the March 29, 1993 meeting of the BOR. As stated by respondent's counsel: "What was conceded by undersigned counsel was that Nadal was afforded

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[23] Annex "T" to Petition; *Rollo*, p. 217.

[24] *Eden v. Ministry of Labor and Employment*, G.R. No. 72145, February 28, 1990, 182 SCRA 840 citing *Baguio v. Rodriguez*, 105 Phil. 1323 (1959).

[25] G.R. No. 99327, May 27, 1993.

due process from the start of the administrative proceeding up to the meeting of the Board of Regents on March 28, 1993."[26]

With respect to the March 29, 1993 meeting, respondent considers the same as "unquestionably void for lack of due process" inasmuch as he was not sent a notice of said meeting. Counsel cites the ruling in *Non v. Dames II*[27] that imposition of sanctions on students requires "observance of procedural due process,"[28] the phrase obviously referring to the sending of notice of the meeting.

Attention is drawn to the disparate factual environments obtaining in *Non v. Dames II* and in the instant case. In the former case, the students were refused admission for having led or participated in student mass actions against the school, thereby posing a collision between constitutionally cherished rights — freedom of expression and academic freedom. In the case at bar, Nadal was suspended for having breached the University's disciplinary rules. In the *Non* case, the Court ruled that the students were not afforded due process for even the refusal to re-enroll them appeared to have been a mere afterthought on the part of the school administrators. Here, Nadal does not dispute the fact that his right to due process was held inviolate until the BOR decided to meet on March 29, 1993 with his case as the sole item on the agenda.

In any event, it is gross error to equate due process in the instant case with the sending of notice of the March 29, 1993 BOR meeting to respondent. University rules do not require the attendance in BOR meetings of individuals whose cases are included as items on the agenda of the Board. This is not exclusive of students whose disciplinary cases have been appealed to the Board of Regents as the final review body. At no time did respondent complain of lack of notice given to him to attend any of the regular and special BOR meetings where his case

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[26] Comment, p. 14; *Rollo*, p. 256.

[27] G.R. No. 89317, May 20, 1990, 185 SCRA 523.

[28] Comment, p. 10; *Rollo*, p. 252.

was up for deliberation. He would make an exception of the March 29, 1993 meeting for it was "supposed to reconsider the decision made on March 28, 1993 exonerating respondent Nadal from all administrative charges against him."[29]

Regent Antonio T. Carpio, in his testimony before the lower court on May 25, 1993 admitted that there was no final verdict at the March 28, 1993 meeting in view of the conditional votes resulting from his assertion that he was "not morally convinced that there was sufficient evidence to make a finding of guilty against Nadal because there was no direct evidence that his mother received income from the United States and this income was sent to the Philippines to support the studies of the children."[30] Two regents shared the view of Regent Carpio, with the following result: four voted guilty, three, not guilty, and three cast conditional votes. The BOR agreed that, upon the suggestion of Regent Carpio, they would still verify from the AdeMU about Nadal's alleged scholarship as a student in said institution. Consequently, no definitive decision was arrived at by the BOR on March 28, 1993. Much less was a verdict of exoneration handed down as averred by respondent.

Regent Carpio testified, with respect to the March 29, 1993 meeting where all twelve members of the BOR were present, that all of them participated in the voting held to reconsider the previous day's decision. He stated: "I remember Regent Arcellana questioning the voting again on the ground that there was already a final decision, but there was a vote taken on whether a motion for reconsideration can be decided by the board, and a majority of the board ruled that the matter can be reconsidered again upon motion of the chairman."[31]

At said meeting, six (6) regents voted to find respondent guilty, three (3) voted that he was not guilty and three (3) abstained. As succinctly announced by Regent Carpio, the final decision

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[29] Comment, p. 10; *Rollo*, p. 252.

[30] TSN, May 25, 1993, p. 3; *Rollo*, p. 189.

[31] TSN, May 25, 1993, p. 16; *Rollo*, p. 294.

was that which was rendered on March 29, 1993 as "no other decision was made by the Board with respect to the same issue."[32]

Counsel for Nadal charged before the lower court that his client was "not given due process in the March 29 meeting because the ground upon which he was again convicted was not the same as the original charge."[33] Obviously, he was referring to the basis of the conditional votes on March 28, *i.e.*, whether or not Nadal was telling the truth when he claimed that he received a scholarship grant from the AdeMU. However, Regent Carpio himself testified that the charge considered was "exactly the same charge" of withholding information on the income of Nadal's mother.[34] It should be stressed that the reason why Regent Carpio requested a verification of Nadal's claim that he was a scholar at the AdeMU was that Regent Carpio was not "morally convinced" yet as to the guilt of Nadal. In other words, he sought additional insights into the character of Nadal through the information that would be obtained from the AdeMU.

In this regard, we find such information to be irrelevant and a mere superfluity. In his July 12, 1991 certification aforementioned, Nadal admitted, although inconsistently, that his mother was a "TNT" who could not find a "stable, regular, well-paying employment" but that she was supporting the education of his brothers with the help of another son. To our mind, this constitutes sufficient admission that Nadal withheld information on the income, however measly and irregular, of his mother. Unlike in criminal cases which require proof beyond reasonable doubt as basis for a judgment, in administrative or quasi-judicial proceedings, only *substantial evidence* is required, that which means more than a mere *scintilla* or relevant evidence as a reasonable mind might accept as adequate to support a conclusion, even if other minds equally reasonable might conceivably opine otherwise.[35] In light of the foregoing

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[32] *Ibid.*, at p. 18 or p. 203.

[33] *Ibid.*, at p. 6 or p. 192.

[34] *Ibid.*, at pp. 8 or 194.

[35] *Lansang v. Garcia*, G.R. No. L-33964, December 11, 1971, 42 SCRA 480.

circumstances, we find that Nadal has been sufficiently proven to have violated his undertaking to divulge all information needed when he applied for the benefits of the STFAP.

Let it not be forgotten that respondent aspires to join the ranks of the professionals who would uphold truth at all costs so that justice may prevail. The sentinels who stand guard at the portals leading to the hallowed Temples of Justice cannot be overzealous in admitting only those who are intellectually and morally fit. In those who exhibit duplicity in their student days, one spots the shady character who is bound to sow the seeds of chicanery in the practice of his profession.

Having reached his senior year, respondent is presumably aware that the bedrock axiom, Canon I, Rule 1.01 of the Code of Professional Responsibility states: "A lawyer shall not engage in unlawful, *dishonest*, immoral or deceitful conduct." Further on, Canon 7, Rule 7.01 provides: "A lawyer shall be answerable for knowingly making a false statement or *suppressing a material fact* in connection with his application for admission to the bar." (Italics supplied for emphasis)

Surely, it is not too early to warn entrants to the noble profession of law that honesty and integrity are requirements no less weighty than hurdling the Bar examinations. This is the reason why a certification of good moral character is one of the documents that must be submitted in applying to take said examination. In fact, a charge of immoral or deceitful conduct on the part of an applicant, when proved, is a ground for disqualifying him.

To revert to the instant case, inasmuch as it has been shown sufficiently that respondent has committed an act of dishonesty in withholding vital information in connection with his application for STFAP benefits, all in blatant violation of the Rules and Regulations on Student Conduct and Discipline of petitioner University, the latter's inherent power and authority to impose disciplinary sanction may be invoked and rightfully exercised.

As a Bohemian proverb puts it: "A school without discipline is like a mill without water." Insofar as the water turns the

mill, so does the school's disciplinary power assure its right to survive and continue operating. In more relevant terms, through its power to impose disciplinary sanctions, an educational institution is able to exercise its academic freedom which is, in the case at bar, the right to suspend and refuse admission to a student who has subverted its authority in the implementation of the critically important STFAP.

At the risk of being repetitious, the matter of admission to a University is encompassed by the right of academic freedom. In *Garcia v. The Faculty Admission Committee, Loyola School of Theology*[36] the Court stated that a school or college which is possessed of the right of academic freedom "decides for itself its aims and objectives and how best to attain them. It is free from outside coercion or interference save possibly when the overriding public welfare calls for some restraint. It has a wide sphere of autonomy certainly extending to the choice of students." Elucidating, in *Ateneo de Manila University v. Hon. Ignacio M. Capulong*,[37] the Court further expounded:

"Since *Garcia v. Loyola School of Theology*, we have consistently upheld the salutary proposition that admission to an institution of higher learning is discretionary upon a school, the same being a privilege on the part of the student rather than a right. While under the Education Act of 1982, students have a right 'to freely choose their field of study, subject to existing curricula and to continue their course therein up to graduation,' such right is subject, as all rights are, to the established academic and disciplinary standards laid down by the academic institution.

'For private schools have the right to establish reasonable rules and regulations for the admission, discipline and promotion of students. This right . . . extends as well to parents . . . as parents are under a social and moral (if not legal) obligation, individually and collectively, to assist and cooperate with the schools.'

Such rules are 'incident to the very object of incorporation and indispensable to the successful management of the college. The rules

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[36] L-40779, November 28, 1975, 68 SCRA 277.

[37] *Supra*.

may include those governing student discipline.' Going a step further, the establishment of rules governing university-student relations, particularly those pertaining to student discipline, may be regarded as vital, if not merely to the smooth and efficient operation of the institution, but to its very survival.

Within memory of the current generation is the eruption of militancy in the academic groves as collectively, the students demanded and plucked for themselves from the panoply of academic freedom their own rights encapsulized under the rubric of 'right to education' forgetting that, in Hohfeldian terms, they have a concomitant duty, and that is, *their duty to learn under the rules laid down by the school.*" (Italics supplied.)

On the second issue presented for adjudication, the Court finds that the lower court gravely abused its discretion in issuing the writ of preliminary injunction of May 29, 1993. The issuance of the said writ was based on the lower court's finding that the implementation of the disciplinary sanction of suspension on Nadal "would work injustice to the petitioner as it would delay him in finishing his course, and consequently, in getting a decent and good paying job." Sadly, such a ruling considers only the situation of Nadal without taking into account the circumstances, clearly of his own making, which led him into such a predicament. More importantly, it has completely disregarded the overriding issue of academic freedom which provides more than ample justification for the imposition of a disciplinary sanction upon an erring student of an institution of higher learning.

From the foregoing arguments, it is clear that the lower court should have restrained itself from assuming jurisdiction over the petition filed by Nadal. *Mandamus* is never issued in doubtful cases, a showing of a clear and certain right on the part of the petitioner being required.[38] It is of no avail against an official or government agency whose duty requires the exercise of discretion or judgment.[39]

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[38] *University of Pangasinan Faculty Union v. NLRC,* G.R. Nos. 64821-23, January 29, 1993.

[39] *Calderon v. Solicitor General,* G.R. Nos. 103752-53, November 25, 1992, 215 SCRA 876, 882.

Hence, by issuing the writ of preliminary injunction, the lower court dared to tread upon legally forbidden grounds. For, by virtue of the writ, the University's exercise of academic freedom was peremptorily curtailed. Moreover, the door was flung wide open for Nadal to do exactly what the decision of the BOR prohibited him from doing and that is, to violate the suspension order by enrolling for the first semester of 1993-1994. It must have been with consternation that the University officials helplessly watched him complete his academic requirements for taking the Bar.[40] In the event that he be allowed to continue with his studies, he would, in effect render moot and academic the disciplinary sanction of suspension legally imposed upon him by the BOR's final decision of March 29, 1993. What is to prevent other aspirants for STFAP scholarships from misleading the University authorities by misrepresenting certain facts or as in instant case, withholding vital information and stating downright falsehoods, in their application forms with impunity? Not only would this undermine the authority of the U.P. to discipline its students who violate the rules and regulations of the institution but, more importantly, subvert the very concept and lofty intent to give financial assistance to poor but deserving students through the STFAP which, incidentally, has not ceased refining and modifying its operations.

WHEREFORE, the instant petition is *GRANTED* and the lower court is hereby ordered to *DISMISS* the petition for *mandamus*.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Padilla, Bidin, Griño-Aquino, Regalado, Davide, Jr., Nocon, Bellosillo, Melo, Quiason, Puno, and *Vitug, JJ.,* concur.

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[40] Reply, pp. 17-18; *Rollo*, pp. 422-423.

FIRST DIVISION

[G.R. No. 93435. October 22, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **GREGORIO MADRIDANO *y* TACBAO *Alias* Tata and RONNIE DAG-ON *y* LAGHAY,** *accused-appellant.*

SYLLABUS

1. **REMEDIAL LAW; EVIDENCE; ALIBI; CANNOT PREVAIL OVER THE POSITIVE IDENTIFICATION OF THE ACCUSED. —** Alibi is especially weak in the face of the positive identification of the accused. In the case at bar, there was such identification, both of Madridano and Dag-on, by the victim herself. Perlita recognized their voices; she had heard and had even talked to them before the incident. Although they were initially masked, the masks, which consisted only of t-shirts wrapped around their faces, fell off during the struggle and Perlita could see their faces in the bright moonlight. No less importantly, Perlita related that after the rapes, when they took the two girls back to their house, Madridano and Dag-on were no longer masked. Hence, Perlita relied not only on her identification of their voices, which the appellant says she could not have remembered from their alleged casual conversations, but upon her recollection of the face of the man who raped her as the mask fell off during their struggle. Madridano's face was thrust on hers. He was on top of her. She could not have failed to see the man who was pushing her thighs apart to lay wide open the threatened target. How could she not remember that terrible face that was leering at her as he forced his lechery into her? How could she not remember the lust in that face, the lascivious greed that fed the wicked craving in his loins when, even as she lay pinioned and exposed, he impaled and defiled her?

2. **CRIMINAL LAW; RAPE; A FRESHLY BROKEN HYMEN, NOT AN ESSENTIAL ELEMENT THEREOF. —** The defense stresses that the medical report shows no signs of violence on Perlita's body and not even *spermatozoa* in her vagina, let alone the fact that the lacerations in her hymen are old and healed. Perlita testified, however, that Madridano threatened her with a hunting knife he was holding, and in

any case her arms and head were restrained by Dag-on as Madridano raped her. The doctor declared that the scratches on her back could have been cause while she struggle on the ground. According to Perlita, she felt a sticky substance in her vagina after the rapes but, as Dr. Gamboa surmised, this could have been washed away when she cleaned herself. As for the healed lacerations, there was no allegation from the prosecution that the victim was a virgin at the time she was raped, only that she was raped. Rape does not necessarily mean defloration. A freshly broken hymen is not an essential element of rape. The fact that the lacerations are old and healed — which could have been, according to the doctor, "two weeks old, one month old, one year old" - does not disprove that Perlita was raped on March 2, 1989.

3. POLITICAL LAW; CONSTITUTIONAL LAW; BILL OF RIGHTS; PRESUMPTION OF INNOCENCE; CANNOT PROSPER WHEN THERE IS OVERWHELMING EVIDENCE AGAINST THE ACCUSED. — We dismiss the defense argument that the appellant should be exonerated because his guilt has not been proved beyond reasonable doubt. This Court would be the first to insist on the application to him of the constitutional presumption of innocence as this is one of the great guarantees of the Bill of Rights to the accused. But the evidence against the appellant is overwhelming. He has been positively identified by the victim, who had no motive for testifying falsely against him. By contrast, his alibi is unconvincing, as the trial court and this Court have found. Even with the presumption of innocence in his favor, the evidence of the prosecution, being heavier, must tip the scales of justice against him.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Romeo B. Igot Law Offices for accused-appellants.

D E C I S I O N

CRUZ, *J.*:

They first came to rob, then returned to rape. The robbery is under a different information and court; we do not deal with

it here. What concerns us is the alleged rape, or rapes, committed by the herein appellant, who continues to deny them.

There were two of them originally accused and eventually convicted. Notices of appeal were filed on their behalf by Atty. Leo G. Rey of the Public Attorney's Office, Department of Justice, who was told to file their brief. He did not. Required to show cause why he should not be disciplined for his disobedience, he explained that he had filed the notice of appeal without consulting the two convicts who, upon a later interview with them, confessed their guilt. He therefore asked to be relieved as their counsel.[1]

The two convicts were required by the Court to comment on this explanation. Only Gregorio Madridano replied, denying that he had admitted his guilt and asking that he be permitted to continue his appeal with the assistance of a new lawyer.[2] His plea was granted. Atty. Romeo B. Igot was appointed by the Court as his counsel *de oficio* and filed the appellant's brief in due time.[3] The other convict, Ronnie Dag-on, did not bother to comment and is hereby deemed not to have appealed at all. The judgment of the trial court is final and executory as to him. The decision is here being reviewed only as it is challenged by appellant Madridano.

There were four witnesses who testified for the prosecution.[4] Their collective testimonies, principally that of Perlita Dag-on, the alleged victim, tended to show that she had indeed been raped twice by Madridano with the assistance of Ronnie Dag-on.

The incident happened on March 2, 1989, at about nine o'clock in the evening, at *barangay* Old Nongnongan, San Carlos, Bukidnon. As related by Perlita, three men, including Madridano and Dag-on, robbed her Aunt Luzmin Dag-on that same night and then left. After a few minutes, they came back to her house

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[1] Explanation, *Rollo*, pp. 20-21.

[2] *Rollo*, pp. 20-21.

[3] *Ibid*.

[4] Perlita Dag-on, her aunt Luzmin Dag-on, the victim's father Marcelino Dag-on and Dr. Carlos Ma. Gamboa; Decision, p. 48.

and demanded that Perlita come down. Afraid for their lives, Perlita obeyed, but accompanied by Luzmin and her six-year old niece, Richelle. The men took them outside the house into a clearing, where the third man, Efren Ganaba, detained Luzmin.[5] The rest of the group proceeded farther down the field. Madridano tripped Perlita, making her stumble, whereupon he fell upon her and was able to undress her. She struggled against him, however, so he called on Dag-on to help him subdue her. Dag-on came to his aid and pulled up Perlita's arms as she lay on the ground and locked her head with his elbow. Perlita continued to resist as best she could, but in the end Madridano succeeded in penetrating her. That was the first time.[6] A few minutes later, his lust not yet sated, Madridano was upon her again, with Dag-on still helping, and she had to suffer the same outrage all over again.[7] Then they released her and, together with the child Richelle, who had watched everything in tears and terror, took her back home and left.[8]

Perlita and Richelle stayed outside until morning when they found their Aunt Luzmin walking in the field. With the help of neighbors, they took her to the hospital for treatment of her injuries. Perlita went to her father's house to tell him her Aunt Luzmin had been robbed and hurt. It was only much later, after her father had visited her aunt, that she summoned enough courage to tell him that she had been abused by Madridano with Dag-on's help.[9] He immediately reported the matter to the authorities. Perlita was subjected that same day to medical examination by Dr. Carlos Gamboa, who made the following findings.[10]

Diagnosis/Findings: P.E. — No sign of external injury except at the lateral portion of left scapular region. Echymatic with superficial linear abrasions, about 2 inches in length.

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[5] TSN, November 21, 1989, pp. 4-6.

[6] *Ibid*., pp. 6-9.

[7] *Id*., p. 11.

[8] *Id*., p. 12.

[9] *Id*., pp. 13-15.

[10] Exhibit A, *Rollo*, p. 7.

Perenial and vaginal exam. Hymen — presence of old, healed laceration of 3:00, 5:00, 7:00 and 11:00 o'clock. Admits one finger easily.

Laboratory Exam: Gram staining for vaginal smear for the presence of *spermatozoa*.

Slide I — No *spermatozoa* seen.

Slide II — No *spermatozoa* seen.

Madridano's defense was denial and alibi. He said he could not have committed the rapes because he was in *barangay* Santo, Ritaotao, in the province of Bukidnon, working in his Uncle Marcelo Bulatao's farm. He had been there since February 25, 1989, until his arrest on May 24, 1989, for the rape of Perlita, whom he did not know before that date.[11] He was corroborated by his uncle and Anastacio Sulatan, a neighbor.[12]

Ronnie also pleaded alibi, alleging that he was in Kalinan, Davao, from February 5, 1989, until May 22, 1989, the date he was arrested.[13] He had no corroboration. He admitted Perlita was his cousin and that he had several conversations with her earlier, before leaving for Davao.[14] He also said he stayed in his Aunt Luzmin's house for two months and that he knew Madridano.[15]

Rejecting their defense, Judge Vivencio P. Estrada of the Regional Trial Court of Malaybalay, Bukidnon, found them both guilty of rape and sentenced them to suffer the penalty of *reclusion perpetua*, to indemnify Perlita Dag-on in the amount of ₱15,000.00, and to pay the costs.[16]

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[11] TSN, February 6, 1990, pp. 31-36.

[12] *Ibid*., pp. 46-53.

[13] *Id*., pp. 39-40.

[14] *Id*., p. 43.

[15] *Id*., p. 40; 43.

[16] Decision, *Rollo*, pp. 47-50.

Madridano now claims this was all a mistake and that he should never have been convicted at all.

We do not think so. The mistake was his. He should never have raped Perlita at all.

Alibi is especially weak in the face of the positive identification of the accused. In the case at bar, there was such identification, both of Madridano and Dag-on, by the victim herself. Perlita recognized their voices; she had heard and had even talked to them before the incident.[17] Although they were initially masked, the masks, which consisted only of t-shirts wrapped around their faces, fell off during the struggle and Perlita could see their faces in the bright moonlight.[18] No less importantly, Perlita related that after the rapes, when they took the two girls back to their house, Madridano and Dag-on were no longer masked.[19] Hence, Perlita relied not only on her identification of their voices, which the appellant says she could not have remembered from their alleged casual conversations, but upon her recollection of the face of the man who raped her as the mask fell off during their struggle.

Madridano's face was thrust on hers. He was on top of her. She could not have failed to see the man who was pushing her thighs apart to lay wide open the threatened target. How could she not remember that terrible face that was leering at her as he forced his lechery into her? How could she not remember the lust in that face, the lascivious greed that fed the wicked craving in his loins when, even as she lay pinioned and exposed, he impaled and defiled her?

The defense stresses that the medical report shows no signs of violence on Perlita's body and not even *spermatozoa* in her vagina, let alone the fact that the lacerations in her hymen are old and healed.

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[17] TSN, November 21, 1989, p. 10.

[18] *Ibid.*, pp. 9-10; TSN, January 5, 1990, p. 18.

[19] *Id.*, pp. 12-13.

Perlita testified, however, that Madridano threatened her with a hunting knife he was holding,[20] and in any case her arms and head were restrained by Dag-on as Madridano raped her. The doctor declared that the scratches on her back could have been caused while she struggled on the ground.[21] According to Perlita, she felt a sticky substance in her vagina after the rapes[22] but, as Dr. Gamboa surmised, this could have been washed away when she cleaned herself.[23] As for the healed lacerations, there was no allegation from the prosecution that the victim was a virgin at the time she was raped, only that she was raped. Rape does not necessarily mean defloration.[24] A freshly broken hymen is not an essential element of rape. The fact that the lacerations are old and healed — which could have been, according to the doctor, "two weeks old, one month old, one year old"[25] — does not disprove that Perlita was raped on March 2, 1989.

We dismiss the defense argument that the appellant should be exonerated because his guilt has not been proved beyond reasonable doubt. This Court would be the first to insist on the application to him of the constitutional presumption of innocence as this is one of the great guarantees of the Bill of Rights to the accused. But the evidence against the appellant is overwhelming. He has been positively identified by the victim, who had no motive for testifying falsely against him. By contrast, his alibi is unconvincing, as the trial court and this Court have found. Even with the presumption of innocence in his favor, the evidence of the prosecution, being heavier, must tip the scales of justice against him.

The Court notes that although it has been proved that Gregorio raped Perlita twice that same night, the information charged

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[20] *Id*., p. 7.

[21] TSN, January 5, 1990, pp. 3-4.

[22] TSN, November 21, 1989, p. 13.

[23] TSN, January 5, 1990, p. 6.

[24] *People v. Banayo*, 195 SCRA 543; *People v. Bacani*, 181 SCRA 393.

[25] TSN, January 5, 1990, p. 4; p. 7.

him with only one rape. Under the rule he does not deserve, he cannot be punished in this case for the second rape.[26] The Court is also revolted by the fact that Gregorio raped Perlita in the presence of the six-year old Richelle, who did not have to be exposed to the obscene incident. Unfortunately, this circumstance also cannot increase the penalty imposed on him, which is already the maximum prescribed by law.

The *phallus* is not a battering ram breaking down the gates of chastity. Like the gallant lover, it may enter the lady's chamber only upon invitation and consent.

WHEREFORE, the appealed judgment is *AFFIRMED* except for the civil indemnity, which is increased to ₱30,000.00. It is so ordered.

Griño-Aquino, Davide, Jr., Bellosillo, and *Quiason, JJ.*, concur.

THIRD DIVISION

[G.R. No. 97929. October 22, 1993]

LEONIDA LANTICAN and JOSELITO DE LA PEÑA, *petitioners, vs.* **THE HONORABLE COURT OF APPEALS, SIXTH DIVISION, DURANTE L. UBEDA, and GAUDENCIA MERCADO *VDA. DE* DE LA PEÑA**, *respondents.*

SYLLABUS

1. POLITICAL LAW; ADMINISTRATIVE LAW; DEPARTMENT OF AGRARIAN REFORM; ESTOPPEL IN JURISDICTION,

[26] *People v. Robles,* 170 SCRA 557; *People v. Corral,* 157 SCRA 673; *Mabilde, Jr. v. Jabson,* 68 SCRA 456.

APPLIED. — We affirmed the ruling of the DAR and its jurisdiction to issue the order. Noteworthy is our statement finding "that the petitioners themselves invoked the jurisdiction for the DAR in their two motions for reconsideration where they asked for affirmative relief." Hence they are now estopped from assailing such lack of jurisdiction. Our ruling in *Abalos v. Court of Appeals*, still stands, to wit: "Once a party to a case submits to the jurisdiction of the Court and participates in the trial on the merits of the case, he cannot thereafter, upon a judgment unfavorable to his cause, take a total turn about and say that the condition precedent of compliance with P.D. 1508 has not been met. One cannot have the cake and eat it, too."

2. REMEDIAL LAW; JUDGMENTS; *RES JUDICATA;* APPLIED. — It is too late in the day for them to impugn the jurisdiction of the DAR. It should have been seasonably raised in the first petition for *certiorari,* or in a motion for reconsideration of the resolution rendered by this Court. Without taking any countervailing moves, they simply allowed the decision to become final and executory. What they did was to file another action in the trial court to assail once again the jurisdiction of the DAR and to prevent it from enforcing its order. We ruled, thus: "Verily, there can be no dispute on the well-entrenched rule that every litigation must come to an end. Access to the Court is guaranteed. But there must be a limit to it. Once a right has been adjudicated in a valid final judgment, one should not be granted an unbridled license to come back for another try even at the risk of legal infirmities to errors that the judgment may contain. In the same breath, the prevailing party x x x ought not to be harassed by subsequent suits. For, if endless litigations were to be encouraged, unscrupulous litigants will multiply in number to the detriment of the administration of justice." Considering the foregoing, we affirm the decision of the Court of Appeals that the action of petitioners has been barred by *res judicata.*

APPEARANCES OF COUNSEL

Delos Reyes, Bonifacio, Delos Reyes for petitioners.

Balagtas P. Ilagan for Gaudencia Mercado *Vda. de* de la Peña.

D E C I S I O N

ROMERO, *J.*:

Petitioners Leonida Lantican and Joselito de la Peña filed this petition for review on *certiorari* of a decision[1] of the Court of Appeals affirming the order of the Regional Trial Court dismissing the petition for prohibition filed by herein petitioners.

The antecedent facts of the case are as follows:

On February 25, 1986, Marcos de la Peña died leaving behind him his wife, private respondent Gaudencia Mercado and daughter Camila de la Peña, on the one hand, and his common law wife petitioner Leonida Lantican, and children Joselito (co-petitioner), Abella, Cornelio, Diomedes and Simeon, all surnamed de la Peña, on the other. At the time of his death, he was a tenant on a riceland owned by one Rufina Lim and was about to be issued a Certificate of Land Transfer. Rufina Lim chose Gaudencia Mercado as the successor to the land, which choice was opposed by petitioners. The controversy as to who had a better right over the land was brought by Camila de la Peña before the Agrarian Reform District Office which recommended that the disputants divide the land equally between them. However, the Department of Agrarian Reform through Minister Heherson Alvarez, in an order dated May 13, 1986, ruled that Gaudencia Mercado had the sole right to be the beneficiary of the Certificate of Land Transfer.

To enforce the above order, private respondent Gaudencia Mercado and Rufina Lim filed Civil Case No. 987-86-C before Branch 36 of the Regional Trial Court of Laguna.

On the other hand, Leonida Lantican and Joselito de la Peña filed a motion to set aside the above order on the ground that, not only is it contrary to the actual facts relative to the land in

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[1] CA-G.R. SP No. 22024, March 21, 1991; penned by Justice Filemon H. Mendoza, concurred in by Justices Jose C. Campos, Jr. and Venancio D. Aldecoa, Jr.

question but it is not supported by the evidence and the applicable law. Moreover, there seemed to be undue and startling haste in the implementation of said order which would, in effect, violate legal and established rules of procedure. This motion was dismissed for lack of merit on February 13, 1987.

On March 16, 1987, petitioners filed a motion for reconsideration of the above order on the ground that the Department of Agrarian Reform had no jurisdiction over the case. On January 8, 1988, the DAR issued an order denying the motion for lack of merit.

Recourse was subsequently had to the Office of the President which rendered a decision affirming the DAR orders on May 20, 1988 through Deputy Executive Secretary Magdangal Elma.

Thereafter, petitioners filed before the Supreme Court a petition for *certiorari* and prohibition docketed as G.R. No. 83925, entitled *Leonida Lantican, et al. v. The Honorable Magdangal B. Elma, et al.* raising the following issue:

"Whether or not it is the Regional Trial Courts taking over the functions of the defunct Courts of Agrarian Reform that has jurisdiction over the subject matter of the present case and whether or not petitioners are in estoppel in not invoking the issue of jurisdiction in the first instance, *i.e.*, when they filed their motion to set aside the May 13, 1986 order."[2]

On January 30, 1989, the Supreme Court issued a resolution dismissing the petition, hereunder quoted to wit:

"The initial issue in this case was — who should be substituted for a tenant farmer as beneficiary of a certificate of land transfer (CTA) in the event of his death — his legitimate widow from whom he was separated or the 'common law wife' with whom he lived while farming the land?

The petitioners question the jurisdiction of the Department of Agrarian Reform (DAR) to resolve this issue. The public respondents point out that P.D. 946 vests exclusive authority in the DAR to ascertain who should be issued CTAs; that 'surviving spouse' under

[2] *Rollo*, p. 8.

Republic Act 3844 means the legitimate spouse and not a 'common law wife', and that the petitioners themselves invoked the jurisdiction of DAR in their two motions for reconsideration where they asked for affirmative relief. Moreover, the decision of an administrative agency can be elevated for judicial review if a proper case is filed.

CONSIDERING the failure of the petitioners to show that the public respondents acted with grave abuse of discretion — the COURT RESOLVED to DISMISS the petition for *certiorari* and prohibition."[3]

On the basis of the statement: "Moreover, the decision of an administrative agency can be elevated for judicial review if a proper case is filed," petitioners filed before the Regional Trial Court of Laguna SP Case No. 1364-89 for prohibition with application for preliminary injunction to restrain the enforcement of the May 13, 1986 order of the DAR and for its annulment. Upon its dismissal by the RTC, it was appealed to the Court of Appeals which affirmed the same. The pertinent portion of the decision is hereby quoted, to wit:

"Nonetheless, We are affirming the dismissal of the petition for prohibition filed by appellant in the lower court on the ground that the same is barred by prior judgment. All the essential elements of *res judicata* are present in the instant case. It is of record that appellants filed a petition for *certiorari* and *prohibition* against the DAR officials and herein defendant appellee Mercado with the Supreme Court x x x questioning the jurisdiction of the DAR to resolve the issue as to who should be substituted for a tenant farmer as beneficiary of the certificate of land transfer in the event of his death — his legitimate widow from whom he was separated or the 'common law wife' with whom he lived while farming the land? The Supreme Court resolved to dismiss the said petition and this judgment has already become final and executory on February 23, 1989 x x x while the instant case was pending before the lower court. In view of the fact that the instant case has already been the subject of a final judgment of the Supreme Court in a similar petition between the same parties involving the same cause of action, the instant petition for prohibition must necessarily be dismissed."[4]

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[3] *Leonida Lantican, et al. v. Hon. Magdangal B. Elma, et al.*, G.R. No. 83925, January 30, 1989.

[4] *Rollo*, p. 28.

Petitioners now come to this Court to assail once again the jurisdiction of the DAR, arguing that there can be no *res judicata* because one of its elements, *i.e.*, jurisdiction of the tribunal or agency to decide the case, was lacking.

We find no merit in this petition.

The issue regarding the jurisdiction of the DAR has long been settled by this Court in G.R. No. 83925.

It will be recalled that the issue raised by petitioners in G.R. No. 83925 was the jurisdiction of the Department of Agrarian Reform over the subject matter of the controversy. This Court resolved to dismiss the petition for failure of petitioners to prove grave abuse of discretion on the part of public respondents. In effect, we affirmed the ruling of the DAR and its jurisdiction to issue the order. Noteworthy is our statement finding "that the petitioners themselves invoked the jurisdiction of the DAR in their two motions for reconsideration where they asked for affirmative relief." Hence they are now estopped from assailing such lack of jurisdiction.[5] Our ruling in *Abalos v. Court of Appeals*,[6] still stands, to wit:

> "Once a party to a case submits to the jurisdiction of the Court and participates in the trial on the merits of the case, he cannot thereafter, upon a judgment unfavorable to his cause, take a total turn about and say that the condition precedent of compliance with P.D. 1508 has not been met. One cannot have the cake and eat it, too."

In this petition, however, petitioners assert for the first time that they could not be said to have actively participated in the proceedings before the DAR because the one who filed the Motion to Set Aside the May 13, 1986 order was not a lawyer. It is too late in the day for them to impugn the jurisdiction of the DAR. It should have been seasonably raised in the first petition for *certiorari*, or in a motion for reconsideration of the resolution rendered by this Court. Without taking any countervailing moves,

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[5] See *Salen v. Dinglasan*, G.R. No. 59082, June 28, 1991, 198 SCRA 623.

[6] G.R. No. 94436, April 30, 1991, 196 SCRA 596.

they simply allowed the decision to become final and executory. What they did was to file another action in the trial court to assail once again the jurisdiction of the DAR and to prevent it from enforcing its order. We ruled, thus:

> "Verily, there can be no dispute on the well-entrenched rule that every litigation must come to an end. Access to the Court is guaranteed. But there must be a limit to it. Once a right has been adjudicated in a valid final judgment, one should not be granted an unbridled license to come back for another try even at the risk of legal infirmities to errors that the judgment may contain.
>
> In the same breath, the prevailing party . . . ought not to be harassed by subsequent suits. For, if endless litigations were to be encouraged, unscrupulous litigants will multiply in number to the detriment of the administration of justice."[7]

Considering the foregoing, we affirm the decision of the Court of Appeals that the action of petitioners has been barred by *res judicata*.

In filing this petition, petitioners desperately tried to circumvent our final resolution and delay the execution of the decision of the DAR to the prejudice of private respondents. We likewise frown upon the filing of the petition for prohibition with the RTC to enjoin the execution of the DAR order after this Court has pronounced that the DAR had not gravely abused its discretion in issuing the same. It is tantamount to asking a lower court to review the decision of the Highest Tribunal of the land. We cannot sanction such procedure.

WHEREFORE, the assailed decision is hereby *AFFIRMED* and this petition *DENIED* for lack of merit. This decision is immediately executory. With costs against petitioners.

SO ORDERED.

Feliciano, Bidin, Melo, and *Vitug, JJ.*, concur.

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[7] *Shell Company of the Philippines v. Presiding Judge*, G.R. No. 64149, June 19, 1991, 198 SCRA 254.

THIRD DIVISION

[G.R. No. 104498. October 22, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **SATURNINO REMOLLO *y* RETES,** *accused-appellant.*

SYLLABUS

1. **REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; ABSENCE OF CIRCUMSTANCES THAT DISCREDIT. —** The trial court accepted the statements of Angelito Remollo and Eddie Singco as straightforward and candid. Appellant Remollo has failed to demonstrate that the two (2) young witnesses were moved by any grudge or evil motive to testify falsely against him. There is no evidence to suggest that the two (2) witnesses, nephews of appellant who lived in the same house with them, would fabricate a story falsely implicating their uncle in a terrible crime. In view of appellant's failure to show that the two (2) young witnesses were somehow disqualified as witnesses, or were moved by some improper motive to speak falsely against their uncle-appellant, their statements are entitled to full faith and credence.

2. **ID.; ID.; EXTRAJUDICIAL CONFESSION; VOLUNTARINESS SHOWN IN CASE AT BAR. —** Appellant Remollo's written confession was taken down and signed in the presence not only of the investigating police officers, but also in the presence of his sister Yolanda Remollo; his own mother Lucina Remollo; and his two (2) young nephews, Angelito Remollo and Eddie Singco; as well as Atty. Renacia. The very number of persons (all non-police) observing the course of the investigation offered assurance that "police brutality" would be very unlikely. Had his confession indeed been extracted from him by coercion, violence and intimidation, appellant could have presented his own mother and sister to testify to such coercion; appellant did not. Atty. Renancia also testified that appellant had answered the questions put to him without being threatened or intimidated. The foregoing circumstances lead us to agree with the trial court that the extrajudicial confession had been given voluntarily by appellant Remollo.

3. ID.; ID.; CIRCUMSTANCIAL EVIDENCE; SUFFICIENT FOR CONVICTION IN CASE AT BAR. — We believe that, independently of that confession, the circumstantial evidence made of record in this case is quite sufficient to support a finding of guilt beyond reasonable doubt. The multiple circumstances required under Rule 133, Section 4 of the Rules of Court are the following: (1) At the house of his own parents, during a drinking party, appellant got the victim Maryjin Superal to go with him to the kitchen to east. (2) Appellant Remollo was the last person seen with the victim alive, by Maryjin's father and appellant's mother and brothers. (3) Appellant Remollo went down his parent's house on the same night, with the 6-year old victim Maryjin following him. Appellant spontaneously told his nephews that he had killed Maryjin and simultaneously threatened them with harm if they reveal that secret to anyone. Most notably, appellant Remollo at the police station during his custodial investigation, voluntarily admitted to his mother, who was then in tears, that he had killed the child Maryjin. This admission was made in the presence of Police Sgt. Aniño, Atty. Renacia, appellant's sister Yolanda Remollo and his two (2) young nephews.

4. ID.; ALIBI; PHYSICAL POSSIBILITY TO BE AT THE SCENE OF THE CRIME AT THE TIME OF COMMISSION. — Appellant's principal defense on the merits was that of alibi. This Court has in innumerable cases ruled that for the defense of alibi to prosper, the accused must not only prove that he was somewhere else during the commission of the crime; he must also prove that it was impossible for him to be at the scene of the crime during its commission. Remollo testified that he was attending a dance in San Jose when the rape and killing took place. The *situs* of the dance was, however, only about 15 minutes form appellant's house by foot by appellant's own testimony. Appellant also failed to present his alleged companions — Rey Boy Ramirez and Loloy Bajamunde — to corroborate his alibi. At the same time, appellant himself testified that he took a bath in a river which is only 500 arm-lengths from the spot where Maryjin's body was found the next morning and only about 200 arm-lengths from appellant's own house. Appellant's alibi simply cannot stand.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Public Attorney's Office for accused-appellant.

D E C I S I O N

FELICIANO, *J.*:

Saturnino Remollo *y* Retes appeals from a decision of the Regional Trial Court of Dumaguete City, finding him guilty of the crime of rape with homicide.

Appellant was charged under the following information:

"That at about past seven o'clock in the evening of April 27, 1991, at *Barangay* Cancawas, San Jose, Negros Oriental, Philippines, and within the jurisdiction of this Honorable Court, the above-named accused, by means of force and intimidation and by the fact that Maryjin Superal was only six years old, did then and there willfully, unlawfully and feloniously succeed in having sexual intercourse with said child, Maryjin Superal, against her will.

That by reason or on occasion of rape, a homicide was committed on the child, Maryjin Superal, by said accused.

Contrary to paragraphs 1 and 3 of Article 335 of the Revised Penal Code."[1]

At arraignment, appellant Remollo entered a plea of not guilty. Trial ensued and judgment was rendered on 17 January 1992 as follows:

"WHEREFORE, premises considered, the Court finds accused Saturnino Remollo *y* Retes guilty of the complex crime of Rape with Homicide and hereby sentences him to suffer the indivisible penalty of *RECLUSION PERPETUA* with the attendant accessory penalties under the law.

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[1] Information, p. 1; Records, p. 3.

The accused is hereby given full credit [for] his preventive imprisonment from the time of his arrest until the promulgation of this judgment.

The accused is hereby ordered to pay the heirs of the deceased victim Maryjin Superal death indemnity at ₱50,000.00; exemplary damages at ₱20,000.00; moral damages at ₱50,000.00; plus costs of the proceedings.

IT IS SO ORDERED."[2]

The prosecution's version of the relevant facts may be outlined as follows:

On the evening of 27 April 1991, Gabriel Superal left his home in Barrio Cancawas, San Jose, Negros Oriental, to go to the house of Santos and Lucina Remollo, appellant's parents, for a drinking party. He brought along his six year old daughter, Maryjin Superal, not knowing that this would be the last night he would see her alive.

At the house of her grandparents, Maryjin was seated beside her father while the latter was drinking with Manuel and Gabriel Remollo, two brothers of appellant. After a while, appellant Saturnino Remollo went near the group, pulled Maryjin and forced her to go with him to the kitchen to eat. Gabriel Superal thought nothing of this because appellant Remollo was an uncle of Maryjin.

At about 7:30 p.m., Gabriel Superal went home alone, believing that his daughter had gone home ahead of him. Upon reaching his house, his wife told him that Maryjin had not yet arrived. Gabriel Superal then left home to search for his daughter until midnight without success. He resumed the search at 4:00 a.m. the following day.

At around 8:00 a.m. on 28 April 1991, Linda Catilok found the dead body of Maryjin near a big blackberry (*lomboy*) tree on the slope of a hill, about one hundred (100) meters away from the appellant's house.[3]

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[2] RTC Decision, p. 12; *Rollo*, p. 29.

[3] TSN, Gabriel Superal Testifying, 31 July 1991, pp. 3-4; Records, pp. 188-189.

A *post-mortem* examination was conducted by Municipal Health Officer Dra. Bienvenida Palong-Palong at 10:30 a.m. the same day the body was discovered. The examination disclosed the following:

"The cadaver was dead for twelve (12) hours at the time of the examination and it was at the stage of *rigor mortis* which sets in three (3) to six (6) hours after death. The cadaver was very rigid. The victim was wearing a polka dot dress with white background and black dots. The dress was drawn at the back of the stomach and the victim had no underwear. The victim was lying in a prone position and dried banana leaves were tied around the neck with the tongue protruding from the mouth. The victim was strangled as evidence (*sic*) by the ligature around the neck. The victim sustained physical injuries consisting of abrasions on the upper left and right thighs, ligature marks around the neck, *hematoma* at the left side of the hip. The cause of death was *asphyxia* as a result of strangulation. The internal examination revealed that the vaginal orifice admits one finger easily and the hymen was lacerated. Whitish fluid was found in the vagina which was positive for *spermatozoa*. The laceration was due to the penetration of a hard object which could be a penis because of the presence of *spermatozoa*. The doctor considered the orifice abnormal because even in adults, the finger is hard to insert. There possibly was a struggle during the penetration because when something penetrates the hymen, the natural reaction is to oppose the force and the victim was only six (6) years old."[4]

Angelito Remollo and Eddie Singco, ten and thirteen years old, respectively, nephews of appellant Remollo were, according to their subsequent testimony before the trial court, in the evening of 27 April 1991, awakened by appellant Remollo who asked them for soap because he wanted to bathe. Appellant then informed the boys that he had slain Maryjin Superal and warned them not to tell anybody[5] or else they too would be killed.[6]

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[4] RTC Decision, p. 3; *Rollo*, p. 135.

[5] TSN (Eddie Singco), 29 July 1991, p. 10; Records, p. 178.

[6] TSN, (Angelito Remollo) 29 July 1991, p. 11; Records, p. 158.

Appellant Remollo, upon the other hand, offered his own version of the incident, stressing that he could not have been at the scene of the crime when it happened:

At 5:00 in the afternoon of 27 April 1991, Remollo took a bath in a river which was about 200 arm-lengths from his house. Later, he went with Rey Boy Ramirez and Loly Bajamunde to a dance in San Jose, Negros Oriental arriving there at about 6:15 p.m. Before appellant left their house at 6:00 that night, he saw Maryjin Superal and her father there. Remollo stayed at the dancing place until 4:00 a.m. the following morning, leaving the hall only twice that night with Rey Boy Ramirez to relieve himself. Later, appellant went home with the same companions. At home, he found everybody already awake, taking their morning coffee. Eddie Singco and Angelito Remollo were out fetching water so, he did not have a chance to talk to them. Rey Boy Ramirez stayed with him in his house until 7:00 a.m. at which time they were fetched by their employer who brought them to Bais City to cut sugarcane. From there, he and his brother Manuel were taken by the police to the municipal building in San Jose, Negros Oriental on 28 April 1991.[7]

Appellant Remollo contends that the trial court committed serious error in:

(a) according weight and credence to the testimonies of the prosecution witnesses Angelito Remollo and Eddie Singco;

(b) admitting in evidence the extrajudicial confession (Exhibit "G") of appellant which had been obtained in violation of his constitutional rights; and

(c) convicting appellant of the crime charged despite failure of the prosecution to prove his guilt beyond reasonable doubt.[8]

In respect of the first assignment of error, appellant argues that the testimony of Angelito Remollo and Eddie Singco was

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[7] RTC Decision, pp. 8-10; *Rollo*, pp. 140-142. See also TSN, (Saturnino Remollo) 23 October 1991, pp. 5-46; Records, pp. 288-329.

[8] Brief for the Appellant, pp. 12-15 & 22; *Rollo*, pp. 63-66 and 73.

improbable because it was contrary to human experience that one who had just committed a grievous crime would reveal such crime casually to anyone, much less to children, especially children who were related by blood to the victim.[9]

The familiar rule is that the assessment by a trial court of the sincerity and credibility of witnesses, is to be accorded great respect by appellate courts.[10]

In the instant case, the trial court accepted the statements of Angelito Remollo and Eddie Singco as straightforward and candid. Appellant Remollo has failed to demonstrate that the two (2) young witnesses were moved by any grudge or evil motive to testify falsely against him. There is no evidence to suggest that the two (2) witnesses, nephews of appellant who lived in the same house with them, would fabricate a story falsely implicating their uncle in a terrible crime. The following statements made at the trial appear relevant:

"Testimony of Angelito Remollo:

x x x x x x x x x

Q: Since attaining the age of reason this Saturnino Remollo has been living with you in that house, am I right?

A: Yes, sir.

Q: From your infancy up to the time you are on your feet you have known that this Saturnino Remollo had taken care of your mother (*sic*)?

A: Yes, sir.

Q: And during this time that you were together as a common occupant of that house this Saturnino Remollo had played with you, am I correct?

A: Yes, sir.

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[9] Brief for the Appellant, pp. 13-14; *Rollo,* pp. 64-65.

[10] *People v. Luvendino,* 211 SCRA 36 (1992); *People v. Sanchez,* 199 SCRA 414 (1991); *People v. Belibet,* 199 SCRA 587 (1991); *People v. Espallardo,* 198 SCRA 342 (1991); *People v. Andaya,* 196 SCRA 660 (1991).

Q: In fact, not only that you often talked with each other, you had also played some jokes with you (*sic*)?

A: Yes, sir.

Q: You remember that Saturnino Remollo, your uncle, as one person who likes to joke with you?

A: Yes, sir.

x x x x x x x x x

Q: In fact, you did not suspect your uncle Saturnino Remollo that before (*sic*) he had killed anybody at the time you were talking to him on April 27, 1991, am I right?

A: Yes, sir.

x x x x x x x x x"[11]

"Testimony of Eddie Singco:

Q: Now you look (*sic*) at Saturnino Remollo as one of your elders in that house?

A: Yes, sir.

Q: You respect him for that?

A: Yes, sir.

x x x x x x x x x

Q: In short, he would never beat but only threaten you several times when you were misbehaving, is that right?

A: Yes, sir.

Q: When you said that you were threatened by Saturnino Remollo at times, when you were misbehaving he would tell you something that will frighten you?

A: No, sir.

x x x x x x x x x

Q: He would make you believe he is stern and brutal, am I correct?

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[11] TSN (Angelito Remollo), 29 July 1991, pp. 8-9; Records, pp. 155-156.

A: Not very."[12]

In view of appellant's failure to show that the two (2) young witnesses were somehow disqualified as witnesses, or were moved by some improper motive to speak falsely against their uncle-appellant, their statements are entitled to full faith and credence.

We turn to the second error assigned by appellant Remollo: that the trial court had erred in admitting appellant's extrajudicial confession in evidence.

Appellant Remollo claims firstly that he had been made to sign his sworn statement in English, a language he could neither read nor understand, and that statement had not been translated for him into the vernacular Visayan. Appellant's claim is, however, contradicted by evidence of record. Atty. Alfredo Renacia who, as will be seen later, acted as appellant's counsel at his investigation and who was present when the sworn statement was taken on 29 April 1991, testified that the statement signed by appellant had been read to him first in English and then translated into the Visayan dialect.[13]

Remollo also claims that he had not been informed of his constitutional rights before his extrajudicial confession was taken. The extrajudicial confession itself, however, states that appellant had been informed of his rights during custodial investigation, and that he had understood his rights and was waiving them as evidenced by his signature below the waiver clause.[14] Moreover, Police Sgt. Gregorio Aniñon testified in

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[12] TSN (Eddie Singco), 29 July 1991, pp. 9-10; Records, pp. 155-156.

[13] TSN (Alfredo Renacia), 5 August 1991, p. 15; Records, p. 245.

[14] The text of the extra-judicial confession of appellant Remollo follows:

"Q: Are you willing to give a free and voluntary sworn statement regarding the matter?

A: Yes, sir.

Q: Do you swear to tell the truth and nothing but the truth in this investigation?

A: Yes, sir.

court that he had indeed informed Remollo of his rights before the investigation began.[15] Atty. Renacia too affirmed that before

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Q: Do you need the assistance of a lawyer?

A: Yes, sir.

Q: I have here Atty. Alfredo Renacia as your counsel to assist you in the investigation, do you welcome him as your counsel?

A: Yes, sir.

Q: Now that you are willing to give your statement, you must understand your legal rights as provided for under our New Constitution which states as follows:

'That you have the right to remain silent; the right to seek services of a lawyer. That whatever you say in this investigation may be used against your favor or would be favorable to you in any court of justice of the Philippines, is it clearly understood by you?

A: Yes, sir.

Q: Are you willing to sign a waiver to that effect?

A: Yes, sir.

WAIVER

'I have been advised of my rights to remain silent; that anything I say may be used as evidence against me, that I have the right to seek the services of a counsel to be present while I am questioned. I understand these rights and I am willing to make statement and answer the questions. No promise or threats have been made to me and no force or pressure of any kind have been used against me.

SATURNINO REMOLLO

(Affiant)

WITH MY ASSISTANCE:

ATTY. ALFREDO B. RENACIA

(Counsel of the Suspect)'

Q: Mr. Saturnino Remollo, do you know Maryjin Superal?

A: She is not familiar to me.

Q: In the evening of April 27, 1991 more or less about 7:00 o'clock in the evening, where were you?

A: I was at home.

Q: Who were with you in your house?

A: I was with my father Santos Remollo, my brother Artemio Remollo, Manuel Remollo and Gabriel Superal.

Q: Who was the companion of Gabriel Superal that evening?

A: A female child.

Q: What transpired while you were having a drink in your house?

A: I went down, the child Maryjin Superal followed me.

Q: Where did you go?

A: She followed me to an abandoned farm near our house.

Q: Did not the child asked you where you were going?

A: No, sir.

Q: Even in reaching that abandoned farm, the child never asked you something?

A: No.

Q: What did you do to the child when reaching that abandoned farm?

A: I lift her up, then let her lay down, took her panty, then I inserted my right index finger to her vagina, then I started inserting my pennies (*sic*).

Q: Did the child resisted to what you have been doing?

A: No, sir.

Q: Were you able to accomplish your sexual desire?

A: I succeeded in having sexual intercourse with the child.

Q: How many times, that evening?

A: Only once, sir.

Q: What did you do with the child after raping her?

A: I took a dried banana leaf and strangled her in the neck, afterwards I left her.

Q: I have here a dried banana leaf which was recovered and taken from the neck of Maryjin Superal, what can you say about this banana leaf?

A: That is the one, sir.

Q: What was your intention in tying the neck of the child with that banana leaf?

A: I decided to kill her, I lost my presence of mind because I am under influence of liquor.

Q: Now that Maryjin is dead, what do you feel?

A: I repented of what I have done wrong.

the investigation began, he himself had apprised Remollo of the latter's rights.[16]

Appellant asserts next that the investigation had been conducted in a hostile atmosphere caused by the number of people watching the process of investigation which he found "intimidating." Appellant Remollo here in effect seeks to reject his signed confession upon the ground of coercion. The law presumes that a written extrajudicial confession concededly signed by an accused, was voluntarily given, upon the basis that no person in his right mind would knowingly confess to being the doer of a crime unless prompted by truth and conscience.[17] The accused who executed the confession bears the burden of proving otherwise.[18]

In the instant case, appellant Remollo's written confession was taken down and signed in the presence not only of the investigating police officers, but also in the presence of his sister Yolanda Remollo; his own mother Lucina Remollo; and his two (2) young nephews, Angelito Remollo and Eddie Singco; as well as Atty. Renacia. The very number of persons (all non-police) observing the course of the investigation offered assurance that "police brutality" would be very unlikely. Had his confession

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Q: What can you say of the crime you have committed.

A: I will accept what the law take against me to what I have done.

Q: Do you have anything more to say, add or retract from your statements?

A: No more.

Q: Are you willing to sign this affidavit, that your are not being forced or coerced the time you were investigated?

A: Yes, sir." (Annex "G-1", Records, p. 21).

[15] TSN (G, Aniñon), 5 August 1991, p. 25; Records, p. 255.

[16] TSN (A. Renacia), 5 August 1991, p. 9; Records, p. 239.

[17] *People v. Luvendino,* 211 SCRA 36 (1992); *People v. Ribajado,* 142 SCRA 637 (1986); *People v. Zea,* 130 SCRA 77 (1984).

[18] *People v. Esteban,* 186 SCRA 34 (1990); *People v. Talla, et al.,* 183 SCRA 133 (1990); *People v. De la Cruz,* 115 SCRA 184 (1982).

indeed been extracted from him by coercion, violence and intimidation, appellant could have presented his own mother and sister to testify to such coercion; appellant did not. Atty. Renacia also testified that appellant had answered the questions put to him without being threatened or intimidated.[19] The foregoing circumstances lead us to agree with the trial court that the extrajudicial confession had been given voluntarily by appellant Remollo.

Finally, appellant maintains that his right to counsel had been disregarded because Atty. Renacia was not his counsel of choice but had been chosen by the police authorities. Atty. Renacia said in court that he was not counsel of appellant Remollo but that he had been requested by the police authorities to assist in connection with the investigation of appellant Remollo. Upon the other hand, the record shows that Police Sgt. Aniñon had advised the accused of his right to counsel and of his right to choose one. Because, however, there was no other lawyer available at that time and place, except Atty. Renacia who lived near the police station, Atty. Renacia's assistance was enlisted by the police authorities.[20] We do not, however, believe that because Atty. Renacia had been initially requested by the police to assist in connection with the investigation of appellant, that, therefore, he was forced upon the appellant and cannot be regarded as counsel of Remollo for purposes of determining whether Remollo's constitutional rights had been respected. The investigating officer, Sgt. Aniñon, asked appellant Remollo whether he welcomed the presence and services of Atty. Renacia as his counsel during the investigation and that appellant had replied in the affirmative:

"Q Will you please tell the court if Saturnino Remollo voluntarily secured the services of Atty. Renacia?

A: In the presence of Atty. Renacia, we told (*sic*) Saturnino Remollo if he welcomes Atty. Renacia as his counsel during the investigation.

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[19] TSN (Atty. Renacia), 5 August 1991, pp. 4 & 8; Records, pp. 234 & 238.

[20] TSN (G. Aniñon), 5 August 1991, p. 38; Records, p. 268.

Q: What was the reply of Saturnino Remollo at that time?

A: He accepted."[21]

In *People v. Parojinog*,[22] this Court said:

"Anent his claim that Atty. Fuentes was not his choice, Section 12 (1) of Article III of the 1987 Constitution provides:

> 'SECTION 12(1). Any person under investigation for the commission of an offense shall have the right to be informed of his right to remain silent and to have competent and independent counsel preferably of his own choice. If the person cannot afford the services of counsel he must be provided with one. These rights cannot be waived except in writing and in the presence of counsel.'

It is very clear from the aforequoted provision that a person under investigation for the commission of an offense may choose his own counsel but if he cannot afford the services of counsel, he must be provided with one. *While the initial choice of the lawyer in the latter case is naturally lodged in the police investigators, the accused really has the final choice as he may reject the counsel chosen for him and ask for another one.* In the instant case, the records show that *no objection was voiced by the accused throughout the entire proceedings of the investigation and afterwards when he subscribed to its veracity* before City Prosecutor Luzminda V. Uy. Thus, *he apparently acquiesced to the choice of the investigators*. He complained for the first time that Atty. Fuentes was not his choice *only during trial*. Thus, *it was too late*.

x x x x x x x x x" [23]

(Italics supplied)

As pointed out by this Court, speaking through Mme. Justice Herrera, in *People v. Alvarez*:[24]

"What is sought to be protected [by the constitutional provision on the rights of persons under custodial investigation (Section 12

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[21] *Id.*, p. 26; Records, p. 256.

[22] 203 SCRA 673 (1991).

[23] 203 SCRA at 680.

[24] 201 SCRA 364 (1991).

[1], Article III, Constitution)] is the compulsory disclosure of incriminating facts. *The right is guaranteed merely to preclude the slightest coercion as would lead the accused to admit something false* (*People v. Layuco*, G.R. No. 69210, 5 July 1989, 175 SCRA 47) *not to provide him with the best defense. A lawyer is an officer of the court and upon his shoulders lies the responsibility to see to it that protection has been accorded the rights of the accused, that no injustice to him has been committed* x x x."[25] (Italics supplied)

More importantly, Atty. Renacia did in fact behave as counsel of appellant Remollo during the investigation. Upon his arrival at the police station, he talked to appellant and informed him of his constitutional rights, including his right to remain silent.[26] Atty. Renacia also looked out for any threats or intimidation employed against appellant Remollo during the investigation; Atty. Renacia, as already noted, testified in court that none had been employed in his presence. Atty. Renacia also signed the waiver clause in the extrajudicial confession.[27]

Finally, assuming (*arguendo* merely) that the extrajudicial confession of appellant Remollo should be rejected as fatally flawed, we believe that, independently of that confession, the circumstantial evidence made of record in this case is quite sufficient to support a finding of guilt beyond reasonable doubt. The multiple circumstances required under Rule 133, Section 4 of the Rules of Court are the following:

(1) At the house of his own parents, during a drinking party, appellant got the victim Maryjin Superal to go with him to the kitchen to eat.

(2) Appellant Remollo was the last person seen with the victim alive, by Maryjin's father and appellant's mother and brothers.[28]

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[25] 201 SCRA at 375-376.

[26] TSN (Atty. Renacia), 5 August 1991, pp. 9-10; Records, pp. 239 and 240.

[27] Please see footnote no. 14.

[28] TSN (Gabriel Superal), 31 July 1991, pp. 5-13.

(3) Appellant Remollo went down his parent's house on the same night, with the 6-year old victim Maryjin following him.

(4) When appellant Remollo went home in the early morning of the following day, he woke up his young nephews Angelito Remollo and Eddie Singco and asked them for soap as he wanted to take a bath in the nearby river. Appellant spontaneously told his nephews that he had killed Maryjin and simultaneously threatened them with harm if they reveal that secret to anyone.[29]

(5) Most notably, appellant Remollo at the police station during his custodial investigation, voluntarily admitted to his mother, who was then in tears, that he had killed the child Maryjin. This admission was made in the presence of Police Sgt. Aniñon, Atty. Renacia, appellant's sister Yolanda Remollo and his two (2) young nephews.[30] Appellant Remollo denied in court that he had admitted killing Maryjin to his mother. Appellant, however, failed to present his mother or his sister or Atty. Renacia or anyone else to corroborate his denial. Upon the other hand, Sgt. Aniñon stood firm on his testimony on this point throughout his cross-examination by defense counsel.

Appellant's principal defense on the merits was that of alibi. This Court has in innumerable cases ruled that for the defense of alibi to prosper, the accused must not only prove that he was somewhere else during the commission of the crime; he must also prove that it was impossible for him to be at the scene of the crime during its commission.[31] Remollo testified that he was attending a dance in San Jose when the rape and killing took

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[29] TSN (Angelito Remollo), 29 July 1991, pp. 7-9; TSN (Eddie Singco), 29 July 1991, pp. 6-8.

[30] TSN (Police Sgt. Aniñon), 5 August 1991, pp. 27-29.

[31] *People v. Pugal*, 215 SCRA 247 (1992); *People v. De Guzman*, 215 SCRA 375 (1992); *People v. De Paz*, 212 SCRA 56 (1992); *People v. Ocimar*, 212 SCRA 646 (1992); *People v. Luvendino*, 211 SCRA 36 (1992).

place. The *situs* of the dance was, however, only about 15 minutes from appellant's house by foot by appellant's own testimony. Appellant also failed to present his alleged companions — Rey Boy Ramirez and Loly Bajamunde — to corroborate his alibi. At the same time, appellant himself testified that he took a bath in a river which is only 500 arms-length from the spot where Maryjin's body was found the next morning and only about 200 arms-length from appellant's own house. Appellant's alibi simply cannot stand.

Where the crime resulted in the death of the victim, the civil indemnity granted by the Court has commonly been ₱50,000.00, in the absence of unusual circumstances warranting a higher indemnity. In the instant case, we consider that a heavier indemnity is appropriate, bearing in mind the tender age of the victim Maryjin Superal and the close blood relationship (uncle and niece) that existed between appellant and the victim. These circumstances indicate an unusual degree of moral depravity. Accordingly, we affirm the grant of exemplary damages of ₱20,000.00 and moral damages, in addition to the regular indemnity for death of ₱50,000.00. The moral damages should, however, be reduced to ₱30,000.00.

WHEREFORE, for all the foregoing, the Decision of the trial court appealed from is hereby *AFFIRMED*, except insofar as the grant of moral damages is concerned which is hereby reduced to ₱30,000.00. Costs against accused-appellant.

SO ORDERED.

Bidin, Romero, Melo, and *Vitug, JJ.*, concur.

THIRD DIVISION

[G.R. No. 88539. October 26, 1993]

KUE CUISON, doing business under the firm name and style "KUE CUISON PAPER SUPPLY," *petitioner, vs.* **THE COURT OF APPEALS, VALIANT INVESTMENT ASSOCIATES,** *respondents*.

SYLLABUS

1. **CIVIL LAW; AGENCY; RULE. —** It is a well-established rule that one who clothes another with apparent authority as his agent and holds him out to the public as such cannot be permitted to deny the authority of such person to act as his agent, to the prejudice of innocent third parties dealing with such person in good faith and in the honest belief that he is what he appears to be.

2. **ID.; ID.; AGENCY BY ESTOPPEL CREATED IN CASE AT BAR. —** It is evident from the records that by his own acts and admission, petitioner held out Tiu Huy Tiac to the public as the manager of his store in Sto. Cristo, Binondo, Manila. More particularly, petitioner explicitly introduced Tiu Huy Tiac to Bernardino Villanueva, respondent's manager, as his (petitioner's) branch manager as testified to by Bernardino Villanueva. Secondly, Lilian Tan, who has been doing business with petitioner for quite a while, also testified that she knew Tiu Huy Tiac to be the manager of petitioner's Sto. Cristo, Binondo branch. This general perception of Tiu Huy Tiac as the manager of petitioner's Sto. Cristo store is even made manifest by the fact that Tiu Huy Tiac is known in the community to be the "*kinakapatid*" (godbrother) of petitioner. In fact, even petitioner admitted his close relationship with Tiu Huy Tiac when he said in open court that they are "like brothers." There was thus no reason for anybody especially those transacting business with petitioner to even doubt the authority of Tiu Huy Tiac as his manager in the Sto. Cristo, Binondo branch. By his presentations, petitioner is now estopped from disclaiming liability for the transaction entered into by Tiu Huy Tiac on his behalf. It matters not whether the presentations are intentional or merely negligent so long as innocent third

person relied upon such representations in good faith and for value. Tiu Huy Tiac, therefore, by petitioner's own representations and manifestations, became an agent of petitioner by estoppel. Under the doctrine of estoppel, an admission or representation is rendered conclusive upon the person making it, and cannot be denied or disproved as against the person relying thereon. A party cannot be allowed to go back on his own acts and representations to the prejudice of the other party who, in good faith, relied upon them.

3. ID.; ID.; ID.; LIABILITY OF THE PRINCIPAL IS SOLIDARY. — Taken in this light, petitioner is liable for the transaction entered into by Tiu Huy Tiac on his behalf. Thus, even when the agent has exceeded his authority, the principal is solidarily liable with the agent of the former allowed the latter to act as though he had full powers, as in the case at bar. Finally, although it may appears that Tiu Huy Tiac defrauded his principal (petitioner) in not turning over the proceeds of the transaction to the latter, such fact cannot in any way relieve nor exonerate petitioner of his liability to private respondent. For it is an equitable maxim that as between two innocent parties, the one who made it possible for the wrong to be done should be the one to bear the resulting loss.

4. REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; ABSENCE OF CIRCUMSTANCES THAT DISCREDIT. — Petitioner assails the credibility of Lilian Tan by alleging that Tan was part of an intricate plot to defraud him. However, petitioner failed to substantiate or prove that the subject transaction was designed to defraud him. Ironically, it was even the testimony of petitioner's daughter and the assistant manager Imelda Kue Cuison which confirmed the credibility of Tan as a witness. On the witness stand, Imelda testified that she knew for a fact that prior to the transaction in question, Tan regularly transacted business with her father (petitioner herein), thereby corroborating Tan's testimony to the same effect. As correctly found by the respondent court, there was no logical explanation for Tan to impute liability upon petitioner. Rather, the testimony of Imelda Kue Cuison only served to add credence to Tan's testimony as regards the transaction, the liability for which petitioner wishes to be absolved.

5. ID.; ID.; JUDICIAL ADMISSION; ADMISSIBLE. — Such admission, spontaneous no doubt, and standing alone, is sufficient to negate all the denials made by petitioner regarding the capacity of Tiu Huy Tiac to enter into the transaction in question. Furthermore, consistent with and as an obvious indication of, the fact that Tiu Huy Tiac was the manager of Sto. Cristo branch, three (3) months after Tiu Huy Tiac left petitioner's employ, petitioner even sent communications to its customers notifying them that Tiu Huy Tiac is no longer connected with petitioner's business. Such undertaking spoke unmistakenly of Tiu Huy Tiac's valuable position as petitioner's manager than any uttered disclaimer. More than anything else, this act taken together with the declaration of petitioner in open court amount to admissions under Rule 130, Section 22 of the Rules of Court, to wit: "The act, declaration or omission of a party as to a relevant fact may be given in evidence against him." For well-settled is the rule that "a man's act, conduct and declaration, wherever made, if voluntary, are admissible against him, for the reason that it is fair to presume that they correspond with the truth, and it is his fault if they do not. If a man's extrajudicial admissions are admissible against him, there seems to be no reason why his admissions made in open court.

6. ID.; ID.; ADMISSION BY SILENCE; UNEXPLAINED DELAY IN DISOWNING THE TRANSACTION WAS HELD TANTAMOUNT TO AN ADMISSION BY SILENCE. — Petitioner's unexplained delay in disowning the transactions entered into by Tiu Huy Tiac despite several attempts made by respondent to collect the amount from him, proved all the more that petitioner was aware of the questioned transaction. Such omission was tantamount to an admission by silence under Rule 130, Section 23 of the Rules of Court, thus: "Any act or declaration made in the presence of and within the observation of a party who does or says nothing when the act or declaration is such as naturally to call for action or comment if not true, may be given in evidence against him."

APPEARANCES OF COUNSEL

Leighton R. Siazon for petitioner.
Melanio L. Zoreta for private respondent.

D E C I S I O N

BIDIN, *J.*:

This petition for review assails the decision of the respondent Court of Appeals ordering petitioner to pay private respondent, among others, the sum of ₱297,482.30 with interest. Said decision reversed the appealed decision of the trial court rendered in favor of petitioner.

The case involves an action for a sum of money filed by respondent against petitioner anchored on the following antecedent facts:

Petitioner Kue Cuison is a sole proprietorship engaged in the purchase and sale of newsprint, bond paper and scrap, with places of business at Baesa, Quezon City, and Sto. Cristo, Binondo, Manila. Private respondent Valiant Investment Associates, on the other hand, is a partnership duly organized and existing under the laws of the Philippines with business address at Kalookan City.

From December 4, 1979 to February 15, 1980, private respondent delivered various kinds of paper products amounting to ₱297,487.30 to a certain Lilian Tan of LT Trading. The deliveries were made by respondent pursuant to orders allegedly placed by Tiu Huy Tiac who was then employed in the Binondo office of petitioner. It was likewise pursuant to Tiac's instructions that the merchandise was delivered to Lilian Tan. Upon delivery, Lilian Tan paid for the merchandise by issuing several checks payable to cash at the specific request of Tiu Huy Tiac. In turn, Tiac issued nine (9) postdated checks to private respondent as payment for the paper products. Unfortunately, said checks were later dishonored by the drawee bank.

Thereafter, private respondent made several demands upon petitioner to pay for the merchandise in question, claiming that Tiu Huy Tiac was duly authorized by petitioner as the manager of his Binondo office, to enter into the questioned transactions with private respondent and Lilian Tan. Petitioner denied any involvement in the transaction entered into by Tiu Huy Tiac

and refused to pay private respondent the amount corresponding to the selling price of the subject merchandise.

Left with no recourse, private respondent filed an action against petitioner for the collection of ₱297,487.30 representing the price of the merchandise. After due hearing, the trial court dismissed the complaint against petitioner for lack of merit. On appeal, however, the decision of the trial court was modified, but was in effect reversed by the Court of Appeals, the dispositive portion of which reads:

"WHEREFORE, the decision appealed from is MODIFIED in that defendant-appellant Kue Cuison is hereby ordered to pay plaintiff-appellant Valiant Investment Associates the sum of ₱297,487.30 with 12% interest from the filing of the complaint until the amount is fully paid, plus the sum of 7% of the total amount due as attorney's fees, and to pay the costs. In all other respects, the decision appealed from is affirmed." (*Rollo*, p. 55)

In this petition, petitioner contends that:

"THE HONORABLE COURT ERRED IN FINDING TIU HUY TIAC AGENT OF DEFENDANT-APPELLANT CONTRARY TO THE UNDISPUTED/ESTABLISHED FACTS AND CIRCUMSTANCES.

"THE HONORABLE COURT ERRED IN FINDING DEFENDANT-APPELLANT LIABLE FOR AN OBLIGATION UNDISPUTEDLY BELONGING TO TIU HUY TIAC.

"THE HONORABLE COURT ERRED IN REVERSING THE WELL-FOUNDED DECISION OF THE TRIAL COURT." (*Rollo*, p. 19)

The issue here is really quite simple, and that is - whether or not Tiu Huy Tiac possessed the required authority from petitioner sufficient to hold the latter liable for the disputed transaction.

This petition ought to have been denied outright, for in the final analysis, it raises a factual issue. It is elementary that in petitions for review under Rule 45, this Court only passes upon questions of law. An exception thereto occurs where the findings of fact of the Court of Appeals are at variance with the trial

court, in which case the Court reviews the evidence in order to arrive at the correct findings based on the records.

As to the merits of the case, it is a well-established rule that one who clothes another with apparent authority as his agent and holds him out to the public as such cannot be permitted to deny the authority of such person to act as his agent, to the prejudice of innocent third parties dealing with such person in good faith and in the honest belief that he is what he appears to be (*Macke, et al. v. Camps*, 7 Phil. 553 [1907]; *Philippine National Bank v. Court of Appeals*, 94 SCRA 357 [1979]). From the facts and the evidence on record, there is no doubt that this rule obtains. The petition must therefore fail.

It is evident from the records that by his own acts and admission, petitioner held out Tiu Huy Tiac to the public as the manager of his store in Sto. Cristo, Binondo, Manila. More particularly, petitioner explicitly introduced Tiu Huy Tiac to Bernardino Villanueva, respondent's manager, as his (petitioner's) branch manager as testified to by Bernardino Villanueva. Secondly, Lilian Tan, who has been doing business with petitioner for quite a while, also testified that she knew Tiu Huy Tiac to be the manager of petitioner's Sto. Cristo, Binondo branch. This general perception of Tiu Huy Tiac as the manager of petitioner's Sto. Cristo store is even made manifest by the fact that Tiu Huy Tiac is known in the community to be the "*kinakapatid*" (godbrother) of petitioner. In fact, even petitioner admitted his close relationship with Tiu Huy Tiac when he said in open court that they are "like brothers" (*Rollo*, p. 54). There was thus no reason for anybody especially those transacting business with petitioner to even doubt the authority of Tiu Huy Tiac as his manager in the Sto. Cristo, Binondo branch.

In a futile attempt to discredit Villanueva, petitioner alleges that the former's testimony is clearly self-serving inasmuch as Villanueva worked for private respondent as its manager.

We disagree. The argument that Villanueva's testimony is self-serving and therefore inadmissible on the lame excuse of his employment with private respondent utterly misconstrues the nature of "self-serving evidence" and the specific ground

for its exclusion. As pointed out by this Court in *Co v. Court of Appeals, et al.*, (99 SCRA 321 [1980]):

"Self-serving evidence is evidence made by a party *out of court* at one time; *it does not include a party's testimony as a witness in court*. It is excluded on the same ground as any hearsay evidence, that is the lack of opportunity for cross-examination by the adverse party, and on the consideration that its admission would open the door to fraud and to fabrication of testimony. On the other hand, a party's testimony in court is sworn and affords the other party the opportunity for cross-examination" (italics supplied).

Petitioner cites Villanueva's failure, despite his commitment to do so on cross-examination, to produce the very first invoice of the transaction between petitioner and private respondent as another ground to discredit Villanueva's testimony. Such failure, petitioner argues, proves that Villanueva was not only bluffing when he pretended that he can produce the invoice, but that Villanueva was likewise prevaricating when he insisted that such prior transactions actually took place. Petitioner is mistaken. In fact, it was petitioner's counsel himself who withdrew the reservation to have Villanueva produce the document in court. As aptly observed by the Court of Appeals in its decision:

"x x x However, during the hearing on March 3, 1981, Villanueva failed to present the document adverted to because defendant-appellant's counsel withdrew his reservation to have the former (Villanueva) produce the document or invoice, thus prompting plaintiff-appellant to rest its case that same day (t.s.n., pp. 39-40, Sess. of March 3, 1981). Now, defendant-appellant assails the credibility of Villanueva for having allegedly failed to produce even one single document to show that plaintiff-appellant and defendant-appellant have had transactions before, when in fact said failure of Villanueva to produce said document is a direct off-shoot of the action of defendant-appellant's counsel who withdrew his reservation for the production of the document or invoice and which led plaintiff-appellant to rest its case that very day." (*Rollo*, p. 52)

In the same manner, petitioner assails the credibility of Lilian Tan by alleging that Tan was part of an intricate plot to defraud him. However, petitioner failed to substantiate or prove that

the subject transaction was designed to defraud him. Ironically, it was even the testimony of petitioner's daughter and assistant manager Imelda Kue Cuison which confirmed the credibility of Tan as a witness. On the witness stand, Imelda testified that she knew for a fact that prior to the transaction in question, Tan regularly transacted business with her father (petitioner herein), thereby corroborating Tan's testimony to the same effect. As correctly found by the respondent court, there was no logical explanation for Tan to impute liability upon petitioner. Rather, the testimony of Imelda Kue Cuison only served to add credence to Tan's testimony as regards the transaction, the liability for which petitioner wishes to be absolved.

But of even greater weight than any of these testimonies, is petitioner's categorical admission on the witness stand that Tiu Huy Tiac was the manager of his store in Sto. Cristo, Binondo, to wit:

"Court:

x x x x x x x x x

"Q And who was managing the store in Sto Cristo?

"A At first it was Mr. Ang, then later Mr. Tiu Huy Tiac but I cannot remember the exact year.

"Q So, Mr. Tiu Huy Tiac took over the management.

"A Not that was because every afternoon, I was there, sir.

"Q But in the morning, who takes charge?

"A *Tiu Huy Tiac takes charge of management* and if there (*sic*) orders for newsprint or bond papers they are always referred to the compound in Baesa, sir." (t.s.n., p. 16, Session of January 20, 1981, CA decision, *Rollo*, p. 50, italics supplied)

Such admission, spontaneous no doubt, and standing alone, is sufficient to negate all the denials made by petitioner regarding the capacity of Tiu Huy Tiac to enter into the transaction in question. Furthermore, consistent with and as an obvious indication of, the fact that Tiu Huy Tiac was the manager of the Sto. Cristo branch, three (3) months after Tiu Huy Tiac

left petitioner's employ, petitioner even sent communications to its customers notifying them that Tiu Huy Tiac is no longer connected with petitioner's business. Such undertaking spoke unmistakenly of Tiu Huy Tiac's valuable position as petitioner's manager than any uttered disclaimer. More than anything else, this act taken together with the declaration of petitioner in open court amount to admissions under Rule 130 Section 22 of the Rules of Court, to wit: "The act, declaration or omission of a party as to a relevant fact may be given in evidence against him." For well-settled is the rule that "a man's acts, conduct and declaration, wherever made, if voluntary, are admissible against him, for the reason that it is fair to presume that they correspond with the truth, and it is his fault if they do not. If a man's extrajudicial admissions are admissible against him, there seems to be no reason why his admissions made in open court, under oath, should not be accepted against him." (*U.S. vs. Ching Po*, 23 Phil. 578, 583 [1912]).

Moreover, petitioner's unexplained delay in disowning the transactions entered into by Tiu Huy Tiac despite several attempts made by respondent to collect the amount from him, proved all the more that petitioner was aware of the questioned transactions. Such omission was tantamount to an admission by silence under Rule 130 Section 23 of the Rules of Court, thus: "Any act or declaration made in the presence of and within the observation of a party who does or says nothing when the act or declaration is such as naturally to call for action or comment if not true, may be given in evidence against him."

All of these point to the fact that at the time of the transaction, Tiu Huy Tiac was admittedly the manager of petitioner's store in Sto. Cristo, Binondo. Consequently, the transaction in question as well as the concomitant obligation is valid and binding upon petitioner.

By his representations, petitioner is now estopped from disclaiming liability for the transaction entered into by Tiu Huy Tiac on his behalf. It matters not whether the representations are intentional or merely negligent so long as innocent third persons relied upon such representations in good faith and for

value. As held in the case of *Manila Remnant Co., Inc. v. Court of Appeals*, (191 SCRA 622 [1990]):

"More in point, we find that by the principle of estoppel, Manila Remnant is deemed to have allowed its agent to act as though it had plenary powers. Article 1911 of the Civil Code provides:

'Even when the agent has exceeded his authority, the principal is solidarily liable with the agent if the former allowed the latter to act as though he had full powers.' (Italics supplied).

The above-quoted article is new. It is intended to protect the rights of innocent persons. In such a situation, both the principal and the agent may be considered as joint tortfeasors whose liability is joint and solidary.

Authority by estoppel has arisen in the instant case because by its negligence, the principal, Manila Remnant, has permitted its agent, A.U. Valencia and Co., to exercise powers not granted to it. That the principal might not have had actual knowledge of the agent's misdeed is of no moment."

Tiu Huy Tiac, therefore, by petitioner's own representations and manifestations, became an agent of petitioner by estoppel. Under the doctrine of estoppel, an admission or representation is rendered conclusive upon the person making it, and cannot be denied or disproved as against the person relying thereon (Article 1431, Civil Code of the Philippines). A party cannot be allowed to go back on his own acts and representations to the prejudice of the other party who, in good faith, relied upon them (*Philippine National Bank v. Intermediate Appellate Court, et al.*, 189 SCRA 680 [1990]).

Taken in this light, petitioner is liable for the transaction entered into by Tiu Huy Tiac on his behalf. Thus, even when the agent has exceeded his authority, the principal is solidarily liable with the agent if the former allowed the latter to act as though he had full powers (Article 1911 Civil Code), as in the case at bar.

Finally, although it may appear that Tiu Huy Tiac defrauded his principal (petitioner) in not turning over the proceeds of the transaction to the latter, such fact cannot in any way relieve

nor exonerate petitioner of his liability to private respondent. For it is an equitable maxim that as between two innocent parties, the one who made it possible for the wrong to be done should be the one to bear the resulting loss (*Francisco vs. Government Service Insurance System*, 7 SCRA 577 [1963]).

Inasmuch as the fundamental issue of the capacity or incapacity of the purported agent Tiu Huy Tiac, has already been resolved, the Court deems it unnecessary to resolve the other peripheral issues raised by petitioner.

WHEREFORE, the instant petition is hereby *DENIED* for lack of merit. Costs against petitioner.

SO ORDERED.

Feliciano, Romero, Melo, and *Vitug, JJ.*, concur.

THIRD DIVISION

[G.R. No. 100835. October 26, 1993]

REPUBLIC OF THE PHILIPPINES, *petitioner, vs.* **THE HONORABLE COURT OF APPEALS and the spouses JAMES ANTHONY HUGHES and LENITA MABUNAY HUGHES,** *respondents*.

SYLLABUS

CIVIL LAW; FAMILY CODE; ADOPTION; ADOPTION BY SPOUSES WHEN ONE OF THEM IS AN ALIEN; RULE AND EXCEPTION. — As amended by Executive Order 91, Presidential Decree No. 603, had thus made it mandatory for both the spouses to jointly adopt when one of them was an alien. The law was silent when both spouses were of the same nationality. The Family Code has resolved any possible

uncertainty. Article 185 thereof now expresses the necessity for a joint adoption by the spouses except in only two instances — (1) When one spouse seeks to adopt his own illegitimate child; or (2) When one spouses seeks to adopt the legitimate child of the other. It is in the foregoing cases when Article 186 of the Code, on the subject of parental authority, can aptly find governance. "Article 186. In case husband and wife jointly adopt or one spouse adopts the legitimate child of the other, joint parental authority shall be exercised by the spouses in accordance with this Code."

APPEARANCES OF COUNSEL

The Solicitor General for petitioner.
Westremundo Y. De Guzman for private respondents.

D E C I S I O N

VITUG, *J.*:

James Anthony Hughes, a natural born citizen of the United States of America, married Lenita Mabunay Hughes, a Filipino citizen, who herself was later naturalized as a citizen of that country. On 29 June 1990, the spouses jointly filed a petition with the Regional Trial Court of Angeles City, Branch 60, to adopt Ma. Cecilia, Neil and Mario, all surnamed Mabunay, minor niece and nephews of Lenita, who had been living with the couple even prior to the filing of the petition. The minors, as well as their parents, gave consent to the adoption.

On 29 November 1990, the Regional Trial Court rendered a decision granting the petition. A Petition for Review on *Certiorari* was filed with this Court, assailing the trial court's decision. This Court referred the case to the Court of Appeals which, on 09 July 1991, affirmed the trial court's decision.

Hence, the present petition. The petitioner assigned a lone error on the part of the respondent court, thus —

THE LOWER COURT ERRED IN GRANTING THE PETITION FOR ADOPTION OF SPOUSES JAMES ANTHONY HUGHES AND

LENITA MABUNAY HUGHES BECAUSE THEY ARE NOT QUALIFIED TO ADOPT UNDER PHILIPPINE LAW.

It is clear that James Anthony is not qualified to adopt. Executive Order No. 209, otherwise known as "The Family Code of the Philippines," is explicit.

"Art. 184. The following persons may not adopt:

(1) The guardian with respect to the ward prior to the approval of the final accounts rendered upon the termination of their guardianship relation;

(2) Any person who has been convicted of a crime involving moral turpitude;

(3) An alien, except:.

(a) A former Filipino citizen who seeks to adopt a relative by consanguinity;

(b) One who seeks to adopt the legitimate child of his or her Filipino spouse; or

(c) One who is married to a Filipino citizen and seeks to adopt jointly with his or her spouse a relative by consanguinity of the latter.

Aliens not included in the foregoing exceptions may adopt Filipino children in accordance with the rules on inter-country adoption as may be provided by law."

While James Anthony unquestionably is not permitted to adopt under any of the exceptional cases enumerated in paragraph (3) of the aforequoted article, Lenita, however, can qualify pursuant to paragraph (3)(a). The problem in her case lies, instead, with Article 185 of Executive Order No. 209, expressing, as follows:

"Art. 185. Husband and wife must jointly adopt, except in the following cases:

(1) When one spouse seeks to adopt his own illegitimate child; or

(2) When one spouse seeks to adopt the legitimate child of the other."

Lenita may not thus adopt alone since Article 185 requires a joint adoption by the husband and the wife, a condition that must be read along together with Article 184.

The old law on adoption, Presidential Decree No. 603 (The Child and Youth Welfare Code), exactly adopted that found in then Article 336 of the Civil Code. Article 29, Section B, Chapter I, Title II, of the said decree provided:

"Art. 29. Husband and wife may jointly adopt. In such case, parental authority shall be exercised as if the child were their own by nature."

Observe that the law then in force used the word "may" under which regime, a joint adoption by the spouses was apparently not made obligatory. The provision was later amended, however, by Executive Order No. 91, dated 17 December 1986, of President Corazon C. Aquino. The new Article 29 expressed, thus —

"Art. 29. Husband and Wife may jointly adopt. In such case, parental authority shall be exercised as if the child were their own by nature.

If one of the spouses is an alien, both husband and wife shall jointly adopt. Otherwise, the adoption shall not be allowed."

As amended by Executive Order 91, Presidential Decree No. 603, had thus made it mandatory for both the spouses to jointly adopt when one of them was an alien. The law was silent when both spouses were of the same nationality.

The Family Code has resolved any possible uncertainty. Article 185 thereof now expresses the necessity for a joint adoption by the spouses except in only two instances —

(1) When one spouse seeks to adopt his own illegitimate child; or

(2) When one spouse seeks to adopt the legitimate child of the other.

It is in the foregoing cases when Article 186 of the Code, on the subject of parental authority, can aptly find governance.

"Article 186. In case husband and wife jointly adopt or one spouse adopts the legitimate child of the other, joint parental authority shall be exercised by the spouses in accordance with this Code."

The respondent court, in affirming the grant of adoption by the lower court, has theorized that James Anthony should merely be considered a "nominal or formal party" in the proceedings. This view of the appellate court cannot be sustained. Adoption creates a status that is closely assimilated to legitimate paternity and filiation with corresponding rights and duties that necessarily flow from adoption, such as, but not necessarily confined to, the exercise of parental authority, use of surname of the adopter by the adopted, as well as support and successional rights. These are matters that obviously cannot be considered inconsequential to the parties.

We are not unmindful of the possible benefits, particularly in this instance, that an adoption can bring not so much for the prospective adopting parents as for the adopted children themselves. We also realize that in proceedings of this nature, paramount consideration is given to the physical, moral, social and intellectual welfare of the adopted for whom the law on adoption has in the first place been designed. When, however, the law is clear and no other choice is given,[1] we must obey its full mandate.

Even then, we find it difficult to conclude this opinion without having to call the attention of the appropriate agencies concerned to the urgency of addressing the issue on inter-country adoption, a matter that evidently is likewise espoused by the Family Code (Article 184, last paragraph, Family Code).

WHEREFORE, the petition is *GRANTED* and the decision of the respondent court is *REVERSED* and *SET ASIDE*. No costs.

SO ORDERED.

Feliciano, Bidin, Romero, and *Melo, JJ.*, concur.

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[1] At least until such time as the "rules on inter-country adoption" are provided for by law pursuant to Article 184 of the Family Code.

THIRD DIVISION

[G.R. Nos. 101833-34. October 26, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **ALBERTO ARCE *y* BORROMEO,** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; FINDINGS OF THE TRIAL COURT; RULE AND EXCEPTION. — In respect of appraisal of the credibility of witnesses, the firmly settled rule is that the findings of the trial court are to be accorded great respect and at times deemed final, that court having been in a position to observe and assess the behavior and demeanor of the witnesses while on the witness chair. Appellate magistrates will generally not disturb such findings of the trial court, unless the latter has patently overlooked facts of substance and value which, when considered, will affect the resolution of the case. Here, the Court finds no reason to depart from the general rule and no basis for reversing the trial court's finding that complainant Perlita de Leon had in fact been assaulted and raped on the night of 30 January 1990.

2. ID.; ID.; CIRCUMSTANTIAL EVIDENCE; MAY BE SUFFICIENT FOR CONVICTION; RULE. — It is true that no one at the scene of the crime had identified appellant as the assailant of Perlita de Leon, considering that the assault and rape had occurred in the dead of night and the place of the rape was unlighted. Complainant herself at the time of commencement of chase did not see appellant's face because the latter's face was, at least partly, covered with his T-shirt. Identification of the doer of a crime is not, however, exclusively limited to identification by visual or optical perception of the face and person of the accused. Under Section 4, Rule 133 of the Rules of Court, conviction may rest on indirect or circumstantial evidence when the proven circumstances, taken together, constitute an unbroken chain of events leading to one fair and reasonable conclusion that the accused was guilty beyond reasonable doubt of the charge against him. In the instant case, at least three (3) circumstances converged to sustain Arce's guilt.

3. ID.; ID.; ID.; ID.; ID.; APPLICATION IN CASE AT BAR. — In the instant case, at least three (3) circumstances converged to sustain Arce's guilt. First, there was the wet maong pants of appellant Arce. The prosecution had established that appellant was wearing maong pants when the latter, in making good his escape jumped into the nearby river and swam or waded away. When appellant was arrested at his house, a few hours after the incident at the ricemill, the arresting officers retrieved from appellant's clothes hamper, and from among the other soiled dry clothes, a pair of wet maong pants, which admittedly belonged to appellant. No explanation was given by appellant regarding the wet condition of his denim pants, except that it, together with other clothes, was then due for washing. Second, appellant, at the time of his arrest, was found with bruises and other injuries on his person. The complainant had testified that in the ensuing assault on her person, she in the course of defending herself, inflicted bodily injuries, *e.g.*, bruises and scratches, upon her assailant. Corporal Reyes, testifying on the circumstances surrounding the arrest of appellant Arce. Appellant Arce tried to explain away his injuries as having been caused by a bicycle fall just the day before his arrest. The trial court did not give his explanation much credit in view of, among other things, his failure to corroborate the same and in view of the next item of circumstantial evidence. Third, complainant Perlita A. de Leon identified appellant Arce as her assailant and rapist through his voice. In the course of assaulting and raping her, the assailant spoke to Perlita at least three (3) times. The verbal exchanges between complainant and appellant were not, of course, prolonged and extensive. The assailant's words were, however, of such a deadly serious and threatening nature and conducted under such dramatic and stark circumstances as reasonably to have impressed themselves firmly on the consciousness and memory of complainant Perlita de Leon. The next day at the police station, the police authorities first showed three (3) persons who were potential suspects to complainant de Leon: one Guillermo, Boy Ursonio and Arturo Oliva. Complainant Perlita did not point to anyone of them as her assailant. Subsequently, however, appellant Arce was brought in together with other persons and complainant Perlita de Leon was once more asked to look them over. Perlita asked the potential suspects to speak. Appellant Arce spoke first and immediately upon hearing his

voice, Perlita de Leon, without hesitation or qualification, identified Arce's voice as the voice of the man who had uttered threats against her as he assaulted and raped her. Aggregating the above circumstances, we consider that appellant Arce was shown, beyond reasonable doubt, to be the person who had assaulted and raped Perlita de Leon on the night of 30 January 1990.

4. ID.; ID.; BURDEN OF PROOF IN CRIMINAL CASES; APPLICATION TO ILLEGAL POSSESSION OF FIREARM AND AMMUNITION. — In Criminal Case No. VIII-637 for illegal possession of firearm and ammunition. It is important to recall that the prosecution has the burden of proving beyond reasonable doubt that the accused did not have a license to possess a firearm and did not have any legal authority to carry a firearm outside of his residence. It is, of course, the constitutional presumption of innocence that lays that burden upon the prosecution. The absence of such license and legal authority constitutes an essential ingredient of the offense of illegal possession of a firearm, and every ingredient or essential element of an offense must be shown by the prosecution by proof beyond reasonable doubt. In *People vs. Pajenado,* the Court through Dizon, J. wrote: "It is true that *People vs. Lubo*, 101 Phil. 179, and *People vs. Ramos*, 8 SCRA 758, could be invoked to support the view that it is incumbent upon a person charged with illegal possession of a firearm to prove the issuance to him of a license to possess the firearm, but We are of the considered opinion that under the provisions of Section 2, Rule 131 of the Revised Rules of Court which provide that in criminal cases the burden of proof as to the offense charged lies on the prosecution and that a negative fact alleged by the prosecution must be proven if 'it is an essential ingredient of the offense charged,' the burden of proof was with the prosecution in this case to prove that the firearms used by appellant in committing the offense charge was not properly licensed. It cannot be denied that the lack or absence of a license is an essential ingredient of the offense of illegal possession of a firearm. The information filed against appellant in Criminal Case No. 3558 of the lower court (now G.R. No. 27681) specifically alleged that he had no 'license or permit to possess' the .45 caliber pistol mentioned therein. Thus it seems clear that it was the prosecution's duty not merely to allege that negative fact but to prove it. This view is supported by similar adjudicated cases. In *U.S. vs. Tria,* 17 Phil. 303, the

accused was charged with having criminally inscribed himself as a voter knowing that he had none of the qualifications required to be a voter. It was there held that the negative fact of lack of qualification to be a voter was an essential element of the crime charged and should be proved by the prosecution. In another case where the accused was charged with illegal practice of medicine because he had diagnosed, treated and prescribed for certain diseases suffered by certain patients from whom he received monetary compensation, without having previously obtained the proper certificate of registration from the Board of Medical Examiners, as provided in Section 770 of the Administrative Code, this Court held that if the subject of the negative averment like, for instance, the act of voting without the qualifications provided by law, is an essential ingredient of the offense charged, the prosecution had the burden of proving the same, although in view of the difficulty of proving a negative allegation, the prosecution, under such circumstance, need only established a *prima facie* case from the best evidence obtainable. In the case before Us, both appellant and the Solicitor General agree that there was not even a *prima facie* case upon which to hold appellant guilty of the illegal possession of a firearm. Former Chief Justice Moran upholds this view as follows: 'The mere fact that the adverse party has the control of the better means of proof of the fact alleged, should not relieve the party making the averment of the burden of proving it. This is so, because a party who alleges a fact must be assumed to have acquired some knowledge thereof, otherwise he could not have alleged it. Familiar instance of this is the case of a person prosecuted for doing an act or carrying on a business, such as, the sale of liquor without a license. How could the prosecution aver the want of a license if it had acquired no knowledge of that fact? Accordingly, although proof of the existence or non-existence of such license can, with more facility, be adduced by the defendant, it is nevertheless, incumbent upon the party alleging the want of the license to prove the allegation. Naturally, as the subject matter of the averment is one which lies peculiarly within the control or knowledge of the accused *prima facie* evidence thereof on the part of the prosecution shall suffice to case the *onus* upon him.'" Here, the record is bereft of even a *prima facie* showing of the essential element of lack or absence of a license or legal authority to carry the firearm here involved. In other words, the prosecution,

although it had shown at least *prima facie* that the seized firearm had been held or used by appellant Arce, failed to prove that appellant had no license or authority to possess that firearm and to carry it outside his residence. The very paucity of testimony and other evidence on this point is remarkable; it is also indicative of the casual way in which this charge was handled by the police and the public prosecutor.

5. CRIMINAL LAW; RAPE; SLIGHTEST DEGREE OF PENETRATION, SUFFICIENT FOR CONVICTION THEREOF. — As to the fact or extent of execution of the rape, it is sufficient to recall that the slightest degree of penetration of the *pudenda* by accused's penis suffices to constitute the crime of rape. Thus, complete or even substantial introjection is not necessary, and Perlita did testify that Arce's member did partially enter her private parts.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Azcuna, Sarmiento, Arroyo & Chua for accused-appellant.

D E C I S I O N

FELICIANO, *J.*:

Alberto Arce *y* Borromeo was charged with rape and illegal possession of firearm and ammunition, in two (2) separate informations. In Criminal Case No. VIII-635, he was charged with rape committed as follows:

"That on or about January 30, 1990, in the municipality of Aparri, province of Cagayan, and within the jurisdiction of this Honorable Court, the said accused, Alberto Arce *y* Borromeo, together with one John Doe who was not identified, armed with a gun, conspiring together and helping each other, with lewd design and by means of force, violence and intimidation, did then and there wilfully, unlawfully and feloniously have sexual intercourse with the offended party, Perlita Acio de Leon, against her will and consent."[1]

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[1] Records of Criminal Case No. VIII-635, p. 3.

In Criminal Case No. VIII-637, the information charging illegal possession of firearm and ammunition read as follows:

"That on or about January 30, 1990, in the municipality of Aparri, province of Cagayan, and within the jurisdiction of this Honorable Court, the said accused, Alberto Arce *y* Borromeo, did then and there wilfully, unlawfully and feloniously [have] in his possession and under his control and custody one (1) cal .38 Rev. (*Paltik*) Smith and Wesson, with four (4) [rounds of] live ammunition, without first securing the necessary permit or license to possess the same from the corresponding government agency/agencies authorized to issue such permit or license; and which loose and/or unlicensed firearm was carried and brought by the accused outside of his residence without first obtaining a written authority to carry the same outside of his residence from the proper and lawful authorities."[2]

Arce pleaded not guilty to each of the two (2) informations. On motion of the defense and with the consent of the prosecution, the trial court ordered the joint trial of the two (2) cases.[3]

After trial, the court *a quo* convicted Arce of both crimes. The dispositive portions of the decision read in part as follows:

"WHEREFORE, prescinding from the foregoing, the Court in (1) Criminal Case No. VIII-635, finds the accused Alberto Arce *y* Borromeo guilty beyond reasonable doubt as principal, of the crime of rape as charged in the information and hereby sentences him to suffer the penalty of *RECLUSION PERPETUA*, with all the accessory penalties provided by law; to pay the offended party Perlita A. de Leon, the sum of ₱30,000.00 without subsidiary imprisonment in case of insolvency and for him to pay the costs.

(2) In Criminal Case No. VIII-637, the Court likewise finds the accused Alberto Arce *y* Borromeo guilty beyond reasonable doubt as principal of the crime of illegal possession of firearms as charged in the information, and there being an aggravating circumstance that the unlicensed firearm was used in the commission of a crime committed at night time and no mitigating circumstance to off-set the same, hereby sentences him to suffer the penalty of LIFE

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[2] Records in Criminal Case No. VIII-637, p. 1.

[3] Records in Criminal Case No. VIII-635, p. 48.

IMPRISONMENT, with all the accessory penalties provided by law; the gun, cal. 38 (Exhibit 'C') is ordered forfeited in favor of the government and for him to pay the costs.

x x x x x x x x x"[4]

Appellant Arce now urges:

(1) in respect of the rape case, that the trial court erred in finding him the assailant of Perlita A. de Leon; and assuming, without admitting, that he was her assailant, in holding that he had also raped Perlita A. de Leon; and

(2) in respect of his conviction for illegal possession of firearm and ammunition, that the trial court erred in holding Arce as the possessor of the unlicensed handgun found at or near the scene of the rape.

The trial court summarized the facts it found in the following manner:

"At about 2:15 in the early morning of January 30, 1990, the complainant Perlita Acio de Leon accompanied by one Rodalyn Medrano, a 10 year old girl, went to see her husband Bernard de Leon, *alias* Boyet, at the Double J Disco, Centro, Aparri, Cagayan. They were not able to see her husband thereat and on their way back home near the Metro Bank building, Perlita was accosted by a person from behind, later identified as the accused Alberto Arce, whose face was then covered by a T-shirt. Complainant ran towards the Double J disco to seek assistance but she stumbled, hence, she was overtaken by the accused and the latter brought her at the back of the Tana ricemill with a gun caliber 0.38 poked at her left temple. Meanwhile, her companion Rodalyn Medrano ran to report the incident to [her] father Rudy Medrano, and the latter together with others, immediately went to report the incident to the police authorities, who responded immediately.

When they reached the back of the ricemill, the accused [initially tore the front portion of the dress of Perlita, then] ordered [her] to remove her duster which she complied because of the poked gun on her temple. She was later dragged to a corner of the ricemill and

[4] RTC Decision, p. 15; *Rollo,* p. 30.

was forced to lie down. The accused lowered his pants and underwear, then went on top of her, holding her tightly with his hands around her neck and kept on kissing her. She struggled but the person held her tightly then lowered the left side of her panty and inserted his penis. Not being successful to do the sexual intercourse, the accused again lowered her panty above her knees, but that was the time the policemen arrived focusing their flashlight. The accused hit her left eye with the gun telling her to hide, and not to shout, but she was able to take possession of the gun and shouted for help, as the accused was confused and probably shocked and afraid, even as she bumped her head on the cemented wall. After which, the accused ran away and jumped into the Apagonan river. The complainant surrendered the gun to the police team who rescued her. The policemen tried to pursue the accused but failed to overtake him despite warning shots. The following morning, the accused was picked up, and Perlita recognized him, [due to] his voice, as the real culprit.

At the scene of the crime, the gun which is unlicensed (Exhibit 'C') was recovered, and same was surrendered by complainant; the gray t-shirt (Exhibit 'D') which was used by the accused was likewise recovered; the duster (Exhibit 'E') and the green slippers (Exhibit 'F') were also recovered; and the maong pants (Exhibit 'G') used by the accused which was still wet when the policemen went to the house of the accused that same morning was likewise recovered.

The accused put up a defense of alibi x x x."[5]

Appellant Arce's view of the facts, insofar as the rape charge is concerned, was essentially the following:

On the night of 29 January 1990, Arce, together with his wife, his brother and mother, slept in their house in Minanga, Aparri, Cagayan. He made love with his "common law" wife Evelyn Vallejo that night, first at around 10:00 o'clock in the evening after which he slept, and then again at around 4:00 o'clock in the following early morning. He then slept until 6:00 o'clock a.m. At 7:00 o'clock that morning, he was picked up by three (3) policemen from his residence and brought to the PNP Headquarters where he was identified by complainant Perlita A. de Leon as her attacker and rapist.

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[5] *Id.*, p. 10-11; *Rollo*, pp. 25-26.

Appellant stresses that no prosecution witness had asserted having actually seen him at the scene of the crime before, during or immediately after the assault. He avers that, therefore, the trial court could not reasonably conclude that he was the assailant of Perlita A. de Leon and that he was the possessor of the allegedly unlicensed firearm found at the scene of the rape. In respect of the rape charge, appellant Arce further argued that the trial court had erred in finding that rape had been committed against Perlita A. de Leon, considering the absence of medical evidence establishing the fact of rape and in view of Perlita's admission that she had been "nearly raped" and not actually violated.

We have carefully gone over the record of this case and we consider the above arguments of appellant Arce bereft of merit. Rape is a crime that is normally witnessed only by the victim and her assailant; acquittal or conviction of the assailant would, therefore, frequently depend upon the victim's testimony. The Court has consistently held that a person charged with the crime of rape may be convicted thereof on the testimony of the victim as lone witness, provided that testimony is credible and convincing.[6]

Testifying on what happened on the night of the physical and sexual assault upon her, Perlita A. de Leon stated that: while running away from appellant, who was chasing her, she stumbled and fell on the road, hurting her hands and bruising her knees in the process; that appellant caught up with her when she fell to the ground and then forced her to stand up; that when appellant started assaulting her behind the ricemill, she was pushed to the ground; that although her assailant had already partially inserted his male member into her private part, she fought back and thereby bruising various parts of her assailant's body; that her continuous struggle prevented her assailant from fully inserting his male organ into her; that her assailant pulled open the side of her underwear in a renewed attempt at full

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[6] *People v. Rabanes*, 208 SCRA 768 (1992); *People v. Villorente*, 210 SCRA 647 (1992); *People v. Alvarez*, 213 SCRA 722 (1992); *People v. Mabunga*, 215 SCRA 694 (1992); *People v. Biendo*, 216 SCRA 626 (1992).

introjection; that her assailant again failed in his effort at full penetration because he became aware of the police approaching with lights and calling out complainant's name and arriving at the scene of the crime; that the approach of the police caused the assailant to strike her in the face, hitting her left eye with the butt of his handgun in an attempt to silence her; that when she cried out for help, appellant repeatedly pounded her head against the cement wall of the ricemill; that she used her elbows to try to shield her head from injury; that before the police could lay their hands on appellant, despite the warning shots of the police, appellant ran away into the dark, stumbling towards the nearby river and plunging into it.[7]

Perlita de Leon's testimony was corroborated in its salient points by other prosecution witnesses.

Dr. Romulo A. de Rivera, the Municipal Health Officer and attending physician of complainant after the rape, corroborated her testimony concerning her injuries. The trial court summed up the testimony of Dr. Rivera in the following terms:

"Next to testify for the prosecution was Dr. Romulo de Rivera, Municipal Health Officer of Aparri, Cagayan. He declared that he examined Perlita de Leon and he issued a medical certificate to that effect marked as Exhibit 'I'. Wound No. 1 located on the left eyelid must have been caused by a fingernail and the victim and the accused might have been face to face. It could also be possible that the injury was caused when the victim was pushed and the said portion hit a rough surface. Wound No. 2 located on the left eyebrow might have been caused when the victim was pushed and the said part struck a hard surface on the ground. Wound No. 3 located below the left eye might have been caused by a blunt instrument. It could also be caused by a fist blow. Wound No. 4 located on the upper right arm could be possibly caused by a fist blow, blunt instrument or hand handling tightly that part of the body. Wound No. 5 located on the left forearm could be possibly caused by a fingernail, an object with rough surface or maybe when the victim was pushed to the ground. Wound No. 6 located on the left right finger could be possibly caused when it came in contact with hard surface or when

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[7] TSN, dated 7 June 1990, pp. 9-19.

the victim was pushed to the ground. Wound No. 7 located on the right knee could be possibly caused when the victim stumbled forward with her knee hitting the ground. Wound No. 8 could be possibly caused when the victim was pushed. Wound No. 9 located on the middle part of the leg could be possibly caused similar to the injuries of the knee. *All the wounds indicate that there was violence and these signs of violence might be the result of the victim's resistance*."[8] (Italics added)

The circumstance that no medical examination of the victim's private parts was conducted, does not constitute a fatal hiatus in the prosecution's evidence. The Court has previously held that in crimes against chastity, the medical examination of the victim's genitalia is not an indispensable element for the successful prosecution of the crime, the purpose of the examination being commonly merely corroborative in nature.[9]

Perlita de Leon's testimony concerning the events preceding the assault and rape were also corroborated by Rodalyn Medrano, the 10-year old child-companion of the complainant on the night of the crime. Rodalyn Medrano testified to, *e.g.*, the masked man with the gun chasing the complainant; the direction of the chase; and the complainant stumbling to the ground while fleeing and sustaining knee injuries and arm bruises.[10]

Also on the record are the testimonies of Sgt. Pedro Adap, Rudy Medrano and Corporal Eddie Reyes, all of whom were at the scene of the crime and who corroborated complainant's testimony on matters contemporaneous with and immediately after the assault, *e.g.*, complainant's physical condition and appellant's manner and mode of escape.[11]

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[8] RTC Decision, p. 5, *Rollo*, p. 20. See also *People v. Estolano*, 193 SCRA 730 (1991).

[9] *People v. Diaz*, 212 SCRA 147 (1992); *People v. Garcia*, 187 SCRA 518 (1990).

[10] TSN, dated 14 June 1990, pp. 24-30.

[11] TSNs, dated 14 June 1990, pp. 37, 46; dated 24 July 1990, p. 24; dated 25 July 1990, p. 18, respectively.

In view thereof, the Court finds no basis for disregarding and overturning the credence given by the trial court to the testimony of the complainant. The observations of the trial court are worth noting:

"x x x *she related her testimony with a ring of truth and never faltered even during cross examination. There was no evidence presented or proved that she fabricated her story and there was no evidence adduced to show that she has reason to falsely accuse Alberto Arce*. Settled is the rule that the lone testimony of the victim can be the basis of conviction if found worthy and credible. *The manner, the demeanor and the way the complainant testified, lead to the inevitable conclusion that indeed she was raped by the accused.* She will not dare come out in the open and stand the rigors and suffer humiliation during public trial, if her motive is not to obtain justice. She has no reason to fabricate (*People v. Bravo*, 180 SCRA 694) and *considering the age and education of the complainant, she has no reason to fabricate her story*. [sic] (*People v. Reyes*, 137 SCRA 99)."[12] (Italics supplied)

In respect of appraisal of the credibility of witnesses, the firmly settled rule is that the findings of the trial court are to be accorded great respect and at times deemed final, that court having been in a position to observe and assess the behavior and demeanor of the witnesses while on the witness chair. Appellate magistrates will generally not disturb such findings of the trial court, unless the latter has patently overlooked facts of substance and value which, when considered, will affect the resolution of the case. Here, the Court finds no reason to depart from the general rule and no basis for reversing the trial court's finding that complainant Perlita de Leon had in fact been assaulted and raped on the night of 30 January 1990.

As to the fact or extent of execution of the rape, it is sufficient to recall that the slightest degree of penetration of the pudenda by accused's penis suffices to constitute the crime of rape. Thus, complete or even substantial introjection is not necessary, and Perlita did testify that Arce's member did partially enter her private parts.

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[12] RTC Decision, pp. 12-13; *Rollo*, pp. 27-28.

It is true that no one at the scene of the crime had identified appellant as the assailant of Perlita de Leon, considering that the assault and rape had occurred in the dead of night and the place of the rape was unlighted. Complainant herself at the time of commencement of chase did not see appellant's face because the latter's face was, at least partly, covered with his T-shirt.

Identification of the doer of a crime is not, however, exclusively limited to identification by visual or optical perception of the face and person of the accused. Under Section 4, Rule 133 of the Rules of Court, conviction may rest on indirect or circumstantial evidence when the proven circumstances, taken together, constitute an unbroken chain of events leading to one fair and reasonable conclusion that the accused was guilty beyond reasonable doubt of the charge against him. In the instant case, at least three (3) circumstances converged to sustain Arce's guilt.

First, there was the wet maong pants of appellant Arce. The prosecution had established that appellant was wearing maong pants when the latter, in making good his escape jumped into the nearby river and swam or waded away. When appellant was arrested at his house, a few hours after the incident at the ricemill, the arresting officers retrieved from appellant's clothes hamper, and from among the other soiled dry clothes, a pair of wet maong pants, which admittedly belonged to appellant.[13] No explanation was given by appellant regarding the wet condition of his denim pants, except that it, together with other clothes, was then due for washing.

Second, appellant, at the time of his arrest, was found with bruises and other injuries on his person. The complainant had testified that in the ensuing assault on her person, she in the course of defending herself, inflicted bodily injuries, *e.g.*, bruises and scratches, upon her assailant.[14] Corporal Reyes, testifying on the circumstances surrounding the arrest of appellant Arce, stated:

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[13] TSN, dated 28 February 1991, pp. 17-19.

[14] TSN, dated 7 June 1990, pp. 15-16, *et. seq.*

"Cpl. REYES:

At first there were three suspects, they were Guillermo, Boy Ursonio and Arturo Oliva, Sir.

COURT:

There were three suspects?

A: Yes, Sir.

Q: *So, you have no definite idea of the culprit at the time you found the victim?*

A: *Yes, Sir.*

Q: The victim did not reveal to you the person who molested her?

A: No, Sir.

FISCAL:

By the time the victim did not know yet, Your Honor.

Q: *After presenting these three suspects what did you do with them?*

A: After presenting them to the *victim*, she *told us that they were not the ones so we took another person and we discovered that Arce sustained some injuries*, Sir.

COURT:

Who is that suspect?

A: Alberto Arce, Sir.

FISCAL:

How long have you known Alberto Arce?

A: For a long time already, Sir.

Q: How come that your were able to get him?

A: Barangay Captain Oliva told us that it might be Arce and when we were going to see him, we met Alberto Arce, so we took him with us, Sir.

Q: Where did you get him?

A: In front of the house of Lao, Sir.

Q: *When you encountered Alberto Arce in that place, what did you do next?*

A: *We brought him to the victim and presented him to her,* Sir.

COURT:

Where did you present him?

A: Inside the Headquarters, Sir.

Q: What transpired there?

A: *She pointed out that he was the one who dragged her to the back of Tana Ricemill,* Sir."[15]

In his direct testimony, accused-appellant described his injuries as follows:

"FISCAL MIGUEL:

As a matter of fact, *Brgy. Captain Orlando Oliva together with the policemen even saw the injuries that you sustained . . .*

ATTY. MACADAEG: [Defense Counsel]

No basis, Your Honor.

COURT:

Witness may answer.

APPELLANT:

Yes, Sir.

FISCAL MIGUEL:

What part of your body?

[INTERPRETER]:

Witness pointed to his right *upper lip; right cheek bone and right elbow.*"[16]
(Italics added)

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[15] TSN, dated 25 July 1990, pp. 12-14.

[16] TSN, dated 28 February 1991, pp. 25-27.

Appellant Arce tried to explain away his injuries as having been caused by a bicycle fall just the day before his arrest. The trial court did not give his explanation much credit in view of, among other things, his failure to corroborate the same and in view of the next item of circumstantial evidence.

Third, complainant Perlita A. de Leon identified appellant Arce as her assailant and rapist through his voice. In the course of assaulting and raping her, the assailant spoke to Perlita at least three (3) times. The relevant portions of Perlita's testimony follow:

"[FISCAL MIGUEL TO COMPLAINANT PERLITA A. DE LEON]

Q: And what happened when you were at the back of the ricemill?

A: He stopped pushing me, sir.

Q: And what did he do next when he stopped pushing you?

A: When he stopped pushing me, *he told me 'do not shout I will kill you,'* sir.

Q: *And what did you say*?

A: *Why, what do you want from me,*" sir. (*bakit ano ba ang gusto mo sa akin*).

Q: What was his answer?

A: *Why don't you know (bakit hindi mo ba alam)* and he tore my duster, sir.

Q: And what part of your duster was torn?

x x x x x x x x x"

Q: Now after removing your panty, what did he do next?

A: That was the time when [the] persons were flashing their flashlight, sir.

Q: And what did you do when you observed that there were persons focusing their flashlight?

A: When he noticed that persons were flashing their flashlights, *he told me to hide*, sir?

Q: And did you hide?

A: Yes, sir.

Q: And what happened next after that?

A: When he told me to hide, he also followed me, sir.

Q: When he followed you, what did he do next?

A: He again poked his gun to me, sir.

Q: What part of your body?

A: To my left temple sir.

Q: And what did he do again when he poked that gun to the same portion of your body as you indicated?

A: When he poked again, *he said, 'do not shout, I will kill you,'* sir.

Q: And what happened next?

A: *While he was telling me do not shout I will kill you,* I slowly reached for the gun he was holding, Sir." [17] (Italics supplied)

The verbal exchanges between complainant and appellant were not, of course, prolonged and extensive. The assailant's words, were, however, of such a deadly serious and threatening nature and conducted under such dramatic and stark circumstances as reasonably to have impressed themselves firmly on the consciousness and memory of complainant Perlita de Leon. The next day at the police station, the police authorities first showed three (3) persons who were potential suspects to complainant de Leon: one Guillermo, Boy Ursonio and Arturo Oliva. Complainant Perlita did not point to anyone of them as her assailant. Subsequently, however, appellant Arce was brought in together with other persons and complainant Perlita de Leon was once more asked to look them over. Perlita asked the potential suspects to speak. Appellant Arce spoke first and immediately upon hearing his voice, Perlita de Leon, without hesitation or qualification, identified Arce's voice as the voice of the man

[17] TSN, dated 7 June 1990, pp. 11-17.

who had uttered threats against her as he assaulted and raped her. The following portions of appellant's own testimony are noteworthy:

"DEFENSE COUNSEL: Atty. Macadaeg.

Q: Did you go with the policemen as requested by them?"

APPELLANT Alberto Arce.

A: Yes, Sir.

Q: Where did they bring you?

A: *At the police headquarters*, Sir.

Q: What happened at the headquarters?

A: They let me sit down, Sir.

Q: What happened next?

A: *After a while, Cpl. Adap* went inside the office and *brought out a woman [later identified as the complainant*], then they asked me to talk and *when I talked, the woman said 'that is the voice.'*

Q: Is that all that the woman told Cpl. Adap?

A: Yes, Sir."

Q: *And that woman turned out to be Perlita de Leon*?

A: *Yes, Sir*."[18] (Italics supplied)

On cross-examination of appellant, the prosecution brought out the following facts:

"FISCAL MIGUEL:

> When you were there together with this Roderick Guillermo, Jr., the *woman* whom they called came out and *pointed to you* that you were *the one who abused her* on the night of January 29, 1990 . . .

ATTY. MACADAEG:

> *Misleading, she said 'that is the voice.'*

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[18] TSN, dated 28 February 1991, pp. 19-20, *et seq.*

FISCAL MIGUEL:

When she heard your voice she even pointed to you, is that correct?

APPELLANT:

They asked me to talk first then she pointed at me saying 'that is the voice.'

Q: And *when that woman pointed to you, Roderick Guillermo, Jr. was there*?

A: *Yes Sir and other persons who are from Minanga were also there*, they were *Arthur Oliva* and *Roderick*; Brgy Captain Orlando Oliva even uttered that if they will point to his son they would rather kill each other."[19] (Italics added)

Aggregating the above circumstances, we consider that appellant Arce was shown, beyond reasonable doubt, to be the person who had assaulted and raped Perlita de Leon on the night of 30 January 1990.

We turn to Criminal Case No. VIII-637 for illegal possession of firearm and ammunition. It is important to recall that the prosecution has the burden of proving beyond reasonable doubt that the accused did not have a license to possess a firearm and did not have any legal authority to carry a firearm outside of his residence. It is, of course, the constitutional presumption of innocence that lays that burden upon the prosecution. The absence of such license and legal authority constitutes an essential ingredient of the offense of illegal possession of a firearm, and every ingredient or essential element of an offense must be shown by the prosecution by proof beyond reasonable doubt. In *People v. Pajenado*,[20] the Court through Dizon, *J.* wrote:

"It is true that *People vs. Lubo*, 101 Phil. 179, and *People vs. Ramos*, 8 SCRA 758, could be invoked to support the view that it is incumbent upon a person charged with illegal possession of a firearm to prove the issuance to him of a license to possess the

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[19] *Id.*, pp. 25-27.

[20] 31 SCRA 812 (1970). Also *People v. Tiozon*, 198 SCRA 368 (1991).

firearm, but *We are of the considered opinion that under the provisions of Section 2, Rule 131 of the Revised Rules of Court which provide that in criminal cases the burden of proof as to the offense charged lies on the prosecution and that a negative fact alleged by the prosecution must be proven if 'it is an essential ingredient of the offense charged', the burden of proof was with the prosecution in this case to prove that the firearm used by appellant in committing the offense charge was not properly licensed.*

It cannot be denied that *the lack or absence of a license is an essential ingredient of the offense of illegal possession of a firearm.* The information filed against appellant in Criminal Case No. 3558 of the lower court (now G.R. No. 27681) specifically alleged that he had no 'license or permit to possess' the .45 caliber pistol mentioned therein. Thus it seems clear that *it was the prosecution's duty not merely to allege that negative fact but to prove it.* This view is supported by similar adjudicated cases. In *U.S. vs. Tria*, 17 Phil. 303, the accused was charged with having criminally inscribed himself as a voter knowing that he had none of the qualifications required to be a voter. It was there held that the negative fact of lack of qualification to be a voter was an essential element of the crime charged and should be proved by the prosecution. In another case (*People vs. Quebral*, 68 Phil. 564) where the accused was charged with illegal practice of medicine because he had diagnosed, treated and prescribed for certain diseases suffered by certain patients from whom he received monetary compensation, without having previously obtained the proper certificate of registration from the Board of Medical Examiners, as provided in Section 770 of the Administrative Code, *this Court held that if the subject of the negative averment like*, for instance, the act of voting without the qualifications provided by law, *is an essential ingredient of the offense charged, the prosecution had the burden of proving the same, although in view of the difficulty of proving a negative allegation, the prosecution, under such circumstance, need only establish a prima facie case from the best evidence obtainable.* In the case before Us, both appellant and the Solicitor General agree that there was not even a *prima facie* case upon which to hold appellant guilty of the illegal possession of a firearm. Former Chief Justice Moran upholds this views as follows:

> 'The mere fact that the adverse party has the control of the better means of proof of the fact alleged, should not relieve the party making the averment of the burden of proving it.

> This is so, because *a party who alleges a fact must be assumed to have acquired some knowledge thereof, otherwise he could not have alleged it*. Familiar instance of this is the case of a person prosecuted for doing an act or carrying on a business, such as, the sale of liquor without a license. *How could the prosecution aver the want of a license if it had acquired no knowledge of that fact*? Accordingly, although proof of the existence or non-existence of such license can, with more facility, be adduced by the defendant, it is nevertheless, incumbent upon the party alleging the want of the license to prove the allegation. *Naturally, as the subject matter of the averment is one which lies peculiarly within the control or knowledge of the accused prima facie evidence thereof on the part of the prosecution shall suffice to cast the onus upon him*' (6 Moran, Comments on the Rules of Court, 1963 edition, p. 8)" (Italics supplied)

Here, the record is bereft of even a *prima facie* showing of the essential element of lack or absence of a license or legal authority to carry the firearm here involved. In other words, the prosecution, although it had shown at least *prima facie* that the seized firearm had been held or used by appellant Arce, failed to prove that appellant had no license or authority to possess that firearm and to carry it outside his residence. The very paucity of testimony and other evidence on this point is remarkable; it is also indicative of the casual way in which this charge was handled by the police and the public prosecutor. The only relevant testimony on this point is the following:

"WITNESS (Cpl. Reyes)

> When we showed her the suspect, it was the time when she told us that *he was the person from whom she grabbed the gun,* Sir.

COURT:

> *Aside from the information given to you by the offended party, did you exert effort to verify as to whether or not there is another person who has the license with respect to this firearm?*

A: *None, sir.*

Q: *Did you go to the PC to verify who is the owner of that gun?*

A: *No, Sir.*

COURT:

That will be all."[21] (Italics supplied)

We are compelled to conclude that the guilt of appellant Arce in respect of the charge of illegal possession of firearm and ammunition was simply not established by the necessary *quantum* of proof.

WHEREFORE, for all the foregoing:

(1) the decision of the trial court in Criminal Case No. VIII-635 for rape is hereby *AFFIRMED en toto*;

(2) however, the decision in Criminal Case No. VIII-637 for illegal possession of firearm and ammunition is hereby *REVERSED* and appellant Alberto Arce *ACQUITTED* of such offense on ground of reasonable doubt.

No pronouncement as to costs.

SO ORDERED.

Bidin, Romero, Melo, and *Vitug, JJ.*, concur.

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[21] TSN, dated 25 July 1990, p. 20.

THIRD DIVISION

[G.R. No. 104731. October 27, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **RENATO PASTORES *y* AVILA,** *defendant-appellant.*

SYLLABUS

1. **REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; FINALITY OF THE FINDINGS OF THE TRIAL COURTS; EXCEPTIONS. —** This Court, ordinarily, would rely upon the settled principle that "findings of the trial court on the issue of credibility of witnesses and their testimonies are entitled to great respect and accorded the highest consideration by appellate court." There are of course well-recognized exceptions. When (1) the conclusion was a finding grounded entirely on speculations, surmises and conjectures; or, (2) the inference drawn was manifestly mistaken, absurd or impossible; or, (3) there was grave abuse of discretion; or (4) the judgment was based on a misapprehension of facts; or (5) the court, in making its findings, went beyond the issues of the case and the same are contrary to the admissions of both appellant and the appellee, the Court has not hesitated to disregard the trial court's rulings on questions of fact.

2. **ID.; ID.; ID.; ID.; EXCEPTION, APPLIED. —** We have carefully scrutinized the evidence on record and its appears to us that there was some misapprehension of facts in this case and either a deriving of inferences from the facts which are manifestly mistaken or a failure to draw reasonable inferences from the facts shown on the record.

3. **ID.; ID.; ID.; SUBSTANTIAL INACCURACIES AND INCONSISTENCIES IN THE TESTIMONIES OF THE PROSECUTION WITNESSES CAST DOUBT TO ITS VERACITY. —** We must note that the Office of the Solicitor General failed to address and reconcile the inconsistencies in the testimonies of the prosecution witnesses which appellant's counsel had underscored. Generally, we have declared that minor inconsistencies in the testimony of witnesses do not affect their credibility. In the case at bar, however, as pointed

out by counsel *de parte* of appellant, the inaccuracies do not, in the aggregate, just refer to collateral matters. Each individual inconsistency or inaccuracy pointed out by appellant's counsel might, if considered by itself, not appear serious; when, however, these inconsistencies and inaccuracies are viewed in their totality, they appear to the Court substantially to erode the credibility of the Narcom officers and raise a not insubstantial doubt as to the veracity of the prosecution's theory that the accused had in fact been arrested as a result of a buy-bust operation. The doubt which has been generated in our mind relates, not to whether the accused had been arrested, but to whether or not a buy-bust operation had indeed been mounted and carried out and the accused's arrest effected in the course of such operation. It is very difficult for the Court to understand why, if a buy-bust operation had indeed been planned and executed by the Narcom officers, an operation which does not seem unusually complex and difficult, the testimonies of the Narcom officers about that operation and the modality thereof should not have been more forthright and specific and consistent with each other in relevant details.

4. ID.; ID.; ID.; MINOR INACCURACY IN THE TESTIMONY SHOULD NOT DESTROY THE CREDIBILITY OF THE WITNESS. — The testimony of accused was corroborated by two disinterested witnesses. As earlier noted, the trial court seriously doubted the credibility of the defense witnesses because their testimonies were apparently in conflict with respect to the precise actual positions of the vehicles that boxed-in accused's care. We do not understand why such an inaccuracy should have completely destroyed the credibility of the witnesses for the defense. The judge should have simply subjected their testimonies, specially that of Mrs. Salud Layag and Mr. Danilo de la Pasion, to the ordinary processes of evaluation and accordingly assigned to such testimony the weight and probative value called for.

5. ID.; ID.; PROOF BEYOND REASONABLE DOUBT, NOT ESTABLISHED.— It was incumbent upon the prosecution to demonstrate accused's culpability beyond reasonable doubt. Independently of whatever defense has been offered by the accused, the evidence of the prosecution must survive the test of moral certainty. Conviction must rest on the strength of the prosecution's evidence, not merely on the presumption of

regularity of performance of official duty, and certainly not on the weakness of the accused's defense; otherwise, the constitutional presumption of innocence will be reduced to a conspicuous futility. In the light of the facts and circumstances on record, the Court finds that the evidence adduced by the prosecution was insufficient to support accused's culpability. The presumption of regularity of the performance of the official duty does not by itself overcome the presumption of innocence to which accused is entitled. The prosecution has failed to discharge its burden of proving accused's guilt beyond reasonable doubt; the Court's mind and conscience remain vexed and uneasy.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Prospero A. Crescini for accused-appellant.

D E C I S I O N

FELICIANO, *J.*:

This is an appeal from the decision of the trial court finding appellant Renato Pastores *y* Avila guilty beyond reasonable doubt of selling "*shabu*".

Renato Pastores was prosecuted for violation of R.A. No. 6425, the Dangerous Drugs Act of 1972. The criminal information alleged:

"That on or about the 30th day of July, 1991, in Quezon City, Metro Manila, Philippines, and within the jurisdiction of this Honorable Court, the above-named accused, without any authority of law, did, then and there wilfully, unlawfully and feloniously sell, deliver and give away .65 gram of *methamphetamine hydrochloride* (*shabu*), a regulated drug, worth ₱600.00, Philippine Currency, to one Sgt. Cresendo Molina, who acted as poseur-buyer, in violation of the aforesaid law.

Contrary to law."[1]

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[1] *Rollo*, p. 6; 3 Records, p. 1.

Appellant on arraignment entered a plea of not guilty, and the case proceeded to trial.

On 28 January 1992, the trial court convicted the accused and sentenced him as follows:

"Wherefore, finding the accused RENATO PASTORES *Y* AVILA guilty beyond reasonable doubt of the crime charged, as defined and penalized under Section 15, Article III, Republic Act 6425, otherwise known as the Dangerous Drugs Act of 1972, as amended by PD 1683, he is hereby sentenced to suffer life imprisonment and to pay a fine of ₱20,000.00 without subsidiary imprisonment in case of insolvency, plus costs.

So Ordered."[2]

Appellant, in his brief,[3] ascribed the following errors to the trial court:

1. The court *a quo* erred in convicting the accused on the basis of doubtful evidence.

2. The court *a quo* erred in rejecting the evidence of the defense on the basis of speculation.

3. The court *a quo* erred in giving more weight to the disputable presumption of regularity in the performance of official duty than the constitutional presumption of innocence.

4. The court *a quo* erred in not acquitting the accused on the basis of reasonable doubt.

The evidence of the prosecution consisted principally of the testimonies of four (4) witnesses, namely: (1) P/Sgt. Cresendo Molina, (2) P/Sgt. Rodrigo Ventura, (3) P/Cpl. Jaime Amor and (4) P/Lt. Elizabeth Ayonon. A plastic bag containing "*shabu*", and six (6) marked one hundred peso (₱100) bills allegedly seized from the accused, were offered in evidence. P/Lt. Ayonon was the forensic chemist who conducted the laboratory examination of the bag of "*shabu*" here involved.

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[2] *Id.*, p. 32; Certified Xerox Copy of the decision dated 28 January 1992 is attached to Appellant's Brief, p. 46.

[3] *Id.*, p. 46.

The testimonies of the four witnesses for the prosecution were summarized by the trial court, as follows:

"P/Cpl Jaime Amor (Cpl. Amor, for short), Sgt. Cresendo Molina (Sgt. Molina, for short) and Sgt. Rodrigo Ventura (Sgt. Ventura, for short) are (*sic*) assigned to the Special Task Force Unit, Quezon City Anti-Drug Abuse Council, Office of the Vice Mayor, Quezon City Hall. On complaints received by said office which were listed in a logbook, that a certain "Rey" Pastores ("Rey", for short) has been selling prohibited drugs in La Loma, a surveillance was conducted by them. On July 30, 1991 at about 4:00 o'clock in the afternoon, a confidential informant called the Quezon City Anti-Drug Abuse Council, with the information that "Rey" has been peddling "*shabu*". Sgt. Molina, Sgt Ventura, Cpl Amor and their Officer-in-charge Fernando M. Vinculado (Vinculado, for short) set up a buy-bust operation at the corner of Iba and Cuenco streets, La Loma, Quezon City. Sgt. Molina was designated as the poseur-buyer and was given six ₱100.00 bills which he receipted for and on which he affixed his initial under the logo of the Central Bank (Exhibits D, D-1 to D-6). Thereafter, Sgt. Molina contacted the confidential informant for the latter to arrange the sale with "Rey". At about 6:00 o'clock in the evening of that same day, Sgt. Molina, Sgt. Ventura and a certain Sgt. Malipayon proceeded to the area of operation at the corner of Iba and Cuenco streets. Sgt. Molina parked his car at Cuenco street about 6 meters from the corner and alighted leaving Sgt. Ventura and Sgt. Malipayon inside to wait for the pre-arranged signal which was the scratching or touching of Molina's head. "Rey" arrived in a red Ford Cortina car at about 7:00 o'clock in the evening. He parked along Iba Street near the corner. He alighted and talked with the confidential informer near the corner of Iba and Cuenco streets. Sgt. Molina was about 10 meters away. Then the confidential informant called Sgt. Molina and introduced him to "Rey" as a friend and buyer. Sgt. Molina told "Rey" that he has ₱600. "Rey" went to his car. When he returned to Sgt. Molina, "Rey" handed a plastic bag containing white crystalline powder suspected for *methamphetamine hydrochloride* popularly known as "*shabu*" (*shabu*, for short). Sgt. Molina in turn handed the six marked ₱100.00 bills to "Rey", who received it, then Sgt. Molina scratched his head. Thereupon, Sgt. Ventura and Sgt. Malipayon rushed to them and pounced on the suspect. As they were boarding "Rey" in the car of Molina, Sgt. Amor arrived. Sgt. Ventura drove the car of Molina while Molina drove the car of the accused and they all proceeded to Quezon City Hall. The six

marked ₱100.00 bill were recovered from "Rey's" pocket. Sgt. Molina turned him over to Sgt. Amor for interrogation together with the plastic bag containing suspected "*shabu*" (Exhibit G) and the six marked ₱100.00 bills (Exhibits D-1 to D-6). Sgt. Ventura conducted a search on the car of "Rey" but did not find anything. During the interrogation "Rey" gave his true name as Renato Pastores but refused to give his statement. Sgts. Molina and Ventura gave their written statements (Exhibits A, A-1, B, B-1). On the following day Sgt. Amor turned over the plastic bag containing suspected "*shabu*" and the letter request for laboratory examination signed by Vinculado, addressed to the chief, PNP Crime Laboratory Service, Camp Crame (Exhibits C, C-1, H-2, H-3). Laboratory examination was conducted by Forensic Chemist P/Lt. Elizabeth L. Ayonon on the contents of the plastic bag and was found positive for 0.65 gram of *Methamphetamine Hydrochloride*, a regulated drug (Exhibits E, H). In a referral letter, the matter was referred to the Quezon City Prosecutors Office for proper disposition (Exhibit F). Sgts. Molina and Ventura drew and sketched the buy-bust area (Exhibits I, J)."[4]

The accused-appellant presented another version of the facts leading to his arrest on 30 July 1991 which was summarized by the trial court as follows:

". . . On July 30, 1991 at about 6:00 o'clock in the evening, accused left his house to go to his sister-in-law at Mariveles street to borrow money for the registration of his wife's car (Exhibits 13, 14, 17, 17-a to 17-c) in addition to the ₱400.00 which he had in his pocket then. His sister-in-law gave him ₱2,940.00. Thereafter, he went to the house of John Corpus also at Mariveles street and chanced upon Rafael and Dindo Antonio who arrived there earlier. They talked about the fighting cock that they will use in the San Juan Derby. After about 30 minutes accused left but when he was at Cuenco Street he remembered that he forgot to relay to his sister-in-law his wife's message for his sister-in-law. Instead of turning back he decided to park his car in front of Iba and Cuenco Streets and just walk back to his sister-in-law's house which was about 20 meters away. Before he could step out of the car, a red Toyota car blocked his car in front; another vehicle parked right on accused car's side and another vehicle, a Ford Fiera at the back. Armed men, among them, Sgts. Molina and Ventura, alighted. Sgts. Ventura and Molina poked

[4] *Id.*, pp. 20-23; see also Certified Xerox Copy of the Decision in Appellant's Brief, p. 46.

a gun at him and forced him to step out of the car. Accused followed and was ordered to place his hands on top of his car while Sgt. Molina searched his body but did not find anything. They dragged him and boarded him at the back seat of Sgt. Molina's car. This incident was allegedly witnessed by Layag and de la Pasion who executed their affidavits (Exhibits 8, 8-A, 9, 10, 10-a).

Sgt. Molina took the accused's Citizen diver's watch worth ₱6,000.00. His car was driven by Sgt. Molina while Molina's car was driven by Sgt. Ventura. He sat at the back with Sgt. Ventura and Cpl. Amor. While inside the car Cpl. Amor took the ₱400.00 from the accused's pocket. They proceeded to the SOU, NARCOM, Camp Crame. Msgt. Jose C. Pedrosa was there. While at said office, Sgt. Molina ordered him to undress and took the ₱2,940.00 which he borrowed from his sister-in-law. Sgt. Molina asked him where he was hiding the "*shabu.*" Thereafter he was directed to dress up and board the back seat of Sgt. Molina's car. Msgt. Pedrosa, Sgts. Molina and Ventura likewise boarded the car. They proceeded to the police headquarters at EDSA where Sgt. Molina dropped off. Then they drove to the gasoline station at Timog. After 15 minutes Sgt. Molina arrived and accused was directed to remove his T-Shirt, handcuffed and blindfolded with his T-shirt which the police officers tore. The car moved and he heard someone asking where they will throw him. Accused pleaded to them not (*sic*) do it because he is innocent. They stopped for a while and Vinculado arrived and the accused was transferred to another vehicle. They proceeded to Camp Crame. His blindfold was removed in Camp Crame and he was brought to Vinculado. Vinculado asked him if he knew Bebot Remolacio and Gary Sugid but when he answered no he was blindfolded again and maltreated for more than more or less one hour. He sustained injuries but was not brought to a doctor despite his request. He was detained at the NIU detention cell for 2 months."[5]

The version of the accused, with respect to the circumstances leading to his arrest by the special task force, was corroborated by Mrs. Salud Layag and Mr. Danilo de la Pasion.

Mrs. Layag testified that at about 7:00 in the evening of 30 July 1991 she saw the accused about to park his car in front of her *sari-sari* store. She noticed three vehicles quickly close-in

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[5] Brief for the Accused-Appellant, pp. 9-12; *Rollo*, p. 46.

on accused's car. Plainclothesmen with long and short firearms alighted from these vehicles. Two armed men on board the red car which led the pack of vehicles directed appellant to step out of the car and raise his arms behind his head. These men bodily searched appellant. Mrs. Layag was about three (3) meters away from the accused and the men who searched appellant. After the precipitate search, accused was placed on board the red car and the team drove away.

Danilo de la Pasion testified that he was relaxing on a bench of Mrs. Layag's store some four (4) meters away from accused's car when a red Toyota cut across the path of the accused and two (2) other vehicles hemmed in closely behind accused's car. De la Pasion declared that two (2) armed men from the red Toyota went over to accused who was seated inside the car and without any companion. The accused stepped out of his vehicle upon orders of the two (2) men. De la Pasion noticed that these men were searching for something. De la Pasion declared that he could clearly see the faces of the men who searched accused and the car because of the bright fluorescent light of Mrs. Layag's store that night. After the search, the accused was placed on board the red Toyota. One of the two (2) armed men drove accused's car and the team of four (4) cars sped away.

Clearly, there is here an irreconcilable conflict between the testimonies of the police officers, on the one hand, and the statements given on the witness stand by the accused, Mrs. Layag and Mr. Pasion, on the other. The trial judge, who had the opportunity to observe the detailed demeanor of all witnesses and to listen to their respective testimonies, gave "full faith and credit" to the declarations made by the prosecution witnesses. The narration given by law enforcers outweighed that of the witnesses for the defense because, according to the trial court, the witnesses for the prosecution were Narcom agents presumed to have regularly performed their duties while accused-appellant was a notorious drug pusher. The trial judge concluded that the defense of extortion was the accused's attempt to taint with illicit motives the acts of on the Narcom agents.[6]

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[6] See Decision dated 28 January 1992; Records, p. 46.

This Court, ordinarily, would rely upon the settled principle that "findings of the trial court on the issue of credibility of witnesses and their testimonies are entitled to great respect and accorded the highest consideration by appellate courts."[7] There are of course well-recognized exceptions. When (1) the conclusion was a finding grounded entirely on speculations, surmises and conjectures; or, (2) the inference drawn was manifestly mistaken, absurd or impossible; or, (3) there was grave abuse of discretion; or (4) the judgment was based on a misapprehension of facts; or (5) the court, in making its findings, went beyond the issues of the case and the same are contrary to the admissions of both appellant and the appellee, the Court has not hesitated to disregard the trial court's rulings on questions of fact.[8]

We have carefully scrutinized the evidence on record and it appears to us that there was some misapprehension of facts in this case and either a deriving of inferences from the facts which are manifestly mistaken or a failure to draw reasonable inferences from the facts shown on the record.

Firstly, the Court notes that the testimonies, both oral and documentary, of the prosecution's witnesses were replete with inaccuracies and inconsistencies which engender serious doubts as to the veracity of the Narcom agents' narration of the circumstances leading to the arrest of the accused.

Sgts. Molina and Ventura, as well as Cpl. Amor, testified that the accused was arrested during a buy-bust operation carefully planned by their Officer-in-charge, Capt. Vinculado. During the supposed planning meeting, these witnesses were present and were assigned specific tasks. Sgt. Molina was designated as poseur-buyer while Sgt. Ventura and Cpl. Amor were directed

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[7] See *People vs. Gerones*, 193 SCRA 263 (1991); *People vs. Natan*, 193 SCRA 355 (1991); *People vs. Umali*, 193 SCRA 493 (1991); *Concepcion vs. CA*, 193 SCRA 586 (1991); *People vs. Martinada*, 194 SCRA 36 (1991); *People vs. Arenas*, 198 SCRA 172 (1991).

[8] *People vs. Deocariza*, G.R. No. 103396, 3 March 1993; *People vs. Salcedo*, 195 SCRA 345 (1991); *People vs. Yutuc*, 188 SCRA 1 (1990); *People vs. Taruc*, 157 SCRA 182 (1988); *Arcado Cortes y Vengson vs. Court of Appeals and People*, 163 SCRA 139 (1988).

to provide the necessary back-up. The team used two cars: Sgt. Molina, Sgt. Ventura and Sgt. Malipayon were on board one, while Cpl. Amor and his driver were in the other.[9] Yet, the responses elicited from the three witnesses at the witness stand reveal that Cpl. Amor was not present during the actual operation. In fact, he arrived only after the accused had been apprehended and he proceeded to the premises for the purpose of conducting an investigation of the circumstances leading to the arrest of the accused.

Sgt. Molina, the poseur-buyer, appeared uncertain about several aspects of the transaction between himself and the accused. In his sworn affidavit, marked and offered in evidence as Exhibit "A"[10] and executed on the night of the buy-bust operation, he declared that he handed the marked bills to the accused *before* the bag of white powder was delivered to him. On direct examination in open court, he testified that he delivered the marked money *after* the bag was handed to him by the accused.[11] The defense counsel pointed out to Sgt. Molina the apparent discrepancy between the statements contained in Exhibit "A" and those made on the witness stand. Sgt. Molina agreed with the defense counsel that his (Molina's) memory was accurate at the time he executed his affidavit. Yet when Fiscal Gabriel, in the latter's attempt to re-instate the credibility of the witness, asked Sgt. Molina on re-direct examination which of his statements — those contained in his affidavit and those made on the witness stand — were true and correct, Sgt. Molina declared that his statement on the stand was the true and correct narration of the events. His testimony was recorded as follows:

"Prosecutor Gabriel to Sgt. Molina on direct examination:

Q: Which is true, which truth do you want the Court to understand, that which is placed in your affidavit, or that which you testified the last time around?

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[9] See TSN, 7 October 1991; 1 Records, p. 32. TSN, 21 October 1991, p. 27; Records, p. 129; TSN, 15 October 1991, p. 7, Records, p. 68.

[10] See 2 Records, p. 1.

[11] TSN, 15 October 1991, p. 13; Records, p. 74.

A: *Sir, in my affidavit sir.*

Q: *You are retracting again what you said in open court*?

A: *What was the question before*?

Court to the interpreter:

You translate for the second time, or third time.

A: No sir, *the one I am testifying here in Court is the truth*." (Italics supplied)

Later, however, Sgt. Ventura, who was allegedly just a few meters away from the supposed negotiation and whose testimony was offered to corroborate the testimony of Sgt. Molina, contradicted the testimony of the supposed poseur-buyer Sgt. Molina. The testimony on direct examination of Sgt. Ventura, in pertinent part, follows:[12]

Prosecutor Gabriel:

"Q: When the accused talked to Sgt. Molina, what happened next?

A: I saw Sgt. Molina gave (*sic*) something to the suspect which I am very sure that it was the buy-bust money. *Binonot niya po sa bulsa niya 'yong pera*. He was taking out the money from his pocket.

Q: After Sgt. Molina drew the money from his pocket, what happened?

A: He gave it to the suspect.

Q: *After he gave the money to the suspect, what next transpired*?

A: *The suspect went back to his car and got something from the compartment and returned to Molina.*

Q: After that what happened?

A: *I saw him gave a transparent plastic bag to Molina.*

Q: How far were you from Molina and the accused at the time that was happening?

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[12] TSN, 21 October 1991, p. 32; 1 Records, p. 134.

A: *Just near, sir, about seven to 10 meters*." (Italics supplied)

Sgt. Molina also gave conflicting accounts of incidents which allegedly transpired prior to his encounter with accused-appellant. Sgt. Molina, during his direct examination, outlined the relevant events: first, a tip from an informer was phoned-in; then, the operation was mapped out by Capt. Vinculado; thereafter, the "asset" (*i.e.*, informer) was again contacted by phone to set-up a meeting between accused and Sgt. Molina. The following testimony of Sgt. Molina is pertinent:

Prosecutor Gabriel to Sgt. Molina on direct-examination:

"Q: About 5:00 o'clock in the afternoon of that day, do you remember of anything to which your attention was called?

A: Yes, sir.

Q: What was that?

A: When our confidential informant called us in our office that a certain *alias* Rey Pastores was engaged in the delivery of *metamphetamine chloride*, commonly known as *shabu*."[13]

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Q: What did you do when he revealed that information?

A: I asked (*sic*) my commanding officer Capt. Fernando Vinculado that one *alias* Rey Pastores was selling *shabu* and delivering *metamphetamine hydrochloride*.

Q: And what was the reaction of your superior?

A: He set a buy-bust operation, along corner Iba and Cuenco Streets, Laloma.

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Q: Now what actually was the pattern set forth by the buy-bust operation?

A: I was designated as poseur-buyer, by our commanding officer.

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[13] TSN, 15 October 1991, p. 6; Records, p. 67.

Q: And being designated as poseur-buyer, what was your designated mode of action or activity? What were you supposed to do as poseur-buyer?

A: To receive the money and contact again the confidential informant.[14]

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Q: *After receiving the six one hundred peso bills from Capt. Vinculado, what did you do*?

A: *We set the operation, sir.*

Q: *How did you set it up*?

A: I was to act as poseur-buyer. *We contacted the confidential informant to set-up the buy-bust operation.*

Q: *What time was the buy-bust operation set up*?

A: *At around past 6:00 o'clock.*

Q: I see. How were you able to contact your confidential informant?

A: Through telephone sir.[15]

Yet, on cross-examination, Sgt. Molina recalled that *their informant had tipped them off about the illegal activities of the accused, and had informed the Narcom agents that a meeting had been arranged between accused and Sgt. Molina.* Sgt. Molina said on cross-examination:

"Atty. Crecini to Sgt. Molina on cross-examination:

Q: And so, how were you able or *from whom were you able to obtain the information that the supposed sale between you,* pretending to be the buyer, *and the accused, would take place at 7:30 in the evening of that date*?

A: *My informant, sir.*

Q: So, after calling you at 4:00 o'clock are you saying that he called you again?

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[14] *Id.*, p. 7; Records, p. 68.

[15] *Id.*, p. 9; Records, p. 70.

A: No, sir. He did not call me up again.

Q: *Are you saying that when he called you at 4:00 o'clock, July 30, 1991, he already told you that he has made an appointment to meet with the accused at 7:30 in that evening*?

A: *Yes, sir.*

Q: *Are you very sure about it*?

A: *Yes, sir*."[16] (Italics supplied)

There are other gaps and inconsistencies in the testimonies of the prosecution witnesses relating to the buy-bust operation that Narcom agents claimed to have planned and executed. Notably, for instance, the prosecution witnesses could not agree on whether or not, or by whom, the car driven by appellant Pastores was searched by the police for drugs or other contraband items. The extraordinary testimony of the prosecution witnesses on this point is summarized by the defense in the following terms:

"*Cpl. Amor* testified that *he did not search* the car driven by appellant because *he was told by Sgts. Molina and Ventura that they already searched it and found nothing inside* (t.s.n., October 7, 1991, pp. 28-30). *Sgt. Molina, however, said that he never searched the appellant's car* either at the site of the operation or at their office at City Hall (t.s.n., October 15, 1991, pp. 25-26). *Sgt. Ventura* gave an entirely opposing version. He *said* that at the scene of the operation, they did not search the car of the accused, but when they reached their headquarters, *he, Sgt. Molina and Cpl. Amor searched the car*! (t.s.n., October 21, 1991, pp. 49-50)."[17] (Italics supplied)

Even the very composition of the police team sent to carry out the operation, and the participation of each member, became the subject of murky and inconsistent testimony from the police witnesses which has been summarized by appellant's counsel as follows:

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[16] TSN, 21 October 1991, p. 3; Records, p. 106.

[17] Brief for the Accused-Appellant, p. 20.

"x x x [*Sgt. Molina] has never satisfactorily explained why* in his affidavit (Exhibit 'A'), *he placed Cpl. Amor as a member of the back-up team* when he (and Sgt. Ventura) knew only too well that *the other member was Agent Malipayo, not Cpl. Amor*. The versions of these three as to the presence of Cpl. Amor at Iba Street are at head-on collisions. *Cpl. Amor said that he proceeded to Iba Street because Sgts. Molina and Ventura called him at their office* and that was *after* appellant had been arrested (October 7, 1991, p. 20).

For his part, Sgt. Molina said that he was surprised when he saw Cpl. Amor arrive at the scene of the buy-bust operation because Cpl. Amor, as investigator, was supposed to be on duty in their office at City Hall awaiting the outcome of their operation. *He said he never told Cpl. Amor to join them there at Iba Street either before or after the operation* (October 15, 1991, pp. 23-24).

Sgt. Ventura gave a different account. He said that Cpl. Amor was supposed to be with him as back-up but Cpl. Amor was just delayed along the way (October 21, 1991, p. 26). But in answer to the question of the court, Sgt. Ventura said that when they went to the place of the buy-bust operation, he was with Sgt. Molina and Malipayon in one car, and in the other, Cpl. Amor and his driver (*Id*., p. 27). Asked by Pros. Gabriel what was the participation of Cpl. Amor in the buy-bust operation, *Sgt. Ventura admitted that Cpl. Amor arrived after the arrest of the appellant (Id.,* pp. 38, *51). Sgt. Ventura categorically denied having called Cpl. Amor by telephone to follow them at the area of operation* (*Id*., p. 51)."[18] (Italics supplied)

We must note that the Office of the Solicitor General failed to address and reconcile the inconsistencies in the testimonies of the prosecution witnesses which appellant's counsel had underscored.[19]

Generally, we have declared that minor inconsistencies in the testimony of witnesses do not affect their credibility.[20] In the case at bar, however, as pointed out by counsel de parte of

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[18] *Id.,* pp. 21-22.

[19] Appellee's Brief, *Rollo,* p. 57.

[20] See *People vs. Barba*, 203 SCRA 436 (1991); *People vs. Bragaes*, 203 SCRA 555 (1991).

appellant, the inaccuracies do not, in the aggregate, just refer to collateral matters. Each individual inconsistency or inaccuracy pointed out by appellant's counsel might, if considered by itself, not appear serious; when, however, these inconsistencies and inaccuracies are viewed in their totality, they appear to the Court substantially to erode the credibility of the Narcom officers and raise a not insubstantial doubt as to the veracity of the prosecution's theory that the accused had in fact been arrested as a result of a buy-bust operation.[21] The doubt which has been generated in our mind relates, not to whether the accused had been arrested, but to whether or not a buy-bust operation had indeed been mounted and carried out and the accused's arrest effected in the course of such operation. It is very difficult for the Court to understand why, if a buy-bust operation had indeed been planned and executed by the Narcom officers, an operation which does not seem unusually complex and difficult, the testimonies of the Narcom officers about that operation and the modality thereof should not have been more forthright and specific and consistent with each other in relevant detail.

Secondly, we do not agree with the trial court's conclusion that sufficient evidence had been adduced establishing accused's notoriety as a drug pusher. Sgt. Molina's bare testimony is not sufficient to establish the charge that the accused had regularly peddled or traded "*shabu*" along Iba and Cuenco Streets, La Loma, Quezon City.[22] Neither does an allegation by Sgt. Molina that accused's name was included in the Order of Battle, a police logbook said to contain the names of notorious drug pushers, sufficiently prove that accused had in fact been involved in illegal activities. The surveillance supposedly conducted by Narcom agents had apparently been carried out in such a relaxed and casual manner as to render the state's witnesses unable to answer elementary questions about the accused, much less questions concerning the extent of the drug trade going-on in Iba and

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[21] See also *People vs. Remorosa*, 200 SCRA 350 (1991); *People vs. Lim*, 196 SCRA 809 (1991).

[22] See Testimony of Sgt. Molina, TSN, 15 October 1991, p. 6; Records, p. 67.

Cuenco Streets. The testimony of Sgt. Molina as to the nature and extent of the surveillance said to have been carried out prior to appellant's arrest, was as follows:

"Fiscal Gabriel to Sgt. Molina on direct examination:

Q: In this statement Exhibit A, *you stated among other things that you conducted surveillance over the accused before the buy-bust operation. Why was it necessary for you to conduct a surveillance*?

A: *Because of the many reports to us, sir, about him.*

Q: *How long did you place him under surveillance before the buy-bust operation*?

A: *More or less, one (1) month,* sir.[23]

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Atty. Crescini to Sgt. Molina on cross examination:

Q: During the one month surveillance that you conducted, you (*sic*) *were never able to determine or find out where the accused was living*?

A: *No, sir.*

Q: Did you exert effort to locate where the accused was living considering that there were many complaints against him? did you exert efforts?

A: We exerted efforts, sir.

Q: What effort did you exert?

A: To find out those who know him.

Q: All right. You received numerous complaints. *Were you able to determine the identities of these complainants to verify the truth of their complaints*?

A: *No sir. It was reported through the telephone.*

Q: So these complaints were *anonymous telephone calls*?

A *Yes, sir.*

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[23] TSN, 15 October 1991, p. 17; Records, p. 78.

Q: There was never anyone who gave his name to you so that you could verify how true or how false the complaint was?

A: *No, sir. Nobody gave a name*. That is why we conducted a surveillance.

Q: Very good. *What did the surveillance consist of. Did you go to that area of Iba and Cuenco street to make inquiries* about these alleged activities of the accused?

A: Yes, sir. *I went there twice.*

Q: *Did you talk to anyone who provided you with positive information*?

A: *Yes*, sir, *a certain Rudy*.

Q: *What is the full name of Rudy*?

A: *Hindi ko po maano.*

Q: What do you mean "*hindi maano*"?

A: *I do not know the full name.*

Q; But you talked to him?

A: Yes, sir.

Q: *Did you ask him what is his full name*?

A: *No, sir.*

Q: Did you not ask him where he lives?

A: I asked him, sir.

Q: *Did he give you his address? his exact address*?

A: *No, sir.*

Q: I am asking whether Rudy gave you his address?

A: *Yes, I asked him.*

Q: Did he refuse to give you?

A: No, sir. *He did not refuse to give his address, but he just told me that he is from that place.*

Q: And you were satisfied with listening to the story of this Rudy whose address you did not even bother to find out?

A: No, sir.

Q: All right. *If you were not satisfied with the statement of Rudy did you obtain additional information to satisfy you*?

A: Yes, sir.

Q: *Who else did you interview from that place? name (sic) names if you can.*

A: *I cannot remember anymore, sir*."[24] (Italics supplied)

The amount of "*shabu*" allegedly confiscated from appellant at the time of the bust detracts from the trial court's conclusion that accused was a notorious drug pusher. We note that the anonymous informant had advised the Narcom operatives that heavy drug trafficking was going-on in Iba and Cuenco Streets. Yet, only a fraction of a gram was confiscated from accused. No other substance was found in the vehicle driven by the accused.

Thirdly, the testimony of accused was corroborated by two disinterested witnesses. As earlier noted, the trial court seriously doubted the credibility of the defense witnesses because their testimonies were apparently in conflict with respect to the precise actual positions of the vehicles that boxed-in accused's car.[25] We do not understand why such an inaccuracy should have completely destroyed the credibility of the witnesses for the defense. The judge should have simply subjected their testimonies, specially that of Mrs. Salud Layag and Mr. Danilo de la Pasion, to the ordinary processes of evaluation and accordingly assigned to such testimony the weight and probative value called for.

The testimony of accused, as corroborated by Salud Layag and Danilo de la Pasion, was to the effect that no buy-bust operation had in fact been conducted. The accused had just pulled over to the corner of the street and was about to alight from his car when three (3) vehicles came and boxed his car in between; he was forthwith arrested. The character of the accused may not be unblemished. He admitted using "*shabu*" before.

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[24] TSN, 15 October 1991, p. 34; Records, p. 95.

[25] See Decision, pp. 28, 29; Records, p. 46.

His chosen occupation may not be admirable either. He admitted that he was engaged in loaning large sums of money to gamblers. But these circumstances, by themselves, do not disqualify accused-appellant as a competent witness. Moreover, his testimony, independently of his bad or good moral character, was not inherently improbable. The trial court had no adequate basis for concluding that the testimonial evidence of appellant as "absurd, illogical and incredible."[26]

We are also concerned over the perfunctory way the trial court disregarded appellant's charges of maltreatment. The accused, during the preliminary investigation conducted upon his request, filed counter charges against the Narcom agents for grave threats, grave coercion, robbery and perjury.[27] During the trial of the case, the accused gave a straightforward and detailed account of his experiences while in the custody of his captors for more than two (2) months.[28] The trial court completely ignored the testimony of the accused, saying only that if the Narcom agents had maltreated the accused, the latter should have sought the help of his wife and his father who was also a police officer.[29] We do not see any necessary relationship between failure to seek assistance from one's relative and a finding that there was no maltreatment of a detainee by the detaining officers. Clearly, the inference reached by the trial judge was not sufficiently grounded on facts established during the trial.

Finally, we are aware that "frame-up" is a common defense in drug and other cases.[30] Frame-up, like alibi, may be a weak defense that is easily alleged.[31] The accused in the case at bar

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[26] Brief for the Accused-Appellant, p. 28.

[27] 3 Records, pp. 3, 4.

[28] TSN, 4 December 1991, pp. 2-10; 1 Records, pp. 232-238.

[29] Decision dated 28 January 1992, p. 14; Records, 46.

[30] See *People v. Tejada*, 170 SCRA 497 (1989).

[31] *People vs. Madarang*, 70569, 147 SCRA 123 (1987); *People vs. Paco*, G.R. No. 76893, 170 SCRA 681 (1989), see also *People vs. del Pilar*, G.R. No. 86360, 188 SCRA 37 (1989); *People vs. Vocente*, G.R. No. 80533, 188 SCRA 100 (1990).

stated that he had been subjected to harassment and extortion on at least two (2) previous occasions at the hands of police officers despite his innocence. Accused was, in other words, asserting that in the instant case he had been arrested, charged and jailed because he was unable to comply with extortionate demands of police officers. What is remarkable here is that the accused's testimony to this effect, as well as to the effect that he had been divested of cash and personal property he had with him at the time of his arrest, was very specific and concrete: names; dates; the values of particular personal property; and amounts demanded from and given by him to police officers, were specified. As summarized by the trial court, the testimony of appellant on these matters was as follows:

"Accused testified that Cpl. Amor robbed him of ₱400.00 cash and Sgt. Molina his diver's watch worth ₱6,000.00 and ₱2,940.00 cash which he borrowed from his sister-in-law for the registration of his wife's car. He claimed that he is a casino financier with a capital of up to a million and thereabout and that he lends money to casino gamblers from ₱50,000.00 to ₱100,000.00 with cars and checks as collateral. He has been in the business since 1985 until July 30, 1991 but at the time of the arrest he had no money. He cried (sic) to explain his seemingly pathetic financial state by saying that he had just lent ₱100,000.00 in May, 1991 to Mandy Antonio with the agreement that he shall pay him before Christmas of 1991 at 2% a day interest. Mandy Antonio is bankrupt, has a recruiting agency, and has gone to Japan but accused lent the money to him just the same without collateral because he simply trusted him. Unfortunately, Mandy Antonio has not paid him.

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Accused testified that there were previous occasions when he was apprehended because of '*shabu*.' The first was in 1988 when Lt. Jimmy Carbonell, Pat. Basco and Patrolman San Jose entered his house to arrest him for possession of '*shabu*' but the arrest was not pursued because he gave them ₱101,000.00. The second occasion was on February 23, 1991 when Lt. Rey Arceo, Cpl. James Baldomera and many others arrested him at the corner of Luna St. and Tacio Street also because of '*shabu*' but they did not file a case against him because he gave them ₱30,000.00. The third occasion happened

on April 10, 1991 when he was arrested by Sgt. Jack Jacinto, Cpl. Caballes Arturo, Amy Yerro and Sgt. Quitoriano. This time he did not give any money because his father P/Col. Alfredo Pastores intervened by talking with General San Diego. His father and General San Diego allegedly agreed that the accused was not released and instead a case was filed in court which is still pending before Judge Tirso D.C. Velasco. He claims that he is not guilty in all cases. He cannot give money anymore because he does not have any since his money worth ₱300,000.00 was lent to Mandy Antonio, a friend, who went to Japan and has not paid him yet. He executed a counter-affidavit (Exhibit 15). He found later that his wife's car was divested of its stereo, amplifiers, 4 speakers, spare tires, antenna, one pack of blue seal cigarette, Bally shoes and 35 pieces of cassette tapes x x x."[32]

Again, appellant's testimony on the above matters might not, by itself, suffice to tilt the balance of proof in his favor; the prosecution did not try to rebut appellant's detailed testimony, and the trial court airily waived away appellant's statements about having been robbed and about the extortion sought to be exercised on him. But his above testimony must be considered in conjunction with the weakness of the evidence given by the prosecution's witnesses previously discussed. Upon the one hand, appellant's defense of frame-up tends to reinforce the doubt already engendered by the weaknesses of the prosecution's evidence about the supposed buy-bust operation; upon the other hand, it was not indispensable or necessary to inquire into the truthfulness of appellant's allegations concerning frame-up and extortion where, as in this case, the evidence of the prosecution is weak.[33] It was incumbent upon the prosecution to demonstrate accused's culpability beyond reasonable doubt. Independently of whatever defense has been offered by the accused, the evidence of the prosecution must survive the test of moral certainty. Conviction must rest on the strength of the prosecution's evidence, not merely on the presumption of regularity of performance of

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[32] Trial Court Decision, pp. 6-7; *Rollo*, 25-26.

[33] *People v. Salguero,* 198 SCRA 357 (1991).

official duty, and certainly not on the weakness of the accused's defense; otherwise, the constitutional presumption of innocence will be reduced to a conspicuous futility.

In the light of the facts and circumstances on record, the Court finds that the evidence adduced by the prosecution was insufficient to support accused's culpability. The presumption of regularity of the performance of the official duty does not by itself overcome the presumption of innocence to which accused is entitled. The prosecution has failed to discharge its burden of proving accused's guilt beyond reasonable doubt; the Court's mind and conscience remain vexed and uneasy.

WHEREFORE, for failure of proof beyond reasonable doubt of his guilt, the accused Renato Pastores is hereby *ACQUITTED* of the crime charged. The decision of the trial court dated 28 January 1992 is hereby *REVERSED*. Costs *de oficio.*

SO ORDERED.

Bidin, Romero, Melo, and *Vitug, JJ.*, concur.

SECOND DIVISION

[G.R. No. 100776. October 28, 1993]

ALBINO S. CO, *petitioner, vs.* **COURT OF APPEALS and PEOPLE OF THE PHILIPPINES,** *respondents.*

SYLLABUS

1. POLITICAL LAW; CONSTITUTIONAL LAW; STATUTES; PRINCIPLE OF PROSPECTIVITY OF STATUTES APPLIED IN JUDICIAL AND ADMINISTRATIVE DECISIONS.— The principle of prospectivity of statutes,

original or amendatory, has been applied in many cases. These include: The prospectivity principle has also been made to apply to administrative rulings and circulars, to wit: *ABS-CBN Broadcasting Corporation v. CTA,* Oct. 12, 1981, 108 SCRA 142, holding that a circular or ruling of the Commissioner of Internal Revenue may not be given retroactive effect adversely to a taxpayer; *Sanchez v. COMELEC*, 193 SCRA 317, ruling the Resolution NO. 90-0590 of the Commission on Elections, which directed the holding of recall proceedings, had no retroactive applications; *Romualdez v. CSC*, 197 SCRA 168, where it was ruled that CSC Memorandum Circular No. 29, s. 1989 cannot be given retrospective effect so as to entitle to permanent appointment an employee whose temporary appointment had expired before the Circular was issued. The principle of prospectivity has also been applied to judicial decisions which, "although in themselves not laws, are nevertheless evidence of what the law means, ** (this being) the reason why under Article 8 of the New Civil Code, 'Judicial decisions applying or interpreting the laws or the Constitution shall form a part of the legal system * *."

2. ID.; ID.; ID.; ID.; RATIONALE BEHIND THE PROSPECTIVITY PRINCIPLE OF JUDICIAL DECISIONS.— A compelling rationalization of the prospectivity principle of judicial decisions is well set forth in the oft-cited case of *Chicot County Drainage Dist. V. Baxter States Bank,* 308 US 371, 374 [1940]. The *Chicot* doctrine advocates the imperative necessity to take account of the actual existence of a statute prior to is nullification, as an operative fact negating acceptance of "a principle of absolute retroactive invalidity."

3. ID.; ID.; ID.; ID.; THE RULING IN *QUE V. PEOPLE* THAT A CHECK ISSUED MERELY TO GUARANTY THE PERFORMANCE OF AN OBLIGATION IS NEVERTHELESS COVERED BY B.P. 22 SHOULD NOT BE GIVEN RETROSPECTIVE EFFECT.— The weight of authority is decidedly in favor of the proposition that the Court's decision of September 21, 1987 in *Que v. People*, 154 SCRA 160(1987) — *i.e.*, that a check issued merely to guarantee the performance of an obligation is nevertheless covered by B.P. Blg. 22 — should not be given retrospective effect to the prejudice of the petitioner and other persons similarly situated.

4. ID.; ID.; ID.; ID.; THE RULING IN *GO CHICO* CASE NOT APPLICABLE IN CASE AT BAR. — Inveighing against this proposition, the Solicitor General invokes *U.S. v. Go Chico*, 14 Phil. 128, applying the familiar doctrine that in crimes *mala prohibita*, the intent or motive of the offender is inconsequential, the only relevant inquiry being, "has the law been violated?" The facts in *Go Chico* are substantially different from those in the case at bar. In the former, there was no official issuance by the Secretary of Justice or other Government officer construing the special law violated; and it was there observed, among others, that "the defense **(of) an honest misconstructions of the law under legal advice" could not be appreciated as a valid defense. In the present case, on the other hand, the defense is that reliance was placed, not on the opinion of a private lawyer but upon an official pronouncement of no less than the attorney of the Government, the Secretary of Justice, who opinions, though not law, are entitled to great weight and on which reliance may be placed by private individuals as reflective of the correct interpretation of a constitutional or statutory provision; this, particularly in the case of penal statutes, by the very nature and scope of the authority that resides in his office as regards prosecutions for their violation. *Senarillos vs. Hermosisima, supra*, relied upon by the respondent Court of Appeals is crudially different in that in said case, as in *U.S. vs. Go Chico, supra*, no administrative interpretation antedated the contrary construction placed by the Court on the law invoked.

APPEARANCES OF COUNSEL

Antonio P. Barredo for petitioner.
The Solicitor General for respondents.

D E C I S I O N

NARVASA, *C.J.*:

In connection with an agreement to salvage and refloat a sunken vessel — and in payment of his share of the expenses of the salvage operations therein stipulated — petitioner Albino Co delivered to the salvaging firm on September 1, 1983 a check

drawn against the Associated Citizens' Bank, postdated November 30, 1983, in the sum of ₱361,528.00.[1] The check was deposited on January 3, 1984. It was dishonored two days later, the tersely-stated reason given by the bank being: "CLOSED ACCOUNT."

A criminal complaint for violation of *Batas Pambansa Bilang 22*[2] was filed by the salvage company against Albino Co with the Regional Trial Court of Pasay City. The case eventuated in Co's conviction of the crime charged, and his being sentenced to suffer a term of imprisonment of sixty (60) days and to indemnify the salvage company in the sum of ₱361,528.00.

Co appealed to the Court of Appeals. There he sought exoneration upon the theory that it was reversible error for the Regional Trial Court to have relied, as basis for its verdict of conviction, on the ruling rendered on September 21, 1987 by this Court in *Que v. People*, 154 SCRA 160 (1987)[3] — *i.e.*, that a check issued merely to guarantee the performance of an obligation is nevertheless covered by B.P. Blg. 22. This was because at the time of the issuance of the check on *September 1, 1983*, some four (4) years prior to the promulgation of the judgment in *Que v. People* on *September 21, 1987*, the delivery of a "rubber" or "bouncing" check as guarantee for an obligation was not considered a punishable offense, an official

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[1] As found by the Court of Appeals, the agreement was between Co, representing Mayflower Shipping Corporation, and Geronimo B. Bella, representing Tans-Pacific Towage, Inc. The expenses for refloating were apportioned chiefly between FGU Insurance and Development Bank of the Philippines, which respectively contributed ₱2,329,022.00 and ₱1,579,000.00. SEE *rollo*, pp. 9, 20-21.

[2] Otherwise known as the "Bouncing Checks Law".

[3] The ruling is contained in an extended resolution on a motion for reconsideration, promulgated by the Special Former Second Division of the Court on *September 21, 1987*, written for the division by Paras, *J.*, with whom concurred Fernan, Gutierrez, Jr., Padilla, Bidin and Cortes, *JJ. In that resolution, the Court gave its "stamp of approval" on the decision of the Court of Appeals holding inter alia that "It is now settled that Batas Pambansa Bilang 22 applies even in cases where dishonored checks are issued merely in the form of a deposit or a guarantee*."

pronouncement made in a Circular of the Ministry of Justice. That Circular (No. 4), dated *December 15, 1981*, pertinently provided as follows:

"2.3.4. Where issuance of bouncing check is neither estafa nor violation of B.P. Blg. 22.

Where the check is issued as part of an arrangement to guarantee or secure the payment of an obligation, whether pre-existing or not, the drawer is not criminally liable for either estafa or violation of B.P. Blg. 22 (Res. No. 438, s. 1981, *Virginia Montano vs. Josefino Galvez*, June 19, 1981; Res. No. 707, s. 1989; *Alice Quizon vs. Lydia Calingo*, October 23, 1981, Res. No. 769, s. 1981, *Alfredo Guido vs. Miguel A. Mateo, et al.*, November 17, 1981; Res. No. 589, s. 1981, *Zenaida Lazaro vs. Maria Aquino*, August 7, 1981)."

This administrative circular was subsequently reversed by another issued on August 8, 1984 (Ministry Circular No. 12) — almost one (1) year after Albino Co had delivered the "bouncing" check to the complainant on September 1, 1983. Said Circular No. 12, after observing *inter alia* that Circular No. 4 of December 15, 1981 appeared to have been based on "a misapplication of the deliberation in the Batasang Pambansa, *** (or) the explanatory note on the original bill, *i.e.*, that the intention was not to penalize the issuance of a check to secure or guarantee the payment of an obligation," decreed as follows:[4]

"Henceforth, conforming with the rule that an administrative agency having interpreting authority may reverse its administration interpretation of a statute, but that its new interpretation applies only prospectively (*Waterbury Savings Bank vs. Danaher*, 128 Conn., 476; 20 a2d 455 (1941), in all cases involving violation of Batas Pambansa Blg. 22 *where the check in question is issued after this date, the claim that the check is issued as a guarantee or part of an arrangement to secure an obligation or to facilitate collection will no longer be considered as a valid defense*."

Co's theory was rejected by the Court of Appeals which affirmed his conviction. Citing *Senarillos v. Hermosisima*, 101

[4] Italics supplied.

Phil. 561, the Appellate Court opined that the *Que* doctrine did not amount to the passage of new law but was merely a construction or interpretation of a pre-existing one, *i.e.*, BP 22, enacted on April 3, 1979.

From this adverse judgment of the Court of Appeals, Albino Co appealed to this Court on *certiorari* under Rule 45 of the Rules of Court. By Resolution dated September 9, 1991, the Court dismissed his appeal. Co moved for reconsideration under date of October 2, 1991. The Court required comment thereon by the Office of the Solicitor General. The latter complied and, in its comment dated December 13, 1991, extensively argued against the merits of Albino Co's theory on appeal, which was substantially that proffered by him in the Court of Appeals. To this comment, Albino Co filed a reply dated February 14, 1992. After deliberating on the parties' arguments and contentions, the Court resolved, in the interests of justice, to reinstate Albino Co's appeal and adjudicate the same on its merits.

"Judicial decisions applying or interpreting the laws or the Constitution shall form a part of the legal system of the Philippines," according to Article 8 of the Civil Code. "Laws shall have no retroactive effect, unless the contrary is provided," declares Article 4 of the same Code, a declaration that is echoed by Article 22 of the Revised Penal Code: "Penal laws shall have a retroactive effect insofar as they favor the person guilty of a felony, who is not a habitual criminal ***."[5]

The principle of prospectivity of statutes, original or amendatory, has been applied in many cases. These include: (*Buyco v. PNB*, 961) 2 SCRA 682 (June 30, 1961), holding

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[5] Exceptions to the rule of prospectivity are collated, *e.g.*, in the textbook of retired Justice Edgardo A. Paras (*Civil Code of the Philippines Annotated*, 1984 ed., Vol. 1, pp. 22-23) *viz.*: 1) laws remedial in nature; 2) penal law favorable to accused, if latter not habitual delinquent; 3) laws of emergency nature under police power: *e.g.*, tenancy relations (*Vda. de Ongsiako v. Gamboa*, 47 O.G. 4259, *Valencia, et al. v. Surtida, et al.*, MAY 31, 1961); 4) curative laws; 5) substantive right declared for first time unless vested rights impaired (*Unson v. del Rosario*, Jan. 29, 1953; *Belen v. Belen*, 49 O.G. 997; *Peo. v. Alejaga*, 49 OG 2833).

that Republic Act No. 1576 which divested the Philippine National Bank of authority to accept back pay certificates in payment of loans, does not apply to an offer of payment made before effectivity of the act; *Largado v. Masaganda, et al.,* 5 SCRA 522 (June 30, 1962), ruling that RA 2613, as amended by RA 3090 on June, 1961, granting to inferior courts jurisdiction over guardianship cases, could not be given retroactive effect, in the absence of a saving clause; *Larga v. Ranada, Jr.*, 64 SCRA 18, to the effect that Sections. 9 and 10 of Executive Order No. 90, amending Section 4 of PD 1752, could have no retroactive application; *Peo. v. Que Po Lay*, 94 Phil. 640, holding that a person cannot be convicted of violating Circular No. 20 of the Central, when the alleged violation occurred before publication of the Circular in the Official Gazette; *Baltazar v. C.A.*, 104 SCRA 619, denying retroactive application to P.D. No. 27 decreeing the emancipation of tenants from the bondage of the soil, and P.D. No. 316 prohibiting ejectment of tenants from rice and corn farmholdings, pending the promulgation of rules and regulations implementing P.D. No. 27; *Nilo v. Court of Appeals*, 128 SCRA 519, adjudging that RA 6389 which removed "personal cultivation" as a ground for the ejectment of a tenant cannot be given retroactive effect in the absence of a statutory statement for retroactivity; *Tac-An v. CA*, 129 SCRA 319, ruling that the repeal of the old Administrative Code by RA 4252 could not be accorded retroactive effect; *Ballardo v. Borromeo*, 161 SCRA 500, holding that RA 6389 should have only prospective application; (see also *Bonifacio v. Dizon*, 177 SCRA 294 and *Balatbat v. CA*, 205 SCRA 419).

The prospectivity principle has also been made to apply to administrative rulings and circulars, to wit: *ABS-CBN Broadcasting Corporation v. CTA*, Oct. 12, 1981, 108 SCRA 142, holding that a circular or ruling of the Commissioner of Internal Revenue may not be given retroactive effect adversely to a taxpayer; *Sanchez v. COMELEC*, 193 SCRA 317, ruling that Resolution No. 90-0590 of the Commission on Elections, which directed the holding of recall proceedings, had no retroactive application; *Romualdez v. CSC*, 197 SCRA 168, where it was ruled that CSC Memorandum Circular No. 29, s. 1989 cannot

be given retrospective effect so as to entitle to permanent appointment an employee whose temporary appointment had expired before the Circular was issued.

The principle of prospectivity has also been applied to judicial decisions which, "although in themselves not laws, are nevertheless evidence of what the laws mean, *** (this being) the reason why under Article 8 of the New Civil Code, 'Judicial decisions applying or interpreting the laws or the Constitution shall form a part of the legal system ***.'"

So did this Court hold, for example, in *Peo. v. Jabinal,* 55 SCRA 607, 611:

"It will be noted that when appellant was appointed Secret Agent by the Provincial Government in 1962, and Confidential Agent by the Provincial commander in 1964, the prevailing doctrine on the matter was that laid down by Us in *People v. Macarandang* (1959) and *People v. Lucero* (1958).[6] Our decision in *People v. Mapa*,[7] reversing the aforesaid doctrine, came only in 1967. The sole question in this appeal is: should appellant be acquitted on the basis of Our rulings in *Macarandang* and *Lucero*, or should his conviction stand in view of the complete reversal of the *Macarandang* and *Lucero* doctrine in *Mapa*?***

Decisions of this Court, although in themselves not laws, are nevertheless evidence of what the laws mean, and this is the reason why under Article 8 of the New Civil Code, 'Judicial decisions applying or interpreting the laws or the Constitution shall form a part of the legal system ***.' The interpretation upon a law by this Court constitutes, in a way, a part of the law as of the date that law was originally passed, since this Court's construction merely establishes the contemporaneous legislative intent that the law thus

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[6] 106 Phil. 713 and 103 Phil. 500, respectively, both involving prosecutions for illegal possession of firearms, and both holding that appointment by the Provincial Governor or Provincial Commander of a person as a "secret agent" or "confidential agent" "sufficiently placed him in the category of a 'peace officer' *** who under Section 879 of the Revised Administrative Code is exempted from the requirements relating to the issuance of license to possess firearm."

[7] SEE *Ilagan v. People,* Jan. 29, 1974, 55 SCRA 361.

construed intends to effectuate. The settled rule supported by numerous authorities is a restatement of the legal maxim '*legis interpretatio legis vim obtinet*' — the interpretation placed upon the written law by a competent court has the force of law. The doctrine laid down in Lucero and Macarandang was part of the jurisprudence, hence, of the law, of the land, at the time appellant was found in possession of the firearm in question and when he was arraigned by the trial court. It is true that the doctrine was overruled in the Mapa case in 1967, but when a doctrine of this Court is overruled and a different view is adopted, the new doctrine should be applied prospectively, and should not apply to parties who had relied on the old doctrine and acted on the faith thereof. This is especially true in the construction and application of criminal laws, where it is necessary that the punishability of an act be reasonably foreseen for the guidance of society."

So, too, did the Court rule in *Spouses Gauvain and Bernardita Benzonan v. Court of Appeals, et al.* (G.R. No. 97973) and *Development Bank of the Philippines v. Court of Appeals, et al.* (G.R. No 97998), Jan. 27, 1992, 205 SCRA 515, 527-528:[8]

"We sustain the petitioners' position. It is undisputed that the subject lot was mortgaged to DBP on February 24, 1970. It was acquired by DBP as the highest bidder at a foreclosure sale on June 18, 1977, and then sold to the petitioners on September 29, 1979.

At that time, the prevailing jurisprudence interpreting section 119 of R.A. 141 as amended was that enunciated in Monge and Tupas cited above. The petitioners Benzonan and respondent Pe and the DBP are bound by these decisions for pursuant to Article 8 of the Civil Code 'judicial decisions applying or interpreting the laws or the Constitution shall form a part of the legal system of the Philippines.' But while our decisions form part of the law of the land, they are also subject to Article 4 of the Civil Code which provides that 'laws shall have no retroactive effect unless the contrary is provided.' This is expressed in the familiar *legal maxim lex prospicit, non respicit*, the law looks forward not backward. The rationale against retroactivity is easy to perceive. The retroactive

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[8] The title of the cited *Monge* case is *Monge, et al. v. Angeles, et al.,* and is reported in 101 Phil., 563 [1957], while that of the cited *Tupas case is Tupas v. Damasco, et al.,* reported in 132 SCRA 593 [1984].

application of a law usually divests rights that have already become vested or impairs the obligations of contract and hence, is unconstitutional (*Francisco v. Certeza*, 3 SCRA 565 [1061]).

The same consideration underlies our rulings giving only prospective effect to decisions enunciating new doctrines. Thus, we emphasized in *People v. Jabinal*, 55 SCRA 607 [1974] '*** when a doctrine of this Court is overruled and a different view is adopted, the new doctrine should be applied prospectively and should not apply to parties who had relied on the old doctrine and acted on the faith thereof."

A compelling rationalization of the prospectivity principle of judicial decisions is well set forth in the oft-cited case of *Chicot County Drainage Dist. v. Baxter States Bank*, 308 US 371, 374 [1940]. The *Chicot* doctrine advocates the imperative necessity to take account of the actual existence of a statute prior to its nullification, as an operative fact negating acceptance of "a principle of absolute retroactive invalidity."

Thus, in this Court's decision in *Tañada v. Tuvera*,[9] promulgated on April 24, 1985 — which declared "that presidential issuances of general application, which have not been published, shall have no force and effect," and as regards which declaration some members of the Court appeared "quite apprehensive about the possible unsettling effect *** (the) decision might have no acts done in reliance on the validity of those presidential decrees ***" — the Court said:

"*** The answer is all too familiar. In similar situations in the past this Court had taken the pragmatic and realistic course set forth in *Chicot County Drainage District vs. Baxter Bank* (308 U.S. 371, 374) to wit:

> The courts below have proceeded on the theory that the Act of Congress, having been found to be unconstitutional, was not a law; that it was inoperative, conferring no rights and imposing no duties, and hence affording no basis for the challenged decree. *Norton v. Shelby County*, 118 US 425, 442; *Chicago, I. & L. Ry. Co. v. Hackett*, 228 U.S. 559, 566. It is

[9] 136 SCRA 27, 40-41.

quite clear, however, that such broad statements as to the effect of a determination of unconstitutionality must be taken with qualifications. The actual existence of a statute, prior to such a determination, is an operative fact and may have consequences which cannot justly be ignored. The past cannot always be erased by a new judicial declaration. The effect of the subsequent ruling as to invalidity may have to be considered in various aspects — with respect to particular conduct, private and official. Questions of rights claimed to have become vested, of status, of prior determinations deemed to have finality and acted upon accordingly, of public policy in the light of the nature both of the statute and of its previous application, demand examination. These questions are among the most difficult of those which have engaged the attention of courts, state and federal, and it is manifest from numerous decisions that an all-inclusive statement of a principle of absolute retroactive invalidity cannot be justified."

Much earlier, in *De Agbayani v. PNB*, 38 SCRA 429 — concerning the effects of the invalidation of "Republic Act No. 342, the moratorium legislation, which continued Executive Order No. 32, issued by the then President Osmeña, suspending the enforcement of payment of all debts and other monetary obligations payable by war sufferers," and which had been "explicitly held in *Rutter v. Esteban* (93 Phil. 68 [1953])[10] *** (to be) in 1953 'unreasonable, and oppressive, and should not be prolonged a minute longer ***" — the Court made substantially the same observations, to wit:[11]

"*** The decision now on appeal reflects the orthodox view that an unconstitutional act, for that matter an executive order or a

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[10] And several other rulings set forth in a corresponding footnote in the text of the decision.

[11] SEE also *Olaguer v. Military Commission* No. 34, 150 SCRA 144 (1987) (citing *Municipality of Malabang v. Benito*, 27 SCRA 533 where the question arose as to whether the judicial nullification of an executive order creating a municipality wiped out all the acts of the local government abolished); *Tan v. Barrios*, 190 SCRA 686 (1990); *Drilon v. Court of Appeals*, 202 SCRA 378 (1991); *Union of Filipro Employees v. Vivar, Jr.*, 205 SCRA 200 (1992); *Peralta v. Civil Service Commission*, 212 SCRA 425.

municipal ordinance likewise suffering from that infirmity, cannot be the source of any legal rights or duties. Nor can it justify any official act taken under it. Its repugnancy to the fundamental law once judicially declared results in its being to all intents and purposes a mere scrap of paper. *** It is understandable why it should be so, the Constitution being supreme and paramount. Any legislative or executive act contrary to its terms cannot survive.

Such a view has support in logic and possesses the merit of simplicity. It may not however be sufficiently realistic. It does not admit of doubt that prior to the declaration of nullity such challenged legislative or executive act must have been in force and had to be complied with. This is so as until after the judiciary, in an appropriate case, declares its invalidity, it is entitled to obedience and respect. Parties may have acted under it and may have changed their positions. What could be more fitting than that in a subsequent litigation regard be had to what has been done while such legislative or executive act was in operation and presumed to be valid in all respects. It is now accepted as a doctrine that prior to its being nullified, its existence as a fact must be reckoned with. This is merely to reflect awareness that precisely because the judiciary is the governmental organ which has the final say on whether or not a legislative or executive measure is valid, a period of time may have elapsed before it can exercise the power of judicial review that may lead to a declaration of nullity. It would be to deprive the law of its quality of fairness and justice then, if there be no recognition of what had transpired prior to such adjudication.

In the language of an American Supreme Court decision: 'The actual existence of a statute, prior to such a determination [of unconstitutionality], is an operative fact and may have consequences which cannot justly be ignored. The past cannot always be erased by a new judicial declaration. The effect of the subsequent ruling as to invalidity may have to be considered in various aspects, — with respect to particular relations, individual and corporate, and particular conduct, private and official' (*Chicot County Drainage Dist. v. Baxter States Bank*, 308 US 371, 374 [1940]). This language has been quoted with approval in a resolution in *Araneta v. Hill* (93 Phil. 1002 [1953]) and the decision in *Manila Motor Co., Inc. v. Flores* (99 Phil. 738 [1956]). An even more recent instance is the opinion of Justice Zaldivar speaking for the Court in *Fernandez v. Cuerva and Co.* (L-21114, Nov. 28, 1967, 21 SCRA 1095)."

Again, treating of the effect that should be given to its decision in *Olaguer v. Military Commission No. 34*,[12] — declaring invalid criminal proceedings conducted during the martial law regime against civilians, which had resulted in the conviction and incarceration of numerous persons — this Court, in *Tan vs. Barrios*, 190 SCRA 686, at p. 700, ruled as follows:

"In the interest of justice and consistency, we hold that Olaguer should, in principle, be applied prospectively only to future cases and cases still ongoing or not yet final when that decision was promulgated. Hence, there should be no retroactive nullification of final judgments, whether of conviction or acquittal, rendered by military courts against civilians before the promulgation of the Olaguer decision. Such final sentences should not be disturbed by the State. Only in particular cases where the convicted person or the State shows that there was serious denial of constitutional rights of the accused, should the nullity of the sentence be declared and a retrial be ordered based on the violation of the constitutional rights of the accused, and not on the Olaguer doctrine. If a retrial is no longer possible, the accused should be released since the judgment against him is null on account of the violation of his constitutional rights and denial of due process.

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The trial of thousands of civilians for common crimes before the military tribunals and commissions during the ten-year period of martial rule (1971-1981) which were created under general orders issued by President Marcos in the exercise of his legislative powers is an operative fact that may not just be ignored. The belated declaration in 1987 of the unconstitutionality and invalidity of those proceedings did not erase the reality of their consequences which occurred long before our decision in Olaguer was promulgated and which now prevent us from carrying Olaguer to the limit of its logic. Thus did this Court rule in *Municipality of Malabang v. Benito*, 27 SCRA 533, where the question arose as to whether the nullity of creation of a municipality by executive order wiped out all the acts of the local government abolished."[13]

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[12] 150 SCRA 144 (1987).

[13] SEE also *Cruz v. Enrile*, 160 SCRA 700 [1988] and Res. of February 26, 1991; and *Drilon v. Court of Appeals*, 202 SCRA 378 [1991].

It would seem, then, that the weight of authority is decidedly in favor of the proposition that the Court's decision of September 21, 1987 in *Que v. People*, 154 SCRA 160 (1987)[14] — *i.e.*, that a check issued merely to guarantee the performance of an obligation is nevertheless covered by B.P. Blg. 22 — should not be given retrospective effect to the prejudice of the petitioner and other persons similarly situated, who relied on the official opinion of the Minister of Justice that such a check did not fall within the scope of B.P. Blg. 22.

Inveighing against this proposition, the Solicitor General invokes *U.S. V. Go Chico*, 14 Phil. 128, applying the familiar doctrine that in crimes *mala prohibita*, the intent or motive of the offender is inconsequential, the only relevant inquiry being, "has the law been violated?" The facts in *Go Chico* are substantially different from those in the case at bar. In the former, there was no official issuance by the Secretary of Justice or other Government officer construing the special law violated;[15] and it was there observed, among others, that "the defense *** (of) an honest misconstruction of the law under legal advice"[16] could not be appreciated as a valid defense. In the present case, on the other hand, the defense is that reliance was placed, not on the opinion of a private lawyer but upon an official pronouncement of no less than the attorney of the Government, the Secretary of Justice, whose opinions, though not law, are entitled to great weight and on which reliance may be placed by private individuals as reflective of the correct interpretation of a constitutional or statutory provision; this, particularly in the case of penal statutes, by the very nature and scope of the authority that resides in his office as regards prosecutions for

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[14] SEE footnote 3, *supra*.

[15] Act No. 1696 of the Philippine Commission punishing any person who shall expose, or cause or permit to be exposed, to public view *** any flag, banner, emblem, or device used during the late insurrection in the Philippine Islands to designate or identify those in armed rebellion against the United States, ***

[16] 14 Phil. 128, 133-134.

their violation.[17] *Senarillos vs. Hermosisima, supra,*relied upon by the respondent Court of Appeals is crucially different in that in said case, as in *U.S. v. Go Chico, supra,* no administrative interpretation antedated the contrary construction placed by the Court on the law invoked.

This is after all a criminal action all doubts in which, pursuant to familiar, fundamental doctrine, must be resolved in favor of the accused. Everything considered, the Court sees no compelling reason why the doctrine of *mala prohibita* should override the principle of prospectivity, and its clear implications as hereinabove set out and discussed, negativing criminal liability.

WHEREFORE, the assailed decisions of the Court of Appeals and of the Regional Trial Court are reversed and set aside, and the criminal prosecution against the accused-petitioner is *DISMISSED,* with costs *de oficio.*

SO ORDERED.

Padilla, Regalado, Nocon, and *Puno, JJ.,* concur.

FIRST DIVISION

[G.R. No. L-48817. October 29, 1993]

PEOPLE OF THE PHILIPPINES, *petitioner-appellant, vs.* **COURT OF FIRST INSTANCE OF QUEZON, Br. X, GUMACA, QUEZON, and GREGORIO MALCO,** *respondent-appellees.*

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[17] *Estrella vs. Orendain,* 37 SCRA 640; *Noblejas vs. Salas,* 67 SCRA 47.

SYLLABUS

1. REMEDIAL LAW; CRIMINAL PROCEDURE; JUDGMENTS; DEEMED VALID EVEN IF PROMULGATED AFTER THE EXPIRATION OF THE JUDGE'S TEMPORARY DETAIL IN A VACANT BRANCH. — The crux of the instant petition is the validity of the judgment of acquittal penned by a trial judge detailed to a vacant branch of the court but promulgated after a permanent judge has been duly appointed to the vacancy. A trial judge whose temporary detail to a vacant branch has expired remains to be the incumbent judge of the branch of the court where he is permanently assigned. Thus, he may still decide cases submitted to him for decision during his temporary detail in the vacant branch even after the vacancy has been filled. In one case, it was held that it was not unusual for a judge who did not try a case to decide it on the basis of the record since the trial judge who tried the case may have already died or retired. In fact, as early as 1915, this Court already ruled that "[t]here is no law which prohibits a judge from deciding a case because he did not see some of the witnesses when they testified therein. In the absence of any express prohibition of this kind, we cannot imply one." The Court also said then — "[T]o-day, when stenographers are employed in the courts in the trial of cases and when a complete, authentic record of everything that transpires during the trial is kept and when from said record, every one x x x may read x x x said record, and be informed fully of every act, objection, or exception taken or made during the trial, there seems to be but little reason for asserting that one qualified person may not be able to reach a just and fair conclusion from said record x x x. Every person may ascertain for himself the correctness of any disputed fact in said record." As if realizing the practicability and validity of this procedure, the Supreme Court En Banc issued a Resolution dated 10 February 1983 laying down the guidelines in the distribution of cases in the implementation of the Judiciary Reorganization Act of 1981 (B.P. Blg. 129) par. I, subpar. 1, of which provides — "1. Cases already submitted for decision shall be decided by the Judge to whom they were submitted, except cases submitted for decision to judges who were promoted to higher courts or to those who

are no longer in the service." Quite apparently, the foregoing provision does not state that the judge to whom the case was submitted for decision must be the same judge who heard the case, totally or partially, although that would be ideal. It does not even require that he heard any of the witnesses for the parties. As may be noted, the pertinent portion of the Resolution of 10 February 1983 merely requires that the judge who pens the decision is still an incumbent judge, i.e., in this case, a judge of the same court, albeit now assigned to a different branch, at the time the decision is promulgated.

2. ID.; ID.; ID.; ID.; APPLICATION IN CASE AT BAR. — In the instant case, the judgment of acquittal penned by Judge Montecillo must be declared valid. It is not necessary that he be the presiding judge of Branch X at the time his decision was promulgated since even after the expiration of his temporary designation at Branch X he continued to be an incumbent of Branch III. After all, where a Court of First Instance (now Regional Trial Court) is divided into several branches, each of the branches is not a court distinct and separate from the others. Jurisdiction is vested in the court, not in the judges, so that when a complaint or information is filed before one branch or judge, jurisdiction does not attach to said branch of the judge alone, to the exclusion of the others. Judge Montecillo penned the decision on 22 May 1978 while his temporary designation at Branch X expired only on 10 June 1978 when Judge Antona qualified for the position. And, Judge Montecillo was still an incumbent judge of the Court of First Instance of Quezon, being then the permanent judge of Branch III, at the time his decision was promulgated. Thus, he continued to possess authority to dispose of the case. In fact, even after his temporary designation, he continued to have authority and could decide the case as it was one of those submitted to him for decision during his detail.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Pedro O. Laurel for private respondent.

D E C I S I O N

BELLOSILLO, *J.*:

The crux of the instant petition is the validity of the judgment of acquittal penned by a trial judge detailed to a vacant branch of the court but promulgated after a permanent judge has been duly appointed to the vacancy.

In an Information[1] dated 25 May 1976, private respondent Gregorio Malco was charged before the then Court of First Instance of Quezon with attempted rape, docketed as Crim. Case No. 463-G and raffled to Branch X of the same court then presided by Judge Mapalad A. Nañadiego. On 15 October 1977, after the defense rested, the case was submitted for decision.[2] However, on 17 April 1978, Judge Nañadiego retired without deciding the case.

Meanwhile, Judge Juan B. Montecillo, Presiding Judge of Branch III, was designated *pro tempore* to take over Branch X. Among the cases submitted to him for decision was this case of respondent-appellee Gregorio Malco, which the judge decided on 22 May 1978.

On 9 June 1978, Judge Conrado R. Antona was appointed Presiding Judge of Branch X. He took his oath and assumed office the following day,[3] terminating *ipso facto* the temporary designation of Judge Montecillo.

On 20 June 1978, Special Deputy Clerk of Court Mateo M. Cabangon promulgated said decision of Judge Montecillo dated 22 May 1978 acquitting private respondent Malco of attempted rape.[4] On 30 June 1978, Special Counsel Hjalmar P. Quintana moved to set aside the judgment of acquittal. On 10 July 1978, Judge Antona denied the motion on the ground that the trial court was without jurisdiction "to review and declare illegal

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[1] *Rollo*, p. 27.

[2] *Id.*, p. 29.

[3] Letter of Judge Conrado R. Antona to the Provincial Fiscal, dated 30 September 1978; *Rollo*, p. 30.

[4] *Rollo*, pp. 31-36.

the actuation of a co-equal Court."[5] On 8 August 1978, the Motion for Reconsideration was likewise denied,[6] thus sustaining the acquittal of private respondent. This prompted Provincial Fiscal Dante H. Diamante, with authority from the Office of the Solicitor General, to institute the present petition contending in essence that the decision of Judge Montecillo was null and void since he was no longer judge-designate of Branch X when his decision was promulgated as Judge Antona had already been appointed and qualified.

Still, the Solicitor General, tasked to submit the Brief for Petitioner, maintained that the appointment and qualification of Judge Antona to preside over Branch X had the effect of immediately terminating the temporary assignment of Judge Montecillo thereto, hence, his decision promulgated after the expiration of his temporary detail was null and void and that, as a consequence, the trial court then presided by Judge Antona should have set aside the judgment of acquittal penned by Judge Montecillo.

The petition must fail. A trial judge whose temporary detail to a vacant branch has expired remains to be the incumbent judge of the branch of the court where he is permanently assigned. Thus, he may still decide cases submitted to him for decision during his temporary detail in the vacant branch even after the vacancy has been filled. In one case,[7] it was held that it was not unusual for a judge who did not try a case to decide it on the basis of the record since the trial judge who tried the case may have already died or retired. In fact, as early as 1915, this Court already ruled that "[t]here is no law which prohibits a judge from deciding a case because he did not see some of the witnesses when they testified therein. In the absence of any express prohibition of this kind, we cannot imply one."[8] The Court also said then —

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[5] *Id.,* p. 44.

[6] *Id.,* p. 49.

[7] *People v. Collado,* G.R. No. 88631, 30 April 1991, 196 SCRA 519.

[8] *United States v. Abreu,* 30 Phil. 402, 411 (1915).

"[T]o-day, when stenographers are employed in the courts in the trial of cases and when a complete, authentic record of everything that transpires during the trial is kept and when from said record, every one x x x may read x x x said record, and be informed fully of every act, objection, or exception taken or made during the trial, there seems to be but little reason for asserting that one qualified person may not be able to reach a just and fair conclusion from said record x x x Every person may ascertain for himself the correctness of any disputed fact in said record."[9]

As if realizing the practicability and validity of this procedure, the Supreme Court *En Banc* issued a Resolution dated 10 February 1983 laying down the guidelines in the distribution of cases in the implementation of the Judiciary Reorganization Act of 1981 (B.P. Blg. 129) par. I, subpar. 1, of which provides —

"1. Cases already submitted for decision shall be decided by the Judge to whom they were submitted, except cases submitted for decision to judges who were promoted to higher courts or to those who are no longer in the service."

Quite apparently, the foregoing provisions does not state that the judge to whom the case was submitted for decision must be the same judge who heard the case, totally or partially, although that would be ideal. It does not even require that he heard any of the witnesses for the parties.

As may be noted, the pertinent portion of the Resolution of 10 February 1983 merely requires that the judge who pens the decision is still an incumbent judge., *i.e*., in this case, a judge of the same court, albeit now assigned to a different branch, at the time the decision is promulgated.

Consequently, in the instant case, the judgment of acquittal penned by Judge Montecillo must be declared valid. It is not necessary that he be the presiding judge of Branch X at the time his decision was promulgated since even after the expiration of his temporary designation at Branch X he continued to be an

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[9] *Id*., p. 415, citing *Enriquez v. Watson*, 3 Phil. 279 (1904).

incumbent of Branch III. After all, where a Court of First Instance (now Regional Trial Court) is divided into several branches, each of the branches is not a court distinct and separate from the others. Jurisdiction is vested in the court, not in the judges, so that when a complaint or information is filed before one branch or judge, jurisdiction does not attach to said branch of the judge alone, to the exclusion of the others.[10]

Judge Montecillo penned the decision on 22 May 1978 while his temporary designation at Branch X expired only on 10 June 1978 when Judge Antona qualified for the position. And, Judge Montecillo was still an incumbent judge of the Court of First Instance of Quezon, being then the permanent judge of Branch III, at the time his decision was promulgated. Thus, he continued to possess authority to dispose of the case. In fact, even after his temporary designation, he continued to have authority and could decide the case as it was one of those submitted to him for decision during his detail.

Besides, we have reviewed the records and we fail to find any evidence of bad faith on the part of Judge Montecillo in preparing and signing the decision, nor on the part of Special Deputy Clerk of Court Cabangon in promulgating it. As adverted to, when Judge Montecillo took over Branch X in an acting capacity, this case was one of those submitted to him for decision. Consequently, he worked on the case, read and studied the records, and thereafter penned the decision. Except for the authority of Judge Montecillo, who was not legally without jurisdiction, neither the petitioner nor the Solicitor General ascribes any irregularity in the manner the case was resolved. The petition does not question the soundness of the decision, but merely points to a technicality to annul the judgment of acquittal. Suffice it to say that the Court frowns upon technicalities, especially so if these are used to put in jeopardy the acquittal of an accused who should be benefited by a liberal construction of the rules. In fine, the questioned decision being in accord with the law and the facts,

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[10] *People v. Gorospe*, G.R. No. 51513, 15 May 1984, 129 SCRA 233, citing *Lumpay v. Moscoso*, 105 Phil. 968 (1959).

there is no reason to disturb it; otherwise, double jeopardy will set in.

What is more, Judge Antona adopted the judgment of acquittal by denying the motions filed by the prosecution. After all, the decision of Judge Montecillo cannot be said to be a decision of another court, but of the same Court of First Instance of Quezon, and Judge Montecillo penned the decision in fact as Presiding Judge of Branch X. To rule otherwise would be disruptive of an orderly judicial process, for then the new judge would again have to start reviewing the case from its inception until he can formulate his own decision. This is not the concept of a judge on detail to a vacant branch.

Indeed, it would have been different altogether if the judge whose decision was promulgated had, prior to its promulgation, died, resigned, retired, been dismissed, promoted to a higher court, or appointed to another office with inconsistent functions. Then, he would no longer be an incumbent member of a court of equal jurisdiction, and his decisions written thereafter would be invalid.

A word of caution. Let not this case be considered by trial judges as a precedent for them to continue to exercise authority over courts where there are already incumbent judges, except where the circumstances fall squarely within the ambit of the instant case. Detailed judges or those on special assignments are strongly advised that before acting on any case of the branch where they are assigned temporarily to ascertain whether they have authority over such case. Needless to stress, judges should be extra careful and prudent in determining their authority over specified cases to avoid any imputation or inference of irregularity, misdeed or wrongdoing.

WHEREFORE, the instant petition for review on *certiorari* is *DENIED*; consequently, the decision of respondent Court *ACQUITTING* private respondent GREGORIO MALCO is *AFFIRMED*.

SO ORDERED.

Cruz (Chairman), Davide, Jr., and *Quiason, JJ.*, concur.

FIRST DIVISION

[G.R. No. 56768. October 29, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **PABLO LACTAO,** *accused-appellant.*

SYLLABUS

1. **CRIMINAL LAW; RAPE AND ILLEGAL DETENTION; SHOULD BE CONSIDERED AS SEPARATE CRIMES EVEN IF ONE IS USED FOR THE PURPOSE OF THE OTHER. —** It may be worth to mention at the outset that there is no complex crime of rape with serious illegal detention. If the purpose is to deprive the offended party of liberty, the crime committed is illegal detention. And, if during the course of the illegal detention, the offended party is raped, a separate crime of rape is committed; in this instance, two independent crimes are committed. However, if the objective of the offender is to rape the victim only, and in the process, the latter had to be illegally detained, only the crime of rape is committed since illegal detention is deemed absorbed in rape.

2. **REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; MAY BE AFFECTED BY SERIOUS INEXPLICABLE DISCREPANCIES BETWEEN THE EXECUTED SWORN STATEMENT AND THE TESTIMONIAL DECLARATION. —** The flip-flopping of Apolonia not only creates serious uncertainty in her entire testimony but weakens altogether the case of the prosecution which is left with only her depiction to prove its case after the averments of the other prosecution witness have been totally discredited by the trial court. In fine, inaccuracies between the statement of an alleged rape victim before a municipal judge and her court testimony negate her credibility. Serious inexplicable discrepancies between her previously executed sworn statement and her testimonial declarations raise grave doubt on the veracity of her account.

3. **ID.; ID.; ID.; PRINCIPLE IN THE PROSECUTION OF CRIMES AGAINST CHASTITY. —** In crimes against chastity, the testimony of the injured woman should not be

received with precipitate credulity. The evidence for conviction must be clear and convincing to overcome the constitutional presumption of innocence.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Public Attorney's Office for accused-appellant.

D E C I S I O N

BELLOSILLO, *J.*:

On 15 April 1979, Apolonia Aramburo, then in the early bloom of her youth,[1] was allegedly detained by the accused in his 2 m. x 3 m. dwelling for about two weeks, and there raped every night while his wife, at one time, watched with amusement. This is the version of the prosecution.

Thus by reason of the evidence presented by the prosecution, which the trial court pronounced to be credible, accused PABLO LACTAO was found guilty of the crime of rape with serious illegal detention, sentenced to *reclusion perpetua*, and ordered to indemnify the victim in the sum of Twelve Thousand pesos (₱12,000.00). He is now before us insisting on his innocence.

Apolonia testified that on 15 April 1979, at about 8:00 o'clock in the morning, she was outside the house of one Teresita Alburo Perfecto in Bitan-O, Sorsogon, Sorsogon, where she was staying. While throwing garbage, Luz Lactao, wife of accused Pablo Lactao, arrived and fetched her on the pretext that her father wanted to see her.[2] Since Luz was known to her, as Luz and

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[1] In her affidavit, Apolonia said she was 14 years old. However, during her direct examination, she testified that she was only 12. Rectifying the inconsistency, she stated on cross-examination that her age in her affidavit was erroneous, and explaining that at that time she did not know yet her exact age.

[2] TSN, 4 October 1979, pp. 6-7.

Pablo were the agricultural tenants of her father,[3] she went with Luz. They boarded a tricycle and proceeded to Sts. Peter & Paul Subdivision. However, instead of bringing her to her father, she was brought to the house of the accused where she was detained in a small room for about two weeks.[4]

That evening, the accused entered the room where she was lying down, removed her panties, placed himself on top of her, and for about an hour, had sexual intercourse with her, while Luz who was then a meter and a half away watched, laughing.[5]

Thereafter, every evening, for the entire duration of her detention, she was raped by the accused.[6]

Apolonia likewise said in open court that even prior to 15 April 1979, accused had dragged her a number of times to a camarin adjacent to her house where she was repeatedly raped.[7] Her centenarian father who was living in the house was of little help since he was already half blind.[8]

Avelina Cadag, half-sister of Apolonia, then narrated that she reported the disappearance of her half-sister to the police, but the police never found her. She saw Apolonia again only on 29 April 1979 after the latter was able to escape from the accused.[9]

That same afternoon, Apolonia was examined by the Senior Resident Physician of the Sorsogon Provincial Hospital who found her hymen to have old healed lacerations which could have been caused by continuous sexual contact, strenuous

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[3] *Id.*, p. 27; 6 February 1980, p. 8.

[4] *Id.*, 4 October 1979, pp. 7-9, 26.

[5] *Id.*, pp. 9-12, 22, 24-26.

[6] *Id.*, p. 32.

[7] *Id.*, p. 30.

[8] *Id.*, pp. 32-33.

[9] *Id.*, 23 October 1979, p. 11.

exercise, accident, repeated scratching of the vagina, and even by climbing a tree or sitting or sliding on a stone.[10]

The accused on the other hand asseverated that he never raped nor had sexual intercourse with Apolonia before or after 15 April 1979. He was merely accused of raping Apolonia because he failed to leave the land of Gabriel Aramburo, father of Apolonia and Avelina. Avelina, he said, had earlier sought his ejectment as she wanted to gather the coconuts from the land he was tenanting.[11] Besides, he asserted that he could not rape anyone in front of his wife and in the presence of his five children who were there in their house.[12]

On her part, Luz swore that on or about 15 April 1979 she could hardly move as she had just delivered a baby on 7 April 1979 and was still recuperating therefrom. Thus, she could not have fetched Apolonia in the morning of that day.[13]

On 9 December 1980, the Court of First Instance of Sorsogon, Tenth Judicial District, Br. I, Sorsogon, Sorsogon,[14] while discrediting Avelina Cadag's testimony as it was "muddled with inaccuracies,"[15] nevertheless found the testimony of Apolonia to be plausible, and convicted the accused of rape with serious illegal detention. Hence, this appeal.

Accused argues that the uncorroborated testimony of private complainant is not only incredible and unbelievable but likewise saddled with inconsistencies showing the tendency of private complainant to exaggerate and prevaricate facts.

The Solicitor General however counters that the alleged inconsistencies in the testimony of Apolonia refer only to minor

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[10] *Id*., pp. 4-6.

[11] *Id*., 6 February 1980, pp. 22-23.

[12] *Id*., p. 20.

[13] *Id*., pp. 3-4.

[14] Judge Rustico de los Reyes, presiding.

[15] Decision of the trial court, p. 9.

details which are not intended to pervert the truth and were not of sufficient significance as to denote a deliberate intent to utter a falsehood; consequently, the penalty imposed should be death considering that the accused was found guilty of the complex crime of rape with serious illegal detention.

It may be worth to mention at the outset that there is no complex crime of rape with serious illegal detention. If the purpose is to deprive the offended party of liberty, the crime committed is illegal detention. And, if during the course of the illegal detention, the offended party is raped, a separate crime of rape is committed; in this instance, two independent crimes are committed. However, if the objective of the offender is to rape the victim only, and in the process, the latter had to be illegally detained, only the crime of rape is committed since illegal detention is deemed absorbed in rape.

Hence, in *People v. Ching Suy Siong*,[16] Sionga was found guilty of two independent crimes, *i.e.*, serious illegal detention and acts of lasciviousness, because the two acts did not come within the purview of Art. 48 of the Revised Penal Code which applies to complex crimes, for certainly, one cannot be considered as a means to commit the other. And, in *People v. Bernal*,[17] the appellants were held guilty of the separate crimes of illegal detention and of multiple rape since the illegal detention was not a necessary means to the commission of the crime of rape, and the offended party could have been raped even if she was not illegally detained.[18] Thus, in *People v. Gan*,[19] on which the

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[16] 97 Phil. 989, unrep. (1955).

[17] No. L-30483, 31 July 1984, 131 SCRA 1.

[18] Compare with *People v. Ablaza*, No. L-27352, 31 October 1969, 30 SCRA 173, where Ruben Ablaza was charged by Annabelle Huggins with forcible abduction with rape, and while the case was pending, he kidnapped Annabelle, detained her for a week for the purpose of causing her to withdraw her previous charge against him, and while under detention, raped her again, the crime committed is serious illegal detention because the act of rape was incidental and used as a means to break Annabelle's spirit and induce her to dismiss the criminal charge.

[19] No. L-33446, 18 August 1972, 46 SCRA 667.

lower court entirely based its judgment in convicting the accused in the instant case, Joaquinito Gan was found guilty only of the crime of rape even if he kept the offended party in a hut for about four nights, and there repeatedly raped her. But notwithstanding the Gan ruling, the trial court erroneously declared accused Lactao guilty of the complex crime of rape with serious illegal detention, instead of rape.

Still, however, the case of *People v. Gan*[20] is not applicable since, in the case at bar, the evidence presented by the prosecution is not sufficient to prove the guilt of the accused beyond reasonable doubt. Consequently, we reverse the judgment of conviction.

While the trial court was correct in discrediting the testimony of Avelina Cadag for being "muddled with inaccuracies," and which therefore needs no further elaboration, it failed to reject the testimony of Apolonia which was not only replete with discrepancies but likewise inconsistent with human experience and the natural course of things. Thus, when confronted by the defense counsel regarding the length of her supposed detention, Apolonia averred —

"Q In the direct examination, you testified that you were detained in the house of the accused for one week. In your affidavit, sworn affidavit, which you executed, you testified that you were detained for two weeks. Now which is correct?

"A The two weeks is correct.

"Q In other words, the one you answered to the question of the Fiscal during your direct examination was or is not true that you were detained for one week?

A "Yes, sir."[21]

When queried as to where she was allegedly abused on 15 April 1979, her answer was —

"Q A while ago you testified that when you lay down you had no mat, you had no pillows nor mosquito net; in Question

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[20] *Id.*

[21] TSN, 4 October 1979, pp. 26-27.

and Answer No. 10, the accused went inside the mosquito net where you were sleeping. Now which is correct?

"A There was a mat.

"Q In other words, you were changing your answer that you lay down without a mat, without pillows, without mosquito net?

"A I was only mistaken."[22]

And, when asked regarding her age, as the prosecution was trying to establish that at the time the incident happened, the alleged victim was less than twelve years old, she replied —

"COURT:

"Q Why is your age in that affidavit wrong?

"A Because at that time I did not know yet, Your Honor.

x x x x x x x x x

ATTY. BORROMEO:

"Q In other words, even if you did not know exactly your age you answered to the interrogating officer in this affidavit to the question above that your age was 14 years?

"A Yes, sir.

"Q Presently, you testified that your age is 12, is it not?

"A Yes, sir."[23]

The flip-flopping of Apolonia not only creates serious uncertainty in her entire testimony but weakens altogether the case of the prosecution which is left with only her depiction to prove its case after the averments of the other prosecution witness have been totally discredited by the trial court.

Even the medical findings of the resident physician of the Sorsogon Provincial Hospital, Dr. Jaime Co, who examined

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[22] *Id*., p. 23.

[23] *Id*., pp. 15-16.

Apolonia the very day she was said to have escaped, is inconclusive that she was indeed raped. Thus said Dr. Co. —

"Q Doctor, what may have possible caused this old healed laceration at 3:00 o'clock, 7:00 o'clock and 9:00 o'clock?

"A It may be caused by sexual contact, by strenuous exercise like riding on a bicycle.

x x x x x x x x x

"Q And the cause of the injury could not be exactly determined?

"A Yes.

"Q In fact it could have been caused by continuous scratching of the vagina by herself Apolonia Aramburo?

"A It could be.

"Q And it could be also by climbing a tree considering that Apolonia Aramburo is only about twelve years of age?

"A Possible."[24]

Besides, Dr. Co testified that when she examined Apolonia on 29 April 1979, he found that the lacerations in her hymen had already healed.[25] This contradicts the claim that Apolonia was raped every single day from 15 April 1979 to 29 April 1979.

In fine, inaccuracies between the statement of an alleged rape victim before a municipal judge and her court testimony negate her credibility.[26] Serious inexplicable discrepancies between her previously executed sworn statement and her testimonial declarations raise grave doubt on the veracity of her account.[27]

Furthermore, Apolonia's testimony that she freely and intimately conversed with the children of the accused during her entire detention in the house of the latter where she was

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[24] TSN, 23 October 1979, pp. 5-7.

[25] *Id*.

[26] See *People v. Nuñez*, G.R. No. 79316, 10 April 1992, 208 SCRA 34.

[27] *People v. Casim*, G.R. No. 93634, 2 September 1992, 213 SCRA 390.

repeatedly abused, belies the claim that she was illegally detained, much more, ravished. And, it is highly improbable that accused would abuse Apolonia in the presence of his five children and his wife who, if we are to believe Apolonia, seemed to have enjoyed the horrid scene.

The version of complaining witness Apolonia is simply implausible as perversion has never been considered a part of the Filipino marriage and family life. Indeed, it is difficult to imagine that the accused would rape a young girl, the playmate of his own children, in the presence of the latter, and in front of his amused wife who had just given birth. That is why, we say, the tale is contrary to human experience and our way of life, and thus calls for absolute rejection.[28]

In crimes against chastity, the testimony of the injured woman should not be received with precipitate credulity.[29] The evidence for conviction must be clear and convincing to overcome the constitutional presumption of innocence.[30] Here, the evidence presented by the prosecution was too weak and insufficient to jettison that presumption.

On the other hand, the assertions of the defense remain uncontradicted and thus assume importance when faced with the rather shaky nature of the evidence for the prosecution.[31] The defense then that the charge for rape was trumped-up by Avelina Cadag to blackmail the accused and his family into vacating the land so that she could gather the coconuts herself, even at the expense of exposing the honor of her half-sister, deserves serious consideration. Indeed, it is not far-fetched that the filing of the rape charge against accused Pablo Lactao was motivated by the obsession of Apolonia's family to win back possession of their piece of land tenanted by him.[32]

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[28] *People v. Dag-uman,* G.R. No. 96548, 28 May 1992, 209 SCRA 407.

[29] *People v. Casim, supra*; Note 27.

[30] *People v. Tiwaken,* G.R. No. 92988, 9 September 1992, 213 SCRA 701.

[31] *People v. Ambih,* G.R. No. 101006, 3 September 1993.

[32] See *People v. Nuñez, supra*; Note 26.

WHEREFORE, the judgment of the court a quo finding accused PABLO LACTAO guilty of the crime of rape with serious illegal detention is *REVERSED* and *SET ASIDE*, and the accused is *ACQUITTED* of the crime charged; consequently, his immediate release from confinement is *ORDERED* unless lawfully held for another cause. Costs *de oficio*.

SO ORDERED.

Cruz (Chairman), Davide, Jr. and *Quiason, JJ.*, concur.

FIRST DIVISION

[G.R. No. 76351. October 29, 1993]

VIRGILIO B. AGUILAR, *petitioner, vs.* **COURT OF APPEALS and SENEN B. AGUILAR,** *respondents.*

SYLLABUS

1. REMEDIAL LAW; CIVIL PROCEDURE; PRE-TRIAL; APPEARANCE OF PARTIES THEREIN; MANDATORY. — The law is clear that the appearance of parties at the pre-trial is mandatory. A party who fails to appear at a pre-trial conference may be non-suited or considered as in default. In the case at bar, where private respondent and counsel failed to appear at the scheduled pre-trial, the trial court has authority to declare respondent in default.

2. ID.; ID.; ID.; GRANT OR DENIAL OF POSTPONEMENT THEREOF; SUBJECT TO THE SOUND DISCRETION OF THE TRIAL JUDGE; CASE AT BAR. — Although respondent's counsel filed a motion to postpone pre-trial hearing, the grant or denial thereof is within the sound discretion of the trial court, which should take into account two factors in

the grant or denial of motions for postponement, namely: (a) the reason for the postponement and (b) the merits of the case of movant. In the instant case, the trial court found the reason stated in the motion of counsel for respondent to cancel the pre-trial to be without merit. Counsel's explanation that he had to go to Iloilo by boat as early as 25 March 1979 to fetch his wife and accompany her to a wedding in Dumaguete City on 27 April 1979 where she was one of the principal sponsors, cannot be accepted. We find it insufficient to justify postponement of the pre-trial, and the Court of Appeals did not act wisely in overruling the denial. We sustain the trial court and rule that it did not abuse its discretion in denying the postponement for lack of merit. Certainly, to warrant a postponement of a mandatory process as pre-trial would require much more than mere attendance in a social function. It is time indeed we emphasize that there should be much more than mere perfunctory treatment of the pre-trial procedure. Its observance must be taken seriously if it is to attain its objective, *i. e.*, the speedy and inexpensive disposition of cases.

3. CIVIL LAW; CO-OWNERSHIP; RIGHT OF CO-OWNER OVER AN INDIVISIBLE PROPERTY. — Article 494 of the Civil Code provides that no co-owner shall be obliged to remain in the co-ownership, and that each co-owner may demand at any time partition of the thing owned in common insofar as his share is concerned. Corollary to this rule, Art. 498 of the Code states that whenever the thing is essentially indivisible and the co-owners cannot agree that it be allotted to one of them who shall indemnify the others, it shall be sold and its proceeds accordingly distributed. This is resorted to (1) when the right to partition the property is invoked by any of the co-owners but because of the nature of the property it cannot be subdivided or its subdivision would prejudice the interests of the co-owners, and (b) the co-owners are not in agreement as to who among them shall be allotted or assigned the entire property upon proper reimbursement of the co-owners. In one case, this Court upheld the order of the trial court directing the holding of a public sale of the properties owned in common pursuant to Art. 498 of the Civil Code. However, being a co-owner respondent has the right to use the house and lot without paying any compensation to petitioner, as he may use the property owned in common so long as it is in accordance with

the purpose for which it is intended and in a manner not injurious to the interest of the other co-owners. Each co-owner of property held *pro indiviso* exercises his rights over the whole property and may use and enjoy the same with no other limitation than that he shall not injure the interests of his co-owners, the reason being that until a division is made, the respective share of each cannot be determined and every co-owner exercises, together with his co-participants joint ownership over the *pro indiviso* property, in addition to his use and enjoyment of the same.

4. ID.; ID.; TERMINATION THEREOF; EFFECT; CASE AT BAR. — Since petitioner has decided to enforce his right in court to end the co-ownership of the house and lot and respondent has not refuted the allegation that he has been preventing the sale of the property by his continued occupancy of the premises, justice and equity demand that respondent and his family vacate the property so that the sale can be effected immediately. In fairness to petitioner, respondent should pay a rental of ₱1,200.00 per month, with legal interest from the time the trial court ordered him to vacate, for the use and enjoyment of the other half of the property appertaining to petitioner. When petitioner filed an action to compel the sale of the property and the trial court granted the petition and ordered the ejectment of respondent, the co-ownership was deemed terminated and the right to enjoy the possession jointly also ceased. Thereafter, the continued stay of respondent and his family in the house prejudiced the interest of petitioner as the property should have been sold and the proceeds divided equally between them. To this extent and from then on, respondent should be held liable for monthly rentals until he and his family vacate.

APPEARANCES OF COUNSEL

Jose F. Manacop for petitioner.

Siruelo, Muyco & Associates Law Office for private respondent.

D E C I S I O N

BELLOSILLO, *J.*:

This is a petition for review on *certiorari* seeking to reverse and set aside the Decision of the Court of Appeals in CA-GR CV No. 03933 declaring null and void the orders of 23 and 26 April 1979, the judgment by default of 26 July 1979, and the order of 22 October 1979 of the then Court of First Instance of Rizal, Pasay City, Branch 30, and directing the trial court to set the case for pre-trial conference.

Petitioner Virgilio and respondent Senen are brothers; Virgilio is the youngest of seven (7) children of the late Maximiano Aguilar, while Senen is the fifth. On 28 October 1969, the two brothers purchased a house and lot in Parañaque where their father could spend and enjoy his remaining years in a peaceful neighborhood. Initially, the brothers agreed that Virgilio's share in the co-ownership was two-thirds while that of Senen was one-third. By virtue of a written memorandum dated 23 February 1970, Virgilio and Senen agreed that henceforth their interests in the house and lot should be equal, with Senen assuming the remaining mortgage obligation of the original owners with the Social Security System (SSS) in exchange for his possession and enjoyment of the house together with their father.

Since Virgilio was then disqualified from obtaining a loan from SSS, the brothers agreed that the deed of sale would be executed and the title registered in the meantime in the name of Senen. It was further agreed that Senen would take care of their father and his needs since Virgilio and his family were staying in Cebu.

After Maximiano Aguilar died in 1974, petitioner demanded from private respondent that the latter vacate the house and that the property be sold and proceeds thereof divided among them.

Because of the refusal of respondent to give in to petitioner's demands, the latter filed on 12 January 1979 an action to compel

the sale of the house and lot so that the they could divide the proceeds between them.

In his complaint, petitioner prayed that the proceeds of the sale be divided on the basis of two-thirds (2/3) in his favor and one-third (1/3) to respondent. Petitioner also prayed for monthly rentals for the use of the house by respondent after their father died.

In his answer with counterclaim, respondent alleged that he had no objection to the sale as long as the best selling price could be obtained; that if the sale would be effected, the proceeds thereof should be divided equally; and, that being a co-owner, he was entitled to the use and enjoyment of the property.

Upon issues being joined, the case was set for pre-trial on 26 April 1979 with the lawyers of both parties notified of the pre-trial and served with the pre-trial order, with private respondent executing a special power of attorney to his lawyer to appear at the pre-trial and enter into any amicable settlement in his behalf.[1]

On 20 April 1979, Atty. Manuel S. Tonogbanua, counsel for respondent, filed a motion to cancel pre-trial on the ground that he would be accompanying his wife to Dumaguete City where she would be a principal sponsor in a wedding.

On 23 April 1979, finding the reasons of counsel to be without merit, the trial court denied the motion and directed that the pre-trial should continue as scheduled.

When the case was called for pre-trial as scheduled on 26 April 1979, plaintiff and his counsel appeared. Defendant did not appear; neither his counsel in whose favor he executed a special power of attorney to represent him at the pre-trial. Consequently, the trial court, on motion of plaintiff, declared defendant as in default and ordered reception of plaintiff's evidence *ex parte*.

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[1] Page 97, *Rollo*.

On 7 May 1979, defendant through counsel filed an omnibus motion to reconsider the order of default and to defer reception of evidence. The trial court denied the motion and plaintiff presented his evidence.

On 26 July 1979, rendering judgment by default against defendant, the trial court found him and plaintiff to be co-owners of the house and lot in equal shares on the basis of their written agreement. However, it ruled that plaintiff has been deprived of his participation in the property by defendant's continued enjoyment of the house and lot, free of rent, despite demands for rentals and continued maneuvers of defendant to delay partition. The trial court also upheld the right of plaintiff as co-owner to demand partition. Since plaintiff could not agree to the amount offered by defendant for the former's share, the trial court held that the property should be sold to a third person and the proceeds divided equally between the parties.

The trial court likewise ordered defendant to vacate the property and pay plaintiff ₱1,200.00 as rentals[2] from January 1975 up to the date of decision plus interest from the time the action was filed.

On 17 September 1979, defendant filed an omnibus motion for new trial but on 22 October 1979 the trial court denied the motion.

Defendant sought relief from the Court of Appeals praying that the following orders and decision of the trial court be set aside: (a) the order of 23 April 1970 denying defendant's motion for postponement of the pre-trial set on 26 April 1979; (b) the order of 26 April 1979 declaring him in default and authorizing plaintiff to present his evidence *ex-parte*; (c) the default judgment of 26 July 1979; and, (d) the order dated 22 October 1979 denying his omnibus motion for new trial.

On 16 October 1986, the Court of Appeals set aside the order of the trial court of 26 April 1979 as well as the assailed judgment rendered by default. The appellate court found the explanation

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[2] Presumably per month although the decision does not so specify.

of counsel for defendant in his motion to cancel pre-trial as satisfactory and devoid of a manifest intention to delay the disposition of the case. It also ruled that the trial court should have granted the motion for postponement filed by counsel for defendant who should not have been declared as in default for the absence of his counsel.

Petitioner now comes to us alleging that the Court of Appeals erred (1) in not holding that the motion of defendant through counsel to cancel the pre-trial was dilatory in character and (2) in remanding the case to the trial court for pre-trial and trial.

The issues to be resolved are: whether the trial court correctly declared respondent as in default for his failure to appear at the pre-trial and in allowing petitioner to present his evidence *ex-parte*, and whether the trial court correctly rendered the default judgment against respondent.

We find merit in the petition.

As regards the first issue, the law is clear that the appearance of parties at the pre-trial is mandatory.[3] A party who fails to appear at a pre-trial conference may be non-suited or considered as in default.[4] In the case at bar, where private respondent and counsel failed to appear at the scheduled pre-trial, the trial court has authority to declare respondent in default.[5]

Although respondent's counsel filed a motion to postpone pre-trial hearing, the grant or denial thereof is within the sound discretion of the trial court, which should take into account two factors in the grant or denial of motions for postponement, namely: (a) the reason for the postponement and (b) the merits of the case of movant.[6]

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[3] *Jungo v. Court of Appeals*, G.R. No. 78051, 8 November 1989, 179 SCRA 213.

[4] Sec. 2, Rule 20, Rules of Court; *Insular Veneer v. Plan*, G.R. No. L-40155, 10 September 1976 73 SCRA 1.

[5] *Pacweld Steel Corp. v. Asia Steel Corp.*, G.R. No. L-26325, 15 November 1982, 118 SCRA 229.

[6] *Guzman v. Elbinias*, G.R. No. 57395, 17 April 1989 172 SCRA 240.

In the instant case, the trial court found the reason stated in the motion of counsel for respondent to cancel the pre-trial to be without merit. Counsel's explanation that he had to go to Iloilo by boat as early as 25 March 1979 to fetch his wife and accompany her to a wedding in Dumaguete City on 27 April 1979 where she was one of the principal sponsors, cannot be accepted. We find it insufficient to justify postponement of the pre-trial, and the Court of Appeals did not act wisely in overruling the denial. We sustain the trial court and rule that it did not abuse its discretion in denying the postponement for lack of merit. Certainly, to warrant a postponement of a mandatory process as pre-trial would require much more than mere attendance in a social function. It is time indeed we emphasize that there should be much more than mere perfunctory treatment of the pre-trial procedure. Its observance must be taken seriously if it is to attain its objective., *i.e.*, the speedy and inexpensive disposition of cases.

Moreover, the trial court denied the motion for postponement three (3) days before the scheduled pre-trial. If, indeed, counsel for respondent could not attend the pre-trial on the scheduled date, respondent at least should have personally appeared in order not to be declared as in default. But, since nobody appeared for him, the order of the trial court declaring him as in default and directing the presentation of petitioner's evidence *ex parte* was proper.[7]

With regard to the merits of the judgment of the trial court by default, which respondent appellate court did not touch upon in resolving the appeal, the Court holds that on the basis of the pleadings of the parties and the evidence presented *ex parte*, petitioner and respondents are co-owners of subject house and lot in equal shares; either one of them may demand the same of the house and lot at any time and the other cannot object to such demand; thereafter the proceeds of the sale shall be divided equally according to their respective interests.

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[7] *Ravelo v. Court of Appeals*, No. L-40111, 27 October 1983, 125 SCRA 366.

Private respondent and his family refuse to pay monthly rentals to petitioner from the time their father died in 1975 and to vacate the house so that it can be sold to third persons. Petitioner alleges that respondent's continued stay in the property hinders its disposal to the prejudice of petitioner. On the part of petitioner, he claims that he should be paid two-thirds (2/3) of a monthly rental of ₱2,400.00 or the sum of ₱1,600.00.

In resolving the dispute, the trial court ordered respondent to vacate the property so that it could be sold to third persons and the proceeds divided between them equally, and for respondent to pay petitioner one-half (½) of ₱2,400.00 or the sum of ₱1,200.00 as monthly rental, conformably with their stipulated sharing reflected in their written agreement.

We uphold the trial court in ruling in favor of petitioner, except as to the effectivity of the payment of monthly rentals by respondent as co-owner which we here declare to commence only after the trial court ordered respondent to vacate in accordance with its order of 26 July 1979.

Article 494 of the Civil Code provides that no co-owner shall be obliged to remain in the co-ownership, and that each co-owner may demand at any time partition of the thing owned in common insofar as his share is concerned. Corollary to this rule, Art. 498 of the Code states that whenever the thing is essentially indivisible and the co-owners cannot agree that it be allotted to one of them who shall indemnify the others, it shall be sold and its proceeds accordingly distributed. This is resorted to (1) when the right to partition the property is invoked by any of the co-owners but because of the nature of the property it cannot be subdivided or its subdivision would prejudice the interests of the co-owners, and (b) the co-owners are not in agreement as to who among them shall be allotted or assigned the entire property upon proper reimbursement of the co-owners. In one case,[8] this Court upheld the order of the trial court directing the holding of a public sale of the properties owned in common pursuant to Art. 498 of the Civil Code.

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[8] *Reyes v. Concepcion*, G.R. No. 56550, 1 October 1990, 190 SCRA 171.

However, being a co-owner respondent has the right to use the house and lot without paying any compensation to petitioner, as he may use the property owned in common so long as it is in accordance with the purpose for which it is intended and in a manner not injurious to the interest of the other co-owners.[9] Each co-owner of property held *pro indiviso* exercises his rights over the whole property and may use and enjoy the same with no other limitation than that he shall not injure the interests of his co-owners, the reason being that until a division is made, the respective share of each cannot be determined and every co-owner exercises, together with his co-participants joint ownership over the *pro indiviso* property, in addition to his use and enjoyment of the same.[10]

Since petitioner has decided to enforce his right in court to end the co-ownership of the house and lot and respondent has not refuted the allegation that he has been preventing the sale of the property by his continued occupancy of the premises, justice and equity demand that respondent and his family vacate the property so that the sale can be effected immediately. In fairness to petitioner, respondent should pay a rental of ₱1,200.00 per month, with legal interest from the time the trial court ordered him to vacate, for the use and enjoyment of the other half of the property appertaining to petitioner.

When petitioner filed an action to compel the sale of the property and the trial court granted the petition and ordered the ejectment of respondent, the co-ownership was deemed terminated and the right to enjoy the possession jointly also ceased. Thereafter, the continued stay of respondent and his family in the house prejudiced the interest of petitioner as the property should have been sold and the proceeds divided equally between them. To this extend and from then on, respondent should be held liable for monthly rentals until he and his family vacate.

WHEREFORE, the petition is *GRANTED*. The assailed Decision of the Court of Appeals dated 16 October 1986 is

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[9] Article 486, Civil Code.

[10] *Pardell v. Bartolome,* 23 Phil. 450 (1912).

REVERSED and *SET ASID*E. The decision of the trial court in Civil Case No. 6912-P dated 26 July 1979 is *REINSTATED*, with the modification that respondent Senen B. Aguilar is ordered to vacate the premises in question within ninety (90) days from receipt of this decision, and to pay petitioner Virgilio B. Aguilar a monthly rental of ₱1,200.00 with interest at the legal rate from the time he received the decision of the trial court directing him to vacate until he effectively leaves the premises.

The trial court is further directed to take immediate steps to implement this decision conformably with Art. 498 of the Civil Code and the Rules of Court. This decision is final and executory.

SO ORDERED.

Cruz (Chairman), Davide, Jr., and *Quiason, JJ.,* concur.

EN BANC

[A.M. No. RTJ-88-170. November 8, 1993]

AGATONA ALFONSO-CORTES and LEONIDES CORTES, *petitioners, vs.* **JUDGE ROMEO MAGLALANG,** *respondent.*

SYLLABUS

JUDICIAL ETHICS; JUDGES; FAILURE TO DECIDE A CASE WITHIN THE REGLEMENTARY PERIOD FROM DATE OF SUBMISSION CONSTITUTES MISCONDUCT; PENALTY; CASE AT BAR. — We held in the case of *Marcelino vs. Cruz, Jr.*, 121 SCRA 51 (1983), "We x x x emphasize the rule, for the guidance of the judges manning our courts, that cases pending before their salas must be decided within the aforementioned period (and that) (f)ailure to observe

said rule constitutes a ground for administrative sanction against the defaulting judge." Thus, the respondent judge, who unquestionably promulgated the decision in Civil Case No. 3810 long after the three-month period had elapsed, must be made administratively liable for the delay. IN VIEW WHEREOF, We find respondent Judge Romeo Maglalang GUILTY of failing to decide Civil Case No. 3810 within the reglementary period of three (3) months from the date of its submission and he is hereby ordered to pay a fine of ₱5,000.00.

R E S O L U T I O N

PUNO, *J.*:

Respondent judge Romeo Maglalang[1] is charged with misconduct for failing to decide Civil Case No. 3810 within the reglementary period of ninety (90) days from date of submission.

The subject of Civil Case No. 3810 is a foreclosed fishpond located in Samal, Bataan and owned by herein complainants Agatona Alfonso-Cortes and Leonides Cortes. The Cortes spouses assailed the public auction sale of the subject fishpond on the grounds that the auction was publicized in the "Daily Record" which is not a newspaper of general circulation in Bataan, and that it was held on a day different from that so published.[2]

On April 10, 1986, after the parties in Civil Case No. 3810 had presented their respective evidence, the case was submitted for decision, as can be clearly seen from the stenographic notes taken during the hearing of even date, *viz*.:

"SESSION COMMENCED:

"ATTY. VIGO:

For the plaintiffs Your Honor.

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[1] Regional Trial Court of Balanga, Bataan, Branch 2.

[2] At the time of the institution of Civil Case No. 3810 in 1974, respondent Judge Maglalang had not yet been appointed to the RTC of Balanga, Bataan. He was appointed to that post in 1983.

"ATTY. ORTIGUERA:

For the defendants Your Honor, we are ready Your Honor.

"ATTY. VIGO:

Your Honor, after conferring with the plaintiff in this case Your Honor, I found out that we will present rebuttal evidence which will be only repeating his testimony, so we are foregoing his intention of a rebuttal evidence and *we are submitting the case for decision.*

"COURT:

The case is submitted for decision."

(*Rollo*, p. 90; Italics supplied.)

On March 5, 1987, the Cortes spouses filed their memorandum in Civil Case No. 3810, and four days later, they filed the instant Complaint. Civil Case No. 3810 was finally decided by the respondent judge on April 22, 1988. It was only on June 7, 1988 that the respondent judge filed his Answer to the charges against him.

Respondent judge's defense is three-pronged: that Civil Case No. 3810 was not submitted for decision on April 10, 1986; that he could not cope with his workload which was doubled starting from April 14, 1987, when he was designated to take cognizance of all cases pending in Branch I, RTC of Balanga, Bataan, in addition to those pending before his own sala; and that the civil case involved difficult questions of law which required extensive research on his part.

The defense of the respondent judge was brushed aside by Court of Appeals Justice Ricardo L. Pronove, Jr., now retired, who heard and investigated the instant complaint. We agree with Justice Pronove's findings and recommendation.

Judge Maglalang urges that the case was not submitted for decision on April 10, 1986. He contends that the starting point of the ninety-day reglementary period to decide Civil Case No. 3810 should be April, 1987.[3] He explains that he "gave the

[3] Memorandum for Respondent, p. 6; *Rollo*, p. 197.

defendants a chance to submit their own (memorandum), even beyond the period granted in the spirit of liberality enjoined by Section 2 of Rule 1 of the Rules of Court and to be able to hear defendants' elucidation of the evidence adduced and the applicable law."[4]

We do not find merit in this posture. The earlier quoted stenographic notes of the April 10, 1986 hearing of Civil Case No. 3810 state clearly that the case was deemed submitted for decision on that date. There were no further proceedings, specifically, no motions for leave to file memoranda from the parties after April 10, 1986 which would indicate that the submission of the case for decision was moved from that date. The respondent judge's claim that he was "privately" requested by the parties for time to file their respective memoranda is, therefore, not established by independent evidence.

Even if we assume that the case was submitted for decision in April, 1987, the promulgation by the respondent judge of his Decision on April 22, 1988 was still nine months after the end of the three-month reglementary period.

We are not also impressed by respondent judge's claim that the magnitude of his workload as presiding judge of two branches of the Balanga RTC prevented him from timely deciding Civil Case No. 3810. In the first place, it is noted that the case was submitted for decision on April 10, 1986, a full year before the respondent judge was appointed as acting presiding judge of Branch 1 of RTC, Balanga, Bataan. Secondly, respondent judge testified that from August, 1987 to March, 1988, he did not receive his salary for the sole reason that he failed to decide Civil Case No. 3810, thus:

"DIRECT EXAMINATION

"BY JUDGE MAGLALANG TO HIMSELF:

x x x x x x x x x

"Q – Why were you delayed in the submission of your certificates of service?

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[4] Answer, p. 1; *Rollo*, p. 13.

"A – Because of the provision in the certificate which in effect was that there was no special proceedings, application, motions, civil and criminal cases which have been under submission for decision or determination for a period of 90 days.

"Q – Before the submission of the 12 certificates of service, what happened with respect to your salary?

"A – My salary was withheld because of non-submission of the forms.

x x x x x x x x x

"JUSTICE PRONOVE:

You mean to say, you did not receive your salaries?

"JUDGE MAGLALANG:

My salaries were withheld.

x x x x x x x x x

"JUSTICE PRONOVE:

When did you get your salary then?

"JUDGE MAGLALANG:

Only after submission of the certificates of service, Your Honor, when I have (*sic*) already prepared the decision in Civil Case No. 3810.

"JUSTICE PRONOVE:

So, that's the only case pending in your sala that prevented you from receiving your salary during those months you mentioned.

"JUDGE MAGLALANG:

Yes, as far as I remember.

"JUSTICE PRONOVE:

That was the only one?

"JUDGE MAGLALANG:

Yes. x x x"

(T.S.N., August 2, 1990, pp. 6-7.)

Tacit in his testimony is the admission that, for more than half a year, Civil Case No. 3810 was the only case awaiting his decision for over ninety days. Clearly, therefore, his load during the period from April, 1987 to April, 1988 was not as heavy as he represented it to be. In fact, a scrutiny of the respondent judge's own evidence shows that from April, 1987 to April, 1988, he decided (on the merits) only a total of 57 cases including Civil Case No. 3810 for Branch 2 of the RTC of Balanga, Bataan. Certainly, the less than five decisions per month average for such period belies Judge Maglalang's claim of an overwhelming workload.

Finally, respondent judge's defense that Civil Case No. 3810 involves complicated questions of law is similarly meritless. As well pointed out by retired Justice Pronove in his Report and Recommendation, *viz*.:

"x x x (T)he issue which the respondent Judge considered complicated and which took him a long time to resolve, was whether the 'Daily Record' should or should not be considered a newspaper of general circulation in the province. Contrary to respondent's contention, the issue is more factual than legal in nature and could have been easily resolved upon examination of the evidence. If there was proof that the 'Daily Record' was not being circulated in Bataan, then it could have been easily ruled that the requirements of the law were not met. It seem (sic) to be as simple as that.

"The second point that allegedly caused difficulties to the respondent was the question of whether or not the holding of a foreclosure proceeding on a date different from that published should be considered valid. Respondent contends that the matter was of first impression to him and required extensive research. As proof of the research work that he did, he mentioned ten (10) cases which he cited to support his decision.

"A reading of the judgment which the respondent Judge rendered will indeed disclose that he had cited authorities in his decision. But We note that 2 or 3 of them were actually taken from the decision earlier rendered in the case by the Court of Appeals. In fact, a short paragraph from the decision of the appellate court was even paraphrased. x x x

"x x x x x x x x x

"With the foregoing, it is difficult to understand how the respondent Judge can claim having spent a year looking for authorities to support his decision.

"Regarding the contention that there were no law books in his court forcing him to research elsewhere, suffice it to say that his predicament is no different from the majority of trial judges throughout the Philippines. Similarly situated, other judges have been able to cope with the situation and were able to hand down their decisions within the reglementary period." (Report submitted by Justice Ricardo L. Pronove, pp. 8-10.)

We held in the case of *Marcelino vs. Cruz, Jr.*, 121 SCRA 51 (1983), "We x x x emphasize the rule, for the guidance of the judges manning our courts, that cases pending before their salas must be decided within the aforementioned period (and that) (f)ailure to observe said rule constitutes a ground for administrative sanction against the defaulting judge."

Thus, the respondent judge, who unquestionably promulgated the decision in Civil Case No. 3810 long after the three-month period had elapsed, must be made administratively liable for the delay. As further elucidated by retired Justice Pronove:

"x x x. While it is true that the complainants failed to prove their charge that the respondent had profited materially from the delay, there is no question that the latter knew the consequences of his inaction in the case. Knowing from the record that the defendants were in possession of the fishpond while the case was pending, the respondent must have known that the longer he delayed in deciding the case, the longer defendants would profit to the damage and prejudice of the complainants. x x x" (Report of Justice Ricardo L. Pronove, p. 11.)

IN VIEW WHEREOF, We find respondent Judge Romeo Maglalang *GUILTY* of failing to decide Civil Case No. 3810 within the reglementary period of three (3) months from the date of its submission and he is hereby ordered to pay a fine of ₱5,000.00.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, and *Vitug, JJ.*, concur.

Griño-Aquino, J., retired on October 22, 1993.

SECOND DIVISION

[A.M. No. MTJ-89-301. November 8, 1993]

MATEO DUMAYA, *complainant, vs.* **JUDGE TERTULO A. MENDOZA, MCTC, Quezon-Licab, Nueva Ecija [Acting MTC Judge, Sto. Domingo, Nueva Ecija],** *respondent.*

SYLLABUS

1. REMEDIAL LAW; RULE ON SUMMARY PROCEDURE; NOT APPLICABLE IN CASES OF FORCIBLE ENTRY AND UNLAWFUL DETAINER INVOLVING QUESTION OF OWNERSHIP. — Before its amendment in October, 1991 the Rule on Summary Procedure was applicable to cases of forcible entry and unlawful detainer, except where the question of ownership is involved. In respondent judge's decision he stated that the defendants in Civil Case No. 379 alleged as affirmative defense that they are the "owners of the house and lot having bought the same for value and good faith from the son of the plaintiff." There being a question of ownership, the old Rule on Summary Procedure is therefore, not applicable.

2. JUDICIAL ETHICS; JUDGES; FAILURE TO DECIDE A MOTION FOR ISSUANCE OF WRIT OF PRELIMINARY INJUNCTION WITHIN THIRTY (30) DAYS CONSTITUTE MISCONDUCT; PENALTY. — Rule 70 of

the Rules of Court mandates that in forcible entry cases where a motion for the issuance of a writ of preliminary injunction has been filed to restore the possessor in possession, the court "shall decide the motion within thirty (30) days from the filing thereof." Respondent's excuse that he resolved complainant's prayer for the issuance of a writ of preliminary injunction before the filing of the instant complaint is unavailing as he evidently failed for five (5) months to resolve the issue of whether the writ should be issued or not within the period stated in the law nor to explain the delay. Respondent judge is administratively liable for the unreasonable delay in the disposition of the said civil case. Nevertheless, we find the recommended penalty of ₱2,000.00 fine to be too harsh a penalty to be imposed. WHEREFORE, finding Judge Tertulo A. Mendoza to be guilty of misconduct for unreasonable delay in resolving the matter of whether or not to issue the writ of preliminary injunction within 30 days from the filing of Civil Case No. 379 for Forcible Entry, the Court hereby FINES him ₱1,000.00, with a warning that any or similar infraction shall be dealt with more severely.

D E C I S I O N

NOCON, *J.*:

A judge should perform his official duties honestly, and with impartiality and diligence. He shall dispose of the court's business promptly and decide cases within the required periods.[1] Thus, a delay of five (5) months in the resolution of a motion for the issuance of a writ of preliminary injunction in a forcible entry case runs counter to the duty of a judicial magistrate to ensure speedy administration of justice.

Judge Tertulo Mendoza[2] is here charged with serious misconduct relative to the disposition of Civil Case No. 379, entitled "*Mateo Dumaya v. Sps. Teddy Fernandez and Amelia Ventura*" for Forcible Entry with Prayer for Writ of Preliminary Mandatory Injunction.

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[1] Canon 3, Rule 3.05, Code of Judicial Conduct.

[2] Municipal Trial Court, Quezon-Licab, Nueva Ecija.

In an administrative complaint dated May 22, 1989, Mateo Dumaya alleges that on August 5, 1988, he filed the aforesaid case, specifically praying therein the issuance of a writ of preliminary injunction. On September 9, 1988, respondent judge ordered the parties to file their respective memorandum and "thereafter, with or without such memorandum, the prayer for the issuance of the writ of preliminary mandatory injunction will be deemed submitted for resolution."[3]

Respondent Judge, however, apparently forgot to act expeditiously upon his own order, so much so that on February 24, 1989, or five (5) months thereafter, the counsel for petitioner/complainant had to file a petition to resolve his request for preliminary injunction.[4] Jolted into action, respondent Judge response was to issue an Order dated March 15, 1989 denying the issuance of the writ, "(a)fter considering the arguments of both parties with regard to the issuance of writ of preliminary mandatory injunction as *contained in their pleadings*."[5] (Italics supplied.) Thus, this complaint alleging that the delay of respondent in deciding the case unnecessarily prolonged the litigation, resulting to his damage and prejudice.

The case was referred to the Office of the Court Administrator (OCA) which found that "respondent evidently failed to satisfactorily explain his failure to resolve the prayer (for the issuance of a writ of preliminary injunction) after fifteen (15) days from September 9, 1988. (Annex "B", Complaint)."[6] Hence, the OCA recommended a fine of ₱2,000.00 "for his failure to apply the (1983) Rule on Summary Procedure in Civil Case 379."[7]

Deputy Court Administrator Reynaldo Suarez, further observed that:

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[3] Annex "B" of the Petition, *Rollo*, p. 6.

[4] Annex "C" of the Petition, *Rollo*, p. 7.

[5] Annex "I" of the Answer, *Rollo*, p. 14.

[6] Recommendation of the OCA, p. 1.

[7] *Id*., p. 2.

"It may be argued that respondent in the exercise of his sound discretion had legal reasons to hold a full blown trial instead of deciding the case based on the pleadings filed, but had he been more assiduous in the performance of his obligation as a dispenser of justice the case should have been deemed submitted after the filing of the answer, (the date however could not be ascertained as the records do not disclose), which certainly could have been done prior to the hearing scheduled on February 24, 1989. The action was simply a case of forcible entry which involves only the issue of possession but it took respondent more than one year to decide the case from the date it was filed. Clearly, respondent failed to implement the Rule on Summary Procedure in this particular case."[8]

Although we agree with the recommendation of the Office of the Court Administrator that respondent judge should be sanctioned for the delay in resolving the prayer for issuance of the writ of preliminary injunction, the recommendation failed to consider that Civil Case No. 379 is not really a case of forcible entry but one involving the issue of ownership over the subject property, and therefore, the old Rule on Summary Procedure is not applicable.

Before its amendment in October, 1991 the Rule on Summary Procedure was applicable to cases of forcible entry and unlawful detainer, *except where the question of ownership is involved*.[9] In respondent judge's decision he stated that the defendants in Civil Case No. 379 alleged as affirmative defense that they are the "owners of the house and lot having bought the same for value and good faith from the son of the plaintiff."[10] There being a question of ownership, the old Rule on Summary Procedure is therefore, not applicable.

Be that as it may, Rule 70 of the Rules of Court mandates that in forcible entry cases where a motion for the issuance of a writ of preliminary injunction has been filed to restore the

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[8] *Id*.

[9] Sec. 1. A (1), 1983 Rule on Summary Procedure.

[10] Annex "4" of the Answer; *Rollo*, p. 17.

possessor in possession, the court "shall decide the motion within thirty (30) days from the filing thereof."[11]

Respondent's excuse that he resolved complainant's prayer for the issuance of a writ of preliminary injunction before the filing of the instant complaint is unavailing as he evidently failed to resolve the issue of whether the writ should be issued or not within the period stated in the law nor to explain the delay.

Respondent judge is administratively liable for the unreasonable delay in the disposition of the said civil case. Nevertheless, we find the recommended penalty of ₱2,000.00 fine to be too harsh a penalty to be imposed.

WHEREFORE, finding Judge Tertulo A. Mendoza to be guilty of misconduct for unreasonable delay in resolving the matter of whether or not to issue the writ of preliminary injunction within 30 days from the filing of Civil Case No. 379 for Forcible Entry, the Court hereby *FINES* him ₱1,000.00, with a warning that any or similar infraction shall be dealt with more severely.

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, Regalado, and *Puno, JJ.*, concur.

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[11] Sec. 3 Preliminary Injunction

x x x x x x x x x

A possessor deprived of his possession through forcible entry may within ten (10) days from the filing of the complaint present a motion to secure from the competent court, in the action for forcible entry, a writ of preliminary injunction to restore him in his possession. The court shall decide the motion *within thirty (30) days from the filing thereof.* (Italics supplied)

EN BANC

[A.M. No. P-92-701. November 8, 1993]
(Formerly Adm. No. 91-9-379-OMB)

OFFICE OF THE COURT ADMINISTRATOR, *complainant, vs.* **LEANDRO ANQUILO, JR., Deputy Sheriff, Metropolitan Trial Court, Branch 40, Quezon City,** *respondent*.

SYLLABUS

1. POLITICAL LAW; ADMINISTRATIVE LAW; ADMINISTRATIVE PROCEEDINGS; DISMISSAL OF A CRIMINAL CASE IS NOT A BAR TO ADMINISTRATIVE SANCTIONS. — The dismissal of the criminal case is not *per se* a bar to administrative sanctions when called for by the malfeasance, misfeasance or nonfeasance of a public officer. It appears that the dismissal of the Ombudsman case was based mainly on the desistance of the complainant therein, which desistance was made upon respondent's having remitted the ₱8,500.00.

2. ID.; ID.; DEPUTY SHERIFF; FAILURE TO REMIT COLLECTION CONSTITUTES GRAVE MISCONDUCT. — The payment by respondent after two years from the time he should have turned-over his collection to the Bank does not erase his administrative liability for misconduct. On the contrary, it even bolsters the charge that respondent withheld the turn-over of said funds and was forced to remit the same only when the Traders Royal Bank lodged a complaint against him with the Office of the Ombudsman. We are in complete accord with the recommendation of the Investigating Judge. We, find that the record supports the findings and conclusions, embodied in the report. The facts indubitably establish respondent's acts of grave misconduct, warranting the extreme penalty of dismissal from the service with forfeiture of benefits.

D E C I S I O N

***PER CURIAM*:**

On June 8,1992, the Office of the Court Administrator filed an administrative complaint against Deputy Sheriff Leandro Anquilo, Jr., Metropolitan Trial Court, Branch 40, Quezon City, for grave misconduct.

By the *En Banc* Resolution dated September 3, 1992, the administrative case was referred to Executive Judge Pedro Santiago of the Regional Trial Court, Quezon City, for investigation, report and recommendation.

It appears that on April 20, 1989, the Municipal Trial Court, Branch 40, Quezon City, rendered a decision in Civil Case No. 50777 entitled "*Traders Royal Bank v. Angel San Diego and Luzviminda Santos*." In the decision, the trial court ordered the defendants to pay a sum of ₱14,953.09 plus interest, attorney's fees and costs. On August 8, 1989, as partial payment of the judgment debt, a sister of the defendant San Diego issued a check for ₱16,948.39 payable to Traders Royal Bank. The check was turned-over by respondent to Teofilo M. Pugeda, an assistant manager of Traders Royal Bank. Respondent collected the amount of ₱2,000.00 from Pugeda as partial payment for his services in implementing the writ of execution and for which he issued a receipt (Exh. "A-2").

In his Sheriff's Report dated August 14, 1989, respondent stated that he had collected the amount of ₱21,806.12 in "full satisfaction of [defendant San Diego's] monetary obligation to the Plaintiff (Exh. "A-4").

On August 15, 1989, defendant San Diego's sister issued another check, this time for ₱8,500.00, payable to cash, with the annotation at the back thereof as follows: "for payment to TRB for Angel T. San Diego obligation." Respondent encashed the check and kept the money.

Pugeda later learned of the payment of ₱8,500 by defendant San Diego. Thus, in the two letters to respondent, dated October

9, 1989 and November 6, 1989 (Exhs. "A-5" and "A-6"), Pugeda demanded that respondent remit to the Bank the ₱8,500.00 and the ₱2,000.00, which respondent allegedly got from the sister of the defendant San Diego, also as sheriff's fees.

As a consequence of respondent's failure to remit the ₱8,500.00, Pugeda filed a complaint against respondent with the Office of the Ombudsman.

In a resolution dated September 24, 1990, in OMB-0-90-1816, the Ombudsman recommended that respondent be charged with estafa under Article 315, par. 1(b) and with falsification by a public officer under Article 171, Revised Penal Code.

The subsequent Order dated September 24, 1991 of the Ombudsman dismissed the complaint at the request of Pugeda, who withdrew his complaint after respondent remitted the ₱8,500.00 to him.

In his Comment, respondent alleged that he tried to give the bank the ₱8,500.00, but the bank refused to accept the money claiming that it was entitled to ₱35,000.00 under its computation of the judgment debt. He also alleged that he tried to give the money to the branch Clerk of Court for safe-keeping but the latter refused to accept the responsibility because there was no safety-deposit box in his office.

The Investigating Judge conducted hearings where Teofilo M. Pugeda and respondent testified. On August 16, 1993, the Investigating Judge submitted his Report and Recommendation, the pertinent part of which reads as follows:

"x x x, The claim of respondent that the complainant-bank refused to accept the amount of ₱8,500.00 is far fetched from truth considering that the decision could not be interpreted in any other amount but ₱21,806.12. The bank had already accepted ₱16,948.39. There is no plausible reason why the bank should refuse to accept the ₱8,500.00 for the full satisfaction of a decision in his favor. He also did not deny that he filed his report on August 14, 1989 informing the Court that he had collected the total amount of ₱21,806.12 when in fact he had collected only ₱16,948.39 because he had an understanding with the defendant.

Based on the evidence, it is clear that Deputy Sheriff Leandro Anquilo, Jr. had the intention of defrauding and in fact defrauded complainant bank in the amount of ₱8,500.00 considering that he made a return on August 14, 1989 of the writ of execution to the effect that he had collected the full judgment debt of ₱21,806.12 when in truth respondent only transmitted ₱16,948.39 to complainant. Compounding his untruthful return, respondent did not remit to complainant the second check for ₱8,500.00 which he encashed. He kept the amount, evidently personally appropriating the same. Respondent admitted having offered to deliver the amount of ₱8,500.00 to complainant only when a complaint was lodged against him before the office of the Ombudsman. (TSN, June 22, 1993, p. 15) Respondent's other defense that he kept the ₱8,500.00 in his office desk because the Branch Clerk of Court refused to accept the amount does not find reason nor an iota of evidence to support his claim" (*Rollo*, pp. 132-133)

The Investigating Judge concluded his Report with the recommendation that respondent be found guilty and dismissed from the service.

Respondent places much reliance on the dismissal by the Ombudsman of the complaint for estafa and falsification against respondent, which he mentions in his Comment. The dismissal of the criminal case is not *per se* a bar to administrative sanctions when called for by the malfeasance, misfeasance or nonfeasance of a public officer (See *Hipolito v. Mergas*, 195 SCRA 6 [1991]). It appears that the dismissal of the Ombudsman case was based mainly on the desistance of the complainant therein, which desistance was made upon respondent's having remitted the ₱8,500.00. The payment by respondent after two years from the time he should have turned-over his collection to the Bank does not erase his administrative liability for misconduct. On the contrary, it even bolsters the charge that respondent withheld the turn-over of said funds and was forced to remit the same only when the Traders Royal Bank lodged a complaint against him with the Office of the Ombudsman.

We are in complete accord with the recommendation of the Investigating Judge. We find that the record supports the findings and conclusions, embodied in the report. The facts indubitably

establish respondent's acts of grave misconduct, warranting the extreme penalty of dismissal from the service with forfeiture of benefits.

WHEREFORE, the Court Resolved to *DISMISS* respondent from the service for gross misconduct, with forfeiture of all benefits, and with prejudice to his re-employment in any branch or service of the government, including government-owned and controlled corporations.

This decision is immediately executory.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, Puno, and *Vitug, JJ.,* concur.

Griño-Aquino, J., retired.

FIRST DIVISION

[G.R. Nos. 78813-14. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **FARHAD HATANI *Y* ABOLHASSAN,** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; ABSENCE OF CIRCUMSTANCES THAT DISCREDIT.— Precila was either dizzy or unconscious at the time she was sexually abused. We find her testimony consistent and credible. While her testimony is limited to the times when she would gain her consciousness, it is not unlikely

that such traumatic incidents would still be engraved on her mind even four years after.

2. ID.; ID.; ID.; MINOR INCONSISTENCIES IN THE TESTIMONY OF A WITNESS DOES NOT DESTROY CREDIBILITY. — The alleged inconsistencies in the testimony of the prosecution witness merely refer to minor details, which cannot destroy their credibility.

3. ID.; ID.; CIRCUMSTANCIAL EVIDENCE; ESTABLISHED THE GUILT OF THE ACCUSED BEYOND REASONABLE DOUBT. — The circumstantial evidence established at the trial are more than sufficient to prove the guilt of appellant. The Medico-Legal Report on Precila, taken within 48 hours from the commission of rape confirmed that her hymen had "deep, healing lacerations at 4, 6 and 9 o'clock position" and Precila was "in non-virgin state physically." Furthermore, the report confirms that Precila had at least six needle puncture marks and swellings, which confirm that appellant had injected her several times. On the two occasions that Precila woke up she positively stated that appellant was with her on the bed and that they were both naked. She also tried to free herself on both attempts from accused, but, he made her unconscious through injections. This is corroborated by the testimony of Agustina, who saw her daughter and accused together naked on bed. These unbroken chain of events leads one to a fair and reasonable conclusion that accused actually raped Precila.

4. ID.; ID.; ABSENCE OF PHYSICAL INJURIES DOES NOT NEGATE THE COMMISSION OF RAPE. — Appellant also finds it strange that considering the acts allegedly committed by him against Precila, the medico-legal report fails to specify any injuries on the body of Precila. Appellant need not inflict heavy blows on Precila for the simple reason that she was under sedation. The absence of the injuries does not negate the commission of rape, for rape may be committed after rendering a woman unconscious.

5. CRIMINAL LAW; THE MEDICAL ACT OF 1959 (R.A. 2382); ILLEGAL PRACTICE OF MEDICINE, COMMITTED. — The evidence is overwhelming that appellant actually treated and diagnosed Precila and Wilma Borjala. The positive testimony of Agustin, Precila, Wilma and Josefina Borja the medico-legal reports which attest to the needle marks; the

Handwriting Identification Report showing assorted drugs and medicine equipment in appellant's room; and the chemistry reports prove that appellant was engaged in the practice of medicine. And as to his allegation that there was no proof of payment, the law specifically punishes said act whether or not done for a fee.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.

Nestor I. Madlansacay counsel *de parte* for accused-appellant.

Nasser A. Marohomsalic collaborating counsel for accused-appellant.

D E C I S I O N

QUIASON, *J.*:

This is an appeal from the decisions of the Regional Trial Court, Branch 105, Quezon City, convicting appellant in Criminal Cases No. Q-11867 and No. Q-11868.

The dispositive portion of the decision in Criminal Case No. Q-11867 reads as follows:

"WHEREFORE, premises considered, the Court finds the accused Farhard Hatani *y* Abolhassan, GUILTY beyond reasonable doubt of illegal practice of medicine in violation of R.A. 2382 otherwise known as the Medical Act of 1959 (Secs. 8, 10) penalized by Section 28 thereof with "a fine of not less than one thousand pesos nor more than ten thousand pesos with subsidiary imprisonment in case of insolvency, or by imprisonment of not less than one year nor more than five years, or by both such fine and imprisonment, in the discretion of the court; and considering the circumstances of the case and the ignominy caused by him to his two teen-aged, female, then unmarried victims, this Court exercising its discretion granted under said Section 28 of the law, hereby SENTENCES said accused FARHARD HATANI *Y* ABOLHASSAN to pay a fine of ten thousand pesos (₱10,000.00) with subsidiary imprisonment in case of insolvency AND to suffer imprisonment of five (5) years; and to pay the costs.

This Court further recommends that after service of his sentence the accused be deported as undesirable alien" (*Rollo*, p. 35).

The dispositive portion of the decision in Criminal Case No. Q-11868 reads as follows:

"WHEREFORE, premises considered, the Court finds the accused, FARHAD HATANI *Y* ABOLHASSAN, GUILTY beyond reasonable doubt of the crime of rape punishable under Article 335 of the Revised Penal Code and hereby SENTENCES said accused to suffer life imprisonment or *reclusion perpetua*; and to indemnify the complainant, Precila Borja, in the sum of fifty thousand pesos (₱50,000.00) and to pay costs" (*Rollo,* p. 41).

The information in Criminal Case No. Q-11867 charged appellant with illegal practice of medicine, in violation of R.A. No. 2382, otherwise known as the Medical Act of 1959, committed as follows:

"That on or about the 6th day of July, 1979, in Quezon City, Philippines, the above-named accused, knowing fully well that he has not satisfactorily passed the corresponding Board Examination, neither is he a holder of a valid Certificate of Registration duly issued by the Board of Medical Examiners, as in fact he does not even appear to have taken or completed the course leading to a medical degree, did, then and there, willfully, unlawfully and feloniously for compensation, fee and salary, paid to him directly, physically examined Priscila (sic) Borja *Y* Loquero and Wilma Borja *Y* Loquero, diagnosed, treated and administer injections on the persons of Prescila (sic) Borja *Y* Loquero and Wilma Borja *Y* Loquero, in Violation of Section 10, in relation to Section 28, Republic Act No. 2382" (Records, Vol. I, p. 1).

The information in Criminal Case No. Q-11868, charged appellant with Rape, committed as follows:

"That on or about the 6th day of July, 1979, in Quezon City, Philippines, the above-named accused, with lewd designs, and while she was deprived of reason or unconscious after having been drugged or administered medicine, did, then and there, willfully, unlawfully and feloniously have sexual intercourse with the undersigned PRESCILA BORJA *Y* LOQUERO, without her consent and against her will, to her damage and prejudice in such amount as may be

awarded under the provisions of the Civil Code" (Records, Vol. II, p. 1).

It appears that in the morning of July 6, 1979, Agustina Borja visited her *comadre*, Maura Fontreras, and requested *malunggay* leaves as medication for her 16-year old daughter, Precila, who had high fever and loose bowel movement. Upon learning that Precila was sick, Marita, Maura's daughter, introduced Agustina to her husband, appellant herein, whom she said was a medical doctor. Marita suggested that her husband treat Precila and Agustina agreed.

Appellant and Marita went to the Borja residence, where he examined Precila. He gave her tablets to take and administered two injections (to her), one in the morning and the second at noon. After each injection, Precila would feel dizzy and fall asleep.

It was appellant's diagnosis that Precila was a drug addict and required further observation and treatment. Appellant offered to attend to Precila at his house and again, Agustina agreed in the belief that her daughter was a drug addict.

In the evening of the same day, Precila was fetched by appellant and Marita and was brought to appellant's house. Again, Precila was given an injection which caused her to sleep. When she awoke, she realized that she was naked and her entire body was in pain. Appellant was seated on the bed and was fondling her private parts. Shocked, Precila called for her mother and tried to get up. Appellant, however, punched her on the chest and forced her to lie down. He pressed a pillow on her face and injected her again, causing her to fall asleep.

When Precila awoke the second time, she found appellant in bed with her. He was naked and fondling her private parts. The pain all over her body lingered. When Precila touched her private parts, she saw blood stains on her hand. She tried to stand up but she was too weak. Appellant gave her another injection rendering her unconscious.

The following morning, Agustina went to fetch Precila. Upon reaching the Fontreras' residence, she went straight to the

bedroom, where, to her great dismay, she found Precila and appellant both asleep and naked. She hurriedly dressed up Precila and brought her home.

When Precila woke up, she noticed she was already home and her mother was crying. Precila remained dizzy, with throbbing pains all over her body. When talked to, she was incoherent.

That evening, Precila's oldest sister, Josefina, a nurse by profession, came home and saw Precila looking very weak. Her mother, who was crying, narrated what she had witnessed that morning. She also told Josefina that appellant was in the other bedroom, treating another sister, Wilma who he also diagnosed as a drug addict. Josefina immediately proceeded to the bedroom and saw appellant about to inject Wilma.

Josefina saw the open bag of appellant, which contained empty capsules of dalmane and empty vials of valium. She inquired on the need of the injection and appellant replied that a second shot of plain distilled water was required to cure Wilma of her drug addiction. Josefina told appellant to stop but he persisted. Only upon threat that she would call the police did appellant stop. Appellant and his wife then left the Borja residence.

The following day, Agustina and Josefina brought Precila and Wilma to the Philippine Constabulary Headquarters at Camp Crame, Quezon City, where Josefina and Wilma gave their statements (Exhs. "D" and "F"). Precila was physically examined by a doctor, whose medical report stated that Precila's hymen had "deep, healing lacerations" and that "subject is in non-virgin state physically" (Exh. A). Several needle puncture marks were also found on Precila's arms and buttocks.

A physical examination was likewise done on Wilma, which showed that she too had a needle puncture, as shown in the Medico-Legal Report (Exh. "L").

Acting on the complaint filed before the Constabulary Anti-Narcotics Unit (CANU), a surveillance of appellant's residence was conducted. Subsequently, a search warrant was secured from Judge Jose P. Castro of the Court of First Instance of

Quezon City. Armed with the warrant, CANU agents raided appellant's residence on July 15, 1979.

Assorted drugs, such as dalmane, valium and mogadon, as well as prescription pads in the name of Dr. Jesus Yap (Exhs. "H"-"H-4") and other medical instruments, such as a "thermometer, a hygomonometer (sic), stethoscope, syringes and needles, were seized."

The Handwriting Identification Report (Exh. "I") on the prescription slips showed that these were written by the appellant himself. The report on the chemistry examination of the seized tablets and capsules (Exhs. "J"-"J-1") confirmed the presence of mogadon, dalmane and valium.

After the preliminary investigation, separate informations for rape and violation of R.A. No. 2382 were filed. Appellant pleaded not guilty to both crimes.

The defense's version is that in the evening of July 6, 1976, Agustina and Precila Borja visited the mother-in-law of the appellant, Maura Fontreras. In the course of the conversation, Agustina asked Marita if she could help Precila. Marita obliged and agreed to take care of Precila for the night and allow her to sleep in her bedroom.

Precila and Marita chatted the whole night. Accordingly, Precila confessed that she was not really sick. She merely related her personal problems, involving her parents. She also admitted her vices, such as drinking, smoking and taking drugs.

Their talk lasted until the wee hours of the morning and during their conversation, appellant would occasionally enter the room but he never joined their discussion.

Precila and Marita shared the same bed. Appellant, who was wearing only his pajama pants, slept on the floor at the opposite end of the room.

The following morning Agustina arrived and Marita related some of Precila's problems. Nothing untoward happened that day and Agustina headed for home while Precila and Marita followed later.

At past midnight of July 15, 1979, a raid was conducted by CANU agents in the house of the appellant under the supervision of C1C Agustin Timbol, Jr. The raid was made upon Josefina's complaint for illegal possession of drugs.

Appellant and his wife were driven out of their bedroom, while three men remained. Later, appellant was called to join them in the bedroom and he was shocked to see assorted drugs scattered around. Appellant denied owning them. Photographs were taken of him with the drugs. A *barangay* official was called to attest to the list of the confiscated drugs. Appellant, however, refused to sign the said list.

C1C Timbol offered to fix the case in exchange of money. Instead of acceding, appellant demanded to see the search warrant. C1C Timbol failed to show a warrant on the pretext that they were military men without need of any identification or search warrant. Appellant, his wife and brother-in-law were forced to join C1C Timbol for questioning in Camp Crame. Upon boarding the van, appellant saw Josefina aboard kissing C1C Timbol and both exchanged victory signs.

The trial court rendered two separate decisions and convicted the appellant of both crimes. In finding appellant guilty of illegal purchase of medicine, considerable weight was given to the prosecution's exhibits.

The Professional Regulation Commission certified that appellant is not among the list of registered physicians nor among those with special permit to practice medicine in a limited scope (Exh. "K").

Appellant failed to refute the Handwriting Identification Report (Exh. "I") released by the PC Crime Laboratory showing that the signature of Dr. Jesus D. Yap (Exhs. "H" "H-4") prescribing medicine belonged to him. The pictures also taken during the raid (Exhs. "G" "G-8") undeniably reveal several medical equipment used by practicing physicians.

Notwithstanding the trial court's finding that there was no direct evidence of rape, it concluded that circumstantial evidence

indicate that rape was consummated by appellant considering the following:

"1. The medico-legal examination of victim Precila, taken on July 8, 1979 at 10:25 in the morning or less than 48 hours from the evening of July 6, 1979 found "hymen with deep, healing lacerations at 4, 6 and 9 o'clock position"; thus indicating that the lacerations were recent as they are in the process of healing; (Exh. "A-1")

2. The above undeniable findings of the expert confirms the statement of the victim, a young girl of 16 or 17 years of age, that when she held private parts which were painful then, she noticed blood. (tsn. Alma, Feb. 9, 1984, pp. 4-5).

> "The fresh laceration of the hymen further confirms the carnal assault." (*People vs. Ocampo*, L-47335, Aug. 13, 1986).

3. In the two short waking moments of the victim she noticed she was naked and beside her on the same bed was the accused, also naked. (tsn. Alma, Feb. 9, 1984, pp. 3-5)

4. The accused, then 21 years of age was in the prime of youth, and the unconscious girl beside him was just 16 or 17 years of age, thus in the full bloom of womanhood. The sexual excitement on the part of the accused was therefore exceedingly great.

5. When the mother, Agustina, came into the room of the accused that early morning of July 7, 1979 she saw her daughter and the accused on the same bed and both naked. (tsn., Rogato, Jan. 27, 1981, p. 9)

6. The medico-legal found several needle puncture marks on the arms and buttocks of Precila (Exh. "A"); thus confirming Precila's testimony that she had been injected by the accused, rendering her unconscious (tsn. Alma, Feb. 9, 1984, pp. 4-5; tsn., Nenita, May 21, 1984, pp. 3-6; also pp. 29-30).

7. The medico-legal found the victim 'in non-virgin state physically.' (Exh. "A-1")

8. At the time of the medico-legal examination, *i.e.*, morning of July 8, 1979, the victim was found to be 'incoherent.' (Exh. A) after effect of the injections or drugs.

9. At the time of the incident (July 6, 1979) the Borjas and Fontreras (sic) were '*comadres*' and neighbors. There is no enmity between and among them.

10. Between accused and Marita on one hand, and the victim, her mother, and sisters, on the other hand, there was no misunderstanding before the incident. There is absolutely absence of any ulterior motive for the teen-aged victim or her family to file the serious charge of rape which would expose her to embarrassment of examination of her private parts and public trial" (*Rollo*, pp. 38-39).

In his first assignment of error, appellant questions the credibility of the prosecution witnesses.

Appellant faults complainant for recounting her ordeal only after four years when she took the witness stand. This argument is misleading. The record shows that the day after the rape, Josefina and Wilma Borja, accompanied by their mother, Agustina, issued their statements at Camp Crame. Agustina gave her statement twice on separate days. Precila did not give any statement due to her weak condition but it cannot be denied that she was instead physically examined. Suffice it to say, the Medico-Legal Report (Exh. "A") indicates swellings and lacerations and concludes that Precila was no longer a virgin. Although the records fail to show any sworn statement by Precila, such is not fatal where the sworn affidavits of her mother, her two sisters and the medico-legal report are sufficient to show probable cause of rape (*People v. Yambao*, 193 SCRA 571 [1991]).

Precila was either dizzy or unconscious at the time she was sexually abused. We find her testimony consistent and credible. While her testimony is limited to the times when she would gain her consciousness, it is not unlikely that such traumatic incidents would still be engraved on her mind even four years after.

Appellant's assertion that Precila failed to inform her family of his misdeeds is explainable. As correctly pointed out by the Solicitor General, Precila was still dizzy and incoherent as a consequence of the injections administered by appellant. In fact, when Precila was physically examined by the doctor the day after, she was still sleepy and groggy (TSN, March 31, 1980, pp. 7-8).

Appellant also finds it strange that considering the acts allegedly committed by him against Precila, the medico-legal report fails

to specify any injuries on the body of Precila. Appellant need not inflict heavy blows on Precila for the simple reason that she was under sedation. The absence of the injuries does not negate the commission of rape (*People v. Torrevillas*, 203 SCRA 576 [1991]; *People v. Arenas*, 198 SCRA 172 [1991]) for rape may be committed after rendering a woman unconscious (Art. 335, Revised Penal Code; *People v. Gerones*, 193 SCRA 263 [1991]).

Appellant alleges that Precila was no longer a virgin on that fateful day and that her bleeding was actually the start of her menstrual cycle. It is settled jurisprudence that virginity is not an essential element of rape (*People v. Corro*, 197 SCRA 121 [1991]; *People v. Banayo*, 195 SCRA 543 [1991]). To claim that Precila's menstrual cycle began on that day is highly speculative.

Appellant claims that the sworn statements of the Borjas (Exhs. "D", "E" and "F") were antedated and were prepared after the illegal search was conducted in his residence. He also cites some inconsistencies in said statements. We find the claim to be devoid of merit. It is only now on appeal that appellant disputes the execution of these affidavits. When they were presented and offered as evidence, appellant failed to raise such objections and to refute them.

The alleged inconsistencies in the testimony of the prosecution witnesses merely refer to minor details, which cannot destroy their credibility (*People v. Doctolero*, 193 SCRA 632 [1991]). This is also true where statements made while on the witness stand are claimed to be inconsistent with the affidavit, which are generally incomplete (*People v. Lagota*, 194 SCRA 92 [1991]; *People v. Avanzado*, 158 SCRA 427 [1988]).

With regard to the second assignment of error, appellant insists that his conviction arose from insufficient evidence and his failure to prove his innocence.

Indeed, the circumstantial evidence established at the trial are more than sufficient to prove the guilt of appellant. The Medico-Legal Report on Precila, taken within 48 hours from

the commission of rape confirmed that her hymen had "deep, healing lacerations at 4, 6 and 9 o'clock position" and Precila was "in non-virgin state physically" (Exh. "A"). Furthermore, the report confirms that Precila had at least six needle puncture marks and swellings, which confirm that appellant had injected her several times.

On the two occasions that Precila woke up, she positively stated that appellant was with her on the bed and that they were both naked. She also tried to free herself on both attempts from accused, but, he made her unconscious through injections (TSN, February 9, 1984, pp. 3-5). This is corroborated by the testimony of Agustina, who saw her daughter and accused together naked on bed (TSN, January 27, 1981, p. 9). These unbroken chain of events leads one to a fair and reasonable conclusion that accused actually raped Precila.

As held in *People v. Yambao*, *supra*, credence is given to the findings of the trial court where the rape victim's testimony is buttressed by the corroborative testimony of the mother and the medico-legal report, as well as the report of the police investigator.

It must also be borne in mind that at the time of the commission of the crime, Precila was just sixteen years old. No young lady at the prime of her youth would concoct a story of defloration, allow an examination of her intimate parts and later bare herself to the disgrace brought to her honor in a public trial unless she was motivated solely by a desire to have the culprit apprehended and brought to justice (*People v. Patilan*, 197 SCRA 354 [1991]; *People v. Yambao*, 193 SCRA 571 [1991]).

Appellant claims that his right to be presumed innocent was violated. He cites the trial court's decision holding that it—

> "x x x finds that with these circumstantial evidences (sic) pieced together the prosecution has proved the crime of rape, and the burden shifted on the defense to show the contrary" (*Rollo*, p. 40).

Appellant was afforded a fair trial and in fact he availed of sur-rebuttal evidence. The statement of the trial court, as correctly

argued by the Solicitor General, implies that the circumstantial evidence is sufficient to support appellant's conviction unless the defense is able to provide evidence to the contrary.

With respect to his conviction of illegal practice of medicine, appellant presented inconsistent claims. On one hand, he claims that the drugs and other paraphernalia were planted by the raiding team; while on the other hand, he claims that these were seized without any warrant.

If indeed the evidence were all planted, how can appellant explain his handwriting on the prescription pads in the name of Dr. Jesus Yap? A perusal of the photographs showing accused during the raid, fails to indicate any protestation by him. In fact, the other photographs (Exhs. "G-1", "G-2", "G-4" - "G-8") do not bear any sign of disorder, in contrast to appellant's testimony that his room was made into a mess during the raid.

The records fail to disclose a copy of a search warrant. However, the prosecution was able to present its return (Exh. "ZZ") and we are satisfied that indeed a lawful search warrant was obtained. Besides, the judge who granted the search warrant was the same judge who initially heard both criminal cases. It can therefore be presumed, that the search was made with a search warrant and absent of any showing that it was procured maliciously, the items seized are admissible in evidence (*People v. Umali*, 193 SCRA 493 [1991]).

The evidence is overwhelming that appellant actually treated and diagnosed Precila and Wilma Borja. The positive testimony of Agustina, Precila, Wilma and Josefina Borja; the medico-legal reports (Exhs. "A", "A-7", "C", "L" and "L-1") which attest to the needle marks; the Handwriting Identification Report (Exh. I); the photographs (Exhs. "G-1" "G-8") showing assorted drugs and medical equipment in appellant's room; and the chemistry reports (Exhs. "J" "J-1") prove that appellant was engaged in the practice of medicine. And as to his allegation that there was no proof of payment, the law specifically punishes said act whether or not done for a fee.

Appellant claims that Precila admitted in her cross-examination that she was in school the whole day of July 6, 1979 and it was therefore impossible for him to have treated and diagnosed her on that date. An accurate reading of the transcript, however, will show that Precila's testimony was in response to a question regarding her school schedule for that day.

Finally, appellant claims that the *ponente* of both decisions was not the trial judge, *ergo* said judge was thus deprived of the opportunity to assess the credibility of the prosecution witnesses.

Admittedly, the *ponente's* participation was limited to the resolution of the cases. The fact that the judge who heard the evidence is not the one who rendered the judgment, and for that reason the latter did not have the opportunity to observe the demeanor of the witnesses during the trial but merely relied on the records of the case, does not render the judgment erroneous (*People v. Ramos, Jr.*, 203 SCRA 237 [1991]; *People v. Villamayor,* 199 SCRA 472 [1991]), especially where the evidence on record is sufficient to support its conclusion.

WHEREFORE, the judgments appealed from are *AFFIRMED in toto.* Costs *de oficio.*

SO ORDERED.

Cruz (Chairman), Davide, Jr., and *Bellosillo, JJ.*, concur.

THIRD DIVISION

[G.R. No. 79732. November 8, 1993]

REPUBLIC OF THE PHILIPPINES, *petitioner, vs.* **COURT OF APPEALS, HENRICO UVERO, *ET AL.*,** *respondents.*

SYLLABUS

1. POLITICAL LAW; CONSTITUTIONAL LAW; EMINENT DOMAIN; EXPROPRIATION; JUST COMPENSATION; DETERMINATION THEREOF, A JUDICIAL FUNCTION. — In *Export Processing Zone Authority ("EPZA") vs. Dulay, etc., et al.*, this Court held the determination of just compensation in eminent domain to be a judicial function, and it thereby declared Presidential Decree No. 76, as well as related decrees, including Presidential Decree No. 1533, to the contrary extent, as unconstitutional and as an impermissible encroachment of judicial prerogatives. The ruling, now conceded by the Republic, was reiterated in subsequent cases.

2. ID.; LEGISLATIONS; LEGISLATIVE ENACTMENT DECLARED UNCONSTITUTIONAL; EFFECT THEREOF. — Whether the declaration of nullity of the law in question should only have prospective, not retroactive, application, The strict view considers a legislative enactment which is declared unconstitutional as being, for all legal intents and purposes, a total nullity, and it is deemed as if it had never existed. Here, of course, we refer to the law itself being *per se* repugnant to the Constitution. It is not always the case, however, that a law is constitutionally faulty *per se*. Thus, it may well be valid in its general import but invalid in its application to certain factual situations. To exemplify, an otherwise valid law may be held unconstitutional only insofar as it is allowed to operate retrospectively such as, in pertinent cases, when it vitiates contractually vested rights. To that extent, its retroactive application may be so declared invalid as impairing the obligations of contracts. A judicial declaration of invalidity, it is also true, may not necessarily obliterate all the effects and consequences of a void act occurring prior to such a declaration. Thus, in our decisions on the moratorium laws, we have been constrained to recognize the interim effects of said laws prior to their declaration of unconstitutionality, but there we have likewise been unable to simply ignore strong considerations of equity and fair play. So also, even as a practical matter, a situation that may aptly be described as *fait accompli* may no longer be open for further inquiry, let alone to be unsettled by a subsequent declaration of nullity of a governing statute.

APPEARANCES OF COUNSEL

The Solicitor General for petitioner.
Raymundo T. Nagrampa for private respondents.

D E C I S I O N

VITUG, *J.*:

The Republic of the Philippines has sought the expropriation of certain portions of land owned by the private respondents for the widening and concreting of the Nabua-Bato-Agos Section, Philippine-Japan Highway Loan (PJHL) road. While the right of the Republic is not now disputed, the private respondents, however, demand that the just compensation for the property should be based on fair market value and not that set by Presidential Decree No. 76, as amended, which fixes payment on the basis of the assessment by the assessor or the declared valuation by the owner, whichever is lower. The Regional Trial Court ruled for the private respondents. When elevated to it, the Court of Appeals affirmed the trial court's decision.

Hence, the instant petition by the Republic.

In *Export Processing Zone Authority ("EPZA") vs. Dulay, etc., et al.*,[1] this Court held the determination of just compensation in eminent domain to be a judicial function, and it thereby declared Presidential Decree No. 76, as well as related decrees, including Presidential Decree No. 1533, to the contrary extent, as unconstitutional and as an impermissible encroachment of judicial prerogatives. The ruling, now conceded by the Republic, was reiterated in subsequent cases.[2]

The petition for review, despite the aforesaid pronouncement by this Court, has been given due course upon the pleas of the Solicitor General to have us address the following concerns:

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[1] G.R. No. 59603, 29 April 1987, 149 SCRA 305.

[2] *Toledo vs. Fernando*, 160 SCRA 285; *Belen vs. Court of Appeals*, 160 SCRA 291.

I

EFFECT OF JUDICIAL DECLARATION OF PD 1533 AS UNCONSTITUTIONAL AND VOID; UP TO WHEN RETROACTIVELY; EFFECT ON A PENDING APPEALED CASE WHERE CONSTITUTIONALITY OF PD 1533 NOT ASSAILED BEFORE COURT *A QUO*.

II

WHETHER OR NOT THE DECISION OF THIS HONORABLE COURT IN *EPZA VS. HON. DULAY, ETC., ET AL.* (G.R. NO. 59603, APRIL 29, 1987) DECLARING PD 1533 UNCONSTITUTIONAL AND VOID, BE APPLIED IN THIS CASE.

III

WHETHER OR NOT VALUATION OF LAND SOUGHT FOR EXPROPRIATION AS APPEARING ON THE TAX DECLARATION BE USED AS PRELIMINARY BASIS FOR THE TEN PER CENT (10%) DEPOSIT REQUIRED UNDER RULE 67 OF THE REVISED RULES OF COURT, AS AMENDED BEFORE PLAINTIFF IS PERMITTED ENTRY THEREON.

The last item is not in issue; being merely provisional in character, the matter has not been questioned by the private respondents.[3] We will thus limit ourselves to the first two issues which, in turn, really boil down to whether the declaration of nullity of the law in question should only have prospective, not retroactive, application. The petitioner proposes the affirmative.

Instructive is the brief treatise made by Mr. Justice Isagani A. Cruz, whose words we quote —

"There are two views on the effects of a declaration of the unconstitutionality of a statute.

The first is the *orthodox view*. Under this rule, as announced in *Norton v. Shelby*, an unconstitutional act is not a law; it confers no right; it imposes no duties; it affords no protection; it creates no office; it is, in legal contemplation, inoperative, as if it had not been passed. It is therefore stricken from the statute books and considered never to have existed at all. Not only the parties but all

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[3] *Rollo*, 160-162.

persons are bound by the declaration of unconstitutionality, which means that no one may thereafter invoke it nor may the courts be permitted to apply it in subsequent cases. It is, in other words, a total nullity.

The second or *modern view* is less stringent. Under this view, the court in passing upon the question of constitutionality does not annul or repeal the statute if it finds it in conflict with the Constitution. It simply refuses to recognize it and determines the rights of the parties just as if such statute had no existence. The court may give its reasons for ignoring or disregarding the law, but the decision affects the parties only and there is no judgment against the statute. The opinion or reasons of the court may operate as a precedent for the determination of other similar cases, but it does not strike the statute books; it does not repeal, supersede, revoke, or annul the statute. The parties to the suit are concluded by the judgment, but not one else is bound.

The orthodox view is expressed in Article 7 of the Civil Code, providing that "when the courts declare a law to be inconsistent with the Constitution, the former shall be void and the latter shall govern. x x x"[4]

The strict view considers a legislative enactment which is declared unconstitutional as being, for all legal intents and purposes, a total nullity, and it is deemed as if it had never existed. Here, of course, we refer to the law itself being *per se* repugnant to the Constitution. It is not always the case, however, that a law is constitutionally faulty *per se.* Thus, it may well be valid in its general import but invalid in its application to certain factual situations. To exemplify, an otherwise valid law may be held unconstitutional only insofar as it is allowed to operate retrospectively such as, in pertinent cases, when it vitiates contractually vested rights. To that extent, its retroactive application may be so declared invalid as impairing the obligations of contracts.[5]

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[4] Constitutional Law, 1991, 32-33, citing *Norton vs. Shelby,* 118 U.S. 425 and *Shepard vs. Barren*, 194 U.S. 553.

[5] A similar rule has been applied to new doctrines enunciated by this Court (reversing prior ones) in the interpretation and construction of laws [*Sps. Benzonan vs. Court of Appeals,* 205 SCRA 515].

A judicial declaration of invalidity, it is also true, may not necessarily obliterate all the effects and consequences of a void act occurring prior to such a declaration. Thus, in our decisions on the *moratorium laws*,[6] we have been constrained to recognize the interim effects of said laws prior to their declaration of unconstitutionality, but there we have likewise been unable to simply ignore strong considerations of equity and fair play. So also, even as a practical matter, a situation that may aptly be described as *fait accompli* may no longer be open for further inquiry, let alone to be unsettled by a subsequent declaration of nullity of a governing statute.

The instant controversy, however, is too far distant away from any of the above exceptional cases. To this day, the controversy between the petitioner and the private respondents on the issue of just compensation is still unresolved, partly attributable to the instant petition that has prevented the finality of the decision appealed from. The fact of the matter is that the expropriation cases, involved in this instance, were still pending appeal when the EPZA ruling was rendered and forthwith invoked by said parties.

In fine, we hold that the appellate court in this particular case committed no error in its appealed decision.

WHEREFORE, the instant petition is *DISMISSED*. No costs.

SO ORDERED.

Feliciano (Chairman), Bidin, Romero, and *Melo, JJ*., concur.

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[6] *Republic v. Herida,* 119 SCRA 411; *Republic vs. CFI, Negros Occidental,* 120 SCRA 154; see also *Tan vs. Barrios,* 190 SCRA 686.

SECOND DIVISION

[G.R. No. 80532. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **CRISTITUTO ALEGADO *Y* BULLO @ "TOTOY,"** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; MINOR INCONSISTENCIES IN THE TESTIMONY DO NOT MILITATE AGAINST THE CREDIBILITY OF A WITNESS. — But even assuming that it was the prosecution itself which offered said sworn statements as part of the People's evidence and accused-appellant, is now pointing out the inconsistencies between Alejandra's sworn statements and her testimony in court—and therefore obviating the need of impeaching her testimony by means of prior inconsistent statements the alleged inconsistencies, if any, do not militate against her credibility as the Court has repeatedly held that since sworn statements, are at most always incomplete and inaccurate and do not disclose the complete facts for want of inquiries or suggestions, said sworn statements are generally considered to be inferior to the testimony given in open court.

2. ID.; ID.; ID.; TESTIMONY OF THE COMPLAINANT-WITNESS PREVAILS OVER THE MEDICAL REPORT. — The Solicitor General explains that the vaginal bleeding of the complainant was caused by the sudden penetration of appellant's penis in her vagina. He says that the words "menstrual flow" in the medical report were in parentheses because the examining physician was not positive that the slight vaginal bleeding was also caused by the complainant's menstrual period. Vaginal bleeding is NOT an element in rape as what is important is that the rape victim testified that appellant sexually abused her with force and intimidation and against her will. When a rape victim says that she has been raped, she says in effect all that is necessary to show that rape has been committed, and if her testimony meets the test of credibility, the accused can be convicted on the basis thereof.

3. ID.; ID.; FLIGHT IS AN INDICATION OF GUILT. — What is important in considering flight as an indication of guilt is the period when the accused-appellant was arrested in relation to the filing of the complaint. Accused-appellant managed to elude arrest for fifteen (15) years. As the Court recently held in *People vs. Castor*: "All the protestations of innocence by the accused-appellant are belied by his flight. x x x. It has been settled that the flight of the accused is competent evidence against him as having a tendency to establish his guilt; unexplained flight is a circumstance from which an inference of guilt may be drawn for the wicked flee even when no man pursueth; but the righteous are as bold as a lion.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Public Attorney's Office for accused-appellant.

D E C I S I O N

NOCON, *J.*:

Rape is a crime which is not normally committed in the presence of witnesses, hence, courts merely rely on the credibility of the complainant's testimony as weighed against the credibility of the accused.[1] Understandably, accused-appellant zeroes in on the alleged inconsistencies in the rape victim's testimony to extricate himself from criminal liability. Denying any such inconsistencies, the People point out to the stark-naked fact that the accused-appellant hid for fifteen (15) years right after the rape to elude arrest. Yielding to the Court's constitutionally derived power to review all criminal cases in which the penalty of *reclusion perpetua* is imposed,[2] accused-appellant leaves his fate to the court's disposition.

As synthesized by the Solicitor General, the fact of the case are as follows:

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[1] *People vs. Tereso,* 194 SCRA 154.

[2] Section 5, subsection 2 (d), Article VIII, Constitution.

"On 15 November 1970, at about 7:00 A.M., complainant Alejandra Evangelista was sent by her parents Ignacio Evangelista and Mercedes Evangelista to get her father's gun at her sister's residence in Mangatarem, Pangasinan. She was then sixteen (16) years old and a grade five pupil of Quetegan Elementary School (TSN, January 14, 1986, p. 2).

Complainant walked from their residence in Barangay Calumbuyan, Mangatarem, Pangasinan to Quetegan, Pangasinan and from there she rode on a mini-bus going to Mangatarem town proper. By noon of the same day, complainant went home by taking a jeep to Barangay Quetegan and from there she had to walk, passing Barangays Bulalacao and Linmansangan, to reach Barangay Calumbuyan (*Ibid*., p. 3).

While walking along the road of Barangay Bulalacao, complainant noticed that she was being followed by two individuals. Complainant identified the first as the appellant but she did not recognize his companion. Soon the appellant and his companion parted ways and the former continued following the complainant.

Moments later, appellant was able to overtake the complainant. Suddenly, appellant held the complainant and thrust a knife at the right side of her neck (*Ibid.*, p. 4). He pulled the complainant toward the bushes about ten (10) meters away from the house of the Diaz Family. Appellant continued to drag her to a forested area about fifteen (15 meters from the road (*Ibid.*, p. 5). where he pushed the complainant to the ground and she fell on her back. Appellant immediately knelt and, with his right hand, he removed his pants. Complainant attempted to stand but she was pushed again by the appellant (TSN, January 27, 1986, p. 4). While the appellant was on his knees, he pulled down the complainant's trousers and her underwear.

Complainant pleaded not to touch her but she was ignored by the appellant. As the complainant continued to resists, appellant slapped her on both sides of her face and then held her shoulders as he started to insert his penis into her vagina. Despite the complainant's resistance, appellant succeeded in inserting his penis.

Appellant continued to satisfy his desire on the complainant while the latter tried to push and kick the appellant until she was able to free herself from the appellant's hold. Complainant immediately stood up and ran toward the road while shouting for help. An old man named Mang Aldo dela Cruz responded but by the time he

reached the place where the complainant was molested, appellant had already run away (TSN, January 14, 1986, p. 6).

Dela Cruz took the complainant to the house of *Barangay* Captain of Bulalacao where she waited for her parents. When her parents arrived, they reported the incident to the municipal health officer who accompanied them to San Carlos General Hospital, San Carlos City, Pangasinan (*Ibid.*, p. 7).

The medico-legal examination on the complainant was made by Dr. Juanita Abrenio. Her examination was offered as Exhibit "A" which is reproduced as follows:

> This is to certify that ALEJANDRA EVANGELISTA, 16 years old, single and resident of Calumb(o)yan, Mangatarem, Pangasinan, had been examined in this hospital on November 15, 1970, with the following findings:
>
> *Physical Examination:*
> 1. Linear abrasions, left thigh;
> 2. Lacerated wound at the 3rd digit, right foot;.
>
> *Internal Examination:*
> 1. Hymen showed lacerations at 12:00 o'clock, 3:00 o'clock and *cechymosis* at 1:00 o'clock.
> 2. Vaginal bleeding, slight (menstrual flow).
> 3. Vaginal introitus admits one (1) finger with difficulty.
>
> *Laboratory Examination:*
> 1. Vaginal smear— negative for sperm cells.
>
> The abovementioned injuries will heal with medical attendance and in the absence of complications from three (3) to five (5) days."[3]

Unfortunately, accused-appellant managed to evade arrest for fifteen (15) years. Thus, while Alejandra D. Evangelista, the rape victim, filed the complaint on November 17, 1970 two days after the rape[4] the Information charging accused-appellant with Rape was filed only on July 2, 1985,[5] after he was arrested

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[3] *Rollo*, pp. 137-140.

[4] *Ibid.*, p. 19.

[5] *Ibid.*, p. 6.

a month before the filing of said Information.[6]

On April 2, 1987, the trial court rendered judgment finding accused-appellant guilty as charged, sentenced him to suffer the penalty of *reclusion perpetua* and to pay the offended party the amount of ₱30,000.00 as moral damages.[7]

Hence, this appeal where accused-appellant faults the trial court in convicting him despite:

"(1) the contradictory or inconsistent testimony of the complainant Alejandra Evangelista thereby creating doubt x x x (as to) the crime charge(d); and

"(2) failure of the prosecution to prove his guilt beyond reasonable doubt."[8]

Accused-appellant claims that a "deep perusal" of Alejandra's two sworn statements, the first taken during the first stage of the preliminary investigation conducted by the Municipal Judge of Mangatarem, Pangasinan, and the second taken at the office of the 153rd PC detachment at Mangatarem, Pangasinan, "shows glaring irreconcilable inconsistencies and contradictions that bring doubts and suspicion of (sic) the crimes charge(d)."[9] He asks the Court to consider the following:

"1. In her direct testimony, complainant Alejandra Evangelista testified that she was walking ahead of the accused and the latter was following her with a companion whom she failed to recognize. (TSN, Jan. 27, 1986, p. 4). Whereas in her sworn statement, she stated that she was following the accused and the latter stopped and waited for her.

2. Continuing her testimony, she declared that accused was able to catch up with her and overtake her. Then accused poked a

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[6] Original Records, p. 11.

[7] Decision, *People vs. Alegado*, Criminal Case No. L-3258, April 2, 1987, penned by the Hon. Cornelio W. Wasan, Sr., presiding judge, Lingayen RTC, Branch 39; *Rollo*, pp. 22-31.

[8] *Rollo*, p. 92.

[9] *Id.*

balisong at her right neck and pulled her to a forested area. (TSN, *Ibid.*, p. 5). In her sworn statement, she stated that when she got near the accused, the latter embraced her, held her and dragged her in the bushes of an isolated area.

3. She testified as well that accused removed first her pant(ies) and accused followed this by removing his pants and went on top of her (*Ibid.*, p. 5). It appears on her affidavit that accused first removed his pants and trousers and then followed her panty and went on top of her.

4. She declared that accused had sexual intercourse with her for about ten (10) minutes (*Ibid.*, p. 5) but in her sworn statement she said that it took him more than two (2) minutes to have sexual act with her.

5. That when accused had sexual intercourse with her, she struggled by kicking him but she was slapped on her right and left face. She was able to extricate herself after accused had successfully molested her. She ran away and shouted for help and she met Aldo dela Cruz who helped her retrieve her pant(ies) at the scene of the crime. She was brought by dela Cruz at the house of Brgy. Captain of Limansangan. (*Ibid.*, 6). Compared this to her sworn statement, she stated that after the accused had sexual contact with her for about two minutes, he took hold of her nipple and boxed her several times on her thigh and stomach. She tried to escape and shouted for help and when accused overtook her again, she was kicked, her hair was grabbed and pulled. She fell to the ground with her face downward and accused stepped on her several times. Then several person who heard her shout came to her rescue and helped her gather her things. Then Aldo dela Cruz was called by these persons to identify her."[10]

On the other hand, the Solicitor General claims that accused-appellant's contention is without merit because:

"Appellant never presented during the trial the two allegedly inconsistent statements of complainant. Hence, the complainant was deprived of the chance to explain the alleged discrepancies. Under Section 13, Rule 132 of the Rules of Court of the Philippines, complainant's testimony can not be impeached by mere allegation of those previous statements. x x x

[10] *Op cit.*, pp. 93-94.

x x x x x x x x x

x x x (said) provision mandates the proper procedure for impeaching a witness by evidence of alleged inconsistent statements. This procedure requires 'laying the predicate,' that is: (a) by confronting the witness with such statements, with the circumstances under which they were made; (b) by asking him whether he made such statements, and (c) by giving him the chance to explain the inconsistency. If the statements were made in writing, the documents must be shown to the witness before he may be asked to explain the discrepancy. Unless the witness is given the opportunity to explain the inconsistency, the impeachment is incomplete (Regalado, *Remedial Law Compendium*, Sixth Revised Edition, p. 537, Citing *U.S. vs. Baluyot*, 40 Phil. 385; *People vs. Rosabal*, 50 Phil. 780; *People vs. Escosura*, 46 O.G., 918, *et al*.). In the case at bar, the appellant never raised the alleged inconsistent statements during the trial. Consequently, such statements cannot now be used to impeach complainant."[11]

Be that as it may, issues not raised in the court below cannot be raised for the first time on appeal.[12] But even assuming that it was the prosecution itself which offered said sworn statements as part of the People's evidence and accused-appellant is now pointing out the inconsistencies between Alejandra's sworn statements and her testimony in court and therefore obviating the need of impeaching her testimony by means of prior inconsistent statements[13] the alleged inconsistencies, if any, do not militate against her credibility as the Court has repeatedly held that since sworn statements are at most always incomplete and inaccurate and do not disclose the complete facts for want

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[11] *Ibid.*, pp. 142-144.

[12] In *People vs. Buendia*, 210 SCRA 531, the appellants therein attached affidavits to their brief by which they wanted to show that the vacant lot near the scene of the buy-bust operation, where they were arrested for selling marijuana, did not exist. The Court dismissed the same noting that:

"x x x (they were) belatedly submitted, and therefore raising a nagging question as to their credibility, no explanation is even given why the affidavits were not submitted before the trial court." (At page 539).

[13] Section 13, Rule 132, Rules of Court.

of inquiries or suggestions,[14] said sworn statements are generally considered to be inferior to the testimony given in open court.[15] Accordingly, accused-appellant's first assignment of error has no merit.

Accused-appellant harps on the alleged pregnancy of the complainant resulting from the alleged rape incident and her eventual abortion a month later. He states that such is not possible for she was menstruating at the time of the alleged rape.[16]

The Solicitor General explains the vaginal bleeding of the complainant was caused by the sudden penetration of appellant's penis in her vagina. He says that the words "menstrual flow" in the medical report were in the parentheses because the examining physician was not positive that the slight vaginal bleeding was also caused by the complainant's menstrual period.[17]

Vaginal bleeding is NOT an element in rape as what is important is that the rape victim testified that the appellant sexually abused her with force and intimidation and against her will.[18] When a rape victim says that she has been raped, she says in effect all that is necessary to show that rape has been committed,[19] and if her testimony meets the test of credibility, the accused can be convicted on the basis thereof[20] because as related in *People vs. Uliti*:

[N]o decent and sensible woman will publicly admit being a rape victim and thus run the risk of public contempt — the dire consequence

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[14] *People vs. Dominguez,* G.R. No. 100199, January 18, 1993.

[15] *People vs. Dabon*, G.R. No. 102004, December 16, 1992.

[16] *Rollo,* p. 94.

[17] *Ibid.*, p. 147.

[18] *People vs. Mabunga*, G.R. No. 96441, November 13, 1992.

[19] *People vs. Sueta,* G.R. No. 94549, August 9, 1993 citing *People vs. Aboneda,* 169 SCRA 530 and other cases.

[20] *People vs. Uliti*, G.R. No. 103403, August 24, 1993 citing *People vs. Calixtro*, 193 SCRA 303 and *People vs. Isip, Jr.*, 188 SCRA 648.

of a rape charge — unless she is, in fact, a rape victim (*People vs. Paringit*, 189 SCRA 478). (At page 12)

Neither is the alleged pregnancy an important element in the crime charged, its relevancy being only that if the offended party had given birth to a live baby then the accused-appellant would be ordered to support the fruit of his lecherous desires.[21]

Accused-appellant claims further that:

"There is no ample evidence on record to support the trial court's finding that complainant received death threats from the accused after the incident. This finding would run counter to prosecution's theory that after the incident, accused was never seen in their barangay and went into hiding and surfaced only two years after. Thus, how could accused make good his threat on complainant if he was nowhere to be found."[22]

On the other hand, the Solicitor General contends that:

"Complainant's statement that she received death threats from appellant is credible. Appellant lived only two hundred (200) meters away from the house of complainant. Hence, it was not impossible for appellant to display threatening gestures at complainant who was compelled to work in Manila for several years in order to get away from appellant. x x x"[23]

We have gone over the testimony of the offended party and we find no evidence that complainant received death threats from accused-appellant right after the rape incident.

What the Court finds is that the accused-appellant threatened the rape victim with a "*balisong*" at the time he was raping her in order to intimidate her into submitting to his carnal desire, as shown by the complainant's testimony in the court below, to wit:

"Q Now, as you were walking along from Quetegan bound to your house in Calumboyan, passing through Bulalacao, and Linmansangan, did you see accused Cristituto Alegado?

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[21] Paragraph No. 1 (3), Article 345, RPC.

[22] *Rollo*, p. 95.

[23] *Ibid*., p. 148.

A Yes, sir.

Q Where did you see him?

A I saw him on the crossing of the road at *Barangay* Bulalacao and Linmansangan.

Q What was he doing when you saw him?

A Walking, Sir.

Q Was he alone?

A They were two, sir.

Q Did you recognize his companion?

A Not so much. I did not recognize him well, sir.

Q Do you know the name of his companion?

A No, sir.

Q When you were walking alone and the accused ran, his companion whom you do not know were following you, what happened?

A When I was walking along the road and Cristituto Alegado and his companion, was also walking following me, the other companion left him and then this Cristituto Alegado catch up with me and upon overtaking me, he poked his *balisong* at me, then held me and pulled me, sir."

x x x x x x x x x

"Q Now, you said that Alegado, the accused, pointed something at your neck, what was that which he pointed to you?

A *Balisong*, sir.

Q Where, specifically, at your neck?

A Here, sir, below my right ear.

Q What did he say, if any, when he pointed that *balisong* at the right side of your neck?

A He told me not to talk, sir.

Q What did you do when you were told not to talk?

A I cried, sir.

Q And earlier, you stated that he placed his arms around and pulled you to where you were laid by Alegado?

A He pulled me up to the forested area, sir."

x x x x x x x x x

"Q Upon reaching that forested area, what happened?

A He pushed, me sir.

Q When he pushed you, what happened to you?

A I fell on my back, sir.

Q What did the accused do when he pushed you and pulled you at your back, what did he do?

A He first pointed his *balisong* at my neck and then removed my pant(ies) then removed his pants and then went on top of me, sir.

Q When the accused went on top of you, what did you do?

A I struggled, sir.

Q Did you say anything when he went on top of you?

A None, sir.

Q Why?

A He first slapped me, sir. At first I told him not to touch me after which, he slapped me left and right of my face and then held my two shoulders and then inserted his penis inside my vagina, sir.

Q When the accused inserted his private part on your vagina, what did you do?

A I struggled, sir, by pushing him but I cannot do anything because he is stronger in holding my two shoulders.

Q How long did the penis of the accused stayed in your vagina?

A About 10 minutes, sir."

x x x x x x x x x

"Q Now, how many hands did he use in removing his pants?

A He removed his pants with his hand and the other hand is holding a *balisong* and the hand that is holding that he used in holding the *balisong* is left hand, sir.

Q Now, we go back to the time when you were being pulled by the accused, what hand did he use in holding the *balisong*, when he poked the *balisong*?

A Right hand, sir.

Q How do you know that it was the right hand of the accused?

A I saw it, sir."[24]

While Alejandra's mother testified that she saw accused-appellant for the first time in their *barangay* only after two years[25] which, of course, the latter vehemently denied,[26] what is important in considering flight as an indication of guilt is the period when the accused-appellant was arrested in relation to the filing of the complaint. Accused-appellant managed to elude arrest for fifteen (15) years as can be seen from the order of the municipal trial court, as follows:

"O R D E R

In the order of the court dated November 17, 1970, accused was given ₱25,000.00 as Bail Bond for his temporary liberty. After this court has carefully examined the circumstances of the case, it finds out that the order of the court in 1970 needs an amendment for the following reasons:

That the accused Cristituto Alegado has evaded the law for about fifteen (15) years, and that the offense committed by him is very grave punishable by *reclusion perpetua* to death;

That accused is known to be publicly notorious, and has been threatening the complainant when she and her witness testified against him as per statement of the mother of the complainant;

WHEREFORE and in view of the foregoing, the order of the

[24] TSN, January 14, 1986, pp. 4-6; TSN, January 27, 1986, p. 4.

[25] *Ibid*., May 13, 1986, p. 6.

[26] *Ibid*., October 30, 1986, pp. 3, 4, 8, 9 and 10; January 15, 1987, p. 2; February 5, 1987, pp. 2 and 5.

former judge dated November 17, 1970 imposing the Bail Bond of accused to be ₱25,000.00 is hereby amended and that NO BAIL is recommended.

SO ORDERED."[27]

As the Court recently held in *People vs. Castor*:[28]

"All the protestation of innocence by the accused-appellant are belied by his flight. x x x. It has long been settled that the flight of the accused is competent evidence against him as having a tendency to establishing his guilt (*U.S. vs. Alegado*, 25 Phil. 510 [1913]); unexplained flight is a circumstance from which an inference of guilty may be drawn, for the wicked flee even when no man pursueth; but the righteous are as bold as a lion (*U.S. vs. Sarikala*, 37 Phil. 486 [1918]; see also, *People vs. Garcia*, G.R. No. 69581, 21 May 1992).[29]

Lastly, accused-appellant claims that:

"[T]he attitude and demeanor of Mercedes Evangelista, mother of complainant is improper, unnatural, and unfitting from a person being aggrieved of the alleged heinous act of the accused. This can be gleaned from her testimony, to wit:

'Q: After that when you saw him you never talked to him neither did he talk to you, is that correct?

A: No.

Q: *You never reprimanded to (sic) the accused or show any anger when you first saw him after the incident*?

A: *No, sir.*

Q: *You never showed to him when you saw him any sign of anger*?

A: *None, sir.*

Q: *You smiled at him when you saw him*?

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[27] Original Record, p. 14.

[28] G.R. No. 93664, December 11, 1992.

[29] At p. 11.

A: *Yes, sir but I kept silent.*"[30] (Italics supplied)

The Solicitor General, on the other hand, explains that "Mercedes Evangelista's (the mother of complainant) reaction was intentional so as not to invite a violent reaction from the appellant or cause him to flee and elude arrest once more."[31]

In fact, in answer to the trial court's clarificatory question, the complainant's mother stated that she reacted in the way she did to psychologize the accused so he won't be angry at her:

"COURT:

I want to clarify.

x x x x x x x x x

Q Earlier, you said that two years after the incident, the accused appeared, you just kept silent, why?

A *So that he could psychologize me that I am not angry at him, sir*. (sic)"[32] (Italics supplied)

As correctly suggested by the Solicitor General, Alejandra's mother wanted to create the impression that she had already accepted the fact of Alejandra's rape and was no longer seeking justice in order to give accused-appellant a false sense of security, and enable the police authorities to arrest him and stand trial for the rape.

WHEREFORE, finding no merit in the appeal, the Decision of the court below, finding accused-appellant Cristituto Alegado *y* Bullo guilty beyond reasonable doubt of the crime of rape is hereby *AFFIRMED.*

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, Regalado, and *Puno, JJ.,* concur.

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[30] *Rollo,* p. 95.

[31] *Ibid.,* p. 148.

[32] TSN, May 13, 1986, p. 8.

FIRST DIVISION

[G.R. No. 89685. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **EDUARDO GALANZA *y* VALDEZ @ Ed, NICANOR BAUTISTA @ Nick, HUBERTO ALIMAN *y* BISNA @ Bert, REGINO BALANGUIT *y* CEBRON @ Budoy and LEO ROBIEGO *y* DULAY @ Leo,** *accused,* **LEO ROBIEGO *y* DULAY @ Leo and REGINO BALANGUIT *y* CEBRON @ Budoy,** *accused-appellants.*

SYLLABUS

1. **REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; FINDINGS OF FACTS OF THE TRIAL COURT, GENERALLY ACCORDED GREAT WEIGHT. —** The findings of the trial court on credibility should be given much weight must be applied.

2. **ID.; ID.; ID.; BOLSTERED BY ABSENCE OF ILL MOTIVE ON THE PART OF PROSECUTION WITNESS TO FALSELY TESTIFY AGAINST APPELLANTS. —** While there are exceptions to the general rule, none exists in this case. Moreover, there is no evidence to indicate that the lone prosecution eyewitness, Lourdes de los Santos, had any motive to falsely testify against appellants.

3. **ID.; ID.; ID.; IDENTIFICATION MADE BY THE WITNESS-VICTIM, NORMALLY ACCEPTED. —** Where conditions of visibility are favorable and the witness did not appear to be biased against the accused, her assertions as to the identity of the malefactors should normally be accepted. This is more so when the victim is the witness herself because a victim usually strives to remember the faces of the malefactors.

4. **ID.; ID.; ID.; NOT AFFECTED BY MINOR INCONSISTENCIES. —** Minor inconsistencies do not reflect on a witness' credibility as long as the testimony manifests a ring of truth.

5. **ID.; ID.; ID.; ALIBI; UNAVAILING IN THE FACE OF POSITIVE IDENTIFICATION. —** In the face of her positive

identification of the appellants as the culprits, their respective alibis dwindle into nothingness. This defense suffers from an inherent infirmity because it is easy to fabricate.

6. CRIMINAL LAW; CONSPIRACY; CONCERTED EFFORTS TOWARD A CERTAIN GOAL, MANIFEST IN PARTICIPATION OF ALL THE ACCUSED IN CASE AT BAR; IDENTITY OF ACCUSED WHO KILLED THE VICTIM, IMMATERIAL. — Another aspect which erodes appellants' attack on Lourdes' testimony as to who killed Limbo is the fact that conspiracy had been proven beyond reasonable doubt in this case. This is shown by the evidence that both appellants were armed with handguns when they entered the house at an ungodly hour and announced the hold up, while the third member of the group acted as a look-out. They helped each other pick up the scattered money bills and they fled the scene of the crime together. Even assuming that Lourdes mistook Balanguit as the one who fired the fatal shot at Limbo, Balanguit cannot escape culpability. In conspiracy, the act of one is the act of all and therefore, a showing as to who actually killed the victim is not required.

7. REMEDIAL LAW; EVIDENCE; CREDIBILITY; DENIALS, SELF-SERVING WITH NO PROBATIVE VALUE. — Appellants' denials that they perpetrated the crime were correctly disregarded by the trial court. Being unsubstantiated by clear and convincing evidence, not to mention that they are negative in character, such denials are self-serving which deserve no evidentiary weight unlike the testimony of the sole eyewitness who testified on affirmative matters.

8. CRIMINAL LAW; ROBBERY IN BAND WITH HOMICIDE; DESIGNATION OF CRIME NOT APPROPRIATE IN THE ABSENCE OF FOUR ARMED MEN; CRIME COMMITTED IS ROBBERY WITH HOMICIDE; CASE AT BAR. — The trial court, however, incorrectly characterized the crime as Robbery in band with Homicide. It has not been indubitably shown by the prosecution that more than three persons perpetrated the crime. Under Article 14(6) of the Revised Penal Code, a crime is deemed committed by a band ("*cuadrilla*") when more than three armed malefactors acted together in the commission of the offense. In this case, Lourdes only mentioned three culprits, namely: Galanza, Robiego and

Balanguit. The crime committed is therefore the special complex crime of Robbery with Homicide under Art. 294(1) of the Revised Penal Code. All the elements of the crime of robbery, namely, intent to gain, unlawful taking of personal property belonging to another and violence against or intimidation of a person have been duly proven in this case. There is no doubt that the appellants' intention was to rob Limbo as they even informed him that it was a hold up. In the course of the robbery, however, they shot and killed him. As there was a direct relation and intimate connection between the robbery and the killing, the special complex crime of Robbery with Homicide was committed.

9. ID.; ROBBERY WITH HOMICIDE; PENALTY. — Robbery with Homicide is punishable by *reclusion perpetua* to death under Article 294(1) of the Revised Penal Code. Inasmuch as there are no mitigating or aggravating circumstances proven in the commission of the crime, the lower court correctly imposed the lesser penalty of *reclusion perpetua* (Article 63(2) Revised Penal Code).

10. CIVIL LAW; DAMAGES; INDEMNITY FOR DEATH RAISED TO ₱50,000.00. — In line with recent jurisprudence, the indemnity imposed by the trial court for the death of Dominador Limbo in the amount of ₱30,000.00 should be increased to ₱50,000.00.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.

Eugene A. Tan counsel *de oficio* for L. Robiengo.

Yolanda Quisumbing-Javellana & Associates counsel *de oficio* for R. Balanguit.

D E C I S I O N

QUIASON, *J.*:

This is an appeal from the decision of the Regional Trial Court, Branch 19, Bacoor, Cavite in Criminal Case No. B-85-178, finding Regino Balanguit *y* Cebron and Leo Robiego *y* Dulay guilty of Robbery in Band with Homicide under Article 294(1) of the Revised Penal Code and sentencing them, in the

absence of any aggravating or mitigating circumstance, "to suffer the penalty of *reclusion perpetua*, to indemnify the heirs of the victim, jointly and severally (1) in the amount of ₱30,000.00 for the death of Dominador Limbo; (2) ₱10,500.00 for the money taken from the victim; (3) moral damages of ₱5,000.00; and (4) exemplary damages of ₱5,000.00 and to pay the proportionate cost" (*Rollo*, p. 49).

Lourdes de los Santos would not have met face to face with the killers of her common-law-husband, Dominador Limbo, were it not for the information relayed to her by Capt. Marcos Gotico, Chief of the Investigation Section of the Marikina Police, that suspects in two robbery cases in Marikina could be the same culprits who killed Limbo in Bacoor, Cavite.

Capt. Gotico provided such information after Lamberto Bonahan had confided to him that the group who had been apprehended in Marikina for robbery was also involved in the robbery with homicide in Bacoor. Since the informant did not know the name of the victim in Bacoor, Capt. Gotico wrote a letter addressed to "*Sa mga kinauukulan*" in Bacoor.

Consequently, on January 28, 1985, Lourdes de los Santos went to the office of Capt. Gotico, Lourdes was able to identify Regino Balanguit in a police line-up as one of the killers of Limbo (TSN, April 10, 1986, p. 10; TSN, April 22, 1986, p. 13).

On January 31, 1985, Sgt. Monico T. Dulloog, the PC investigator-in-charge, filed a complaint for Robbery in band with Homicide against Eduardo Galanza, Nicanor Bautista, Huberto Aliman, Regino Balanguit and Leo Robiego. In due course, the following information for Robbery in band with Homicide was filed against them:

"That on or about the 16th day of December 1984, in the Municipality of Bacoor, Province of Cavite, Philippines and within the jurisdiction of this Honorable Court, the above-named accused Regino Balanguit and Leo Robiego together with Eduardo Galanza, Nicanor Bautista and Huberto Aliman who are still at-large, then all armed with short firearms conspiring, confederating together and mutually assisting and helping one another, with intent to gain and by means of violence against or intimidation on the person of

one Dominador Limbo, did, then and there, willfully, unlawfully and feloniously rob, take and carry away cash money in the total amount of TEN THOUSAND FIVE HUNDRED PESOS (₱10,500.00), Philippine Currency, to the damage and prejudice of the latter in the aforestated amount and by reason of or on occasion of the aforesaid act, the above named accused Regino Balanguit and Leo Robiego together with Eddie Galanza, Nicanor Bautista and Huberto Aliman who are all still at-large, then all armed with short firearms, conspiring, confederating and mutually helping and assisting one another, with intent to kill and without justifiable cause, did, then and there, willfully, unlawfully and feloniously attack, assault and shoot at one Dominador Limbo hitting the latter on his chest which wound caused the direct and proximate death of said Dominador Limbo, to the damage and prejudice of his heirs" (*Rollo*, p. 17).

Regino Balanguit and Leo Robiego were brought to trial, while Eduardo Galanza, Nicanor Bautista and Huberto Aliman remain at-large.

The case for the prosecution was established mainly through the testimony of Lourdes de los Santos.

According to Lourdes, Limbo woke up between 3:00 and 4:00 A.M. of December 16, 1984, as he was preparing to go to Batangas on business. Their house in Barangay Habay, Bacoor, Cavite, had a canteen. The door was lighted by a fluorescent bulb, its interior by a 40-watt bulb and its balcony by a 20-watt bulb. There was an electric lamp on a post near the house.

When someone knocked at the door, Limbo asked who it was and someone replied, "*Pagbili ng sigarilyo*." Limbo then asked what brand of cigarette the man wanted to buy. When he heard no response, he opened the door. Balanguit and Robiego, armed with guns, entered the canteen saying, "*Hold up ito. Huwag kayong kikilos ng masama*." Galanza, in the meantime, stayed outside. Limbo told the two, "*Wala kaming pera.*" He was then shot on the chest at short range. He fell on the floor, screaming and writhing in pain. Robiego pointed a gun at him and told him to keep quiet.

Robiego then hurriedly tied the hands and feet of Limbo with a nylon cord while Balanguit, with his gun pointed at Lourdes,

ordered her to get their money. Frightened, Lourdes got the ₱10,500.00 wrapped in a plastic bag, which was kept in a tool box placed underneath the door. She gave the money to Robiego but as the latter grabbed the plastic bag from her, he accidentally tore it. The peso bills were scattered on the floor. After picking up the money, Robiego and Balanguit fled.

Limbo died on the spot. His body was brought to the National Bureau of Investigation (NBI) for autopsy.

Dr. Ricardo G. Ibarrola, the NBI Medico-Legal officer who conducted the autopsy and prepared the autopsy report, (Exh. "F"), said that Limbo could not have survived the single gunshot wound because three big blood vessels near the heart were damaged.

The ballistics report, (Exh. "G"), states that the bullet marked "DL", which was recovered from Limbo's body, is a caliber .38 bullet "fired through the barrel of a caliber .38 firearm having six (6) lands and six (6) grooves, twisting to the left."

The defense was anchored on alibis and denials.

Robiego testified that in the early morning of December 16, 1984, he was in his house in Sampaloc, Manila and therefore it was impossible for him to have perpetrated the crime. He admitted having executed a statement owning commission of the crime while detained at Imus, Cavite. However, he alleged that he was only forced to sign it as he could no longer endure the torture inflicted on him by the PC soldiers.

For his part, Balanguit testified that when the crime was committed, he was in his hometown at Laoang, Samar. He also claimed that during his detention at the provincial jail in Trece Martires City, he was forced to sign a document written in Tagalog, a dialect he was not fully conversant with.

On March 28, 1988, the trial court promulgated its decision finding both Robiego and Balanguit guilty of the crime as charged.

Robiego and Balanguit interposed the instant appeal.

Balanguit specifically assails the trial court's ruling that appellants were guilty of Robbery in band with Homicide when

only three persons allegedly participated in its commission. He also criticizes the trial court for giving credence to the lone prosecution witness, a mere elementary school graduate, who "succumbed to the suggestion given by the letter of Capt. Marcos Gotico that the persons who robbed their canteen and shot her husband were those apprehended by the Marikina Police in a similar robbery-hold-up" (Brief for Balanguit, p. 12; *Rollo*, p. 88).

The resolution of this case depends upon the credibility of the sole witness. Since this Court did not have the opportunity to see such witness testify and therefore gauge her credibility while on the stand, the general rule that the findings of the trial court on credibility should be given much weight must be applied (*People v. Atilano*, 204 SCRA 278 [1991]; *People v. Lardizabal*, 204 SCRA 320 [1991]).

While there are exceptions to the general rule, none exists in this case. Moreover, there is no evidence to indicate that the lone prosecution eyewitness, Lourdes de los Santos, had any motive to falsely testify against appellants (*People v. Belibet*, 199 SCRA 587 [1991]).

Lourdes had a good look at the two appellants as she was only about half a meter away from them when they entered her house. There was sufficient light for her to see their faces clearly. As this Court has time and again held, where conditions of visibility are favorable and the witness did not appear to be biased against the accused, her assertions as to the identity of the malefactors should normally be accepted. This is more so when the victim is the witness herself because a victim usually strives to remember the faces of the malefactors (*People v. Lacao, Sr.*, 201 SCRA 317 [1991]).

Balanguit points out that while on the witness stand, Lourdes categorically pointed at him as the one who shot Limbo, but in her sworn statement of January 29, 1985, she failed to identify the person who actually fired the shot. The alleged inconsistency, however, is more apparent than real. While at the stand she categorically pointed at Balanguit as the one who shot Limbo, but in her sworn statement she said that she was not looking

when all of a sudden someone shot her husband ("*Noong nakalingat ako bigla na lang may bumaril sa asawa ko*"). However, in the same sworn statement, Lourdes said that she was sure Robiego and Balanguit were the ones who entered the canteen ("*ang natitiyak ko lang po ay itong dalawang iyan ang siyang pumasok sa loob*"). Under this circumstance, anyone of the two could have been the killer. The conclusion that Balanguit, not Robiego, was the one who fired his gun may be deduced from their positions *vis-a-vis* the victim and their actions immediately after the shooting. Besides, minor inconsistencies do not reflect on a witness' credibility as long as the testimony manifests a ring of truth (*People v. Arbolante*, 203 SCRA 85 [1991]).

What should concern the Court in this case is whether or not Lourdes had positively identified the accused. There is no doubt that she did. She remained unflinching even on cross-examination in pointing at appellants as the intruders who killed her common-law-husband. In the face of her positive identification of the appellants as the culprits, their respective *alibis* dwindle into nothingness (*People v. Arroyo*, 201 SCRA 616 [1991]). This defense suffers from an inherent infirmity because it is easy to fabricate (*People v. Bugho,* 202 SCRA 164 [1991]).

Another aspect which erodes appellants' attack on Lourdes' testimony as to who killed Limbo is the fact that conspiracy had been proven beyond reasonable doubt in this case. This is shown by the evidence that both appellants were armed with handguns when they entered the house at an ungodly hour and announced the hold up, while the third member of the group acted as a look-out. They helped each other pick up the scattered money bills and they fled the scene of the crime together. Even assuming that Lourdes mistook Balanguit as the one who fired the fatal shot at Limbo, Balanguit cannot escape culpability. In conspiracy, the act of one is the act of all and therefore, a showing as to who actually killed the victim is not required (*People v. Alvarez,* 169 SCRA 730 [1989]).

Appellants' denials that they perpetrated the crime were correctly disregarded by the trial court. Being unsubstantiated

by clear and convincing evidence, not to mention that they are negative in character, such denials are self-serving which deserve no evidentiary weight unlike the testimony of the sole eyewitness who testified on affirmative matters (*People v. Marti,* 193 SCRA 57 [1991]).

The trial court, however, incorrectly characterized the crime as Robbery in band with Homicide. It has not been indubitably shown by the prosecution that more than three persons perpetrated the crime. Under Article 14(6) of the Revised Penal Code, a crime is deemed committed by a band ("*cuadrilla*") when more than three armed malefactors acted together in the commission of the offense. In this case, Lourdes only mentioned three culprits, namely: Galanza, Robiego and Balanguit.

The crime committed is therefore the special complex crime of Robbery with Homicide under Art. 294(1) of the Revised Penal Code. All the elements of the crime of robbery, namely, intent to gain, unlawful taking of personal property belonging to another and violence against or intimidation of a person (Art. 293, Revised Penal Code) have been duly proven in this case. There is no doubt that the appellants' intention was to rob Limbo as they even informed him that it was a hold up. In the course of the robbery, however, they shot and killed him. As there was a direct relation and intimate connection between the robbery and the killing, the special complex crime of Robbery with Homicide was committed (*People v. Ponciano,* 204 SCRA 627 [1991]).

Robbery with Homicide is punishable by *reclusion perpetua* to death under Article 294(1) of the Revised Penal Code. Inasmuch as there are no mitigating or aggravating circumstances proven in the commission of the crime, the lower court correctly imposed the lesser penalty of *reclusion perpetua* (Article 63(2), Revised Penal Code).

In line with recent jurisprudence (*People v. Callao,* 206 SCRA 420 [1992]), the indemnity imposed by the trial court for the death of Dominador Limbo in the amount of ₱30,000.00 should be increased to ₱50,000.00.

WHEREFORE, the decision of the trial court is *AFFIRMED*, with the modifications that: (1) the crime committed be designated as Robbery with Homicide under Article 294(1) of the Revised Penal Code; and (2) the indemnity to the heirs of the victim be increased to ₱50,000.00. Costs *de oficio*.

SO ORDERED.

Cruz (Chairman), Davide, Jr., and *Bellosillo, JJ.*, concur.

FIRST DIVISION

[G.R. No. 92536. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **RICARDO BUELA, MANUEL BUELA, and BONIFACIO BUELA,** *accused-appellants.*

SYLLABUS

1. CRIMINAL LAW; AGGRAVATING CIRCUMSTANCES; ABUSE OF SUPERIOR STRENGTH; NOT ESTABLISHED BY MERE NUMERICAL SUPERIORITY; NOT APPRECIATED IN CASE AT BAR. — Abuse of superior strength is a relative factor and depends upon circumstances other than mere numerical superiority of the aggressors. Such factor may be correctly appreciated by the trial court only after a searching inquiry. There is no evidence to show that the three appellants assaulted Bodino in such a way as to secure advantage from their combined strength.

2. ID.; QUALIFYING CIRCUMSTANCES; TREACHERY; ABSENCE OF CLEAR AND POSITIVE SHOWING THAT THE VICTIM WAS COMPLETELY DEFENSELESS WHEN ASSAULTED. — Neither was there evidence to establish treachery. Before treachery can be appreciated correctly, there must be a clear and positive showing that the

victim was completely defenseless when killed by his assailants or was unaware of the assault on his person.

3. ID.; ID.; ID.; NOT CONSIDERED BY MERE SUDDENNESS OF ATTACK. — There is no way to conclude that treachery attended the killing of Bodino. The fact that the attack was sudden as found by the trial court is not enough to establish treachery. How sudden was "sudden"? What is decisive is that the attack was executed in such a manner as to make it impossible for the victim to retaliate.

4. ID.; ID.; EVIDENT PREMEDITATION; ABSENCE OF EVIDENCE AS TO HOW AND WHEN THE PLAN TO KILL WAS HATCHED OR WHAT TIME HAS ELAPSED BEFORE IT WAS CARRIED OUT. — Likewise, there was no evidence to establish evident premeditation. When there is no showing as to how and when the plan to kill was hatched or what time had elapsed before it was carried out, evident premeditation cannot be considered to exist. To show premeditation, it is required that the criminal intent be evidenced by notorious acts evincing determination to commit the same. The criminal intent must be evident, not merely suspected, or merely thought of or contemplated mentally without an externalized act. There was no substantial interval of time sufficient to afford appellants a full opportunity for reflection, between the wounding of Ricardo which happened at noon (assuming that such wounding was the provocation that triggered the aggression of appellants) and the killing, which took place an hour or two later.

5. ID.; HOMICIDE; KILLING IN THE ABSENCE OF ANY AGGRAVATING OR QUALIFYING CIRCUMSTANCE; PENALTY. — The crime committed by appellants is Homicide as defined under Article 249 of the Revised Penal Code and penalized by *reclusion temporal*. There being no mitigating nor aggravating circumstance present, the penalty of *reclusion temporal* shall be imposed in its medium period or an imprisonment of fourteen (14) years, eight (8) months and one (1) day to seventeen (17) years and four (4) months. Applying the Indeterminate Sentence Law, the minimum term that can be imposed on appellants shall be within the range of six (6) years and one (1) day to twelve (12) years.

6. CIVIL LAW; DAMAGES; INDEMNITY FOR DEATH RAISED TO ₱50,000.00. — The civil indemnity ordered by the trial court to be paid by the appellants to the legal heirs of the deceased in the amount of ₱30,000.00 is increased to ₱50,000.00, conformably with the present policy of this Court.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Public Attorney's Office for accused-appellants.

D E C I S I O N

QUIASON, *J.*:

This is an appeal from the decision of the Regional Trial Court, Branch 15, Tabaco, Albay, finding Ricardo, Manuel and Bonifacio, all surnamed Buela, guilty beyond reasonable doubt of Murder.

The information filed against appellant reads as follows:

INFORMATION

"That on about the 27th day of December, 1988 at about 2:00 o'clock (sic) in the afternoon, more or less, at Purok 9, Barangay San Antonio, Municipality of Tabaco, Province of Albay, Philippines and within the jurisdiction of this Honorable Court, the above-named accused, conspiring, confederating and helping one another, taking advantage of superior strength, with evident premeditation and treachery, and with intent to kill, did then and there willfully, unlawfully and feloniously attack, stab, hack and hit BIENVENIDO BODINO *Y* BORLAGDAN with a *bolo* and hardwood (*bahi*), thereby inflicting upon the latter fatal wounds on the forehead, neck and other parts of his body which caused his direct and immediate death, to the damage and prejudice of the heirs of BIENVENIDO BODINO *y* BORLAGDAN" (*Rollo,* p. 19).

At their arraignment, the appellants pleaded not guilty.

According to the court *a quo*, on December 27, 1988 at around 7:00 A.M., Bienvenido Bodino was having breakfast at his house

when Ricardo Buela arrived and invited him for a drink. Bodino accepted the invitation and the two repaired to the house of Bodino's sister, Adalia Maduro.

After consuming two bottles of gin and while in an inebriated state, Bodino and Ricardo began to dance with each other. At about lunchtime, Salvacion, Bodino's wife, came to fetch him. Bodino told her to wait a while since he was still enjoying his cavort with Ricardo. While they were dancing, the pair accidentally tripped and fell on the cement floor causing Ricardo's right eyebrow to bleed. After this incident, Bodino went home with his wife.

At around 1:00 P.M., while Bodino was in his front yard, he was suddenly attacked by Ricardo and his two brothers, Manuel and Bonifacio. The first to attack was Bonifacio, who hit Bodino with a wooden club, locally called "*bahi*." Then, Ricardo hacked Bodino with a *bolo*, followed by Manuel, who also struck the victim with a wooden club.

Salvacion tried to embrace her husband but Ricardo pushed her away. She then shouted for help, and was heard by Bodino's sister, Adalia Maduro, who rushed to the yard of the Bodinos. Adalia saw Bodino lying prostrate on the ground with the three assailants still taking turns in hitting him with their weapons.

Appellants then left. After having walked a distance of about three meters, Ricardo returned to where the prostrate body of Bodino laid and hacked him again.

According to the defense, on December 27, 1988, Ricardo went to the house of Bodino to collect a ₱10.00 debt. After paying Ricardo, Bodino invited him to have a drink at the house of Adalia Maduro. Ricardo accepted the invitation.

Bodino and Ricardo were former members of the New People's Army, who surrendered on December 31, 1987. While they were drinking, Bodino tried to proselytize Ricardo back to the movement but the latter rebuffed him. Afterwards, while they were dancing, they tripped and fell on the floor. One of Ricardo's eyebrows sustained a wound and bled. Bodino invited Ricardo for lunch but he declined and instead went home. After lunch,

Ricardo realized that he had left his *bolo* at the house of Adalia Maduro; so he went back for it. On his way home, Ricardo met Bodino, who tried to block his path. Bodino asked him to rejoin the New People's Army and when he refused, Bodino got angry. At this juncture, Aurora Buela, Ricardo's mother, arrived together with his two brothers, Bonifacio and Manuel.

Upon seeing them, Bodino went to the house of Adalia Maduro and came back armed with a wooden club. He confronted the Buelas and even taunted them to a fight. Then Bodino struck Ricardo with his club. The latter was able to duck and evade the blow, which instead landed on Aurora Buela's forehead. She fell on the ground unconscious. Upon seeing what happened to his mother, Bonifacio immediately grappled with Bodino and was able to wrest the wooden club from him. Bonifacio used the same club to strike Bodino at the back of his head.

Manuel and Bonifacio Buela carried their mother home, leaving Ricardo and Bodino behind.

The trial court convicted appellants and sentenced them to suffer the penalty of *reclusion perpetua* (*Rollo*, p. 155).

Hence, this appeal.

Appellants contend that the trial court erred in rejecting their version that Bodino was the aggressor and in finding that their mother was not even present at the crime scene (*Rollo*, p. 135). Appellants also question the finding of the trial court that Manuel Buela participated in killing Bodino (*Rollo*, p. 134).

While admitting that they hacked and beat Bodino, Ricardo and Bonifacio claimed that they acted in self-defense and in the defense of their mother. They insisted that when they saw their mother collapse and the blood spurting from her forehead, "they lost control of their actions x x x." (*Rollo*, pp. 134-135).

On rebuttal, Salvacion Bodino, the widow of Bodino, testified that appellants' mother was not at the crime scene at all and that the only person thereat, aside from her and her children was Adalia Maduro, the sister of the victim (*Rollo*, p. 148).

Appellants did not rebut the testimony of Salvacion Bodino that Aurora Buela was not with them when they intruded into her front yard. The center piece of appellants' defense was that Bodino was the first to deliver a blow directed at Ricardo, but, which instead, landed on the forehead of appellants' mother. The presentation of sur-rebuttal evidence to neutralize the evidence of the prosecution on this regard, was crucial. Appellants assert that they waived the presentation of the sur-rebuttal evidence "to expedite the trial so that they can avail of their constitutional right to a speedy trial" (*Rollo*, p. 134). We are not persuaded and are inclined to agree with the observation of the Solicitor General that the version on the presence of appellants' mother at the crime scene was "nothing more than a concocted story devoid of any semblance of credibility" (*Rollo*, p. 80). The reason for the presence of appellant's mother was not shown. For that matter, the sudden appearance of Bonifacio and Manuel at the crime scene was not explained.

The participation of Manuel was established by a clear and convincing evidence.

Salvacion Bodino testified as follows:

x x x x x x x x x

"Q – While he was talking around your yard, was there anything that happened according to your observation not ordinary (sic)?

A – Yes, there was.

Q – What was that incident that you observed?

A – While my husband was taking a walk in the yard suddenly these Ricardo Buela, *Manuel Buela*, Bonifacio Buela and Francisco Buela *arrived and hit my husband.*

Q – Who struck your husband firstly (sic)?

A – Bonifacio was the one who struck my husband.

x x x x x x x x x

Q – *What about Manuel, what did he do*?

A – *Manuel Buela also struck him.*(*Rollo*, pp. 77-78; italics supplied)

The testimony of Salvacion Bodino was corroborated by Adalia Maduro and Adela Brito, a neighbor of the Bodinos (TSN, June 29, 1989, pp. 15-16).

Abuse of superior strength, treachery and evident premeditation were alleged as qualifying circumstances in the information filed against appellants.

Abuse of superior strength is a relative factor and depends upon circumstances other than mere numerical superiority of the aggressors. Such factor may be correctly appreciated by the trial court only after a searching inquiry (*People v. Flores*, 40 SCRA 230 [1971]). There is no evidence to show that the three appellants assaulted Bodino in such a way as to secure advantage from their combined strength (*People v. Ybañez*, 56 SCRA 210 [1974]).

Neither was there evidence to establish treachery. Before treachery can be appreciated correctly, there must be a clear and positive showing that the victim was completely defenseless when killed by his assailants or was unaware of the assault on his person (*People v. Muñoz*, 170 SCRA 107 [1989]; *People v. Molato*, 170 SCRA 640 [1989]).

There is no way to conclude that treachery attended the killing of Bodino. The fact that the attack was sudden as found by the trial court is not enough to establish treachery (*People v. Sabanal*, 172 SCRA 430 [1989]). How sudden was "sudden"? What is decisive is that the attack was executed in such a manner as to make it impossible for the victim to retaliate (*People v. Bustos*, 171 SCRA 243 [1989]).

The record is bereft of evidence showing the methods or the means employed of appellants in order to ensure their safety from any retaliation that could be put up by their victim.

Likewise, there was no evidence to establish evident premeditation. When there is no showing as to how and when the plan to kill was hatched or what time had elapse before it

was carried out, evident premeditation cannot be considered to exist (*People v. Narit*, 197 SCRA 334 [1991]). To show premeditation, it is required that the criminal intent be evidenced by notorious acts evincing determination to commit the same. The criminal intent must be evident, not merely suspected, or merely thought of or contemplated mentally without an externalized act (*People v. Legarto*, 196 SCRA 611 [1991]).

There was no substantial interval of time sufficient to afford appellants a full opportunity for reflection, between the wounding of Ricardo which happened at noon (assuming that such wounding was the provocation that triggered the aggression of appellants) and the killing, which took place an hour or two later (*People v. Tachado*, 170 SCRA 611 [1989]).

The crime committed by appellants is Homicide as defined under Article 249 of the Revised Penal Code and penalized by *reclusion temporal*. There being no mitigating nor aggravating circumstance present, the penalty of *reclusion temporal* shall be imposed in its medium period or an imprisonment of fourteen (14) years, eight (8) months and one (1) day to seventeen (17) years and four (4) months. While the crime was committed by three persons who were all armed, the aggravating circumstance of the crime having been committed with the aid of armed men under Article 14(8) of the Revised Penal Code cannot be appreciated in this case because the three accused acted under the same plan and for the same purpose (*People v. Pring*, 63 Phil. 546 [1936]; *People v. Candado*, 84 SCRA 508 [1978]).

Applying the Indeterminate Sentence Law, the minimum term that can be imposed on appellants shall be within the range of six (6) years and one (1) day to twelve (12) years.

The civil indemnity ordered by the trial court to be paid by the appellants to the legal heirs of the deceased in the amount of ₱30,000.00 is increased to ₱50,000.00, conformably with the present policy of this Court (*People v. Yeban*, 190 SCRA 409 [1990]).

WHEREFORE, this Court finds appellants guilty only of Homicide and sentences them to suffer the indeterminate penalty

of seven (7) years and one (1) day of *prision mayor* to fourteen (14) years, eight (8) months and one (1) day of *reclusion temporal*; and to indemnify jointly and severally, the heirs of Bienvenido Bodino in the amount of ₱50,000.00. As thus *MODIFIED*, the judgment of the trial court is *AFFIRMED*. No pronouncement as to costs.

SO ORDERED.

Cruz (Chairman), Davide, Jr., and *Bellosillo, JJ.*, concur.

SECOND DIVISION

[G.R. No. 93625. November 8, 1993]

VICENTE J. SANTI, *petitioner, vs.* **HON. COURT OF APPEALS, HEIRS OF AUGUSTO A. REYES, JR., represented by ALEXANDER REYES,** *respondents.*

SYLLABUS

1. CIVIL LAW; CONTRACT OF LEASE; INTERPRETATION OF THE STIPULATION "x x x SAID PERIOD OF LEASE BEING EXTENDIBLE FOR ANOTHER TWENTY (20) YEARS x x x." — The phrase "automatically extended" did not appear and was not used in the lease contract subsequently entered into by Esperanza Jose and Augusta Reyes, Jr. for the simple reason that the lessor does not want to be bound by the stipulation of automatic extension as provided in the previous lease contract. To our mind, the stipulation "said period of lease being extendable for another period of twenty (20) years x x" is clear that the lessor's intention is not to automatically extend the lease contract but to give her time to ponder and think whether to extend the lease. If she decides to do so, then a new contract shall be entered into between the lessor and lessee for a term of another twenty years and at monthly rental

of ₱220.00. This must be so, for twenty (20) years is rather a long period of time and the lessor may have other plans for her property. If the intention of the parties were to provide for an automatic extension of the lease contract, then they could have easily provided for a straight forty years contract instead of twenty.

2. ID.; LEASE; IMPLIED LEASE CREATED IF THE PARTY CONTINUES TO ENJOY THE THING LEASED AFTER THE CONTRACT EXPIRED.— The law provides that if after the end of the lease contract, the parties continue to enjoy the thing leased, an implied lease is created for the period mentioned in Article 1687, hence, herein private respondents may continue to occupy the leased premises provided such is with the permission and consent of herein petitioner-lessor. Since the lease contract provided for a monthly rental of ₱220 to be paid by the lessee upon the expiration of the first twenty years, the latter shall be bound by such amount which shall be paid by herein private respondents to petitioner lessor.

APPEARANCES OF COUNSEL

Manolo L. Lazaro for petitioner.
Mario R. Gomez for private respondents.

D E C I S I O N

NOCON, *J.*:

The sole issue of the instant case is the interpretation specifically of paragraph 3 of the Contract of Lease[1] executed between Esperanza Jose, predecessor-in-interest of herein petitioner and Augusto Reyes, Jr.

The undisputed facts of the case as summarized by the trial court are as follows:

"Esperanza Jose was in her lifetime the registered owner and in absolute possession of a parcel of land known as Lot 3, Block 89, situated in Cavite City, more particularly described in TCT No. 5508 (RT-3159) with an area of 1,472 square meters; that sometime

[1] Exhibit "A", Records, pp. 44-45.

on July 12, 1957 she leased a portion of the property unto spouses Eugenio Vitan and Beatriz Francisco for a period of 20 years "automatically extended" for another 20 years but with a rental of ₱220.00 per month as per Lease Contract ratified before Notary Public Abraham F. Aguilar (Exhibit '8') and on which the lessees constructed a cinema house; that sometime in 1962, the lessees sold all their rights, interest and participation over the cinema house together with the leasehold rights on the lessor's property unto Augusto A. Reyes, Jr. and a new contract of lease was entered into between the new owner and Esperanza Jose (Exhibit 'A') for a period of 20 years from and after April 1, 1962 with a monthly rental of ₱180.00 payable in advance, said period of lease being 'extendable' for another period of 20 years with the monthly rental increased to ₱220.00 also payable in advance on or about the first day of each month (Exhibit '2-B'). In the interim, Esperanza Jose sold all her rights and participation over the parcel of land to Vicente J. Santi and TCT No. T-3968 of the Land Records of Cavite City was issued in his favor, on February 23, 1982 the lease having expired, plaintiff wrote Alexander Reyes as representative of Augusto Reyes, Jr., who had died, informing him of the termination of the lease on March 31, 1982 and demanding peaceful turn-over of possession, defendant refused on the ground that after consulting his lawyer, Atty. Gregorio R. Familiar the latter informed him that the lease was automatically extended for another 20 years at the rate of ₱220.00 a month and which amount he tendered unto the plaintiff who refused and by virtue thereof, religiously deposited the said amounts with the Clerk of Court of the Municipal Trial Court of Cavite City (Exhibits '5' and '6'). In view of defendant's refusal to vacate plaintiff filed a routine complaint against Alexander Reyes with the office of the Barangay Captain of Barangay 34, 'Lapu-lapu' of the City of Cavite; and no settlement having been reached the Barangay Captain issued a certification to file action (Exh. 'B').

During the pre-trial, the parties agreed that the only question to be resolved in this case is the interpretation of Par. 3 of the Contract of Lease, Exhibit 'A', of the plaintiff and Exhibit '2' for defendant which reads as follows:

> "That this lease shall be for a period of twenty (20) years from and after the date of the execution of this document with a monthly rental of ONE HUNDRED EIGHTY PESOS (₱180.00) payable in advance, said period of *lease being extendable* for another period of twenty (20) years with a monthly

rental of TWO HUNDRED TWENTY PESOS (₱220.00) also payable in advance on or before the 1st day of each month;" (pp. 73-75, orig. rec.), Italics supplied.

The trial court rendered judgment for the petitioner, the dispositive portion of which reads:

"WHEREFORE, in view of the foregoing, the Court finds for plaintiff and orders defendant Alexander Reyes as representative of the heirs of Augusto Reyes, Jr., to turn over the possession of the property, Lot 3, Block 89 on which the cine house is erected unto plaintiff, to pay monthly rental of ₱1,000.00 commencing April 1, 1982 up to and until they shall have vacated and turned over the possession of the premises unto plaintiff, to pay the sum of ₱5,000.00 as attorney's fees, and to pay the costs.

SO ORDERED."[2]

It is the contention of herein petitioner that to extend the lease contract for another 20 years requires a subsequent agreement between the parties as the phrase "being extendable" meant "capable of being extended."[3]

On the other hand, private respondents argue that the term of the lease contract are clear and that the same should be automatically extended upon the expiration of the first 20 years.

The court *a quo* however, gave merit to the contention of herein private respondents and said:

"To enter into new negotiations to extend the contract would, therefore, be superfluous and unnecessary, an idle ceremony, for the lease contract already contains all that is necessary for the extension thereof."

x x x x x x x x x

"The suggestion to enter into new negotiations run counter to the lease contract for, as already said, everything necessary for its renewal or extension has been agreed upon. All that was left was to abide by the lease contract. x x x"[4]

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[2] Records, p. 77.

[3] *Rollo*, p. 7, Petitioner's Petition, p. 6.

[4] *Rollo*, p. 30.

We disagree.

Inasmuch as both the parties to the lease contract have already died, a resort to the terms and conditions of the lease contract is inevitable in order to ascertain the true intent of the parties.

In a wealth of cases and as provided for in Articles 1370 and 1372 of the Civil Code,[5] we have ruled that when the terms and stipulations embodied in a contract are clear and leave no room for doubt, such should be read in its literal sense and that there is absolutely no reason to construe the same in another meaning.[6]

Thus, the lease contract executed between Esperanza Jose and spouses Eugenio Vitan and Beatriz Francisco on July 12, 1957,[7] being clear and unambiguous, providing for an automatic extension of twenty (20) years from the expiration of the first twenty (20) years, there is no reason why said contract should not be interpreted in the way the contracting parties meant it to be, that is the automatic extension of the lease for another twenty (20) years. Thus, paragraph 3 of the contract reads:

"3. That the period of TWENTY YEARS (20) herein above provided shall be *automatically extended* for another TWENTY YEARS (20) but with the rental of TWO HUNDRED & TWENTY PESOS (₱220.00) per month payable also in advance on or before the 1st day of each corresponding month, at the residence of the Party of the First part."[8] (Italics supplied)

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[5] Article 1370. If the terms of a contract are clear and leave no doubt upon the intention of the contracting parties, the literal meaning of its stipulations shall control.

If the words appear to be contrary to the evident intention of the parties, the latter shall prevail over the former.

Article 1372. However general the terms of a contract may be, they shall not be understood to comprehend things that are distinct and cases that are different from those upon which the parties intended to agree.

[6] *Papa vs. Alonzo*, 188 SCRA 564, G.R. No. 79318, June 27, 1991.

[7] Exhibit "8", Records, pp. 62-64.

[8] *Id*., at p. 63.

The same could not be said in the case at bar. The phrase "automatically extended" did not appear and was not used in the lease contract subsequently entered into by Esperanza Jose and Augusto Reyes, Jr. for the simple reason that the lessor does not want to be bound by the stipulation of automatic extension as provided in the previous lease contract.

To our mind, the stipulation "said period of lease being extendable for another period of twenty (20) years x x x" is clear that the lessor's intention is not to automatically extend the lease contract but to give her time to ponder and think whether to extend the lease. If she decides to do so, then a new contract shall be entered into between the lessor and lessee for a term of another twenty years and at a monthly rental of ₱220.00. This must be so, for twenty (20) years is rather a long period of time and the lessor may have other plans for her property.

If the intention of the parties were to provide for an automatic extension of the lease contract, then they could have easily provided for a straight forty years contract instead of twenty.

We find the trial court's decision more in accord with the true intention of the parties except that portion wherein private respondents were ordered to pay a monthly rental of ₱1,000 starting from April 1, 1982 up to and until they shall have vacated and turned over the possession of the premises unto herein petitioner.[9] This is in error.

The law in point is Article 1670 of the Civil Code, which reads:

"If at the end of the contract the lessee should continue enjoying the thing leased for fifteen days with the acquiescence of the lessor, and unless a notice to the contrary by either party has previously been given, it is understood that there is an implied new lease, not for the period of the original contract, but for the time established in Articles 1682 and 1687. The other terms of the original contract shall be revived."

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[9] Records, p. 77.

Article 1687 provides as follows:

"If the period for the lease has not been fixed, it is understood to be from year to year, if the rent agreed upon is annual; from month to month, if it is monthly; from week to week, if the rent is weekly; and from day to day, if the rent is to be paid daily. However, even though a month by rent is paid, and no period for the lease has been set, the courts may fix a longer term for the lease after the lessee has occupied the premises for over one year. If the rent is weekly, the courts may likewise determine a longer period after the lessee has been in possession for over six months. In case of daily rent, the courts may also fix a longer period after the lessee has stayed in the place for over one month."

The law provides that if after the end of the lease contract, the parties continue to enjoy the thing leased, an implied lease is created for the period mentioned in Article 1687, hence, herein private respondents may continue to occupy the leased premises provided such is with the permission and consent of herein petitioner-lessor. Since the lease contract provided for a monthly rental of ₱220 to be paid by the lessee upon the expiration of the first twenty years, the latter shall be bound by such amount which shall be paid by herein private respondents to petitioner-lessor.

ACCORDINGLY, herein private respondent is hereby ordered to turn over the possession of the disputed property and to pay a monthly rental of ₱220 starting from April 1, 1982 up to and until they shall have vacated and turned over the possession of the premises to herein petitioner, and to pay the sum of ₱5,000 as attorney's fees.

WHEREFORE, the petition is hereby *GRANTED*, and the appealed decision *REVERSED* and *SET ASIDE*. The decision of the trial court is hereby *REINSTATED* and *MODIFIED* as provided for in the preceding paragraph. With costs.

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, Regalado, and *Puno, JJ.*, concur.

THIRD DIVISION

[G.R. No. 100230. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **RAUL GERONA *Y* GOC-ONG, GREGORIO DIANO, JR. *Y* ARCAYAN, and CONCORDIO BIHAG, *ALIAS* "CORDIO" (AT-LARGE),** *accused-appellants.*

SYLLABUS

1. **REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; FINDINGS OF FACTS OF THE TRIAL COURT, GENERALLY UPHELD ON APPEAL; CASE AT BAR, NOT AN EXCEPTION. —** Findings of the trial court on the issue of credibility of the witnesses' testimonies are accorded great weight and respect on appeal because the trial judge has first hand opportunity to examine and observe the conduct and demeanor of the witnesses, while testifying in court. Unless it be clearly shown that the trial court had overlooked or disregarded arbitrarily the facts and circumstances of significance in the case, appellate courts are wary of disturbing the credence, or lack of it, accorded by the trial court to the testimony of witnesses. In the present case, there is nothing on record to warrant deviation from the general rule.

2. **CRIMINAL LAW; CONSPIRACY; PRESENCE DURING NEGOTIATION AND ACTUAL DELIVERY OF PROHIBITED DRUGS, INDICATIVE THEREOF. —** Appellant's presence during the negotiation and actual delivery, indicates a conspiracy or common purpose with the other accused to sell marijuana, his protestations to the contrary notwithstanding.

3. **REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; POSITIVE IDENTIFICATION AND DECLARATIONS, GIVEN WEIGHT THAN MERE DENIALS. —** As between a mere denial of the accused-appellant and the positive identification and detailed declarations of the prosecution witnesses, the trial court committed no error in according greater weight to the latter.

4. **ID.; ID.; ID.; BOLSTERED BY ABSENCE OF ULTERIOR MOTIVE OF POLICE OFFICERS TO FALSELY CHARGE**

ACCUSED. — There is nothing in the record to suggest that the police officers were compelled by any ulterior motive or ill-will in arresting or testifying against the accused other than to accomplish their mission. Courts generally give full faith and credit to police officers for they are presumed to have performed their duties in a regular manner in the absence of proof to the contrary.

5. ID.; CRIMINAL PROCEDURE; APPEAL; WITHDRAWAL THEREOF INDICATIVE OF VERACITY OF OFFENSE CHARGED. — Appellant's co-accused, Raul Gerona withdrew his appeal opting to avail of parole which is indicative of the veracity of the offense charged.

6. CRIMINAL LAW; PENALTIES; LIFE IMPRISONMENT AND *RECLUSION PERPETUA*, TWO DISTINCT PENALTIES. — Life imprisonment and *reclusion perpetua* are two distinct penalties and are not interchangeable for the latter carries with it the accessory penalties enumerated in Article 41 of the Revised Penal Code. Furthermore, *reclusion perpetua* entails imprisonment for at least thirty (30) years after which the convict becomes eligible for pardon; whereas life imprisonment does not appear to have any definite extent or duration.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Felipe S. Velasquez for Gregorio Diano, Jr.

D E C I S I O N

BIDIN, *J.*:

Raul Gerona, Gregorio Diano, Jr. and Concordio Bihag, *alias* "Cordio" were charged before the Regional Trial Court of Cebu, Branch 14, with violating Section 4, Article II in relation to Section 21, Article IV of Republic Act No. 6425, otherwise known as the Dangerous Drugs Act of 1972, as amended, in an information which reads as follows:

"That on or about the 28th day of April, 1990, at about 11:00 A.M., more or less, in the City of Cebu, Philippines, and within the

jurisdiction of this Honorable Court, the said accused, conniving and confederating together and mutually helping with one another, with deliberate intent, did then and there deliver, sell and give away one bundle of marijuana dried leaves more or less 50 grams wrapped in a newspaper, a prohibited drug, to a person who posted himself as buyer without authority of law.

"CONTRARY TO LAW." (*Rollo*, p. 6.)

When arraigned, accused Gerona and Diano entered a plea of not guilty. Accused Bihag, who has evaded arrest, has not been arraigned and remains at large. Trial on the merits ensued with respect to accused Gerona and Diano. Subsequently, the trial court rendered a decision finding the two accused guilty of the crime charged. The dispositive portion of the trial court's decision states:

"WHEREFORE, judgment is hereby rendered finding the two accused Raul Gerona y Goc-ong and Gregorio Diano, Jr. *y* Arcayan, guilty beyond reasonable doubt of having violated Section 4, Article II in relation to Section 21, Article IV of Republic Act. No 6425 as amended, and they are hereby sentenced to *reclusion perpetua* or life imprisonment (sic), and a fine of ₱20,000.00, without subsidiary imprisonment in case of insolvency, and to pay the costs.

"Considering, however, that both are still comparatively young Raul Gerona is only 24 years old while Gregorio Diano, Jr. is only 21 and considering moreover that the present indictment is their first offense, the Court feels that they should be given a second chance at life. The Court accordingly recommends that executive clemency be extended to them after they shall have served at least ten years of their sentences in prison.

"SO ORDERED." (*Rollo*, p. 25)

Both accused Gerona and Diano initially appealed the judgment of conviction but later on, accused Gerona filed a motion to withdraw appeal which was granted by this Court in a Resolution dated May 26, 1993 (*Rollo*, pp. 87-88).

The antecedent facts, as stated by the trial court, are as follows:

"On April 28, 1990, having confirmed through earlier surveillances that a notorious marijuana distributor or seller named Concordio

Bihag, *alias* 'Cordio,' was the source of considerable trade or traffic of dried marijuana leaves at Pit-os, Talamban, Cebu City through his 'boys' or 'runners,' among whom were a certain Alo, a certain Boy, a certain Tiwa, and the two accused in this case, Raul Gerona and Gregorio Diano, Jr., Lt. Emmanuel M. Ughoc, officer-in-charge of the 7th Narcotic Regional Unit, Cebu City, constituted into a buy bust operation, S/Sgt. Ibrahim Mohammadshaid, Sgt. Ricardo Inding and CIC Teodosio Rosaroso of said unit for the purpose of arresting the said Concordio Bihag and his marijuana 'boys' or 'runners.' Designated by Lt. Ughoc as 'poseur buyer' was Sgt. Ricardo Inding who put on the appearance of a drug dependent or user. Earlier on, Sgt. Inding had placed on surveillance Concordio Bihag and his marijuana 'boys' or 'runners.' In these previous surveillances, Inding had observed that Bihag did not deal directly with prospective buyers he invariably dealt via his 'boys' or 'runners': Alo, Tiwa, Boy and the two accused herein Raul Gerona and Gregorio Diano, Jr. Inding first befriended Alo, Tiwa and Boy during his first surveillance. To these three Inding indicated his desire to buy marijuana in volumes or big quantities directly from the marijuana owner or the 'big boss' himself, Concordio Bihag. Inding told these three: '*Gusto unta ko nga mokuha ug volume mga marijuana ug dili ko gusto nga moagi pa ako ug runner. Gusto ko nga modirekta.*' Translation: 'I should like to buy marijuana in volumes or big quantities, and I don't want to buy through peddlers or runners. I want to buy directly from the owner or 'big boss' himself.' Alo, Boy and Tiwa replied that 'It is our secret' (*i.e.*, they wanted either to keep their operations in secret, or to conceal the identity of their 'big boss'). Inding observed, though, that when a buyer goes to Concordio's runner 'I (Inding) noticed only that the runners will give the money to Concordio Bihag and thereafter Concordio Bihag will disappear and minutes later he will come back and give to the runners some bundles of marijuana.' It was from these 'boys' or 'runners' that Inding learned Concordio Bihag's name. (T.S.N. of September 4, 1990, p. 17)

"On his second surveillance on April 26, 1990 Inding did not find Tiwa, Alo and Boy at the store. So he looked for these three at the basketball court at Pit-os, supposing he would find them there. He did not find them at the basketball court, either. Instead, he found in the basketball court the two accused Raul Gerona and Gregorio Diano, Jr. playing basketball with other teenagers. He joined their game and befriended Raul Gerona and Gregorio Diano, Jr. or 'Greg.' He asked these two where Alo, Tiwa and Boy were, telling these two that he had a transaction with Alo, Tiwa and Boy. But

Gerona and Diano asked him what his transaction to the three was. 'So I informed them that I want to get some marijuana dried leaves.' And they said '*Kami na lang bay kay mao ra man gihapon kanang ilang kuhaon nga marijuana parehas ra man ang among presyo*.' Translation: 'Just buy from us, friend, because the marijuana they will get from Bihag we can also sell to you at the same price.' Inding saw Bihag in a waiting shed in Pit-os some 100 meters from the basketball court. On that date, he bought ₱100.00 worth of marijuana from Gerona, who get it from Bihag.

"Having indeed ascertained or confirmed that Concordio Bihag was the source of marijuana dried leaves in Pit-os, and that Bihag was assisted in this nefarious business by his 'boys' or 'runners,' on the late morning of April 28, 1990 S/Sgt. Ibrahim Mohammadshaid, Sgt. Ricardo Inding, and CIC Teodosio Rosaroso and four civilian agents, soon after their constitution into a 'buy-bust' team, went to Pit-os on board a mini-cruiser to catch or entrap Concordio Bihag and his 'boys' or 'runners' who could be caught in the act of selling marijuana. The members of the team got off some 200 meters away from the waiting shed where in previous surveillances Inding had observed Bihag to have been transacting business through his 'boys' or 'runners.' Inding then proceeded to the waiting shed while S/Sgt. Mohammadshaid and CIC Rosaroso positioned themselves some 20 meters away. (CIC Rosaroso knew Bihag, and Bihag knew Rosaroso, some years before).

"Not long after he had reached the waiting shed where Bihag was sitting on a bench, Inding gave the pre-arranged signal-(he got a handkerchief from his pocket and waved it) that he had consummated the sale or delivery of marijuana leaves. Mohammadshaid and Rosaroso rushed forward. Upon seeing the approaching lawmen, especially Rosaroso whom he (Bihag) had previously known, Bihag scampered away, with Rosaroso in pursuit. Inding then grabbed Gerona while Mohammadshaid grabbed Diano.

"According to Inding, just before Mohammadshaid and Rosaroso rushed forward in response to his pre-arranged signal, he was approached by the accused Raul Gerona and Gregorio Diano, Jr., to whom he expressed his desire to buy dried marijuana leaves worth ₱100.00. Gerona asked for the money (*i.e*. marked money) and, on receiving it, gave it to his (Gerona's) co-accused Diano, who thereupon approached the third accused in this case, Concordio Bihag, who was then seated in a bench in the waiting shed, and handed Bihag the money. Bihag then got a bundle of marijuana leaves wrapped

in a newspaper placed near him and gave it to Diano. Upon receiving the bundle Diano delivered it to Gerona who in turn handed it to Inding.

"Inding categorically declared that he received from Gerona and Diano the bundle of dried marijuana leaves weighing 50 grams (Exhibit 'C'). The raiding team also recovered 200 grams of dried marijuana leaves wrapped in a paper (Exhibit 'D') on the bench occupied by Bihag.

"Lt. Myrna P. Areola, PC-Criminal Laboratory forensic chemist testified that the substance found in Exhibit 'C' and 'D' were positive for marijuana.

"In exculpation, the accused Raul Gerona and Gregorio Diano testified that on the morning of April 28, 1990 they were playing basketball in the basketball court at Pit-os when overcame by thirst, they went to the store of Ruben Miñoza, Jr. to buy soft drinks. When they reached the store they found Concordio Bihag there. They bought some soft drinks and while taking the soft drinks, Sgt. Inding arrived and asked for Bihag. They pointed to Bihag inside. Inding then called for Bihag and the latter came out with two packs of dried marijuana leaves which he handed to Inding. After taking delivery of the two packs, Inding gave ₱100.00 to Bihag.

"Inding opened the pack and smelled its contents. Gerona and Diano were also asked to smell the pack, and they did. Their companions in the store likewise smelled the contents of the packs.

"Inding thereafter put back the contents into the pack, got a handkerchief from his pocket, and wiped his face with it. Moments later, Inding's fellow police officers rushed into the store. Inding took hold of Bihag, but as Bihag was bigger than Inding, Bihag succeeded in shaking himself free from Inding's hold, and in scampering away. Gerona and Diano were then rounded up by the lawmen, along with Bihag's other 'boys' or 'runners,' Eper, Boy, Alo and Tiwa.

"Since they failed to get their principal quarry the members of the raiding team then made Gerona and Diano board their service vehicle, took off towards Bacayan, Talamban, and asked Gerona and Diano to point to the house of Bihag there.

"The members of the team however did not find Bihag in his house. So they brought Gerona and Diano, and Bihag's other 'boys'

or 'runners' to the NARCOM headquarters. These other 'boys' or 'runners' were nonetheless released on the same day, April 28, 1990.

"Gerona and Diano alleged that they protested their arrest by the members of the raiding team, but Sgt. Inding told them that they would be simply utilized as witnesses. Both insisted that they did not commit the crime imputed to them.

"Agustin Padayao, who claimed to be an uncle by affinity of the third accused, Concordio Bihag, sought to corroborate Gerona and Diano's testimonies" (*Rollo*, pp. 19-22).

Accused-appellant Diano is now before Us seeking the reversal of the judgment of conviction rendered by the trial court. In his Brief, he made the following assignment of errors:

"I. THE COURT-*A-QUO* ERRED IN NOT GIVING CREDENCE TO THE TESTIMONIES OF ACCUSED GREGORIO DIANO, JR., RAUL GERONA AND WITNESS AGUSTIN PADAYAO.

"II. THE COURT-*A-QUO* ERRED IN GIVING TO (*SIC*) MUCH WEIGHT TO THE TESTIMONY OF SGT. RICARDO INDING."

From the foregoing, it is at once apparent that the only issue involved herein is the credibility of witnesses.

Once again, the present appeal affords Us the occasion to reiterate the well-entrenched rule that findings of the trial court on the issue of credibility of the witnesses' testimonies are accorded great weight and respect on appeal because the trial judge has first hand opportunity to examine and observe the conduct and demeanor of the witnesses, while testifying in court (*People vs. Marcos*, 185 SCRA 154 [1990], citing *People vs. Rodriguez*, 172 SCRA 742 [1989]; *People vs. Tejada*, 170 SCRA 497 [1989]; *People vs. Abonada*, 169 SCRA 530 [1989], *People vs. Turla*, 167 SCRA 278 [1988]; *People vs. Aboga*, 147 SCRA 404 [1987]). Unless it be clearly shown that the trial court had overlooked or disregarded arbitrarily the facts and circumstances of significance in the case (*People vs. Simbulan*, 214 SCRA 537 [1992]), appellate courts are wary of disturbing the credence, or lack of it, accorded by the trial court to the testimony of witnesses. In the present case, there is nothing on record to

warrant deviation from the general rule. The instant appeal must therefore fail.

Accused-appellant Diano implores this Court to give more weight to his testimony and that of his co-accused Gerona and their witness Padayao over the testimonies of the prosecution witnesses particularly the narration of events by Sgt. Inding. Appellant contends that the version of the prosecution as regards the participation of the two accused in the buy-bust operation is highly improbable coupled with the fact that not a single stick of marijuana was found in the possession of either accused.

Appellant, however, was not indicted for possession of the prohibited merchandise. On the contrary, he was charged and convicted under the provisions of Section 4, Article II of Republic Act No. 6425 in relation to Section 21, Article IV of the same law as a broker in the sale of marijuana. The express wordings of the above-stated provisions are as follows:

"Sec. 4. Sale, Administration, Delivery, Distribution and Transportation of Prohibited Drugs. The penalty of life imprisonment to death and a fine ranging from twenty thousand to thirty thousand pesos shall be imposed upon any person who, unless authorized by law, *shall sell*, administer, *deliver, give away to another*, distribute, dispatch in transit or transport any prohibited drug, or *shall act as a broker in any of such transactions*. If the victim of the offense is a minor, or should a prohibited drug involved in any offense under this Section be the proximate cause of the death of a victim thereof, the maximum penalty herein provided shall be imposed (italics supplied).

x x x x x x x x x

"Sec. 21. Attempt and Conspiracy. — The same penalty prescribed by this Act for the commission of the offense shall be imposed in case of any attempt or conspiracy to commit the same in the following cases:

a) Importation of dangerous drugs;

b) *Sale, administration, delivery, distribution* and transportation of dangerous drugs;

c) Maintenance of a den, dive or resort for prohibited drug users;

d) Manufacture of dangerous drugs; and

e) Cultivation or culture of plants which are sources of prohibited drugs."

The wordings of the law clearly negate the theory of improbability espoused by accused-appellant Diano. The facts as recited in Sgt. Inding's testimony is consistent with the charge leveled against the two accused as brokers or commission agents in the sale of marijuana by confederating and mutually helping each other in the sale and delivery of one bundle of dried marijuana leaves. Moreover, the version of the prosecution fits the *modus operandi* of the third accused Bihag. Accused Bihag is known to conduct his business of selling marijuana through the use of his "boys" or "runners". These "boys" or "runners" act as the middlemen between Bihag and the buyer, such that they deal directly with the latter and get their commission from the proceeds of the sale. Accused Gerona and Diano were just two of Bihag's runners. There is therefore nothing surprising in Sgt. Inding's declaration that the marked money and the marijuana passed from one hand to another (from Inding to Gerona to Diano to Bihag, and vice versa) in the course of the transaction.

In the light of what the prosecution established about Bihag's operation, it is far more difficult to lend credence to the proposition of the defense that the participation of the two accused to the buy-bust operation was limited to pointing out where Bihag was to Sgt. Inding, and after the consummation of the sale between Sgt. Inding and Bihag, to smelling the contents of the pack containing the dried marijuana leaves. It is inconsistent with ordinary human experience for a buyer of prohibited drugs to explicitly request everyone present at the store to smell the merchandise right after the consummation of what supposedly was a discreet and illicit transaction.

Furthermore, appellant's presence during the negotiation and actual delivery, indicates a conspiracy or common purpose with the other accused to sell marijuana (*People vs. Natipravat*, 145

SCRA 483 [1986]), his protestations to the contrary notwithstanding.

Thus, as between a mere denial of the accused-appellant and the positive identification and detailed declarations of the prosecution witnesses, the trial court committed no error in according greater weight to the latter (*People vs. Marcos*, 185 SCRA 154 [1990] citing *People vs. Melgar*, 157 SCRA 718 [1988], *People vs. Marilao*, 177 SCRA 271 [1989]).

Additionally, there is nothing in the record to suggest that the police officers were compelled by any ulterior motive or ill-will in arresting or testifying against the accused other than to accomplish their mission (*People vs. Como*, 202 SCRA 200 [1991]). Courts generally give full faith and credit to police officers for they are presumed to have performed their duties in a regular manner in the absence of proof to the contrary (Rule 131, Section 5 (m), Rules of Court; *People vs. Marcos*, *supra*, citing *People vs. Lamog, et al.*, 172 SCRA 342 [1989], *People vs. Gamayon*, 121 SCRA 642 [1983]; *People vs. Policarpio*, 158 SCRA 85 [1988]; *People vs. Natipravat, supra*; *People vs. De Jesus*, 145 SCRA 52 [1986]; *People vs. Khan*, 161 SCRA 406 [1988]). Finally appellant's co-accused, Raul Gerona withdrew his appeal opting to avail of parole which is indicative of the veracity of the offense charged (See *People vs. Flores*, 23 SCRA 309 [1968]).

All told, we find no reversible error in the judgment of conviction.

Regarding the imposition of the appropriate penalty, however, the Court would like to remind the trial courts to be more careful in imposing the proper penalty in accordance with the strict letter of the law. The penalty prescribed by Section 4, Article II of Republic Act No. 6425 for the commission of the described offense is life imprisonment to death and a fine ranging from twenty to thirty thousand pesos, and *not reclusion perpetua*. Life imprisonment and *reclusion perpetua* are two distinct penalties and are not interchangeable for the latter carries with it the accessory penalties enumerated in Article 41 of the Revised Penal Code (*People vs. Blas*, 209 SCRA 339 [1992]; *People vs.*

Marcos, 212 SCRA 748 [1992]). Furthermore, *reclusion perpetua* entails imprisonment for at least thirty (30) years after which the convict becomes eligible for pardon; whereas life imprisonment does not appear to have any definite extent or duration (*People vs. Baguio*, 196 SCRA 459 [1991]).

WHEREFORE, the judgment appealed is hereby *AFFIRMED* with the *MODIFICATION* of the imposable penalty which is life imprisonment and a fine of *TWENTY THOUSAND PESOS* (₱20,000.00) instead of *reclusion perpetua.*

SO ORDERED.

Feliciano (Chairman), Romero, Melo, and *Vitug, JJ.*, concur.

SECOND DIVISION

[G.R. No. 100700. November 8, 1993]

SOFRONIO MARTINADA, DAVID MARTINADA, ANDRES MARTINADA, JR., LILIA MARTINADA YEPES, LYDIA MARTINADA MACARISAS, MARINO MARTINADA, and ZENAIDA MARTINADA MODESTO, *petitioners, vs.* **DOROTEA BAUTISTA, ELPIDIO BAUTISTA, ANICETO BAUTISTA, VERONICA B. ALVAREZ, CORNELIO BAUTISTA, JR., FILOMENO BAUTISTA, and the HON. COURT OF APPEALS,** *respondents.*

SYLLABUS

1. REMEDIAL LAW; COURTS; SUPREME COURT; NOT A TRIER OF FACTS. — Time and again, we have adhered to the principle that the appellate jurisdiction of the Supreme Court is limited to reviewing errors of law that may have been

committed by the lower court. The Supreme Court is not a trier of facts. It leaves these matters to the lower court, which has the opportunity and the facilities to examine these matters. The Court has repeatedly declared its policy of deferring to the factual findings of the trial judge, who has the advantage of directly observing the witnesses on the stand and to determine their demeanor whether they are telling or distorting the truth. Findings of fact of the Court of Appeals are final and binding upon this Court unless it shown that they are grounded entirely on speculations, surmises or conjectures. In the instant case, we have carefully reviewed the records and found the findings of facts of the lower courts to be fully supported by the evidence.

2. ID.; EJECTMENT; PRIOR POSSESSION AND FAILURE TO REIMBURSE THE EXPENSES FOR IMPROVEMENT, NOT VALID DEFENSES. — Petitioner's contention that they have a better right to the subject property having been in prior possession, cannot operate to divest private respondents of their rights as the registered owners. The fact that private respondents did not reimburse petitioners for the alleged expenses they incurred for the improvement of the subject property is no justification for their refusal to vacate the property.

APPEARANCES OF COUNSEL

Domingo M. Ballon for petitioners.
Romeo B. Ruiz for private respondents.

D E C I S I O N

NOCON, *J.*:

This is a petition for review on *certiorari* of the Resolution[1] promulgated on February 8, 1991 of the Court of Appeals[2] in CA-G.R. SP No. 24069 denying herein petitioners' Petition for

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[1] *Rollo,* pp. 10-11.

[2] Fifth Division; Penned by Justice Reynato S. Puno with the concurrence of Justice Oscar M. Herrera and Justice Abelardo M. Dayrit.

Review as well as the June 28, 1991 Resolution[3] of the same court denying petitioners' Motion for Reconsideration.

The undisputed facts are as follows:

Private respondents Dorotea Bautista, Elpidio Bautista, Aniceto Bautista, Veronica B. Alvarez, Cornelio Bautista, Jr. and Filomeno Bautista are the heirs of the late Cornelio Bautista, registered owner of a property designated as Lot 3, Block 15 situated at 3020 3rd Street, Guadalcanal Street, Sta. Mesa, Manila covered by TCT No. 51930.

Sometime in 1958, Cornelio Bautista allowed petitioners Sofronio Martinada (now deceased), David Martinada, Andres Martinada, Jr., Lilia Martinada Yepes, Lydia Martinada Macarisas, Marino Martinada and Zenaida Martinada Modesto to occupy the subject property for a monthly consideration of ₱100.00.

On April 29, 1980, Cornelio Bautista filed an ejectment case against petitioners with the then City Court of Manila on the ground that the latter were not paying their monthly rentals since July 15, 1958.

Petitioners, however, alleged that they have been occupying the subject property since 1956 when it was still vacant, swampy and ownerless; that the National Housing Authority disapproved their application to purchase the subject property but instead awarded it to Cornelio Bautista; that sometime in 1958, Cornelio Bautista had verbally agreed to lease the subject property to them through petitioner Sofronio Martinada for a monthly consideration of ₱100.00 which can be offset by whatever expenses they may incur for the improvement of the subject property; that they have spent ₱60,000.00 for the filling materials to improve the condition of the subject property; and that sometime in 1980, private respondents demanded that they vacate the subject property but they refused unless they were reimbursed for the expenses they had incurred in the improvement of the subject property.

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[3] *Rollo,* p. 13.

On May 2, 1990, the Municipal Trial Court rendered its decision, the dispositive portion of which reads, as follows:

"WHEREFORE, judgment is hereby rendered;

"1. Ordering the defendants and all persons claiming rights under them to vacate the premises situated at Lot 3, Block 15, 3020, 3rd Street, Guadalcanal, Sta. Mesa, Manila and turn over the possession thereof to the plaintiffs.

"2. Ordering defendants to pay the sum of One Hundred (₱100.00) a month starting July 15, 1958, less whatever payments, if any, made by the defendants to the plaintiff, representing the rental due the premises; up to and until defendants shall have vacated the premises;

"3. Ordering the defendants to pay the amount of ₱2,000.00 as Attorney's Fees, plus costs of this suit."[4]

On appeal by the petitioners to the Regional Trial Court, said appellate court on December 27, 1990 modified the decision of the trial court, the dispositive portion of which reads, as follows:

"WHEREFORE, the Court AFFIRMS the appealed decision with the modification that defendants and all persons claiming rights under them are ordered to vacate the premises situated at Lot 3, Block 15, 3020 3rd Street, Guadalcanal Street, Sta. Mesa, Manila, and to surrender possession thereof to the plaintiffs; to pay plaintiffs the sum of ₱100.00 a month from February 15, 1980 until they vacate the premises, and to pay plaintiffs ₱2,000.00 as attorney's fees and costs."[5]

Not satisfied with said decision, petitioners filed a Petition for Review with the respondent Court of Appeals which was denied in a Resolution promulgated on February 8, 1991.

Thereafter, petitioners filed a Motion for Reconsideration which was likewise denied by the respondent Court of Appeals

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[4] *Id.*, at p. 16.

[5] Court of Appeals' *Rollo*, p. 19.

in a Resolution promulgated on June 28, 1991. Hence, this instant petition.

We find the petition unmeritorious.

Time and again, we have adhered to the principle that the appellate jurisdiction of the Supreme Court is limited to reviewing errors of law that may have been committed by the lower court. The Supreme Court is not a trier of facts. It leaves these matters to the lower court, which has the opportunity and the facilities to examine these matters. The Court has repeatedly declared its policy of deferring to the factual findings of the trial judge, who has the advantage of directly observing the witnesses on the stand and to determine their demeanor whether they are telling or distorting the truth.[6] Findings of fact of the Court of Appeals are final and binding upon this Court unless it is shown that they are grounded entirely on speculations, surmises or conjectures.[7] In the instant case, we have carefully reviewed the records and found the findings of facts of the lower courts to be fully supported by the evidence.

Petitioners' contention that they have a better right to the subject property having been in prior possession, cannot operate to divest private respondents of their rights as the registered owners. The fact that private respondents did not reimburse petitioners for the alleged expenses they incurred for the improvement of the subject property is no justification for their refusal to vacate the property. As held by the respondent appellate court:

"Second, x x x. The evidence shows that the premises belong to the plaintiff (herein private respondent Cornelio Bautista), covered as it is by TCT No. 51930. The property was awarded by the National Housing Authority to the plaintiff sometime in 1958. Defendants (herein petitioners) claimed the property as prior occupants but the NHA did not validate their claim.

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[6] *Bernardo, et al. vs. Court of Appeals*, G.R. No. 101680, December 7, 1992.

[7] *Consolidated Dairy Products Co. vs. Court of Appeals*, 212 SCRA 810 [1992].

"Third, We cannot subscribe to defendants' contention that they should not be ejected because they were allowed to stay in the premises by a certain Mr. Sofronio Martinada who had a verbal contract of lease with the titled owner, Mr. Cornelio Bautista. Allegedly, pursuant to this verbal contract, defendants can stay in the premises at a monthly rental of ₱100.00 which can be offset by whatever they would spend for its improvement. The evidence to support this allegation is scant, to say the least. The petition does not show the authority of Mr. Martinada to sub-lease the premises. Indeed, the claim of a verbal contract can be easily concocted.

"Fourth, the trial court correctly held that the stay of the defendants in the premises is due to the tolerance of the plaintiffs. The tolerance ended in 1980 when plaintiffs formally demanded they vacate the premises. Defendants cannot cling to the premises by asking that they be paid for the improvements they made in the premises. They rely on Article 546 of the Civil Code. The reliance is misplaced. The Article does not apply to lease relationships. Moreover, the alleged improvements worth ₱60,000.00 has not been clearly established in the petition."[8]

WHEREFORE, the instant Petition for Review on *certiorari* is hereby DISMISSED. The questioned resolutions of the respondent appellate court are *AFFIRMED in toto*. Costs against petitioners.

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, and *Regalado, JJ.*, concur.

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[8] *Rollo,* pp. 10-11.

FIRST DIVISION

[G.R. No. 101361. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **MARY ROSE ONDO @ BABY and SIMEON ORTEGA,** *accused.* **MARY ROSE ONDO @ BABY,** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; FINDINGS OF TRIAL COURT, UPHELD IN CASE AT BAR. — Appellant questions the findings of the trial court that she had committed acts constituting a violation of Article 38 of the Labor Code. The evidence on record shows that the complainants positively identified appellant as the one who recruited them for jobs in Italy as domestic helpers and who demanded ₱65,000.00 from each of them as payment for the facilitation of their travel documents. It was appellant's promise to complainants of job opportunities abroad that lured them to part with their money. In the absence of any proof that the decision of the trial court was based on conjectures or surmises, the same must be upheld on appeal. The trial court is in a better position to observe and evaluate the demeanor of the witnesses.

2. LABOR AND SOCIAL LEGISLATION; RECRUITMENT AND PLACEMENT OF WORKERS; ILLEGAL RECRUITMENT; ELEMENTS; PRESENT IN CASE AT BAR. — Article 38 of the Labor Code, as amended, provides that: "Illegal Recruitment. (a) Any recruitment activities, including the prohibited practices enumerated under Article 34 of this Code, to be undertaken by non-licensees or non-holders of authority shall be deemed illegal and punishable under Article 39 of this Code. Article 13 (b) of the Labor Code, defines recruitment and placement as "any act of canvassing, enlisting, contracting, transporting, utilizing, hiring or procuring workers and includes referrals, contract services, promising or advertising for employment locally or abroad, whether for profit or not." As can be gleaned from the aforementioned provisions, illegal recruitment has two essential elements, to wit: (1) the accused must be engaged in the recruitment and placement of workers, whether locally or

overseas and; (2) the accused has not complied with such guidelines, rules and regulations issued by the Secretary of Labor and Employment, particularly with respect to the securing of license or authority to recruit and deploy workers either locally or overseas. These essential elements are present in the case at bench. Appellant promised overseas employment to the complainants for a fee, which the latter paid. In fact, appellant admitted that the money she received from the complainants was in connection with the processing of their visas, passports and plane tickets. She also admitted that she failed to make good her promise to send them abroad. Appellant is neither licensed nor authorized to recruit workers for overseas employment as testified by Virginia Santiago of the Inspection Division of the Licensing Board of the Philippine Overseas Employment Administration (POEA).

3. ID.; ID.; ILLEGAL RECRUITMENT IN LARGE SCALE, COMMITTED IN CASE AT BAR; PROPER PENALTY THEREOF. — Under Section 39 of the Labor Code, as amended, the penalty of life imprisonment is correctly imposed where illegal recruitment is committed in "large scale," which means that it is committed against three or more persons. In this case, appellant victimized Erlinda Cortez, Fidela Engada, Myra Siguenza, Dulce Garcia and Emilinda Padua.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Eriberto S. Guerrero, Jr. for accused-appellant.

D E C I S I O N

QUIASON, *J.*:

This is an appeal from the decision of the Regional Trial Court, Branch 109, Pasay City, in Criminal Case No. 89-3949, convicting Mary Rose Ondo @ Baby of illegal recruitment.

Appellant and Simeon Ortega were charged with violation of Article 38 of the Labor Code, committed as follows:

"That on or about and sometime from the month of December 1988 to August 1989, in Pasay City, Metro Manila, Philippines,

and within the jurisdiction of this Honorable Court, the above-named accused, conspiring and confederating together and mutually helping one another, by falsely representing themselves to have the power and capacity to contract, enlist and transport workers for employment abroad, did then and there, willfully, unlawfully and feloniously recruit Erlinda Cortez, Fidela Engada, Myra Siguenza, Dulce Garcia and Emilinda Padua and charged them placement fees and processing fees and promising said persons non-existing jobs abroad, thus participating to the recruitment, placement of deployment of said workers under false pretenses" (*Rollo*, p. 22).

The court *a quo* accepted, as established by the evidence on record, the version of the prosecution, which was summarized in the brief of the Solicitor General, as follows:

"On January 9, 1989, Perfecta Calderon, the sister and cousin of private complainants Frederico Calderon and Erlinda Cortez, respectively, received a call from her sister Angelita Calderon who was in Italy. Angelita instructed her to wait for the call of appellant regarding the recruitment of her brother Frederico and cousin Erlinda Cortez for jobs in Italy. A few days thereafter, she received a call from appellant who asked for the passports, pictures and birth certificates of Frederico and Erlinda so that appellant could process the requisite documentations for their departure to Italy. Likewise, appellant also demanded the amount of 5,000 US Dollars (sic) as payment for the plane tickets of both applicants (tsn., pp. 3-4, May 10, 1990).

On January 15, 1989, appellant called her up telling her to bring the documents (passports, pictures and Birth Certificates) to appellant's residence at 1754 Lacaba Compound, Tramo Street, Pasay City, which she did.

At the residence of appellant, Perfecta handed over the documents and the 5,000 US Dollars (sic) to Simeon Ortega who signed a receipt (Exhs. "J" to "J-1") to evidence payment. Ortega then handed the money to appellant. Before leaving appellant's residence, Perfecta inquired for the date of departure of her brother and cousin, but was told by appellant to wait for her call (tsn., pp. 5-8, May 10, 1989). The call, however, never came, so she demanded for the return of the money and the documents. Only the documents were returned (tsn., p. 9, May 10, 1990).

Her brother and cousin though were able to leave for and are already working in Italy through the assistance of another travel agency (tsn., *ibid*.).

Sometime in December 1988, private complainant Fidela Engada was introduced by her brother Wilfredo to appellant through a letter. Wilfredo Engada instructed her auntie Lucy Engada by phone to bring complainant to appellant for the latter to process her papers for abroad.

On December 28, 1988, private complainant and Lucy Engada went to appellant's residence in 1754 Lacaba Compound, Tramo Street, Pasay City, where she was introduced to appellant. Private complainant manifested her desire to go abroad through the help of appellant per her brother's recommendation. Appellant then intimated to her that the amount ₱65,000.00 was needed to defray for all the expenses. Outright, she handed a down payment of ₱30,000.00 which was duly receipted ([Exhs. "A" to "A-1"] tsn., pp. 5-8, May 2, 1990). Appellant asked for her passport for processing and told her to get in touch with appellant to ascertain the date of her departure.

After numerous follow-ups, private complainant was informed by appellant of her departure on August 18, 1989 and appellant demanded another amount of 200 US Dollars (*sic*) for the purchase of her plane ticket for Italy. This event was duly acknowledged by appellant (Exhs. "B" to "B-1", tsn., pp. 10-11, May 2, 1990).

On August 18, 1989, however, private complainant was not able to depart for Italy. She then tried to see appellant at her residence but to no avail; appellant could no longer be located. For four more times she went to appellant's place but with the same result. In her last attempt though, private complainant met the other victims of appellant and it was then that they decided to file their complaints with the Pasay City Prosecutor's Office against appellant through a "*Magkasanib na Pahayag*" ([Exh. "C"], tsn., pp. 12-14, May 2, 1990).

Private complainant Dulce Garcia was introduced to appellant through a letter from appellant's friend, Lilia Gonzales. On the last week of April 1989, appellant called her about 11:00 o'clock (*sic*) in the evening and introduced herself as a *balikbayan* from Italy and a recruiter who could deploy workers for abroad. Private complainant, desirous of trying her luck abroad, asked what the requirements were. Appellant told her that the amount of ₱65,000.00 was needed to pay for the package-deal-arrangement in processing

her travel documents *i.e*., passports, plane ticket and placement fees (tsn., pp. 14-15, May 10, 1990).

Three days after, appellant called her up again and told her to prepare the necessary requirements and to go to her (appellant's) address at 1754-A Lacaba Compound, Tramo Street, Pasay City with the ₱65,000.00. While at appellant's residence, she was told that she could depart on the first week of June 1989. On May 10, 1989, appellant called her up anew and told her to see her (appellant) again at her said residence and bring with her the necessary documents and the ₱65,000.00.

In the afternoon of the next day (May 11, 1989), private complainant went to appellant's residence where she handed the documents and the amount of ₱53,000.00 in the presence of Emmanuel Balboa, appellant's boyfriend. Appellant issued a receipt in acknowledgment therefor (Exhs. "K" to "K-1"), with the entry appearing thereat: "received the amount of Fifty-three Thousand Pesos Payment for the plane ticket in going to Italy" (Exh. "K-2"). Appellant then told her to wait for another call yet. Five days after, appellant called her up and told her to bring along her Birth Certificate and ID pictures so that she could accompany her to the Passport Division of the Department of Foreign Affairs at the Film Center. Private complainant was further told that her personal appearance at the Passport Division was important (tsn., pp. 16-19, May 10, 1990).

At the Passport Division, private complainant was interviewed, after which appellant told her to give the balance of the ₱65,000.00. In the morning of May 22, 1989, she went to appellant's residence and paid the amount of ₱11,500.00, which payment was duly receipted (Exhs. "L" to "L-2") with the entry: "received from Dulce Garcia, ₱11,510.00 payment for travel abroad." Appellant then showed private complainant her passport which was never handed over to her up to now. She was assured though that her departure would be on June 6, 1989 (tsn., pp. 20-21, May 10, 1990). June 6, 1989 came but private complainant was not able to depart because a day before (June 5, 1989), appellant called her up and told her that she (appellant) was hospitalized. Her departure was, however, rescheduled for August 8, 1989. On this said scheduled date (August 8, 1989), she was not able to leave because appellant told her that nobody would fetch her at the airport in Italy. Thus, the departure was again reset to any other day of August. The month of August 1989 passed, but she was not able to leave. So she demanded for the return of the entire

amount of ₱64,510.00 but appellant failed to return the money. She, together with the other "victims" of appellant, decided to file complaints against the latter with the Pasay Fiscal's Office in a "*Sinumpaan Salaysay*" ([Exhs. "M" to "M-2"], tsn., pp. 21-23, May 10, 1990)" (*Rollo*, pp. 72-79).

After convicting appellant of illegal recruitment, the court *a quo* sentenced her to life imprisonment and to pay a fine of ₱100,000.00 in accordance with Article 39 of the Labor Code (Decision, p. 19; *Rollo*, p. 40).

In her appeal, appellant questions the findings of the trial court that she had committed acts constituting a violation of Article 38 of the Labor Code (Appellant's Brief, pp. 6-7; *Rollo*, p. 57).

The evidence on record shows that the complainants positively identified appellant as the one who recruited them for jobs in Italy as domestic helpers and who demanded ₱65,000.00 from each of them as payment for the facilitation of their travel documents. It was appellant's promise to complainants of job opportunities abroad that lured them to part with their money.

In the absence of any proof that the decision of the trial court was based on conjectures or surmises, the same must be upheld on appeal. The trial court is in a better position to observe and evaluate the demeanor of the witnesses (*People v. Pido*, 200 SCRA 45 [1991]).

Devoid of merit is the defense of the appellant that the Felixim Travel Agency was the one which recruited the complainants. No proof whatsoever was adduced to show that the officers or employees of said agency had personally transacted with private complainants in connection with their overseas employment. The complainants themselves had testified that the Felixim Travel Agency had nothing to do with their transaction with appellant.

We agree with the findings of the court *a quo* that appellant is guilty of illegal recruitment.

Article 38 of the Labor Code, as amended, provides that:

"Illegal Recruitment. (a) Any recruitment activities, including the prohibited practices enumerated under Article 34 of this Code,

to be undertaken by non-licensees or non-holders of authority shall be deemed illegal and punishable under Article 39 of this Code.

Article 13 (b) of the Labor Code, defines recruitment and placement as "any act of canvassing, enlisting, contracting, transporting, utilizing, hiring or procuring workers and includes referrals, contract services, promising or advertising for employment locally or abroad, whether for profit or not."

As can be gleaned from the aforementioned provisions, illegal recruitment has two essential elements, to wit: (1) the accused must be engaged in the recruitment and placement of workers, whether locally or overseas and; (2) the accused has not complied with such guidelines, rules and regulations issued by the Secretary of Labor and Employment, particularly with respect to the securing of license or authority to recruit and deploy workers either locally or overseas.

These essential elements are present in the case at bench. Appellant promised overseas employment to the complainants for a fee, which the latter paid. In fact, appellant admitted that the money she received from the complainants was in connection with the processing of their visas, passports and plane tickets. She also admitted that she failed to make good her promise to send them abroad (TSN, October 5, 1990, p. 6).

Appellant is neither licensed nor authorized to recruit workers for overseas employment as testified by Virginia Santiago of the Inspection Division of the Licensing Board of the Philippine Overseas Employment Administration (POEA).

Appellant insists that being a minor, she should be placed under the custody of the barangay captain of Sambol, Lemery, Batangas as provided for by Article 191 of P.D. No. 603.

Article 191 of P.D. 603 provides:

"Care of Youthful Offender Held for Examination or Trial. — A youthful offender held for physical and mental examination or *trial or pending appeal*, if unable to furnish bail, shall from the time of his arrest be committed to the care of the Department of Social Services and Development or the local rehabilitation center or a

detention home in the province or city which shall be responsible for his appearance in court whenever required: Provided, That in the absence of any such center or agency within a reasonable distance from the venue of the trial, the provincial, city and municipal jail shall provide quarters for youthful offenders separate from other detainees. *The court may, in its discretion, upon recommendation of the Department of Social Services and Development or other agency or agencies authorized by the court, release a youthful offender on recognizance, to the custody of his parents or other suitable person who shall be responsible for his appearance whenever required*. However, in the case of those whose cases fall under the exclusive jurisdiction of the Military Tribunals, they may be committed at any military detention or rehabilitation center. (Italics supplied)

This issue is mooted in view of the fact that the trial of the appellant was terminated while her appeal was resolved with this decision. As can be inferred from its wordings, the provision is operative only during the trial or pending the appeal of the minor-accused.

Nevertheless the law uses the word "may," which denotes that it is directory in nature and implies discretion on the part of the trial court to place the minor under the custody of his or her parents or any suitable person.

Appellant further invokes the provisions of Article 192, which she alleges the court *a quo* failed to apply to her benefit. Under said Article, the trial court shall suspend the sentencing and commitment of youthful offenders and instead commit them to the custody of the Department of Social Services and Development or to any training institution until they shall have reached 21 years of age.

Again, appellant's contention cannot be sustained.

Said Article provides that it "x x x shall not apply to a youthful offender who has once enjoyed suspension of sentence under its provisions or to one *who is convicted of an offense punishable by death or life imprisonment*" (italics supplied).

Appellant was convicted by the court *a quo* of illegal recruitment and was sentenced to suffer the penalty of life

imprisonment. Clearly, her case falls under the exception provided for by the Child and Youth Welfare Code.

Under Section 39 of the Labor Code, as amended, the penalty of life imprisonment is correctly imposed where illegal recruitment is committed in "large scale," which means that it is committed against three or more persons (*People v. Duque,* 212 SCRA 607 [1992]). In this case, appellant victimized Erlinda Cortez, Fidela Engada, Myra Siguenza, Dulce Garcia and Emilinda Padua.

We noted that appellant was only 16 years of age at the time she committed the offense (TSN, October 5, 1990, p. 2). If she were prosecuted under the Revised Penal Code, appellant is entitled to a reduction of the penalty imposed by law by one degree because of the attendance of the privileged mitigating circumstance of minority (Article 68, Revised Penal Code). But the benign provisions of the Revised Penal Code are not applicable to offenders prosecuted and punished under special laws. Likewise, appellant is not entitled to the benefits of the Indeterminate Sentence Law, which requires the sentencing court to fix a minimum term within the range of the penalty next lower to that prescribed by law, because the penalty imposed on her is "life imprisonment" (Act 4103 as amended by Act 4225, Sec. 2).

Under the circumstances, we can only recommend that executive clemency be extended to her (*People v. Beralde,* 139 SCRA 426 [1985]; *People v. Lagasca,* 148 SCRA 264 [1987]; *People v. Mangusan,* 189 SCRA 624 [1990]).

WHEREFORE, the appealed decision is *AFFIRMED in toto* but in view of the minority of appellant at the time she committed the offense, we recommend to the Secretary of Justice that a case study of appellant be undertaken to determine whether she is deserving of executive clemency. Costs *de oficio*.

SO ORDERED.

Cruz (Chairman), Davide, Jr., and *Bellosillo, JJ.*, concur.

Griño-Aquino, J., retired.

THIRD DIVISION

[G.R. No. 101427. November 8, 1993]

CONSUELO B. KUNTING, *petitioner, vs.* **THE NATIONAL LABOR RELATIONS COMMISSION (Fifth Division), CAGAYAN DE ORO CITY, ST. JOSEPH SCHOOL, FR. ALOYSIUS CHANG and/or JOSEFINA MANUEL,** *respondents.*

SYLLABUS

1. REMEDIAL LAW; SPECIAL CIVIL ACTIONS; *CERTIORARI*; PROPER REMEDY. — Petitioner did not err in filing the instant petition. In *Pearl S. Buck Foundation v. NLRC,* 182 SCRA 446 [1990], the Court held that the only way it can review the decision of the NLRC is by way of petition for *certiorari* under Rule 65 of the Rules of Court. While factual findings of the NLRC are accorded not only respect but also finality if supported by substantial evidence considering the NLRC's expertise in their field any allegations of fact may still be considered by this Court but only to determine whether the NLRC had no jurisdiction, gravely abused its discretion, violated due process, denied substantial justice or erroneously interpreted the law. Hence, *certiorari* is the proper remedy in this case.

2. LABOR AND SOCIAL LEGISLATION; TERMINATION OF EMPLOYMENT; DISMISSAL OF EMPLOYEE; "STRAINED RELATIONS" AS A JUSTIFICATION FOR PAYMENT OF SEPARATION PAY IN LIEU OF REINSTATEMENT, EXPLAINED. — "Strained relations," as amplified in *Employee's Association of the Philippine American Life Insurance Company v. NLRC,* 19 SCRA 628 [1991], must be of such a nature or degree as to preclude reinstatement. But, where the differences between the parties are neither personal nor physical, nor serious, then there is no reason why the illegally dismissed employee should not be reinstated rather than simply given separation pay and backwages. More so if the cause of perceived "strained relations" is the filing of a complaint for illegal dismissal. As the Court held in *Globe-Mackay Cable and Radio Corporation v. NLRC,* 206 SCRA 701 [1992], "Obviously, the principle of 'strained

relations' cannot be applied indiscriminately. Otherwise, reinstatement can never be possible simply because some hostility is invariably engendered between the parties as a result of litigation. That is human nature. "Besides, no strained relations should arise from a valid and legal act of asserting one's right; otherwise an employee who shall assert his right could be easily separated from the service, by merely paying his separation pay on the pretext that his relationship with his employer had already became strained."

3. ID.; ID.; ID.; STRAINED RELATIONS, NOT A CASE OF. — As shown by the above-quoted portion of the decision of the NLRC, its conclusion on the "strained relations" between petitioner and private respondents was merely gathered from the latter's evidence on the former's less than ideal conduct and nothing more. There is no proof that such conduct actually caused animosity between her and private respondents. Besides, there is no clear showing that the perceived "strained relationship between the parties is of so serious a nature or of such a degree as to justify petitioner's dismissal. Whatever resentments had been harbored by petitioner upon her unceremonious dismissal after having been employed by St. Joseph School for more than sixteen (16) years is understandable. Such resentments, however, would not suffice to deny her reemployment because to do so would render for naught her constitutional right to security of tenure and her corollary right to reinstatement under Article 279 of the Labor Code. Petitioner is, after all, a permanent teacher as she had rendered more than three years of satisfactory service. Given the fact that her employer is a religious institution, there can be no room for antagonism between the parties even after the termination of this litigation.

4. ID.; ID.; ID.; COMPUTATION OF BACKWAGES IS LIMITED TO THREE YEARS; R.A. 6715 DOES NOT PROVIDE FOR ITS RETROACTIVE APPLICATION. — Petitioner claims that she is entitled to full backwages (computed from the date of dismissal until actual reinstatement) under Article 279 of the Labor Code. This contention, however, is not supported by prevailing jurisprudence which limits the award of backwages to three (3) years without and deduction. While Republic Act No. 6715 amending Sec. 279, of the Labor Code grants full backwages to dismissed employees computed from the date of their illegal dismissal up to the date of actual

reinstatement, the same cannot be applied in the case at bar. This is because petitioner was illegally dismissed on April 4, 1988, or before the effectivity of RA 6715 on March 21, 1989. In *Lantion v. NLRC*, We held that nothing in RA 6715 provides for its retroactive application. Necessarily, awards of backwages in cases of illegal dismissal initiated before the effectivity of RA 6715 will have to be resolved by applying the three-year limit formulated in the case of *Mercury Drug Co., Inc. v. CIR*.

5. ID.; ID.; ID.; AN EMPLOYEE IS ENTITLED TO THIRTEENTH MONTH PAY IF SHE SERVED MORE THAN 3 MONTHS FOR THAT YEAR. — Applying this guideline to the petitioner, she is entitled to a 13th month pay for 1988 as she served more than three months for that year, Although P.D. No. 851 was conceived "to further protect the level of real wages from the ravage of world-wide inflation," it would be unfair for the employer to grant petitioner 13th month pay for the years she had not rendered service. Thus, upon her reinstatement, payment of the 13th pay should be in accordance with the aforequoted guideline and that set forth in *UST Faculty Union v. NLRC*, 190 SCRA 215 [1990]), *i.e*, it shall not be granted if St. Joseph School gives its equivalent or when the said employer shall be subjected to "double burden."

6. ID.; ID.; ID.; DETERMINATION OF WHETHER OR NOT MORAL DAMAGES AND/OR ATTORNEY'S FEES SHOULD BE AWARDED, REMANDED TO THE LABOR ARBITER. — The best interest of both parties that determination of whether or not moral damages and/or attorney's fees should be awarded, be left to the Executive Labor Arbiter who is in a better position to rule on said issue.

APPEARANCES OF COUNSEL

Quasha, Asperilla, Ancheta, Peña & Nolasco for petitioner.
Castillo & Castillo Law Offices for private respondents.

D E C I S I O N

BIDIN, *J.*:

This special civil action for *certiorari* seeks to set aside the decision promulgated on October 20, 1989 by the respondent

National Labor Relations Commission (NLRC) which modified the decision dated March 1, 1989 of the Executive Labor Arbiter declaring illegal petitioner Consuelo B. Kunting's dismissal from employment and ordering respondent St. Joseph School to pay her backwages equivalent to six months' pay, separation pay, emergency cost of living allowance differentials, 13th month pay and service incentive leave pay.

In 1969, Consuelo B. Kunting was employed as a teacher by respondent St. Joseph School in Gov. Camins Avenue, Zamboanga City. She was paid a basic pay and emergency cost of living allowance (ECOLA) except during the summer period when she was paid only the basic pay. Effective January, 1988, her monthly salary was One Thousand Eight Hundred and Twenty Pesos (₱1,820.00) including the ECOLA integrated into the basic wage. She was also paid the 13th month pay up to 1987 but not her service incentive leave pay (*Rollo*, p. 30).

Every year from 1969 until the school year 1987-1988, Consuelo and St. Joseph School executed a Teacher's Contract. For the school year 1987-1988, her performance rating was very satisfactory (*Rollo*, pp. 45-47). In spite of this, St. Joseph School did not renew her employment contract for the school year 1988-1989, thereby terminating her employment with the school. The termination letter dated April 4, 1988 reads:

"Your teaching contract with this school has already expired at the close of this school year 1987-1988.

"We regret to inform you that the administration is not renewing your contract this coming school year 1988-1989. This notice is served upon you so that you will have time to look for another employment or to give you full time in your business." (*Ibid.*, p. 48)

On April 14, 1988 (*Ibid*., p. 31), Consuelo filed a complaint against the St. Joseph School, its Director, Fr. Aloysius Chang, and Principal, Sister Josephine Manuel, for illegal dismissal, reinstatement and backwages, wage differentials, 13th month pay, emergency cost of living allowance (ECOLA) and service incentive leave pay.

With only position papers and supporting documents submitted by the parties as basis, Executive Labor Arbiter Rhett Julius J. Plagata rendered the decision of March 1, 1989 declaring that Consuelo was illegally dismissed. The dispositive portion of the decision states:

"WHEREFORE, in view of the foregoing considerations, judgment is hereby rendered in the above-entitled case:

(1) declaring the dismissal of Consuelo B. Kunting to be illegal, and ordering St. Joseph School to pay her backwages in the sum of TEN THOUSAND NINE HUNDRED TWENTY PESOS (₱10,920.00) and separation pay in the sum of FOURTEEN THOUSAND FIVE HUNDRED SIXTY PESOS (₱14,560.00); (2) further ordering St. Joseph School to pay Consuelo B. Kunting emergency cost of living allowance differentials in the sum of FIVE HUNDRED SEVENTY ONE & 32/100 PESOS (₱571.32); 13th month pay, in the sum of FOUR HUNDRED FIFTY FIVE PESOS (₱455.00); and service incentive leave pay, in the sum of SEVEN HUNDRED SIX & 45/100 PESOS (₱706.45); and (3) dismissing the complainant's claim for wage differentials, for lack of merit.

"SO ORDERED."

Dissatisfied, petitioner appealed to the respondent NLRC. She prayed that the Executive Labor Arbiter's decision be modified so as to include her re-instatement to her former position without loss of seniority rights with option to accept separation benefits and payment of full backwages from April 4, 1988 up to the actual date of re-instatement, the 13th month pay to cover the period between April 4, 1988 and her actual reinstatement, and moral damages of ₱25,000.00 plus attorney's fees.

In its decision, the NLRC affirmed the finding of the Executive Labor Arbiter that Consuelo was illegally dismissed on the ground that the twin requirements of notice and hearing, which constitute essential elements of due process in cases of dismissal of employees, were not complied with. Inasmuch as Consuelo was a regular employee under Art. 280 of the Labor Code, the NLRC opined that her employment for more than sixteen (16) years could not be terminated by the school on the pretext that her "Teaching Contract" had expired.

Notwithstanding its finding of illegal dismissal, the NLRC nonetheless sustained the Executive Labor Arbiter's ruling as regards the payment of separation pay in lieu of reinstatement due to the alleged "strained relations" between the parties which existed as a result of the illegal dismissal, and the alleged failure of Consuelo to refute the accusations leveled against her by her employer. However, the NLRC modified the grant of six (6) months backwages and ordered instead the payment of backwages without qualification and deduction, computed from the date of dismissal on April 4, 1988 up to the date of promulgation of its decision, *i.e.*, October 20, 1989. It further ordered that petitioner's length of service be reckoned from 1969 up to the promulgation of its decision.

The NLRC further upheld the Executive Labor Arbiter's decision with respect to the payment of 13th month pay and service incentive pay and the disallowance of claim for wage differentials. However, the NLRC, like the Executive Labor Arbiter, denied Consuelo's claims for moral damages and attorney's fees on the ground that although they were set out in her position paper, they had not been alleged in the complaint.

Consuelo moved for the reconsideration of the above decision but the same was denied. Dissatisfied, she filed the instant petition.

In this petition, petitioner contends that respondent NLRC committed grave abuse of discretion amounting to lack of jurisdiction in: (a) awarding separation pay in lieu of reinstatement after a "clear" finding of illegal dismissal; (b) failing to award full backwages from the time of her dismissal until actual reinstatement; (c) denying her claim for moral damages and attorney's fees, and (d) failing to award 13th month pay for school year 1988-1989.

Before considering the merits of the substantive issues raised in this petition, private respondents' contention that the instant petition for *certiorari* is not the proper remedy since the NLRC did not commit grave abuse of discretion and that only questions of facts are involved in this case (*Ibid.*, p. 79), should be dealt with first.

Petitioner did not err in filing the instant petition. In *Pearl S. Buck Foundation v. NLRC*, 182 SCRA 446 [1990], the Court held that the only way it can review the decision of the NLRC is by way of petition for *certiorari* under Rule 65 of the Rules of Court.* While factual findings of the NLRC are accorded not only respect but also finality if supported by substantial evidence (*Reyes & Lim Co., Inc., v. NLRC*, 201 SCRA 772 [1991]) considering the NLRC's expertise in their field (*Chua v. NLRC*, 182 SCRA 353 [1990]; *Lopez Sugar Corporation v. FFW*, 189 SCRA 179 [1990]), any allegations of fact may still be considered by this Court but only to determine whether the NLRC had no jurisdiction, gravely abused its discretion, violated due process, denied substantial justice or erroneously interpreted the law (*Liberty Flour Mills Employees v. Liberty Flour Mills, Inc.*, 180 SCRA 6689 [1989]). Hence, *certiorari* is the proper remedy in this case.

We now come to the merits of the issues raised by petitioner. She contends that the NLRC gravely abused its discretion in ordering the payment of separation pay in lieu of reinstatement notwithstanding its finding that she had been illegally dismissed. Interrelated with this contention is her allegation that as a consequence of the NLRC's finding of illegal dismissal, she is entitled to reinstatement with full backwages from the time of her illegal dismissal on April 4, 1988 up to the date of actual reinstatement in consonance with Art. 279 of the Labor Code. She argues that under said provision of law and the Constitution, her right to security of tenure should be upheld over and above the perceived "strained relations" between her and private respondents.

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* Sec. 1 of Rule 65 of the Rules of Court provides that "when any tribunal, board, or officer exercising judicial functions has acted without or in excess of its or his jurisdiction, or *with grave abuse of discretion* and there is no appeal, nor any plain, speedy and adequate remedy in the ordinary course of law, a person aggrieved thereby may file a verified petition in the proper court alleging the facts with certainty and praying that judgment be rendered annulling or modifying the proceedings, as the law requires, of such tribunal, board or officer."

On the other hand, public respondent maintains that the right of an unjustly dismissed employee to reinstatement and backwages under Article 279 of the Labor Code is not without exceptions under the prevailing jurisprudence. Thus, it is argued, reinstatement may not be ordered when it has become a legal impossibility or to spare both employer and employee from an atmosphere of antipathy and antagonism (*Galindez v. Rural Bank of Llanera, Inc*., 175 SCRA 132 [1989]; *Commercial Motors Corporation v. NLRC*, 192 SCRA 191 [1990]).

Indeed, an illegally dismissed employee's right to reinstatement is not absolute. The Court has a long line of decisions concerning non-reinstatement of illegally dismissed employees on various grounds (*Divine Word High School, et al. v. NLRC, et al*., 143 SCRA 346 [1986]; *Asiaworld Publishing House, Inc. v. Hon. Blas Ople*, 152 SCRA 219 [1987]; *Flores v. Nuestro*, 160 SCRA 568 [1988]; *Galindez v. Rural Bank of Llanera, Inc., supra; Century Textile Mills v. NLRC*, 161 SCRA 528 [1988]). One of these grounds is when there is a finding that the relationship between the parties has become so strained and ruptured as to preclude a harmonious working relationship (*Citytrust Finance Corp. v. NLRC, et al.*, G.R. No. 75740, January 15, 1988, 157 SCRA 87; *Commercial Motors Corp. v. NLRC, supra*). In the case at bar, however, the peculiar circumstances surrounding the dismissal of petitioner simply do not show such kind of strained relationship as to warrant the severance of the working relationship between the parties.

The order to grant petitioner separation pay instead of reinstatement is predicated on the following finding of "strained relations" by the Executive Labor Arbiter which was sustained by the NLRC:

"x x x. In the instant case, while the manner of dismissal was patently illegal, still complainant failed to refute the charges or lapses in her conduct as a teacher, *i.e.* disrespectful at time, acts of insubordination; non-improvement in her teaching methods, *etc*. (Affidavit of Sister Josefina Manuel, O.P., Annex '7' respondent's position paper, p. 7, Record). As aptly put by the Executive Labor Arbiter, '*reinstatement would bring the parties in close or frequent contact in work that may only serve to further aggravate and inflame*

the existing animosity and antagonism between them." (*Rollo*, p. 26; italics supplied)

As shown by the above-quoted portion of the decision of the NLRC, its conclusion on the "strained relations" between petitioner and private respondents was merely gathered from the latter's evidence on the former's less than ideal conduct and nothing more. There is no proof that such conduct actually caused animosity between her and private respondents. Besides, there is no clear showing that the perceived "strained relations" between the parties is of so serious a nature or of such a degree as to justify petitioner's dismissal.

"Strained relations," as amplified in *Employee's Association of the Philippine American Life Insurance Company v. NLRC*, 199 SCRA 628 [1991], must be of such a nature or degree as to preclude reinstatement. But, where the differences between the parties are neither personal nor physical, nor serious, then there is no reason why the illegally dismissed employee should not be reinstated rather than simply given separation pay and backwages. More so if the cause of the perceived "strained relations" is the filing of a complaint for illegal dismissal. As the Court held in *Globe-Mackay Cable and Radio Corporation v. NLRC*, 206 SCRA 701 [1992], citing *Anscor Transport and Terminals v. NLRC*, 190 SCRA 147 [1990]; *Sibal v. Notre Dame of Greater Manila*, 182 SCRA 538 [1990]:

> "Obviously, the principle of 'strained relations' cannot be applied indiscriminately. Otherwise, reinstatement can never be possible simply because some hostility is invariably engendered between the parties as a result of litigation. That is human nature.
>
> "Besides, no strained relations should arise from a valid and legal act of asserting one's right; otherwise an employee who shall assert his right could be easily separated from the service, by merely paying his separation pay on the pretext that his relationship with his employer had already become strained."

Whatever resentments had been harbored by petitioner upon her unceremonious dismissal after having been employed by St. Joseph School for more than sixteen (16) years is

understandable. Such resentments, however, would not suffice to deny her reemployment because to do so would render for naught her constitutional right to security of tenure and her corollary right to reinstatement under Article 279 of the Labor Code. Petitioner is, after all, a permanent teacher as she had rendered more than three years of satisfactory service (*St. Theresita's Academy v. NLRC*, 215 SCRA 181 [1992]). Given the fact that her employer is a religious institution, there can be no room for antagonism between the parties even after the termination of this litigation. Furthermore, this Court in *Tolentino v. NLRC*, (152 SCRA 717 [1987]) held:

"Security of tenure is a right of paramount value as recognized and guaranteed under our new constitution. 'The State shall afford full protection to labor,x x x and promote full employment and equality of employment opportunities for all. It shall guarantee the rights of all workers to x x x security of tenure x x x.' (Sec. 3, Art. XIII on Social Justice and Human Rights, 1987 Constitution of the Republic of the Philippines.) Such constitutional right should not be denied on mere speculation of any similar unclear and nebulous basis."

Closely related to the right to reinstatement is the employee's right to receive backwages which represent the compensation that an unjustly dismissed employee should have received had said employee not been dismissed. Petitioner claims that she is entitled to full backwages (computed from the date of dismissal until actual reinstatement) under Article 279 of the Labor Code. This contention, however, is not supported by prevailing jurisprudence which limits the award of backwages to three (3) years without qualification and deduction (*Maranaw Hotels and Resorts Corp. v. Court of Appeals*, 215 SCRA 501 [1992], citing *Sealand Service, Inc. v. NLRC*, 190 SCRA 347 [1990]).

While Republic Act No. 6715 amending Sec. 279, of the Labor Code grants full backwages to dismissed employees computed from the date of their illegal dismissal up to the date of actual reinstatement, the same cannot be applied in the case at bar. This is because petitioner was illegally dismissed on April 4, 1988, or before the effectivity of RA 6715 on March 21, 1989.

In *Lantion v. NLRC* (181 SCRA 513 [1990]), We held that nothing in RA 6715 provides for its retroactive application. Necessarily, awards of backwages in cases of illegal dismissal initiated before the effectivity of RA 6715 will have to be resolved by applying the three-year limit formulated in the case of *Mercury Drug Co., Inc. v. CIR* (56 SCRA 694 [1974]; see *Ferrer v. NLRC*, G.R. No. 100898, July 5, 1993).

Petitioner's claim for the thirteenth month pay is mandated by Presidential Decree No. 851 which has been modified by Memorandum Order No. 28 issued by President Corazon C. Aquino on August 13, 1986 so as to remove the salary ceiling of ₱1,000 of employees entitled. The "Revised Guidelines on the Implementation of the 13th Month Pay Law" which was issued on November 16, 1987 by then Labor Secretary Franklin M. Drilon, specifically singles out the case of private school teachers like the petitioner herein. The guidelines state:

"(c) *Private School Teachers*. — Private school teachers, including faculty members of universities and colleges, are entitled to the required 13th month pay, regardless of the number of months they teach or are paid within a year, if they have rendered service for at least one (1) month within a year."

Applying this guideline to the petitioner, she is entitled to a 13th month pay for 1988 as she served more than three months for that year. Although P.D. No. 851 was conceived "to further protect the level of real wages from the ravage of world-wide inflation," it would be unfair for the employer to grant petitioner 13th month pay for the years she had not rendered service. Thus, upon her reinstatement, payment of the 13th month pay should be in accordance with the aforequoted guideline and that set forth in *UST Faculty Union v. NLRC*, 190 SCRA 215 [1990], *i.e.*, it shall not be granted if St. Joseph School gives its equivalent or when the said employer shall be subjected to "double-burden."

As to the claims for moral damages and attorney's fees, there appears to be no sufficient evidence thereon as its denial was due to petitioner's failure to aver the same in her complaint although they were set out in her position paper. Nonetheless, the Solicitor General correctly supported petitioner's allegation

that rules of procedure should not be applied in a very rigid and technical sense in labor cases (*Rollo*, p. 90). This allegation is supported by Art. 221 of the Labor Code which provides that the rules of evidence prevailing in courts of law and equity are not controlling in labor proceedings.

Thus, instead of disregarding petitioner's claims for moral damages and attorney's fees, the Executive Labor Arbiter should have ascertained the facts alleged by petitioner in her position paper. The Labor Code is a social legislation intended primarily to promote and protect the rights of the laborers. Hence, labor officials should use all reasonable means to ascertain the facts in each case speedily and objectively without regard to technicalities of law or procedure, all in the interest of due process (211 SCRA 509 [1992], citing *Philippine Telegraph and Telephone Corporation v. NLRC*, 183 SCRA 451 [1990]). Thus, by their failure to rule on this particular claims, the Executive Labor Arbiter and NLRC committed grave abuse of discretion as they failed to avert further delay in the disposition of this case.

We cannot, however, subscribe to petitioner's assertion that the issue of damages can be ruled upon by this Court without the necessity of remanding the same to public respondent for determination (*Rollo*, pp. 101-102). While it is true that "sound practice seeks to accommodate the theory which avoids waste of time, effort and expense both to the parties and government, not to speak of the delay in the disposal of the case" (*De Guzman v. NLRC*, G.R. No. 90856, July 23, 1992 citing *Fernandez v. Garcia*, 92 Phil. 592 [1953), nevertheless, it is in the best interest of both parties that the determination of whether or not moral damages and/or attorney's fees should be awarded, be left to the Executive Labor Arbiter who is in a better position to rule on said issue.

WHEREFORE, the decision of public respondent National Labor Relations Commission is hereby *AFFIRMED* with modifications as follows: Private respondent is hereby ordered to reinstate petitioner Consuelo B. Kunting to her former or equivalent position without loss of seniority rights with payment of backwages for three (3) years and the 13th month pay for

1988. The Executive Labor Arbiter is likewise ordered to determine with dispatch petitioner's claims for moral damages and attorney's fees. No costs.

SO ORDERED.

Feliciano (Chairman), Melo, and *Vitug, JJ.*, concur.

Romero, J., no part since she's related to counsel for petitioner.

FIRST DIVISION

[G.R. No. 101435. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **BENJIE RAMILLA *y* AUSENTE *alias* "CHEM-CHEM,"** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; EQUIPOISE RULE; WHEN NOT AVAILABLE; CASE AT BAR. — The equipoise rule is applicable only where the evidence of the prosecution and the defense are so evenly balanced as to call for the tilting of the scales in favor of the accused who is presumed innocent under the Bill of Rights. The rule is not applicable here because there is no equipoise. The evidence of the prosecution is heavier than that of the defense and has overcome the constitutional presumption of innocence in favor of the appellant. The trial court found that the testimony of Egay Santos was more convincing than the testimonies of the defense witnesses. We agree that the motive ascribed to him for testifying against Ramilla is far too insubstantial to deserve belief. More importantly, we find from the swift flow of events that night that it was not possible for Egay to concoct a malicious and

false story for the purpose only of implicating the appellant. The stabbing took place suddenly at about nine o'clock that evening. Egay immediately reported the attack to William's father and together they rushed to the hospital where they found William already dead. Egay was interviewed there by the investigating policemen, to whom he reported William's involvement in the killing, and then went with them to his house where he was picked up at about one o'clock the following morning. The group then proceeded to police headquarters, and there Egay submitted to investigation and made his sworn statement at about four o'clock the same morning. There was no time for fabrication. Egay merely narrated what he had actually seen. Notably, his sworn statement conformed completely with his subsequent testimony at the trial, where he again recounted the killing of William Santos in the evening of September 1, 1989.

2. **ID.; ID.; ALIBI; NOT ADMISSIBLE IN CASE AT BAR. —** The evidence for the defense suffers from many major flaws that dissuaded the trial court from accepting it. The alibi was far from convincing because Ramilla's house, where he claimed to have been sleeping at the time of the stabbing, was only a few minutes walk from the scene of the crime. Its inherent weakness is further debilitated by its corroboration from Ramilla's own mother, which must also be taken with a grain of salt because of its suspect bias and truthfulness. No other witness supported the alibi.

3. **ID.; ID.; CREDIBILITY OF WITNESSES; NOT AFFECTED BY MINOR INCONSISTENCIES. —** These may be minor contradictions understandable in the narration by several witnesses of the same violent occurrence, but they are nevertheless useful and revealing in the comparison of such narrations with the testimonies of other witnesses for the other side. The trial judge obviously made such a comparison, and this comparison, added to his observation of their demeanor on the stand, persuaded him to believe Egay rather than Ramilla and his corroborating witnesses. We have said often enough that the assessment of the witnesses by the trial judge is received with considerable respect on appeal, if not indeed deemed conclusive on the reviewing court. The exception is where such assessment is tainted with arbitrariness, but we do not find that flaw here.

4. ID.; ID.; CONSPIRACY; PROVEN THROUGH THE CONCERTED ACTION OF THE GROUP. — The evidence shows that there was, indeed, a conspiracy, as the trial court held. Thus, as William and Egay approached, Ramilla and his companions whispered to each other, then Ramilla dragged William by the hair, and as two of the group restrained his arms, William was stabbed by one man with a knife handed to him by another and was kicked several times by Ramilla as their victim fell. There was community of purpose among the group. There was concert of action in the killing of William. Ramilla was clearly part of the conspiracy and so must be held equally guilty with the rest of his companions even if it was not he who actually wielded the knife that killed William.

5. CRIMINAL LAW; QUALIFYING CIRCUMSTANCES; ABUSE OF SUPERIOR STRENGTH ABSORBED IN TREACHERY. — We agree that treachery attended the crime and qualified it to murder because the victim was completely taken by surprise when the group attacked him and he was rendered unable to defend himself when they held his arms and stabbed and kicked him. Abuse of superior strength was correctly not appreciated as a separate aggravating circumstance because it is deemed absorbed in treachery.

6. ID.; ID.; EVIDENT PREMEDITATION; ELEMENTS; NOT ESTABLISHED IN CASE AT BAR. — But the prosecution failed to prove evident premeditation by Ramilla and his companions. Its essential elements are: (1) the time when the offender determined to commit the crime; (2) an act manifestly indicating that the culprit had clung to his determination; (3) a sufficient interval of time between the determination and the execution of the crime to allow him to reflect upon the consequences of his act and to allow his conscience to overcome the resolution of his will. These elements have not been established by the People. It has not been shown that Ramilla's group was lying in wait for William and Egay that night to carry out a plan to kill him as earlier agreed upon by them. The plan seems to have been made on the spur of the moment, clearly without premeditation as above defined.

7. ID.; ID.; VOLUNTARY SURRENDER; NOT APPLICABLE IN CASE AT BAR. — The fact that he did not resist but peacefully went with the policemen does not mean that he

voluntarily surrendered. he did not present himself voluntarily to the police.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Albon and Serrano Law Office for accused-appellant.

D E C I S I O N

CRUZ, *J.*:

The scene is familiar. A group of persons on a drinking spree. An unwary passerby. A drunken approach. A rumble. A stabbing. And one more human life is wasted on the street.

That is what the prosecution claimed to have happened on September 1, 1988, at about 9 o'clock in the evening, at Quirino street in Tondo.

As related by Edgar (Egay) Santos at the trial,[1] he and his friend William Santos were on their way home when they passed by a store where the herein appellant, Benjie Ramilla, and some companions were drinking. Upon seeing them, the group whispered among themselves and Ramilla then approached William. Ramilla grabbed William's hair and dragged him about five meters away. Demetrio Cabretino handed a knife to Roberto Castillo, who then started stabbing William as two others in the group held the helpless victim's arms. Ramilla kicked William several times before the stricken man fell to the ground.

Egay ran and reported the incident to William's father. They rushed to the hospital and learned that William was already dead. Cause of death per the subsequent autopsy report was massive hemorrhage due to the stab wound on his chest.[2]

From the hospital, Egay accompanied two policemen to Ramilla's house, where they were told by his mother that he

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[1] TSN, pp. 2-5, December 14, 1988.

[2] Exhibit E, Original Records, p. 84.

was not in. They nevertheless entered and found Ramilla in the kitchen hiding behind a table and gathering his belongings.[3] He was invited to police headquarters for questioning.

Ramilla alone was charged with the murder of William Santos because his companions had all disappeared. He testified on his own behalf and presented several witnesses for corroboration.

His defense was denial. He swore that on the night in question, he was asleep in his house, being under orders from his parents not to go out late at night and thus avoid trouble. He swore that he was not hiding when the policemen came to arrest him. He also said Egay used to be his friend but they were no longer on speaking terms.[4]

Adelaida Ramilla corroborated her son's alibi. She also said her son and Ramilla had a falling-out a week before and that she herself had sent Egay out of her house because he had eaten her food. There was an exchange of invectives between them then and Egay had left with the threat "*Tatandaan mo*." She suggested that the incident explained the motive for his testifying falsely against her son.[5]

An alleged eyewitness, Arturo Esplago, testified that it was a stranger who stabbed William to death. The killer came from an alley and immediately attacked William, who ran, shouting "*Away! Away!*" The wounded man was surrounded by people as a woman shouted "*Tama na, tama na, tigilan mo na*!" William then staggered toward the alley and fell before he reached the corner.[6]

Demetrio Mata swore he saw the same incident and also insisted that the killer was a stranger who came from the alley and then fled after stabbing William. There was a mob that surrounded

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[3] TSN, pp. 6-7, December 14, 1988.

[4] TSN, pp. 4, 6, June 6, 1991.

[5] TSN, pp. 14-16, May 30, 1989.

[6] TSN, pp. 3-4, May 30, 1989.

William before he ran toward the alley and fell when he reached the corner as he clutched his stomach.[7]

In his decision dated April 8, 1991, Judge Procoro J. Donato of the Regional Trial Court of Manila found Benjie Ramilla guilty of the murder of William Santos and sentenced him to suffer the penalty of *reclusion perpetua*, to pay the victim's heirs ₱50,000.00 as civil indemnity and ₱10,000.00 as moral damages.[8]

The decision is now faulted by the defense for not applying the equipoise rule and for giving credence to the testimony of the lone eyewitness for the prosecution as against the alibi of Ramilla and the testimonies of his own witnesses.

The equipoise rule is applicable only where the evidence of the prosecution and the defense are so evenly balanced as to call for the tilting of the scales in favor of the accused who is presumed innocent under the Bill of Rights. The rule is not applicable here because there is no equipoise. The evidence of the prosecution is heavier than that of the defense and has overcome the constitutional presumption of innocence in favor of the appellant.

The trial court found that the testimony of Egay Santos was more convincing than the testimonies of the defense witnesses. We agree that the motive ascribed to him for testifying against Ramilla is far too insubstantial to deserve belief. More importantly, we find from the swift flow of events that night that it was not possible for Egay to concoct a malicious and false story for the purpose only of implicating the appellant.

The stabbing took place suddenly at about nine o'clock that evening. Egay immediately reported the attack to William's father and together they rushed to the hospital where they found William already dead. Egay was interviewed there by the investigating policemen, to whom he reported William's involvement in the

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[7] TSN, pp. 5-6, May 31, 1989.

[8] Original Records, pp. 156-173.

killing, and then went with them to his house where he was picked up at about one o'clock the following morning. The group then proceeded to police headquarters, and there Egay submitted to investigation and made his sworn statement at about four o'clock the same morning. There was no time for fabrication. Egay merely narrated what he had actually seen. Notably, his sworn statement[9] conformed completely with his subsequent testimony at the trial, where he again recounted the killing of William Santos in the evening of September 1, 1989.

By contrast, the evidence for the defense suffers from many major flaws that dissuaded the trial court from accepting it. The alibi was far from convincing because Ramilla's house, where he claimed to have been sleeping at the time of the stabbing, was only a few minutes walk from the scene of the crime. Its inherent weakness is further debilitated by its corroboration from Ramilla's own mother, which must also be taken with a grain of salt because of its suspect bias and truthfulness. No other witness supported the alibi.

The testimonies of the alleged eyewitnesses, who claimed that the killer was a mysterious stranger, are not reliable either. The Court notes *inter alia* that whereas Esplago maintained that William fell in front of Mata's house, about three houses away from the corner of the alley,[10] Mata himself was sure that William fell at the corner.[11] Esplago said that when William was stabbed, he started running and shouted "*Away! Away*!" as the people milled around him. We find this reaction rather strange as a person in his condition would have said something more relevant like "*Tulungan ninyo ako! Sinaksak ako*!" or some such exclamations expressing his desperation. Instead, he acted like a town-crier announcing an objective news item affecting some distant and unknown person. We also wonder why, as narrated by Mata, William was clutching his stomach as he

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[9] Original Records, p. 146.

[10] TSN, p. 4, May 30, 1989.

[11] TSN, p. 6, May 31, 1989.

ran when, according to the autopsy report, he had been fatally stabbed in the chest.

These may be minor contradictions understandable in the narration by several witnesses of the same violent occurrence, but they are nevertheless useful and revealing in the comparison of such narrations with the testimonies of other witnesses for the other side. The trial judge obviously made such a comparison, and this comparison, added to his observation of their demeanor on the stand, persuaded him to believe Egay rather than Ramilla and his corroborating witnesses. We have said often enough that the assessment of the witnesses by the trial judge is received with considerable respect on appeal, if not indeed deemed conclusive on the reviewing court. The exception is where such assessment is tainted with arbitrariness, but we do not find that flaw here.

The evidence shows that there was, indeed, a conspiracy, as the trial court held. Thus, as William and Egay approached, Ramilla and his companions whispered to each other, then Ramilla dragged William by the hair, and as two of the group restrained his arms, William was stabbed by one man with a knife handed to him by another and was kicked several times by Ramilla as their victim fell. There was community of purpose among the group. There was concert of action in the killing of William. Ramilla was clearly part of the conspiracy and so must be held equally guilty with the rest of his companions even if it was not he who actually wielded the knife that killed William.

We agree that treachery attended the crime and qualified it to murder because the victim was completely taken by surprise when the group attacked him and he was rendered unable to defend himself when they held his arms and stabbed and kicked him. Abuse of superior strength was correctly not appreciated as a separate aggravating circumstance because it is deemed absorbed in treachery.[12]

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[12] *People v. Centeno*, 172 SCRA 607; *People v. Manzanares*, 177 SCRA 427.

But the prosecution failed to prove evident premeditation by Ramilla and his companions. Its essential elements are: (1) the time when the offender determined to commit the crime; (2) an act manifestly indicating that the culprit had clung to his determination; (3) a sufficient interval of time between the determination and the execution of the crime to allow him to reflect upon the consequences of his act and to allow his conscience to overcome the resolution of his will.[13] These elements have not been established by the People. It has not been shown that Ramilla's group was lying in wait for William and Egay that night to carry out a plan to kill him as earlier agreed upon by them. The plan seems to have been made on the spur of the moment, clearly without premeditation as above defined.

For this reason, we must correct the statement in the decision that "there is no need to discuss whether this qualifying circumstance is present because conspiracy has already been shown and conspiracy denotes premeditation." This generalization is not applicable to the case at bar because, as Chief Justice Ramon C. Aquino explained in his book:[14]

> Under normal conditions, where conspiracy is directly established, with proof of the attendant deliberation and selection of the method, time and means of executing the crime, the existence of evident premeditation can be taken for granted. But in the case of implied conspiracy, evident premeditation may not be appreciated, in the absence of proof as to how and when the plan to kill the victim was hatched or what time elapsed before it was carried out, so that it cannot be determined if the accused had "sufficient time between its inception and its fulfillment dispassionately to consider and accept the consequences." There should be a showing that the accused had the opportunity for reflection and persisted in effectuating his criminal design.

The invocation of voluntary surrender as a mitigating circumstance is not acceptable. Ramilla did not surrender. The

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[13] *People v. Diwa*, 23 SCRA 468; *People v. Clamor*, 198 SCRA 642; *People v. Nabayra*, 203 SCRA 75.

[14] Aquino, *The Revised Penal Code*, Vol. 1, 1976 Ed., pp. 338-339.

police went to his house, where he was found crouching behind a table in the kitchen and was invited to the police station. The fact that he did not resist but peacefully went with the policemen does not mean that he voluntarily surrendered. He did not present himself voluntarily to the police[15] and neither did he ask them to fetch him at his house so he could surrender.[16] He was found skulking in the kitchen, after his mother had denied his presence in the house, and was apparently gathering his belongings at that time, possibly for flight.

William Santos was only 21 years old when he was killed. Benjie Ramilla is now 24 years old. Two young men have been doomed by this mindless murder, which has sent one to an untimely death and the other to a life behind bars.

And so another murder has been added to the long list of crimes committed in Tondo, hotbed of hoodlums and arena of thuggery. Lost in its notoriety are the quiet good works of the great majority of its inhabitants, who pursue the even tenor of their lives with goodwill toward each other and respect for the law, unflappable resilience in the face of misfortune, and an abiding faith in the providence of the Almighty.

WHEREFORE, the appeal is *DISMISSED* and the challenged decision is AFFIRMED, with costs against the appellant.

SO ORDERED.

Davide, Jr., Bellosillo, and *Quiason, JJ.*, concur.

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[15] *People v. Adlawan*, 83 Phil. 194; *People v. Siojo*, 61 Phil. 307.

[16] *People v. Canoy*, 90 Phil. 633.

EN BANC

[G.R. No. 103142. November 8, 1993]

MANUELITO A. ISABELO, JR., *petitioner, vs.* **PERPETUAL HELP COLLEGE OF RIZAL, INC., and DEPARTMENT OF EDUCATION, CULTURE AND SPORTS,** *respondents.*

SYLLABUS

1. POLITICAL LAW; ACADEMIC FREEDOM; CONSTRUED. — The rule in this jurisdiction since *Garcia vs. Loyola School of Theology*, reiterated in *Tangonan vs. Paño*, has been to uphold the rule that admission to an institution of higher learning is discretionary upon the school and that such an admission is a mere privilege, rather than a right, on the part of the student. In *Ateneo de Manila University vs. Capulong* this Court cited with approval the formulation made by Justice Felix Frankfurter of the essential freedoms subsumed in the term "academic freedom" encompassing not only "the freedom to determine x x x on academic grounds who may teach, what may be taught (and) how it shall be taught," but likewise "who may be admitted to study." We have thus sanctioned its valid invocation by a school in rejecting students who are academically delinquent, or a laywoman seeking admission to a seminary, or students violating "School Rules on Discipline."

2. ID.; ID.; A PRIVILEGE THAT ASSUMES A CORRELATIVE DUTY TO EXERCISE IT RESPONSIBLY. — Like any other right, however, academic freedom has never been meant to be an unabridged license. It is a privilege that assumes a correlative duty to exercise it responsibly. An equally telling precept is a long recognized mandate, so well expressed in Article 19 of the Civil Code, that every "person must, in the exercise of his rights and in the performance of his duties, act with justice, give everyone his due, and observe honesty and good faith."

3. ID.; ID.; ENROLLMENT OF A STUDENT, NOT AN ORDINARY CONTRACT BUT ONE IMBUED WITH PUBLIC INTEREST. — Another observation. In *Non vs. Dames II*, we have already abandoned our earlier ruling in *Alcuaz vs. PSBA* (that enrollment of a student is a semester-

to-semester contract, and that the school may not be compelled to renew the contract) by recognizing instead the right of a student to be enrolled for the entire period required in order to complete his course. We have also stressed that the contract between the school and the student, imbued, as it is, with public interest, is not an ordinary contract.

4. REMEDIAL LAW; SUPREME COURT; NOT A TRIER OF FACTS; CASE AT BAR. — There remains an administrative determination, to be yet resolved with finality by the DECS, *i.e.*, whether the petitioner really deserves to be in the senior class, as he claims, or has a number of school deficiencies to overcome, as the respondent school counters. Hence, the issuance of a writ of *mandamus* at this time would not be warranted. We have repeatedly said that for a writ of *mandamus* to issue, a petitioner should, on the one hand, have a clear legal right to the thing demanded, and there should be, upon the other hand, an imperative duty of a respondent to perform the act sought to be mandated. This Court, not being a trier of facts, must remand this matter to the DECS for its own evaluation and final determination.

APPEARANCES OF COUNSEL

George I. Arboleda for petitioner.

Evelyn Lucero Gutierrez for Perpetual Help College of Rizal, Inc.

D E C I S I O N

VITUG, *J.*:

A student, Manuelito Isabelo, Jr., filed the instant petition for *mandamus* with the following prayer:

"WHEREFORE, petitioner prays for a writ of *mandamus* addressed to the Department of Education, Culture and Sports (DECS) to implement its order to re-admit him as a senior graduating student of respondent Perpetual Help College of Rizal (PHCR), and for the latter to re-admit him as a senior graduating student for March, 1992.

He prays for a temporary mandatory restraining order to compel his re-admission as a senior graduating student for March 1992 while his petition is pending resolution."[1]

We granted, in our resolution of 23 June 1992, the temporary mandatory relief prayed for.

Manuelito was enrolled at the Perpetual Help College of Rizal ("PHCR") for the degree of Bachelor of Science in Criminology. He was elected Public Relations Officer ("PRO") of the Supreme Student Council some time in August 1990. Until September 1991, he was the hold-over PRO and the acting Secretary of the student council. In this capacity, he was invited to attend a meeting with PHCR officials on 08 May 1991. Prior to said meeting, he was asked by the Vice President for Academic Affairs, Dr. Grace De Leon, to sign Resolution No. 105 that would implement, among other things, a 20% tuition fee increase for the school year 1991-1992.[2] Manuelito refused to sign the resolution; instead, he asked for a 2-week period to take the matter up with his fellow officers.[3]

During the scheduled 08 May 1991 meeting, the student council presented to PHCR a 9-point proposal. With an assurance that the request of the student council would be considered favorably, the petitioner finally signed Resolution No. 105.

On 06 August 1991, PHCR announced that its application for increase in tuition fees and other school charges for SY 1991-1992 for the three levels, namely, the Grade School, High School and College, was approved by the Department of Education, Culture, and Sports ("DECS").[4] The student council filed with the DECS a motion for reconsideration. Acting on the students' motion, the DECS, in its letter of 28 August 1991 addressed to the President of PHCR, advised that the "collection

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[1] *Rollo,* 18.

[2] *Rollo,* 174.

[3] *Ibid*.

[4] Annex "H", Petition, *Rollo,* 36.

of the increase (should) be held in abeyance pending the resolution of (the) matter."[5]

In the meantime, the CMT commandant furnished PHCR a memorandum, dated 20 August 1991, containing a list of PHCR CMT students (Manuelito included) who were dropped during first semester of school year 1991-1992, with a recommendation that appropriate action be taken on said students.[6]

On 04 September 1991, the school administration circulated a memorandum [7] to the effect that Manuelito had been dropped from PHCR's list of students. On even date, a letter[8] from Registrar Necy Buen was received by Manuelito, informing him that PHCR was voiding his enrollment for the first semester of 1991-1992 because of the following deficiencies:

"* Non compliance of CMT requirement as per DECS Order No. 9, S. 1990 and DECS Memorandum No. 80, S. 1991 and PHCR Internal Memo. No. 891-007;.

* No NCEE during the admission in the BS Criminology course;

* Official Admission Credential not yet submitted;

* Void declaration of CMT subjects (MS 11, 12, 21 and 22) which are docketed in the registration card."

Beginning 05 September 1991, Manuelito was no longer allowed to enter the school premises. He forthwith sent a letter to the DECS informing the latter at the matter.

On 15 October 1991, Director Rosas of the DECS issued an order[9] addressed to the President of PHCR, stating, *inter alia*, that:

"*** concerning the dropping from the rolls without due process of the students-petitioners ***, Manuelito Isabelo, Jr., ***, please

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[5] Annex "K", *Ibid.*, *Ibid.*, 48.

[6] Annex "C", Comment, *Ibid.*, 92-93.

[7] Annex "L", Petition, *Ibid.*, 49.

[8] Annex "D", Comment, *Ibid.*, 94.

[9] Annex "Q", Petition, *Ibid.*, 54.

be advised that pending resolution thereof, the propriety of allowing the students to continue attending their classes to protect their interest as well as that of the school, is hereby enjoined.

In this connection, it is hereby directed that the above-named students be readmitted to classes and be allowed to take all examinations that they have missed pending final resolution of this case/issue."

PHCR did not comply with the directive.

Hence, this recourse. The petitioner questions PHCR's act of voiding his enrollment.

While this Court, on 23 June 1992, issued a preliminary mandatory injunction ordering and directing PCHR to re-admit the petitioner for enrollment,[10] the same was interdicted by PHCR's motion for clarification[11] that indeed would require factual assessments that have yet to be conclusively passed upon administratively.

The petitioner claims that the real reason why PHCR has voided his enrollment as a senior graduating student had been because of his active participation in opposing PHCR's application for tuition fee increase with the DECS.

The private respondent, on the other hand, invokes "academic freedom" in dropping the petitioner from its roll of students. It argues that the petitioner has only been allowed to enroll "conditionally" during the first semester of school year 1991-92 pending the completion of his remedial classes in CMT, in which he has failed.

The rule in this jurisdiction since *Garcia vs. Loyola School of Theology*,[12] reiterated in *Tangonan vs. Paño*,[13] has been to uphold the rule that admission to an institution of higher learning

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[10] *Rollo*, 166-167.

[11] *Ibid*., 200-202.

[12] 68 SCRA 277 [1975].

[13] 137 SCRA 245 [1985].

is discretionary upon the school and that such an admission is a mere privilege, rather than a right, on the part of the student. In *Ateneo de Manila University vs. Capulong*[14] this Court cited with approval the formulation made by Justice Felix Frankfurter of the essential freedoms subsumed in the term "academic freedom"[15] encompassing not only "the freedom to determine x x x on academic grounds who may teach, what may be taught (and) how it shall be taught," but likewise "who may be admitted to study." We have thus sanctioned its valid invocation by a school in rejecting students who are academically delinquent,[16] or a laywoman seeking admission to a seminary,[17] or students violating "School Rules on Discipline."[18]

Like any other right, however, academic freedom has never been meant to be an unabridged license. It is a privilege that assumes a correlative duty to exercise it responsibly. An equally telling precept is a long recognized mandate, so well expressed in Article 19 of the Civil Code, that every "person must, in the exercise of his rights and in the performance of his duties, act with justice, give everyone his due, and observe honesty and good faith."

Another observation. In *Non vs. Dames II*, [19] we have already abandoned our earlier ruling in *Alcuaz vs. PSBA*[20] (that enrollment of a student is a semester-to-semester contract, and that the school may not be compelled to renew the contract) by recognizing instead the right of a student to be enrolled for the entire period required in order to complete his course. We have also stressed

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[14] G.R. No. 99327, 27 May 1993, penned by Mme. Justice Flerida Ruth P. Romero.

[15] *Sweezy v. New Hampshire*, 354 U.S. 234, 263 [1957].

[16] Tangonan, *supra*.

[17] Loyola School of Theology, *supra*.

[18] Ateneo De Manila University, *supra*.

[19] 185 SCRA 523 [1990].

[20] 161 SCRA 7 [1988].

that the contract between the school and the student, imbued, as it is, with public interest, is not an ordinary contract.[21]

In this instance, it would seem that the principal reason forwarded by the private respondent in dropping the petitioner from its roll of students was his failure to complete some remaining units in the CMT course. He was unceremoniously dropped from the roll when the semester was about to end some time in October. He took a special training during the semestral break (which was the most reasonable time to comply), and he was able to pass it, but PHCR still refused to give him that accreditation, insisting that he by then had ceased to be a student of PHCR.

While we ordinarily would not delve into the exercise of sound judgment, we will not, however, hesitate to act when we perceive taints of arbitrariness in the process. The punishment of expulsion appears to us rather disproportionate to his having had some unit deficiencies in his CMT course. Indeed, the DECS itself is conceding to the grant of the instant petition. The circumstances lend truth to the petitioner's claim that the private respondent has strongly been influenced by his active participation in questioning PHCR's application for tuition fee increase.

There remains, however, an administrative determination, to be yet resolved with finality by the DECS, *i.e.*, whether the petitioner really deserves to be in the senior class, as he claims, or has a number of school deficiencies to overcome, as the respondent school counters. Hence, the issuance of a writ of *mandamus* at this time would not be warranted. We have repeatedly said that for a writ of *mandamus* to issue, a petitioner should, on the one hand, have a clear legal right to the thing demanded, and there should be, upon the other hand, an imperative duty of a respondent to perform the act sought to be mandated.[22]

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[21] *Ibid*.; see also *Philippine School of Business Administration vs. Court of Appeals,* 205 SCRA 729,733 [1992].

[22] *Canonizado vs. Benitez*, 127 SCRA 610 [1984]; *Taboy vs. Court of Appeals*, 105 SCRA 758 [1981]; *Province of Pangasinan vs. Reparations Commission*, 80 SCRA 376 [1977]; *Ocampo vs. Subido*, 72 SCRA 443 [1976].

This Court, not being a trier of facts,[23] must remand this matter to the DECS for its own evaluation and final determination.

WHEREFORE, this case is hereby *REMANDED* to the Department of Education, Culture and Sports for its expeditious determination on the unresolved administrative issues raised in the instant petition. No costs.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, and *Puno, JJ.,* concur.

SECOND DIVISION

[G.R. No. 106525. November 8, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **ROBERTO CLAPANO *y* SALVADOR,** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; FINDING OF THE TRIAL COURT, GENERALLY NOT DISTURBED ON APPEAL. — The determination of that credibility is the domain of the trial court. In our criminal jurisprudence, the rule is that when the issue is credibility of witnesses, appellate courts will generally not disturb the finding of the trial court, considering that the latter is in a better position to decide the question, having heard the

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[23] *Soriano III vs. Yuzon,* 164 SCRA 226 [1988]; *Blue Bar Coconut Phil. vs. Tantuico, Jr.,* 163 SCRA 716 [1988]; *Korean Airlines Co., Ltd. vs. CA,* 154 SCRA 211 [1987].

witnesses themselves and observed their deportment and the manner of testifying during the trial.

2. ID.; ID.; ID.; ID.; CASE AT BAR, NOT AN EXCEPTION. — While this rule admits of certain exceptions, as when the trial court has plainly overlooked certain facts of substance and value which, if considered, might affect the result of the case, the findings of the court *a quo* in the present case cannot qualify as such an exception, and appellant has miserably failed to give any reason why it should be considered as such.

3. ID.; ID.; TESTIMONIES OF OTHER POLICE OFFICERS WHO WATCHED THE TRANSACTION SURREPTITIOUSLY, NOT HEARSAY. — The defense would consequently like to subvert the testimonies of the other police officers, saying that they were quite far from the place where Clapano and Sistona consummated the illicit sale. In *People vs. Collantes*, where the appellant contended that the testimonies of the police officers were hearsay, this Court held that said testimonies of the two policemen-companions were not hearsay even though they had to necessarily watch the buy-bust operation from a distance, otherwise their close proximity to the operation would have given it away. They were there merely to watch the transaction surreptitiously, to act furtively, and to close in only when the opportunity arose.

4. ID.; ID.; BURDEN OF PROOF AND PRESUMPTIONS; REGULAR PERFORMANCE OF OFFICIAL DUTY, PRESUMED IN THE ABSENCE OF IMPROPER MOTIVE. — Appellant likewise insisted that he was just a victim of a frame-up but he, however, failed to present any evidence to substantiate his claim. In a number of cases, we held that such a defense which is often imputed to the police officers requires stronger proof because of the presumption that the public officers acted in the regular performance of their official duties. Nothing in the records suggests that the testimonies of the NARCOM agents were motivated by any reason other than their mission to curb drug abuse. As a matter of fact, appellant himself even testified that he does not know of any reason why the police would maliciously concoct a case against him. No improper motive has been imputed to the arresting officers. They are, therefore, presumed to have regularly performed their official duty in the absence of any evidence to the contrary.

5. ID.; ID.; NON-PRESENTATION OF INFORMER AS WITNESS, NOT FATAL. — That non-presentation of the informer as a witness is not fatal. The determination of who should be utilized as prosecution witnesses is addressed to the sound discretion of the prosecutor handling the case. As the prosecutor had other witnesses who could sufficiently prove the criminal operations of appellant, he could dispense with the informer's evidence which would have been merely corroborative.

6. ID.; ID.; ABSENCE OF MARKED MONEY DOES NOT CREATE A HIATUS IN THE PROSECUTION'S EVIDENCE. — The fact that the money given to appellant was not presented in court does not militate against the prosecution's case where there is an unrebutted testimony of an eyewitness who saw the actual handling over of the *shabu* in exchange for the money. This Court has consistently ruled that the absence of the marked money does not create a hiatus in the prosecution's evidence.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Public Attorney's Office for accused-appellant.

D E C I S I O N

REGALADO, *J.*:

Accused-appellant Roberto Clapano seeks the review and reversal of his conviction by the Regional Trial Court, Branch 6, at Iligan City in Criminal Case No. 06-3766 for a violation of Section 15 of Article III, Republic Act No. 6425 (Dangerous Drugs Act of 1972, as amended). The lower court sentenced him to suffer the penalty of life imprisonment and to pay a fine of ₱20,000.00, without subsidiary imprisonment in case of insolvency.[1]

As the Court has always done, appellant shall be given the full measure of justice in passing upon the issue of his guilt or

[1] Original Record, 63; per Judge Valerio M. Salazar.

innocence, with a detailed explanation of how we arrived at our conclusions drawn from a thorough review and evaluation of the evidence on record.

Appellant's present predicament was judicially initiated by an information alleging that on or about November 14, 1991, in the City of Iligan, he "did then and there willfully, unlawfully and feloniously sell, transport and deliver and have in his possession one (1) aluminum foil containing *Methamphetamine Hydrochloride* or "*Shabu*" without being authorized by law."[2] On a plea of not guilty when arraigned on December 4, 1991,[3] he was thereafter tried in the court below with the assistance of counsel in all stages.

The factual backdrop of this case, as found by the trial court, started with police intelligence accounts which had pinpointed Cocograve Area along Cabili Avenue in Iligan City as fast becoming the sanctuary of prohibited drug peddlers. It was ascertained to be the place where drug pushers were actively peddling their illegal merchandise to drug users. This alarming information prompted the 9th Narcotics Regional Field Unit stationed in the city to conduct a surveillance of drug pushers in preparation for buy-bust operations with the ultimate purpose of curbing drug addiction and apprehending drug pushers.[4]

The PNP NARCOM Field District Unit of Iligan City and Lanao del Norte was headed by SPO3 Renato Salazar, assisted by SPO1 Julieto Vega. These police officers had recruited civilian agents and informers to help them in a continuing campaign to identify drug pushers. On November 14, 1991, the NARCOM Unit received information from its confidential agent, Arnel Sistona, that there was a drug pusher selling *shabu* who frequented Keno's Restaurant on Cabili Avenue,[5] one of the main thoroughfares within the city proper. SPO1 Vega and Sistona

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[2] *Ibid.,* 1.

[3] *Ibid.,* 14.

[4] *Ibid.,* 3.

[5] Brief for the Plaintiff-Appellee, 2; *Rollo,* 76.

immediately went to that place to determine the *modus operandi* of the pusher.

When Vega and Sistona arrived at Keno's Restaurant, Vega ordered Sistona to buy *shabu*. Sistona entered the restaurant leaving Vega outside to monitor and observe developments. At about 11:00 A.M., Sistona came out of the restaurant and, together with Vega, returned to the NARCOM office. Sistona had informed Vega that he could buy *shabu* at 2:00 o'clock that afternoon from appellant Roberto Clapano.

A team was organized, composed of Vega, SPO1 Generales, SPO3 Englatierra, SPO3 Duhaylungsod, and civilian agents Celso Ponce and Sistona. While the team was being given their final instructions on the conduct of the buy-bust operations, SPO3 Salazar directed Duhaylungsod to secure the amount of ₱300.00. The peso bills were photocopied and subsequently authenticated by Fiscal Norma Siao of Iligan City Fiscal's Office.[6]

At about 1:40 P.M., upon arrival at Keno's Restaurant, Sistona entered the place and Vega positioned himself about five meters from the door thereof. Duhaylungsod and the other members of the team stayed at a place across Cabili Avenue. Shortly thereafter, Sistona came out of the restaurant with Clapano.[7] While Sistona and Clapano were talking, Vega watched them and later saw the poseur-buyer giving the money to Clapano. The latter then went inside the restaurant and, after a few minutes, he returned and handed to Sistona an aluminum foil.[8]

Sistona thereafter walked away and surreptitiously slipped the aluminum foil to Vega who immediately examined the contents. Vega then gave the pre-arranged signal to his companions who rushed towards appellant and identified themselves. Appellant was arrested and brought to the NARCOM office for investigation.[9]

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[6] TSN, February 14, 1992, 5-7, 73-75; Exhibit "E".

[7] TSN, January 14, 1992, 36-39.

[8] *Ibid., id.,* 43-45.

[9] *Ibid., id.,* 45-47.

The aluminum foil with its contents was forwarded to the local office of the National Bureau of Investigation, Region 10, for laboratory examination. On December 5, 1991, forensic chemist Bernabe P. Arenga submitted the following report:

> "FINDINGS:
>
> Weight of specimen . . . . . 0.1140 Gram.
>
> Laboratory examinations conducted on the above-mentioned specimen gave POSITIVE RESULTS for *METHAMPHETAMINE HYDROCHLORIDE*. x x x
>
> REMARKS: *METHAMPHETAMINE HYDROCHLORIDE* is locally known as '*SHABU*' which is included in the list of Regulated Drugs."[10]

Chemist Arenga explained in his testimony at the trial his findings and the method used to determine the composition of the specimen.

Appellant, in his defense, claims that at about 2:00 P.M. of November 14, 1991, he was outside Keno's Restaurant talking to a friend, Michael Yaoyao, when he was suddenly arrested by the NARCOM agents.[11] He denied that he sold *shabu* to Sistona. He likewise accused the NARCOM agents of manhandling him during the investigation. Clapano further alleged that his arrest and the *shabu* allegedly sold by him to Sistona was a "mere frame-up for unknown reasons." Insinuating a possible motive, according to the appellant there was an incident wherein he declined to testify against a drug user after being requested by the NARCOM agents.[12]

The defense also presented one Annette Madrazo who testified that while she was on her way to a friend, she saw appellant being surrounded by four persons and she heard that the latter was being arrested for drug pushing and for using marijuana.

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[10] Exhibit C; Original Record, 36.

[11] Brief for the Accused-Appellant, 4-5; *Rollo*, 47-48.

[12] TSN, April 1, 1992, 4-5, 16.

She also testified that she did not see anything being taken from appellant although his pockets were searched and turned inside out.[13]

After trial on the merits, the lower court held in its decision that "the prosecution was able to establish by clear and convincing evidence the selling transaction between the accused and Arnel Sistona involving the '*shabu*' through the testimonies of SPO1 Vega and SPO3 Duhaylungsod who are with the NARCOM District Field Unit, Iligan City."[14] Hence, in its judgment promulgated on July 2, 1992, appellant was found guilty beyond reasonable doubt of the crime charged and sentenced as explained at the outset.

The basic assignment of error raised by the appellant in his brief is whether or not the prosecution was able to establish his guilt. A thorough and conscientious examination of the testimonial and documentary evidence presented in this case engenders moral certainty that they constitute that degree of proof which produces conviction in an unprejudiced mind.

To begin with, the errors imputed by appellant refer to the credibility of witnesses and, in a long line of cases,[15] we have held that the determination of that credibility is the domain of the trial court. In our criminal jurisprudence, the rule is that when the issue is credibility of witnesses, appellate courts will generally not disturb the finding of the trial court, considering that the latter is in a better position to decide the question, having heard the witnesses themselves and observed their deportment and the manner of testifying during the trial.[16]

While this rule admits of certain exceptions, as when the trial court has plainly overlooked certain facts of substance

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[13] *Ibid*., February 26, 1992, 4.

[14] Original Record, 61.

[15] *People vs. Tejada*, 170 SCRA 497 (1989); *People vs. Viloria, Jr.*, 191 SCRA 777 (1990); *People vs. Gerones*, 193 SCRA 263 (1991); *People vs. Linsangan*, 195 SCRA 784 (1991).

[16] *People vs. Pascual*, 208 SCRA 393 (1992).

and value which, if considered, might affect the result of the case,[17] the findings of the court *a quo* in the present case cannot qualify as such an exception, and appellant has miserably failed to give any reason why it should be considered as such. Two important considerations bolster the correctness of the findings of the trial court.

Firstly, the testimonies of the arresting officers are positive in character while that of appellant is negative. Thus, the former's testimonies necessarily prevail over the latter. Secondly, no improper motive has been imputed to the arresting officers. They are, therefore, presumed to have regularly performed their official duty in the absence of any evidence to the contrary. The fact that Clapano sold the *shabu* and received consideration therefor in a buy-bust operation was duly proved by the testimony of SPO3 Julieto Vega and amply corroborated by the other members of the NARCOM team.

The defense would consequently like to subvert the testimonies of the other police officers, saying that they were quite far from the place where Clapano and Sistona consummated the illicit sale. In *People vs. Collantes*,[18] where the appellant contended that the testimonies of the police officers were hearsay, this Court held that said testimonies of the two policemen-companions were not hearsay even though they had to necessarily watch the buy-bust operation from a distance, otherwise their close proximity to the operation would have given it away. They were there merely to watch the transaction surreptitiously, to act furtively, and to close in only when the opportunity arose.

The narration of the incident by the prosecution witnesses is far more worthy of belief coming as it does from law enforcers who are presumed to have regularly performed their duty. In fact, the testimony of defense witness Annette Madrazo did not contradict the version of the police. When Madrazo said that "nothing was recovered from the accused during the arrest," it

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[17] *People vs. Arenas, et al.*, 198 SCRA 172 (1991).

[18] 208 SCRA 853 (1992).

corroborated the testimony of Vega that after appellant received the marked money from Sistona, Clapano went inside the restaurant and reappeared after a while, which fact was evidently the reason why the marked money was not with appellant when he was arrested thereafter.

Appellant likewise insisted that he was just a victim of a frame-up but he, however, failed to present any evidence to substantiate his claim. In a number of cases, we held that such a defense which is often imputed to the police officers requires stronger proof because of the presumption that the public officers acted in the regular performance of their official duties.[19] Nothing in the records suggests that the testimonies of the NARCOM agents were motivated by any reason other than their mission to curb drug abuse. As a matter of fact, appellant himself even testified that he does not know of any reason why the police would maliciously concoct a case against him.[20]

During the trial of the case, appellant claimed that he was just talking to a certain Michael Yaoyao when he was arrested by the NARCOM agents. It is significant, though, that the defense failed to present Yaoyao who could have easily corroborated the story of Clapano. Neither was such non-presentation of Yaoyao duly explained nor accounted for. Ineluctably, therefore, such defense of an alleged frame-up appears to be an afterthought conceived in desperation.

Appellant also claims that the failure to present the poseur-buyer/informer and the marked money is a crucial debacle to the prosecution's case. That non-presentation of the informer as a witness is not fatal. The determination of who should be utilized as prosecution witnesses is addressed to the sound discretion of the prosecutor handling the case. As the prosecutor had other witnesses who could sufficiently prove the criminal operations of appellant, he could dispense with the informer's

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[19] *People vs. Macuto,* 176 SCRA 762 (1989); *People vs. Blas*, 209 SCRA 339 (1992); *People vs. Liquen*, 212 SCRA 288 (1992).

[20] TSN, April 1, 1992, 15.

evidence which would have been merely corroborative.[21] The testimony of Sistona is not indispensable in view of the testimony of two prosecution witnesses who were members of the narcotics team which conducted the buy-bust operation. The testimony of SPO3 Vega is sufficient since he saw the whole incident a short distance from the side of the doorway of Keno's Restaurant, approximately five meters away from where Sistona and appellant consummated the sale.

The fact that the money given to appellant was not presented in court does not militate against the prosecution's case where there is an unrebutted testimony of an eyewitness who saw the actual handling over of the *shabu* in exchange for the money. This Court has consistently ruled that the absence of the marked money does not create a hiatus in the prosecution's evidence.[22]

Finally, the appellant argues that his right against unreasonable search and seizure has been violated by the NARCOM agents. We need merely quote the refutation submitted by the Solicitor General on this score:

"The contention lacks merit for the seizure of the aluminum foil containing *shabu* through entrapment is sanctioned by law.

"There is entrapment when a police officer employs ruses and schemes to ensure the apprehension of the criminal while in the actual commission of the crime (*Araneta vs. CA*, 142 SCRA 534). As borne (out) by the evidence, the entrapment laid out by the NARCOM team, through a buy-bust operation with one member of the police team posing as a buyer of the prohibited drug and which (led) to the arrest of the appellant *in flagrante delicto* is in accordance with the foregoing rule. And, since entrapment is not a defense and neither is it prohibited and contrary to law, appellant's conviction is proper (*People vs. Lu Chua*, 56 Phil. 44)."[23]

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[21] *People vs. Alerta, Jr.*, 198 SCRA 656 (1991); *People vs. Rumeral*, 200 SCRA 194 (1991).

[22] *People vs. Sanchez*, 173 SCRA 305 (1989); *People vs. Marcos*, 185 SCRA 154 (1990); *People vs. Del Pilar*, 188 SCRA 37 (1990); *People vs. Tandoy*, 192 SCRA 28 (1990); *People vs. Alerta, Jr., supra.*

[23] Brief for the Appellee, 10; *Rollo*, 84. See also *People vs. Liquen, supra.*

WHEREFORE, the judgment of the court *a quo* is *AFFIRMED*, with costs against accused-appellant.

SO ORDERED.

Narvasa, C.J., Padilla, Nocon, and *Puno, JJ.,* concur.

THIRD DIVISION

[G.R. No. 95559. November 9, 1993]

ALBAY I ELECTRIC COOPERATIVE, INC. (ALECO I), *petitioner, vs.* **RICARDO S. MARTINEZ, SR., ARNOLD B. BONAGUA, and CONRADO S. BUBAN,** *respondents.*

SYLLABUS

1. **LABOR AND SOCIAL LEGISLATION; LABOR ARBITER; JURISDICTION OVER CLAIMS EXCEEDING ₱5,000.—** Clearly, the jurisdiction over the instant dispute lies exclusively and originally with the Labor Arbiter, the claims being in excess of ₱5,000.00 each.

2. **ID.; ID.; ID.; WHEN THE EMPLOYER CONTESTS THE FINDINGS OF THE REGIONAL DIRECTOR, THE CASE MUST BE REFERRED TO THE LABOR ARBITER.—** The fact that petitioner raised the propriety of granting the claimed salary differentials in favor of private respondents should have alerted public respondent to exercise utmost restraint in assuming jurisdiction over the comp1aint. When the employer contests the findings of the Regional Director, the case must be referred to the Labor Arbiter. This is also a question of fact which cannot be dealt with by the Regional Director in view of the summary nature of the proceedings attendant to the exercise of his visitorial powers.

3. ID.; REGIONAL DIRECTOR; WHEN A REGIONAL DIRECTOR ACTED BEYOND THE SCOPE OF HIS JURISDICTION, ALL ORDERS AND PROCESSES ISSUED BY HIM ARE NULL AND VOID. — It is a rule that when a tribunal acts in excess or lack of jurisdiction, all decisions, orders and processes, emanating therefrom are null and void. Thus, an the issue posed by the petitioner regarding the denial of its appeal, suffice it to say that in taking cognizance of the case at the first instance, the Regional Director already acted beyond the scope of his jurisdiction. Necessarily, all orders and processes subsequently issued by him are without force and effect.

APPEARANCES OF COUNSEL

Juan D. Victoria for petitioner.
Marietta Lea B. Rosana for private respondents.

D E C I S I O N

BIDIN, *J.*:

This special civil action for *certiorari* seeks the annulment of the Orders dated September 11, 1989 and September 3, 1990 issued by respondent Ricardo Martinez, Sr., Regional Director, Department of Labor and Employment, Regional Office No. 5, Legazpi City, for having been rendered in excess of jurisdiction.

Petitioner avers that on August 15, 1988, private respondents Conrado Buban and Arnaldo Bonagua were designated as acting manager (Commercial Services Department) and supervisor (Service Center), respectively, of Albay I Electric Cooperative, Inc. by Israel Garcia, petitioner's Acting General Manager. Garcia allegedly made the appointments after his own appointment was recalled by the National Electrification Administration (NEA) by virtue of Office Order No. 454 issued on August 10, 1988 effective immediately. (*Rollo* p. 31)

On August 27, 1988, the Board of Directors of ALECO I considered the midnight appointments of respondents Buban and Bonagua as null and void. In a Memorandum dated

June 7, 1989, Romulo Maristaza, Chief of the Legal Service Office of the NEA, considered as defective the appointments of private respondents there being serious doubts as to their validity. (*Rollo,* pp. 14-15)

On August 15, 1989, private respondents filed a complaint with the Office of the Regional Director for the recovery of salary differentials corresponding to their new positions. They also claimed that since they held their respective positions for more than one year, their status should be classified as permanent and they should be paid the corresponding salaries.

Petitioner moved to dismiss the complaint for lack of jurisdiction. Nonetheless, on September 11, 1989, respondent Regional Director issued an Order requiring the petitioner to pay respondents Bonagua and Buban ₱11,962.31 and ₱12,593.36, respectively, corresponding to the underpayment of wages for their new positions (*Rollo*, p. 16).

On September 19, 1989, petitioner filed a notice of appeal and Memorandum of Appeal. Instead of giving due course to the appeal, the Med-Arbiter denied the same and directed the parties to present evidence (*Rollo*, p. 23). In its position paper, petitioner assailed the Order denying its appeal and further argued that since the amount claimed by private respondents is in excess of ₱5,000.00, the Regional Director has no jurisdiction to entertain the complaint.

On September 3, 1990, the Regional Director issued another Order, this time requiring petitioner to pay respondent Bonagua the amount of ₱9,259.72 and respondent Buban ₱38,243.21 corresponding to their salary differentials and 13th month pay (*Rollo,* p. 32). Public respondent also held that since the complainants (private respondents) were allowed to discharge their functions for more than one year without objection or adverse action on the part of the petitioner, this amounted to acquiescence and an implied approval of their appointments. Thereafter, a writ of execution was issued on September 26, 1990.

Hence this petition.

Petitioner contends that since each of the money claims of private respondents exceeded ₱5,000.00, the complaint falls outside the jurisdiction of the respondent Regional Director and should properly be heard by the Labor Arbiter.

Public respondent argues however that under his visitorial power, the ₱5,000.00 jurisdictional limit does not apply, citing for the purpose *Brokenshire Memorial Hospital Inc. vs. Minister of Labor and Employment* (182 SCRA 5 [1990]), to wit:

"If the amount involved does not exceed ₱5,000.00, the Regional Director undeniably has jurisdiction. But even if the amount of the claim exceeds ₱5,000.00, the claim is not on that account necessarily removed from the Regional Director's competence. In respect thereof he may still exercise the visitorial powers vested in him by Article 128 of the Labor Code, as amended, *supra*; that is to say, he may still direct his labor regulations officers or industrial safety engineers to inspect the employer's premises and examine his records; and if the officers should find that there have been violations of labor standards provisions, the Regional Director may, after due notice and hearing order compliance by the employer therewith and issue a writ of execution to the appropriate authority for the enforcement thereof. However, this power may not, repeat, be exercised by him where the employer contests the labor regulations officers' findings and raises issues which cannot be resolved without considering the evidentiary matters not verifiable in the normal course of inspection. In such an event, the case will have to be referred to the corresponding Labor Arbiter for adjudication, since it falls within the latter's exclusive original jurisdiction" (citing Briad Agro Development Corp.)

Public respondent hastens to add that the purpose of the law is to afford to the workers and expeditious delivery of what legally belongs to them; thus, the jurisdictional ₱5,000.00 limit need not apply. On the other hand, private respondents submit that the Regional director has the power and authority in complaints for inspection cases to hear and decide labor standard cases where employer-employee relationship still exists between the parties. The law does not put a limit as to what should be the minimum claim of the employees in order to seek relief under Article 128 of the Labor Code.

In his Manifestation in Lieu of Comment, the Solicitor General submits that the claims of private respondents for unpaid wages properly fall under the exclusive and original jurisdiction of the Labor Arbiter, mainly because the money claims of private respondents exceed ₱5,000.00. In addition, the Regional Director ordered the payment of the salary differentials not in connection with his visitorial powers but in the adjudication of the claims or complaints of the private respondents.

Article 129 and Article 217 of the Labor Code, as amended by RA 6715, provide:

"ARTICLE 129. Recovery of wages, simple money claims and other benefits. Upon complaint of any interested party, the Regional Director of the Department of Labor and Employment or any of the duly authorized hearing officers of the Department is empowered, through summary proceeding and after due notice, to hear and decide any matter involving the recovery of wages and other monetary claims and benefits, including legal interest, owing to an employee or person employed in domestic or household service or househelper under this Code, arising from employer-employee relations. Provided, that such complaint does not include a claim for reinstatement; Provided, further, That the aggregate money claims of each employee or househelper do not exceed five thousand pesos (₱5,000.00). x x x."

"ARTICLE 217. Jurisdiction of Labor Arbiters and the Commission. Except as otherwise provided under this Code, the Labor Arbiters shall have original and exclusive jurisdiction to hear and decide, within thirty (30) calendar days after the submission of the case by the parties for decision without extension, even in the absence of stenographic notes, the following cases involving workers, whether agricultural or non-agricultural:

x x x x x x x x x

"(6) Except claims for employees compensation, social security, medicare and maternity benefits, all other claims arising from employer-employee relations, including those of persons in domestic or household service, involving an amount exceeding five thousand pesos (₱5,000.00), whether or not accompanied with a claim for reinstatement."

Clearly, the jurisdiction over the instant dispute lies exclusively and originally with the Labor Arbiter, the claims being in excess

of ₱5,000.00 each. Thus, respondents' reliance in *Brokenshire* (*supra*) is evidently misplaced. For, and in construing the aforequoted provisions, the Court did not confer unlimited jurisdiction on the Regional Director. Rather, it qualified the Regional Director's jurisdiction to hear and decide employee's claims, to wit:

"It will be observed that what in fact conferred upon Regional Directors and other hearing officers of the Department of Labor (aside from the Labor Arbiters) adjudicative powers, *i.e.*, the power to try and decide, or hear and determine any claim brought before them for recovery of wages, simple money claims, and other benefits, is Republic Act 6715, provided that the following requisites concur, to wit:

"1) The claim is presented by an employee or person employed in domestic or household service or househelper under the code;

"2) The claimant, no longer being employed, does not seek reinstatement; and

"3) The aggregate money claim of the employee or househelper does not exceed five thousand pesos (₱5,000.00).

"In the absence of any of the three (3) requisites, the Labor Arbiters have exclusive original jurisdiction over all claims arising from employer-employee relations, other than claims for employees compensation, social security, medicare and maternity benefits" (*Brokenshire Memorial Hospital, Inc. vs. Minister of Labor and Employment supra*).

Neither can private respondents successfully invoke the visitorial power of the Regional Director as provided under Article 128 of the Labor Code. In *Servando's Inc. vs. Secretary of Labor and Employment* (198 SCRA 156 [1991]) the Court ruled:

"To construe the visitorial power of the Secretary of Labor to order and enforce compliance with labor laws as including the power to hear and decide cases involving employees' claims for wages, arising from employer-employee relations, even if the amount of said claims exceed (₱5,000.00 for each employee, would, in our considered opinion, emasculate and render meaningless, if not useless, the provisions of Article 217 (a)(6) and Article 129 of the Labor Code which, as above pointed out, confer exclusive jurisdiction on

the Labor Arbiter to hear and decide such employee's claims (exceeding ₱5,000.00 for each employee). To sustain the respondent's position would, in effect, sanction a situation where all employee's claims, regardless of amount, can be heard and determined by the Secretary of Labor under his visitorial power. This does not however, appear to be the legislative intent.

x x x x x x x x x

"x x x the power to hear and decide employee's claim exceeding ₱5,000.00 for each employee should be left to the Labor Arbiter as the exclusive repository of the power to hear and decide such claims.

"Nor is this position devoid of sound reason or purpose, because—

"1. The proceedings before the Secretary of Labor (or his agents) exercising his visitorial powers is summary in nature. On the other hand, proceedings before the Labor Arbiters are more formal and in accord with rules of evidence. When the employee's claim is less than ₱5,000.00, a summary procedure for its settlement can be justified, but not when a claim is more or less substantial, from the standpoint of both employee and management, for which reason, an employee's claim exceeding ₱5,000.00 is placed within the exclusive jurisdiction of the Labor Arbiter to hear and decide.

"2. Article 129 of the Labor Code expressly provides that upon complaint of any interested party,' the Regional Director (and, consequently, the Secretary of Labor to whom appeals from the Regional Directors are taken) is empowered to hear and decide simple money claims, *i.e.*, those that do not exceed ₱5,000.00 for each employee, employing for this purpose a summary procedure. If Article 128 (b) of the Labor Code were to be construed as empowering the Secretary of Labor, under his visitorial power, to hear and decide all types of employee's claims, *including those exceeding ₱5,000.00 for each employee*, employing for this purpose a summary procedure, then, Article 129 (limiting the Regional Director's jurisdiction to a claim not exceeding ₱5,000.00) becomes a useless surplusage in the Labor Code.

Since the amount claimed by each respondent exceeded the ₱5,000.00 jurisdictional limit conferred upon public respondent, the latter acted without jurisdiction in ordering petitioner to pay private respondents' claims for salary differentials and 13th

month pay (*Midland Insurance Corporation v. Secretary of Labor* and Employment, 214 SCRA 578 [1992]).

Furthermore, the fact that petitioner raised the propriety of granting the claimed salary differentials in favor of private respondents should have alerted public respondent to exercise utmost restraint in assuming jurisdiction over the complaint. When the employer contests the findings of the Regional Director, the case must be referred to the Labor Arbiter. This is also a question of fact which cannot be dealt with by the Regional Director in view of the summary nature of the proceedings attendant to the exercise of his visitorial powers (See Art. 128 [b]). It may be argued, however, that respondent Regional Director found that respondents Buban and Bonagua were issued appointment papers on February 9, 1988 and March 22, 1988, respectively. Nevertheless, the fact that each of the private respondents' claim exceeded ₱5,000.00 ousted respondent Martinez of jurisdiction, by operation of law, to hear and decide complainant's claim for underpayment of wages.

It is a rule that when a tribunal acts in excess or lack of jurisdiction, all decisions, orders and processes emanating therefrom are null and void. Thus, on the issue posed by the petitioner regarding the denial of its appeal, suffice it to say that in taking cognizance of the case at the first instance, the Regional Director already acted beyond the scope of his jurisdiction. Necessarily, all orders and processes subsequently issued by him are without force and effect.

WHEREFORE, the assailed Orders of the Regional Director dated September 11, 1989 and September 3, 1990 including the writ of execution dated September 26, 1990, are hereby *SET ASIDE* and declared null and void. Each claim of private respondents as regards their salary differentials and 13th month pay is hereby referred to the proper Labor Arbiter for appropriate determination.

SO ORDERED.

Feliciano, Romero, Melo, and *Vitug, JJ.*, concur.

SECOND DIVISION

[G.R. Nos. 107200-03. November 9, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **MANUEL DE GUIA *y* SAMONTE,** *defendant-appellant.*

SYLLABUS

1. REMEDIAL LAW; CRIMINAL PROCEDURE; NON-PROSECUTION OF CO-ACCUSED, NOT A GROUND TO FAULT CONVICTION OF TRIAL COURT. — Appellant's position is that the real perpetrator of the charges imputed against him is Loida de Guia whose signature appears on all the receipts issued to the complainants. He submits that his mere presence at the Ermita office everytime the complainants paid the required fees cannot be made the basis of a finding that he was involved in the illegal recruitment of private complainants. He contends that Loida de Guia should have been charged as the proper accused. Appellant's submission deserves scant consideration. To begin with, appellant did not raise this argument in the trial court. It is too late to raise it on appeal. More importantly, the Informations against the appellant show that the appellant was charged with "conspiring and confederating with one whose true name, identity and present whereabouts are still unknown x x x." From the evidence, this co-conspirator is Loida de Guia who pretended to be the wife of herein appellant. There is no obstacle for the State to charge this person who goes by the name of Loida de Guia as soon as her true identity and address become known to the prosecution. Her non-prosecution at this stage, however, provides no ground for the appellant to fault the decision of the trial court convicting him.

2. ID.; EVIDENCE; RECEIPTS ISSUED, NOT HEARSAY EVIDENCE IN CASE AT BAR. — Appellant also erred in dismissing the receipts issued by Loida de Guia as hearsay evidence. The records show that Leopoldo Realino and Jesus Sumalinog testified that they personally handed the money representing the required fees to herein appellant. The latter, in turn, instructed Loida to prepare the corresponding receipts. This was after private complainants were made to believe that

the accused and Loida, aside from being husband and wife, were jointly operating the recruitment business, with the former as travel consultant and the latter as the general manager. The evidence shows that the receipts were signed by Loida in the presence of the complaining witnesses. Consequently, Realino and Sumalinog had personal knowledge of the circumstances surrounding the issuance of these receipts and their testimonies cannot be considered as hearsay evidence.

3. ID.; ID.; ALIBI; WEAK DEFENSE. — Assuming that appellant was a part-time driver of Samonte, the nature of his job would not make it physically impossible for him to operate a recruitment business on the side. Time and again, We have ruled that alibi, being a weak defense, must be proved by clear and convincing evidence which should reasonably satisfy the Court of its veracity.

4. ID.; CRIMINAL PROCEDURE; WARRANTLESS ARREST; WAIVED BY PLEADING NOT GUILTY UPON ARRAIGNMENT. — Appellant's alleged warrantless arrest will not exculpate him from his guilt as found by the trial court. To be sure, the plea comes too late in the day. We note that upon arraignment, appellant pleaded not guilty to the Information and did not raise the alleged illegality of his arrest. By so pleading, he waived the alleged illegality of his arrest. In *People v. Briones*, we ruled that the illegality of appellant's warrantless arrest cannot render all the other proceedings, including the appellant's conviction, void. It cannot deprive the State of its right to convict the guilty when all the facts on record point to his culpability.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Ricardo D. Latorre for accused-appellant.

D E C I S I O N

PUNO, *J.*:

Illegal recruiters constitute one of the worst vultures of our society today. They prey on the gullible, and often, they victimize

the already marginalized Filipinos who will do anything to improve their economic status. The case before us involves one of their kind.

Accused-appellant Manuel de Guia *y* Samonte was convicted by the Regional Trial Court of Manila, Branch XLI,[1] of the crime of Illegal Recruitment in large scale[2] and three (3) counts of Estafa,[3] in violation of Article 38 of the Labor Code, as amended and Article 315 (2)(a) of the Revised Penal Code, respectively.

The Information in each case reads as follows:

1. *Criminal Case No. 92-103341:*

"That in (sic) or about and during the period comprised between May 23, 1991 and December 11, 1991, inclusive, in the City of Manila, Philippines, the said accused, conspiring and confederating with one whose true name, identity and present whereabouts are still (unknown) and mutually helping each other, representing himself to have the capacity to contract, enlist and transport Filipino workers for employment abroad, *did then and there wilfully and unlawfully for a fee, recruit and promise employment/job placement abroad to Cirilo Lising y Mercado, Monteza (sic) Gazmin y Pascual, Leopoldo Realino y Arceo and Jesus Sumalinog y Carin, without first having secured the required license or authority from the Department of Labor and Employment*.

"Contrary to law." (*Rollo*, p. 4)

2. *Criminal Case No. 92-103342*:

"That on or about November 24, 1991, in the city of Manila, the said (accused,) conspiring and confederating with one whose true name, identity and present whereabouts are still unknown, and mutually helping each other, *did then and there wilfully, unlawfully and feloniously defraud Leopoldo Realino y Arceo* in the following manner, to wit: the said accused by means of false manifestations and fraudulent representation which he made to said Leopoldo Realino

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[1] Presided by Judge Domingo D. Panis.

[2] Docketed as Criminal Case No. 92-103341.

[3] Docketed as Criminal Cases Nos. 92-103342, 92-103343 and 92-103344.

y Arceo to the effect that he had the proper (authority) and capacity to recruit and employ said Leopoldo Realino *y* Arceo as factory worker in Japan and could facilitate the processing of the pertinent papers if given the necessary amount to meet the requirements thereof, and by means of other similar deceits, induced and succeeded in inducing said Leopoldo Realino *y* Arceo to give and deliver, as in fact he gave and delivered to said accused the amount of ₱120,000.00 on the strength of said manifestations and representations, said accused well knowing that the same were false and fraudulent and were made solely to obtain, as in fact he did obtain the amount of ₱120,000.00, which amount once in his possession, with intent to defraud he, wilfully, unlawfully and feloniously misappropriated, misapplied and converted to his own personal use and benefit, to the damage and prejudice of said Leopoldo Realino *y* Arceo in the aforesaid amount of ₱20,000.00 Philippine Currency." (*Rollo*, pp. 5-6).

3. *Criminal Case No. 92-103343*:

"That on or about and during the period comprised between October 3 and December 11, 1991, inclusive, in the city of Manila, Philippines, the said accused conspiring and confederating with one whose true name, identity and present whereabouts are still unknown and mutually helping each other did then and there *wilfully, unlawfully and feloniously defraud Jesus Sumalinog y Carin* (in) the following manner, to wit: the said accused by means of false manifestations and fraudulent representation which they made to said Jesus Sumalinog *y* Carin to the effect that he had the proper (authority) and capacity to recruit and employ said Jesus Sumalinog *y* Carin as x x x contract worker in Japan and could facilitate the processing of the pertinent papers if given the necessary amount to meet the requirements thereof, and by means of other similar deceits, induced and succeeded in inducing said Jesus Sumalinog *y* Carin to give and deliver, as in fact he gave and delivered to said accused the amount of ₱50,000.00 on the strength of said manifestations and representation, said accused well knowing that the same were false and fraudulent and were made solely to obtain, as in fact he did obtain the amount of ₱50,000.00 which amount once in his possession, with intent to defraud he, willfully, unlawfully and feloniously misappropriated, misapplied and converted to his own personal use and benefit, to the damage and prejudice of said Jesus Sumalinog *y* Carin in the aforesaid amount of ₱50,000.00 Philippine Currency." (*Rollo*, pp. 7-8)

4. *Criminal Case No. 92-103344:*

"That on May 23, 1991, in the City of Manila, Philippines, the said accused, conspiring and confederating with one whose true name, identity and present whereabouts are still unknown and mutually helping each other did then and there *willfully, unlawfully and feloniously defraud Monteza (sic) Gazmin y Pascual* in the following manner, to wit: the said accused by means of false manifestations and fraudulent representation which he made to said Montesa Gazmin *y* Pascual to the effect that he had the power and capacity to recruit and employ said Montesa Gazmin *y* Pascual as factory worker in Korea and could facilitate the processing of the pertinent papers if given the necessary amount to meet the requirements thereof, and by means of other similar deceits, induced and succeeded in inducing said Montesa Gazmin *y* Pascual to give and deliver, as in fact she gave and delivered to said accused the amount of ₱30,000.00 on the strength of said manifestations and representations, said accused well knowing that the same were false and fraudulent and were made solely to obtain, as in fact he did obtain the amount of ₱30,000.00 which amount once in his possession, with intent to defraud he, wilfully, unlawfully and feloniously misappropriated, misapplied and converted to his own personal use and benefit, to the damage and prejudice of said Montesa Gazmin *y* Pascual in the aforesaid amount of ₱(30,000.00) Philippine Currency." (*Rollo*, pp. 9-10)

Upon arraignment, the accused pleaded not guilty to the offenses charged. The cases were tried jointly.

The prosecution presented the four (4) private complainants (Cirilo Lising, Montessa Gasmin, Leopoldo Realino and Jesus Sumalinog) as witnesses. They testified as follows:

CIRILO LISING, a 41-year old farmer from Gapan, Nueva Ecija testified that in August 1991, he was summoned by his brother-in-law, Jose (Jhun) Cruz, to fix the septic tank in his house.[4] There, he was introduced to the accused and a certain Loida de Guia who represented themselves to be husband and wife. The two were boarders in Cruz' house.[5] While fixing the tank, the couple engaged him in a conversation and told him

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[4] TSN, April 7, 1992, pp. 3-4, 10.

[5] *Id.*, pp. 8-9.

they could facilitate his employment in Korea. He was informed that the placement fee was forty thousand pesos (₱40,000.00). Relying on the couple's representations, he decided to try his luck abroad. The couple promised him a job as factory worker in Korea with an income of $500.00 per month. They asked him to prepare an initial amount of nine thousand seven hundred pesos (₱9,700.00) for his plane fare. They told him that he could pay for the balance of the fee when he reach Korea for upon his arrival, he would receive a two-months cash advance in his salary. He agreed.[6]

On August 12, 1991, he submitted to the accused his passport and biodata in their office, ML Promotions, at Room 102, Marrieta Apt., 1200 J. Bocobo Street, Ermita, Manila. He handed the amount of ₱9,700.00 to Loida and the latter issued and signed a receipt therefor.[7]

Lising, however, failed to leave for Korea. He then verified the status of the agency from the POEA and discovered that the accused and Loida were not licensed recruiters.[8] Thus, on February 13, 1992, he complained to CIS PO3 Romeo M. Cerezo and gave a written statement.[9]

On cross-examination, Lising produced two (2) calling cards of ML Promotions: one showed Loida de Guia as the general manager while the other showed the accused as its travel consultant.[10]

MONTESSA GASMIN, a 19-year old, high school graduate from San Juan, Tarlac testified that she learned from her cousin, Joey Lino, that the accused and Loida de Guia were engaged in job placement overseas. On May 15, 1991, she asked her cousin

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[6] *Id*., pp. 4-5, 10-12.

[7] *Id*., pp. 5, 17-18, Exh. "A".

[8] POEA Certification dated April 2, 1992, Exhibit "C", Original Records, p. 67.

[9] *Id*., pp. 6 & 15.

[10] *Id*., p. 8; Exhibits "D" and "E", respectively.

to accompany her to the couple's Ermita office where the accused informed her that they deploy workers to Korea. Relying on said representation, she applied as a factory worker in Korea and accomplished the corresponding application form. She was told that she would earn $500.00 per month and was asked to pay thirty thousand pesos (₱30,000.00) to cover her traveling expenses.[11]

She gave the couple the required amount in two (2) installments, *viz*: ₱10,000.00 on May 23, 1991 and ₱20,000.00 on June 4, 1991, as evidence by two (2) receipts of even date.[12] She gave the money to Loida who signed the receipts in her presence.[13] The couple assured her that she could leave for Korea by the end of June 1991. The promise proved to be false. On July 14, 1991, she again went to the couple's office in Ermita to follow-up her departure. Again, the spouses assured her that would be able to leave on the succeeding week. Nothing came out of the promise. Thus, together with the other private complainants, she reported the matter to the CIS Camp Crame where she executed her written statement.[14]

LEOPOLDO REALINO, a 42 year-old driver, residing at Balibago, Angeles City testified that her brother, Roger, brought him to the couple's recruitment office in Ermita where he met the accused. He inquired from the accused whether he could work out his employment in Japan. The accused replied in affirmative. Still undecided, he told the accused he would just come back.[15]

Sometime in August 1991, he returned to their Ermita office and applied as a contract worker in Japan. The accused told him to prepare one hundred twenty thousand pesos (₱120,000.00). He was also asked to fill up and sign an application form.[16]

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[11] *Id*., pp. 19-21, 31.

[12] Exhibits "F" and "G", Original Records, pp. 70-71.

[13] *Id*., pp. 22-23, 31.

[14] *Id*., pp. 23-25, 32.

[15] TSN, April 8, 1991, pp. 2-4.

[16] *Id*., pp. 5-6.

On November 4, 1991, Leopoldo went to their office and handed the money to the accused. The accused then ordered Loida, whom Leopoldo met for the first time, to prepare the necessary receipt.[17] The accused failed to employ him in Japan despite repeated promises. He demanded the return of his money but to no avail. He, together with his companions, went to the POEA where they discovered that the accused was not licensed to recruit workers for overseas employment. With the intention of confronting the accused, they proceeded to their Ermita office but were informed that the accused was already detained at Camp Crame. Thus, they went to Camp Crame where they gave their statements.[18]

The last witness for the prosecution was *JESUS SUMALINOG*, an industrial electrician from Makati. He testified that he first met the accused in May 1991 in the accused's Ermita office where he inquired about the possibility of employment in Japan. The accused interviewed him. The accused told him that the cost of processing his papers would run from ₱85,000.00 to ₱95,000.00. However, when Sumalinog intimated that he could only afford to pay ₱50,000.00, the accused conferred with Loida, who was introduced by the accused as his wife. The couple then agreed to be paid ₱50,000.00 and he was told to fill up an application form. He was informed that he could work as a contract worker in a computer firm where he would earn $1,200.00 per month. The couple asked him to prepare the money.[19]

Sumalinog gave the money to the accused in four (4) installments, thus: ₱10,000.00 on October 3, October 30, November 18 and November 21, 1991; ₱8,000.00 on November 25, 1991; and finally, ₱2,000.00 on December 11, 1991. In each instance, the accused instructed Loida to prepare the receipts and the same were duly issued and signed by Loida.[20]

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[17] Exhibit "I", Original Records, p. 74.

[18] TSN, April 8, 1991, pp. 6-10, 13.

[19] *Id.*, pp. 16-19.

[20] *Id.*, pp. 20-22; Exhibits "K" to "K-5", Original Records, pp. 77-82.

The two assured Sumalinog that he could leave after two (2) weeks. Failing to leave as promised, he was again made to wait for another two (2) weeks. Still, the accused did not make good with said promise.[21]

He then went to the POEA where he discovered that the accused was not licensed to recruit workers for overseas employment. He sought the accused in his Ermita office but found out that the accused was already in the custody of the CIS. He talked with the accused in Camp Crame and the latter asked him not to file any complaint. The accused assured him that his money would be returned. He did not heed said request and filed the complaint at bar.[22]

The evidence of the accused rests mainly on denial and alibi. He alleged that he was not a recruiter but a driver by profession from 1970 up to December 1991. He contended that he could not have participated in the recruitment of complainants since from May to December 1991, he was employed at RTS Trading Associate Corporation where he reported for work from 7:00 o'clock in the morning until 5:00 o'clock in the afternoon. He was employed as a driver delivering various merchandise for the corporation. He alleged that after work, he always went straight home to Montalban, Rizal.[23]

He further testified that his legal wife is Paula Diones and that he has no illicit relationship with one Loida de Guia. According to the accused, he first met Loida in the latter's house in Baclaran in May 1991. He met Loida to secure overseas employment for his son. He again went to Loida's house in July 1991 to follow-up his son's employment application. Further, the accused claimed that he met the complainants only while he was already detained in Camp Crame.[24]

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[21] *Id.*, p. 22.

[22] *Id.*, pp. 22-24.

[23] TSN, April 28, 1992, pp. 7-16.

[24] TSN, April 28, 1992, pp. 3-7.

Renato Samonte, owner of RTS Trading and a childhood friend of the accused, corroborated his alibi. He testified that the accused acted as his part-time driver from May 1991 until December 1991.[25]

On the basis of the above evidence, the trial court found the accused guilty beyond reasonable doubt of the crimes charged. The dispositive portion of the decision reads:

"WHEREFORE, judgment is hereby rendered as follows:

"1. In Crim. Case No. 92-103341, finding the accused Manuel de Guia y Samonte guilty beyond reasonable doubt for (sic) the crime of Illegal Recruitment committed in large scale and hereby sentences the said accused to suffer the penalty of life imprisonment and for him to pay a fine of ₱100,000.00. The said accused is further hereby ordered to pay the complainant Cirilo Lising the sum of ₱9,700.00 as and by way of actual damage;

"2. In Crim. Case No. 92-103342, finding the accused Manuel Guia *y* Samonte guilty beyond reasonable doubt for (sic) the crime of Estafa and hereby sentences the said accused to suffer an indeterminate sentence ranging from Eight (8) years and One (1) day of *prision mayor* as minimum to Fourteen (14) years Five (5) months and Eleven (11) days of *reclusion temporal* as maximum and for the said accused to indemnify the complainant Leopoldo Realino the sum of ₱120,000.00 as and by way of actual damage;

"3. In Crim. Case No. 92-103343, finding the accused Manuel de Guia *y* Samonte guilty beyond reasonable doubt for (sic) the crime of Estafa and hereby sentences the said accused to suffer an indeterminate sentence ranging from Three (3) years Six (6) months and Twenty One (21) days of *prision correccional* as minimum to Seven (7) years Five (5) months and Eleven (11) days of *prision mayor* as maximum and for the said accused to indemnify the complainant Jesus Sumalinog the sum of ₱50,000.00 as and by way of actual damage; and

"4. In Crim. Case No. 92-103344, finding the accused Manuel de Guia *y* Samonte guilty beyond reasonable doubt for (sic) the crime of Estafa and hereby sentences the said accused to suffer an indeterminate sentence ranging from One (1) year Eight (8) months

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[25] TSN, June 9, 1992, pp. 2-5.

and Twenty One (21) days of *prision correccional* as minimum to Five (5) years Five (5) months and eleven (11) days also of *prision correccional* as maximum and for the said accused to indemnify the complainant Montesa P. Gazmin the sum of ₱30,000.00 as and by way of actual damage.

"Costs against the accused.

"SO ORDERED." (*Rollo*, pp. 20-30)

Accused appealed to this Court raising the following assignment of errors:

I.

THE TRIAL COURT ERRED IN FAILING TO PROSECUTE THE REAL MALEFACTOR, LOIDA DE GUIA, WHO SHOULD HAVE BEEN INCLUDED AS ONE OF THE ACCUSED CONSIDERING THAT SHE ISSUED AND SIGNED THE RECEIPTS EVIDENCING THE PAYMENTS ALLEGEDLY MADE BY THE PRIVATE COMPLAINANTS AND WHICH WERE THE ONLY BASES FOR FINDING THE ACCUSED GUILTY BEYOND REASONABLE DOUBT.

II.

THE TRIAL COURT ERRED IN CONVICTING THE ACCUSED BEYOND REASONABLE DOUBT ON THE BASIS OF THE PAUCITY OF THE EVIDENCE FOR THE PROSECUTION (receipts of payments) ALTHOUGH THE SAME ARE INADMISSIBLE IN CHARACTER FOR BEING PURELY HEARSAY EVIDENCE.

III.

THE LOWER COURT ERRED IN (UP)HOLDING THE UNLAWFUL ARREST OF THE ACCUSED IN A PUBLIC PLACE WITHOUT ANY WARRANT OR PROCESS ISSUED BY A COMPETENT COURT.

The first (2) assigned errors are interrelated and shall be discussed together.

Appellant's position is that the real perpetrator of the charges imputed against him is Loida de Guia whose signature appears on all the receipts issued to the complainants. He submits that his mere presence at the Ermita office everytime the complainants

paid the required fees cannot be made the basis of a finding that he was involved in the illegal recruitment of private complainants. He contends that Loida de Guia should have been charged as the proper accused.

Appellant's submission deserves scant consideration. To begin with, appellant did not raise this argument in the trial court. It is too late to raise it on appeal. More importantly, the Informations against the appellant show that the appellant was charged with "conspiring and confederating with one whose true name, identity and present whereabouts are still unknown x x x." From the evidence, this co-conspirator is Loida de Guia who pretended to be the wife of herein appellant. There is no obstacle for the State to charge this person who goes by the name of Loida de Guia as soon as her true identity and address become known to the prosecution. Her non-prosecution at this stage, however, provides no ground for the appellant to fault the decision of the trial court convicting him.

Appellant also erred in dismissing the receipts issued by Loida de Guia as hearsay evidence. The records show that Leopoldo Realino and Jesus Sumalinog testified that they personally handed the money representing the required fees to herein appellant. The latter, in turn, instructed Loida to prepare the corresponding receipts. This was after private complainants were made to believe that the accused and Loida, aside from being husband and wife, were jointly operating the recruitment business, with the former as travel consultant and the latter as the general manager. The evidence shows that the receipts were signed by Loida in the presence of the complaining witnesses. Consequently, Realino and Sumalinog had personal knowledge of the circumstances surrounding the issuance of these receipts and their testimonies cannot be considered as hearsay evidence.

It is not also correct to argue that the guilt of the appellant was based alone on the receipts issued by Loida de Guia. All the complaining witnesses testified that the accused took an active and direct part in misrepresenting that he had the authority and the power to facilitate their employment abroad. Aside from their testimonial evidence, calling cards were presented showing

the accused to be the Travel Consultant of said agency, with Loida as the General Manager. Moreover, the evidence also showed that it was the accused who asked the applicants to fill up their applications and to prepare their respective biodata. He also demanded from them varying amounts of money as processing fees. All these show that the accused and Loida de Guia, who are not licensed recruiters, adopted a systematic and elaborate scheme to defraud the complainants through false promises of jobs abroad.

We are not also impressed by the defense of the appellant. Glaring inconsistencies marred his short testimony. At one time, he testified that he was arrested by the CIS officers at a department store in Ermita, Manila.[26] Later on, however, he stated that he was arrested in Marrieta Apartment, located at J. Bocobo Street, Ermita, Manila.[27] He likewise claimed during the trial that he was not aware that Loida de Guia had an office located at Marrieta Apartment, Ermita,[28] but at the same time, he raises in this appeal the defense that he himself has been at the Ermita office to follow-up the job placement of his son in Korea.[29]

This is not all. Initially, appellant claimed during the trial that he could not have possibly been at the Ermita office and received payments made by the complainants for he was then employed as a professional driver for RTS Trading. On appeal, however, appellant would have Us believe that during the period from May to December 1991 when private complainants went to the Ermita office to file their application and pay the corresponding fees, accused-appellant "just happened to be there" for he was himself following-up the job application of his son.[30]

Appellant's corroborating witness, Renato Samonte, was equally unimpressive. In fact, Samonte's testimony rendered

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[26] TSN, April 28, 1992, p. 16.

[27] TSN, May 19, 1992, p. 3.

[28] TSN, April 28, 1992, p. 20.

[29] Appellant's Brief, *Rollo*, p. 46.

[30] Appellant's Brief, *supra*.

the defense's theory more open to doubt. For one, his testimony that appellant has been in his employ from May to December 1991 was not corroborated by any documentary evidence, such as pay slip/pay roll, certification of SSS contributions and, hence, has little value. Moreover, even assuming that appellant was a part-time driver of Samonte, the nature of his job would not make it physically impossible for him to operate a recruitment business on the side. Time and again, We have ruled that alibi, being a weak defense, must be proved by clear and convincing evidence which should reasonably satisfy the Court of its veracity.[31]

The credence of the private complainants is further bolstered by the admission of appellant himself that he does not know of any ill-motive why they would hurl such serious accusations against him.[32] The private complainants were all previously unknown to him.

Finally, appellant's alleged warrantless arrest will not exculpate him from his guilt as found by the trial court. To be sure, the plea comes too late in the day. We note that upon arraignment, appellant pleaded not guilty to the Information and did not raise the alleged illegality of his arrest. By so pleading, he waived the alleged illegality of his arrest.[33] In *People v. Briones*,[34] we ruled that the illegality of appellant's warrantless arrest cannot render all the other proceedings, including the appellant's conviction, void. It cannot deprive the State of its right to convict the guilty when all the facts on record point to his culpability.

WHEREFORE, premises considered, the decision of the court *a quo* finding the appellant Manuel de Guia *y* Samonte guilty beyond reasonable doubt of *Illegal Recruitment in Large Scale* for having engaged in the business of recruiting for four (4) private complainants for overseas employment without any

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[31] *People v. Loste*, G.R. No. 100198, July 1, 1992, 210 SCRA 647.

[32] TSN, April 28, 1992, p. 23.

[33] *People v. de Guzman, et al.*, G.R. Nos. 98321-24, June 30, 1993.

[34] G.R. No. 90319, October 15, 1991, 202 SCRA 708.

license or authority from the POEA and three (3) counts of *Estafa*, for falsely pretending to possess power and qualification to deploy private complainants for overseas employment, is hereby *AFFIRMED in toto*. Costs against appellant.

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, Regalado, and *Nocon, JJ.*, concur.

EN BANC

[G.R. Nos. 111771-77. November 9, 1993]

ANTONIO L. SANCHEZ, *petitioner, vs.* **The Honorable HARRIET O. DEMETRIOU (in her capacity as Presiding Judge of Regional Trial Court, NCR, Branch 70, Pasig), The Honorable FRANKLIN DRILON (in his capacity as Secretary of Justice), JOVENCITO R. ZUÑO, LEONARDO C. GUIYAB, JR., CARLOS L. DE LEON, RAMONCITO C. MISON, REYNALDO J. LUGTU and RODRIGO P. LORENZO, (the last six respondents in their official capacities as members of the State Prosecutor's Office),** *respondents*.

SYLLABUS

1. **REMEDIAL LAW; CRIMINAL PROCEDURE; PRELIMINARY INVESTIGATION; RELEVANT RULINGS, CITED; CASE AT BAR. —** Just as the accused may renounce the right to be present at the preliminary investigation, so may he waive the right to present counter-affidavits or any other evidence in his defense. At any rate, it is settled that the absence of a preliminary investigation does not impair the validity of the information or otherwise render the some defective and neither

does it affect the jurisdiction of the court over the case or constitute a ground for quashing the information. If no preliminary investigation has been held, or if it is flawed, the trial court may, on motion of the accused, order an investigation or reinvestigation and hold the proceedings in the criminal cases in abeyance. In the case at bar, however, the respondent judge saw no reason or need for such a step. Finding no arbitrariness in her factual conclusions, we shall defer to her judgment.

2. ID.; ID.; ARREST, DEFINED; HOW EFFECTED. — "Arrest" is defined under Section 1, Rule 113 of the Rules of Courts as the taking of a person into custody in order that he may be bound to answer for the commission of an offense. Under Section 2 of the same Rule, an arrest is effected by an actual restraint of the person to be arrested or by his voluntary submission to the custody of the person making the arrest. Application of actual force, manual touching of the body, physical restraint or a formal declaration of arrest is not required. It is enough that there be an intent on the part of one of the parties to arrest the other and an intent of the other to submit, under the belief and impression that submission is necessary.

3. ID.; ID.; WARRANTLESS ARREST; ILLEGAL IN CASE AT BAR. — We agree with the petitioner that his arrest did not come under Section 5, Rule 113 of the Rules of Court, providing as follows: Sec. 5. Arrest without warrant; when lawful. A peace officer or a private person may, without a warrant, arrest person: (a) When, in his presence, the person to be arrested has committed, is actually committing, or is attempting to commit an offense; (b) When an offense has in fact just been committed and he has personal knowledge of facts indicating that the person to be arrested has committed it; and (c) When the person to be arrested is a prisoner who has escaped from a penal establishment or place where he is serving final judgment or temporarily confined while his case is pending, or has escaped while being transferred from one confinement to another. It is not denied that the arresting officers were not present when the petitioner allegedly participated in the killing of Allan Gomez and the rape-slay of Mary Eileen Sarmenta. Neither did they have any personal knowledge that the petitioner was responsible-therefor because the basis of the arrest was the sworn statements of Centeno and Malabanan.

Moreover, as the rape and killing of Sarmenta allegedly took place on June 28-June 29, 1993, or forty-six days before the date of the arrest, it cannot be said that the offense had "in fact just been committed" when the petitioner was arrested. The original warrantless arrest of the petitioner was doubtless illegal.

4. ID.; ID.; ID.; SUBSEQUENT ISSUANCE OF WARRANT OF ARREST AGAINST A PERSON INVALIDLY DETAINED WILL CURE THE DEFECT OF THAT DETENTION. — The Court notes that on August 13, 1993, after the petitioner was unlawfully arrested, Judge Lanzanas issued a warrant of arrest against Antonio L. Sanchez in connection with Criminal Cases Nos. 93-124634 to 93-124637 for violation of R.A. No. 6713. Pending the issuance of the warrant of arrest for the rape-slay cases, this first warrant served as the initial justification for his detention. The Court also adverts to its uniform ruling that the filing of charges, and the issuance of the corresponding warrant of arrest, against a person invalidly detained will cure the defect of that detention or at least deny him the right to be released because of such defect.

5. ID.; ID.; INFORMATION; IF THERE ARE TWO OR MORE OFFENDERS WHO COMMITTED RAPE AND HOMICIDE WAS COMMITTED ON THE OCASSION THEREOF, THE INFORMATION MAY CHARGE AS MANY CRIMES OF RAPE WITH HOMICIDE AS THERE ARE RAPES COMMITTED. — Where there are two or more offenders who commit rape, the homicide committed on the occasion or by reason of each rape, must be deemed as a constituent of the special complex crime of rape with homicide. Therefore, there will be as many crimes of rape with homicide as there are rapes committed. In effect, the presence of homicide qualifies the crime of rape, thereby raising its penalty to the highest degree. Thus, homicide committed on, the occasion or by reason of the rape, loses its character as an independent offense, but assumes a new character, and functions like a qualify circumstance. However, by fiction of law, it is merged wit rape to constitute a constituent element of a special complex crime of rape with homicide with a specific penalty which is in the highest degree, *i.e.*, death (reduced to *reclusion perpetua* with the suspension of the application of the death penalty by the Constitution.

6. POLITICAL LAW; CONSTITUTIONAL LAW; OFFICE OF THE OMBUDSMAN; POWERS.— The Ombudsman is indeed empowered under Section 15, paragraph (1) of R.A. 6770 to investigate and prosecute any illegal act or omission of any public official. However as we held only two years ago in the case of *Aguinaldo v. Domagas*, this authority "is not an exclusive authority but rather a shared or concurrent authority in respect of the offense charged."

7. ID.; ID.; SANDIGANBAYAN; JURISDICTION; FOR SANDIGANBAYAN TO HAVE JURISDICTION OVER THE OFFENSE COMMITTED BY PUBLIC OFFICIALS, THERE MUST BE DIRECT RELATION BETWEEN THE CRIME AND HIS OFFICE. — Section 4, paragraph (a) of P.D. No. 1606, as amended by P.D. No. 1861, provides: Sec. 4. *Jurisdiction*. - The Sandiganbayan shall exercise: a) Exclusive, original jurisdiction in all codes involving: (1) Violations of Republic Act No. 3019, as amended otherwise known as the Anti-Graft and Corrupt Practices Act Republic Act No. 1379, and Chapter II, Section 2, Title VII of the Revised Penal Code; (2) Other offenses or felonies committed by public officer, and employees *in relation to, their office*, including those employed in government-owned or controlled corporations, whether simple or complexed with other crimes, where the penalty prescribed by law is higher than *prision correccional* or imprisonment for six (6) years, or a fine of ₱6,000.00 x x x. In *Montilla v. Hilario*, this Court described the "offense committed in relation to the office" as follows: [T]he relation between the crime and the office contemplated by the Constitution is, in our opinion, direct and not accidental. To fall into the intent of the Constitution, the relation has to be such that, in the legal sense, the offense cannot exist without the office. In other words, the office must be a constituent element of the crime as defined in the statute, such as, for instance, the crimes defined and punished in Chapter Two to Six, Title Seven, of the Revised Penal Code. Public office is not of the essence of murder. The taking of human life is either murder or homicide whether done by a private citizen or public servant, and the penalty is the same except when the perpetrator, being a public functionary, took advantage of his office, as alleged in this case, in which event, the penalty is increased. But the use or abuse of office does not adhere to the crime as an element; and even as an aggravating circumstance, its

materiality arises, not from the allegations but on the proof, not from the fact that the criminals are public officials but from the manner of the commission of the crime.

8. ID.; ID.; ID.; ID.; SANDIGANBAYAN HAS NO JURISDICTION OVER THE CRIME OF RAPE WITH HOMICIDE COMMITTED BY A MUNICIPAL MAYOR. — The crime of rape with homicide with which the petitioner stands charged obviously does not fall under paragraph (1) which deals with graft and corruption mass. Neither is it covered by paragraph (2) because it is not an offense committed in relation to the office of the petitioner. There is no direct relation between the commission of the crime of rape with homicide and the petitioner's office as municipal mayor because public office is not an essential element of the crime charged. The offense can stand independently of the office. Moreover, it is not even alleged in the information that the commission of the crime charged was intimately connected with the performance of the petitioner's official functions to make it fall under the exception laid down in *People v. Montejo*. We have read the informations in the case at bar and find no allegation therein that the crime of rape with homicide imputed to the petitioner was connected with the discharge of his functions; as municipal mayor or that there is an "intimate connection" between the offense and his office. It follows that the said crime, being an ordinary offense, is triable by the regular courts and not the Sandiganbayan.

APPEARANCES OF COUNSEL

Mario E. Ongkiko and *Marciano P. Brion, Jr.* for petitioner.
The Solicitor General for respondents.

D E C I S I O N

CRUZ, *J.*:

There is probably no more notorious person in the country today than Mayor Antonio L. Sanchez of Calauan, Laguna, who stands accused of an unspeakable crime. On him the verdict has already been rendered by many outraged persons who would

immediately impose on him an angry sentence. Yet, for all the prejudgments against him, he is under our Constitution presumed innocent as long as the contrary has not been proved. Like any other person accused of an offense, he is entitled to the full and vigilant protection of the Bill of Rights.

Sanchez has brought this petition to challenge the order of the respondent judge denying his motion to quash the informations for rape with homicide filed against him and six other persons. We shall treat it as we would any other suit filed by any litigant hoping to obtain a just and impartial judgment from this Court.

The pertinent facts are as follows:

On July 28, 1993, the Presidential Anti-Crime Commission requested the filing of appropriate charges against several persons, including the petitioner, in connection with the rape-slay of Mary Eileen Sarmenta and the killing of Allan Gomez.

Acting on this request, the Panel of State Prosecutors of the Department of Justice conducted a preliminary investigation on August 9, 1993. Petitioner Sanchez was not present but was represented by his counsel, Atty. Marciano Brion, Jr.

On August 12, 1993, PNP Commander Rex Piad issued an "invitation" to the petitioner requesting him to appear for investigation at Camp Vicente Lim in Canlubang, Laguna. It was served on Sanchez in the morning of August 13, 1993, and he was immediately taken to the said camp.

At a confrontation that same day, Sanchez was positively identified by Aurelio Centeno and SPO III Vivencio Malabanan, who both executed extrajudicial confessions implicating him as a principal in the rape-slay of Sarmenta and the killing of Gomez. The petitioner was then placed on "arrest status" and taken to the Department of Justice in Manila.

The respondent prosecutors immediately conducted an inquest upon his arrival, with Atty. Salvador Panelo as his counsel.

After the hearing, a warrant of arrest was served on Sanchez. This warrant was issued on August 13, 1993, by Judge Enrico A. Lanzanas of the Regional Trial Court of Manila, Branch 7,

in connection with Criminal Cases Nos. 93-124634 to 93-124637 for violation of Section 8, in relation to Section 11, of R.A. No. 6713. Sanchez was forthwith taken to the CIS Detention Center, Camp Crame, where he remains confined.

On August 16, 1993, the respondent prosecutors filed with the Regional Trial Court of Calamba, Laguna, seven informations charging Antonio L. Sanchez, Luis Corcolon, Rogelio Corcolon, Pepito Kawit, Baldwin Brion, Jr., George Medialdea and Zoilo Ama with the rape and killing of Mary Eileen Sarmenta.

On August 26, 1993, Judge Eustaquio P. Sto. Domingo of that court issued a warrant for the arrest of all the accused, including the petitioner, in connection with the said crime.

The respondent Secretary of Justice subsequently expressed his apprehension that the trial of the said cases might result in a miscarriage of justice because of the tense and partisan atmosphere in Laguna in favor of the petitioner and the relationship of an employee in the trial court with one of the accused. This Court thereupon ordered the transfer of the venue of the seven cases to Pasig, Metro Manila, where they were raffled to respondent Judge Harriet Demetriou.

On September 10, 1993, the seven informations were amended to include the killing of Allan Gomez as an aggravating circumstance.

On that same date, the petitioner filed a motion to quash the informations substantially on the grounds now raised in this petition. On September 13, 1993, after oral arguments, the respondent judge denied the motion. Sanchez then filed with this Court the instant petition for *certiorari* and prohibition with prayer for a temporary restraining order/writ of injunction.

The petitioner argues that the seven informations filed against him should be quashed because: 1) he was denied the right to present evidence at the preliminary investigation; 2) only the Ombudsman had the competence to conduct the investigation; 3) his warrantless arrest is illegal and the court has therefore not acquired jurisdiction over him; 4) he is being charged with seven homicides arising from the death of only two persons; 5) the informations are discriminatory because they do not include

Teofilo Alqueza and Edgardo Lavadia; and 6) as a public officer, he can be tried for the offense only by the Sandiganbayan.

The respondents submitted a Comment on the petition, to which we required a Reply from the petitioner within a non-extendible period of five days.[1] The Reply was filed five days late.[2] The Court may consider his non-compliance an implied admission of the respondents' arguments or a loss of interest in prosecuting his petition, which is a ground for its dismissal. Nevertheless, we shall disregard this procedural lapse and proceed to discuss his petition on the basis of the arguments before us.

The Preliminary Investigation

The records of the hearings held on August 9 and 13, 1993, belie the petitioner's contention that he was not accorded the right to present counter-affidavits.

During the preliminary investigation on August 9, 1993, the petitioner's counsel, Atty. Marciano Brion, manifested that his client was waiving the presentation of a counter-affidavit, thus:

Atty. Brion, Jr.:

[W]e manifest that after reviewing them there is nothing to rebut or countermand all these statements as far as Mayor Sanchez is concerned. We are not going to submit any counter-affidavit.

ACSP Zuño to Atty. Brion:

x x x x x x x x x

Q. So far, there are no other statements.

A. If there is none then, we will not submit any counter-affidavit because we believe there is nothing to rebut or countermand with all these statements.

Q. So, you are waiving your submission of counter-affidavit?

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[1] Resolution dated October 5, 1993.

[2] The petitioner claims in his Reply to have received the resolution on October 15, 1993. The Reply was filed only on October 25, 1993.

A. Yes, your honor, unless there are other witnesses who will come up soon.[3]

Nonetheless, the head of the Panel of Prosecutors, respondent Jovencito Zuño, told Atty. Brion that he could still file a counter-affidavit up to August 27, 1993. No such counter-affidavit was filed.

During the hearing on August 13, 1993, respondent Zuño furnished the petitioner's counsel, this time Atty. Salvador Panelo, with copies of the sworn statements of Centeno and Malabanan, and told him he could submit counter-affidavits on or before August 27, 1993. The following exchange ensued:

ACSP Zuño:

For the record, we are furnishing to you the sworn statement of witness Aurelio Centeno *y* Roxas and the sworn statement of SPO3 Vivencio Malabanan *y* Angeles.

Do I understand from you that you are again waiving the submission of counter-affidavit?

Atty. Panelo:

Yes.

ACSP Zuño:

So, in so far as the respondent, Mayor Antonio Sanchez is concerned, this case is submitted for resolution.[4]

On the other hand, there is no support for the petitioner's subsequent manifestation that his counsel, Atty. Brion, was not notified of the inquest held on August 13, 1993, and that he was not furnished with the affidavits sworn to on that date by Vivencio Malabanan and Aurelio Centeno, or with their supplemental affidavits dated August 15, 1993. Moreover, the above-quoted excerpt shows that the petitioner's counsel at the hearing held on August 13, 1993, was not Atty. Brion but Atty. Panelo.

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[3] TSN, August 9, 1993, pp. 10-11.

[4] TSN, August 13, 1993, pp. 7-10.

The petitioner was present at that hearing and he never disowned Atty. Panelo as his counsel. During the entire proceedings, he remained quiet and let this counsel speak and argue on his behalf. It was only in his tardy Reply that he has suddenly bestirred himself and would now question his representation by this lawyer as unauthorized and inofficious.

Section 3 paragraph (d), Rule 112 of the Rules of Court, provides that if the respondent cannot be subpoenaed or, if subpoenaed, does not submit counter-affidavits, the investigating officer shall base his resolution on the evidence presented by the complainant.

Just as the accused may renounce the right to be present at the preliminary investigation,[5] so may he waive the right to present counter-affidavits or any other evidence in his defense.

At any rate, it is settled that the absence of a preliminary investigation does not impair the validity of the information or otherwise render the same defective and neither does it affect the jurisdiction of the court over the case or constitute a ground for quashing the information.[6]

If no preliminary investigation has been held, or if it is flawed, the trial court may, on motion of the accused, order an investigation or reinvestigation and hold the proceedings in the criminal cases in abeyance.[7] In the case at bar, however, the respondent judge saw no reason or need for such a step. Finding no arbitrariness in her factual conclusions, we shall defer to her judgment.

Jurisdiction of the Ombudsman

Invoking the case of *Deloso v. Domingo*,[8] the petitioner submits that the proceedings conducted by the Department of Justice

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[5] *Guzman v. People*, 119 SCRA 337; *Cruz v. Salva*, 105 Phil. 1151.

[6] *Go v. Court of Appeals*, 206 SCRA 138; *Rodis v. Sandiganbayan*, 166 SCRA 618; *Sanciangco, Jr. v. People*, 149 SCRA 1; *People v. Gomez*, 117 SCRA 72; *People v. Yutila*, 102 SCRA 264; *Solis v. People*, 84 SCRA 377; *People v. Figuero*a, 27 SCRA 1239; *People v. Casiano*, 111 Phil. 73.

[7] *Go v. Court of Appeals, supra; Velasquez v. Tuquero*, 182 SCRA 388; *Crespo v. Mogul*, 151 SCRA 462; *People v. La Caste*, 37 SCRA 767.

[8] 191 SCRA 545.

are null and void because it had no jurisdiction over the case. His claim is that it is the Office of the Ombudsman that is vested with the power to conduct the investigation of all cases involving public officers like him, as the municipal mayor of Calauan, Laguna.

The Ombudsman is indeed empowered under Section 15, paragraph (1) of R.A. 6770 to investigate and prosecute any illegal act or omission of any public official. However, as we held only two years ago in the case of *Aguinaldo v. Domagas*,[9] this authority "is not an exclusive authority but rather a shared or concurrent authority in respect of the offense charged."

Petitioners finally assert that the information and amended information filed in this case needed the approval of the Ombudsman. It is not disputed that the information and amended information here did not have the approval of the Ombudsman. However, we do not believe that such approval was necessary at all. In *Deloso v. Domingo*, 191 SCRA 545 (1990), the Court held that the Ombudsman has authority to investigate charges of illegal acts or omissions on the part of any public official, *i.e.*, any crime imputed to a public official. It must, however, be pointed out that the authority of the Ombudsman to investigate "any [illegal] act or omission of any public official" (191 SCRA at 550) is not an *exclusive* authority but rather a shared or concurrent authority in respect of the offense here charged, *i.e.*, the crime of sedition. Thus, the non-involvement of the office of the Ombudsman in the present case does not have any adverse legal consequence upon the authority of the panel of prosecutors to file and prosecute the information or amended information.

In fact, other investigatory agencies of the government such as the Department of Justice, in connection with the charge of sedition,[10] and the Presidential Commission on Good Government, in ill-gotten wealth cases,[11] may conduct the investigation.

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[9] G.R. No. 98452, September 26, 1991.

[10] *Aguinaldo v. Domagas, supra.*

[11] *Panlilio v. Sandiganbayan*, 210 SCRA 421; *Virata v. Sandiganbayan*, 202 SCRA 680; *Cojuangco v. Presidential Commission on Good Government*, 190 SCRA 226.

The Arrest

Was petitioner Sanchez arrested on August 13, 1993?

"Arrest" is defined under Section 1, Rule 113 of the Rules of Court as the taking of a person into custody in order that he may be bound to answer for the commission of an offense. Under Section 2 of the same Rule, an arrest is effected by an actual restraint of the person to be arrested or by his voluntary submission to the custody of the person making the arrest.

Application of actual force, manual touching of the body, physical restraint or a formal declaration of arrest is not required. It is enough that there be an intent on the part of one of the parties to arrest the other and an intent on the part of the other to submit, under the belief and impression that submission is necessary.[12]

The petitioner was taken to Camp Vicente Lim, Canlubang, Laguna, by virtue of a letter-invitation issued by PNP Commander Rex Piad requesting him to appear at the said camp for investigation.

In *Babst v. National Intelligence Board*[13] this Court declared:

> Be that as it may, it is not idle to note that ordinarily, an invitation to attend a hearing and answer some questions, which the person invited may heed or refuse at his pleasure, is not illegal or constitutionally objectionable. Under certain circumstances, however, such an invitation can easily assume a different appearance. Thus, where *the invitation comes from a powerful group composed predominantly of ranking military officers* issued at a time when the country has just emerged from martial rule and when the suspension of the privilege of the writ of *habeas corpus* has not entirely been lifted, and *the designated interrogation site is a military camp*, the same can easily be taken, *not as a strictly voluntary invitation* which it purports to be, but *as an authoritative command* which one can only defy at his peril x x x. (Italics supplied)

In the case at bar, the invitation came from a high-ranking military official and the investigation of Sanchez was to be made

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[12] 5 Am Jur 2d, p. 696.

[13] 132 SCRA 318.

at a military camp. Although in the guise of a request, it was obviously a command or an order of arrest that the petitioner could hardly be expected to defy. In fact, apparently cowed by the "invitation," he went without protest (and in informal clothes and slippers only) with the officers who had come to fetch him.

It may not be amiss to observe that under R.A. No. 7438, the requisites of a "custodial investigation" are applicable even to a person not formally arrested but merely "invited" for questioning.

It should likewise be noted that at Camp Vicente Lim, the petitioner was placed on "arrest status" after he was pointed to by Centeno and Malabanan as the person who first raped Mary Eileen Sarmenta. Respondent Zuño himself acknowledged during the August 13, 1993 hearing that, on the basis of the sworn statements of the two state witnesses, the petitioner had been "arrested."

We agree with the petitioner that his arrest did not come under Section 5, Rule 113 of the Rules of Court, providing as follows:

SECTION 5. Arrest without warrant; when lawful. A peace officer or a private person may, without a warrant, arrest a person:

(a) When, in his presence, the person to be arrested has committed, is actually committing, or is attempting to commit an offense;

(b) When an offense has in fact just been committed and he has personal knowledge of facts indicating that the person to be arrested has committed it; and

(c) When the person to be arrested is a prisoner who has escaped from a penal establishment or place where he is serving final judgment or temporarily confined while his case is pending, or has escaped while being transferred from one confinement to another.

It is not denied that the arresting officers were not present when the petitioner allegedly participated in the killing of Allan Gomez and the rape-slay of Mary Eileen Sarmenta. Neither did they have any personal knowledge that the petitioner was responsible therefor because the basis of the arrest was the sworn statements of Centeno and Malabanan. Moreover, as the rape and killing of Sarmenta allegedly took place on June 28 - June 29, 1993, or forty-six days before the date of the arrest, it cannot

be said that the offense had "in fact just been committed" when the petitioner was arrested.

The original warrantless arrest of the petitioner was doubtless illegal. Nevertheless, the Regional Trial Court lawfully acquired jurisdiction over the person of the petitioner by virtue of the warrant of arrest it issued on August 26, 1993 against him and the other accused in connection with the rape-slay cases. It was belated, to be sure, but it was nonetheless legal.

Even on the assumption that no warrant was issued at all, we find that the trial court still lawfully acquired jurisdiction over the person of the petitioner. The rule is that if the accused objects to the jurisdiction of the court over his person, he may move to quash the information, but only on that ground. If, as in this case, the accused raises other grounds in the motion to quash, he is deemed to have waived that objection and to have submitted his person to the jurisdiction of the court.[14]

The Court notes that on August 13, 1993, after the petitioner was unlawfully arrested, Judge Lanzanas issued a warrant of arrest against Antonio L. Sanchez in connection with Criminal Cases Nos. 93-124634 to 93-124637 for violation of R.A. No. 6713.[15] Pending the issuance of the warrant of arrest for the rape-slay cases, this first warrant served as the initial justification for his detention.

The Court also adverts to its uniform ruling that the filing of charges, and the issuance of the corresponding warrant of arrest, against a person invalidly detained will cure the defect of that detention or at least deny him the right to be released because of such defect.[*] Applicable by analogy to the case at bar is Rule 102 Section 4 of the Rules of Court that:

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[14] Regalado, *Remedial Law Compendium Book 2*, 1989 Ed., p. 318 citing 22 C.J.S. 1961 Ed., p. 418.

[15] Annex 1, Comment.

[*] The writer of this opinion has objected to this ruling but without success. While maintaining his dissent in this case, he nevertheless must acknowledge the binding character of this doctrine.

SECTION 4. *When writ is not allowed or discharge authorized.* — If it appears that the person alleged to be restrained of his liberty is in the custody of an officer under process issued by a court or judge or by virtue of a judgment or order of a court of record, and that the court or judge had jurisdiction to issue the process, render the judgment, or make the order, the writ shall not be allowed; or if the jurisdiction appears after the writ is allowed, the person shall not be discharged by reason of any informality or defect in the process, judgment, or order. Nor shall anything in this rule be held to authorize the discharge of a person charged with or convicted of an offense in the Philippines or of a person suffering imprisonment under lawful judgment.

In one case,[16] the petitioner sued on *habeas corpus* on the ground that she had been arrested by virtue of a John Doe warrant. In their return, the respondents declared that a new warrant specifically naming her had been issued, thus validating her detention. While frowning at the tactics of the respondents, the Court said:

The case has, indeed, become moot and academic inasmuch as the new warrant of arrest complies with the requirements of the Constitution and the Rules of Court regarding the particular description of the person to be arrested. While the first warrant was unquestionably void, being a general warrant, release of the petitioner for that reason will be a futile act as it will be followed by her immediate re-arrest pursuant to the new and valid warrant, returning her to the same prison she will just have left. This Court will not participate in such a meaningless charade.

The same doctrine has been consistently followed by the Court,[17] more recently in the Umil case.[18]

The Informations

The petitioner submits that the seven informations charging seven separate homicides are absurd because the two victims in these cases could not have died seven times.

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[16] *Dugay, et al. v. Ramos*, G.R. No. 75221, January 15, 1987.

[17] *Harvey v. Defensor-Santiago*, 162 SCRA 840; *Domingo v. Minister of National Defense, et al.*, 124 SCRA 529; *Beltran v. Garcia*, 89 SCRA 717; *Dela Plata v. Escarcha*, 78 SCRA 208; *Cruz v. Montoya*, 62 SCRA 543.

[18] 187 SCRA 312 and 202 SCRA 215.

This argument was correctly refuted by the Solicitor General in this wise:

> Thus, where there are two or more offenders who commit rape, the homicide committed on the occasion or by reason of each rape, must be deemed as a constituent of the special complex crime of rape with homicide. Therefore, there will be as many crimes of rape with homicide as there are rapes committed.
>
> In effect, the presence of homicide qualifies the crime of rape, thereby raising its penalty to the highest degree. Thus, homicide committed on the occasion or by reason of the rape, loses its character as an independent offense, but assumes a new character, and functions like a qualifying circumstance. However, by fiction of law, it is merged with rape to constitute a constituent element of a special complex crime of rape with homicide with a specific penalty which is in the highest degree, *i.e.*, death (reduced to *reclusion perpetua* with the suspension of the application of the death penalty by the Constitution).

It is clearly provided in Rule 110 of the Rules of Court that:

> SECTION 13. *Duplicity of offense*. A complaint or information must charge but one offense, except only in those cases in which existing laws prescribe a simple punishment for various offenses.

Rape with homicide comes within the exception under R.A. 2632 and R.A. 4111, amending the Revise Penal Code.

The petitioner and his six co-accused are not charged with only one rape committed by him in conspiracy with the other six. Each one of the seven accused is charged with having himself raped Sarmenta instead of simply helping Sanchez in committing only one rape. In other words, the allegation of the prosecution is that the girl was raped seven times, with each of the seven accused taking turns in abusing her with the assistance of the other six. Afterwards, their lust satisfied, all seven of them decided to kill and thus silence Sarmenta.

Every one of the seven accused is being charged separately for actually raping Sarmenta and later killing her instead of merely assisting the petitioner in raping and then slaying her.

The separate informations filed against each of them allege that each of the seven successive rapes is complexed by the subsequent slaying of Sarmenta and aggravated by the killing of Allan Gomez by her seven attackers. The separate rapes were committed in succession by the seven accused, culminating in the slaying of Sarmenta.

It is of course absurd to suggest that Mary Eileen Sarmenta and Allan Gomez were killed seven times, but the informations do not make such suggestion. It is the petitioner who does so and is thus hoist by his own petard.

The Alleged Discrimination

The charge of discrimination against the petitioner because of the non-inclusion of Teofilo Alqueza and Edgardo Lavadia in the informations must also be dismissed.

While the prosecuting officer is required by law to charge all those who, in his opinion, appear to be guilty, he nevertheless cannot be compelled to include in the information a person against whom he believes no sufficient evidence of guilt exists.[19] The appreciation of the evidence involves the use of discretion on the part of the prosecutor, and we do not find in the case at bar a clear showing by the petitioner of a grave abuse of such discretion.[20]

The decision of the prosecutor may be reversed or modified by the Secretary of Justice or in special cases by the President of the Philippines.[21] But even this Court cannot order the prosecution of a person against whom the prosecutor does not find sufficient evidence to support at least a *prima facie* case.

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[19] *Alberto v. de la Cruz*, 98 SCRA 406; *People v. Santos*, 30 SCRA 100; *People v. Agasang*, 60 Phil. 182; *People v. Ong*, 53 Phil. 544.

[20] *Maddela v. Aquino*, 104 Phil. 433; *People v. Morton*, 23 SCRA 1024; *Guiao v. Figueroa*, 94 Phil. 1018.

[21] Section 1, par. (d) P.D. No. 911; Section 4, Rule 112, 1985 Rules on Criminal Procedure; Department Circular No. 7, January 25, 1990; Memorandum Circular No. 1266; *Vda. de Jacob v. Puno*, 131 SCRA 144; *Crespo v. Mogul, supra*.

The courts try and absolve or convict the accused but as a rule have no part in the initial decision to prosecute him.

The possible exception is where there is an unmistakable showing of a grave abuse of discretion that will justify judicial intrusion into the precincts of the executive. But in such a case the proper remedy to call for such exception is a petition for *mandamus*, not *certiorari* or prohibition.[22] Moreover, before resorting to this relief, the party seeking the inclusion of another person as a co-accused in the same case must first avail itself of other adequate remedies such as the filing of a motion for such inclusion.[23]

At any rate, it is a preposterous contention that because no charges have been filed against Alqueza and Lavadia, the charges against the petitioner and his co-accused should also be dropped.

Jurisdiction of the Sandiganbayan

The petitioner argued earlier that since most of the accused were incumbent public officials or employees at the time of the alleged commission of the crimes, the cases against them should come under the jurisdiction of the Sandiganbayan and not of the regular courts. This contention was withdrawn in his Reply but we shall discuss it just the same for the guidance of all those concerned.

Section 4, paragraph (a) of P.D. No. 1606, as amended by P.D. No. 1861, provides:

SECTION 4. *Jurisdiction*. The Sandiganbayan shall exercise:

a) Exclusive original jurisdiction in all cases involving:

(1) Violations of Republic Act No. 3019, as amended, otherwise known as the Anti-Graft and Corrupt Practices Act, Republic Act No. 1379, and Chapter II, Section 2, Title VII of the Revised Penal Code;

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[22] Section 3, Rule 65, Rules of Court; *Baylosis v. Chavez*, 202 SCRA 405; *De Castro, et al. v. Castañeda, et al.*, 1 SCRA 1131; *Guiao v. Figueroa*, 94 Phil. 1018.

[23] *Aquino v. Mariano*, 129 SCRA 532.

(2) Other offenses or felonies committed by public officers and employees *in relation to their office*, including those employed in government-owned or controlled corporations, whether simple or complexed with other crimes, where the penalty prescribed by law is higher than *prision correccional* or imprisonment for six (6) years, or a fine of ₱6,000.00 xxx (Italics supplied)

The crime of rape with homicide with which the petitioner stands charged obviously does not fall under paragraph (1), which deals with graft and corruption cases. Neither is it covered by paragraph (2) because it is not an offense committed in relation to the office of the petitioner.

In *Montilla v. Hilario*,[24] this Court described the "offense committed in relation to the office" as follows:

[T]he relation between the crime and the office contemplated by the Constitution is, in our opinion, direct and not accidental. To fall into the intent of the Constitution, the relation has to be such that, in the legal sense, the offense cannot exist without the office. In other words, the office must be a constituent element of the crime as defined in the statute, such as, for instance, the crimes defined and punished in Chapter Two to Six, Title Seven, of the Revised Penal Code.

Public office is not of the essence of murder. The taking of human life is either murder or homicide whether done by a private citizen or public servant, and the penalty is the same except when the perpetrator, being a public functionary, took advantage of his office, as alleged in this case, in which event the penalty is increased.

But the use or abuse of office does not adhere to the crime as an element; and even as an aggravating circumstance, its materiality arises, not from the allegations but on the proof, not from the fact that the criminals are public officials but from the manner of the commission of the crime.

There is no direct relation between the commission of the crime of rape with homicide and the petitioner's office as municipal mayor because public office is not an essential element

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[24] 90 Phil. 49.

of the crime charged. The offense can stand independently of the office. Moreover, it is not even alleged in the information that the commission of the crime charged was intimately connected with the performance of the petitioner's official functions to make it fall under the exception laid down in *People v. Montejo*.[25]

In that case, a city mayor and several detectives were charged with murder for the death of a suspect as a result of a "third degree" investigation held at a police substation. The appearance of a senator as their counsel was questioned by the prosecution on the ground that he was inhibited by the Constitution from representing them because they were accused of an offense committed in relation to their office. The Court agreed. It held that even if their position was not an essential ingredient of the offense, there was nevertheless an intimate connection between the office and the offense, as alleged in the information, that brought it within the definition of an offense "committed in relation to the public office."

As Chief Justice Concepcion said:

> It is apparent from these allegations that, although public office is not an element of the crime of murder in abstract, as committed by the main respondents herein, according to the amended information, the offense therein charged is *intimately connected* with their respective offices and was perpetrated while they were in the performance, though improper or irregular, of their official functions. Indeed, they had no personal motive to commit the crime and they would not have committed it had they not held their aforesaid offices. The co-defendants of respondent Leroy S. Brown, obeyed his instructions because he was their superior officer, as Mayor of Basilan City. (Italics supplied)

We have read the informations in the case at bar and find no allegation therein that the crime of rape with homicide imputed to the petitioner was connected with the discharge of his functions as municipal mayor or that there is an "intimate connection"

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[25] 108 Phil. 613.

between the offense and his office. It follows that the said crime, being an ordinary offense, is triable by the regular courts and not the Sandiganbayan.

Conclusion

As above demonstrated, all of the grounds invoked by the petitioner are not supported by the facts and the applicable law and jurisprudence. They must, therefore, all be rejected. In consequence, the respondent judge, who has started the trial of the criminal cases against the petitioner and his co-accused, may proceed therewith without further hindrance.

It remains to stress that the decision we make today is not a decision on the merits of the criminal cases being tried below. These will have to be decided by the respondent judge in accordance with the evidence that is still being received. At this time, there is yet no basis for judgment, only uninformed conjecture. The Court will caution against such irrelevant public speculations as they can be based only on imperfect knowledge if not officious ignorance.

WHEREFORE, the petition is *DISMISSED*. The respondent judge is *DIRECTED* to continue with the trial of Criminal Cases Nos. 101141, 101142, 101143, 101144, 101145, 101146 and 101147 and to decide them with deliberate dispatch.

SO ORDERED.

Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Melo, Quiason, Puno, and *Vitug, JJ.*, concur.

Narvasa, C.J., no part. Related to former counsel of party.

Bellosillo, J., on leave.

SECOND DIVISION

[G.R. No. 95080. November 10, 1993]

ISETANN DEPARTMENT STORE, INC., *petitioner, vs.* **THE NATIONAL LABOR RELATIONS COMMISSION, SECOND DIVISION and ROSITA BAUTISTA**, *respondents*.

SYLLABUS

1. LABOR AND SOCIAL LEGISLATION; TERMINATION OF EMPLOYMENT; EMPLOYER HAS A DISTINCT PREROGATIVE TO DISMISS AN EMPLOYEE; RULE. — The recognized rule is that the employer has a distinct prerogative to dismiss an employee if the former has ample reason to distrust the latter or if there is sufficient evidence to show that the employee has been guilty of breach of trust. The law does not require proof beyond reasonable doubt of the employee's misconduct below the employer can invoke such authority. It is sufficient that there is some basis for the loss of trust or that the employer has reasonable grounds to believe that the employee is guilty of misconduct and that the nature of the employee's action renders him or her unworthy of the trust and confidence' demanded by the position.

2. ID.; ID.; ID.; RULE APPLIED IN CASE AT BAR. — In the case at bar, Bautista's involvement in the anomaly complained of was sufficiently shown by the corroborating testimonies of Capua and Mangoba. Both the Labor Arbiter and the NLRC gravely abused their discretion in rejecting said testimonies, acting-as they did under gross misapprehension of facts. We rule that petitioner has shown by sufficient evidence respondent Bautista's involvement in the fraudulent transaction. There was valid cause for petitioner's losing the trust and confidence reposed upon her as a supervisorial employee, and consequently, in dismissing her from its service.

APPEARANCES OF COUNSEL

Batino, Angala, Salud & Fabia Law Offices for petitioner.
Emmanuel G. Fule for private respondent.

D E C I S I O N

NARVASA, *C.J.*:

Petitioner Isetann Department Store, Inc. seeks to annul and set aside the Resolution issued on August 29, 1990 by the Second Division of the National Labor Relations Commission[1] in NLRC Case No. 00-01-0071-88, entitled "*Rosita R. Bautista, Complainant-Appellee vs. Isetann Department Store, Inc., Respondent-Appellant*." It is alleged that the assailed resolution, which dismissed the appeal of petitioner Isetann from the decision of Labor Arbiter Felipe P. Pati dated July 31, 1989, was rendered arbitrarily, capriciously and with grave abuse of discretion because contrary to law and the evidence.[2]

We agree with this assessment.

Private respondent Rosita Bautista was Floor Supervisor at the third floor of petitioner's store at Carriedo, Manila. Her sister, Yolanda Chan, was a regular supplier of shoes to petitioner. On June 2, 1987, Yolanda Chan delivered to petitioner assorted styles of ladies shoes consisting of 1,379 pairs of "Valencia" shoes and 940 pairs of deerskin shoes. The "Valencia" shoes were priced at ₱22.00 a pair, or a total of ₱30,338.00, while the deerskin shoes were priced at ₱25.00 a pair, or a total of ₱23,500.00, adding up to ₱53,838.00 overall.

Because of the difference in price and material, the shoes had to be sorted out, which task was undertaken beginning June 13, 1987 under the supervision of Head of Stock, Connie Capua. Sorting, however, was completed under another Head of Stock, Iglesia (Liza) Mangoba, as Capua went on leave. After the shoes had been sorted out, Mangoba prepared a Purchase Order erroneously listing the number of "Valencia" shoes at 940 pairs and the deerskin shoes at 1,379 pairs and giving these a total value of ₱55,155.00.

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[1] Composed of Presiding Commissioner Edna Bonto Perez, Commissioners Rustico L. Diokno (Ponente) and Domingo H. Zapata.

[2] Petition, p. 8, *Rollo*, p. 9.

The switch in figures was discovered sometime in July, 1987 when the shoes were transferred to petitioner's Cubao branch. The purchase order was cancelled and a new check for the correct amount of ₱53,838.00 was prepared and paid to Yolanda Chan, who continued to supply shoes to petitioner until September, 1987. When confronted with the error by Alice Luro, Buyer, and Mr. K. C. Tan, Merchandiser, Mangoba admitted her mistake in sorting out the shoes and in preparing the purchase order.

Subsequently, however, or on November 28, 1987, Mangoba executed a written statement stating *inter alia* that when she took over the sorting job from Connie Capua, she was instructed by the latter to mix some "Valencia" shoes with the deerskin shoes so that Yolanda Chan would not lose from the transaction. She did as instructed, but when she was preparing the purchase order, private respondent approached her and seeing that the "Valencia" shoes still outnumbered the deerskin shoes, told her to interchange the respective numbers indicated for the Valencia and deerskin shoes. When subsequently confronted with the switched figures, she had to own the error and take the blame because private respondent Bautista was staring at her.[3]

On the basis of Mangoba's written statement, petitioner conducted a preliminary investigation, in the course of which, Capua likewise executed a written statement on December 2, 1987 stating that she was instructed by private respondent to mix the "Valencia" shoes with the deerskin shoes to avert loss on the part of Chan, and had given the same instruction to Mangoba when the latter took over the sorting job. She was given ₱400.00 and a pair of shoes by respondent Bautista for her cooperation.[4]

Bautista was asked to explain her alleged participation in the incident. Hearings were conducted on December 11, 14 and 16, 1987. On December 24, 1987, petitioner wrote Bautista, terminating her services effective December 28, 1987, for:

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[3] Annex "B", Petition, *Rollo*, pp. 36-42.

[4] Annex "C", Petition, *Rollo*, pp. 43-46.

"willful breach of the trust reposed on you by the Company thru violations you have committed against our Company Rules and Regulations as provided below:

Rule XIV - Sec. 2. Bribery or offering or accepting anything of value in exchange for a job. work, assignment, work location, or favorable condition or employment.

*Rule XIV - Sec. 32.*Engaging or conniving in anomalous transactions.

Rule XVIII - Sec. 9. Using Company time, or materials or equipment to do unauthorized work within or without the Company premises for personal gain.

*Rule XIV - Sec. 17.*Causing loss of time/and/or money to the Company because of negligence or inefficiency in the performance of official duties or persistently doing unsatisfactory work."[5]

Bautista contested her dismissal through a complaint filed before the NLRC NCR Arbitration Branch. No amicable settlement having been reached, hearing on the merits ensued.

On July 31, 1989, Labor Arbiter Felipe P. Pati rendered judgment "ordering the respondent (Isetann) to reinstate the complainant to her former position without loss of seniority rights and to pay her full backwages and other benefits from the time she was illegally dismissed until actual reinstatement plus ten (10) percent of the total award as Attorney's fees payable to counsel."[6] The Labor Arbiter ruled that no fraud or anomaly attended the accomplishment of the purchase order of Chan's June 2, 1987 shoe delivery but only an error in its preparation as admitted by Mangoba when first confronted therewith. No credence was given to the testimonies of Capua and Mangoba that they were instructed by private respondent to mix the shoes to avoid loss on the part of Chan because nobody would "agree to outrightly transact or enter into a losing proposition or business" and Chan herself testified that she would already be getting a marginal profit from the correct price of the shoes. Moreover,

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[5] Annex "F", Petition, *Rollo,* p. 53.

[6] Annex "I", Petition, *Rollo,* pp. 77-78.

Arbiter Pati noted that petitioner's own version that the anomaly was discovered in July, 1987 was irreconcilable with the fact that Chan was paid the correct amount as early as June, 1987 and she was still allowed to supply shoes to petitioner until September 1987. In fine, the Labor Arbiter concluded that petitioner Isetann had failed to substantiate the charges imputed to private respondent and that there was no basis for her dismissal on the ground of loss of trust and confidence.

On appeal by petitioner Isetann, the National Labor Relations Commission sustained the Arbiter's conclusion that the fact of payment on June 29, 1987 of the cost of the delivery rendered incredible the testimonies of Capua and Mangoba that after the anomaly was discovered either in July or November, the purchase order was cancelled and a new check for the correct amount was prepared and their conflicting testimonies that the anomaly was discovered in July or November, as Chan was allowed to deliver shoes to petitioner until September, 1987. The NLRC also considered as grounds for rejecting the confessions of Mangoba and Capua the delay in their execution as well as the statement of Mangoba during her cross-examination that "they were threatening me," "they" being taken to mean petitioner. Taking note of the amount involved, the NLRC found the testimony of respondent Bautista that she had nothing to do with the alleged fraudulent mixing of shoes easier to believe since she would not risk her supervisorial job and seven years of service for a measly sum of ₱1,317.00.

In the petition at bar, petitioner assails the affirmance by the NLRC of the Labor Arbiter's decision as constituting grave abuse of discretion because the Arbiter not only failed to accord due weight to petitioner's testimonial and documentary evidence, but more importantly, misapprehended the same, thereby drawing conclusions that were entirely incongruent and fallacious.

The recognized rule is that the employer has a distinct prerogative to dismiss an employee if the former has ample reason to distrust the latter or if there is sufficient evidence to show that the employee has been guilty of breach of trust. The law does not require proof beyond reasonable doubt of the

employee's misconduct before the employer can invoke such authority. It is sufficient that there is some basis for the loss of trust or that the employer has reasonable grounds to believe that the employee is guilty of misconduct and that the nature of the employee's action renders him or her unworthy of the trust and confidence demanded by the position.[7]

In the case at bar, Bautista's involvement in the anomaly complained of was sufficiently shown by the corroborating testimonies of Capua and Mangoba. Both the Labor Arbiter and the NLRC gravely abused their discretion in rejecting said testimonies, acting as they did under gross misapprehension of facts. No contradiction arises from the fact of payment on June 29, 1987 and petitioner's witnesses' statement that the anomaly was discovered in July or November of the same year. What was discovered in July was only the switch of figures in the purchase order then ascribed to nothing more than inattention or carelessness. It was not until November, when Mangoba executed her written statement, that respondent Bautista's hand in said interchanging was discovered. Only then when what appeared to be a mere error in the preparation of the purchase order was revealed to be an aborted fraudulent scheme involving private respondent. Thus, it was likewise not illogical that Chan continued to supply shoes to petitioner until September.

Another reason given by the Labor Arbiter for rejecting the testimonies of Capua and Mangoba is that nobody would "agree to outrightly transact or enter into a losing proposition or business."[8] This exemplifies what petitioner terms an incongruous and fallacious conclusion. Whether or not Chan really stood to lose in the transaction if no switch in figures was made is immaterial. What matter is not the truth or falsity of that statement,

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[7] *Top Form Mfg. Co., Inc. vs. NLRC*, G. R. No. 65706, December 11, 1992, 216 SCRA 313; citing *Valladolid vs. Inciong*, 121 SCRA 205 [1983]; *DOLE Philippines, Inc. vs. NLRC*, 123 SCRA 673 [1983]; *Ocean Terminal Services, Inc. vs. NLRC*, 197 SCRA 491 [1991]; *Baguio Country Club Corporation vs. NLRC and GENOVE*, G. R. No. 102397, September 4, 1992.

[8] p. 6, Labor Arbiter's Decision, Annex "I", Petition, p. 76, *Rollo*.

but rather that this was the reason given by private respondent in urging and convincing Capua to fraudulently mix the "Valencia" with deerskin shoes.

Equally "incongruous and fallacious" is the interpretation given by the NLRC to the following portion of Mangoba's cross examination:

"ATTY. FULE:

Q. Madam witness, in your statement you stated therein and I quote the last paragraph. '*Sana po ay maunawaan po ninyo ang aking katayuan sa hindi ko po pagtatapat kaagad*.' What do you mean by the term '*katayuan*'?

"Witness:

A. Because I was afraid because they are threatening me."[9]

Said the labor tribunal:

"The revelation, coming as it does from Isetann's principal witness on cross-examination, is worthy of belief. It is also significant because *threat* having been employed to be sure by Isetann's management for to suppose otherwise would lead to absurdity the credibility of the so-called confession has been reduced to naught, more so considering that absence of any plausible reason why it took Iglesia Mangoba several months to come up with the alleged confession. For the reason, the alleged confession of Connie Capua, made after Mangoba's confession, could hardly be considered also."[10]

Contrarily, this response of Mangoba strengthened, rather than diminished her credibility, as it explained why it took her several months to disclose private respondent's involvement in the anomaly. In fact, she was asking management to understand her plight in not revealing the scheme sooner because respondent Bautista was threatening her. "They" in her response did not refer to management, but to private respondent and her husband,

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[9] TSN, p. 32, April 25, 1988; italics supplied.

[10] page 9, NLRC Resolution, Annex "A", Petition, p. 35, *Rollo*.

the latter reputedly a policeman. We echo petitioner's observation that it would be absurd to suppose that the reason Mangoba did not immediately report the anomalous activity of private respondent is because she was threatened by petitioner. For why would petitioner prevent Mangoba from divulging said information when such disclosure would certainly redound to its benefit? Would it not serve management's interest if an anomaly in the company is reported immediately to it once discovered?

It was, therefore, grave abuse of discretion on the part of respondent NLRC to affirm the conclusions reached by the Labor Arbiter based on gross misapprehension of facts and itself to reach conclusions clearly contrary to the evidence presented. We rule that petitioner has shown by sufficient evidence respondent Bautista's involvement in the fraudulent transaction. There was valid cause for petitioner's losing the trust and confidence reposed upon her as a supervisorial employee, and consequently, in dismissing her from its service.

WHEREFORE, the petition is hereby *GRANTED*. The assailed Resolution of the NLRC Second Division, and decision of the Labor Arbiter are *ANNULLED* and *SET ASIDE*, and private petitioner's complaint for illegal termination of employment *DISMISSED*.

SO ORDERED.

Padilla, Regalado, Nocon, and *Puno, JJ*., concur.

EN BANC

[G.R. No. 96779. November 10, 1993]

PINES CITY EDUCATIONAL CENTER and EUGENIO BALTAO, *petitioners, vs.* **THE NATIONAL LABOR RELATIONS COMMISSION (THIRD DIVISION) and DANGWA BENTREZ, ROLAND PICART, APOLLO RIBAYA, SR., RUPERTA RIBAYA, VIRGINIA BOADO, CECILIA EMOCLING, JANE BENTREZ, LEILA DOMINGUEZ, ROSE ANN BERMUDEZ, and LUCIA CHAN,** *respondents*.

SYLLABUS

1. LABOR AND SOCIAL LEGISLATION; LABOR CODE; FIXED CONTRACTS OF EMPLOYMENT; REQUISITES FOR VALIDITY. — Since the entire purpose behind the development of legislation culminating the present Article 280 of the Labor Code clearly appears to have been, as already observed, to prevent circumvention of the employee's right to be secure in his tenure, the clause in said article indiscriminately and completely ruling out all written or oral agreements conflicting with the concept of regular employment as defined therein should be construed to refer to the substantive evil that the Code itself has singled out: agreements entered into precisely to circumvent security of tenure. It should have no application to instances where a fixed period of employment was agreed upon knowingly and voluntarily by the parties, without any force, duress or improper pressure being brought to bear upon the employee and absent any other circumstances vitiating his consent or where it satisfactorily appears that the employer and employee dealt with each other on more or less equal terms with no moral dominance whatever being exercised by the former over the latter. Unless thus limited in its purview, the law would be made to apply to purposes other than those explicitly stated by its framers; it thus becomes pointless and arbitrary, unjust in its effects and apt to lead to absurd and unintended consequences.

2. ID.; ID.; ID.; CONTRACTS IN CASE AT BAR ENTERED INTO KNOWINGLY AND VOLUNTARILY; TERMINATION, LAWFUL AFTER EXPIRATION OF PERIOD. — Insofar as the private respondents who knowingly and voluntarily agreed upon fixed periods of employment are concerned, their services were lawfully terminated by reason of the expiration of the periods of their respective contracts. These are Dangwa Bentrez, Apollo Ribaya, Sr., Ruperta Ribaya, Virginia Boado, Cecilia Emocling, Jose Bentrez, Leila Dominguez and Rose Ann Bermudez. Thus, public respondent committed grave abuse of discretion in affirming the decision of the Labor Arbiter ordering their reinstatement and payment of full backwages and other benefits and privileges.

3. ID.; ID.; PROBATIONARY EMPLOYMENT; WITH SECURITY OF TENURE AND CANNOT BE REMOVED EXCEPT FOR CAUSE. — With respect to private respondents Roland Picart and Lucia Chan, both of whom did not sign any contract fixing the periods of their employment nor to have knowingly and voluntarily agreed upon fixed periods of employment, petitioners had the burden of proving that the termination of their services was legal. As probationary employees, they are likewise protected by the security of tenure provision of the Constitution. Consequently, they cannot be removed from their positions unless for cause.

4. REMEDIAL LAW; APPEALS; FINDINGS OF FACTS OF THE LABOR ARBITER, GENERALLY UPHELD ON APPEAL; CASE AT BAR. — On the other hand, petitioners contended that based on the evaluation of the Academic Committee their performance as teachers was poor. The Labor Arbiter, however, was not convinced. Thus, he found as follows: "Respondents likewise aver that the Academic Committee has evaluated their performance during their one semester employment (see Annexes "M" to "X" of complainants' position paper). However, they did not present any written proofs or evidence to support their allegation. "x x x There is absolutely nothing in the record which will show that the complainants were afforded even an iota of chance to refute respondents' allegations that the complainants did not meet the reasonable standards and criteria set by the school x x x." We concur with these factual findings, there being no showing that they were resolved arbitrarily.

5. LABOR AND SOCIAL LEGISLATION; LABOR RELATIONS; ILLEGAL DISMISSAL; REINSTATEMENT AND PAYMENT OF BACKWAGES, PROPER. — The order for their reinstatement and payment of full backwages and other benefits and privileges from the time they were dismissed up to their actual reinstatement is proper, conformably with Article 279 of the Labor Code, as amended by Section 34 of Republic Act No. 6715, which took effect on March 21, 1989. It should be noted that private respondents Roland Picart and Lucia Chan were dismissed illegally on March 31, 1989, or after the effectivity of said amendatory law.

6. ID.; ID.; BACKWAGES; AMOUNT DERIVED FROM EMPLOYMENT ELSEWHERE SHOULD BE DEDUCTED THEREFROM; REASON. — In ascertaining the total amount of backwages payable to them, we go back to the rule prior to the Mercury Drug rule that the total amount derived from employment elsewhere by the employee from the date of dismissal up to the date of reinstatement, if any, should be deducted therefrom. We restate the underlying reason that employees should not be permitted to enrich themselves at the expense of their employer. In addition, the law abhors double compensation. To this extent, our ruling in *Alex Ferrer, et al. v. NLRC, et al.*, G.R. No. 100898, promulgated on July 5, 1993, is hereby modified.

7. REMEDIAL LAW; SPECIAL CIVIL ACTIONS; CONTEMPT; DEFIANCE OF SUPREME COURT'S DECISION. — Public respondent cannot claim not knowing the ruling in the Brent case because in its questioned resolution, it stated that one of the cases invoked by petitioners in their appeal is said case. This notwithstanding, it disregarded Our ruling therein without any reason at all and expressed the erroneous view that: "The agreement of the parties fixing a definite date for the termination of the employment relations is contrary to the specific provision of Article 280. Being contrary to law, the agreement cannot be legitimized x x x." *Stare decisis et non quieta movere*. Once a case has been decided one way, then another case, involving exactly the same point at issue, should be decided in the same manner. Public respondent had no choice on the matter. It could not have ruled in any other way. This Tribunal having spoken in the Brent case, its duty was to obey. Let it be warned that to defy its decisions is to court contempt.

APPEARANCES OF COUNSEL

Tenefrancia, Agranzamendez, Liceralde & Associates for petitioners.

Reynaldo B. Cajucom for private respondents.

D E C I S I O N

NOCON, *J.*:

This is a petition for *certiorari* seeking reversal of the resolution of public respondent National Labor Relations Commission dated November 29, 1990, in NLRC Case No. 01-04-0056-89, which affirmed *in toto* the decision of the Labor Arbiter dated February 28, 1990.

The antecedent facts are, as follows:

Private respondents Dangwa Bentrez, Roland Picart, Apollo Ribaya, Sr., Ruperta Ribaya, Virginia Boado, Cecilia Emocling, Jane Bentrez, Leila Dominguez, Rose Ann Bermudez and Lucia Chan were all employed as teachers on probationary basis by petitioner Pines City Educational Center, represented in this proceeding by its President, Eugenio Baltao. With the exception of Jane Bentrez who was hired as a grade school teacher, the remaining private respondents were hired as college instructors. All the private respondents, except Roland Picart and Lucia Chan, signed contracts of employment with petitioner for a fixed duration. On March 31, 1989, due to the expiration of private respondents' contracts and their poor performance as teachers, they were notified of petitioners' decision not to renew their contracts anymore.

On April 10, 1989, private respondents filed a complaint for illegal dismissal before the Labor Arbiter, alleging that their dismissals were without cause and in violation of due process. Except for private respondent Leila Dominguez who worked with petitioners for one semester, all the other private respondents were employed for one to two years. They were never informed in writing by petitioners regarding the standards or criteria of

evaluation so as to enable them to meet the requirements for appointment as regular employees. They were merely notified in writing by petitioners, through its Chancellor, Dra. Nimia R. Concepcion, of the termination of their respective services as of March 31, 1989, on account of their below-par performance as teachers.

For their part, petitioners contended that private respondents' separation from employment, apart from their poor performance, was due to the expiration of the periods stipulated in their respective contracts. In the case of private respondent Dangwa Bentrez, the duration of his employment contract was for one year, or beginning June, 1988 to March, 1989 whereas in the case of the other private respondents, the duration of their employment contracts was for one semester, or beginning November, 1988 to March 1989. These stipulations were the laws that governed their relationships, and there was nothing in said contracts which was contrary to law, morals, good customs and public policy. They argued further that they cannot be compelled to enter into new contracts with private respondents. They concluded that the separation of private respondents from the service was justified.

On February 28, 1990, the Labor Arbiter rendered judgment in favor of private respondents, the dispositive portion of which reads:

"WHEREFORE, in the light of the foregoing considerations, judgment is hereby rendered ORDERING the respondents to reinstate the complainants immediately to their former positions and to pay their full backwages and other benefits and privileges without qualification and deduction from the time they were dismissed up to their actual reinstatement.

Thus, respondents should pay complainants the following:

BACKWAGES

NOTE: Computation covers only the period complainants were terminated up to January 31, 1990 or 10 months and does not include backwages from January 31, 1990 up to their actual reinstatement.

1) *ROLAND PICART*

   a) Latest salary per month.....₱2,136.00
   b) Multiplied by the period covered
      (March 31, 1989 to January 31, 1990) x 10 months
   c) Equals backwages due.....₱ 21,360.00

2) *LUCIA CHAN*

   a) Latest salary per month.....₱ 1,600.00
   b) Multiplied by period covered.....x 10 months
   c) Equals backwages due.....₱16,000.00

3) *LEILA DOMINGUEZ*

   a) Latest salary per month.....₱1,648.24
   b) Multiplied by period covered.....x 10 months
   c) Equals backwages due.....₱16,482.40

4) *RUPERTA RIBAYA*

   a) Latest salary per month.....₱1,856.00
   b) Multiplied by period covered.....x 10 months
   c) Equals backwages due.....₱18,560.00

5) *CECILIA EMOCLING*

   a) Latest salary per month.....₱1,648.00
   b) Multiplied by period covered.....x 10 months
   c) Equals backwages due.....₱16,480.00

6) *ROSE ANN BERMUDEZ*

   a) Latest salary per month.....₱2,600.00
   b) Multiplied by period covered.....x 10 months
   c) Equals backwages due.....₱26,000.00

7) *DANGWA BENTREZ*

   a) Latest salary per month.....₱1,700.00
   b) Multiplied by period covered.....x 10 months
   c) Equals backwages due.....₱17,000.00

8) *JANE BENTREZ*

   a) Latest salary per month.....₱1,315.44
   b) Multiplied by period covered.....x 10 months
   c) Equals backwages due.....₱13,154.40

9) *APOLLO RIBAYA*

a) Latest salary per month.....₱1,875.00
b) Multiplied by period covered.....x 10 months
c) Equals backwages due.....₱18,750.00

10) *VIRGINIA BOADO*

a) Latest salary per month.....₱1,648.24
b) Multiplied by period covered.....x 10 months
c) Equals backwages due.....₱16,482.40

SUMMARY

1) Roland Picart.....₱21,360.00
2) Lucia Chan.....16,000.00
3) Leila Dominguez.....16,482.40
4) Ruperta Ribaya.....18,560.00
5) Cecilia Emocling.....16,480.00
6) Rose Ann Bermudez.....26,000.00
7) Dangwa Bentrez.....17,000.00
8) Jane Bentrez.....13,154.40
9) Apollo Ribaya.....18,750.00
10) Virginia Boado.....16,482.40
GRAND TOTAL (Backwages).....₱180,269.20

Complainants' claims for indemnity pay, premium pay for holidays and rest days, illegal deduction, 13th month pay and underpayment are hereby DENIED for lack of merit.

SO ORDERED."[1]

In support of this decision, the Labor Arbiter rationalized that the teacher's contracts[2] are vague and do not include the specific description of duties and assignments of private respondents. They do not categorically state that there will be no renewal because their appointments automatically terminate at the end of the semester. Petitioners did not present any written evidence to substantiate their allegation that the Academic Committee has evaluated private respondents' performance during

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[1] *Rollo*, pp. 79-80.

[2] Annexes "1", "3", to "10" of private respondents' position paper.

their one semester employment. On the contrary, they were hastily dismissed.

On appeal to the National Labor Relations Commission, the decision was affirmed *in toto* in its resolution dated November 29, 1990, with the additional reasoning that "the stipulation in the contract providing for a definite period in the employment of complainants is obviously null and void, as such stipulation directly assails the safeguards laid down in Article 280 (of the Labor Code),[3] which explicitly abhors the consideration of written or oral agreements pertaining to definite period in regular employment."[4] Hence, the present petition for *certiorari* with prayer for the issuance of a temporary restraining order.

As prayed for, this Court issued a temporary restraining order on March 11, 1991, enjoining respondents from enforcing the questioned resolution.[5]

Petitioners raise this sole issue: "THAT THERE IS *PRIMA FACIE* EVIDENCE OF GRAVE ABUSE OF DISCRETION ON THE PART OF THE LABOR ARBITER BY WANTONLY, CAPRICIOUSLY AND MALICIOUSLY DISREGARDING PROVISIONS OF LAW AND JURISPRUDENCE LAID

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[3] *Rollo*, p. 98.

[4] ART. 280. Regular and Casual Employment. The provisions of written agreement to the contrary notwithstanding and regardless of the oral agreement of the parties, an employment shall be deemed to be regular where the employee has been engaged to perform activities which are usually necessary or desirable in the usual business or trade of the employer, except where the employment has been fixed for a specific project or undertaking the completion or termination of which has been determined at the time of the engagement of the employee or where the work or services to be performed is seasonal in nature and the employment is for the duration of the season.

An employment shall be deemed to be casual if it is not covered by the preceding paragraph: Provided, That, any employee who has rendered at least one year of service, whether such service is continuous or broken, shall be considered a regular employee with respect to the activity in which he is employed and his employment shall continue while such actually exists.

[5] *Rollo*, pp. 107-108.

DOWN IN DECISIONS OF THE HONORABLE SUPREME COURT."[6]

Petitioners reiterate their previous arguments, relying heavily in the case of *Brent School, Inc., et al. v. Zamora, et al.*[7]

It is quite easy to resolve the present controversy because the *Brent* case, which is a product of extensive research, already provides the answer. We were categorical therein that:

"Accordingly, and since the entire purpose behind the development of legislation culminating in the present Article 280 of the Labor Code clearly appears to have been, as already observed, to prevent circumvention of the employee's right to be secure in his tenure, the clause in said article indiscriminately and completely ruling out all written or oral agreements conflicting with the concept of regular employment as defined therein should be construed to refer to the substantive evil that the Code itself has singled out: agreements entered into precisely to circumvent security of tenure. *It should have no application to instances where a fixed period of employment was agreed upon knowingly and voluntarily by the parties, without any force, duress or improper pressure being brought to bear upon the employee and absent any other circumstances vitiating his consent, or where it satisfactorily appears that the employer and employee dealt with each other on more or less equal terms with no moral dominance whatever being exercised by the former over the latter.* Unless thus limited in its purview, the law would be made to apply to purposes other than those explicitly stated by its framers; it thus becomes pointless and arbitrary, unjust in its effects and apt to lead to absurd and unintended consequences." (Italics supplied.)

This ruling was reiterated in *Pakistan International Airlines Corporation v. Ople, etc., et al.*[8] and *La Salette of Santiago, Inc. v. NLRC, et al.*[9]

In the present case, however, We have to make a distinction.

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[6] *Rollo,* p. 2.

[7] G.R. No. L-48494, 181 SCRA 702 (1990).

[8] G.R. No. 61594, 190 SCRA 90 (1990).

[9] G.R. No. 82918, 195 SCRA 80 (1991).

Insofar as the private respondents who knowingly and voluntarily agreed upon fixed periods of employment are concerned, their services were lawfully terminated by reason of the expiration of the periods of their respective contracts. These are Dangwa Bentrez, Apollo Ribaya, Sr., Ruperta Ribaya, Virginia Boado, Cecilia Emocling, Jose Bentrez, Leila Dominguez and Rose Ann Bermudez. Thus, public respondent committed grave abuse of discretion in affirming the decision of the Labor Arbiter ordering their reinstatement and payment of full backwages and other benefits and privileges.

With respect to private respondents Roland Picart and Lucia Chan, both of whom did not sign any contract fixing the periods of their employment nor to have knowingly and voluntarily agreed upon fixed periods of employment, petitioners had the burden of proving that the termination of their services was legal. As probationary employees, they are likewise protected by the security of tenure provision of the Constitution. Consequently, they cannot be removed from their positions unless for cause.[10] On the other hand, petitioners contended that based on the evaluation of the Academic Committee their performance as teachers was poor. The Labor Arbiter, however, was not convinced. Thus, he found as follows:

"Respondents likewise aver that the Academic Committee has evaluated their performance during their one semester employment (see Annexes "M" to "X" of complainants' position paper.). However, they did not present any written proofs or evidence to support their allegation.[11]

"x x x x x x x x x.

"There is absolutely nothing in the record which will show that the complainants were afforded even an iota of chance to refute respondents' allegations that the complainants did not meet the reasonable standards and criteria set by the school. x x x."[12]

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[10] *Colegio San Agustin v. NLRC, et al.*, G.R. No. 87333, 201 SCRA 398 (1991).

[11] *Rollo*, p. 74.

[12] *Rollo*, p. 78.

We concur with these factual findings, there being no showing that they were resolved arbitrarily.[13] Thus, the order for their reinstatement and payment of full backwages and other benefits and privileges from the time they were dismissed up to their actual reinstatement is proper, conformably with Article 279 of the Labor Code, as amended by Section 34 of Republic Act No. 6715,[14] which took effect on March 21, 1989.[15] It should be noted that private respondents Roland Picart and Lucia Chan were dismissed illegally on March 31, 1989, or after the effectivity of said amendatory law. However, in ascertaining the total amount of backwages payable to them, we go back to the rule prior to the Mercury Drug rule[16] that the total amount derived from employment elsewhere by the employee from the date of dismissal

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[13] *De Vera, et al. v. NLRC, et al.,* G.R. No. 93212, 191 SCRA 632 (1990).

[14] Section 34 of Republic Act No. 6715 provides: Article 279 of the Labor Code is hereby amended to read as follows: "ART. 279. Security of Tenure. — In cases of regular employment, the employer shall not terminate the services of an employee except for a just cause or when authorized by this Title. An employee who is unjustly dismissed from work shall be entitled to reinstatement without loss of seniority rights and other privileges and to his *full* backwages, inclusive of allowances, and to his other benefits or their monetary equivalent computed from the time his compensation was withheld from him up to the time of his actual reinstatement." (italics supplied).

[15] *Sealand Service, Inc. v. NLRC*, G.R. No. 90500, 190 SCRA 347 (1990); *Maranaw Hotels and Resorts Corporation v. Court of Appeals, et al*., G.R. No. 103215, November 6, 1992; *Arms Taxi and/or Dorothea Tanongon v. NLRC, et al.,* G.R. No. 104523, March 8, 1993.

[16] In the case of *Mercury Drug Co., Inc., et al. v. Court of Industrial Relations, et al.*, G.R. No. L-23357, 56 SCRA 694 (1974), this Court first found occasion to rule that an employee whose illegal termination had lasted some years was entitled to backwages for a fixed period without further qualifications, *i.e.*, without need of taking into account whatever he might have earned during such period and deducting it from the amount to be recovered, in order to relieve the employee from proving his income during the period he was out of the service and the employer from submitting counter-proofs, which may delay the execution of the decision. The base period of three years was later considered just and reasonable and instituted in the case of *Feati University Faculty Club (PAFLU) v. Feati University, et al.,* G.R. No. L-31503, 58 SCRA 395 (1974).

up to the date of reinstatement, if any, should be deducted therefrom.[17] We restate the underlying reason that employees should not be permitted to enrich themselves at the expense of their employer.[18] In addition, the law abhors double compensation.[19] To this extend, our ruling in *Alex Ferrer, et al. v. NLRC, et al.*, G.R. No. 100898, promulgated on July 5, 1993, is hereby modified.

Public respondent cannot claim not knowing the ruling in the *Brent* case because in its questioned resolution, it stated that one of the cases invoked by petitioners in their appeal is said case.[20] This notwithstanding, it disregarded Our ruling therein without any reason at all and expressed the erroneous view that:

"The agreement of the parties fixing a definite date for the termination of the employment relations is contrary to the specific provision of Article 280. Being contrary to law, the agreement cannot be legitimized. x x x."[21]

Stare decisis et non quieta movere. Once a case has been decided one way, then another case, involving exactly the same point at issue, should be decided in the same manner. Public respondent had no choice on the matter. It could not have ruled in any other way. This Tribunal having spoken in the *Brent* case, its duty was to obey.[22] Let it be warned that to defy its decisions is to court contempt.[23]

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[17] *Itogon-Suyoc Mines, Inc. v. Sañgilo-Itogon Workers' Union, et al.*, G.R. No. L-24189, 24 SCRA 873 (1968).

[18] *Philippine Air Lines, Inc. v. Philippine Air Lines Employees Associatio*n, 108 Phil. 1129.

[19] *Itogon-Suyoc Mines, Inc. v. Sañgilo-Itogon Workers' Union, et al., supra.*

[20] *Rollo*, p. 96.

[21] *Rollo*, p. 99.

[22] *Ang Ping, et al. v. RTC of Manila, et al.,* G.R. No. 75860, 154 SCRA 77 (1987).

[23] *The Philippine Veterans Affairs Office v. Segundo*, G.R. No. 51570, 164 SCRA 365 (1988).

WHEREFORE, the resolution of public respondent National Labor Relations Commission dated November 29, 1990 is hereby *MODIFIED*. Private respondents Roland Picart and Lucia Chan are ordered reinstated without loss of seniority rights and other privileges and their backwages paid in full inclusive of allowances, and to their other benefits or their monetary equivalent pursuant to Article 279 of the Labor Code, as amended by Section 34 of Republic Act No. 6715, subject to deduction of income earned elsewhere during the period of dismissal, if any, to be computed from the time they were dismissed up to the time of their actual reinstatement. The rest of the Labor Arbiter's decision dated February 28, 1990, as affirmed by the NLRC is set aside. The temporary restraining order issued on March 11, 1991 is made permanent.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Bidin, Regalado, Davide, Jr. Romero, Nocon, Bellosillo, Melo, Quiason, and *Vitug, JJ.*, concur.

Padilla, J., see separate opinion.

Puno, J., join the separate opinion of *J.* Padilla.

Griño-Aquino, J., retired on October 22, 1993.

SEPARATE OPINIONS

PADILLA, *J.*:

I concur in the Court's decision penned by Mr. Justice Nocon except that I cannot see my way clear to allowing deductions from the full backwages prescribed by law, given the language and evident intention of Rep. Act No. 6715.

1. Art. 279 of the Labor Code as amended by Rep. Act No. 6715 states: "Security of Tenure— In cases of regular employment, the employer shall not terminate the services of an employee except for a just cause or when authorized by this Title. An employee who is unjustly dismissed from work shall be entitled to reinstatement without loss of seniority rights and

other privileges and to his *full* backwages, inclusive of allowances, and to his other benefits or their monetary equivalent *computed from the time his compensation was withheld from him up to the time of his actual reinstatement*." (Italics Supplied)

The amendment to Art. 279 of the Labor Code introduced by Rep. Act No. 6715 inserted the qualification "full" to the word "backwages". The intent of the law seems to be clear. The plain words of the statute provide that an employee who is unjustly dismissed is entitled to FULL backwages from the time of his dismissal to actual reinstatement. The law provides no qualification nor does it state that income earned by the employee during the period between his unjust dismissal and reinstatement should be deducted from such backwages. When the law does not provide, the Court should not improvise.

It is further my view that the principle of unjust enrichment (if no deduction is allowed from backwages) does not apply in this case, for the following reasons:

1. The applicable provision of law should be construed in favor of labor.

2. The Labor Code is a *special law* which should prevail over the Civil Code provisions on unjust enrichment.

3. The language employed by the statute and, therefore, its intent are clear. Where the unjust dismissal occurs after Rep. Act No. 6715 took effect, backwages must be awarded from the time the employee is unlawfully dismissed until the time he is actually reinstated. There is no provision authorizing deduction of income earned by the employee during that period. The statutory formula was evidently crafted by the legislature not only for convenience and expediency in executing the monetary judgments in favor of the employees but also to prevent the employer from resorting to delaying tactics when the judgment is executed by pleading income earned by the employee before reinstatement as proper deductions from backwages. It is true that the dismissed employee may also resort to the same delaying tactics but when we consider the by and large inherent inequality of resources between employer and employee, the legislative formula would

seem to be equitable. Besides and this we cannot over-stress-given the language of the law, the Court appears to have no alternative but to award such full backwages without deduction or qualification. Any other interpretation opens the Court to the charge of indulging in judicial legislation.

I therefore vote to award private respondents Roland Picart and Lucia Chan full backwages from the time of their unjust dismissal to their actual reinstatement, without deduction or qualification in accordance with the mandate of the law (Rep. Act No. 6715).

SECOND DIVISION

[G.R. No. 104611. November 10, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **FELIMON JAVA *y* MERCADO,** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; IDENTIFICATION OF THE ACCUSED, SUFFICIENTLY ESTABLISHED. — While conceding that the cartographs do not portray the same person, a comparison, however, of the descriptions given by said prosecution witnesses in their respective sworn statements previously quoted herein shows that except for the age range of the accused-appellant; all the details agree and point to one and the same person. Both descriptions speak of a person with a circular face, stocky physique and curly hair. Thus, it is not the witnesses' fault if the cartographs came up with slightly different drawings of the accused-appellant. The cartographer could have perceived their declarations along different lines. Nevertheless, the important factor is that both witnesses identified the accused-appellant in court when they

came face to face with him and pinpointed to him respectively as one of the robbers and the gunman. While evidence as to the identity of the accused-appellant as the person who committed the crime should be carefully analyzed, the Court has consistently held that where conditions of visibility are favorable and the witness does not appear to be biased against the man on the dock, his or her assertions as to the identity of the malefactor should be normally accepted. The witnesses in this case, particularly Mrs. Valdez, had a clear recollection of the identity of the assailant of her son. She categorically declared that she had a good look at him and could not forget his face, particularly, his eyes. In the face of her clear and positive testimony regarding the accused appellant's role as the gunman of her son, as well as Cambaya's positive identification of the same person as the man who accosted him, there is no mistaking that accused-appellant is one of the perpetrators of the crime.

2. ID.; ID.; ADMISSIBILITY; OBJECTION TO THE ADMISSIBILITY OF THE TESTIMONY OF A WITNESS CANNOT BE MADE FOR THE FIRST TIME ON APPEAL. — Notwithstanding that his testimony was not formally offered, its presentation was not objected to either. Section 36 of the aforementioned Rule requires that an objection in the course of the oral examination of a witness should be made as soon as the grounds therefor shall become reasonably apparent. Since no objection to the admissibility of evidence was made in the court below, an objection raised for the first time on appeal will riot be considered.

3. ID.; ID.; *RES GESTAE*; AMOUNT OF MONEY ROBBED ESTABLISHED THROUGH STATEMENT OF THE VICTIM AS PART OF *RES GESTAE*. — At any rate, the amount stolen came to be known, when Mrs. Valdez who rushed to their office, after being informed of a commotion therein, testified to being informed by her son, Michael, that they have been robbed of ₱5,000.00. This statement is admissible as part of the *res gestae*, having been made immediately after a startling occurrence and before the declarant had time to concoct matter, so that his utterance at that time was merely a reflex product, his immediate sensual impression. Said statement is admissible in evidence as one of the exceptions to the hearsay rule on the ground of trustworthiness and necessity.

4. ID.; ID.; IN ROBBERY WITH HOMICIDE, THE PROSECUTION NEED NOT PROVE THAT THE PERSON WHO COMMITTED THE ROBBERY IS THE SAME PERSON WHO KILLED THE VICTIM, IT IS ENOUGH THAT THE CONNECTION BETWEEN THE ROBBERY AND THE HOMICIDE WAS SUFFICIENTLY ESTABLISHED; RELEVANT RULINGS, CITED. — Accused-appellant's fifth and sixth assigned errors center on the alleged failure of the prosecution to prove that those who committed the robbery and those who killed the victim are one and the same persons as to establish the crime of robbery with homicide. Not only are the arguments fallacious but have no leg to stand on. Prosecution witness Salvador Cambaya positively identified the accused-appellant as one of those who held him up as well as the establishment where he works. While Mrs. Valdez identified the same accused-appellant as the jeep passenger who shot and killed his son. Hence, the connection between the robbery and the homicide was sufficiently established. True, the robbers in the case at bar had already fled with their loot when the shooting of the victim took place during his hot pursuit of the culprits. It is settled that where the deceased attacked and stopped the robbers when they had already come out of the store where the robbery was committed and got killed in the process, it cannot be denied that the act of killing was done in order to repel an aggression which, had it been effective, would have endangered the whole success of the robbery committed. It was done, in the final analysis, in order to defend the possession of the stolen property. It was therefore an act which tended to insure the successful termination of the robbery and secure to the robbers the possession and enjoyment of the goods taken. It has also been held that where the deceased followed the robbers after he had been robbed and by reason thereof, he was fired upon by one of the robbers, the crime is robbery with homicide. The same is true even if the murder was perpetrated at a place different from that of the robbery and after an appreciable interval of time.

5. ID.; ID.; ALIBI; A WEAK DEFENSE. — While it may be true that accused-appellant indeed sought Col. Garcia's recommendation for reinstatement to the service on the date in question as borne out by the letter of recommendation itself, which is dated March 19, 1988, such fact does not conclusively prove that accused appellant was at the colonel's office on

said date and time as that of the commission of the offense charged. There was no logbook which recorded his visit, nor the date and time thereof; nor was the letter of recommendation recorded as having been issued by the colonel's office on said date. Hence, there is no independent proof showing that Col. Garcia issued said letter on March 19, 1988. The good Col. Garcia even admitted that he could not remember the other people who visited him on the said day or on any day for that matter. Likewise, the trial judge noted that accused-appellant presented this defense only long after the case has gone to trial and more importantly, he noticed that the testimony of accused-appellant himself provided the clue that indicated that his defense predicated on alibi has been merely contrived. The accused-appellant's invocation of alibi in unavailing not only by reason of its inherent weakness but also because of the circumstances pointing to its contrived nature and his positive identification by the prosecution witnesses as one of the persons who participated in the robbery and shot the victim.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Aida D. Dizon for accused-appellant.

D E C I S I O N

NOCON, *J.*:

Convicted of the crime of robbery with homicide in Criminal Case No. 88-372 before the Regional Trial Court of Quezon City, Branch CIII, accused Felimon Java *y* Mercado interposed this present appeal. Enumerating eight (8) errors which the trial court allegedly committed, he dutifully discussed each of them and insisted on his innocence. Sequentially, we will analyze the merit of each of the said errors, to wit:

"I

"XXX IN HOLDING THAT SALVADOR CAMBAYA POSITIVELY IDENTIFIED ACCUSED-APPELLANT AS A PRINCIPAL ACTOR IN THE COMMISSION OF THE CRIME AT BAR.

"II

"X X X IN HOLDING THAT ACCUSED-APPELLANT COMMITTED ROBBERY AGAINST THE PERSONS OF MICHAEL VALDEZ AND VIRGINIA VALDEZ.

"III

"X X X IN GIVING CREDENCE TO THE TESTIMONY OF PASTOR VALDEZ IN SPITE THE FACT THAT HIS TESTIMONY WAS NOT FORMALLY OFFERED BY THE PROSECUTION.

"IV

"X X X IN HOLDING THAT VIRGINIA VALDEZ POSITIVELY IDENTIFIED ACCUSED-APPELLANT AS A PRINCIPAL ACTOR IN THE COMMISSION OF THE CRIME AT BAR.

"V

"X X X IN FINDING ACCUSED-APPELLANT GUILTY OF THE CRIME OF ROBBERY WITH HOMICIDE.

"VI

"X X X IN FINDING ACCUSED-APPELLANT GUILTY OF THE CRIME OF ROBBERY WITH HOMICIDE BASED ON EVIDENCE NOT ON RECORD.

"VII

"X X X IN NOT GIVING CREDENCE TO THE TESTIMONY OF COL. RODOLFO GARCIA AND OTHER DEFENSE WITNESSES.

"VIII

"X X X IN NOT GIVING CREDENCE TO THE DEFENSE OF ALIBI OF ACCUSED-APPELLANT."[1]

The facts upon which the trial court based its decision convicting the accused are as follows:

At about 3:00 p.m. on March 19, 1988, at the V. Valdez Trading, a gravel and sand establishment located at P. Tuazon Street, Cubao, Quezon City, two men appearing to be customers,

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[1] *Rollo,* pp. 59-60.

arrived. One of them proceeded to the office building while the other approached Salvador Cambaya, a truck helper, while the latter was weighing cement in front of the establishment. This man poked a gun at Cambaya, announced a hold-up, divested him of his ₱20.00 and ordered him to enter the office building where he and other employees and a customer were gathered in front of the counter by the man identified later as accused Felimon Java. The other man ransacked the drawers and found some money which he took. Then he proceeded to the room where Michael Valdez, the son of the owner of the establishment was. Michael was heard as saying "*Wala sa akin ang susi*" and "*walang pera diyan*." The employees gathered in front of the counter also heard something being destroyed and after a while, saw the man rush out holding a brown envelope. The two men hurriedly left.

Meanwhile, Virginia Cabate Valdez, the mother of Michael Valdez, was at the beauty parlor in front of their establishment. She was informed by the owner of the parlor that a commotion was going on at their place. She rushed out and was informed by her son Michael, that they had just been robbed of ₱50,000.00. Since Michael decided to run after the holduppers and he could not be stopped from doing so, she boarded the car of Michael, a Toyota, and went with him. They drove along 20th Avenue and turned left at Boni Serrano where Michael saw and pointed to the get-away vehicle of the holduppers, which was a maroon-colored passenger jeepney. Michael bumped the jeepney several times and turned left at Katipunan Road. However, the holduppers followed them and bumped their car several times at the rear and sides. Somewhere further along the Katipunan Road, one of the holduppers fired a gun hitting the rear glass of Michael's car. While the jeepney was side by side with their car, he fired more shots at them hitting Michael on the torso and on the left side of his body. As a result, Michael died. The holduppers sped away towards Quirino Labor Hospital.

Salvador Cambaya described to the Quezon City cartographer the physical characteristics of the man who accosted him as follows: "*5'5" ang taas, mga 28-30 ang edad, maitim, mabilog*

ang katawan, kulot na medyo maikli ang buhok, pabilog din ang mukha."[2]

On the other hand, Mrs. Valdez described the man who killed her son as:

"*Bilog ang mukha, maitim, bilog ang katawan, mga 35-40 ang edad, kulot ang buhok.*"[3]

On August 25, 1988 at around 11:00 a.m., Pat. Zaragosa, a police operative, went to see Mrs. Valdez and asked her whether she would be able to recognize the man who killed her son if she saw him again. Answering in the affirmative, she was brought to Quezon City Hall and advised to be observant. When they were on a street near the office of the Metro Manila Commission, she saw a man inside the building which was 20 to 25 meters away. She could see him from the neck up as the latter was facing the window. She positively declared that he was the gunman and could not be wrong because she could not forget the face, especially the eyes of the man who shot her son.

As a result of such identification, accused was arrested on August 26, 1988 and on August 29, 1988, an information was filed with the Regional Trial Court of Quezon City charging him with the crime of Robbery with Homicide, which read as follows:

"That on or about the 19th day of March, 1988, in Quezon City, Philippines, and within the jurisdiction of this Honorable Court, the said accused, conspiring together, confederating with and mutually helping one another, with intent of gain, with violence and/or intimidation of person, did, then and there, willfully, unlawfully and feloniously (sic) VIRGINIA VALDEZ *y* CABOTE and MICHAEL VALDEZ *y* CABOTE, mother and son respectively, by then and there, pointing their respective firearms at them and thereafter take, rob and divested the victims' collection for the day amounting to ₱50,000.00, Philippine Currency, to the damage and prejudice of the said owner thereof in the total sum; that on the occasion of the

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[2] Records, p. 263.

[3] *Ibid*., p. 248.

said robbery, the said accused, conspiring together, confederating with and mutually helping one another, with intent to kill attack, assault and employ personal violence against Michael Valdez *y* Cabote, by then and there shooting him with a .38 cal. revolver marked Smith and Wesson, hitting him on his left breast, thereby inflicting him serious and mortal wounds which were the direct and immediate cause of his death, to the damage and prejudice of the heirs of the said Michael Valdez in such amount as may be awarded under the provisions of the Civil Code.

CONTRARY TO LAW."[4]

At the trial of the case, Salvador Cambaya and Mrs. Valdez recounted the aforesaid facts. Mrs. Valdez testified further that her family spent ₱13,833.20 for the Manila Memorial Park lot, ₱55,000.00 for the funeral services and ₱20,000.00 for the wake or a total of ₱48,833.20.

Pastor Valdez, Michael's father testified that his establishment lost ₱50,000.00 to the robbers. He explained that Michael had collected ₱40,000.00 from a customer in Taguig, Rizal and the ₱10,000.00 came from the proceeds of the sale of construction materials that day. He handed the ₱10,000.00 to Michael to be placed together with the ₱40,000.00 in the cabinet.

The defense evidence consisted, among others, of the testimony of accused Felimon Java and his witnesses, namely: Col. Rodolfo Garcia, Patrolman Jose Malasa and Pfc. Mario Almariego. All their testimonies evinced the theory that accused could not have committed the crime charged as he was at the office of Colonel Rodolfo Garcia, who was then the Station Commander of the Quezon City Police Force at the precise time and date as that of the commission of the offense.

Felimon Java testified that he was a former Quezon City policemen; that he was dismissed from the service on April 24, 1987 in view of an administrative case against him for violation of domicile; that when he was separated from the service, he bought a tricycle to earn a living; that in the month of July, 1988, he was a member of the Quezon City People's Patrol

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[4] *Rollo*, p. 3.

serving as security guard for Sonny Pumarada; and that from August 1, 1988 up to the time of his arrest, he was working as civilian agent of Western Sector Command, Malacañang Park, Metro Manila. On August 26, 1988, he was at Quezon City Hall particularly at the Metro Manila Commission Compound, together with one Sgt. Caingles, conducting a surveillance, when he was apprehended by Patrolman Zaragosa and brought to the office of one Major Rosales at Kamuning, EDSA. He claimed that Major Rosales, being the Supreme of the Guardians Chapter and Pat. Zaragosa, a member thereof, had both an ax to grind against him because on January 13, 1987, he shot dead two marines who were members of the Guardians who attacked their headquarters at Kamuning, Quezon City during the *coup* attempt. He was then a sentinel at the said police headquarters.

On March 19, 1988, from 2:30 to 4:00 p.m., he was at the office of Col. Rodolfo M. Garcia asking for a letter of recommendation to Col. Guillermo Domondon for his reinstatement to the service. He presented to the court said letter of recommendation dated March 19, 1993, quoted herein as follows:

"Col. Guillermo Domondon
C, C1 Division
Camp Crame, Q.C.

Dear Sir:

Please help bearer, Pat. Felimon Java in this reinstatement.

Regards,

Rudy"[5]

He brought the letter of recommendation to Col. Domondon but was informed by one Sgt. Rodriguez that the latter was out of town and that anyway, he already had a recommendation from Colonel Jaro, an aide of then Gen. Fidel Ramos. He didn't know about that Jaro recommendation but remembered that he had previously sought Col. Jaro to accompany him to see Col. Domondon when he was with the People's Patrol.

[5] Records, p. 262.

Pfc. Mario Almariego and Patrolman Jose Malasa corroborated his claim that he was at the office of Col. Garcia between 2:00 to 4:00 o'clock p.m. of March 19, 1988 for the purpose of securing a recommendation and that he lingered for some more time after getting the same.

Col. Rodolfo M. Garcia likewise confirmed the visit of the accused but also admitted that his office is swarmed with visitors everyday and he cannot memorize the names of people who see him.

He also said that the accused visited him again after he gave that note of recommendation asking for assistance to get employed. He remembered recommending him to a certain Sonny Pumarada who works at the Quezon City Hall.

After trial, accused was convicted of the offense charged, the dispositive portion of which read as follows:

"ACCORDINGLY, judgment is hereby rendered finding FELIMON JAVA *y* MERCADO GUILTY beyond reasonable doubt as principal for the crime of Robbery with Homicide. Said Felimon Java is hereby sentenced to suffer a jail term of *RECLUSION PERPETUA*.

On the civil aspect said accused Felimon Java is hereby ordered to pay the spouses Pastor and Virginia Valdez the sum of ₱50,000.00 in relation to the robbery at bar, the sum of ₱50,000.00 as actual damages for the death of their son Michael Valdez, the sum of ₱100,000.00 as moral damages and another ₱100,000.00 as exemplary damages. No costs.

SO ORDERED."[6]

Going through the eight assignments of errors allegedly committed by the trial court we note that the thrust of the defense particularly in the first assignment of error, is centered on the want of positive identification of the perpetrator of the crime. The accused-appellant harped on the disparity in the cartographs of the supposed suspects, Exhibits "E" and "C", based on the descriptions given by the prosecution witnesses Salvador Cambaya and Virginia Valdez, respectively.

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[6] *Rollo,* pp. 32-33.

While conceding that the cartographs do not portray the same person, a comparison, however, of the descriptions given by said prosecution witnesses in their respective sworn statements previously quoted herein shows that except for the age range of the accused-appellant, all the details agree and point to one and the same person. Both descriptions speak of a person with a circular face, stocky physique and curly hair. Thus, it is not the witnesses' fault if the cartographs came up with slightly different drawings of the accused-appellant. The cartographer could have perceived their declarations along different lines. Nevertheless, the important factor is that both witnesses identified the accused-appellant in court when they came face to face with him and pinpointed to him respectively as one of the robbers and the gunman.

While evidence as to the identity of the accused-appellant as the person who committed the crime should be carefully analyzed, the Court has consistently held that where conditions of visibility are favorable and the witness does not appear to be biased against the man on the dock, his or her assertions as to the identity of the malefactor should be normally accepted.[7]

The witnesses in this case, particularly Mrs. Valdez, had a clear recollection of the identity of the assailant of her son. She categorically declared that she had a good look at him and could not forget his face, particularly his eyes. She was not the kind of person that would perjure herself just to get a man into trouble. She had no motive for filing the case against the accused-appellant other than to seek redress not so much for the loss of the earnings of their establishment but more so for the death of her son. In the face of her clear and positive testimony regarding the accused-appellant's role as the gunman of her son, as well as Cambaya's positive identification of the same person as the man who accosted him, there is no mistaking that accused-appellant is one of the perpetrators of the crime.

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[7] *People v. Alvarez*, G.R. No. 70446, 169 SCRA 730 (1989) citing *People v. Bernat*, G.R. No. 55176, 120 SCRA 918 (1983) and *People v. Zapanta*, 45 O.G. 1312).

Accused-appellant next claims in his second and third assignments of errors, that the prosecution failed to establish the fact of robbery because only two witnesses testified to the same, namely: Cambaya, who declared that accused-appellant got his ₱20.00, and Pastor Valdez, whose testimony was not offered by the prosecution at the time he testified in court in November 14, 1989 and hence cannot be considered pursuant to Sections 34 and 35 of Rule 132 of the Revised Rules of Court.

Indeed, Section 34, Rule 132 of the Revised Rules of Court requires that for evidence to be considered, it should be formally offered and the purpose specified. This is necessary because a judge has to rest his findings of fact and his judgment only upon the evidence offered by the parties at the trial.[8]

Under the new procedure as spelled out in Section 35 of the said rule which became effective on July 1, 1989, the offer of the testimony of a witness must be made at the time the witness is called to testify. The previous practice was to offer the testimonial evidence at the end of the trial after all the witnesses had testified. With the innovation, the court is put on notice whether the witness to be presented is a material witness and should be heard, or a witness who would be testifying on irrelevant matter or on facts already testified to by other witnesses and should therefore, be stopped from testifying further.

In the case at bar, we note that Pastor Valdez was not one of the witnesses originally intended to be presented by the prosecution. He was merely called to the witness stand at the latter part of the presentation of the prosecution's evidence. There was no mention why his testimony was being presented. However, notwithstanding that his testimony was not formally offered, its presentation was not objected to either. Section 36 of the aforementioned Rule requires that an objection in the course of the oral examination of a witness should be made as soon as the grounds therefor shall become reasonably apparent. Since no objection to the admissibility of evidence was made in

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[8] *People v. Pecardal,* G.R. No. 71381 (1986).

the court below, an objection raised for the first time on appeal will not be considered.[9]

Besides, even if the testimony of Pastor Valdez were not admitted, the robbery was established by the testimony of Cambaya who not only stated that his ₱20.00 was taken at the point of a gun but that accused-appellant's companion ransacked their office, found and fled away with some money. He was not sure only of the exact amount taken. At any rate, the amount stolen came to be known, when Mrs. Valdez who rushed to their office, after being informed of a commotion therein, testified to being informed by her son, Michael, that they have been robbed of ₱50,000.00. This statement is admissible as part of the *res gestae*, having been made immediately after a startling occurrence and before the declarant had time to concoct matters so that his utterance at that time was merely a reflex product of his immediate sensual impression. Said statement is admissible in evidence as one of the exceptions to the hearsay rule on the ground of trustworthiness and necessity.

Zeroing in on Mrs. Valdez' identification of her son's assailant, subject of the fourth assignment of error, accused-appellant pointed out that at the time of the car chase, Mrs. Valdez was so tense, nervous and excited, continually hugging her son until the time that he was shot, so that her attention must have been focused on her son and not on the assailant. On top of that, Mrs. Valdez who was wearing eyeglasses admitted that she was crying at that time, so much so that the accused-appellant surmised that her glasses must have misted and blocked her vision.

Accused-appellant's conjectures have no basis in fact and collide with Mrs. Valdez' testimony that she had a good look at the assailant in the passenger jeep. Indeed some circumstances do not always produce the same effects as accused-appellant would want us to believe. Considering the relative positions of the passenger jeepney where the accused-appellant was riding in and the Toyota car driven by the victim with his mother as

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[9] *Asombra v. Dorado,* 36 Phil. 883.

passenger, which were running side by side at high speed when the shooting occurred, we find it impossible for the assailant not to be seen and identified by Mrs. Valdez. A witness usually strive to remember the uncovered face of the assailant.[10] This, Mrs. Valdez must have done.

Accused-appellant's fifth and sixth assigned errors center on the alleged failure of the prosecution to prove that those who committed the robbery and those who killed the victim are one and the same persons as to establish the crime of robbery with homicide.

Not only are these arguments fallacious but have no leg to stand on. Prosecution witness Salvador Cambaya positively identified the accused-appellant as one of those who held him up as well as the establishment where he works. While Mrs. Valdez identified the same accused-appellant as the jeep passenger who shot and killed his son. Hence, the connection between the robbery and the homicide was sufficiently established.

True, the robbers in the case at bar had already fled with their loot when the shooting of the victim took place during his hot pursuit of the culprits. It is settled that where the deceased attacked and stopped the robbers when they had already come out of the store where the robbery was committed and got killed in the process, it cannot be denied that the act of killing was done in order to repel an aggression which, had it been effective, would have endangered the whole success of the robbery committed. It was done, in the final analysis, in order to defend the possession of the stolen property. It was therefore an act which tended to insure the successful termination of the robbery and secure to the robbers the possession and enjoyment of the goods taken.[11]

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[10] *People vs. Cruz*, G.R. No. L-37173, 133 SCRA 426 (1984) and *People v. Alvarez, supra*.

[11] *People v. Gardon*, 104 Phil. 371; *People v. Salamuddin No. 1*, 52 Phil. 670.

It has also been held that where the deceased followed the robbers after he had been robbed and by reason thereof, he was fired upon by one of the robbers, the crime is robbery with homicide.[12]

The same is true even if the murder was perpetrated at a place different from that of the robbery and after an appreciable interval of time.[13]

As to the accused-appellant's defense of alibi, subject of the seventh and eighth assignments of errors, accused-appellant contends that the same is supported by the testimony of no less than Colonel Rodolfo M. Garcia, Station Commander, QCPS, now Central Police District, who would have not sacrificed his name and integrity by testifying in his favor if it were not true that he was in the colonel's office at the time of the commission of the offense. While it may be true that accused-appellant indeed sought Col. Garcia's recommendation for reinstatement to the service on the date in question as borne out by the letter of recommendation itself, which is dated March 19, 1988, such fact does not conclusively prove that accused-appellant was at the colonel's office on said date and time as that of the commission of the offense charged. There was no logbook which recorded his visit, nor the date and time thereof; nor was the letter of recommendation recorded as having been issued by the colonel's office on said date. Hence, there is no independent proof showing that Col. Garcia issued said letter on March 19, 1988. The good Col. Garcia even admitted that he could not remember the other people who visited him on the said day or on any day for that matter. Likewise, the trial judge noted that accused-appellant presented this defense only long after the case has gone to trial and more importantly, he noticed that the testimony of accused-appellant himself provided the clue that indicated that his defense predicated on alibi has been merely contrived. Said the Judge in his decision:

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[12] *People v. Moises*, 104 Phil. 1054.

[13] *People v. Estabillo*, 11 Phil. 150.

"1. The centerpiece of the defense theory is the note of recommendation of Col. Rodolfo Garcia for Felimon Java dated March 19, 1988. On the date the accused by his own testimony, was still a tricycle driver as he joined the Quezon City People's Patrol only on July 1988 upon the recommendation of Col. Garcia.

"The testimony of Col. Garcia is that he recommended the accused to Mr. Pumarada of the Quezon City People's Patrol after that March 19, 1988 visit made by Java to him. But according to Java, when he went to the office of Col. Domondon to present the note of recommendation issued by Col. Garcia, a sergeant Rodriguez there told him that the Garcia note is unnecessary already because he already has the Jaro Letter attached to Java's record. Consequently, the Col. Jaro note must have preceded the Col. Garcia note-which is what the defense wanted to convey. Yet, in the latter part of Java's narration in court he stated that he was already with the People's Patrol when Col. Jaro accompanied him to Col. Domondon. Inasmuch as (the) Col. Jaro note came ahead of (the) Col. Garcia note and by the time the Col. Jaro note was given the accused was already in the Quezon City People's Patrol, then the Col. Garcia note could not have been issued on March 19, 1988 when Java was still a tricycle driver."[14]

Thus, notwithstanding the stature of accused-appellant's witnesses, their testimonies may be disregarded in the light of the other defense evidence at hand. Testimony to be believed must not only proceed from a credible witness but must be credible in itself and be able to stand the test of scrutiny along with the other testimonies. Thus, the accused-appellant's invocation of alibi is unavailing not only by reason of its inherent weakness but also because of the circumstances pointing to its contrived nature and his positive identification by the prosecution witnesses as one of the persons who participated in the robbery and shot the victim.

In recapitulation, not even one of the eight arguments of accused-appellant in support of his appeal proved its worth as an error. Not a tinge of doubt was created on the guilt of the accused-appellant. On the other hand, the prosecution evidence

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[14] *Rollo,* p. 30.

showed that the positive identification made of him by no less than two prosecution witnesses was direct, clear and positive.

WHEREFORE, the decision appealed from is hereby *AFFIRMED in toto* being in accordance with law and the established facts of the case.

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, Regalado, and *Puno, JJ.*, concur.

EN BANC

[A.M. No. R-284-P. November 11, 1993]

GVM, INC., AS SEC-APPOINTED RECEIVER FOR FUIFC AND FNCC CAPITAL CORPORATION, *complainant, vs.* **ARMANDO DE GUZMAN, DEPUTY SHERIFF OF RIZAL DETAILED AT MAKATI, METRO MANILA,** *respondent.*

SYLLABUS

POLITICAL LAW; CONSTITUTIONAL LAW; SUPREME COURT; ADMINISTRATIVE SUPERVISION OVER COURT PERSONNEL; DEPUTY SHERIFF; HARSH AND PREMATURE IMPLEMENTATION OF WRIT OF POSSESSION CONSTITUTES GROSS MISCONDUCT; RESPONDENT DISMISSED FROM SERVICE. — The case before us is unique in that the special sheriff was EXTRA prompt in implementing the writ of possession. The complainant had already been served a Notice to Vacate by the regular deputy sheriff, Jose A. Ascaño. Complainant had, until the close of office hours on September 21, 1984 to vacate the premises. Deputy Sheriff Ascaño could only start to implement

the writ, at 8:00 A.M. of September 22, 1984 or immediately thereafter. In theory, he could have padlocked the premises at 5:01 P.M. of September 21, 1984 but, as is the usual practice of giving the ejectment defendant more time in removing its properties from the premises to be padlocked, and, more importantly, because regular office hours are only from 8:00 A.M. to 5:00 P.M., Deputy Sheriff Ascaño opted not to implement the writ on that day. Under either situation, as of September 20, 1984, the complainant had until 5:00 P.M. of September 21, 1984 a full two (2) days before the deadline indicated in the Notice to Vacate would expire. The very description of respondent's actuation in the implementation of the writ as one characterized by "harshness" indicates the nature, character and manner with which respondent effected the transfer of possession. Exhibits "H", "H-1" and "H-2," which are pictures of the topsy-turvy condition of the tables, chairs and equipment thrown out of the building and the scattered documents and papers, attest to the mute and eloquent evidence of the carnage that resulted as a result of respondent's reckless and oppressive manner in implementing the writ of possession. The premature implementation of the writ is in itself a badge of bad faith and evident intent to deny the complainant his right to procedural due process. The Court holds, therefore, that respondent's actuations in harshly implementing the writ of possession in said civil case No. 7701 a full two (2) days before its scheduled implementation constitutes oppression, gross misconduct and discourtesy and the Court holds that the penalty is dismissal from the service. WHEREFORE, respondent deputy sheriff Armando M. de Guzman is found guilty of oppression, gross misconduct and discourtesy in the unauthorized and premature implementation of the writ of possession issued by the Makati Regional Trial Court in Civil Case No. 7701 and is hereby DISMISSED from the service with forfeiture of all benefits he may be entitled thereto, and with prejudice to future reinstatement in the government service and employment in government owned and/or controlled corporations.

APPEARANCES OF COUNSEL

Cordova, Abarcar & Associates for complainant.
Loreto C. Buduan for respondent.

D E C I S I O N

***PER CURIAM*:**

The issue posed in this administrative complaint is whether the respondent sheriff, Armando M. de Guzman, is liable administratively for enforcing, in a very harsh and oppressive manner, a writ of possession two (2) days before the authorized date set for its implementation.

In support of its complaint, the complainant, GVM, Inc., points to the fact that the respondent was not the regular sheriff attached to the court which issued the writ of possession but a special sheriff. Not only was he appointed rather hastily, but he also destroyed valuable pieces of evidence which complainant had been assiduously gathering, compiling, classifying, analyzing and keeping for use against the owners and managers of the financially distressed corporations wherein complainant was ordered to act as receiver by the Securities & Exchange Commission[1] and against the AEA Development Corporation which had bought the distressed corporations' building allegedly in fraud of creditors.

Going over the records with the eye of a Sherlock Holmes, this Court finds for complainant.

According to complainant, the antecedent facts of this case are the following:

"1. On *June 27, 1984*, AEA Development Corp. filed a case against complaint, docketed as Civil Case No. 7701, entitled Petition To quiet Title, involving the land and building denominated as FNCC Bldg., located at Legaspi St., Legaspi Village, Makati, Metro Manila.

"2. On *June 28, 1984*, just a day after said case was filed, Judge Aguinaldo of Branch 143 (RTC, Makati), to whom the case was

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[1] Order, "In the Matter of FIRST UNITED INVESTMENT & FINANCE CORPORATION," issued March 31, 1984 by Manuel G. Abello, Chairman, and concurred in by Julio A. Sulit, Jr., Gonzalo T. Santos, Jr., Jesus Valdes and Rosario N. Lopez, Associate Commissioners.

speedily raffled on that same day, issued, without benefit of a hearing, an *ex-parte* order granting AEA's prayer for an immediate Writ of Possession, which in effect disposed of the merits of the case which is to quiet title, and AEA was not in possession of the building then. Judge Aguinaldo went on leave immediately after issuing aforementioned order.

"3. On *September 6, 1984,* the regular Deputy Sheriff of Branch 143, Jose A. Ascaño, served *for the first time*, the summons (with complaint attached) in AEA's case upon complainant, said Deputy Sheriff served as well upon the complainant a *Notice to Vacate* the building, giving complainant fifteen (15) days (or up to September 21, 1984) to voluntarily do so.

"4. On *September 20, 1984, one day (1) before the deadline* mentioned, respondent Deputy Sheriff de Guzman (who somehow replaced the regular sheriff and got himself an appointment as special sheriff on *September 20, 1984*) suddenly implemented the writ of possession when his demands were refused by one of the officers of GVM, Inc. in the most abusive, reckless, oppressive and barbaric manner. The order was served at 6:00 p.m. of September 20, 1984, although respondent claimed it was done at 3:30 p.m. Either way, it was simply impossible for the complainant to go to court to apply for any judicial remedy because of time constraint. The ejectment was carried out up to the following day, September 21, 1984, a public holiday. Obviously, the ejectment was so timed as to prevent complainant from seeking judicial remedies.

"5. On *August 30, 1984,* complainant herein filed a case against AEA Dev. Corp. involving the same property, for annulment of Contract with damages, docketed as Civil Case No. 8331, which surprisingly, was also raffled in the sala of Judge Aguinaldo.

"6. That because of the barbaric and oppressive manner respondent implemented the Writ of Possession (see pictures attached to complaint), very important and very valuable documents were lost and/or damaged consisting of *promissory notes* of debtors of the corporations, *certificate of stocks, loan documents* detailing transactions worth millions of pesos, payroll sheets, other accounting records and statements, etc., including vital documents to support and prove complainant's case (CC No. 8331) against AEA DEV. Corp.

"7. That because of the loss of important, valuable and vital documents, the Securities and Exchange Commission had no recourse

but to order the liquidation of FNCC Capital Corp. Also because of this incident, the Receiver-Liquidator, with the approval of the Securities and Exchange Commission, was compelled to compromise Civil Case No. 8331 as it lost the documents to prove its case against AEA DEV. Corp., thanks to respondent."[2] (Italics supplied)

Respondent vehemently denied complainant's allegations and claimed that what transpired is as follows:

"Civil Case No. 7701, was filed by AEA Development Corp., with Branch 143, of the Makati, RTC, asking that it be placed in possession of the AEA building located on a parcel of land situated in Legaspi Village, Makati, Metro Manila, because it owned the land and building which was covered by a title in its name.

"The Writ of Possession was issued and a corresponding copy thereof together with the Notice to Vacate was served upon the officers or agents of GVM, Inc., on September 6, 1984, which was then acting as SEC RECEIVER for two field financing companies holding office on 3 floors of the AEA building.

"To forestall their ejectment from the building, GVM, Inc., filed in the court which issued the Writ of Possession, a motion to dismiss the petition, and later a motion to quash the Writ of Possession. Both motions were resolved against the movant on September 20, 1984. On the same date, respondent upon motion of AEA, was designated to enforce the Writ of Possession issued by the court earlier.

"Respondent proceeded to the AEA Building and found one of GVM's lawyers, Atty. Marcelino Villanueva and served him with a copy of the Writ of Possession, the Order Denying their Motion to Dismiss and their Motion to Quash Writ of Possession.

"The counsel of AEA Development Corp., Atty. Alfredo Estrella who was then with respondent Deputy Sheriff, refused to grant the request of complainant's lawyers and officers for a second 7-day extension. After negotiation between the lawyers of both parties, a compromise was forged, and it was agreed that the third and ground floors will be vacated on that day by GVM, Inc., and that the second floor occupied by them for audit, examination and investigation purposes will be vacated the following day.

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[2] *Rollo,* pp. 101-103.

"Removal of the furnitures and fixtures of complainant was done by the movers brought along by AEA, who were assisted by men of GVM, INC."[3]

On January 21, 1986, the Court Administrator ordered the Executive Judge of the Makati Regional Trial Court to investigate the complaint and submit a report. The ratio and recommendatory portions of the report are as follows:

"The administrative complaint is impressed with merit.

"Paragraph 3 of Administrative Circular No. 12 of the Supreme Court dated 1 October 1985 reads:

> 'The judge of the Regional Trial Court, Metropolitan Trial Court, and the Municipal Trial Court in Cities, in the absence of the deputy sheriff appointed and assigned in his sala, may at any time designate any of the deputy sheriffs in the office of the Clerk of Court. However, the said judge shall not be allowed to designate the deputy sheriff of another Branch without first securing the consent of the Presiding Judge thereof:

This aforequoted provision thus gives the Judge the right to designate a special sheriff in lieu of the regular sheriff. But whether or not this rule had been strictly followed by the Judge, the latter's act in appointing respondent as Special Sheriff cannot be taken against herein respondent. Notwithstanding this however, the court cannot simply ignore the act of respondent in implementing the writ of possession even before the lapse of the expiration period. While it is true that the regular sheriff originally gave herein complainants a 7-day period within which to vacate the premises in question, the same was extended to 15 days. This, respondent did not refute. Hence, the respondent's act in implementing the said writ a day before the expiration of the period given to complainants to vacate the premises in question was irregular.

"Premises considered, it is respectfully recommended that respondent be held liable for conduct grossly prejudicial to the best interest of the service and correspondingly meted with the penalty of suspension from office for six (6) months and one (1) day.[4]

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[3] *Ibid*., pp. 93-94.

[4] *Ibid*., p. 188.

SC Administrative Circular No. 12 dated October 1, 1985 is not applicable to the case at bar for the simple reason that said circular was not yet existing when respondent was appointed Special Sheriff on September 20, 1984. But the writ of possession was prematurely implemented. The recommended penalty, however, of suspension for six (6) months and one (1) day is too light a penalty to be meted out to respondent.

In the past, the Court has already stated that:

"[W]hen a writ is placed in the hands of a sheriff, it is his duty, in the absence of instructions, to proceed with reasonable celerity and promptness to *execute it according to its mandate* x x x *he has no discretion whether to execute it or not.* x x x"[5] (Italics supplied)

and, in another case where a deputy sheriff delayed to serve a warrant of arrest,[6] the Court stated that:

"There is no question that it was one of his duties to effect the prompt and effective service of the orders and warrants issued by the court. When he failed to act, it was certainly the business of the complainant to bring such official inaction to the attention of the appropriate governmental authority x x x[7]

The case before us is unique in that the special sheriff was EXTRA prompt in implementing the writ of possession. The complainant had already been served a Notice to Vacate by the regular deputy sheriff, Jose A. Ascaño, in the following tenor:

"NOTICE TO VACATE

"TO: FNCC CAPITAL CORPORATION and
GVM INCORPORATED
FNCC Building, 151 Legaspi Street
Legaspi Village, Makati
Metro Manila.

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[5] *Young v. Momblan*, A.M. No. P-89-367, 205 SCRA 33, 36, 37 (1992) citing "The Manual for Clerks of Court," p. 178, in turn citing 47 Am. Jur. 855.

[6] *Peñalosa v. Viscaya, Jr.*, A.M. No. P-1391, 84 SCRA 298 (1978).

[7] At p. 301.

G R E E T I N G S :

For your information and guidance, I am enclosing herewith copy of the Writ of Possession issued by the Court in the above-entitled case for compliance.

This office is giving you a period of fifteen (15)[8] days upon receipt hereof to voluntarily vacate the premises in question and failure on your part to do so, much to our regret we will be constrained to force into effect the said Order to the limit provided by law.

Trusting your early compliance on the above matter, we are.

Makati, Metro Manila, September 6, 1984."[9]

Complainant had, therefore, until the close of office hours on September 21, 1984 to vacate the premises. Deputy Sheriff Ascaño could only start to implement the writ, at 8:00 A.M. of September 22, 1984 or immediately thereafter. In theory, he could have padlocked the premises at 5:01 P.M. of September 21, 1984 but, as is the usual practice of giving the ejectment defendant more time in removing its properties from the premises to be padlocked, and, more importantly, because regular office hours are only from 8:00 A.M. to 5:00 P.M., Deputy Sheriff Ascaño opted not to implement the writ on that day. Under either situation, as of September 20, 1984, the complainant had until 5:00 P.M. of September 21, 1984 — a full two (2) days before the deadline indicated in the Notice to Vacate would expire.

The writ of possession was implemented, not by regular deputy sheriff Ascaño, but by special sheriff Armando M. de Guzman in the afternoon of September 20, 1984. The latter claims that the complainant was only given seven (7) days from September 6, 1984 to vacate the building, or until September 13. He refused to note that the regular deputy sheriff had given the complainant an additional eight (8) days because it was clear from the Notice to Vacate that the word "seven" and number "7" had been crossed

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[8] Originally, seven (7) days were given to the complainant by deputy sheriff Ascaño. He, however, granted then (15) days and initialed the corrected date on the Notice to Vacate itself.

[9] Exhibit "D" of the complaint; *Rollo*, p. 19.

out and replaced with the word "fifteen" and number "15" and THEN initialed by deputy sheriff Ascaño.

In any event, it stands to reason, that if only seven (7) days had originally been granted the complainant *without any extension*, then AEA Development Corporation would have moved for the implementation of the writ by the 14th of September, which the latter did not. As the records show, respondent was designated to enforce the writ ONLY on September 20, 1984, as can be seen from the order of the trial court:

"Acting on the motion dated September 20, 1984, and finding the same to be reasonable, the motion is granted. Deputy Sheriff Armando M. de Guzman is hereby designated to enforce the writ of possession which was issued by this Court.

"SO ORDERED.

"Makati, Metro Manila, September 20, 1984."[10]

While SC Administrative Circular No. 12 was not yet in existence when the respondent was appointed special sheriff, and, therefore, the consent of respondent's presiding judge for respondent's appointment as special sheriff in another sala was not necessary, still the trilogy of (1) respondent's "midnight appointment,"[11] (2) the dismissal of complainant's motions to dismiss and quash writ of possession issued in said civil case No. 7701,[12] and (3) the ejectment of complainant from the building ALL effected on September 20, 1984 lend credence to complainant's plaint:

1. On why respondent sheriff implemented the writ of possession on September 20, 1984 instead of on September 21, 1984, or one (1) day earlier, in the late afternoon at that and making sure that the following day was a public holiday, where complainant would

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[10] Order dated September 20, 1984 and penned by the Hon. Zoilo Aguinaldo, presiding judge, Branch 143, Makati RTC, in "*AEA Development Corporation vs. FNCC Capital Corporation and GVM, Inc.*" Civil Case No. 7701.

[11] Exhibit "2" of the Answer; *Rollo*, p. 48.

[12] Exhibit "3" of the Answer; *Rollo*, pp. 49-54.

have no recourse for a judicial remedy;

2. That respondent implemented the Writ of Possession in a very oppressive, reckless and barbaric manner resulting in the loss of vital documents, knowing that FNCC Capital Corp. is a financing company, and consequently its loan documents and papers are its assets. Respondent's conduct is highly deplorable.

3. That among the documents lost as a result of respondent's reckless implementation of the Writ of Possession are the documents needed for complainant to prove its case against AEA Dev. Corp., the party which paid respondent for his services in implementing said writ. Was this reckless implementation of the Writ by respondent done on purpose precisely to make sure that said documents would get lost and pilfered as claimed by respondent?[13]

This illegal implementation of the writ by the respondent, was confirmed by an independent party, the "Benjamin L. Sim & Co.," certified public accountants,[14] in its Notes to Financial Statements.[15]

The very description of respondent's actuation in the implementation of the writ as one characterized by "harshness" indicates the nature, character and manner with which respondent effected the transfer of possession. Exhibits "H", "H-1" and "H-2," which are pictures of the topsy-turvy condition of the

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[13] *Rollo*, p. 103.

[14] Hired to audit the distress corporations' book of accounts; *Rollo*, p. 69.

[15] 17. POST FINANCIAL STATEMENT EVENTS

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17.3 *Ejectment of the Receiver from the FNCC Building by AEA Development Corporation* — On the late afternoon of September 20, 1984, AEA Development Corporation, after a series of hearings before the SEC, in court, and off-court with GVM, Inc. on the controversy over the building, served a court order on the Receiver, dispossessing the latter of possession and occupancy of the building.

The turn of events not anticipated, *ADDED TO THE HARSHNESS WITH WHICH THE EJECTMENT WAS SERVED* and the resistance offered by the Receiver, a good deal of records and equipment of all the companies housed in the building were either lost, damaged, or were totally destroyed in the process. (Italics supplied).

tables, chairs and equipment thrown out of the building and the scattered documents and papers, attest to the mute and eloquent evidence of the carnage that resulted as a result of respondent's reckless and oppressive manner in implementing the writ of possession.[16]

The Court can only ask itself just how many good reasons impelled respondent to OVERZEALOUSLY and PREMATURELY implement the writ of possession.

The premature implementation of the writ is in itself a badge of bad faith and evident intent to deny the complainant his right to procedural due process.

The service of the writ at the start of office hours on September 22, 1984, would not have prejudiced AEA Development Corporation.

The Court holds, therefore, that respondent's actuations in harshly implementing the writ of possession in said civil case No. 7701 a full two (2) days before its scheduled implementation constitutes oppression, gross misconduct and discourtesy and the Court holds that the penalty is dismissal from the service.

WHEREFORE, respondent deputy sheriff Armando M. de Guzman is found guilty of oppression, gross misconduct and discourtesy in the unauthorized and premature implementation of the writ of possession issued by the Makati Regional Trial Court in Civil Case No. 7701 and is hereby *DISMISSED* from the service with forfeiture of all benefits he may be entitled thereto, and with prejudice to future reinstatement in the government service and employment in government owned and/or controlled corporations.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, Puno, and *Vitug, JJ.*, concur.

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[16] *Rollo,* pp. 31-33.

THIRD DIVISION

[G.R. No. 104269. November 11, 1993]

DEPARTMENT OF AGRICULTURE, *petitioner, vs.* **THE NATIONAL LABOR RELATIONS COMMISSION,** ***ET AL.,*** *respondents.*

SYLLABUS

1. POLITICAL LAW; CONSTITUTIONAL LAW; STATE; IMMUNITY FROM SUIT; CONSTRUED. — The basic postulate enshrined in the constitution that "(t)he State may not be sued without its consent," reflects nothing less than a recognition of the sovereign character of the State and an express affirmation of the unwritten rule effectively insulating it from the jurisdiction of courts. It is based on the very essence of sovereignty. As has been aptly observed, by Justice Holmes, a sovereign is exempt from suit, not because of any formal conception or obsolete theory, but on the logical and practical ground that there can be no legal right as against the authority that makes the law on which the right depends. True, the doctrine, not too infrequently, is derisively called "the royal prerogative of dishonesty" because it grants the state the prerogative to defeat any legitimate claim against it by simply invoking its non-suability. We have had occasion to explain in its defense, however, that a continued adherence to the doctrine of non-suability cannot be deplored, for the loss of governmental efficiency and the obstacle to the performance of its multifarious functions would be far greater in severity than the inconvenience that may be caused private parties, if such fundamental principle is to be abandoned and the availability of judicial remedy is not to be accordingly restricted.

2. ID.; ID.; EXCEPTION ON NON-SUABILITY OF THE STATE. — The rule, in any case, is not really absolute for it does not say that the state may not be sued under any circumstance. On the contrary, as correctly phrased, the doctrine only conveys, "the state may not be sued without its consent"; its clear import then is that the State may at times be sued. The States' consent may be given either expressly or impliedly. Express consent may be made through a general law or a special

law. In this jurisdiction, the general law waiving the immunity of the state from suit is found in Act No. 3083, where the Philippine government "consents and submits to be sued upon any money claim involving liability arising from contract, express or implied, which could serve as a basis of civil action between private parties." Implied consent, on the other hand, is conceded when the State itself commences litigation, thus opening itself to a counterclaim or when it enters into a contract. In this situation, the government is deemed to have descended to the level of the other contracting party and to have divested itself of its sovereign immunity.

3. ID.; ID.; ID.; IMPLIED CONSENT THROUGH CONTRACTS; QUALIFICATION. — Not all contracts entered into by the government operate as a waiver of its non-suability; distinction must still be made between one which is executed in the exercise of its sovereign function and another which is done in its proprietary capacity. The restrictive application of State immunity is proper only when the proceedings arise out of commercial transactions of the foreign sovereign, its commercial activities or economic affairs. Stated differently, a State may be said to have descended to the level of an individual and can thus be deemed to have tacitly given its consent to be sued only when it enters into business contracts. It does not apply where the contracts relates to the exercise of its sovereign functions. In this case the projects are an integral part of the naval base which is devoted to the defense of both the United States and the Philippines, indisputably a function of the government of the highest order; they are not utilized for nor dedicated to commercial or business purposes.

4. ID.; ID.; ID.; ID.; CASE AT BAR. — In the instant case, the Department of Agriculture has not pretended to have assumed a capacity apart from its being a governmental entity when it entered into the contract on security services; nor that it could have, in fact, performed any act proprietary in character. But, be that as it may, the claims of private respondents, *i.e.*, for underpayment of wages, holiday pay, overtime pay and similar other items, arising from the Contract for Security Services, clearly constitute money claims. Act No. 3083, aforecited, gives the consent of the State to be "sued upon any moneyed claim involving liability arising from contract, express or implied, x x x."

5. ID.; ID.; ID.; ID.; MONEY CLAIMS AGAINST THE STATE; PROVISIONS OF COMMONWEALTH ACT NO. 327 REQUIRING FILING OF CLAIMS WITH THE COMMISSION ON AUDIT NOT INCONSISTENT WITH THE LABOR CODE. — Pursuant, however, to Commonwealth Act ("C.A.") No. 327, as amended by Presidential Decree ("P.D.") No. 1445, the money claim should first be brought to the Commission on Audit. We fail to see any substantial conflict or inconsistency between the provisions of C.A. No. 327 and the Labor Code with respect to money claims against the State. The Labor Code, in relation to Act No. 3083, provides the legal basis for the State liability but the prosecution, enforcement or satisfaction thereof must still be pursued in accordance with the rules and procedures laid down in C.A. No. 327, as amended by P.D. 1445.

6. ID.; ID.; CONSENT NOT SYNONYMOUS WITH LIABILITY; REQUISITE FOR LIABILITY TO ATTACH. — When the State gives its consent to be sued, it does not thereby necessarily consent to an unrestrained execution against it. Tersely put, when the State waives its immunity, all it does, in effect, is to give the other party an opportunity to prove, if it can, that the State has a liability. In *Republic vs. Villasor* this Court, in nullifying the issuance of an *alias* writ of execution directed against the funds of the Armed Forces of the Philippines to satisfy a final and executory judgment, has explained, thus— The universal rule that where the State gives its consent to be sued by private parties either by general or special law, it may limit claimant's action "only up to the completion of proceedings anterior to the stage of execution" and that the power of the Courts ends when the judgment is rendered, since government funds and properties may not be seized under writs of execution or garnishment to satisfy such judgments, is based on obvious considerations of public policy. Disbursements of public funds must be covered by the correspondent appropriation as required by law. The functions and public services rendered by the State cannot be allowed to be paralyzed or disrupted by the diversion of public funds from their legitimate and specific objects, as appropriated by law.

APPEARANCES OF COUNSEL

Roy Lago Salcedo for private respondents.

D E C I S I O N

VITUG, *J.*:

For consideration are the incidents that flow from the familiar doctrine of non-suability of the state.

In this petition for *certiorari*, the Department of Agriculture seeks to nullify the Resolution,[1] dated 27 November 1991, of the National Labor Relations Commission (NLRC), Fifth Division, Cagayan de Oro City, denying the petition for injunction, prohibition and mandamus that prays to enjoin permanently the NLRC's Regional Arbitration Branch X and Cagayan de Oro City Sheriff from enforcing the decision[2] of 31 May 1991 of the Executive Labor Arbiter and from attaching and executing on petitioner's property.

The Department of Agriculture (herein petitioner) and Sultan Security Agency entered into a contract[3] on 01 April 1989 for security services to be provided by the latter to the said governmental entity. Save for the increase in the monthly rate of the guards, the same terms and conditions were also made to apply to another contract, dated 01 May 1990, between the same parties. Pursuant to their arrangements, guards were deployed by Sultan Agency in the various premises of the petitioner.

On 13 September 1990, several guards of the Sultan Security Agency filed a complaint for underpayment of wages, non-payment of 13th month pay, uniform allowances, night shift differential pay, holiday pay and overtime pay, as well as for damages,[4] before the Regional Arbitration Branch X of Cagayan de Oro City, docketed as NLRC Case No. 10-09-00455-90 (or 10-10-00519-90, its original docket number), against the Department of Agriculture and Sultan Security Agency.

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[1] Annex "A", *Rollo*, 23-52.

[2] Annex "C", *Ibid*., 57-68.

[3] *Rollo*, 59.

[4] *Ibid*., 57.

The Executive Labor Arbiter rendered a decision on 31 May 1991, finding herein petitioner jointly and severally liable with sultan Security Agency for the payment of the money claims, aggregating ₱266,483.91, of the complainant security guards. The petitioner and Sultan Security Agency did not appeal the decision of the Labor Arbiter. Thus, the decision became final and executory.

On 18 July 1991, the Labor Arbiter issued a writ of execution,[5] commanding the City Sheriff to enforce and execute the judgment against the property of the two respondents. Forthwith, or on 19 July 1991, the City Sheriff levied on execution the motor vehicles of the petitioner, *i.e.*, one (1) unit Toyota Hi-Ace, one (1) unit Toyota Mini Cruiser, and one (1) unit Toyota Crown.[6] These units were put under the custody of Zacharias Roa, the property custodian of the petitioner, pending their sale at public auction or the final settlement of the case, whichever would come first.

A petition for injunction, prohibition and *mandamus*, with prayer for preliminary writ of injunction, was filed by the petitioner with the National Labor Relations Commission ("NLRC"), Cagayan de Oro, alleging, *inter alia*, that the writ issued was effected without the Labor Arbiter having duly acquired jurisdiction over the petitioner, and that, therefore, the decision of the Labor Arbiter was null and void and all actions pursuant thereto should be deemed equally invalid and of no legal effect. The petitioner also pointed out that the attachment or seizure of its property would hamper and jeopardize petitioner's governmental functions to the prejudice of the public good.

On 27 November 1991, the NLRC promulgated its assailed resolution; *viz*:

"WHEREFORE, premises considered, the following orders are issued:

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[5] Annex "D", Petition, *Rollo*, 69.

[6] Annex "E", *Ibid.*, *ibid.*, p. 70.

1. The enforcement and execution of the judgments against petitioner in NLRC RABX Cases Nos. 10-10-00455-90; 10-10-0481-90 and 10-10-00519-90 are temporarily suspended for a period of two (2) months, more or less, but not extending beyond the last quarter of calendar year 1991 to enable petitioner to source and raise funds to satisfy the judgment awards against it;

2. Meantime, petitioner is ordered and directed to source for funds within the period above-stated and to deposit the sums of money equivalent to the aggregate amount it has been adjudged to pay jointly and severally with respondent Sultan Security Agency with the Regional Arbitration Branch X, Cagayan de Oro City within the same period for proper disposition;

3. In order to ensure compliance with this order, petitioner is likewise directed to put up and post sufficient *surety* and *supersedeas bond* equivalent to at least to fifty (50%) percent of the total monetary award issued by a reputable bonding company duly accredited by the Supreme Court or by the Regional Trial court of Misamis Oriental to answer for the satisfaction of the money claims in case of failure or default on the part of petitioner to satisfy the money claims;

4. The City Sheriff is ordered to immediately release the properties of petitioner levied on execution within ten (10) days from notice of the posting of sufficient surety or supersedeas bond as specified above. In the meanwhile, petitioner is assessed to pay the costs and/or expenses incurred by the City Sheriff, if any, in connection with the execution of the judgments in the above-stated cases upon presentation of the appropriate claims or vouchers and receipts by the city Sheriff, subject to the conditions specified in the NLRC Sheriff, subject to the conditions specified in the NLRC Manual of Instructions for Sheriffs;

5. The right of any of the judgment debtors to claim reimbursement against each other for any payments made in connection with the satisfaction of the judgments herein is hereby recognized pursuant to the ruling in the *Eagle Security* case, (*supra*). In case of dispute between the judgment debtors, the Executive Labor Arbiter of the Branch of origin may upon proper petition by any of the parties conduct arbitration proceedings for the purpose and thereby render his decision after due notice and hearings;

6. Finally, the petition for injunction is *Dismissed* for lack of basis. The writ of preliminary injunction previously issued in *Lifted*

and *Set Aside* and in lieu thereof, a *Temporary Stay of Execution* is issued for a period of two (2) months but not extending beyond the last quarter of calendar year 1991, conditioned upon the posting of a surety or supersedeas bond by petitioner with in ten (10) days from notice pursuant to paragraph 3 of this disposition. The motion to admit the complaint in intervention is *Denied* for lack of merit while the motion to dismiss the petition filed by Duty Sheriff in *Noted*.

SO ORDERED."

In this petition for *certiorari*, the petitioner charges the NLRC with grave abuse of discretion for refusing to quash the writ of execution. The petitioner faults the NLRC for assuming jurisdiction over a money claim against the Department, which, it claims, falls under the exclusive jurisdiction of the Commission on Audit. More importantly, the petitioner asserts, the NLRC has disregarded the cardinal rule on the non-suability of the State.

The private respondents, on the other hand, argue that the petitioner has impliedly waived its immunity from suit by concluding a service contract with Sultan Security Agency.

The basic postulate enshrined in the constitution that "(t)he State may not be sued without its consent,"[7] reflects nothing less than a recognition of the sovereign character of the State and an express affirmation of the unwritten rule effectively insulating it from the jurisdiction of courts.[8] It is based on the very essence of sovereignty. As has been aptly observed, by Justice Holmes, a sovereign is exempt from suit, not because of any formal conception or obsolete theory, but on the logical and practical ground that there can be no legal right as against the authority that makes the law on which the right depends.[9] True, the doctrine, not too infrequently, is derisively called "the royal prerogative of dishonesty" because it grants the state the prerogative to defeat any legitimate claim against it by simply

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[7] Article XVI, Section 3 of the Constitution.

[8] Isagani Cruz, *Philippine Political Law*, 1991, p. 29.

[9] *Kawanakoa vs. Polyblank*, 205 U.S. 353, 51 L. ed. 834.

invoking its non-suability.[10] We have had occasion to explain in its defense, however, that a continued adherence to the doctrine of non-suability cannot be deplored, for the loss of governmental efficiency and the obstacle to the performance of its multifarious functions would be far greater in severity than the inconvenience that may be caused private parties, if such fundamental principle is to be abandoned and the availability of judicial remedy is not to be accordingly restricted.[11]

The rule, in any case, is not really absolute for it does not say that the state may not be sued under any circumstance. On the contrary, as correctly phrased, the doctrine only conveys, "the state may not be sued without its consent;" its clear import then is that the State may at times be sued.[12] The States' consent may be given either expressly or impliedly. Express consent may be made through a general law[13] or a special law.[14] In this jurisdiction, the general law waiving the immunity of the state from suit is found in Act No. 3083, where the Philippine government "consents and submits to be sued upon any money claim involving liability arising from contract, express or implied, which could serve as a basis of civil action between private parties."[15] Implied consent, on the other hand, is conceded when the State itself commences litigation, thus opening itself to a counterclaim[16] or when it enters into a contract.[17] In this situation,

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[10] *U.S.A. vs. Guinto*, 182 SCRA 644,654 [1990].

[11] *Providence Washington Ins. Co. vs. Republic*, 29 SCRA 598.

[12] *Ibid*.

[13] *i.e.*, Commonwealth Act No. 327, as amended by Presidential Decree No. 1445 (Sections 49-50), which requires that all money claims against the government must first be filed with the Commission on Audit which must act upon it within sixty-days. Rejection of the claim will authorize the claimant to elevate the matter to the Supreme Court on *certiorari* and, in effect, sue the State thereby.

[14] *Merritt vs. Government of the Philippines*, 34 Phil. 311.

[15] See *United States vs. Guinto*, 182 SCRA 644, 654, *supra*.

[16] *Froilan vs. Pan Oriental Shipping*, G.R. No. 6060, 30 September 1950.

[17] *Santos vs. Santos*, 92 Phil. 281; *Lyons vs. United States of America*, 104 SCRA 593.

the government is deemed to have descended to the level of the other contracting party and to have divested itself of its sovereign immunity. This rule, relied upon by the NLRC and the private respondents, is not, however, without qualification. Not all contracts entered into by the government operate as a waiver of its non-suability; distinction must still be made between one which is executed in the exercise of its sovereign functions and another which is done in its proprietary capacity.[18]

In *United States of America vs. Ruiz*,[19] where the questioned transaction dealt with the improvements on the wharves in the naval installation at Subic Bay, we held:

"The traditional rule of immunity exempts a State from being sued in the courts of another State without its consent or waiver. This rule is a necessary consequence of the principles of independence and equality of States. However, the rules of International Law are not petrified; they are constantly developing and evolving. And because the activities of states have multiplied, it has been necessary to distinguish them between sovereign and governmental acts (*jure imperii*) and private, commercial and proprietary acts (*jure gestionis*). The result is that State immunity now extends only to acts *jure imperii*. The restrictive application of State immunity is now the rule in the United States, the United Kingdom and other states in Western Europe.

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The restrictive application of State immunity is proper only when the proceedings arise out of commercial transactions of the foreign sovereign, its commercial activities or economic affairs. Stated differently, a State may be said to have descended to the level of an individual and can thus be deemed to have tacitly given its consent to be sued only when it enters into business contracts. It does not apply where the contracts relates to the exercise of its sovereign functions. In this case the projects are an integral part of the naval base which is devoted to the defense of both the United States and the Philippines, indisputably a function of the government of the

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[18] *United States of America vs. Guinto*, 182 SCRA 644; *United States of America vs. Ruiz*, 136 SCRA 487 [1985].

[19] 136 SCRA 487.

highest order; they are not utilized for nor dedicated to commercial or business purposes."

In the instant case, the Department of Agriculture has not pretended to have assumed a capacity apart from its being a governmental entity when it entered into the questioned contract; nor that it could have, in fact, performed any act proprietary in character.

But, be that as it may, the claims of private respondents, *i.e.*, for underpayment of wages, holiday pay, overtime pay and similar other items, arising from the Contract for Security Services, clearly constitute money claims. Act No. 3083, aforecited, gives the consent of the State to be "sued upon any moneyed claim involving liability arising from contract, express or implied, x x x." Pursuant, however, to Commonwealth Act ("C.A.") No. 327, as amended by Presidential Decree ("P.D.") No. 1445, the money claim should first be brought to the Commission on Audit. Thus, in *Carabao, Inc., vs. Agricultural Productivity Commission*,[20] we ruled:

"(C)laimants have to prosecute their money claims against the Government under Commonwealth Act 327, stating that Act 3083 stands now merely as the general law waiving the State's immunity from suit, subject to its general limitation expressed in Section 7 thereof that 'no execution shall issue upon any judgment rendered by any Court against the Government of the (Philippines), and that the conditions provided in Commonwealth Act 327 for filing money claims against the Government must be strictly observed.'"

We fail to see any substantial conflict or inconsistency between the provisions of C.A. No. 327 and the Labor Code with respect to money claims against the State. The Labor Code, in relation to Act No. 3083, provides the legal basis for the State liability but the prosecution, enforcement or satisfaction thereof must still be pursued in accordance with the rules and procedures laid down in C.A. No. 327, as amended by P.D. 1445.

When the State gives its consent to be sued, it does not thereby necessarily consent to an unrestrained execution against it. Tersely

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[20] 35 SCRA 224,229 [1970].

put, when the State waives its immunity, all it does, in effect, is to give the other party an opportunity to prove, if it can, that the State has a liability.[21] In *Republic vs. Villasor*[22] this Court, in nullifying the issuance of an *alias* writ of execution directed against the funds of the Armed Forces of the Philippines to satisfy a final and executory judgment, has explained, thus

> The universal rule that where the State gives its consent to be sued by private parties either by general or special law, it may limit claimant's action "only up to the completion of proceedings anterior to the stage of execution" and *that the power of the Courts ends when the judgment is rendered, since government funds and properties may not be seized under writs of execution or garnishment to satisfy such judgments*, is based on obvious considerations of public policy. Disbursements of public funds must be covered by the correspondent appropriation as required by law. The functions and public services rendered by the State cannot be allowed to be paralyzed or disrupted by the diversion of public funds from their legitimate and specific objects, as appropriated by law.[23]

WHEREFORE, the petition is *GRANTED*. The resolution, dated 27 November 1991, is hereby *REVERSED* and *SET ASIDE*. The writ of execution directed against the property of the Department of Agriculture is nullified, and the public respondents are hereby enjoined permanently from doing, issuing and implementing any and all writs of execution issued pursuant to the decision rendered by the Labor Arbiter against said petitioner.

SO ORDERED.

Feliciano, Bidin, Romero, and *Melo, JJ.*, concur.

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[21] Cruz, *supra*, 44-45.

[22] 54 SCRA 84 [1973].

[23] See also *Commissioner of Public Highways vs. San Diego*, 31 SCRA 616 [1970] citing among others the following decisions: *Merritt vs. Government*, 34 Phil. 311[1916]; *Visayan Refining Co. vs. Camus*, 40 Phil. 550 [1919]; *Director of Commerce vs. Concepcion*, 43 Phil. 384 [1922]; *Belleng vs. Republic*, 9 SCRA 6 [1963]; *Republic vs. Palacio*, 23 SCRA 899 [1968].

EN BANC

[G.R. No. 105371. November 11, 1993]

THE PHILIPPINE JUDGES ASSOCIATION, duly rep. by its President, BERNARDO P. ABESAMIS, Vice-President for Legal Affairs, MARIANO M. UMALI, Director for Pasig, Makati and Pasay, Metro Manila ALFREDO C. FLORES, and Chairman of the Committee on Legal Aid, JESUS G. BERSAMIRA, Presiding Judges of the Regional Trial Court, Branch 85, Quezon City and Branches 160, 167 and 166, Pasig, Metro Manila, respectively: the NATIONAL CONFEDERATION OF THE JUDGES ASSOCIATION OF THE PHILIPPINES, composed of the METROPOLITAN TRIAL COURT JUDGES ASSOCIATION rep. by its President, REINATO QUILALA of the MUNICIPAL TRIAL CIRCUIT COURT, Manila; THE MUNICIPAL JUDGES LEAGUE OF THE PHILIPPINES rep. by its President, TOMAS G. TALAVERA; by themselves and in behalf of all the Judges of the Regional Trial and Shari'a Courts, Metropolitan Trial Courts and Municipal Courts throughout the Country, *petitioners, vs.* **HON. PETE PRADO, in his capacity as Secretary of the Department of Transportation and Communications, JORGE V. SARMIENTO, in his capacity as Postmaster General, and the PHILIPPINE POSTAL CORP.,** *respondents*.

SYLLABUS

1. POLITICAL LAW; CONSTITUTIONAL LAW; PURPOSES OF THE CONSTITUTIONAL PROVISION THAT "EVERY BILL PASSED BY THE CONGRESS SHALL EMBRACE ONE SUBJECT WHICH SHALL BE EXPRESSED IN THE TITLE THEREOF." — We consider first the objection based on Article VI, Sec. 26(1), of the Constitution providing that "Every bill passed by the Congress shall embrace only one subject which shall be expressed in the title thereof." The purposes of this rule are: (1) to prevent

hodge-podge or "logrolling" legislation; (2) to prevent surprise or fraud upon the legislature by means of provisions in bills of which the title gives no intimation, and which might therefore be overlooked and carelessly and unintentionally adopted; and (3) to fairly apprise the people, through such publication of legislative proceedings as is usually made of the subject of legislation that is being considered, in order that they may have opportunity of being heard thereon, by petition or otherwise, if they shall so desire.

2. ID.; THE TITLE OF R.A. 7354 IS CONSTITUTIONAL. — R.A. No. 7354 is entitled "An Act Creating the Philippine Postal Corporation, Defining its Powers, Functions and Responsibilities, Providing for Regulation of the Industry and for Other Purposes Connected Therewith." We do not agree that the title of the challenged act violates the Constitution.

3. ID.; STATUTES; DETAILS OF A LEGISLATIVE ACT NEED NOT BE STATED IN ITS TITLE. — The title of the bill is not required to be an index to the body of the act, or to be comprehensive as to cover every single detail of the measure. It has been held that if the title fairly indicates the general subject, and reasonably covers all the provisions of the act, and is not calculated to mislead the legislature, or the people, there is sufficient compliance with the constitutional requirement. To require every end and means necessary for the accomplishment of the general objectives of the statute to be expressed in its title would not only be unreasonable but would actually render legislation impossible. As has been correctly explained: The details of a legislative act need not be specifically stated in its title, but matter germane the subject as expressed in the title, and adopted to the accomplishment of the object in view, may properly be included in the act. Thus, it is proper to create in the same act the machinery by which the act is to be enforced, to prescribe the penalties for its infraction, and to remove obstacle in the way of its execution. If such matters are properly connected with the subject as expressed in the title, it is unnecessary that they should also have special mention in the title.

4. ID.; ID.; REPEAL OF A STATUTE NEED NOT BE STATED IN THE TITLE OF THE NEW STATUTE. — This is particularly true of the repealing clause, on which Cooley writes: "The repeal of a statute on a given subject is properly connected

with the subject matter of a new statute on the same subject; and therefore a repealing section in the new statute is valid, notwithstanding that the title is silent on the subject. It would be difficult to conceive of a matter more germane to an act and to the object to be accomplished thereby than the repeal of previous legislations connected therewith." The reason is that where a statute repeals a former law, such repeal is the effect and not the subject of the statute; and it is the subject, not the effect of a law, which is required to be briefly expressed in its title. As observed in one case, if the title of an act embraces only one subject, we apprehend it was never claimed that every other act which it repeals or alters by implication must be mentioned in the title of the new act. Any such rule would be neither within the reason of the Constitution, nor practicable.

5. ID.; BILL OF RIGHTS; EQUAL PROTECTION OF THE LAWS; ELUCIDATED. — The equal protection of the laws is embraced in the concept of due process, as every unfair discrimination offends the requirements of justice and fair play. It has nonetheless been embodied in a separate clause in Article III, Sec. 1, of the Constitution to provide for a more specific guaranty against any form of undue favoritism or hostility from the government. Arbitrariness in general may be challenged on the basis of the due process clause. But if the particular act assailed partakes of an unwarranted partiality or prejudice, the sharper weapon to cut it down is the equal protection clause. According to a long line of decisions, equal protection simply requires that all persons or things similarly situated should be treated alike, both as to rights conferred and responsibilities imposed. Similar subjects, in other words, should not be treated differently, so as to give undue favor to some and unjustly discriminate against others. The equal protection clause does not require the universal application of the laws on all persons or things without distinction. This might in fact sometimes result in unequal protection, as whom, for example, a law prohibiting mature books to all persons, regardless of age, would benefit the morals of the youth but violate the liberty of adults. What the clause requires is equality among equals as determined according to a valid classification. By classification is meant the grouping of persons or things similar to each other in certain particulars and different from all others in these same particulars.

6. ID.; SECTION 35 OF R.A. 7354 IS UNCONSTITUTIONAL FOR BEING VIOLATIVE OF THE EQUAL PROTECTION OF THE LAWS. — We are unable to agree with the respondents that Section 35 of R.A. No 7354 represents a valid exercise of discretion by the Legislature under the police power. On the contrary, we find its repealing clause to be a discriminatory provision that denies the Judiciary the equal protection of the laws guaranteed for all persons or things similarly situated. The distinction made by the law is superficial. It is not based on substantial distinctions that make real differences between the Judiciary and the grantees of the franking privilege. This is not a question of wisdom or power into which the Judiciary may not intrude. It is a matter of arbitrariness that this Court has the duty and power to correct. In sum, we sustain R.A No. 7354 against the attack that its subject is not expressed in its title and that it was not passed in accordance with the prescribed procedure. However, we annul Section 35 of the law as violative of Article 3, Sec. 1, of the Constitution providing that no person shall "be deprived of the equal protection of the laws.

D E C I S I O N

CRUZ, *J.*:

The basic issue raised in this petition is the independence of the Judiciary. It is asserted by the petitioners that this hallmark of republicanism is impaired by the statute and circular they are here challenging. The Supreme Court is itself affected by these measures and is thus an interested party that should ordinarily not also be a judge at the same time. Under our system of government, however, it cannot inhibit itself and must rule upon the challenge, because no other office has the authority to do so. We shall therefore act upon this matter not with officiousness but in the discharge of an unavoidable duty and, as always, with detachment and fairness.

The main target of this petition is Section 35 of R.A. No. 7354 as implemented by the Philippine Postal Corporation through its Circular No. 9228. These measures withdraw the franking privilege from the Supreme Court, the Court of Appeals, the Regional Trial Courts, the Metropolitan Trial Courts, the

Municipal Trial Courts, and the Land Registration Commission and its Register of Deeds, along with certain other government offices.

The petitioners are members of the lower courts who feel that their official functions as judges will be prejudiced by the above-named measures. The National Land Registration Authority has taken common cause with them insofar as its own activities, such as the sending of requisite notices in registration cases, affect judicial proceedings. On its motion, it has been allowed to intervene.

The petition assails the constitutionality of R.A. No. 7354 on the grounds that: (1) its title embraces more than one subject and does not express its purposes; (2) it did not pass the required readings in both Houses of Congress and printed copies of the bill in its final form were not distributed among the members before its passage; and (3) it is discriminatory and encroaches on the independence of the Judiciary.

We approach these issues with one important principle in mind, to wit, the presumption of the constitutionality of statutes. The theory is that as the joint act of the Legislature and the Executive, every statute is supposed to have first been carefully studied and determined to be constitutional before it was finally enacted. Hence, unless it is clearly shown that it is constitutionally flawed, the attack against its validity must be rejected and the law itself upheld. To doubt is to sustain.

I

We consider first the objection based on Article VI, Sec. 26(1), of the Constitution providing that "Every bill passed by the Congress shall embrace only one subject which shall be expressed in the title thereof."

The purposes of this rule are: (1) to prevent hodge-podge or "log-rolling" legislation; (2) to prevent surprise or fraud upon the legislature by means of provisions in bills of which the title gives no intimation, and which might therefore be overlooked and carelessly and unintentionally adopted; and (3) to fairly apprise the people, through such publication of legislative proceedings

as is usually made, of the subject of legislation that is being considered, in order that they may have opportunity of being heard thereon, by petition or otherwise, if they shall so desire.[1]

It is the submission of the petitioners that Section 35 of R.A. No. 7354 which withdrew the franking privilege from the Judiciary is not expressed in the title of the law, nor does it reflect its purposes.

R.A. No. 7354 is entitled "An Act Creating the Philippine Postal Corporation, Defining its Power, Functions and Responsibilities, Providing for Regulation of the Industry and for Other Purposes Connected Therewith."

The objectives of the law are enumerated in Section 3, which provides:

The State shall pursue the following objectives of a nationwide postal system:

a) to enable the economical and speedy transfer of mail and other postal matters, from sender to addressee, with full recognition of their privacy or confidentiality;

b) to promote international interchange, cooperation and understanding through the unhampered flow or exchange of postal matters between nations;

c) to cause or effect a wide range of postal services to cater to different users and changing needs, including but not limited to, philately, transfer of monies and valuables, and the like;

d) to ensure that sufficient revenues are generated by and within the industry to finance the overall cost of providing the varied range of postal delivery and messengerial services as well as the expansion and continuous upgrading of service standards by the same.

Sec. 35 of R.A. No. 7354, which is the principal target of the petition, reads as follows:

SECTION 35. *Repealing Clause.* — All acts, decrees, orders, executive orders, instructions, rules and regulations or parts thereof

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[1] Cooley, *Constitutional Limitations*, 8th Ed., pp. 295-296; *State vs. Dolan*, 14 L.R.A. 1259; *State v. Doherty*, 29 Pac. 855.

inconsistent with the provisions of this Act are repealed or modified accordingly.

All franking privileges authorized by law are hereby repealed, except those provided for under Commonwealth Act No. 265, Republic Acts Numbered 69, 180, 1414, 2087 and 5059. The Corporation may continue the franking privilege under Circular No. 35 dated October 24, 1977 and that of the Vice President, under such arrangements and conditions as may obviate abuse or unauthorized use thereof.

The petitioners' contention is untenable. We do not agree that the title of the challenged act violates the Constitution.

The title of the bill is not required to be an index to the body of the act, or to be as comprehensive as to cover every single detail of the measure. It has been held that if the title fairly indicates the general subject, and reasonably covers all the provisions of the act, and is not calculated to mislead the legislature or the people, there is sufficient compliance with the constitutional requirement.[2]

To require every end and means necessary for the accomplishment of the general objectives of the statute to be expressed in its title would not only be unreasonable but would actually render legislation impossible.[3] As has been correctly explained:

The details of a legislative act need not be specifically stated in its title, but matter germane to the subject as expressed in the title, and adopted to the accomplishment of the object in view, may properly be included in the act. Thus, it is proper to create in the same act the machinery by which the act is to be enforced, to prescribe the penalties for its infraction, and to remove obstacles in the way of its execution. If such matters are properly connected with the subject as expressed in the title, it is unnecessary that they should also have special mention in the title (*Southern Pac. Co. v. Bartine*, 170 Fed. 725).

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[2] *Public Service Co. v. Recktenwald*, 8 A.L.R. 466.

[3] Cooley, *Constitutional Limitations*, 8th Ed., p. 297.

This is particularly true of the repealing clause, on which Cooley writes: "The repeal of a statute on a given subject is properly connected with the subject matter of a new statute on the same subject; and therefore a repealing section in the new statute is valid, notwithstanding that the title is silent on the subject. It would be difficult to conceive of a matter more germane to an act and to the object to be accomplished thereby than the repeal of previous legislations connected therewith."[4]

The reason is that where a statute repeals a former law, such repeal is the effect and not the subject of the statute; and it is the subject, not the effect of a law, which is required to be briefly expressed in its title.[5] As observed in one case,[6] if the title of an act embraces only one subject, we apprehend it was never claimed that every other act which it repeals or alters by implication must be mentioned in the title of the new act. Any such rule would be neither within the reason of the Constitution, nor practicable.

We are convinced that the withdrawal of the franking privilege from some agencies is germane to the accomplishment of the principal objective of R.A. No. 7354, which is the creation of a more efficient and effective postal service system. Our ruling is that, by virtue of its nature as a repealing clause, Section 35 did not have to be expressly included in the title of the said law.

II

The petitioners maintain that the second paragraph of Sec. 35 covering the repeal of the franking privilege from the petitioners and this Court under E.O. 207, PD 1882 and PD 26 was not included in the original version of Senate Bill No. 720 or of House Bill No. 4200. As this paragraph appeared only in the Conference Committee Report, its addition violates Article VI, Sec. 26(2) of the Constitution, reading as follows:

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[4] *Ibid*., p. 302.

[5] *Southern Pac. Co. v. Bartine*, 170 Fed. 737.

[6] *City of Winona v. School District*, 41 N.W. 539.

(2) No bill passed by either House shall become a law unless it has passed three readings on separate days, and printed copies thereof in its final form have been distributed to its Members three days before its passage, except when the President certifies to the necessity of its immediate enactment to meet a public calamity or emergency. Upon the last reading of a bill, no amendment thereto shall be allowed, and the vote thereon shall be taken immediately thereafter, and the *yeas* and *nays* entered in the Journal.

The petitioners also invoke Sec. 74 of the Rules of the House of Representatives, requiring that amendment to any bill when the House and the Senate shall have differences thereon may be settled by a conference committee of both chambers. They stress that Sec. 35 was never a subject of any disagreement between both Houses and so the second paragraph could not have been validly added as an amendment.

These arguments are unacceptable.

While it is true that a conference committee is the mechanism for compromising differences between the Senate and the House, it is not limited in its jurisdiction to this question. Its broader function is described thus:

A conference committee may deal generally with the subject matter or it may be limited to resolving the precise differences between the two houses. Even where the conference committee is not by rule limited in its jurisdiction, legislative custom severely limits the freedom with which new subject matter can be inserted into the conference bill. But occasionally a conference committee produces unexpected results, results beyond its mandate. These excursions occur even where the rules impose strict limitations on conference committee jurisdiction. This is symptomatic of the authoritarian power of conference committee (Davies, *Legislative Law and Process: In A Nutshell*, 1986 Ed., p. 81).

It is a matter of record that the Conference Committee Report on the bill in question was returned to and duly approved by both the Senate and the House of Representatives. Thereafter, the bill was enrolled with its certification by Senate President Neptali A. Gonzales and Speaker Ramon V. Mitra of the House of Representatives as having been duly passed by both Houses

of Congress. It was then presented to and approved by President Corazon C. Aquino on April 3, 1992.

Under the doctrine of separation of powers, the Court may not inquire beyond the certification of the approval of a bill from the presiding officers of Congress. *Casco Philippine Chemical Co. v. Gimenez*[7] laid down the rule that the enrolled bill is conclusive upon the Judiciary (except in matters that have to be entered in the journals like the *yeas* and *nays* on the final reading of the bill).[8] The journals are themselves also binding on the Supreme Court, as we held in the old (but still valid) case of *U.S. vs. Pons*,[9] where we explained the reason thus:

> To inquire into the veracity of the journals of the Philippine legislature when they are, as we have said, clear and explicit, would be to violate both the letter and spirit of the organic laws by which the Philippine Government was brought into existence, to invade a coordinate and independent department of the Government, and to interfere with the legitimate powers and functions of the Legislature.

Applying these principles, we shall decline to look into the petitioners' charges that an amendment was made upon the last reading of the bill that eventually became R.A. No. 7354 and that copies thereof in its final form were not distributed among the members of each House. Both the enrolled bill and the legislative journals certify that the measure was duly enacted *i.e.*, in accordance with Article VI, Sec. 26(2) of the Constitution. We are bound by such official assurances from a coordinate department of the government, to which we owe, at the very least, a becoming courtesy.

III

The third and most serious challenge of the petitioners is based on the equal protection clause.

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[7] 7 SCRA 347.

[8] *Mabanag v. Lopez Vito*, 78 Phil. 1.

[9] 34 Phil. 729.

It is alleged that R.A. No. 7354 is discriminatory because while withdrawing the franking privilege from the Judiciary, it retains the same for the President of the Philippines; the Vice President of the Philippines; Senators and Members of the House of Representatives; the Commission on Elections; former Presidents of the Philippines; widows of former Presidents of the Philippines; the National Census and Statistics Office; and the general public in the filing of complaints against public offices or officers.[10]

The respondents counter that there is no discrimination because the law is based on a valid classification in accordance with the equal protection clause. In fact, the franking privilege has been withdrawn not only from the Judiciary but also the Office of Adult Education; the Institute of National Language; the Telecommunications Office; the Philippine Deposit Insurance Corporation; the National Historical Commission; the Armed Forces of the Philippines; the Armed Forces of the Philippines Ladies Steering Committee; the City and Provincial Prosecutors; the *Tanodbayan* (Office of Special Prosecutor); the *Kabataang Barangay*; the Commission on the Filipino Language; the Provincial and City Assessors; and the National Council for the Welfare of Disabled Persons.[11]

The equal protection of the laws is embraced in the concept of due process, as every unfair discrimination offends the requirements of justice and fair play. It has nonetheless been embodied in a separate clause in Article III Sec. 1, of the Constitution to provide for a more specific guaranty against any form of undue favoritism or hostility from the government. Arbitrariness in general may be challenged on the basis of the due process clause. But if the particular act assailed partakes of an unwarranted partiality or prejudice, the sharper weapon to cut it down is the equal protection clause.

According to a long line of decisions, equal protection simply requires that all persons or things similarly situated should be

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[10] *Rollo*, pp. 8-9.

[11] *Ibid.*, pp. 209-210.

treated alike, both as to rights conferred and responsibilities imposed.[12] Similar subjects, in other words, should not be treated differently, so as to give undue favor to some and unjustly discriminate against others.

The equal protection clause does not require the universal application of the laws on all persons or things without distinction. This might in fact sometimes result in unequal protection, as where, for example, a law prohibiting mature books to all persons, regardless of age, would benefit the morals of the youth but violate the liberty of adults. What the clause requires is equality among equals as determined according to a valid classification. By classification is meant the grouping of persons or things similar to each other in certain particulars and different from all others in these same particulars.[13]

What is the reason for the grant of the franking privilege in the first place? Is the franking privilege extended to the President of the Philippines or the Commission on Elections or to former Presidents of the Philippines purely as a courtesy from the lawmaking body? Is it offered because of the importance or status of the grantee or because of its need for the privilege? Or have the grantees been chosen pell-mell, as it were, without any basis at all for the selection?

We reject outright the last conjecture as there is no doubt that the statute as a whole was carefully deliberated upon by the political departments before it was finally enacted. There is reason to suspect, however, that not enough care (or attention) was given to its repealing clause, resulting in the unwitting withdrawal of the franking privilege from the Judiciary.

We also do not believe that the basis of the classification was mere courtesy, for it is unimaginable that the political departments would have intended this serious slight to the

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[12] *Ichong v. Hernandez,* 101 Phil. 1155; *Sison v. Ancheta,* 130 SCRA 654; *Association of Small Landowners in the Philippines v. Secretary of Agrarian Reform,* 175 SCRA 375.

[13] *International Harvester Co. v. Missouri,* 234 US 199.

Judiciary as the third of the major and equal departments of the government. The same observations are made if the importance or status of the grantee was the criterion used for the extension of the franking privilege, which is enjoyed by the National Census and Statistics Office and even some private individuals but not the courts of justice.

In our view, the only acceptable reason for the grant of the franking privilege was the perceived *need* of the grantee for the accommodation, which would justify a waiver of substantial revenue by the Corporation in the interest of providing for a smoother flow of communication between the government and the people.

Assuming that basis, we cannot understand why, of all the departments of the government, it is the Judiciary that has been denied the franking privilege. There is no question that if there is any major branch of the government that needs the privilege, it is the Judicial Department, as the respondents themselves point out. Curiously, the respondents would justify the distinction on the basis precisely of this need and, on this basis, deny the Judiciary the franking privilege while extending it to others less deserving.

In their Comment, the respondents point out that available data from the Postal Service Office show that from January 1988 to June 1992, the total volume of frank mails amounted to ₱90,424,175.00. of this amount, frank mails from the Judiciary and other agencies whose functions include the service of judicial processes, such as the intervenor, the Department of Justice and the Office of the Ombudsman, amounted to ₱86,481,759. Frank mails coming from the Judiciary amounted to ₱73,574,864.00, and those coming from the petitioners reached the total amount of ₱60,991,431.00. The respondents' conclusion is that because of this considerable volume of mail from the Judiciary, the franking privilege must be withdrawn from it.

The argument is self-defeating. The respondents are in effect saying that the franking privilege should be extended only to those who do not need it very much, if at all, (like the widows

of former Presidents) but not to those who need it badly (especially the courts of justice). It is like saying that a person may be allowed cosmetic surgery although it is not really necessary but not an operation that can save his life.

If the problem of the respondents is the loss of revenues from the franking privilege, the remedy, it seems to us, is to withdraw it altogether from all agencies of the government, including those who do not need it. The problem is not solved by retaining it for some and withdrawing it from others, especially where there is no substantial distinction between those favored, which may or may not need it at all, and the Judiciary, which definitely needs it. The problem is not solved by violating the Constitution.

In lumping the Judiciary with the other offices from which the franking privilege has been withdrawn, Section 35 has placed the courts of justice in a category to which it does not belong. If it recognizes the need of the President of the Philippines and the members of Congress for the franking privilege, there is no reason why it should not recognize a similar and in fact greater need on the part of the Judiciary for such privilege. While we may appreciate the withdrawal of the franking privilege from the Armed Forces of the Philippines Ladies Steering Committee, we fail to understand why the Supreme Court should be similarly treated as that Committee. And while we may concede the need of the National Census and Statistics Office for the franking privilege, we are intrigued that a similar if not greater need is not recognized in the courts of justice.

(On second thought, there does not seem to be any justifiable need for withdrawing the privilege from the Armed Forces of the Philippine Ladies Steering Committee, which, like former Presidents of the Philippines or their widows, does not send as much frank mails as the Judiciary).

It is worth observing that the Philippine Postal Corporation, as a government-controlled corporation, was created and is expected to operate for the purpose of promoting the public service. While it may have been established primarily for private gain, it cannot excuse itself from performing certain functions

for the benefit of the public in exchange for the franchise extended to it by the government and the many advantages it enjoys under its charter, like exemption from taxes, customs and tariff duties.[14] Among the services it should be prepared to extend is the free carriage of mail for certain offices of the government that need the franking privilege in the discharge of their own public functions.

We also note that under Section 9 of the law, the Corporation is capitalized at ₱10 billion pesos, 55% of which is supplied by the Government, and that it derives substantial revenues from the sources enumerated in Section 10, on top of the tax exemptions it enjoys. It is not likely that the retention of the franking privilege by the Judiciary will cripple the Corporation.

At this time when the Judiciary is being faulted for the delay in the administration of justice, the withdrawal from it of the franking privilege can only further deepen this serious problem. The volume of judicial mail, as emphasized by the respondents themselves, should stress the dependence of the courts of justice on the postal service for communicating with lawyers and litigants as part of the judicial process. The Judiciary has the lowest appropriation in the national budget compared to the Legislative and Executive Departments; of the ₱309 billion budgeted for 1993, only .84%, or less than 1%, is allotted to the Judiciary. It should not be hard to imagine the increased difficulties of our courts if they have to affix a purchased stamp to every process they send in the discharge of their judicial functions.

We are unable to agree with the respondents that Section 35 of R.A. No. 7354 represents a valid exercise of discretion by the Legislature under the police power. On the contrary, we find its repealing clause to be a discriminatory provision that denies the Judiciary the equal protection of the laws guaranteed for all persons or things similarly situated. The distinction made by the law is superficial. It is not based on substantial distinctions that make real differences between the Judiciary and the grantees of the franking privilege.

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[14] Sec. 14 of R.A. No. 7354.

This is not a question of wisdom or power into which the Judiciary may not intrude. It is a matter of arbitrariness that this Court has the duty and power to correct.

IV

In sum, we sustain R.A. No. 7354 against the attack that its subject is not expressed in its title and that it was not passed in accordance with the prescribed procedure. However, we annul Section 35 of the law as violative of Article 3, Sec. 1, of the Constitution providing that no person shall "be deprived of the equal protection of the laws."

We arrive at these conclusions with a full awareness of the criticism it is certain to provoke. While ruling against the discrimination in this case, we may ourselves be accused of similar discrimination through the exercise of our ultimate power in our own favor. This is inevitable. Criticism of judicial conduct, however undeserved, is a fact of life in the political system that we are prepared to accept. As judges, we cannot even debate with our detractors. We can only decide the cases before us as the law imposes on us the duty to be fair and our own conscience gives us the light to be right.

ACCORDINGLY, the petition is partially *GRANTED* and Section 35 of R.A. No. 7354 is declared *UNCONSTITUTIONAL*. Circular No. 92-28 is *SET ASIDE* insofar as it withdraws the franking privilege from the Supreme Court, the Court of Appeals, the Regional Trial Courts, the Municipal Trial Courts, the Municipal Circuit Trial Courts, and the National Land Registration Authority and its Registers of Deeds to all of which offices the said privilege shall be RESTORED. The temporary restraining order dated June 2, 1992, is made permanent.

SO ORDERED.

Narvasa, C.J., Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Melo, Quiason, Puno, and *Vitug, JJ.*, concur.

Bellosillo, J., on leave.

THIRD DIVISION

[G.R. No. 105387. November 11, 1993]

JOHANNES SCHUBACK & SONS PHILIPPINE TRADING CORPORATION, *petitioner, vs.* **THE HON. COURT OF APPEALS, RAMON SAN JOSE, JR., doing business under the name and style "PHILIPPINE SJ INDUSTRIAL TRADING,"** *respondents.*

SYLLABUS

1. CIVIL LAW; CONTRACTS; PERFECTION OF; PERFECTION OF THE CONTRACT WAS REACHED BETWEEN THE PARTIES WHEN THERE WAS MEETING OF THE MINDS AS TO THE OBJECT AND CAUSE. — A perfection of the contract was reached between the parties, we differ as to the exact date when it occurred, for perfection took place, not on December 29, 1981, but rather on December 24, 1981. Although the quantity to be ordered was made determinate only on December 29, 1981, quantity is immaterial in the perfection of a sales contract. What is of importance is the meeting of the minds as to the *object* and *cause*, which from the facts disclosed, show that as of December 24, 1981, these essential elements had already concurred.

2. ID.; ID.; OPENING OF A LETTER OF CREDIT IS DEEMED NOT A SUSPENSIVE CONDITION. — On the part of the buyer, the situation reveals that private respondent failed to open an irrevocable letter of credit without recourse in favor of Johannes Schuback of Hamburg, Germany. This omission, however, does not prevent the perfection of the contract between the parties, for the opening of a letter of credit is not to be deemed a suspensive condition. The facts herein do not show that petitioner reserved title to the goods until private respondent had opened a letter of credit. Petitioner, in the course of its dealings with private respondent, did not incorporate any provision declaring their contract of sale without effect until after the fulfillment of the act of opening a letter of credit.

APPPEARANCES OF COUNSEL

Hernandez, Velicaria, Vibar & Santiago for petitioner.
Ernesto M. Tomaneng for private respondent.

D E C I S I O N

ROMERO, *J.*:

In this petition for review on *certiorari*, petitioner questions the reversal by the Court of Appeals[1] of the trial court's ruling that a contract of sale had been perfected between petitioner and private respondent over bus spare parts.

The facts as quoted from the decision of the Court of Appeals are as follows:

"Sometime in 1981, defendant[2] established contact with plaintiff[3] through the Philippine Consulate General in Hamburg, West Germany, because he wanted to purchase MAN bus spare parts from Germany. Plaintiff communicated with its trading partner, Johannes Schuback and Sohne Handelsgesellschaft m.b.n. & Co. (Schuback Hamburg) regarding the spare parts defendant wanted to order.

On October 16, 1981, defendant submitted to plaintiff a list of the parts (Exhibit B) he wanted to purchase with specific part numbers and description. Plaintiff referred the list to Schuback Hamburg for quotations. Upon receipt of the quotations, plaintiff sent to defendant a letter dated 25 November, 1981 (Exh. C) enclosing its offer on the items listed by defendant.

On December 4, 1981, defendant informed plaintiff that he preferred genuine to replacement parts, and requested that he be given a 15% discount on all items (Exh. D).

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[1] Penned by Justice Artemon D. Luna and concurred in by Justices Serafin E. Camilon and Celso L. Magsino.

[2] Herein private respondent.

[3] Herein petitioner.

On December 17, 1981, plaintiff submitted its formal offer (Exh. E) containing the item number, quantity, part number, description, unit price and total to defendant. On December 24, 1981, defendant informed plaintiff of his desire to avail of the prices of the parts at that time and enclosed its Purchase Order No. 0101 dated 14 December 1981 (Exhs. F to F-4). Said Purchase Order contained the item number, part number and description. Defendant promised to submit the quantity per unit he wanted to order on December 28 or 29 (Exh. F).

On December 29, 1981, defendant personally submitted the quantities he wanted to Mr. Dieter Reichert, General Manager of plaintiff, at the latter's residence (t.s.n., 13 December, 1984, p. 36). The quantities were written in ink by defendant in the same Purchase Order previously submitted. At the bottom of said Purchase Order, defendant wrote in ink above his signature: 'NOTE: Above P.O. will include a 3% discount. The above will serve as our initial P.O.' (Exhs. G to G-3-a).

Plaintiff immediately ordered the items needed by defendant from Schuback Hamburg to enable defendant to avail of the old prices. Schuback Hamburg in turn ordered (Order No. 12204) the items from NDK, a supplier of MAN spare parts in West Germany. On January 4, 1982, Schuback Hamburg sent plaintiff a proforma invoice (Exhs. N-1 to N-3) to be used by defendant in applying for a letter of credit. Said invoice required that the letter of credit be opened in favor of Schuback Hamburg. Defendant acknowledged receipt of the invoice (t.s.n., 19 December 1984, p. 40).

An order confirmation (Exhs. I, I-1) was later sent by Schuback Hamburg to plaintiff which was forwarded to and received by defendant on February 3, 1981 (t.s.n., 13 Dec. 1984, p. 42).

On February 16, 1982, plaintiff reminded defendant to open the letter of credit to avoid delay in shipment and payment of interest (Exh. J). Defendant replied, mentioning, among others, the difficulty he was encountering in securing the required dollar allocations and applying for the letter of credit, procuring a loan and looking for a partner-financier, and of finding ways 'to proceed with our orders' (Exh. K).

In the meantime, Schuback Hamburg received invoices from NDK for partial deliveries on Order No. 12204 (Direct Interrogatories, 07 Oct. 1985, p. 3). Schuback Hamburg paid NDK. The latter

confirmed receipt of payments made on February 16, 1984 (Exh. C-Deposition).

On October 18, 1982, plaintiff again reminded defendant of his order and advised that the case may be endorsed to its lawyers (Exh. L). Defendant replied that he did not make any valid Purchase Order and that there was no definite contract between him and plaintiff (Exh. M). Plaintiff sent a rejoinder explaining that there is a valid Purchase Order and suggesting that defendant either proceed with the order and open a letter of credit or cancel the order and pay the cancellation fee of 30% F.O.B. value, or plaintiff will endorse the case to its lawyers (Exh. N).

Schuback Hamburg issued a Statement of Account (Exh. P) to plaintiff enclosing therewith Debit Note (Exh. O) charging plaintiff 30% cancellation fee, storage and interest charges in the total amount of DM 51,917.81. Said amount was deducted from plaintiff's account with Schuback Hamburg (Direct Interrogatories, 07 October, 1985).

Demand letters sent to defendant by plaintiff's counsel dated March 22, 1983 and June 9, 1983 were to no avail (Exhs. R and S)."

Consequently, petitioner filed a complaint for recovery of actual or compensatory damages, unearned profits, interest, attorney's fees and costs against private respondent.

In its decision dated June 13, 1988, the trial court[4] ruled in favor of petitioner by ordering private respondent to pay petitioner, among others, actual compensatory damages in the amount of DM 51,917.81, unearned profits in the amount of DM 14,061.07, or their peso equivalent.

Thereafter, private respondent elevated his case before the Court of Appeals. On February 18, 1992, the appellate court reversed the decision of the trial court and dismissed the complaint of petitioner. It ruled that there was no perfection of contract since there was no meeting of the minds as to the price between the last week of December 1981 and the first week of January 1982.

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[4] Regional Trial Court of Makati, Metro Manila, Branch 146. (Penned by Judge Jose L. Coscolluela, Jr.).

The issue posed for resolution is whether or not a contract of sale has been perfected between the parties.

We reverse the decision of the Court of Appeals and reinstate the decision of the trial court. It bears emphasizing that a "contract of sale is perfected at the moment there is a meeting of minds upon the thing which is the object of the contract and upon the price x x x."[5]

Article 1319 of the Civil Code states: "Consent is manifested by the meeting of the offer and acceptance upon the thing and the cause which are to constitute the contract. The offer must be certain and the acceptance absolute. A qualified acceptance constitutes a counter offer." The facts presented to us indicate that consent on both sides has been manifested.

The offer by petitioner was manifested on December 17, 1981 when petitioner submitted its proposal containing the item number, quantity, part number, description, the unit price and total to private respondent. On December 24, 1981, private respondent informed petitioner of his desire to avail of the prices of the parts at that time and simultaneously enclosed its Purchase Order No. 0101 dated December 14, 1981. At this stage, a meeting of the minds between vendor and vendee has occurred, the object of the contract being the spare parts and the consideration, the price stated in petitioner's offer dated December 17, 1981 and accepted by the respondent on December 24, 1981.

Although said purchase order did not contain the quantity he wanted to order, private respondent made good his promise to communicate the same on December 29, 1981. At this juncture, it should be pointed out that private respondent was already in the process of executing the agreement previously reached between the parties.

Below Exh. G-3, marked as Exhibit G-3-A, there appears this statement made by private respondent: "Note. above P.O.

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[5] Civil Code, Article 1475, *C & C Commercial Corp. v. PNB*, G.R. No. 92499, July 5, 1989, 175 SCRA 1; *NGA v. Intermediate Appellate Court*, G.R. No. 79970, March 8, 1989, 171 SCRA 131.

will include a 3% discount. The above will serve as our initial P.O." This notation on the purchase order was another indication of acceptance on the part of the vendee, for by requesting a 3% discount, he implicitly accepted the price as first offered by the vendor. The immediate acceptance by the vendee of the offer was impelled by the fact that on January 1, 1982, prices would go up, as in fact, the petitioner informed him that there would be a 7% increase effective January 1982. On the other hand, concurrence by the vendor with the said discount requested by the vendee was manifested when petitioner immediately ordered the items needed by private respondent from Schuback Hamburg which in turn ordered from NDK, a supplier of MAN spare parts in West Germany.

When petitioner forwarded its purchase order to NDK, the price was still pegged at the old one. Thus, the pronouncement of the Court of Appeals that there was no confirmed price on or about the last week of December 1981 and/or the first week of January 1982 was erroneous.

While we agree with the trial court's conclusion that indeed a perfection of the contract was reached between the parties, we differ as to the exact date when it occurred, for perfection took place, not on December 29, 1981, but rather on December 24, 1981. Although the quantity to be ordered was made determinate only on December 29, 1981, quantity is immaterial in the perfection of a sales contract. What is of importance is the meeting of the minds as to the *object* and *cause*, which from the facts disclosed, show that as of December 24, 1981, these essential elements had already concurred.

On the part of the buyer, the situation reveals that private respondent failed to open an irrevocable letter of credit without recourse in favor of Johannes Schuback of Hamburg, Germany. This omission, however, does not prevent the perfection of the contract between the parties, for the opening of a letter of credit is not to be deemed a suspensive condition. The facts herein do not show that petitioner reserved title to the goods until private respondent had opened a letter of credit. Petitioner, in the course

of its dealings with private respondent, did not incorporate any provision declaring their contract of sale without effect until after the fulfillment of the act of opening a letter of credit.

The opening of a letter of credit in favor of a vendor is only a mode of payment. It is not among the essential requirements of a contract of sale enumerated in Articles 1305 and 1474 of the Civil Code, the absence of any of which will prevent the perfection of the contract from taking place.

To adopt the Court of Appeals' ruling that the contract of sale was dependent on the opening of a letter of credit would be untenable from a pragmatic point of view because private respondent would not be able to avail of the old prices which were open to him only for a limited period of time. This explains why private respondent immediately placed the order with petitioner which, in turn promptly contacted its trading partner in Germany. As succinctly stated by petitioner, "it would have been impossible for respondent to avail of the said old prices since the perfection of the contract would arise much later, or after the end of the year 1981, or when he finally opens the letter of credit."[6]

WHEREFORE, the petition is *GRANTED* and the decision of the trial court dated June 13, 1988 is *REINSTATED* with modification.

SO ORDERED.

Feliciano (Chairman), Bidin, Melo, and *Vitug, JJ.*, concur.

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[6] *Rollo,* p. 46.

SECOND DIVISION

[G.R. No. 105461. November 11, 1993]

MARLYN LAZARO, *petitioner, vs.* **THE COURT OF APPEALS (Eighth Division) and the PEOPLE OF THE PHILIPPINES,** *respondents.*

SYLLABUS

1. CRIMINAL LAW; BOUNCING CHECKS LAW (B.P. 22); MERE ISSUANCE OF WORTHLESS CHECK, PUNISHABLE. — In *Que vs. People*, (G.R. Nos. 75217-18, 21 September 1987, 154 SCRA 161) this Court stated that the clear intention of the framers of Batas Pambansa Bilang 22 is to make the mere act of issuing a worthless check *malum prohibitum*. In prosecutions for violation of BP 22 therefore, prejudice or damage is not a pre-requisite for conviction. In the more recent case of *People vs. Nitafan*, this Court ruled that the agreement surrounding the issuance of the checks need not be first looked into, since the law has clearly provided that the mere issuance of any kind of check, regardless of the intent of the parties; *i.e.*, whether the check is intended merely to serve as a guarantee or deposit, but which check is subsequently dishonored, makes the person who issued the check liable. The intent of the law is to curb the proliferation of worthless checks and to protect the stability and integrity of checks as a means of payment of obligations.

2. ID.; ID.; FINE; ADDITIONAL PENALTY. — BP 22 provides that a fine of not less than but not more than double the amount of the dishonored check may be imposed by the court. In the case of *Esler vs. Ledesma*, (G.R. No. L-28638, 21 September 1928, 52 Phil. 114) this Court stated that a fine is a pecuniary punishment imposed by a lawful tribunal upon a person convicted of a crime. Clearly, the fine provided for in BP 22 was intended as an additional penalty for the act of issuing a worthless check. This is the only logical conclusion since the law does not require that there be damage or prejudice to the individual complainant by reason of the issuance of the worthless check.

APPEARANCES OF COUNSEL

Dilag, Blanes, Alvaro, Sillano, Jurado, Cudiamat, Piollo and Basar for petitioner.

The Solicitor General for the People of the Philippines.

D E C I S I O N

PADILLA, *J.*:

Petitioner Marlyn Lazaro was charged with the separate crimes of Estafa and Violation of Batas Pambansa Bilang 22, otherwise known as the Bouncing Checks Law.

On 24 September 1990, the Regional Trial Court, Branch 86, Quezon City rendered a joint decision[*] in Criminal Case Nos. Q-90-13387 and Q-90-13388 the dispositive part of which reads:

"WHEREFORE, the Court finds the accused, MARLYN LAZARO, guilty beyond reasonable doubt of the crime of Violation of B.P. 22, and hereby sentences said accused to suffer one (1) year imprisonment and to indemnify the offended party, Rudy Chua, in the sum of SEVENTY TWO THOUSAND (₱72,000.00) PESOS, Philippine Currency, without subsidiary imprisonment in case of insolvency, with the accessories provided for by law.

For reasons above stated, accused is acquitted in the charge for the crime of estafa.

SO ORDERED."[1]

On appeal, the Court of Appeals in a decision[**] dated 31 March 1992 affirmed the trial court decision *in toto*. A Motion For Reconsideration was denied on 15 May 1992. Hence, this petition for review which raises the following issues:

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[*] Penned by Judge Antonio P. Solano.

[1] *Rollo,* p. 31.

[**] Penned by Associate Justice Quirino D. Abad Santos with the concurrence of Associate Justices Lorna S. Lombos-De la Fuente and Eduardo R. Bengzon.

"I. THE DECISION OF THE HONORABLE COURT OF APPEALS IS CONTRARY TO THE EVIDENCE ADDUCED IN THE LOWER COURT.

II. THAT RESPONDENT HONORABLE COURT OF APPEALS COMMITTED GRAVE ABUSE OF DISCRETION TANTAMOUNT TO DENY PETITIONER'S DUE PROCESS OF LAW (SIC) IN DISREGARDING THE FACT THAT THE AMOUNT WHICH IS COVERED BY (THE) CHECK IN QUESTION HAS ALREADY BEEN PAID BY PETITIONER WHEN SHE EXECUTED A DEED OF SALE IN FAVOR OF PRIVATE COMPLAINANT OF HER CAR.

III. THE RESPONDENT COURT OF APPEALS ERRED IN AFFIRMING THE JUDGMENT OF THE LOWER COURT."[2]

The evidence for the prosecution established the following:

1. On or about 13 October 1989, herein petitioner Marlyn Lazaro received from complainant Rudy Chua the amount of Ninety Thousand (₱90,000.00) Pesos as advance payment for deliveries of sugar, cigarettes and luncheon meat ordered by the latter from Lazaro who is a businesswoman.

2. On 27 October 1989, petitioner made a partial delivery of the ordered goods worth Eighteen Thousand (₱18,000.00) Pesos. Petitioner was unable to deliver the rest of goods ordered by Chua. Petitioner, as a refund of the amount of Seventy-Two Thousand (₱72,000.00) Pesos, issued Prudential Bank Check No. 599175 dated 28 October 1989 for the aforementioned amount.

3. On 30 October 1989, complainant Chua deposited by check in his account. The check was dishonored by the bank and stamped "Account Closed."

4. To make up for the dishonor, Lazaro indorsed Trader's Royal Bank Check No. 393173 issued by a certain Lolita Soriano and payable "to cash". The check which was dated 18 November 1989 was likewise dishonored and marked "Account Closed."

5. Chua then sent a demand letter to Lazaro asking for the payment of the Seventy-Two Thousand (₱72,000.00) Pesos covered by the first check within five (5) days from receipt of the letter.

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[2] *Rollo,* p. 85.

6. For failure of the accused to pay the amount, Chua filed complaints for estafa and violation of B.P. 22 against Lazaro.

Petitioner Lazaro admits having received from complainant Rudy Chua the amount of Ninety Thousand (₱90,000.00) Pesos for the goods ordered by the latter. It is also undisputed that Lazaro was unable to deliver all the goods ordered and paid for by Chua and that Lazaro issued the aforementioned Prudential Bank Check No. 599175 in the amount of Seventy Thousand (₱70,000.00) Pesos. The check was however dishonored for being drawn against a closed account. It is contended by petitioner Marlyn Lazaro that she executed a Deed of Sale dated 29 November 1989 wherein she conveyed to complainant Rudy Chua her 1980 Toyota Corolla Liftback to settle her obligation and that since her obligation to Chua has already been extinguished, there can be no violation of Batas Pambansa Blg. 22, private complainant not having been prejudiced or damaged by reason of the issuance of her dishonored check.[3]

Petitioner's argument is without merit. In *Que vs. People*,[4] this Court stated that the clear intention of the framers of Batas Pambansa Bilang 22 is to make the mere act of issuing a worthless check *malum prohibitum*. In prosecutions for violation of BP 22 therefore, prejudice or damage is not a pre-requisite for conviction. In the more recent case of *People vs. Nitafan*,[5] this Court ruled that the agreement surrounding the issuance of the checks need not be first looked into, since the law has clearly provided that the mere issuance of any kind of check, regardless of the intent of the parties; *i.e.*, whether the check is intended merely to serve as a guarantee or deposit, but which check is subsequently dishonored, makes the person who issued the check liable. The intent of the law is to curb the proliferation of worthless checks and to protect the stability and integrity of checks as a means of payment of obligations.

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[3] Petitioner's Memorandum, p. 13.

[4] G.R. Nos. 75217-18, 21 September 1987, 154 SCRA 161.

[5] G.R. No. 75954, 22 October 1992, 215 SCRA 79.

That the obligation of Marlyn Lazaro to complainant Chua has been extinguished by the conveyance by the former of her car to Chua does not also justify the cancellation of the indemnity awarded. It should be noted that BP 22 provides that a fine of not less than but not more than double the amount of the dishonored check may be imposed by the court.[6] In the case of *Esler vs. Ledesma*,[7] this Court stated that a fine is a pecuniary punishment imposed by a lawful tribunal upon a person convicted of a crime. Clearly, the fine provided for in BP 22 was intended as an additional penalty for the act of issuing a worthless check. This is the only logical conclusion since the law does not require that there be damage or prejudice to the individual complainant by reason of the issuance of the worthless check.

WHEREFORE, the judgment appealed from is hereby *AFFIRMED in toto,* with costs against the petitioner.

SO ORDERED.

Narvasa, C.J. (Chairman), Regalado, Nocon, and *Puno, JJ.*, concur.

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[6] Section 1, BP 22.

[7] G.R. No. L-28638, 21 September 1928, 52 Phil. 114.

EN BANC

[G.R. No. 109455. November 11, 1993]

RAUL A. GALAROSA, in his capacity as the incumbent President and Representative of the Association of *Barangay* Captains of the Municipality of Sorsogon, Sorsogon, *petitioner, vs.* **HON. EUDARLIO B. VALENCIA, in his capacity as the Presiding Judge of the Regional Trial Court of Sorsogon, Branch 52; *SANGGUNIANG BAYAN* OF SORSOGON; and RODOLFO LASAY;** *respondents.*

SYLLABUS

1. REMEDIAL LAW; CIVIL PROCEDURE; PARTIES; A TAXPAYER HAS LEGAL STANDING TO FILE AN ACTION FOUNDED ON WHAT HE BELIEVED TO BE AN ILLEGAL DISBURSEMENT OF PUBLIC FUNDS. — We do rule, however, that as a taxpayer he has a sufficient legal standing, because the injunction he prayed for is founded on what he believed to be an illegal disbursement of public funds of his municipal government. In this jurisdiction, the strict rule relative to the determination of real parties in interest has been sufficiently relaxed, to allow a taxpayer to bring an action to restrain the unlawful disbursement of public funds. We also hold that the requisites for an action for declaratory relief were present, namely: (a) that there is a justiciable controversy, (b) that the controversy is between persons whose interests are adverse, (c) that the party seeking; the relief has a legal interest in the controversy, and (d) that the issue invoked is ripe for judicial determination. The controversy is whether GALAROSA can continue to serve as a member of the SB after 30 June 1992. LASAY, as a taxpayer, has the *locus standi* to have it resolved because a decision against GALAROSA would mean that he is not entitled to receive his salary and other benefits as a member of the SB and any such payment to him beyond 30 June 1992 would be illegal.

2. ID.; ID.; ID.; A PERSON WHOSE OFFICE IS CHALLENGED IS AN INDISPENSABLE PARTY IN AN ACTION FOR DECLARATORY RELIEF AND INJUNCTION. — The form

and nature of the action filled by LASAY required the inclusion of GALAROSA as an adverse party. It is his right to his office that is challenged and he is the person who would be directly affected by any decision therein. No *final* determination of an action can be had unless he is joined therein. He is, therefore, an indispensable party. Under Section 7, Rule 3 of the Revised Rules of Court, the joinder of indispensable parties is *compulsory*; consequently, no action can proceed unless they are joined. The absence of an indispensable party in a case renders ineffectual all the proceedings subsequent to the filing of the complaint including the judgment. LASAY should have been required to implead GALAROSA and should he fail to do so, the petition should be dismissed.

3. POLITICAL LAW; LOCAL GOVERNMENT CODE OF 1991 (R.A. NO. 7160); DOES NOT PROVIDE UPON ITS EFFECTIVITY THAT THE *KATIPUNAN NG MGA BARANGAY* UNDER B.P. BLG. 337 AUTOMATICALLY BECAME THE *LIGA NG MGA BARANGAY* UNDER THE LOCAL GOVERNMENT CODE.— The Local Government Code of 1991 does not explicitly provide that upon its effectivity the *katipunan ng mga barangay* under B.P. Blg. 337 automatically became the *liga ng mga barangay* under the Local Government Code and that the president of the ABC automatically became the president of the *liga* whose term as *ex officio* member of the first *sangguniang bayan* under the 1987 Constitution is coterminous with that of the other regular members of the SB or until 30 June 1992 pursuant to Section 494 of the Local Government Code in relation to Section 2, Article XVIII of the 1987 Constitution and Section 5 of R.A. No. 6636.

4. ID.; ID.; SECTIONS 491 AND 494 OF THE LOCAL GOVERNMENT CODE OF 1991 SHOULD BE APPLIED PROSPECTIVELY.— Absent such explicitness and considering (1) that the opening clause of Section 491 is expressed in the future tense such that the *liga* can only be deemed to exist upon the effectivity of the Local Government Code of 1991 and (2) that Section 494 speaks of "duly elected presidents of the *liga*" thereby clearly implying an election after the organization of the *liga*, the conclusion to be drawn is that the legislature never intended that Section 494 would apply to the incumbent presidents of the *katipunang bayan*. In short, there is no indication at all that Section 491 and Section 494

should be given retroactive effect to adversely affect the presidents of the ABC. They should thus be applied prospectively.

5. ID.; ID.; ID.; RATIONALE. — There is a substantive rationale for this. The Local Government Code significantly altered the previous law and rules relative to the membership of the presidents of the *katipunang bayan* or the ABC. In the first place, a prior appointment by the President as required under Section 110(3) of B.P. Blg. 337 or by him through the Secretary of Interior and Local Government pursuant to E.O. No. 342, is no longer necessary. It may be pointed out that B.P. Blg. 337 has been expressly repealed under paragraph (2), Section. 534 of the Local Government Code of 1991. Accordingly, E.O. No. 342 is likewise deemed repealed either as a consequence thereof or under paragraph (f) of the said section which repeals, *inter alia*, executive orders inconsistent with any provisions of the said Code. In the second place, Section 494 specifically provides that the term of office of the *liga* presidents shall in no case go "beyond the term of office of the *sanggunian* concerned." Consequently, the expiration of their terms of office as *ex officio* members of the *sanggunian* concerned coincides with the expiration of the term of office of the regular members thereof. The section, however, does not fix the specific duration of their term as *liga* president. This is left to the by-laws of the *liga* pursuant to Article 211(g) of the Rules and Regulations Implementing the Local Government Code (IRR for brevity). It may be recalled that under R.A. No. 6679, the term of office of the *punong barangay* elected in the 28 March 1989 election for *barangay* officials was five years commencing on 1 May 1989 and ending on 31 May 1994. It also provides that the next regular election of *barangay* officials shall be on the second Monday of May 1994 and on the same day every five years thereafter and that their term of office shall begin on the first day of June following their election and until their successors shall have been elected and qualified. On the other hand, Section 43(c) of the Local Government Code of 1991 fixes the term of elective *barangay*, officials at three years which, insofar as those first elected under it are concerned, shall begin "after the regular election x x x on the second Monday of May 1994."

6. ID.; ID.; PRESIDENTS OF THE *KATIPUNANG BAYAN* COULD REMAIN AS SUCH AFTER JUNE 30, 1992 BUT NOT AS MEMBERS OF *SANGGUNIANG BAYAN*

BECAUSE THEIR TERM OF OFFICE HAS EXPIRED. — Notwithstanding the prospective character of Section 494 of the Local Government Code of 1991, the fact remains that the presidents of the *katipunang bayan* or ABC who were appointed as members of the *sangguniang bayan* by the President through the Secretary of Local Government by virtue of E.O. No. 342 were appointed to the *sangguniang bayan* whose regular members were elected in the 18 January 1988 local elections and whose term expired on 30 June 1992. It is to presumed that they could not have been appointed for a term beyond that of the *sangguniang bayan*. This is evident from both Section 110(3) of the B.P. Blg. 337 and Circular No. 89-09 of the Department of Local Government which respectively provide that the term of office of the ABC presidents therein determined is "without prejudice to their term of office as member of the *sanggunian* to which they may be accordingly appointed" and "without prejudice however, to the terms on [sic] their appointments as member of the *sanggunian*, to which they may be correspondingly appointed." Accordingly, while ABC presidents could remain as such after 30 June 1992 because their term of office as ABC presidents have not yet ended, their term of office as members of the *saagguniang bayan* had expired.

7. ID.; ID.; ID.; WHILE THE TERM OF OFFICE OF ABC PRESIDENTS AS MEMBERS OF THE *SANGGUNIANG BAYAN* EXPIRED, THE INCUMBENT MAY CONTINUE TO HOLD OVER UNTIL SOMEONE ELSE IS ELECTED AND QUALIFIED TO ASSUME THE OFFICE. — There is, however, no law which prohibits them from holding over as members of the *sangguniang bayan*. On the contrary, the aforementioned IRR, prepared and issued by the Oversight Committed upon specific mandate of Section 533 of the Local Government Code, expressly recognizes and grants that hold-over authority to ABC presidents. The application of the hold-over doctrine in both the aforementioned provisions of the IRR and the issuances of the DILG should be upheld. The rule is settled that unless "holding over be expressly or impliedly prohibited, the incumbent may continue to hold over until some one else is elected and qualified to assume the office." This rule is demanded by the "most obvious requirements of public policy, for without it there must frequently be cases where, from a failure to elect or a refusal or neglect to qualify, the office would be vacant and the public service entirely suspended."

8. ID.; ID.; ID.; ID.; PURPOSE OF THE HOLD-OVER DOCTRINE.— The purpose is to prevent a hiatus in the government pending the time when the successor maybe chosen and inducted into office.24 Section 494 of the Local Government Code could not have been intended to allow a gap in the representation of the barangays, through the presidents of the ABC, in the *sanggunian*. Since the term of office of the *punong barangays* elected in the 28 March 1989 election and the term office of the presidents of the ABC have not yet expired and taking into account the special role conferred upon and the broader powers and functions invested in the *barangays* by the Code as a basic political unit, as a primary planning and implementing unit of government policies in the community, and as a forum wherein the collective views of the people may be expressed and considered and where disputes may be amicably settled, it would be in harmony with sound logic to infer that the Code never intended to deprive the *barangays* of their representation in the *sangguniang bayan* during the interregnum when the *liga* has yet to be formally organized with the election of its officers.

APPEARANCES OF COUNSEL

Villanueva, Bernardo & Gabionza for petitioner.
Elizalde D. Diaz for private respondent.

D E C I S I O N

DAVIDE, JR., *J.*:

At the hub of the present controversy is Section 494 of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, which provides as follows:

"SECTION 494. *Ex Officio Membership in Sanggunians.* — The duly elected presidents of the *liga* [*ng mga barangay*] at the municipal, city and provincial levels, including the component cities and municipalities of Metropolitan Manila, shall serve as *ex-officio* members of the *sangguniang bayan*, *sangguniang panglungsod*, and *sangguniang panlalawigan*, respectively. They shall serve as such only during their term of office as presidents of the *liga* chapters,

which in no case shall be beyond the term of office of the *sanggunian* concerned."

Petitioner Raul A. Galarosa (hereinafter GALAROSA) is the incumbent president of the *katipunang bayan* or Association of Barangay Councils (ABC)[1] of the municipality of Sorsogon, province of Sorsogon, and was appointed as a member of the *Sangguniang Bayan* (SB) of Sorsogon pursuant to Executive Order No. 342 in relation to Section 146 of *Batas Pambansa* Blg. 337, the quondam local government code. The salient issue in this case is whether or not GALAROSA can continue to serve as a member of the SB beyond 30 June 1992, the date when the term of office of the elective members of the SB of Sorsogon expired. The respondent Judge ruled that GALAROSA could not; GALAROSA thinks otherwise and asks us to set aside the decision of the court *a quo*.

In August 1992, private respondent Rodolfo Lasay (hereinafter LASAY), the incumbent *barangay* captain of *barangay* Gimaloto of the municipality of Sorsogon and an aspirant for the position of president of the ABC of the said municipality, filed with the court *a quo* against the public respondent SB of Sorsogon a petition for declaratory relief and injunction with a prayer for the issuance of a temporary restraining order. LASAY sought the determination by the court of the "appropriate, proper interpretation of the Provision of Sec. 494 of Republic Act No. 7160" and of "whether or not the President of the Association of *Barangay* Captains can continue holding office despite the termination of the Terms of Office of the *Sangguniang Bayan* of Sorsogon on June 30, 1992."[2] He posited the theory that the term of office of GALAROSA as an *ex officio* member of the SB of Sorsogon is coterminous with that of the said SB which

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[1] The appropriate name under Section 108 of B.P. Blg. 337, the old Local Government Code, is *katipunang bayan*. Circular No. 89-09 of the Department of Local Government, dated 7 April 1989, used the name Association of *Barangay* Councils or ABC for short. Some quarters also refer to it as Association of *Barangay* Captains, probably because the councils are represented by *barangay* captains.

[2] Annex "B" of Petition.

expired on 30 June 1992; hence, there was a need for the new election of an ABC representative. He further alleged that during its session, the SB of Sorsogon accepted and recognized the participation of GALAROSA over his (LASAY's) protest allegedly on the basis of the memorandum of the Department of Interior and Local Government (DILG) allowing the ABC presidents elected before 30 June 1992 to continue in office until the election of new ones. LASAY then prayed for the issuance of a temporary restraining order enjoining the SB of Sorsogon from recognizing GALAROSA as an *ex officio* member thereof and from allowing him to participate in its deliberations, for the holding in abeyance of GALAROSA's salaries, and, after hearing, for a judgment "embodying the literal interpretation of Sec. 494 of the New Local Government Code to the effect that the term of office of the *ex officio* membership to the *Sangguniang Bayan* of the President of [the] ABC should in no case be beyond the term of office of said *Sangguniang Bayan*." The case was docketed as Civil Case No. 5755.

In its Answer,[3] the SB of Sorsogon, represented by the Provincial Prosecutor, asked for the dismissal of the petition because (a) LASAY "has no legal right to file the" petition or the petition "is based on pure speculative rights," and (b) the petition is premature since the resolution of the issues raised may still be the subject of rules and regulations to implement Section 494 of the Code.

On 9 September 1992, the trial court, per respondent Judge Eudarlio B. Valencia, issued a temporary restraining order directing the SB of Sorsogon "to desist from recognizing the participation of the old *Ex Officio* membership of the President of the Association of *Barangay* Captains and to hold in abeyance the taking and/or payment of salaries from the Municipal Government of Sorsogon relative thereto."[4] It set the hearing on the application for a writ of preliminary injunction on 22 September 1992. On the latter date, the court heard LASAY and the SB of Sorsogon. It then issued an order granting the

[3] Annex "C" of Petition.

[4] Annex "E" of Petition.

parties thirty days within which to file their memoranda in support of their respective positions, after which both the incident on the preliminary injunction and the merits of the case shall be deemed submitted for decision.[5]

On 22 October 1992, the respondent Judge issued an order granting the application for the issuance of a writ of preliminary injunction upon the filing of a bond of ₱40,000.00.[6]

On 26 January 1993, GALAROSA filed with the court a quo an Appearance with Motion to Annul Injunction Order.[7] He prayed therein that the 22 October 1992 Order be annulled, that the SB of Sorsogon be directed to recognize his participation as an *ex oficio* member thereof, that he be allowed to enjoy all the benefits and emoluments of the office, and that his appearance be noted.

On 26 February 1993, the respondent Judge issued an order noting the above pleading of GALAROSA and directing LASAY to file his "comment and/or opposition thereto" within five days from receipt of a copy of the said order, after which "the incident shall be deemed submitted for resolution."[8]

The trial court never resolved that "incident."

On 24 March 1993, the respondent Judge handed down a decision[9] in favor of LASAY, the adjudicatory portion of which reads as follows:

"WHEREFORE, in the light of all the foregoing considerations, judgment is hereby rendered:

(1) Declaring the incumbent President of the Association of Barangay Captains of Sorsogon as without any further right or legal basis to continue in office as *ex-oficio*

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[5] Annex "F" of Petition.

[6] Annex "G" of Petition. The writ was never issued as LASAY failed to put up the required bond.

[7] Annex "I" of Petition.

[8] Annex "J" of Petition.

[9] Annex "A" of Petition.

member of the present *Sangguniang Bayan* of Sorsogon pursuant to and conformably with Section 494 of Republic Act No. 7160; and

(2) Ordering the respondent *Sangguniang Bayan* of Sorsogon to cease and desist from recognizing the participation of the old *ex-officio* membership of the President of the Association of *Barangay* Captains of the town of Sorsogon."

In holding for LASAY, the respondent Judge rejected the claims of the SB of Sorsogon that (1) pursuant to DILG Memorandum Circular No. 92-38 dated 29 June 1992, Section 494 of the Local Government Code was reconciled with Article 210(d)(3), Rule XXIX of the Rules and Regulations Implementing the said Code which provides that incumbent ABC presidents shall continue to serve as *ex officio* members of their respective *sanggunians* unless sooner removed for cause or the new officers shall have been elected and qualified; (2) LASAY is not the proper party in interest and even if he is, he did not exhaust all available administrative remedies; and (3) what is involved is a political question which is beyond the province of the trial court. As to the first, the respondent Judge ruled that Article 210 of the Rules and Regulations does not expressly provide that the term of office of the ABC presidents as *ex officio* members of the SB shall go beyond the term of the SB concerned; since the term of the *sanggunian* concerned expired on 30 June 1992, it stands to follow that the *ex officio* membership of the *liga* president in the said *sanggunian*, by express mandate of law, likewise ended on the said date. As to the exhaustion of administrative remedies, the respondent Judge ruled that it is not applicable since the issue involved is "purely a legal one." He rejected the "political question" issue by stating that the interpretation of laws, rules, and regulations is a judicial function and prerogative. Furthermore, he invoked Section 1, Article VIII of the 1987 Constitution on the scope of judicial review. The respondent Judge did not squarely tackle the issue regarding the *locus standi* of LASAY, although he described LASAY as "the incumbent *Barangay* Captain of Gimaloto . . . a declared aspirant for President of the [ABC] . . . as well as being a

taxpayer claiming direct interest to complain, protest and seek the proper relief."

Unable to accept the decision, GALAROSA filed this petition which we have decided to treat as one for *certiorari* under Rule 65. He submits therein that:

"THE RESPONDENT JUDGE ERRED WHEN HE RULED THAT THE PETITIONER, DESPITE HIS INCUMBENCY AS THE REPRESENTATIVE OF THE ASSOCIATION OF *BARANGAY* COUNCILS OF THE MUNICIPALITY OF SORSOGON, HAS NO LONGER ANY LEGAL BASIS OR RIGHT TO HIS *EX-OFFICIO* MEMBERSHIP IN THE *SANGGUNIANG BAYAN* OF THE MUNICIPALITY OF SORSOGON."

We required the respondents to comment on the petition, and on 3 June 1993 we issued a temporary restraining order directing the respondent Judge to cease and desist from implementing and effecting the challenged decision.

In his comment, LASAY states that GALAROSA, not being a party to the case before the trial court, has no right to file the instant petition. LASAY argues that although GALAROSA had filed a motion for intervention, that pleading was not acted upon by the trial court. As to the merits of the petition, he asks that we sustain the challenged decision because it is in accord with existing jurisprudence and the principles of statutory construction; he also avers that Memorandum Circular No. 92-38 of the DILG, which is relied upon by GALAROSA, violates and contravenes the clear mandate of Section 494 of the Code which provides that in no case shall the membership of the *ex officio* members of the SB extend beyond the term of the SB concerned, which ended on 30 June 1992. GALAROSA filed a Reply to this Comment to which LASAY filed a Rejoinder. Not to be outdone, the former filed a Sur-rejoinder.

On 14 July 1993, the Office of the Solicitor General filed its comment. While not explicitly saying so, it asks us to grant the petition and to set aside the challenged decision because the respondent Judge should have dismissed the action on the following grounds: (a) LASAY failed to present a justiciable

controversy since he is not an ABC president but a mere aspirant thereto, or, elsewise stated, his right to an *ex officio* membership in the SB is purely anticipatory; (b) not being an ABC president, LASAY is not a proper party to assail the *ex officio* membership of GALAROSA; and (c) the latter, who was to be directly affected by the petition of LASAY, was not named a party-respondent; in view of this "non-joinder of proper part[y]," respondent Judge should have dismissed the petition outright pursuant to Section 5, Rule 64 of the Revised Rules of Court.

We resolved to give due course to the petition and required the parties to submit their respective memoranda, which they subsequently complied with.

Before proceeding to the main issue, we will address some collateral issues which the parties have raised, to wit: (a) the legal personality of LASAY to file the petition for declaratory relief and injunction with the trial court, (b) the absence of a justiciable controversy, (c) the non-joinder of an indispensable party in the said petition, and (d) the precipitateness of the trial court's decision.

It must be stressed that the petition filed by LASAY with the trial court is one for declaratory relief and injunction and not solely for the former. The latter can be either prohibitory or mandatory in character. LASAY sought to enjoin the SB of Sorsogon from recognizing GALAROSA as an *ex officio* member of the SB and from allowing him to participate in its deliberations, and to direct it to hold in abeyance the payment of GALAROSA's salaries. LASAY brought the action in his capacity as a *barangay* captain who is seeking the presidency of the ABC of Sorsogon and in his capacity as a taxpayer. This Court agrees with GALAROSA and the Office of the Solicitor General that with respect to the first, LASAY does not have the legal standing to institute the action for he is a mere aspirant to the presidency of the ABC and his right thereto is a mere expectancy. We do rule, however, that as a taxpayer he has a sufficient legal standing, because the injunction he prayed for is founded on what he believed to be an illegal disbursement of public funds of his municipal government. In this jurisdiction, the strict rule relative

to the determination of real parties in interest has been sufficiently relaxed to allow a taxpayer to bring an action to restrain the unlawful disbursement of public funds.[10]

We also hold that the requisites for an action for declaratory relief were present, namely: (a) that there is a justiciable controversy, (b) that the controversy is between persons whose interests are adverse, (c) that the party seeking the relief has a legal interest in the controversy, and (d) that the issue invoked is ripe for judicial determination.[11] The controversy is whether GALAROSA can continue to serve as a member of the SB after 30 June 1992. LASAY, as a taxpayer, has the *locus standi* to have it resolved because a decision against GALAROSA would mean that he is not entitled to receive his salary and other benefits as a member of the SB and any such payment to him beyond 30 June 1992 would be illegal.

Nonetheless, the form and nature of the action filed by LASAY required the inclusion of GALAROSA as an adverse party. It is his right to his office that is challenged and he is the person who would be directly affected by any decision therein. No final determination of an action can be had unless he is joined therein. He is, therefore, an indispensable party. Under Section 7, Rule 3 of the Revised Rules of Court, the joinder of indispensable parties is *compulsory*; consequently, no action can proceed unless they are joined.[12] The absence of an indispensable party in a case renders ineffectual all the proceedings subsequent to the filing of the complaint including the judgment.[13] LASAY should have been required to implead GALAROSA and should he fail

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[10] *Pascual vs. Secretary of Public Works*, 110 Phil. 331 [1960]; *Gonzales vs. Hechanova*, 9 SCRA 230 [1963]; *Gonzales vs. COMELEC*, 27 SCRA 835 [1969]; *City Council of Cebu City vs. Cuizon*, 47 SCRA 325 [1972].

[11] *International Hardwood and Veneer Company of the Philippines vs. University of the Philippines*, 200 SCRA 554 [1991].

[12] REGALADO, F.D., *Remedial Law Compendium*, Vol. 1, 5th Revised ed., 56.

[13] *Espiritu vs. Court of Appeals*, 58 SCRA 195 [1974].

to do so, the petition should be dismissed.[14] GALAROSA in fact sought to intervene in the case by filing on 26 January 1993 an "Appearance with Motion to Annul the Injunction Order." Unfortunately, after it was noted and LASAY was directed to file his "comment and/or opposition thereto" after which the incident would be submitted for resolution, the respondent Judge, for reasons known only to him, never did resolve it. Then, with undue and precipitate haste, he rendered the challenged decision on 24 March 1993. That decision must be set aside for having been rendered with grave abuse of discretion amounting to lack of jurisdiction since an indispensable party, GALAROSA, was not effectively impleaded and recognized as a party in the case and given the opportunity to file a responsive pleading.

A remand of this case to the trial court for further proceedings consistent with the above disquisition would be the natural course of action to follow. However, considering that the principal issue posed is purely legal and the pleadings of the parties have exhaustively discussed the main issue and all collateral matters, the controversy could be forthwith resolved on the basis thereof. The remand of the case to the trial court would only delay the final disposition of the case and would not serve the public interest, especially here where our decision would affect all ABC presidents throughout the country. We have consistently ruled that the remand of a case to a lower court for the reception of evidence is not necessary if this Court can already resolve the dispute on the basis of the records before it.[15]

We shall then take up the core issue.

Section 494 of the Local Government Code of 1991 provides for the *ex officio* membership in the respective *sanggunians* of the duly elected presidents of the *liga* at the municipal, city and provincial levels, including the component cities and

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[14] *Cortez vs. Avila,* 101 Phil. 205 [1957]; *National Development Co. vs. Court of Appeals*, 211 SCRA 422 [1992].

[15] *Dimayuga vs. Philippine Commercial & Industrial Bank*, 200 SCRA 143 [1991]; *Board of Liquidators vs. Zulueta,* 115 SCRA 548 [1982]; *Quisumbing vs. Court of Appeals*, 122 SCRA 703 [1983].

municipalities of Metropolitan Manila. The *liga* referred to therein is the *liga ng mga barangay*. Section 491 of the Code provides for its creation and purpose:

"SECTION 491. *Purpose of organization*.— There shall be an organization of all *barangays* to be known as the *Liga ng mga Barangay* for the primary purpose of determining the representation of the *liga* in the *sanggunians* and for ventilating, articulating and crystallizing issues affecting *barangay* government administration and securing, through proper and legal means, solutions thereto."

Every *barangay* is represented in the *liga ng mga barangay* by the *punong barangay*, or in his absence or incapacity, by a *sanggunian* member duly elected for the purpose among its members.[16] The principal aim of the *liga ng mga barangay* is to promote the development of *barangays* and secure the general welfare of their inhabitants.[17]

The forerunner of the *liga ng mga barangay* is the *katipunan ng mga barangay* under Section 108 of B.P. Blg. 337, which was known as the *katipunang bayan* in municipalities, *katipunang panglungsod* in cities, *katipunang panlalawigan* in provinces, and *katipunan ng mga barangay* on the national level. Each *barangay* therein was represented by the *punong barangay*. The *katipunang bayan* was also referred to as the Association of *Barangay* Councils or ABC for short. Pursuant to the first paragraph of Section 146 of B.P. Blg. 337, the president of the said organization was among the members of the *sangguniang bayan* the legislative body of the municipality subject, however, to appointment by the President of the Philippines. Under Section 110(3) thereof, the term of office of all officers of the *katipunang bayan*, including its president, was to be governed by "the by-laws of the organization, without prejudice, however, to their term of office as member of the *sanggunian* to which they may be correspondingly appointed." Section 25 of the By-Laws of

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[16] Section 492, Local Government Code of 1991.

[17] PIMENTEL, JR., A.Q., *The Local Government Code of 1991, the Key to National Development*, 1993 ed., 552.

the *Katipunan ng mga Barangay*[18] provides that "the term of office of all officers of the *katipunan* at all levels shall be from the date of their elections until the next *katipunan* elections following general *barangay* elections, subject to the limitations of Section 4 and the succeeding sections hereof."[19]

On 7 March 1988, then President Corazon C. Aquino issued Memorandum Circular No. 51 providing for policy guidelines on the representation of certain sectors, including the president of the *katipunang bayan*, in the legislative bodies of local governments. Then on 28 November 1988 she issued E.O. No. 342 delegating to the Secretary of Local Government the power to appoint certain local offices under certain sections, including Section 146(1) of B.P. Blg. 337. Thereafter, appointments of the presidents of the *katipunang bayan* as members of the *sangguniang bayan* were made by the Secretary of Local Government.

Immediately prior to the passage of the Local Government Code of 1991, the *katipunang bayan* or ABC in a municipality was composed of the *barangay* captains who were elected in the *barangay* elections of 28 March 1989 held pursuant to R.A. No. 6679. In the case at bar, it is presumed that GALAROSA was an elected *punong barangay* in the municipality of Sorsogon and was later elected president of the ABC of Sorsogon.

On 7 April 1989, the Department of Local Government issued Circular No. 89-09 providing for the reorganization of the *katipunan ng mga barangays* in all levels and prescribing the guidelines for the election of their officers. Guideline 2.2 thereof on terms of office reads:

"The terms of office of all officers of the *katipunan* at all levels shall be from the date of their election until their successors shall have been duly elected and qualified, without prejudice, however,

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[18] Ratified on 20 March 1985 during the 5th National ABC Convention.

[19] Section 4 refers to representation in the *katipunang bayan, katipunan panglungsod, katipunan panlalawigan, katipunan Pampook* and the *Pambansang Katipunan ng mga Barangay*. The succeeding sections refer to removal and suspension, and resignation.

to the terms of their appointments as member of the *sanggunian*, to which they may be correspondingly appointed."

Accordingly, the president of the *katipunang bayan* became, after an appointment extended by the President through the Secretary of the Department of Local Government, a member of the first *sangguniang bayan* organized under the 1987 Constitution following the local elections held on 18 January 1988. That GALAROSA was extended such an appointment is not disputed.

The Local Government Code of 1991 does not explicitly provide that upon its effectivity the *katipunan ng mga barangay* under B.P. Blg. 337 automatically became the *liga ng mga barangay* under the Local Government Code and that the president of the ABC automatically became the president of the *liga* whose term as *ex officio* member of the first *sangguniang bayan* under the 1987 Constitution is coterminous with that of the other regular members of the SB or until 30 June 1992 pursuant to Section 494 of the Local Government Code in relation to Section 2, Article XVIII of the 1987 Constitution[20] and Section 5 of R.A. No. 6636.[21] Absent such explicitness and considering (1) that the opening clause of Section 491 is expressed in the future tense such that the *liga* can only be deemed to exist upon the effectivity of the Local Government Code of 1991 and (2) that Section 494 speaks of "duly elected presidents of the *liga*" thereby clearly implying an election after the organization of the *liga*, the conclusion to be drawn is that the legislature never intended that Section 494 would apply to the incumbent presidents of the *katipunang bayan*.

In short, there is no indication at all that Section 491 and Section 494 should be given retroactive effect to adversely affect

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[20] Said Section 2 reads in part: "The Senators, Members of the House of Representatives, and the local officials first elected under this Constitution shall serve until noon of June 30, 1992."

[21] Said Section 5 provides in part: "Local officials duly elected shall assume office at noon on the second day of February 1988 and shall serve until noon of June 30, 1992."

the presidents of the ABC. They should thus be applied prospectively. There is a substantive rationale for this. The Local Government Code significantly altered the previous law and rules relative to the membership of the presidents of the *katipunang bayan* or the ABC. In the first place, a prior appointment by the President, as required under Section 110(3) of B.P. Blg. 337 or by him through the Secretary of Interior and Local Government pursuant to E.O. No. 342, is no longer necessary. It may be pointed out that B.P. Blg. 337 has been expressly repealed under paragraph (a), Section 534 of the Local Government Code of 1991. Accordingly, E.O. No. 342 is likewise deemed repealed either as a consequence thereof or under paragraph (f) of the said section which repeals, *inter alia*, executive orders inconsistent with any provisions of the said Code. In the second place, Section 494 specifically provides that the term of office of the *liga* presidents shall in no case go "beyond the term of office of the *sanggunian* concerned." Consequently, the expiration of their terms of office as *ex officio* members of the *sanggunian* concerned coincides with the expiration of the term of office of the regular members thereof. The section, however, does not fix the specific duration of their term as *liga* president. This is left to the by-laws of the *liga* pursuant to Article 211(g) of the Rules and Regulations Implementing the Local Government Code (IRR for brevity). It may be recalled that under R.A. No. 6679, the term of office of the *punong barangay* elected in the 28 March 1989 election for *barangay officials* was five years commencing on 1 May 1989 and ending on 31 May 1994. It also provides that the next regular election of *barangay* officials shall be on the second Monday of May 1994 and on the same day every five years thereafter and that their term of office shall begin on the first day of June following their election and until their successors shall have been elected and qualified. On the other hand, Section 43(c) of the Local Government Code of 1991 fixes the term of elective *barangay* officials at three years which, insofar as those first elected under it are concerned, shall begin "after the regular election x x x on the second Monday of May 1994."

Nonetheless, notwithstanding the prospective character of Section 494 of the Local Government Code of 1991, the fact remains that the presidents of the *katipunang bayan* or ABC who were appointed as members of the *sangguniang bayan* by the President through the Secretary of Local Government by virtue of E.O. No. 342 were appointed to the *sangguniang bayan* whose regular members were elected in the 18 January 1988 local elections and whose term expired on 30 June 1992. It is to be presumed that they could not have been appointed for a term beyond that of the *sangguniang bayan*. This is evident from both Section 110(3) of B.P. Blg. 337 and Circular No. 89-09 of the Department of Local Government which respectively provide that the term of office of the ABC presidents therein determined is "without prejudice to their term of office as member of the *sanggunian* to which they may be accordingly appointed" and "without prejudice however, to the terms on [sic] their appointments as member of the *sanggunian*, to which they may be correspondingly appointed." Accordingly, while ABC presidents could remain as such after 30 June 1992 because their term of office as ABC presidents have not yet ended, their term of office as members of the *sangguniang bayan* had expired.

There is, however, no law which prohibits them from holding over as members of the *sangguniang bayan*. On the contrary, the aforementioned IRR, prepared and issued by the Oversight Committee upon specific mandate of Section 533 of the Local Government Code, expressly recognizes and grants that hold-over authority to ABC presidents. Pertinent portions of paragraphs (d) and (f), Article 210 of the IRR read as follows:

"ART. 210. *Liga ng mga barangay.*

x x x x x x x x x

(d) *Ex officio* membership in the *sanggunian*

x x x x x x x x x

(3) The incumbent presidents of the municipal, city, and provincial chapters of the *liga* shall continue to serve as *ex officio* members of the *sanggunian* concerned until

the expiration of their term of office, unless sooner revoked for cause.

x x x x x x x x x

(f) *Organizational structure* —

(1) x x x Pending election of the presidents of the municipal, city, provincial, and metropolitan chapters of the *liga*, the incumbent presidents of the association of *barangay* councils in the municipality, city, province, and Metropolitan Manila shall continue to act as presidents of the corresponding *liga* chapters under this Rule."

This was further elaborated in an unnumbered Circular of the DILG dated 15 June 1992 on the subject "Clarifying the Term of Office of *Liga* Chapter Presidents (ABC) as Members of the *Sanggunian*" which reads:

"In order to clarify issues arising from various interpretations of pertinent provisions of the Local Government Code of 1991 and the Implementing Rules and Regulations relative to the term of office of the *Liga* chapter presidents as members of the *sanggunian*, the following guidelines are hereby issued.

1. The incumbent presidents of the ABC at the municipal, city, province and Metropolitan Manila shall continued [sic] to act as presidents of the corresponding *Liga* chapters.

2. To ensure continued representation of the *barangay* in the *sanggunian*, they shall continue to serve as *ex-officio* members of the *sanggunian* concerned, unless sooner removed for cause, pending the election of the first set of officials of the national *Liga* and local chapters.

3. The election of the first set of officials of the national *Liga* and local chapters shall be within six (6) months (not to go beyond March 9, 1993) from ratification by the National *Liga* and its constitution and by-laws.

4. The ratification of the *Liga* Constitution and by-laws shall be within six (6) months (not to go beyond September 9, 1992) from the promulgation of the Implementing Rules

and Regulation (IRR) of the Local Government Code on March 9, 1992."

And on 29 June 1992, the DILG issued Memorandum Circular No. 92-38 which reads as follows:

"In view of the numerous issues and concerns reaching this Department requesting for a clarificatory ruling regarding the term of office of the incumbent ABC Presidents as *ex-officio* members of the respective *sanggunian* pending the reorganization and election of the new liga chapter, the following guidelines are hereby promulgated for the guidance and reference of all concerned:

Section 494, Local Government Code of 1991 (RA 7160)

The duly elected presidents of the *liga* at the municipal, city and provincial levels, including the component cities and municipalities of Metropolitan Manila, shall serve as *ex-officio* members of the *sangguniang bayan*, *sangguniang panglungsod*, [and] *sangguniang panlalawigan*, respectively. They shall serve as such only during their term of office as presidents of the *liga* chapters which in no case shall be beyond the term of office of the *sanggunian* concerned.

Article 210 (d)(3), Rule XXIX of the IRR

The incumbent presidents of the municipal, city and provincial chapters of the *Liga* shall continue to serve as *ex officio* members of the sanggunian concerned until the expiration of their term of office, unless sooner removed for cause.

The aforequoted provisions of the Code and its IRR clearly provide that upon the cessation from office of the elective *sanggunian* members, these *ex-officio* members shall likewise cease to hold office upon the election and qualification of their successors since they cannot serve beyond the end of the term of office of the elective members (See *Laspinas vs. Santos*, G.R. No. 83520, June 23, 1988; *Cadungon vs. Singuat-Guerra*, G.R. No. 85884, March 9, 1989).

Be that as it may, following the generally accepted principle that laws shall have prospective effect unless the contrary is expressly provided (Section 19, Chapter 5, Introductory Provisions, Administrative Code of 1987), the applicability of the aforequoted provisions does not contemplate of the incumbent sanggunian members, appointive or elective.

This principle is buttressed by Article 210 (f), Rule XXIX of the IRR which declares, in part, that 'pending election of the presidents of the municipal, city, provincial, and metropolitan chapters of the *liga*, the incumbent presidents of the association of *barangay* councils in the municipality, city, province, and Metropolitan Manila shall continue to act as presidents of the corresponding *liga* chapters under this Rule."

x x x x x x x x x

The application of the hold-over doctrine in both the aforementioned provisions of the IRR and the issuances of the DILG should be upheld. The rule is settled that unless "holding over be expressly or impliedly prohibited, the incumbent may continue to hold over until some one else is elected and qualified to assume the office."[22] This rule is demanded by the "most obvious requirements of public policy, for without it there must frequently be cases where, from a failure to elect or a refusal or neglect to qualify, the office would be vacant and the public service entirely suspended."[23] Otherwise stated, the purpose is to prevent a hiatus in the government pending the time when the successor may be chosen and inducted into office.[24] Section 494 of the Local Government Code could not have been intended to allow a gap in the representation of the *barangays*, through the presidents of the ABC, in the *sanggunian*. Since the term of office of the *punong barangays* elected in the 28 March 1989 election and the term of office of the presidents of the ABC have not yet expired and taking into account the special role conferred upon and the broader powers and functions invested in the *barangays* by the Code as a basic political unit, as a primary planning and implementing unit of government policies in the community, and as a forum wherein the collective views of the people may be expressed and considered and where disputes may be amicably settled,[25] it would be in harmony with sound

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[22] MECHEM, F.R., *A Treatise On the Law of Public Offices and Officers*, @ 397 (1890).

[23] *Id*.

[24] 63 AM. JUR. 2D *Public Officers and Employees* @ 160 (1972).

[25] Section 384, Local Government Code of 1991.

logic to infer that the Code never intended to deprive the *barangays* of their representation in the *sangguniang bayan* during the interregnum when the *liga* has yet to be formally organized with the election of its officers.

Besides, the promulgation of the IRR by the Oversight Committee and the pertinent issuances of the DILG are in the nature of executive construction and are thus entitled to great weight and respect by the Court,[26] especially that of the former since the composition of the Oversight Committee includes six Members of the Congress of the Philippines three Senators, one of whom was the Chairman of the Senate Committee on Local Government, and three Congressmen, one of whom was the Chairman of the House Committee on Local Government who are presumed to know the intent of the law.

We therefore hold that GALAROSA, as president of the ABC of Sorsogon, can legally and validly hold over as a member of the *sangguniang bayan* of Sorsogon, Sorsogon, until the election of the first set of officers of the *liga ng mga barangay*, unless he is sooner removed for cause.

WHEREFORE, *judgment* is hereby *rendered REVERSING* and *SETTING ASIDE* the *Decision of the respondent Judge* in *Civil Case No. 5575 of Branch 52 of the Regional Trial Court of Sorsogon, Sorsogon.*

Costs against private respondent Rodolfo Lasay.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Padilla, Bidin, Regalado, Romero, Nocon, Bellosillo, Melo, Quiason, Puno, and *Vitug, JJ.*, concur.

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[26] *Grapilon vs. Municipal Council of Carigara, Leyte*, 2 SCRA 103 [1961]; *Tan vs. Municipality of Pagbilao, Quezon*, 7 SCRA 887 [1963]; *University of the Philippines vs. Court of Appeals*, 37 SCRA 64 [1971]; *Cagayan Valley Enterprises, Inc. vs. Court of Appeals*, 179 SCRA 218 [1989].

THIRD DIVISION

[G.R. No. 110068. November 11, 1993]

PHILIPPINE DUPLICATORS, INC., *petitioner, vs.* **NATIONAL LABOR RELATIONS COMMISSION and PHILIPPINE DUPLICATORS EMPLOYEES UNION-TUPAS,** *respondents*.

SYLLABUS

1. LABOR AND SOCIAL LEGISLATION; LABOR STANDARDS; WAGES; DEFINED. — Article 97 (f) of the Labor Code defines the term "wage" (which is equivalent to "salary," as used in P.D. No. 851 and Memorandum Order No. 28) in the following terms: "(f) 'Wage' paid to any employee shall mean the remuneration or earnings, however designated, capable of being expressed in terms of money, whether fixed or ascertained on a time, task, piece, or commission basis, or other method of calculating the same, which is payable by an employer to an employee under a written or unwritten contract of employment for work done or to be done, or for services rendered or to be rendered x x x."

2. ID.; ID.; ID.; SALES COMMISSIONS, PART THEREOF. — In the instant case, there is no question that the sales commissions earned by salesmen who make or close a sale of duplicating machines distributed by petitioner corporation, constitute part of the compensation or remuneration paid to salesmen for serving as salesmen, and hence as part of the "wage" or "salary" of petitioner's salesmen. Indeed, it appears that petitioner pays its salesmen a small fixed or guaranteed wage; the greater part of the salesmen's wages or salaries being composed of the sales or incentive commissions earned on actual sales closed by them. No doubt this particular salary structure was intended for the benefit of petitioner corporation, on the apparent assumption that thereby its salesmen would be moved to greater enterprise and diligence and close more sales in the expectation of increasing their sales commissions. This, however, does not detract from the character of such commissions as part of the salary or wage paid to each of its salesmen for rendering services to petitioner corporation.

3. ID.; ID.; ID.; BASIC SALARY DIFFERENT FROM FIXED OR GUARANTEED WAGE. — The term "basic salary" used in P.D. No. 851 and Memorandum Order No. 28 is not to be confused with the term "fixed or guaranteed wage." The term "basic salary" is used to distinguish wage or salary from "fringe benefits" which are not integrated into "basic salary" for certain specific purposes. In *San Miguel Corporation v. Inciong*, the catch-all "allowances" and "monetary benefits" which are deemed not considered or integrated as part of "basic salary" was construed to refer to "any and all additions which may be in the form of allowances or 'fringe' benefits." These fringe benefits include payments for sick leave, vacation leave or maternity leave; premium pay for work performed on rest day and special holidays; premium pay for regular holidays and night differential pay; and cost of living allowances.

4. ID.; ID.; ID.; SALES COMMISSION; NOT IN THE NATURE OF AN ALLOWANCE OR ADDITIONAL FRINGE BENEFITS. — Sales commissions form part of the "wage" or "salary" of salesmen and are not in the nature of an "allowance" or "additional fringe" benefit. Once more, we note that in the instant case, sales commissions form the bulk of the salaries or wages of petitioner's salesmen.

5. ID.; ID.; SEPARATION PAY; EARNED SALES COMMISSION INCLUDED IN COMPUTATION THEREOF. — This Court has had prior occasion to consider the nature of commissions earned by salesmen. In *Songco v. National Labor Relations Commission*, the Court was called upon to determine whether earned sales commissions should be included in the monthly or fixed salaries of petitioners for purposes of computing their separation pay. The Court, in declaring that sales commissions must be included in the salary base of salesmen for purposes of computing separation pay, stressed that: "'Salary,' the etymology of which is the Latin word '*salarium*,' is often used interchangeably with 'wage,' the etymology of which is the Middle English word '*wagen*.' Both words generally refer to one and the same meaning, that is, a reward or recompense for services performed. Likewise, 'pay' is the synonym of 'wages' and 'salary.' Inasmuch as the words 'wages,' 'pay' and 'salary' have the same meaning, and commission is included in the definition of 'wage,' the logical conclusion, therefore, is, in

the computation of the separation pay of petitioners, their salary base should include also their earned sales commissions.

6. ID.; ID.; BASIC SALARY; SALES COMMISSION, NOT EXCLUDED FROM ITS DEFINITION. — Contrary to petitioner's contention, P.D. No. 851 in defining the term "basic salary" did not exclude from the ambit thereof sales commissions which are paid along with fixed or guaranteed wages. As pointed out above, what Section 2(b) of the Implementing Rules and Regulations Implementing P.D. No. 851 excluded from the scope of "basic salary" were "profit-sharing payments and all allowances and monetary benefits which are not considered or integrated as part of the regular or basic salary of the employees x x x," which properly refer to "fringe benefits."

7. STATUTORY CONSTRUCTION; CONTEMPORANEOUS CONSTRUCTION OF A STATUTE BY EXECUTIVE OFFICER, ENTITLED TO GREAT RESPECT; CASE AT BAR. — Both the opinion rendered by Director Augusto G. Sanchez and the Explanatory Bulletin No. 86-12 issued by Secretary August S. Sanchez, constitute contemporaneous administrative construction of the meaning of the term "basic salary," and the two (2) issuances construed the term "basic salary" as embracing both fixed or guaranteed wage and sales commissions. As long ago as 1903, this Court stressed that "the principle that the contemporaneous construction of a statute by the executive officers of the government, whose duty it is to execute it, is entitled to great respect, and should ordinarily control and construction of the statute by the courts, is so firmly embedded in our jurisprudence that no authorities need be cited to support it." It must be noted that the construction given by Director Sanchez and Secretary Sanchez was adopted and reiterated by Secretary Franklin M. Drilon in promulgating, on 16 November 1987, the "Revised Guidelines on the Implementation of the 13th Month Pay Law." Item No. 5 (a) of these Revised Guidelines, which petitioner corporation has curiously chosen to ignore, while citing Item No. 4 (a) of the same Guidelines, reads as follows: "5. 13th Month Pay for Certain Types of Employees. (a) Employees Paid by Results. Employees who are paid on piece work basis are by law entitled to the 13th month pay. Employees who are paid a fixed or guaranteed wage plus commission are also entitled to the mandated 13th month pay, based on their total earnings during

the calendar year, *i.e*., on both their fixed or guaranteed wage and commission x x x."

8. LABOR AND SOCIAL LEGISLATION; LABOR STANDARDS; 13TH MONTH PAY; SALES COMMISSION INCLUDED IN COMPUTATION THEREOF; EMPLOYER LIABLE FOR DEFICIENCY FOR NON-INCLUSION THEREOF. — The 13th month pay of employees paid a fixed or guaranteed wage plus sales commissions must be equivalent to one-twelfth (1/12) of the total earnings (fixed or guaranteed wage-*cum*-sales commissions) during the calendar year. Considering that petitioner has excluded from the computation of the 13th month pay the sales commissions earned by its individual salesmen, we believe and so hold that petitioner must be held liable to pay for the deficiency.

APPEARANCES OF COUNSEL

Benito P. Fabie for petitioner.
Benjamin C. Alar for private respondent.

D E C I S I O N

FELICIANO, *J.*:

The principal issue posed in the present controversy is: what is the appropriate mode of computation of the 13th month pay of employees who receive a fixed or guaranteed salary *plus* sales commissions?

Petitioner Philippine Duplicators, Inc. is a domestic corporation engaged in the distribution of foreign-made copying machines and related consumables. In petitioner's employ are salesmen who are paid a fixed or guaranteed salary plus commissions, which commissions are computed on the selling price of the duplicating machines sold by the respective salesmen.

P.D. No. 851, promulgated on 16 December 1975, prescribed payment of 13th month pay in the following terms:

"Sec. 1. All employers are hereby required to pay all their *employees receiving a basic salary of not more than ₱1,000.00 a*

month, regardless of the nature of the employment, a 13th month pay not later than December 24 of every year." (Italics supplied)

The Rules and Regulations Implementing P.D. No. 851, issued by the Secretary of Labor and Employment on 22 December 1975, defined the following basic terms:

> "(a) '13th month pay' shall mean *one-twelfth (1/12) of the basic salary of a employee within a calendar year;*
>
> (b) '*basic salary*' shall include *all remunerations or earnings paid by an employer to an employee for services rendered*, but may not include cost of living allowances granted pursuant to Presidential Decree No. 525 or Letter of Instructions No. 174, profit-sharing payments, and all allowances and monetary benefits which are not considered or integrated as part of the regular or basic salary of the employee at the time of the promulgation of the Decree on December 16, 1975." (Italics supplied)

On 13 August 1986, President Corazon C. Aquino, then exercising both executive and legislative authority, issued Memorandum Order No. 28 which provided as follows:

> "Sec. 1 of Presidential Decree No. 851 is hereby modified to the extent that all employers are hereby required to pay all rank-and-file employees a 13th month pay not later than December 24 of every year." (Italics supplied)

In connection with and in implementation of Memorandum Order No. 28, Minister Augusto S. Sanchez of the then Ministry of Labor and Employment issued MOLE Explanatory Bulletin No. 86-12 on 24 November 1986. Item No. 5 (a) of this issuance read:

> "Employees who are paid a fixed or guaranteed wage plus commission are also entitled to the mandated 13th month pay, based on their total earning[s] during the calendar year, *i.e.*, on both their fixed and guaranteed wage and commission."[1] (Italics supplied)

Private respondent union, for and on behalf of its member-salesmen, asked petitioner corporation for payment of 13th month

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[1] See Decision of the NLRC dated 17 November 1992; *Rollo*, p. 24.

pay computed on the basis of the salesmen's fixed or guaranteed wages *plus* commissions.

Petitioner corporation refused the union's request, but stated it would respect an opinion from the MOLE. On 17 November 1987, acting upon a request for opinion submitted by respondent union, Director Augusto G. Sanchez of the Bureau of Working Conditions, MOLE, rendered an opinion to respondent union declaring applicable the provisions of Explanatory Bulletin No. 86-12, Item No. 5 (a):

"x x x [S]ince the *salesmen* of Philippine Duplicators are r*eceiving a fixed basic wage plus commission on sales* and not purely on commission basis, they are entitled to receive 13th month pay provided that they worked at least one (1) month during the calendar year. May we add at this point that *in computing such 13th month pay, the total commissions of said salesmen for the calendar year shall be divided by twelve (12).*" (Italics supplied)

Notwithstanding Director Sanchez' opinion or ruling, petitioner refused to pay the claims of its salesmen for 13th month pay computed on the basis of both fixed wage plus sales commissions.

Respondent union thereupon instituted a complaint against petitioner corporation for payment of the demand of its salesmen-members for 13th month pay. The union averred that the salesmen received 13th month pay computed only on the basis of their fixed or guaranteed wage. Its basic contention was that pursuant to Memorandum Order No. 28, above quoted, in relation to the Explanatory Bulletin No. 86-12, also quoted above, the 13th month pay of salesmen receiving a fixed salary and commissions should be computed on the basis of their total earnings for the calendar year, *i.e.*, on both the fixed salary and sales commissions.

After submission of the parties' respective position papers, the Labor Arbiter rendered a decision dated 24 October 1989 directing petitioner corporation to pay 13th month pay to its salesmen computed in accordance with the requirements of Explanatory Bulletin No. 86-12.

Petitioner appealed to the National Labor Relations Commission ("NLRC"), formulating the basic issue in terms of "whether or

not an employer is liable to give his employee a separate 13th pay on commissions independently of, aside from and in addition to, 13th month pay on basic wage." Petitioner maintained that the commissions earned by its salesmen fell outside the scope of the term "basic salary" for purposes of computing the 13th month pay of employees. Expansion of the scope of the term "basic salary", for purposes of computing 13th month pay, is beyond the authority and prerogatives of the DOLE Secretary, petitioner argued, since such expansion required legislative authority.

On 17 November 1992, the NLRC affirmed the award of the Labor Arbiter, declaring that it (the NLRC) was not vested with authority to pass upon the validity of Explanatory Bulletin No. 86-12, which issuance by Secretary Augusto S. Sanchez remain operative as a source of rights until declared invalid by the proper authorities, *i.e.*, the Supreme Court. Petitioner moved for reconsideration of the decision, without success.

Hence, this recourse.

Petitioner reiterates its contention that Explanatory Bulletin No. 86-12 issued by Secretary Augusto S. Sanchez, as well as the opinion dated 17 November 1987 of Director Augusto G. Sanchez rendered upon request of respondent union, are void and without force and effect. Petitioner contends that Explanatory Bulletin No. 86-12 runs counter to Section 2 (b) of the Implementing Rules and Regulations Relating to P.D. No. 851, quoted earlier. Petitioner insists also that Explanatory Bulletin No. 86-12 was in any case rendered ineffective by Item No. 4 (a) of the "Revised Guidelines on the Implementation of the 13th Month Pay" issued by Secretary Franklin M. Drilon on 16 November 1987, which Item provides in part as follows:

"4. *Amount and payment of 13th Month Pay*

(a) *MINIMUM AMOUNT* — The *minimum 13th month pay required by law shall not be less than 1/12 of the total basic salary earned by an employee within a calendar year*. For the year 1987, the computation of the 13th month pay shall include the cost of living allowance (COLA) integrated into the basic salary of a covered employee pursuant to Executive Order 178.

x x x x x x x x x

The "*basic salary" of an employee for the purpose of computing the 13th month pay* shall include all remunerations or earning paid by this employer for services rendered but *does not include allowances and monetary benefits which are not considered or integrated as part of the regular or basic salary*, such as the cash equivalent of unused vacation and sick leave credits, overtime, premium, night differential and holiday pay, and cost of living allowances. However, these salary-related benefits should be included as part of the basic salary in the computation of the 13th month pay if by individual or collective agreement, company practice or policy, the same are treated as part of the basic salary of the employees." (Italics supplied)

Petitioner thus reads the above provisions as expressly excluding sales or incentive commissions from the coverage of "basic salary" for purposes of computing 13th month pay. Petitioner also denies that it had any company policy treating said commissions as part of its salemen's fixed or basic salary. Petitioner asserts that neither P.D. No. 851 nor the amendatory Memorandum Order No. 28 expressly or impliedly considered "commissions" as part of "basic salary" for purposes of computing the 13th month pay due to its salesmen. Accordingly, petitioner insists that Explanatory Bulletin No. 86-12 constituted an invalid expansion of the scope of P.D. No. 851, as well as Memorandum Order No. 28.

The petition must fail.

In the first place, Article 97 (f) of the Labor Code defines the term "wage" (which is equivalent to "salary," as used in P.D. No. 851 and Memorandum Order No. 28) in the following terms:

"(f) '*Wage*' paid to any employee *shall mean* the *remuneration or earnings, however, designated*, capable of being expressed in terms of money, whether fixed or ascertained on a time, task, piece, or *commission basis*, or other method of calculating the same, which is *payable* by an employer to an employee under a written or unwritten contract of employment *for work done or to be done, or for services rendered or to be rendered*, and includes the fair and reasonable value, as determined by the Secretary of Labor, of board, lodging,

or other facilities customarily furnished by the employer to the employee. 'Fair and reasonable value' shall not include any profit to the employer or to any person affiliated with the employer." (Italics supplied)

In the instant case, there is no question that the sales commissions earned by salesmen who make or close a sale of duplicating machines distributed by petitioner corporation, constitute part of the compensation or remuneration paid to salesmen for serving as salesmen, and hence as part of the "wage" or "salary" of petitioner's salesmen. Indeed, it appears that petitioner pays its salesmen a small fixed or guaranteed wage; the greater part of the salesmen's wages or salaries being composed of the sales or incentive commissions earned on actual sales closed by them. No doubt this particular salary structure was intended for the benefit of petitioner corporation, on the apparent assumption that thereby its salesmen would be moved to greater enterprise and diligence and close more sales in the expectation of increasing their sales commissions. This, however, does not detract from the character of such commissions as part of the salary or wage paid to each of its salesmen for rendering services to petitioner corporation.

The term "basic salary" used in P.D. No. 851 and Memorandum Order No. 28 is not to be confused with the term "fixed or guaranteed wage." The term "basic salary" is used to distinguish wage or salary from " fringe benefits" which are not integrated into "basic salary" for certain specific purposes. In *San Miguel Corporation v. Inciong*,[2] the catch-all phrase "allowances" and "monetary benefits" which are deemed not considered or integrated as part of "basic salary" was construed to refer to "any and all additions which may be in the form of allowances or 'fringe' benefits." These fringe benefits include payments for sick leave, vacation leave or maternity leave; premium pay for work performed on rest day and special holidays; premium pay for regular holidays and night differential pay; and cost of living allowances.[3] Sales commissions form part of

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[2] 103 SCRA 139 (1981).

[3] See Item No. 4 (a), Revised Guidelines on the Implementation of the 13th Month Pay Law.

the "wage" or "salary" of salesmen and are not in the nature of an "allowance" or "additional fringe" benefit. Once more, we note that in the instant case, sales commissions form the bulk of the salaries or wages of petitioner's salesmen.

This Court has had prior occasion to consider the nature of commissions earned by salesmen. In *Songco v. National Labor Relations Commission*,[4] the Court was called upon to determine whether earned sales commissions should be included in the monthly or fixed salaries of petitioners for purposes of computing their separation pay. The Court, in declaring that sales commissions must be included in the salary base of salesmen for purposes of computing separation pay, stressed that:

" '*Salary*,' the etymology of which is the Latin word '*salarium*,' *is often used interchangeably with* '*wage*,' the etymology of which is the Middle English word '*wagen*.' *Both words generally refer to one and the same meaning*, that is, *a reward or recompense for services performed*. Likewise, 'pay' is the synonym of 'wages' and 'salary' (Black's Law Dictionary, 5th Ed.). *Inasmuch as the words 'wages,' 'pay' and 'salary' have the same meaning, and commission is included in the definition of 'wage,' the logical conclusion, therefore, is, in the computation of the separation pay of petitioners, their salary base should include also their earned sales commissions.*

x x x x x x x x x

We agree with the Solicitor General that granting, *in gratia argumenti*, that the commissions were in the form of incentives or encouragement, so that the petitioners would be inspired to put a little more industry on the jobs particularly assigned to them, *still these commissions are direct remunerations for services rendered which contributed to the increase of income of Zuellig. Commission is the recompense, compensation or reward of* an agent, *salesman*, executor, trustees, receiver, factor, broker or bailee, when the same is calculated as a percentage on the amount of his transactions or on the profit to the principal (Black's Law Dictionary, 5th Ed., citing

[4] 183 SCRA 610 (1990).

Weiner v. Swales, 217 Md. 123, 141 A2d 749, 750). *The nature of the work of a salesman and the reason for such type of remuneration for services rendered demonstrate clearly that commissions are part of petitioners' wage or salary*. x x x."[5] (Italics supplied)

In the second place, contrary to petitioner's contention, P.D. No. 851 in defining the term "basic salary" did *not* exclude from the ambit thereof sales commissions which are paid along with fixed or guaranteed wages. As pointed out above, what Section 2(b) of the Implementing Rules and Regulations Implementing P.D. No. 851 excluded from the scope of "basic salary" were "profit-sharing payments and all allowances and monetary benefits which are not considered or integrated as part of the regular or basic salary of the employees . . .," which properly refer to "fringe benefits."

In the third place, both the opinion rendered by Director Augusto G. Sanchez and the Explanatory Bulletin No. 86-12 issued by Secretary August S. Sanchez, constitute contemporaneous administrative construction of the meaning of the term "basic salary," and the two (2) issuances construed the term "basic salary" as embracing both fixed or guaranteed wage and sales commissions. As long ago as 1903, this Court stressed that

"the principle that the contemporaneous construction of a statute by the executive officers of the government, whose duty it is to execute it, is entitled to great respect, and should ordinarily control and construction of the statute by the courts, is so firmly embedded in our jurisprudence that no authorities need be cited to support it."[6]

Finally, it must be noted that the construction given by Director Sanchez and Secretary Sanchez was adopted and reiterated by Secretary Franklin M. Drilon in promulgating, on 16 November 1987, the "Revised Guidelines on the Implementation of the 13th Month Pay Law." Item No. 5 (a) of these Revised Guidelines,

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[5] 183 SCRA at 617-618.

[6] *In Re Allen*, 2 Phil. 630, 640 (1903).

which petitioner corporation has curiously chosen to ignore, while citing Item No. 4 (a) of the same Guidelines, reads as follows:

"5. *13th Month Pay for Certain Types of Employees*

(a) *Employees Paid by Results.* — Employees who are paid on piece work basis are by law entitled to the 13th month pay.

Employees who are paid a fixed or guaranteed wage plus commission are also entitled to the *mandated 13th month pay, based on their total earnings during the calendar year, i.e., on both their fixed or guaranteed wage and commission.*

x x x x x x x x x"

(Italics supplied)

To recapitulate, the 13th month pay of employees paid a fixed or guaranteed wage *plus* sales commissions must be equivalent to one-twelfth (1/12) of the total earnings (fixed or guaranteed wage-*cum*-sales commissions) during the calendar year. Considering that petitioner has excluded from the computation of the 13th month pay the sales commissions earned by its individual salesmen, we believe and so hold that petitioner must be held liable to pay for the deficiency.

WHEREFORE, petitioner having failed to show any grave abuse of discretion on the part of the National Labor Relations Commission in rendering its Decision dated 17 November 1992, the Petition for *Certiorari* is hereby *DISMISSED* for lack of merit. Costs against petitioner.

SO ORDERED.

Bidin, Romero, Melo, and *Vitug, JJ.*, concur.

EN BANC

[A.M. No. P-92-1-029-RTC. November 16, 1993]

RE: REPORT OF JUDGE ENRIQUE T. JOCSON REGARDING DEFECTIVE PROPERTY BONDS: RAMIRO J. MENDOZA, Legal Researcher, Regional Trial Court, Branch 47, Bacolod City, *respondent*.

SYLLABUS

1. POLITICAL LAW; CONSTITUTIONAL LAW; SUPREME COURT; ADMINISTRATIVE SUPERVISION OVER LOWER COURT PERSONNEL; LEGAL RESEARCHER; COMPLAINT FOR FALSIFICATION OF PROPERTY BONDS OR FACILITATING APPROVAL OF BONDS KNOWING THAT DOCUMENTS ACCOMPANYING THEM WERE FALSIFIED, NOT SUBSTANTIATED IN CASE AT BAR; NEGLIGENCE ON THE PART OF RESPONDENT WHICH MADE POSSIBLE APPROVAL OF SPURIOUS BAIL BONDS, PENALIZED WITH TWO-MONTH SUSPENSION WITHOUT PAY. — We have scrutinized the records, and we fail to find any direct, much less substantial, evidence of participation of Mendoza in the falsification of the documents supporting the application for bail of the accused, or that he facilitated the approval of the bonds knowing that the documents accompanying them were falsified. Mere perceived inconsistencies in said respondent's testimony before the Investigating Judge, standing alone provide no basis for concluding that he was engaged in a conspiracy with Labansawan to defraud the government. And, indeed, we discern no inconsistencies or contradictions in his testimony, sufficient to support any reasonable inference of such criminal complicity. Graft Investigation Officer Alfonso S. Sarmiento of the Office of the Ombudsman, in his Resolution of 18 March 1992, duly approved by Deputy Ombudsman, for the Visayas Juan M. Hagad, in effect clears respondent Mendoza of criminal complicity in stating that "there is no fact showing that the private respondent Dominador Labansawan conspired or connived with public respondent Ramiro Mendoza x x x Consequently, the former is solely answerable for the offense

charged while the latter who acted in an improper and negligent manner which does not amount to bad faith or gross inexcusable negligence shall be subjected to administrative proceedings." We agree with and adopt that finding, on the basis of which, it was Dominador Labansawan alone who was recommended for criminal prosecution by the Ombudsman. This notwithstanding, respondent Ramiro should be held to account for the negligence that made possible the approval of the spurious bail bonds in question. We, therefore, find respondent Ramiro J. Mendoza guilty of negligence in the performance of his functions, considering, however, in mitigation his more than thirty (30) years of service in the judiciary, untainted until this administrative offense. Accordingly, said respondent is meted an administrative penalty of SUSPENSION for two (2) months without pay, with a stern warning that commission of the same or similar act or omission in the future will be dealt with more severely. This resolution is immediately executory.

2. JUDICIAL ETHICS; JUDGES; PRESIDING JUDGE, INVESTED WITH GREATER RESPONSIBILITY OF ENSURING THAT ADMINISTRATIVE DUTIES IN COURT AND OTHER JUDICIAL CONCERNS ARE PERFORMED PROPERLY. — In fairness to respondent, however, the blame should not be laid on him alone who is not even a lawyer, but only a Legal Researcher temporarily tasked, the record shows, to perform the duties of the Branch Clerk in the latter's absence. In the circumstances, the Presiding Judge was invested with greater responsibility of ensuring that administrative duties in the court and other judicial concerns were performed properly, efficiently and assiduously by whomever had been designated by him to temporarily fill in for the Branch Clerk. Thus, in approving the applications for bail and ordering the release of the accused on the basis of the falsified property bonds, the Presiding Judge was more than just equally negligent in discharging his functions. It was in fact his primary responsibility and not necessarily of his subordinate.

D E C I S I O N

NARVASA, *C.J.*:

This case stems from the approval by former Judge Enrique T. Jocson, Branch 47, Regional Trial Court, Bacolod City, of three (3) property bonds bearing forged certifications of the Register of Deeds, the Acting Treasurer, and the Deputy City Assessor of Bago City. The property bonds were submitted to Judge Jocson at his residence on 18 August 1991, a Sunday, by his Legal Researcher, respondent Ramiro J. Mendoza.

The bonds were posted in Crim. Cases Nos. 10648, 10649 and 10650, all of which were yet to be raffled on 20 August 1991. Criminal Case No. 10648 was raffled to Branch 47 presided over by Judge Jocson, and Crim. Cases Nos. 10649 and 10650, to Branches 45 and 41, respectively, presided by other judges.

When Atty. Corazon T. Romero, Clerk of Court of Branch 41, examined the records of Crim. Case No. 10650, she became suspicious of the genuineness of the certifications on the bail bond. Her suspicions were confirmed when one of supposed signatories, Atty. Rolando Q. Navales, Register of Deeds of Bago City, disclaimed his purported signature on the certification.

The matter was thereupon brought to the attention of Judge Jocson who forthwith issued an order in Crim. Case No. 10648, now raffled to him, directing the issuance of an *alias* warrant for the re-arrest of the accused Marcelo Buenafe. He also issued separate orders in Crim. Cases Nos. 10649 and 10650 recalling his orders of 18 August 1991 which directed the release of accused Wilfredo Casimiro and Pinky Pelagio.

These developments prompted Executive Judge Bernardo T. Ponferrada to refer the matter for investigation to the Philippine National Police (PNP), which after conducting an inquiry, concluded that Dominador Labansawan and respondent Ramiro Mendoza had committed falsification of public documents on four (4) counts in the property bond applications of the accused.

Criminal charges were consequently filed against Labansawan and Mendoza with the Office of the Ombudsman. In a Resolution dated 2 January 1992, Deputized Tanodbayan Prosecutor Anita Guanzon Chua found sufficient evidence to support the filing of charges against Labansawan on fifteen (15) counts of falsification of public documents but recommended dismissal of the charges against Mendoza, without prejudice to appropriate administrative action against him "for his improper and negligent behavior as government employee with public trust."[1]

On 9 September 1991, Judge Jocson informed the Court of the defective property bonds filed in various criminal cases and approved by the Regional Trial Court of Bacolod City.

In our Resolution of 2 June 1992, we ADMONISHED Judge Jocson for his carelessness in approving the forged property bonds, and we referred the matter to Executive Judge Ponferrada of the Regional Trial Court, Bacolod City for investigation, report and recommendation. However, upon motion filed by respondent Mendoza to inhibit Judge Ponferrada, the case was transferred to Vice-Executive Judge Bethel Katalbas-Moscardon.

In the ensuing investigation, respondent Mendoza explained that the bonds in question were brought in by a certain Engr. Dominador Labansawan. As they were already subscribed before Municipal Trial Court Judge Manuel Limsiaco, Jr., the appended documents appeared to be authentic, and considering that other property bonds of Labansawan had been previously approved by other courts, he (Mendoza) concluded that these bonds were in order. He further claimed that he was of the honest belief that he was helping the administration of justice when he had the property bonds approved for the accused who were merely invoking thereby their constitutional right to bail.

From the contents of the report, it appears that Judge Moscardon did not limit her investigation to the bail bonds approved by Judge Jocson on 18 August 1992 but went further into other bonds approved by him and presented by the same

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[1] Page 56, *Rollo*.

Engr. Dominador Labansawan. The testimony given before Judge Moscardon included that of Atty. Kenneth John Amamanglon, Branch Clerk of Court of Branch 47, Atty. Corazon P. Romero, Branch Clerk of Court of Branch 41, Atty. Connie F. Tan, Branch Clerk of Court of Branch 45, Police Inspector Victor B. Eduardo, Bacolod City, and Col. Nicolas Torres, Chief of Police, Bacolod City. Judge Jocson declined an invitation to testify.

Judge Moscardon found that the bail bonds submitted by respondent Mendoza for approval included or were based on forged and falsified documents. City Register of Deeds Rolando Q. Navales denied having signed the certifications supposedly issued by him. As regards the Assessor's certification purportedly issued by Deputy City Assessor Celestina Buyco, verification by Asst. Clerk of Court Ildefonso M. Villanueva, Jr., revealed that there was no person by such name employed in the Office of the City Assessor; that in fact, no position of Deputy City Assessor is listed in the plantilla of personnel for said office, and that the City Government of Bago City never employed one Ricardo Reyes, another signatory, as Acting Treasurer, the capacity in which he supposedly signed. The actual location and value of the properties were erroneously stated. The police report of 30 September 1991 imputed collusion between Engr. Labansawan and respondent Mendoza, narrating that it was Engr. Labansawan who reproduced copies of the documents and Mendoza who facilitated the posting of the bonds.

Mendoza pleaded lack of knowledge that the documents were falsified. But Judge Moscardon noted that he appeared evasive and inconsistent, if not defensive, during investigation, when interrogated. Judge Moscardon concludes in her report that fraud had been perpetrated through the connivance of Labansawan and said respondent, and recommends that proper administrative action be taken against Mendoza for conduct prejudicial to the best interest of the service.

We have scrutinized the records, and we fail to find any direct, much less substantial, evidence of participation of Mendoza in the falsification of the documents supporting the application for bail of the accused, or that he facilitated the approval of the

bonds knowing that the documents accompanying them were falsified.

Mere perceived inconsistencies in said respondent's testimony before the Investigating Judge, standing alone provide no basis for concluding that he was engaged in a conspiracy with Labansawan to defraud the government.[2] And, indeed, we discern no inconsistencies or contradictions in his testimony, sufficient to support any reasonable inference of such criminal complicity.

Reports have reached the Court as early as 1989, of the unusual incidence of fake bail bonds filed and approved in different branches of the Regional Trial Court of Bacolod City and Negros Occidental. This is admitted by Executive Judge Bernardo T. Ponferrada in his comment on Mendoza's Notice of Appeal of 18 August 1992, and in his Resolution of 12 August 1992 denying said respondent's motion for inhibition. He attributed these illegal activities to the workings of a syndicate, prompting him, as Executive Judge, to adopt stringent measures to prevent the widespread facilitation of spurious property bonds. As a result, several criminal cases for falsification of public document were filed against Engr. Dominador Labansawan with the Regional Trial Court of Bacolod City. That the respondent happened to be the one to receive and submit for approval three out of what could have been a much greater number of falsified bail bonds does not by itself prove that he was part of the criminal syndicate, and this particularly since it has never been made to appear that such act was wholly foreign to his usual duties.

Graft Investigation Officer Alfonso S. Sarmiento of the Office of the Ombudsman, in his Resolution of 18 March 1992, duly approved by Deputy Ombudsman for the Visayas Juan M. Hagad, in effect clears respondent Mendoza of criminal complicity in stating that "there is no fact showing that the private respondent Dominador Labansawan conspired or connived with public respondent Ramiro Mendoza x x x. Consequently, the former is solely answerable for the offense charged while the latter

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[2] *Angeles v. Bantug*, Adm. Matter No. P-89-295, 29 May 1992, 209 SCRA 413.

who acted in an improper and negligent manner which does not amount to bad faith or gross inexcusable negligence shall be subjected to administrative proceedings."[3]

We agree with and adopt that finding, on the basis of which, it was Dominador Labansawan alone who was recommended for criminal prosecution by the Ombudsman. This notwithstanding, respondent Ramiro should be held to account for the negligence that made possible the approval of the spurious bail bonds in question.

In the Manual for Clerks of Court,[4] it is provided that: "(t)o prevent the commission of frauds in connection with the posting of property bonds and to protect the interests of the government, utmost care should be exercised in the scrutiny of the qualifications of sureties in the approval of property bonds, and efforts exerted to determine whether or not the person executing the undertaking is the real owner of the property offered. To eliminate or minimize possible anomalies on the matter, it is suggested that the court, in doubtful cases, examine the sureties under oath concerning their sufficiency."

Respondent failed to observe this standard of "utmost care." His more than thirty (30) years of experience in the court, which includes a stint as Deputy Clerk of Court under then Judge Segundino Chua (now Associate Justice of the Court of Appeals), should have made him fully conversant with the duties of a clerk of court in the processing and approval of property bonds and equally scrupulous in their performance.

In fairness to respondent, however, the blame should not be laid on him alone who is not even a lawyer, but only a Legal Researcher temporarily tasked, the record shows, to perform the duties of the Branch Clerk in the latter's absence. In the circumstances, the Presiding Judge was invested with greater responsibility of ensuring that administrative duties in the court

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[3] Page 57, *Rollo*.

[4] Chap. VI, Sec. E. par. 4, subpar. (b-1) (July 1991), citing DOJ Circular No. 44, 30 July 1958.

and other judicial concerns were performed properly, efficiently and assiduously by whomever had been designated by him to temporarily fill in for the Branch Clerk. Thus, in approving the applications for bail and ordering the release of the accused on the basis of the falsified property bonds, the Presiding Judge was more than just equally negligent in discharging his functions. It was in fact his primary responsibility and not necessarily of his subordinate.

By the very nature of their duties and responsibilities, all those involved in the administration of justice must faithfully adhere to, hold inviolate, and invigorate the off-stated principle that a public office is a public trust; all public officers and employees must at all times be accountable to the people, and perform their duties responsibly with the care and diligence that the nature of those duties demands. The Court cannot condone or close its eyes to transgressions of duty on the part of judicial personnel which though unintended, could have been avoided with the exercise of requisite care.

We, therefore, find respondent Ramiro J. Mendoza guilty of negligence in the performance of his functions, considering, however, in mitigation his more than thirty (30) years of service in the judiciary, untainted until this administrative offense.[5]

ACCORDINGLY, said respondent is meted an administrative penalty of *SUSPENSION* for two (2) months without pay, with a stern warning that commission of the same or similar act or omission in the future will be dealt with more severely. This resolution is immediately executory.

Let copy of this resolution be entered in the personal record of respondent.

SO ORDERED.

Cruz, Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Melo, Quiason, Puno, and *Vitug, JJ.*, concur.

Bellosillo, J., on leave

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[5] *PNB v. Intermediate Appellate Court,* G.R. 70140, 187 SCRA 757.

EN BANC

[A.M. No. P-92-736. November 16, 1993]

VENUS TIDALGO FERRER, *complainant, vs.* **DEMETRIO G. GAPASIN, SR., Interpreter, RTC Branch 52, Tayug, Pangasinan,** *respondent.*

SYLLABUS

POLITICAL LAW; ADMINISTRATIVE LAW; COURT EMPLOYEES; THE ACT OF DEMANDING AND ACCEPTING MONEY FROM A PARTY TO EXPEDITE THE RESOLUTION OF THE CASE CONSTITUTES GROSS MISCONDUCT THAT WARRANT DISMISSAL FROM THE SERVICE; RELEVANT RULINGS, CITED. — After a careful and thorough review of the record, we sustain the findings and recommendation of Judge Cacho. The act of respondent in demanding and accepting money from the complainant to expedite the resolution of a case cannot be countenanced especially when it is committed by an employee of the court who ought be an example of integrity, uprightness and honesty. Moreover, this Court has emphasized time and time again that the conduct and behaviour of everyone connected with an office charged with the dispensation of justice, from the presiding judge to the sheriff and to the lowliest clerk should circumscribed with the heavy burden of responsibility. Their conduct, at all times must be characterized with propriety and decorum, but above all else, must be above and beyond suspicion. For every employee of the judiciary should be an example of integrity, uprightness and honesty. Respondent's misconduct, misfeasance or malfeasance in the performance of his official duties consisting of dishonesty and conduct prejudicial to the best interest of the service, are grounds for dismissal under the Civil Service Law.

D E C I S I O N

***PER CURIAM*:**

This is an administrative complaint filed by Venus Tidalgo Ferrer against respondent Demetrio G. Gapasin, Sr. in his capacity

as Interpreter of the Regional Trial Court of Tayug, Pangasinan, Branch 52 for GROSS MISCONDUCT.

It appears on record that on December 5, 1991, the Municipal Circuit Trial Court of Natividad-San Quintin, Pangasinan rendered a decision against complainant Venus Tidalgo Ferrer and her husband in Civil Case No. 153 for Forcible Entry. Not satisfied with said decision, complainant appealed to the Regional Trial Court of Tayug, Branch 52.

Complainant met respondent during the scheduled hearing of the appealed case on March 12, 1992, where the latter offered his assistance to expedite the case in her favor for P25,000.00. Complainant agreed and gave to respondent at his residence, the following amounts:

March 18, 1992 – ₱5,000.00

March 23, 1992 – 10,000.00

April 13, 1992 – 10,000.00

TOTAL = ₱25,000.00

On July 8, 1992, the Regional Trial Court of Tayug affirmed *in toto* the decision of the Municipal Circuit trial court which became final and executory on August 1, 1992.

When complainant confronted respondent why she lost the case, the latter told her that "he is powerless to decide the case"[1] and promised to return her money. Despite several verbal demands, respondent failed to return the ₱25,000.00 causing the complainant to file a sworn affidavit on August 5, 1992, alleging gross misconduct on the part of the respondent.

Romulo Lui, who drove for complainant when the latter went to the house of respondent, corroborated complainant's testimony and testified that:

"x x x (in the morning of March 18, 1992) x x x Mrs. Ferrer (complainant) rode in his tricycle and went to the house of Benny

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[1] T.S.N., April 20, 1993, at p. 12.

Gapasin (respondent) in Luna Street, Tayug, Pangasinan. Mrs. Ferrer went upstairs to the house of Benny Gapasin and after twenty (20) minutes, they went home. On the way [home], Mrs. Ferrer allegedly told witness: 'I delivered the money he was asking' (pp. 30-33, Vol. II, TSN, Apr. 22, 1993). In the afternoon of March 23, 1992, together with Mrs. Ferrer and her brother, Edwin Tidalgo, he drove the jeepney of Mrs. Ferrer and again went to the house of Benny Gapasin. Mrs. Ferrer and her brother Edwin Tidalgo went upstairs. Mrs. Ferrer was holding an envelop[e] containing ₱10,000.00 as he was told. The first time they went to the house of Gapasin, Mrs. Ferrer told him she gave ₱5,000.00 to Gapasin in an envelope also. At around 6:00 o'clock p.m., on April 13, 1992, together with Mrs. Ferrer and her brother Edwin, he went again to the house of respondent Gapasin driving the same jeep. Mrs. Ferrer and Edwin told me (Romulo Lui) they delivered ₱10,000.00 to Benny Gapasin."[2]

Thereafter, Judge Pedro C. Cacho, Executive Judge and Investigator of the Regional Trial Court of Tayug, Pangasinan as well as the presiding judge of Branch 52 issued a Memorandum[3] to respondent requiring him to explain in writing why no disciplinary action shall be taken against him on the basis of the sworn complaint filed by Mrs. Venus Ferrer.

In compliance with said directive, respondent submitted an undated and unsubscribed statement [4] claiming that the money allegedly given to him by the complainant was actually a loan he secured from her to pay for the hospitalization of his grandmother as evidenced by a Real Estate Mortgage[5] dated July 25, 1992, executed by him as mortgagor in favor of complainant. Respondent further maintained that it was only on February 11, 1992 that he learned that complainant had a case pending in Branch 52, where he is employed as court interpreter, and he told complainant that he would see what he can do to expedite the case. He never promised complainant,

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[2] Report of the Executive Judge and Investigator Pedro Cacho, p. 7.

[3] *Rollo,* p. 21.

[4] Exhibit "C", *Rollo,* pp. 22-23.

[5] *Rollo,* p. 24.

however, that he can secure a favorable decision for her as he is not in a position to comply with such promise.

On August 11, 1992, complainant in her Reply-Affidavit[6] denied all the allegations of the respondent and disclaimed any knowledge about the Real Estate Mortgage allegedly executed in her favor.

Subsequently, Judge Cacho reported the matter to the Court Administrator and respondent was placed under preventive suspension on December 8, 1992 pursuant to the Supreme Court's Resolution dated October 12, 1992.

On February 15, 1993, the Supreme Court issued a Resolution assigning this case to Judge Cacho for investigation, report and recommendation within ninety (90) days from notice which was received by the latter on March 22, 1993.

At the scheduled investigation or on April 20, 1993, respondent and his PAO counsel failed to appear despite due notice. Instead, respondent's counsel filed an Omnibus Motion[7] indorsing his case to another counsel, namely, Atty. Eugenio Tolentino, Jr. as the incumbent counsel is going on sick leave. Thereafter, complainant testified and presented her documentary evidences.

On that same date, respondent filed with the Supreme Court a Motion to Inhibit Judge Cacho from proceeding with the administrative case and filed with Judge Cacho an undated Manifestation informing the Judge of his non-attendance in the administrative proceedings until the Supreme Court has ruled on his Motion. Nonetheless, Judge Cacho proceeded with the investigation of the administrative case in compliance with the Supreme Court's Resolution.[8]

On June 10, 1993, Judge Cacho submitted his report recommending the outright dismissal of respondent from the

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[6] *Id.*, at p. 28.

[7] *Id.*, at p. 81.

[8] February 15, 1993 Resolution of the Supreme Court, see p. 4.

government service, the pertinent portion of which reads, as follows:

"The testimonial and documentary evidences adduced *ex-parte* by Complainant as hereinbefore set forth establishes by preponderance of evidence that Respondent did in truth and in fact received (sic) the sum of Twenty Five Thousand Pesos (₱25,000.00) from Complainant with the promise that Respondent will expedite the decision of the Court on the appealed case and see to it that said decision will be in favor of Complainant. Being the incumbent Interpreter of the Court as he had informed Complainant, Respondent was able to convince Complainant to give money to him believing that Respondent will fulfill his promise. In other words, Complainant completely believed Respondent when he said: 'Nobody can get near Judge Cacho except me.' (p. 24, Vol. II, TSN, Apr. 20, 1993)

"There is certainly no basis in fact and in law when Respondent claimed in his unsubscribed statement (p. 22/Exh. 'C', Rec.) that he executed a *Real Estate Mortgage* in favor of Complainant to cover the loan of ₱25,000.00 the latter gave him (p. 24, Rec.). From the notarial report of Notary Public Florencio M. Suyat, Jr., submitted to the Clerk of Court of RTC-Tayug, Pangasinan, it appears that Doc. No. 431, Page No. 87, Book II, Series of 1992, is a *Deed of Chattel Mortgage* (*Annex 'F'*), not a Real Estate Mortgage as claimed by Respondent. An ocular examination of the original carbon of the 'Real Estate Mortgage' which Respondent attached to his statement shows that the title 'Deed of Chattel Mortgage' was erased and in lieu thereof, the title 'Real Estate Mortgage' was typed. It should be noted that there are still traces of erasures on the latter document. Moreover, a Real Estate Mortgage to be valid and binding among the parties must be signed by both parties with the marital consent of their spouses, if applicable. The 'Real Estate Mortgage' alleged to have been executed by Respondent in favor of Complainant was signed only by him. The mortgage then partakes the nature of a unilateral contract which is contrary to law, when in fact it should be bilateral in order to be a valid and legal mortgage.

"The testimony of Complainant to the effect that the two (2) daughters of Respondent, his wife, and Rev. Father Mendoza (Parish Priest, Roman Catholic Church, Tayug, Pangasinan) approached her and asked her to withdraw the case because they will return the money (p. 25, Vol II, TSN, April 20, 1993) bolsters the conclusion that Respondent did the act complained of.

"Therefore, by his own act of demanding and receiving the sum of Twenty Five Thousand Pesos (₱25,000.00) from Complainant, a party litigant in a case pending in the sala of the court where he is the Interpreter, under the facts and circumstances as aforestated, Respondent Demetrio G. Gapasin, Sr., committed 'gross misconduct', which is a ground for disciplinary action under Presidential Decree No. 807, otherwise known as the 'Civil Service Decree of the Philippines.'"[9]

After a careful and thorough review of the record, we sustain the findings and recommendation of Judge Cacho. The act of respondent in demanding and accepting money from the complainant to expedite the resolution of a case cannot be countenanced, especially when it is committed by an employee of the court who ought be an example of integrity, uprightness and honesty.[10]

Moreover, this Court has emphasized time and time again that the conduct and behavior of every one connected with an office charged with the dispensation of justice, from the presiding judge to the sheriff and to the lowliest clerk should be circumscribed with the heavy burden of responsibility. Their conduct, at all times, must be characterized with propriety and decorum, but above all else, must be above and beyond suspicion. For every employee of the judiciary should be an example of integrity, uprightness and honesty.[11] Respondent's misconduct, misfeasance or malfeasance in the performance of his official duties consisting of dishonesty and conduct prejudicial to the best interest of the service, are grounds for dismissal under the Civil Service Law.

WHEREFORE, respondent *DEMETRIO G. GAPASIN* is found guilty of gross misconduct and is hereby *DISMISSED* from the service with prejudice to reinstatement or reemployment

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[9] Report of the Executive Judge and Investigator Pedro Cacho, pp. 9-10.

[10] *Unknown Municipal Councilor of Sto. Domingo, Nueva Ecija vs. Alomia, Jr.*, 212 SCRA 330 [1992].

[11] *Valenton vs. Melgar*, Administrative Matter No. P-92-698, March 3, 1993.

in any agency of the government, including government-owned or controlled corporations. All retirement benefits and other privileges to which he may be entitled are forfeited except for his leave credits to which he may be entitled.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Padilla, Bidin, Regalado, Davide, Jr., Romero, Nocon, Bellosillo, Melo, Quiason, Puno, and *Vitug, JJ.,* concur.

Griño-Aquino, J., retired on October 22, 1993.

FIRST DIVISION

[A.M. No. MTJ-93-781. November 16, 1993]

EDUARDO R. SANTOS, *petitioner, vs.* **JUDGE ORLANDO C. PAGUIO, MTC, Meycauayan, Bulacan,** *respondent.*

SYLLABUS

1. JUDICIAL ETHICS; JUDGES; RENDERING DECISIONS FLAWED WITH GRAMMATICAL AND SYNTACTIC ERRORS CONSTITUTES INEFFICIENCY AND NEGLECT OF DUTY; PENALTY. — After a careful examination of the respondent's "Decision" of 28 June 1991, we do find its body to be flawed with grammatical and syntactic errors. Its "dispositive portion" disposes of, resolves or decrees nothing. It cannot even be called a dispositive or decretal portion at all. It is obviously a prayer lifted from a pleading of the plaintiff, such as a Memorandum or the *ex-parte* manifestation and motion praying that judgment be rendered filed after the defendants failed to file their position paper, although not from the complaint as suspected by the Court Administrator. How it gained entry into what should have been the *fallo* is an

arcanum. Any attempt to unravel the mystery may only complicate the matter against the respondent who is only charged herein with gross ignorance or incompetence. There can, however, be no dispute that behind the errors of grammar and syntax and the fatally infirmed "dispositive portion" is the inefficiency, neglect of duty or carelessness on the part of the respondent betraying absence of due care, diligence, conscientiousness and thoroughness qualities which Judges must, among others, possess. Respondent could have easily avoided the errors and the defects had he taken a little more time and effort to at least read its original copy before he finally affixed his signature thereon. While this Court cannot expect every Judge to be an expert on the English language or an authority in grammar, he must, however, do everything he can, through constant study, extraordinary diligence, and passion for excellence, to produce a decision which fosters respect for and encourages obedience to it and enhances the prestige of the court. As we see it then, the respondent failed to comply with two standards of conduct prescribed by the Canons of Judicial Ethics, namely: that "[h]e should exhibit an industry and application commensurate with the duties imposed upon him" and that he should be conscientious, studious and thorough. We thus conclude that the respondent Judge is guilty of, in the very least, inefficiency, neglect of duty and the violation of Canons 5 and 31 of the Canons of Judicial Ethics. He could not, however, be liable for ignorance of law and jurisprudence or for incompetence when he handed down a new decision on 25 January 1993. The 28 June 1991 Decision was "incomplete" since, for all legal intents and purposes, it had no *fallo* and could not attain finality, hence the respondent had the power to amend it to make it conformable to law and justice. It is not therefore correct to say, as the complainant suggested, that the order of the RTC of Bulacan in Sp. Civil Action No. 03-M-93 stating that the respondent's Decision of 28 June 1991 is "void upon its face" forever bars the respondent from rendering a new or amended decision in the ejectment case. Wherefore, for inefficiency and neglect of duty amounting to a violation of Canons 5 and 31 of the Canons of Judicial Ethics, respondent Judge ORLANDO C. PAGUIO is hereby sentenced to pay a FINE of Five Thousand Pesos (₱5,000.00). He is further warned that a repetition of the same or similar infractions shall be dealt with more severely.

2. ID.; ID.; INEFFICIENCY AND CARELESSNESS MANIFEST IN GRANTING MOTION FOR EXECUTION KNOWING THAT THERE WAS NOTHING TO EXECUTE. — Moreover, the respondent did not only issue a manifestly infirmed "decision," he even granted the motion for its execution and issued the corresponding writ with full knowledge that there was nothing to execute. He could not have feigned ignorance of such nothingness for it is embarrassingly self-evident. He nevertheless ordered its execution, exhibiting once more his inefficiency, carelessness, negligence, or even his incompetence.

3. LEGAL ETHICS; ATTORNEYS; WITH CORRESPONDING OBLIGATION OF CALLING THE COURT'S ATTENTION TO THE GLARING DEFECT OF THE "DISPOSITIVE PORTION" OF DECISION. — We must add, however, that it is not the respondent alone who must be blamed for such unmitigated *faux pas*. The counsel for the parties in the case knew or ought to have known the fatal defect of the dispositive portion and the obvious inefficacy of any writ for its execution, yet, the plaintiff's counsel still filed a motion for execution, while the counsel for the defendants the complainant herein merely filed a motion for reconsideration based solely on the ground that the plaintiff did not file her pre-trial brief and that there was no valid pre-trial order. Obviously, the complainant initially believed in the *completeness* of the decision. As a matter of fact, when he assailed the 25 January 1993 Decision, he alleged that what was amended was a " final decision," a position totally inconsistent with his claim that the latter was void as declared by the RTC of Bulacan. As officers of the court who owe to it candor, fairness and good faith, both attorneys should have called the court's attention to the glaring defect of the "dispositive portion" of the 28 June 1991 Decision.

4. JUDICIAL ETHICS; JUDGES; VISIBLE REPRESENTATIONS OF THE LAW AND OF JUSTICE. — We take this opportunity to stress once again that the administration of justice is a sacred task and all those involved in it must faithfully adhere to, hold inviolate, and invigorate the principle solemnly enshrined in the Constitution that a public office is a public trust and all public officers and employees must at all times be accountable to the people, serve them with utmost

responsibility, integrity, loyalty and efficiency, and act with patriotism and justice and lead modest lives. Every Judge should never forget that he is the visible representation of the law and, more importantly, of justice. Therefore, he must constantly be the embodiment of competence, diligence, conscientiousness, thoroughness, efficiency, and integrity so as to preserve, promote and enhance the people's confidence in the Judiciary.

5. LEGAL ETHICS; ATTORNEYS; ATTEMPTS TO MISLEAD THE COURT THROUGH SUPPRESSION OF IMPORTANT FACTS; SANCTION. — A few words must also be made of record regarding the complainant. We note that in his complaint in this case he alleged under oath that after the defendants filed their answer, the respondent "without any hearing, or at least this counsel was never notified of any such hearing," rendered the 28 June 1991 Decision. This is of course inaccurate, if not outright false. What the complainant conveniently left out in his complaint was that, as disclosed in the Comment which he did not refute, after the defendants' answer with counterclaim was admitted by the court, the case was set for preliminary conference and thereafter the parties were required to submit their position papers and the affidavits of their witnesses and other evidence. We find that the case was properly placed and considered under the Rule on Summary Procedure and, accordingly, the court could decide the case on the basis of the submitted position papers, affidavits and other pieces of evidence. Complainant further suppressed the fact that he entered his appearance as counsel for the defendants only after the court had conducted the preliminary conference and issued the order for the submission of the foregoing pleadings and documents. He was not, therefore, entitled to any notice before then. The failure to divulge the foregoing facts may have been intended by the complainant to give his complaint a strong *prima facie* case against the respondent. While he is entitled to adopt certain strategies in his pleadings, he forgot that he owes to this Court absolute candor, fairness and good faith. This Court can neither condone nor tolerate attempts to mislead it through suppression of important facts which would have a bearing on its initial action. Complainant should, therefore, be admonished to faithfully adhere to the Code of Professional Responsibility.

APPEARANCES OF COUNSEL

Eduardo R. Santos for and in his own behalf.

D E C I S I O N

DAVIDE, JR., *J.*:

The complainant herein is the lawyer for the defendants in Civil Case No. 90-1706, an action for unlawful detainer commenced on 5 May 1990 with the Municipal Trial Court of Meycauayan, Bulacan, while the respondent is the presiding Judge of the said court. In his verified complaint filed through the Office of the Court Administrator on 18 March 1993, the complainant charges the respondent with gross ignorance of the law and gross incompetence. The complainant supports his charge with the allegation that after the answer in the said case was filed and "without notice and hearing," the latter rendered a decision on 28 June 1991,[1] the decretal portion of which reads as follows:

"WHEREFORE, in view of all the foregoing considerations, it is hereby respectfully prayed that judgment be rendered in accordance with plaintiff's prayer in their Complaint in the above-entitled case.

SO ORDERED."

He further alleges that Branch 18 of the Regional Trial Court (RTC) of Bulacan, in its Order of 19 January 1993 in Sp. Civil Action No. 03-M-93[2] a petition for *certiorari* filed by the defendants in Civil Case No. 90-1706 had already opined that the said decision is void upon its face because it:

"x x x would be impossible to be implemented for the simple or obvious reason that the same cannot be considered a decision at all. Instead of deciding or ordering something to be done, it merely prays that judgment be rendered."

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[1] Annex "A" of Complaint; *Rollo*, 17-25.

[2] Annex "D" of Petition; *Rollo*, 26-27. Per Judge Demetrio B. Macapagal, Sr.

but despite this, the respondent still "changed and amended [his] final decision [of 28 June 1991] in order to nullify the order of a superior Court, the RTC of Bulacan" via a new decision in Civil Case No. 90-1706[3] promulgated on 25 January 1993. The dispositive portion of this new decision reads as follows:

"WHEREFORE, in view of all the foregoing, judgment is hereby rendered in favor of the plaintiff by:

1. Ordering defendants and persons claiming any rights under them to vacate the premises occupied by them, more particularly the portion on which are erected their respective dwelling structure/unit, at 117 Bayugo, Meycauayan, Bulacan (or lot of plaintiff aforementioned) and to remove said dwelling structure/units from said subject premises of plaintiff;

2. Ordering defendants individually to pay the sum of ₱350.00 Philippine Currency, per month by way of monthly rental commencing from May 16, 1990, and thereafter until they shall have vacated the premises of the plaintiff;

3. Ordering the defendants to pay jointly and severally the sum of ₱2,000.00, Philippine currency, on account of plaintiff's attorney's fees (retainer) and ₱500.00, Philippine Currency, for every hearing/trial attended by said attorney before this Honorable Court; and

4. Ordering the defendants to pay costs.

SO ORDERED."

According to the complainant, the dispositive portion of the 28 June 1991 Decision exhibits the respondent's gross ignorance in "decision preparation," and that the respondent's "haste to amend the same to favor plaintiff was both appalling (sic) and downright improper." The complainant then prays that the respondent "be removed from office if only to save the integrity of the judiciary."

In his Comment filed on 2 July 1993,[4] the respondent denies the imputations and alleges, *inter alia*, that: (1) the complainant

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[3] Annex "C" of Comment; *Id.*, 50-57.

[4] *Rollo*, 29-40.

was not the original counsel for the defendants but one Atty. Adriano Javier, Sr. who represented the latter until the time that the parties were directed to file their respective position papers, specifically until 29 November 1991 when Atty. Javier filed a motion to withdraw his appearance and the complainant filed his notice of appearance as counsel for the defendants; (2) the Decision of 28 June 1991 was rendered only after a preliminary conference was held where the parties with their respective counsels discussed the possibility of an amicable settlement and after the defendants failed to comply with the 16 November 1990 Order for the parties to submit in writing their "respective position statements setting forth the law and the facts relied upon by them and to submit the affidavits of their witnesses and other evidences in support thereof within fifteen (15) days from receipt" thereof, prompting the plaintiff to file on 5 April 1991 an *ex-parte* motion praying that judgment be rendered in the case; (3) the defendants did not appeal from the 28 June 1991 Decision, hence the plaintiff filed a motion for execution on 2 September 1991, which the defendants did not oppose; instead they filed a motion for reconsideration and to declare the decision null and void on the ground that the plaintiff did not file her pre-trial brief and there was no valid pre-trial order; (4) on 4 December 1991, the plaintiff's motion for execution was granted and a writ of execution was issued, a copy of which was sent to the Clerk of Court of the RTC of Malolos for service; (5) on 5 January 1991,[5] he received an order from Branch 18 of the RTC of Bulacan directing him to desist from implementing the writ of execution; (6) the presiding judge of said Branch 18, Judge Demetrio B. Macapagal, Sr., issued on 19 January 1993 its order disposing of Sp. Civil Action No. 03-M-93; (7) thereafter, he (respondent) handed down a new decision in Civil Case No. 90-1706 on 25 January 1993 that contained "completely the missing sentences needed in the dispositive portion" of its earlier decision; (8) instead of appealing therefrom, the defendants filed on 4 February 1993 a motion to set aside the decision, which the court set for its consideration

[5] Should be 1993 (as appearing in Annex "A" of Comment; *Rollo*, 45).

and to which the plaintiff filed its opposition on 8 February 1993 together with a motion for immediate execution; (9) on 22 March 1993, the complainant filed a motion to inhibit the respondent but the former did not appear on the date it was set for consideration. He finally contends that the issue regarding the dispositive portion of the 28 June 1991 Decision was rendered moot and academic by the corrections made in the Decision of 25 January 1993; that the charge of gross ignorance is contemptuous and unfounded; and the complainant's sweeping conclusions show his disrespectful attitude.

In his 17 June 1993 Rejoinder filed on 7 July 1993,[6] the complainant reiterates his charge that the respondent is incompetent because he lacks the "ability to prepare a sensible and credible decision," and maintains that the respondent's attempt to convince this Court that the dispositive portion of the 28 June 1991 Decision is permissible and proper shows "gross ignorance." Further, that the respondent believes that "he could correct the decision after its finality" and after the RTC of Bulacan had declared it to be null and void upon its face clearly manifests his "patent ignorance of our laws and jurisprudence.

In his Sur-Rejoinder filed on 13 July 1993,[7] the respondent argues that while the 28 June 1991 Decision "could hardly be enforced for the reason that there is some sort of ambiguity or commission (sic) in its dispositive portion," he was not prohibited from having the defect "timely corrected and clarified," which was what we had in fact done, and that the "clarified decision" did not prejudice "the substantial rights of the parties" since they "were given their day in court and passed through the usual course of the proceedings." Accordingly, he could not be guilty of gross ignorance of the law and of lack of competence.

Wanting to have the last word, the complainant filed a Reply to Sur-rejoinder and Manifestation on 28 July 1993.[8] Not to be

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[6] Should be Reply; *Rollo*, 69-72.

[7] Should be Rejoinder; *Id.*, 82-86.

[8] Should be Sur-rejoinder only; *Rollo*, 88-92.

outdone, the respondent filed a Manifestation to Reply on 9 August 1993.[9]

The Court referred this case to the Office of the Court Administrator for evaluation, report and recommendation.

On 31 August 1993, the Office of the Court Administrator submitted its Memorandum containing its evaluation, report and recommendation. After summarizing the antecedent facts, the said office submitted that the instant complaint is meritorious, and made the following findings:

"It is quite unbelievable, nay, impossible for respondent to have overlooked the missing dispositive portion of his original decision which is considered the executory portion thereof. The only ineluctable conclusion is that respondent never read said decision before he signed the same. If only he devoted even only a little time to read the same, such a missing portion considered to be the most important part of a decision could not have escaped his attention. The alleged dispositive portion was a prayer. It did not have the effect of finally disposing the case. Presumably, this must have been simply copied from plaintiff's complaint.

True, it was legally permissible for respondent to amend his original defective decision since the RTC dismissed the petition for *certiorari* although Judge Perfecto Macapagal found that what was rendered by Judge Paguio 'can not be considered a decision at all'. It took respondent Judge 1-1/2 years to discover and correct his error; the error could have easily been discovered at the time the Motion for Execution was filed on September 2, 1991. But the writ was nonetheless issued on December 4, 1991. Hence the belated correction would not mitigate his liability. There is no denying that the quality of a decision rendered by the judge such as herein respondent, is a reflection on the integrity of the court in dispensing justice to whom it is due. Respondent was at the very least careless in failing to read carefully the decision that he signed. In fact, both the original and amended decisions still contained errors in grammar and syntax indicating that there was no adequate editing of the decision that was signed by him. If he had been more careful, he would have avoided such fractured phrases as:

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[9] Unpaginated in the *rollo*.

'1. Plaintiff *on being opposed to this motion*, countered as follows: (Page 5, Decision, June 28, 1991);

2. For a more vivid explanation showing the *incidental facts* (*Ibid.*);

3. And defendants *seems that they are not really sincere* (*Ibid.*);

4. But nothing has been done by the latter to renew such contract of lease *of which right becomes one of a detainer plain and simple* (page 6, *Ibid.*);

5. That being the case to *allow them will mean ownership over the property* (*Ibid.*).'

It is possible that this is not the usual language of the Judge, for their fractured constructions have no place in a court decision. Careful editing and rewriting should have been done."

and recommends that:

"x x x a fine of ₱5,000.00 be imposed upon respondent with a warning that any repetition of the same or similar infraction shall be meted with a more severe penalty of dismissal from the service. He is also admonished to exhibit greater care in the writing of his decisions."

We find the above observations of the Office of the Court Administrator to be sufficiently supported by the pleadings submitted by the parties in this case.

After a careful examination of the respondent's "Decision" of 28 June 1991, we do find its body to be flawed with grammatical and syntactic errors. Its "dispositive portion" disposes of, resolves or decrees nothing. It cannot even be called a dispositive or decretal portion at all. It is obviously a prayer lifted from a pleading of the plaintiff, such as a Memorandum or the *ex-parte* manifestation and motion praying that judgment be rendered filed after the defendants failed to file their position paper, although not from the complaint as suspected by the Court Administrator. How it gained entry into what should have been *the fallo* is an *arcanum*. Any attempt to unravel the mystery

may only complicate the matter against the respondent who is only charged herein with gross ignorance or incompetence.

There can, however, be no dispute that behind the errors of grammar and syntax and the fatally infirmed "dispositive portion" is the inefficiency, neglect of duty or carelessness on the part of the respondent betraying absence of due care, diligence, conscientiousness and thoroughness qualities which Judges must, among others, possess. Respondent could have easily avoided the errors and the defects had he taken a little more time and effort to at least read its original copy before he finally affixed his signature thereon. While this Court cannot expect every Judge to be an expert on the English language or an authority in grammar, he must, however, do everything he can, through constant study, extraordinary diligence, and passion for excellence, to produce a decision which fosters respect for and encourages obedience to it and enhances the prestige of the court.

As we see it then, the respondent failed to comply with two standards of conduct prescribed by the Canons of Judicial Ethics, namely: that "[h]e should exhibit an industry and application commensurate with the duties imposed upon him"[10] and that he should be conscientious, studious and thorough.[11]

Moreover, the respondent did not only issue a manifestly infirmed "decision," he even granted the motion for its execution and issued the corresponding writ with full knowledge that there was nothing to execute. He could not have feigned ignorance of such nothingness for it is embarrassingly self-evident. He nevertheless ordered its execution, exhibiting once more his inefficiency, carelessness, negligence, or even his incompetence.

We must add, however, that it is not the respondent alone who must be blamed for such unmitigated *faux pas*. The counsel for the parties in the case knew or ought to have known the fatal defect of the dispositive portion and the obvious inefficacy of any writ for its execution, yet, the plaintiff's counsel still

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[10] Canon 5.

[11] Canon 31.

filed a motion for execution, while the counsel for the defendants the complainant herein merely filed a motion for reconsideration based solely on the ground that the plaintiff did not file her pre-trial brief and that there was no valid pre-trial order. Obviously, the complainant initially believed in the *completeness* of the decision. As a matter of fact, when he assailed the 25 January 1993 Decision, he alleged that what was amended was a " *final* decision," a position totally inconsistent with his claim that the latter was void as declared by the RTC of Bulacan. As officers of the court who owe to it candor, fairness and good faith,[12] both attorneys should have called the court's attention to the glaring defect of the "dispositive portion" of the 28 June 1991 Decision.

We thus conclude that the respondent Judge is guilty of, in the very least, inefficiency, neglect of duty and the violation of Canons 5 and 31 of the Canons of Judicial Ethics. He could not, however, be liable for ignorance of law and jurisprudence or for incompetence when he handed down a new decision on 25 January 1993. The 28 June 1991 Decision was "incomplete" since, for all legal intents and purposes, it had no *fallo* and could not attain finality, hence the respondent had the power to amend it to make it conformable to law and justice.[13] It is not therefore correct to say, as the complainant suggested, that the order of the RTC of Bulacan in Sp. Civil Action No. 03-M-93 stating that the respondent's Decision of 28 June 1991 is "void upon its face" forever bars the respondent from rendering a new or amended decision in the ejectment case.

We take this opportunity to stress once again that the administration of justice is a sacred task and all those involved in it must faithfully adhere to, hold inviolate, and invigorate the principle solemnly enshrined in the Constitution that a public office is a public trust and all public officers and employees must at all times be accountable to the people, serve them with utmost responsibility, integrity, loyalty and efficiency, and act

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[12] Canon 10, Code of Professional Responsibility.

[13] Section 5(g), Rule 135, Revised Rules of Court.

with patriotism and justice and lead modest lives.[14] Every Judge should never forget that he is the visible representation of the law and, more importantly, of justice.[15] Therefore, he must constantly be the embodiment of competence, diligence, conscientiousness, thoroughness, efficiency, and integrity so as to preserve, promote and enhance the people's confidence in the Judiciary.

A few words must also be made of record regarding the complainant. We note that in his complaint in this case he alleged under oath that after the defendants filed their answer, the respondent "without any hearing, or at least this counsel was never notified of any such hearing," rendered the 28 June 1991 Decision. This is of course inaccurate, if not outright false. What the complainant conveniently left out in his complaint was that, as disclosed in the Comment which he did not refute, after the defendants' answer with counterclaim was admitted by the court, the case was set for preliminary conference and thereafter the parties were required to submit their position papers and the affidavits of their witnesses and other evidence. We find that the case was properly placed and considered under the Rule on Summary Procedure and, accordingly, the court could decide the case on the basis of the submitted position papers, affidavits and other pieces of evidence. Complainant further suppressed the fact that he entered his appearance as counsel for the defendants only after the court had conducted the preliminary conference and issued the order for the submission of the foregoing pleadings and documents. He was not, therefore, entitled to any notice before then.

The failure to divulge the foregoing facts may have been intended by the complainant to give his complaint a strong *prima facie* case against the respondent. While he is entitled to adopt certain strategies in his pleadings, he forgot that he owes to this Court absolute candor, fairness and good faith. This Court can neither condone nor tolerate attempts to mislead it through

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[14] *Sy vs. Academia,* 198 SCRA 705 [1991].

[15] *De la Paz vs. Inutan,* 64 SCRA 540 [1975].

suppression of important facts which would have a bearing on its initial action. Complainant should, therefore, be admonished to faithfully adhere to the Code of Professional Responsibility.

WHEREFORE, for *inefficiency* and *neglect of duty amounting to a violation of Canons 5 and 31 of the Canons of Judicial Ethics, respondent Judge ORLANDO C. PAGUIO* is hereby *sentenced to pay a FINE* of *Five Thousand Pesos (₱5,000.00). He* is *further warned* that *a repetition of the same or similar infractions* shall be *dealt with more severely.*

Complainant is hereby *ADMONISHED* to be more careful in the drafting of pleadings, always keeping in mind his duty under Canon 10 of the Code of Professional Responsibility.

SO ORDERED.

Cruz (Chairman) and *Quiason, JJ.*, concur.

Bellosillo, J., on official leave.

THIRD DIVISION

[G.R. No. 86555. November 16, 1993]

PEOPLE OF THE PHILIPPINES, *petitioner, vs.* **AUGUSTO MANZANO *y* REYES,** *respondent.*

SYLLABUS

1. POLITICAL LAW; CONSTITUTIONAL LAW; BILL OF RIGHTS; RIGHT TO COUNSEL; MAY NOT BE AVAILED WHERE AN ARRESTED PERSON SIGNS A BOOKING SHEET AND ARREST REPORT; REASON. — (W)hen an arrested person signs a booking sheet and arrest report at a police station, he does not (thereby) admit the commission of an offense nor confess to any incriminating circumstance. The

booking sheet is no more than a record of arrest and a statement on how the arrest is made. It is simply a police report, and it has no probative value as an extrajudicial statement of the person being detained. The signing by the accused of the booking sheet and arrest report is not a part of the custodial investigation which would otherwise require the presence of counsel to ensure the protection of the accused's constitutional rights.

2. **CRIMINAL LAW; REPUBLIC ACT 6425, AS AMENDED; ILLEGAL SALE OF DANGEROUS DRUGS; PRESENTATION OF MARIJUANA, INITIALLY MATERIAL.—** In the prosecution of an accused for an illegal sale of prohibited drugs "what is (initially) material is . . . the presentation in court of the corpus delicti as evidence." The laboratory tests and the chemical microscopic examination, conducted by NBI Forensic Chemist Nova Gamosa, definitely reveal the contents of the plastic bags to be marijuana. The chemistry report, attested to by the forensic chemist, has undoubtedly established the *corpus delicti* of the crime.

3. **ID.; ID.; ID.; ELEMENTS. —** In any criminal prosecution, it would be imperative to establish the elements of the offense; *viz*: (1) That the accused had sold and delivered a prohibited drug to another; and (2) That he knew that what he had sold and delivered was a dangerous drug.

4. **ID.; ID.; ID.; TERM "DELIVER," DEFINED. —** Section (2) (f), Article I of the Republic Act No. 6425, as amended, defines the term "deliver," the offense that is charged in the information, as ". . . a person's act of knowingly passing a dangerous drug to another personally or otherwise, and by any means, with or without consideration."

5. **ID.; ID.; BUY-BUST OPERATIONS MUST BE EMPLOYED WITH SOLICITUDE; ALLEGED OPERATION IN CASE AT BAR, LAID OUT HAPHAZARDLY. —** While buy-bust operations have long been recognized as a valid means of apprehending peddlers of drugs, we also did caution, however, that the use of poseur-buyer is to be employed with solicitude being, as it is, easily susceptible to mistake, harassment, extortion and abuse. Considering the severity of the penalty imposed, it behooves the law enforcement agencies in its investigatorial work, the prosecution in its presentation and submission of the evidence, and the courts in its evaluation of the merits of

the case, to exercise no less than the extreme care and professionalism demanded in these cases if we are to attain a good degree of success in our drive to curb the drug menace. Unfortunately, the buy-bust operation, assuming that it did take place in this particular instance, has appeared to have been laid out quite haphazardly. Instead of taking that cue for it to excel on its own, the prosecution regrettably has likewise exhibited a lukewarm stance.

6. REMEDIAL LAW; EVIDENCE; GUILT BEYOND REASONABLE DOUBT; NOT ESTABLISHED IN CASE AT BAR. — The guilt of the accused must be proved beyond reasonable doubt. The prosecution, on its part, must rely on the strength of its own evidence and must not simply depend on the weakness of the defense. The slightest possibility of an innocent man being convicted for an offense he as never committed, let alone when no less than a capital punishment is imposed, would be far more dreadful than letting a guilty person go unpunished for a crime he may have perpetrated.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Teofilo C. Abejo II counsel *de oficio* for accused-appellant.

D E C I S I O N

VITUG, *J.*:

An information filed on 05 September 1983 before the Regional Trial Court of Manila, charges —

"x x x AUGUSTO MANZANO *Y* REYES (with) Violation of Section 4, Article II in relation to Section 2 (i) Article I of Republic Act No. 6425, as amended by P.D. 44, as further amended by P.D. 1675, committed as follows:

That on about September 2, 1983, in the City of Manila, Philippines, the said accused, not being authorized by law to sell, deliver, distribute or transport to another any prohibited drug, did then and there willfully and unlawfully sell and deliver for monetary consideration seven

(7) tea-bag size plastic containing marijuana flowering tops at ₱5.00 per tea bag, which is a prohibited drug."

The trial of the case was originally presided over by Hon. Oscar C. Fernandez. When Hon. Romeo J. Callejo assumed the post of Judge Fernandez, he promptly ordered the Court Stenographic Reporters to submit their transcripts of stenographic notes. To his dismay, however, discrepancies were discovered in the transcripts; the transcriptions submitted by one Mercedes Velasquez were incomprehensible; and no stenographic notes were apparently taken during the testimony of defense witness Leonardo Quiambao. Upon motion of the accused's counsel, the incumbent judge ordered the retaking of the testimonies of Pat. Gaudencio Quebuyen and defense witness Leonardo Quiambao and the cross-examination of Pat. Paterno Banawel. Additional documentary evidence was likewise admitted.

On 02 October 1987, the court *a quo*, following the formal submission of evidence, rendered judgment, finding the accused guilty of the crime charged and sentencing him, thus —

"WHEREFORE, judgment is hereby rendered finding the Accused Augusto Manzano *y* Reyes, guilty beyond reasonable doubt, as principal, for the crime of violation of Section 4 Article II in relation to Section 2 (e)(i) of Republic Act 6425, as amended and hereby sentences him to the penalty of *RECLUSION PERPETUA*, with accessory penalties of the law and to pay a fine of ₱25,000.00, without subsidiary imprisonment in case of insolvency, and to pay the costs of the suit.

The marijuana subject matter of this case is hereby declared forfeited in favor of the government.

The Accused shall be credited for the entire period of his detention during the pendency of this case provided that he undertook in writing, to abide by and comply strictly with the rules and regulations of the City Jail of Manila."

In this appeal, the accused claims that —

"THE LOWER COURT (HAS) GRAVELY ERRED IN FINDING THE ACCUSED GUILTY OF THE CRIME CHARGED NOTWITHSTANDING THE FOLLOWING:

(a) Inadmissibility of evidence obtained in violation of the accused's rights under the Constitution(; and)

(b) Proof of guilt beyond reasonable doubt has not been adequately, positively and convincingly established."

The trial court, in convicting the accused-appellant, relied, in main, on the evidence for the prosecution, thus

The Drug Enforcement Section of the Western Police District received information that the accused was engaged in the sale of marijuana. On 02 September 1983, a "trial-buy" operation was conducted by the law enforcement operatives. At five o'clock that afternoon, a civilian poseur-buyer was able to purchase from the accused dried flowering tops of suspected marijuana with cigarette rolling papers contained in three (3) tea-bag sized plastic bags. Each bag sold for ₱5.00. No arrest was made. At seven o'clock in the evening of the same day, however, a "buy-bust" operation, this time conducted by police officers Sgt. Gaudencio Quebuyen, Pat. Rolando Anza, Pat. Paterno Banawel, Pat. Bernabe Yokingco and Pat. Eriberto Alameda, with Rebecca Avila Reyes, a civilian informer, as poseur-buyer, was set into motion. The team was so positioned as to have a clear view of the transaction that was to take place near an electric post. Not long after, the poseur-buyer gave the accused four (4) ₱5.00 marked bills. The accused left; moments later, he returned and handed over to the poseur-buyer four (4) plastic bags, tea-bag size, containing marijuana flowering tops and pieces of white rolling paper. Forthwith, the informer gave the pre-arranged signal (by scratching her head). The team promptly moved in and arrested the accused. Only one of the ₱5.00 marked bills was recovered from him.

Accused-appellant firstly anchors his assigned error on the fact that he has been "investigated, interrogated and made to sign an accomplished booking sheet and arrest report without the benefit of counsel."[1] The contention is without merit. This Court has already emphasized that "(w)hen an arrested person

[1] Appellant's Brief, p. 6.

signs a booking sheet and arrest report at a police station, he does not (thereby) admit the commission of an offense nor confess to any incriminating circumstance."[2] The booking sheet is no more than a record of arrest and a statement on how the arrest is made. It is simply a police report, and it has no probative value as an extrajudicial statement of the person being detained.[3] The signing by the accused of the booking sheet and arrest report is not a part of the custodial investigation which would otherwise require the presence of counsel to ensure the protection of the accused's constitutional rights.[4]

The appellant's plea of innocence on the basis of reasonable doubt, however, deserves serious consideration.

In the prosecution of an accused for an illegal sale of prohibited drugs "what is (initially) material is x x x the presentation in court of the *corpus delicti* as evidence."[5] The laboratory tests and the chemical microscopic examination, conducted by NBI Forensic Chemist Neva Gamosa, definitely reveal the contents of the plastic bags to be marijuana.[6] The chemistry report, attested to by the forensic chemist, has undoubtedly established the *corpus delicti* of the crime.[7]

The other question is whether or not the prosecution has been able to prove the fact of sale and delivery of the prohibited drug by the accused, a matter that must likewise be established beyond reasonable doubt.[8]

In any criminal prosecution, it would be imperative to establish the elements of the offense; *viz*:

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[2] *People vs. Rualo*, 152 SCRA 635; *People vs. Bandin*, G.R. No. 104494, 10 September, 1993.

[3] *Ibid*.

[4] *People vs. Olivares*, 186 SCRA 536.

[5] *People vs. Mariano*, 191 SCRA 136; *People vs. Labarias*, 217 SCRA 483. See also *People vs. Pacleb*, 217 SCRA 92.

[6] *Rollo*, pp. 57-60.

[7] *People vs. Celiz and Bangero*, 214 SCRA 55.

[8] *People vs. Alilin*, 206 SCRA 772.

(1) That the accused had sold and delivered a prohibited drug to another; and

(2) That he knew that what he had sold and delivered was a dangerous drug.[9]

A tedious and conscientious effort has been made to evaluate the evidence presented by the prosecution; the results every time, however, appear to yield more questions than answers to a number of concerns that has bewildered the Court.

First. The prosecution witnesses could not agree on the number of marijuana tea bags taken from the accused. Patrolman *Quebuyen*[10] testified that three bags were taken from the accused during the buy-bust operation. On the other hand, Patrolman Banawel[11] claimed that four marijuana bags were sold by the accused to the informer.

Second. The buy-bust team was supposed to be composed of six members: five members of the police force and a civilian informer. Yet, the name of a sixth police officer kept on cropping up that of Patrolman Borlongan.[12] No effort was made to clarify who this Patrolman Borlongan is.

Third. Patrolman Quebuyen[13] testified that only the accused was arrested and that defense witness Leonardo Quiambao (who claimed to have likewise been arrested together with the accused) was not present at the place of the incident. According, however, to Patrolman Anza,[14] the accused was seen with a companion who, in fact, was chased by the police officers. This conflicting versions given by the prosecution itself, again, were not explained.

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[9] *People vs. Aranda*, G.R. No. 100985, 17 September 1993.

[10] TSN, 24 October 1986, p. 4; TSN, 8 September 1987, p. 6.

[11] TSN, 7 November 1984, p. 9.

[12] Patrolman Quebuyen, TSN, 24 October 1986, p. 4; Patrolman Banawel, TSN, 8 September 1987, p. 1.

[13] TSN, 24 October 1986, pp. 5-6.

[14] TSN, 14 November 1984, pp. 10-11.

More importantly, the prosecution has missed putting on record any evidence to indicate that the tea bags, supposedly delivered to the poseur-buyer, had been known by the accused to contain dangerous drugs. Even the information itself has failed to allege this fact.[15] Section (2)(f), Article I of Republic Act No. 6425, as amended, defines the term "*deliver*," the offense that is charged in the information, as "x x x a person's act of *knowingly passing a dangerous drug* to another personally or otherwise, and by any means, with or without consideration."

Given all the above, it is readily discernible that the testimony of the poseur-buyer would have been most vital to the prosecution's case.[16] Yet, the prosecution did not even bother to have her take the witness stand.

A final remark on the buy-bust operation that simply cannot escape one's attention. The prosecution sought to prove that the accused left the place of the transaction for a few minutes and entered an alleyway to get the marijuana tea bags from an unknown supplier. No attempt was made to find out who this person was, either before or after the accused was apprehended. Then, while it was asserted by the prosecution that the informer gave the accused four ₱5.00-marked bills, only one ₱5.00-marked bill was recovered from the latter when he was arrested. The three other ₱5.00-marked bills were not accounted for.

Too much, indeed, has been left to conjecture. While buy-bust operations have long been recognized as valid means of apprehending peddlers of drugs,[17] we also did caution, however, that the use of poseur-buyer is to be employed with solicitude being, as it is, easily susceptible to mistake, harassment, extortion and abuse.[18]

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[15] The information is to the effect that the accused x x x willfully and unlawfully sell and *deliver* for monetary consideration seven (7) tea-bag size plastic containing marijuana flowering tops x x x (italics supplied).

[16] *People vs. Yabut*, 210 SCRA 394; *People vs. Fulgarillas*, 212 SCRA 76; *People vs. Polizon*, 214 SCRA 56.

[17] *People vs. Ramos, Jr.*, 203 SCRA 237.

[18] *People vs. Lati*, 184 SCRA 336; *People vs. Yutuc*, 188 SCRA 1.

Considering the severity of the penalty imposed, it behooves the law enforcement agencies in its investigatorial work, the prosecution in its presentation and submission of the evidence,[19] and the courts in its evaluation of the merits of the case, to exercise no less than the extreme care and professionalism demanded in these cases if we are to attain a good degree of success in our drive to curb the drug menace. Unfortunately, the buy-bust operation, assuming that it did take place in this particular instance, has appeared to have been laid out quite haphazardly. Instead of taking that cue for it to excel on its own, the prosecution regrettably has likewise exhibited a lukewarm stance. The rule is clear: The guilt of the accused must be proved beyond reasonable doubt.[20] The prosecution, on its part, must rely on the strength of its own evidence and must not simply depend on the weakness of the defense. The slightest possibility of an innocent man being convicted for an offense he has never committed, let alone when no less than a capital punishment is imposed, would be far more dreadful than letting a guilty person go unpunished for a crime he may have perpetrated.

WHEREFORE, the decision of the trial court is *REVERSED* and *SET ASIDE* and the accused is hereby *ACQUITTED* of the offense charged.

SO ORDERED.

Feliciano (Chairman), Bidin, Romero, and *Melo, JJ.*, concur.

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[19] *People vs. William,* 209 SCRA 808.

[20] *People vs. Alilin,* 206 SCRA 772.

THIRD DIVISION

[G.R. No. 87555. November 16, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **VICENTE DEUNA *y* DIMDAM, EMMANUEL PLANTA *y* DANAO *alias* 'Maning', JOHN DICHOSO *y* UNIZA *alias* 'Bobot,' JOHN DOE, PETER DOE, RICHARD DOE, ALBERT DOE, and ROMEO DOE, accused. VICENTE DEUNA *y* DIMDAM (deceased). EMMANUEL PLANTA *y* DANAO *alias* 'Maning', JOHN DICHOSO *y* UNIZA *alias* 'Bobot,'** *appellants.*

SYLLABUS

1. REMEDIAL LAW; CRIMINAL PROCEDURE; ALIBI, AS A DEFENSE; REQUIREMENTS; CASE AT BAR. — The widely known rule is that alibi to be sustainable as a defense, must establish that the accused was at some other place at the time the felony occurred and that it was physically impossible for the accused to have been at the scene of the crime at the same time. These two (2) requirements are indispensable. In the case at bar, the alibi presented by appellants Dichoso and Planta failed to satisfy the above twin requirements.

2. ID.; EVIDENCE; CREDIBILITY OF WITNESSES; FINDINGS OF THE TRIAL COURT THEREON; RULE AND EXCEPTION; CASE AT BAR. — We are not persuaded by the above arguments. The inconsistency, if that is what it was, related to the exact words uttered in Filipino by appellant John Dichoso. No inconsistency may be observed, however, insofar as the intent or import of the statement attributed to Dichoso *i.e.*, to slay the victim Ramon Torres; in the specific context here, *saksakin, patayin and todasin* obviously meant the same thing. We agree with the trial court when it said in its order denying Dichoso's motion for reconsideration, that "x x x A slight variation in the testimonies of the prosecution witnesses as to the exact words uttered by accused Dichoso on the aforesaid occasion, *i.e.* '*Sige, Totoy, saksakin mo na*' and '*Todasin mo iyan*' does not detract from the credibility and probative value considering that both statements are of similar import to

liquidate the victim. Slight variations in the terms used which are not contradictory may be attributed to the frailty of a person's memory considering the lapse of time between the commission of the crime (November 22, 1985) and the date the testimonies were given in court. [sic] What matters most is that the prosecution witnesses positively identified accused John Dichoso as one of those present at the scene of the crime x x x." The alleged inconsistency is also clearly inconsequential when it is borne in mind that the attackers of Ramon Torres were multiple in number, most of whom, if not all, were shouting and screaming. Considering the confusion which accompanied the chase and actual slaying of Ramon Torres, it would have been surprising had prosecution witnesses Alibuyog and Ramos given absolutely identical statements as to the precise words uttered by John Dichoso. The well-known principle is that findings of the trial court on the issue of credibility of witnesses and their testimonies are entitled to great respect and are accorded the highest consideration by appellate courts. The principle, of course, admits of certain exceptions; none of these have been shown to be present in the case at hand.

3. ID.; ID.; ID.; ID.; NOT VITIATED BY REASONS OF FRIENDSHIP NOR BLOOD RELATIONSHIP TO THE VICTIM. — The fact that the prosecution witnesses were close friends of the deceased Ramon Torres did not render their testimony either inadmissible or non-credible. Mere blood relationship of prosecution witnesses to the victim does not necessarily vitiate their otherwise clear and straightforward and credible testimonies, in the absence of proof of any evil motive on the part of the witnesses. The record here is bare of any proof of improper motive which might have moved the witnesses of the prosecution to deliberate perjury.

4. CRIMINAL LAW; CONSPIRACY; REQUIRES NO PROOF OF VERBAL NOR WRITTEN AGREEMENT; RULE; CASE AT BAR. — To establish conspiracy, it is not necessary indeed it would be absurd to require proof of a previous agreement to commit a crime. There is no necessity to show that two (2) or more persons met together and entered into an explicit or formal agreement, verbally or in writing, setting out the details of an unlawful scheme or the details by which the unlawful combination was to be made effective. This Court

has repeatedly ruled that conspiracy may be inferred from the acts of the accused themselves, provided such acts manifest a concurrence of wills of an intention to commit a crime. Direct evidence is not indispensable to prove conspiracy. Upon the other hand, conspiracy may be inferred from the mode or manner in which the offense was carried out as well as the circumstances surrounding the commission of the offense. Thus, the rule is that conviction is proper upon proof that the accused acted in concert, each of them doing his part to fulfill the common design to kill the victim.

5. ID.; QUALIFYING CIRCUMSTANCES; EVIDENT PREMEDITATION; ELEMENTS; NOT ESTABLISHED IN CASE AT BAR. — The elements which must be shown to support a finding of evident premeditation are well-known. The prosecution must prove (1) the time when the offender determined to commit the crime; (2) an act manifestly indicating that the offender had clung to his determination to execute a criminal act; and (3) a sufficient lapse of time between the decision and execution that would permit the malefactor to reflect upon the consequences of his act and allow his conscience to overcome the resolution of his will. In the case bar, there was no showing by the prosecution of the first and the third elements. It can only be surmised that sometime after he was boxed and before the actual stabbing of Ramon Torres, Emmanuel Planta sought and planned his revenge. The interval between the two (2) events was only fifteen (15) minutes; we are unable to say with any confidence that fifteen (15) minutes were enough to allow reflection and the activation and operation of conscience.

6. ID.; ID.; ABUSE OF SUPERIOR STRENGTH; REQUIREMENT; NOT ESTABLISHED IN CASE AT BAR. — The circumstance of abuse of superior strength is present where the accused deliberately employs excessive force, force out of proportion to the means of defense available to the person attacked. We do not consider that this circumstance was shown to exist in the case at bar. Granting that Ramon Torres' attackers numbered between five (5) to eight (8), it does not follow that abuse of superior strength was present here. Ramon Torres was not alone and by himself when he was attacked; Torres was part of a group which comprised at least five (5) persons.

It was, in other words, an attack by one group upon another group rather than an assault by a group upon a lone victim. In this context, we do not believe that abuse of superior strength was properly found by the trial court. The fact that some of the accused were armed with a knife and stones does not change the equation, considering that the state of evidence does not permit a clear inference as to the relative physical strength of the two (2) groups.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Bruno Dela Cueva Law Office for accused E. Planta.
Arcadio G. De la Cruz for J. Dichoso.

D E C I S I O N

FELICIANO, *J.*:

Vicente Deuna *y* Dimdam, Emmanuel Planta *y* Danao (a.k.a. "Maning") and John Dichoso *y* Uniza (a.k.a. "Bobot") were charged with murder in an information which read as follows:

"The undersigned Assistant City Fiscal accuses VICENTE DEUNA, JR. *Y* DIMDAM [sic], EMMANUEL PLANTA *Y* DANAO *ALIAS* "MANING," JOHN DICHOSO *Y* UNIZA *ALIAS* "BOBOT," JOHN DOE, PETER DOE, RICHARD DOE, ALBERT DOE and ROMEO DOE, the last five-named accused whose true name and present whereabouts have not yet been ascertained, of the crime of Murder, committed as follows:

That on or about the 22nd day of November, 1985, in Quezon City, Metro Manila, Philippines, and within the jurisdiction of this Honorable Court, the above-named accused, conspiring together, confederating with and mutually helping one another, with intent to kill, with abuse of superior strength [and] evident premeditation and treachery, did then and there wilfully, unlawfully and feloniously attack, assault and employ personal violence upon the person of one RAMON TORRES *Y* SALAS, by then and there stabbing him and throwing stones at him, thereby inflicting upon said victim [a] serious and mortal wound which was the direct and immediate cause

of his untimely death, to the damage and prejudice of the heirs of the said victim in such amount as may be awarded to them under the provisions of the Civil Code.

Contrary to law."[1]

Upon arraignment, Emmanuel Planta and John Dichoso entered pleas of "not guilty."[2] The arraignment of Vicente Deuna, upon the other hand, was suspended pending resolution of his petition before the then Ministry of Justice seeking review of the decision of the public prosecutor to file the criminal information.[3] On 13 October 1987, in conformity with the then recent ruling in *Crespo v. Mogul*,[4] the trial court issued an Order lifting its previous Order suspending the proceedings so far as concerned Deuna.[5] The prosecution then manifested that it was adopting the evidence it had already presented against Vicente Deuna during his preliminary investigation.[6] The five (5) other accused remained unidentified and at large.

After trial, the court *a quo* rendered a decision convicting all the accused of murder, the dispositive portion of which read:

"WHEREFORE, in view of the foregoing, judgment is hereby rendered:

1. Finding accused Vicente Deuna, Jr. *y* Dimdam [sic] *alias* "Jun Pat", Emmanuel Planta *y* Danao *alias* "Maning" and John Dichoso *y* Uniza *alias* "Bobot" all GUILTY beyond reasonable doubt as principals of the crime of Murder as defined and penalized under Art. 248 of the Revised Penal Code;

2. Sentencing each of the aforesaid accused to suffer the penalty of *Reclusion Perpetua*;

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[1] *Rollo*, pp. 4-5; Records, pp. 1-2.

[2] Records, p. 24.

[3] *Id.*

[4] 151 SCRA 462 (1987).

[5] TSN, 13 October 1987, pp. 3-4.

[6] *Id.*

3. Ordering each of the accused to indemnify the heirs of the victim Ramon Torres in the amount of THIRTY THOUSAND and 00/100 (₱30,000.00) PESOS without subsidiary imprisonment in case of insolvency; and

4. To pay costs.

SO ORDERED."[7]

On 7 November 1991, during the pendency of this appeal, the Court received a Notice of Death of Vicente Deuna who, according to such Notice, had passed away on 16 November 1988. Attached to the Notice of Death was a certified photocopy of a Certificate of Death issued by the Local Civil Registrar of Manila, together with the Certificate of *Post Mortem Examination*[8] issued by the National Bureau of Investigation ("NBI") Medico Legal Section. In the paragraphs which follow below, we have refrained from discussing the assignment of errors made by deceased appellant Vicente Deuna, in view of the extinction of his criminal liability by reason of death.

The remaining accused filed separate appeals. Appellant John Dichoso made the following assignment of errors:

"I

Whether or not John Dichoso *y* Uniza can be convicted of the offense charged despite the fact that he was not assisted by counsel during the custodial investigation.

II

Whether or not the monosyllabic questions propounded by the police investigator during custodial investigation satisfy the requirements of the law that the accused shall be informed of their rights under the new constitution.

III

Whether or not John Dichoso can be convicted of the offense charged when conspiracy cannot be proven."[9]

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[7] *Rollo*, pp. 34-35.

[8] *Id*., pp. 62 and 69.

[9] Appellant's Brief (Dichoso), *Rollo*, p. 79.

For his part, appellant Emmanuel Planta contended that the trial court had erred in the following respects:

"I

The lower court erred in finding appellant Emmanuel Planta guilty of the crime of murder despite his constitutional right of presumption of innocence and the absence of clear showing that he is guilty beyond reasonable doubt considering the totality of facts and circumstances which negate conviction, and in not sustaining the defense of alibi and denial.

II

The lower court erred in relying on the inconsistent testimonies of Leonardo Alibuyog and Anthony Ramos in convicting the appellant Emmanuel Planta.

III

The lower court erred in not finding that the accused was arrested illegally and in not consequently finding that the consequences and effects of the arrest are equally illegal.

IV

The lower court erred in appreciating that the element of conspiracy was present in the killing of Ramon Torres.

V

The lower court erred in finding that the aggravating circumstances of abuse of superior strength and evident premeditation was positively established by the evidence adduced for the prosecution."[10]

The relevant facts found by the trial court to have been proven by the prosecution are the following:

"From the People's evidence it appears that sometime around 9:30 o'clock in the evening of November 22, 1985, Ramon Torres was exchanging pleasantries with his friends among them Lito Fronda, Anthony Ramos and Leonardo Alibuyog at the corner of Oliva and Narcissus Streets, Barangay Roxas, Quezon City when Robert Ramos (Anthony Ramos' brother) arrived accusing Emmanuel 'Maning'

[10] Appellant's Brief (Planta), *Rollo*, pp. 150 and 153.

Planta of boxing him. Bristling with righteous indignation, Torres and his friends rushed to Lilac Street to confront Robert's tormentor. However, when asked for an explanation Maning Planta ignored them and chose to remain silent. Maning's apparent defiance infuriated Ramon Torres who retaliated by boxing him then ordering him home. After Maning departed, the group turned back towards Oliva Street. Fifteen minutes later, Ramon Torres' group espied Maning Planta approaching them together with his brother Carlito 'Totoy' Planta and others identified as Vicente 'Jun Pat' Deuna, John 'Bobot' Dichoso, Alexander 'Alex' de los Santos and Pedro Macabuhay armed with knives and stones. Sensing that Maning Planta was out for revenge, Ramon Torres' group scampered for safety, seeking refuge inside the house of one Alex Alon. Unfortunately, Ramon Torres lagged behind due to a leg injury which he has sustained playing basketball. Thus, when his friends peeped through an open window of Alon's house they saw Ramon Torres being held by the arms by Maning Planta and Pedro, surrounded by the rest of the gang. And as they watched in horror, they heard John "Bobot" Dichoso order '*Sige Totoy (Planta) saksakin mo na*.' Totoy promptly responded by stabbing Ramon Torres on the chest with a knife and as the latter fell to the ground mortally wounded, Alex [threw] stones at him while Vicente "Jun Pat" Deuna kicked the hapless victim. Then having satisfied their thirst for blood, the assailants left. In the meantime, the victim's friends bided their time and when they were certain that the coast was clear, they emerged from their hiding place and quickly rushed Ramon Torres to the Capitol Medical Center where he was pronounced dead on arrival. x x x The *post-mortem* examination conducted on the victim's body by the Medico-Legal Officer was that the cause of death was 'hemorrhage, severe, secondary stab wound to the chest' x x x."[11] (Italics supplied)

The above facts were testified to by the following prosecution witnesses:

(a) Dr. Daniel Miranda, the attending physician at the Capitol Medical Center at the time Ramon Torres' body was brought in;[12]

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[11] Trial Court Decision, pp. 24-26.

[12] TSN, 10 April 1986, pp. 1-12.

(b) Ricardo Ibarrola, NBI Medico Legal Officer who had conducted the *post mortem* examination on the body of Ramon Torres;[13]

(c) Leonardo Alibuyog[14] and Anthony Ramos[15] friends and companions of Ramon Torres on the night of the fatal stabbing;

(d) Pat. Dante Lequilles, the Investigating Officer in the murder case;[16] and(e) Pat. David Navilla, the officer who had arrested appellant Dichoso.[17]

Reynaldo Salas Torres and Cipriano Baela testified in respect of the civil liability of appellants; they presented receipts relating to expenses incurred by the family of the deceased.[18]

For their part, each of the remaining appellants professed his innocence and disclaimed any participation in or knowledge of the circumstances surrounding the felony with which they were charged. The trial court summed up the stories of the appellants:

"John 'Bobot' Dichoso testified that he is presently residing at Bagong Bayan, Dasmarinas, Cavite. He narrated that sometime around 8:00 o'clock in the evening of November 22, 1985, he was at the store of his aunt located at Gumamela Street, Roxas District, Quezon City drinking beer with one Rodolfo Buco and Pedro Macabuhay. After he had drank a bottle of beer, he left for Dasmarinas, Cavite at around 9:00 o'clock that same night. He further explained that he had been staying at Roxas District for about a week prior to the incident at bar helping his father at some carpentry and masonry

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[13] TSN, 29 May 1986, pp. 1-17.

[14] TSN, 4 September and 27 November 1986, 27 January 1987, pp. 1-9, 1-34, 1-15; TSN dated 15 July 1986 was misplaced and never found by Ms. Aurora M. Loquinario, Court Stenographer Reporter as per her Manifestation found on p. 286 of the Records.

[15] TSN, 2 April 1987, pp. 1-33.

[16] TSN, 7 April 1987, pp. 1-18.

[17] TSN, 25 June 1987, pp. 8-12.

[18] TSN, 16 June and 25 June 1987, pp. 1-11 and 1-12, respectively; TSN, 23 July 1987, pp. 1-9; Records, p. 194.

work in the area. He was arrested around 11:00 o'clock in the morning of November 26, 1985 at his house in Dasmarinas, Cavite. While undergoing interrogation at the police headquarters in Dasmarinas, Cavite he was handcuffed, blindfolded and tortured to force him to admit his involvement in the killing of Ramon Torres. However, he refused to give any written statement. Later, he was brought to the police at Quezon City where he gave a written statement. x x x

Vicente Deuna x x x claimed that he was at home having dinner when the incident at bar took place. He resides at 39-C Gumamela Street, Roxas District, Quezon City where he was arrested around 1:00 o'clock in the morning, brought to SID Headquarters, Quezon City, tortured and forced to sign a prepared text admitting his guilt. x x x Paradoxically, said accused adopted as his Exhibit '1-Deuna' his statement which the prosecution had offered in evidence x x x.

In like manner, Emmanuel Planta disclaims any knowledge or participation in the offense charged, alleging that at around 8:00 o'clock of the night in question, he was at home with his parents and siblings at No. 24-B Gumamela, Roxas District, Quezon City. Sometime later at around 9:00 o'clock, the accused accompanied his father's compadre, a certain Erning Mirol home to Narcissus Street about a block away. Along the way home, the accused met Bobby Ramos who apparently took a fancy to his face and without the slightest provocation delivered a blow to his face. Because Bobby Ramos was with his *barkada*, Emmanuel did not retaliate and instead [chose] to quietly proceed home. When he reached home, he did not mention the incident to his family although his brother Carlito did notice the bruise on his face.

On November 25, 1985, Emmanuel Planta was fetched from his house by Ricardo Torres and brought to the latter's residence where the accused was maltreated in an effort to force him to admit complicity in the stabbing of Ramon Torres. From there, the accused was taken to the police precinct where he underwent torture and (was) forced to sign a written statement. x x x."[19]

Appellant Dichoso sought to raise constitutional questions in his appeal-brief, relating to the alleged violation of his rights during custodial investigation. We do not think it necessary to deal with this argument considering that the judgment of

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[19] Trial Court Decision, *Rollo*, pp. 26-28.

conviction against John Dichoso is supported by independent evidence satisfying the standard of proof beyond reasonable doubt. As the trial court pointed out, prosecution witness Leonardo Alibuyog, who had been a resident of Roxas District for sixteen (16) years, positively identified appellant John Dichoso as one of the group of men armed with knives and stones who surrounded the victim Ramon Torres and as one who uttered the command or direction "*Sige, Totoy (Carlito Planta, brother of Emmanuel Planta), saksakin mo na*."[20] John Dichoso was similarly positively identified by prosecution witness Anthony S. Ramos as among those who had accompanied Emmanuel Planta when the latter returned seeking vengeance upon the rival *barkada* or gang for the beating earlier administered by such rival gang.[21] Anthony Ramos also corroborated the testimony of Leonardo Alibuyog to the effect that John Dichoso had on that occasion uttered the words: "*Sige, patayin mo na 'yan*!"[22] In much the same way, appellant Emmanuel Planta was identified by prosecution witnesses Anthony Ramos and Leonardo Alibuyog as having led the group which returned seeking revenge for the alleged affront to his person. The same witnesses stated that Emmanuel Planta together with one Pedro Macabuhay held Ramon Torres by the arms when John Dichoso directed or urged Carlito (Totoy) Planta to stab or finish off Ramon Torres.[23]

Contraposed to the prosecution's evidence consisting of positive identification, was appellants' defense of alibi. The widely known rule is that alibi to be sustainable as a defense, must establish that the accused was at some other place at the time the felony occurred and that it was physically impossible for the accused to have been at the scene of the crime at the same time.[24] These

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[20] Refer to TSN, 27 November 1986, p. 3; Erlinda S. Salita.

[21] TSN, 2 April 1987, p. 6; Aurora M. Loquinario.

[22] *Id.*, p. 9; Aurora M. Loquinario.

[23] TSN, 27 November 1986, p. 14; Aurora M. Loquinario.

[24] *People v. Tamayo*, 183 SCRA 375 (1990); *People v. Alcantara*, 163 SCRA 783 (1988); *People v. Mendoza*, 163 SCRA 568 (1988); *People v. Sato*, 163 SCRA 602 (1988); *People v. Ramillo*, 147 SCRA 102 (1987); *People v. Quinlob*, 119 SCRA 130 (1982).

two (2) requirements are indispensable. In the case at bar, the alibi presented by appellants Dichoso and Planta failed to satisfy the above twin requirements.

John Dichoso claimed that at about 8:00 o'clock on the fatal evening of 22 November 1985, he spent fifteen (15) minutes at his aunt's store at Roxas District drinking a bottle of beer with Rodolfo Buco and Pedro Macabuhay. He went on to say that he left Roxas District for Dasmariñas, Cavite at about 9:00 o'clock that same evening.[25] But Dichoso presented only his bare testimony to prove his defense of alibi; he failed to present either Rodolfo Buco or Pedro Macabuhay and did not explain his failure to do so. Neither did he present any proof showing that he had in fact boarded a bus for Dasmariñas, Cavite at 9:00 o'clock that evening.

Emmanuel Planta, for his part, alleged that around 8:00 o'clock on the night of 22 November 1985, he was at home with his parents and brothers at No. 24-B Gumamela Street, Roxas District, Quezon City; that at around 9:00 o'clock that same evening, he accompanied one Erning Mirol to the latter's home in Narcissus Street, a block away from No. 24-B Gumamela Street; that having been punched on the face without provocation, Emmanuel did not fight back and instead chose quietly to go home. At home, he mentioned the incident to no one in his family. Emmanuel Planta, however, failed (like John Dichoso) to present any witness who would corroborate his claim of injured innocence.

And so the trial court applied the firmly settled rule that as between the defense of alibi and the positive and credible identification of the accused, the latter must prevail.[26]

The fact that the prosecution witnesses were close friends of the deceased Ramon Torres did not render their testimony either inadmissible or non-credible. Mere blood relationship of prosecution witnesses to the victim does not necessarily vitiate

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[25] TSN, 13 October 1989, pp. 7-8; Erlinda S. Salita.

[26] *People v. Tamayo*, 183 SCRA 375 (1990); *People v. Bautista*, 147 SCRA 500 (1987); *People v. Cervantes*, 125 SCRA 187 (1983); *People v. Elefano, Jr.*, 125 SCRA 702 (1983); *People v. Imbo*, 116 SCRA 355 (1982).

their otherwise clear and straightforward and credible testimonies, in the absence of proof of any evil motive on the part of the witnesses.[27] The record here is bare of any proof of improper motive which might have moved the witnesses of the prosecution to deliberate perjury.

Appellants lay great stress on the ostensibly inconsistent statements of prosecution witnesses Leonardo Alibuyog and Anthony Ramos.[28] According to the appellants, the inconsistency arose when Alibuyog testified that he saw appellant Dichoso at the scene of the crime and heard him saying "*Sige, saksakin mo na*"[29] and that when the victim Ramon Torres had fallen and was lying on the ground, "Alex [delos Santos] threw a stone at him [the victim] and kicked him."[30] Anthony Ramos, however, when testifying on the same incident, stated that "John Dichoso had said, '*Sige, patayin mo na 'yan'* and the rest started kicking him [the victim]."[31] Moreover, appellants add, in a sworn statement executed by Anthony Ramos, he stated that he heard appellant Dichoso say "*Todasin na 'yan*."[32] Appellants claim that "it is incomprehensible that both witnesses who were allegedly only five (5) meters from the victim heard entirely different utterances from the accused."[33] Appellants also argue that despite the physical proximity of the prosecution witnesses to the place where the stabbing took place, they were not even sure as to who had held the victim while the latter was being stabbed.[34]

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[27] *People v. Sanchez*, 199 SCRA 414 (1991); *People v. Mision*, 194 SCRA 432 (1991); *People v. De Guzman*, 194 SCRA 432 (1991); *People v. Cuyo*, 196 SCRA 447 (1991); *People v. Lardizabal*, 204 SCRA 320 (1991).

[28] Appellant's Brief (Dichoso), *Rollo*, pp. 85-90; Appellant's Brief (Planta), *Rollo*, pp. 151-165.

[29] *Id., Rollo*, p. 86.

[30] TSN, 15 July 1986, p. 9.

[31] *Id.*, p. 87.

[32] *Id.*

[33] *Id.*, p. 88.

[34] Appellant's Brief (Planta), *Rollo*, p. 158.

We are not persuaded by the above arguments. The inconsistency, if that is what it was, related to the exact words uttered in Filipino by appellant John Dichoso. No inconsistency may be observed, however, insofar as the intent or import of the statement attributed to Dichoso *i.e.*, to slay the victim Ramon Torres; in the specific context here, *saksakin, patayin* and *todasin* obviously meant the same thing. We agree with the trial court when it said in its order denying Dichoso's motion for reconsideration, that

"x x x A slight variation in the testimonies of the prosecution witnesses as to the exact words uttered by accused Dichoso on the aforesaid occasion, *i.e.* '*Sige, Totoy, saksakin mo na*' and '*Todasin mo iyan*' does not detract from the credibility and probative value considering that both statements are of similar import to liquidate the victim. Slight variations in the terms used which are not contradictory may be attributed to the frailty of a person's memory considering the lapse of time between the commission of the crime (November 22, 1985) and the date the testimonies were given in court. [sic] What matters most is that the prosecution witnesses positively identified accused John Dichoso as one of those present at the scene of the crime x x x."[35]

The alleged inconsistency is also clearly inconsequential when it is borne in mind that the attackers of Ramon Torres were multiple in number,[36] most of whom, if not all, were shouting and screaming.[37] Considering the confusion which accompanied the chase and actual slaying of Ramon Torres, it would have been surprising had prosecution witnesses Alibuyog and Ramos given absolutely identical statements as to the precise words uttered by John Dichoso.

Both appellant Dichoso and appellant Planta assail the finding of conspiracy by the trial court. There is no dispute that conspiracy

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[35] *Id.*, p. 343.

[36] The information lists 8 accused: 3 identified and 5 unidentified. The decision, however, identifies 6 participants who attacked the group of Ramon Torres. These are Maning Planta, Carlito Planta, Vicente Deuna, John Dichoso, Alexander de los Santos and Pedro Macabuhay.

[37] TSN, 2 April 1987, pp. 20-21.

must be shown to exist by the same degree of proof necessary to establish the constitutive ingredients of the offense itself. Dichoso and Planta insist that the trial court's finding of conspiracy rested on the inconsistent and non-credible testimony of prosecution witnesses Leonardo Alibuyog and Anthony Ramos.

We find it difficult to be impressed with appellants' arguments. The well-known principle is that findings of the trial court on the issue of credibility of witnesses and their testimonies are entitled to great respect and are accorded the highest consideration by appellate courts.[38] The principle, of course, admits of certain exceptions;[39] none of these have been shown to be present in the case at hand.

More importantly, to establish conspiracy, it is not necessary indeed it would be absurd to require proof of a previous agreement to commit a crime.[40] There is no necessity to show that two (2) or more persons met together and entered into an explicit or formal agreement, verbally or in writing, setting out the details of an unlawful scheme or the details by which the unlawful combination was to be made effective. This Court has repeatedly ruled that conspiracy may be inferred from the acts of the accused themselves, provided such acts manifest a concurrence of wills of an intention to commit a crime.[41] Direct evidence is not indispensable to prove conspiracy. Upon the other hand, conspiracy may be inferred from the mode or manner in which the offense was carried out as well as the circumstances surrounding the commission of the offense. Thus, the rule is

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[38] *People v. Gerones*, 193 SCRA 263 (1991); *People v. Natan*, 193 SCRA 355 (1991); *People v. Umali*, 193 SCRA 493 (1991); *Concepcion v. Court of Appeals*, 193 SCRA 586 (1991); *People v. Martinada*, 194 SCRA 36 (1991); *People v. Arenas*, 198 SCRA 172 (1991).

[39] See *People v. Deocariza*, G.R. No. 103396, 3 March 1993; *People v. Salcedo*, 195 SCRA 345 (1991); *People v. Yutuc*, 188 SCRA 1 (1990); *People v. Taruc*, 157 SCRA 182 (1988); *Arcada Cortes y Yengson v. Court of Appeals and People*, 163 SCRA 139 (1988).

[40] *People v. Sy*, 113 SCRA 207 (1982); *People v. Tala*, 141 SCRA 240 (186).

[41] *People v. Largo*, 46 SCRA 597 (1992).

that conviction is proper upon proof that the accused acted in concert, each of them doing his part to fulfill the common design to kill the victim.[42]

In the case at bar, concerted acts on the part of the accused were clearly shown by the prosecution. Fifteen (15) minutes after Emmanuel Planta had been boxed in the face and had left Ramon Torres' group, Emmanuel Planta, together with John Dichoso and the now deceased Vicente Deuna and others, were seen approaching, armed with knives and stones, the group of Ramon Torres.[43] Upon sighting Torres' group and seeing them disperse and run for safety, the accused acting in concert gave chase and caught up with their victim Ramon Torres who was limping away because of an injury suffered while playing basketball.[44] Torres was then surrounded and held by the arms and rendered immobile and then fatally stabbed. The accused then withdrew and dispersed.[45]

The trial court found the presence of the circumstances of evident premeditation and abuse of superior strength. The elements which must be shown to support a finding of evident premeditation are well-known. The prosecution must prove (1) the time when the offender determined to commit the crime; (2) an act manifestly indicating that the offender had clung to his determination to execute a criminal act; and (3) a sufficient lapse of time between the decision and execution that would permit the malefactor to reflect upon the consequences of his act and allow his conscience to overcome the resolution of his will.[46] In the case bar, there

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[42] See *People v. Alfiler, et al.*, 104 Phil. 410 (1958); *People v. Molleda*, 86 SCRA 667 (1978); *People v. Roncal*, 79 SCRA 509 (1977); *People v. Manlangit*, 73 SCRA 49 (1976); *People v. Pajenado*, 72 O.G. 4759, 69 SCRA 172 (1976); *People v. Page*, 77 SCRA 348 (1977); *People v. Munoz*, 107 SCRA 313 (1981).

[43] *Id.*; TSN, 27 November 1986, p. 5.

[44] *Id.*; TSN, 27 November 1986, p. 11.

[45] Trial Court Decision, *Rollo*, p. 25.

[46] Reyes, *Revised Penal Code*, Vol. I, 1993, p. 382; *People v. Lagarto*, 196 SCRA 611 (1991); *People v. Clamor*, 198 SCRA 642 (1991); *People*

was no showing by the prosecution of the first and the third elements. It can only be surmised that sometime after he was boxed and before the actual stabbing of Ramon Torres, Emmanuel Planta sought and planned his revenge. The interval between the two (2) events was only fifteen (15) minutes; we are unable to say with any confidence that fifteen (15) minutes were enough to allow reflection and the activation and operation of conscience.[47]

The circumstance of abuse of superior strength is present where the accused deliberately employs excessive force, force out of proportion to the means of defense available to the person attacked.[48] We do not consider that this circumstance was shown to exist in the case at bar. Granting that Ramon Torres' attackers numbered between five (5) to eight (8), it does not follow that abuse of superior strength was present here. Ramon Torres was not alone and by himself when he was attacked; Torres was part of a group which comprised at least five (5) persons. It was, in other words, an attack by one group upon another group rather than an assault by a group upon a lone victim. In this context, we do not believe that abuse of superior strength was properly found by the trial court. The fact that some of the accused were armed with a knife and stones does not change the equation, considering that the state of evidence does not permit a clear inference as to the relative physical strength of the two (2) groups.[49]

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v. Pacris, 194 SCRA 654 (1991); *People v. Vigan*, 191 SCRA 643 (1990); *People v. Raguipo*, 188 SCRA 571 (1990).

[47] *People v. Pantoja*, 25 SCRA 468 (1968); *U.S. v. Blanco*, 18 Phil. 206 (1911).

[48] *People v. Cabiling*, 74 SCRA 285 (1976); *People v. Sarabia*, 96 SCRA 714 (1980); *People v. Cabato*, 160 SCRA 98 (1988); *People v. Carpio*, 191 SCRA 108 (1990); *People v. Moka*, 196 SCRA 378 (1991).

[49] *People v. Bustos*, 51 Phil. 385 (1928); *People v. Diokno*, 63 Phil. 601 (1936); *U.S. v. Denela*, 3 Phil. 625 (1904); *People v. Maloloy-on*, 189 SCRA 250 (1990).

Because neither abuse of superior strength nor evident premeditation was shown in the case at bar, and because the trial court did not find (nor even mention) treachery (although alleged in the information), appellants Dichoso and Planta cannot be convicted of murder, but rather of homicide merely, under Article 249 of the Revised Penal Code.

WHEREFORE, for all the foregoing, the decision of the trial court in Criminal Case No. Q-43219 dated 14 September 1988 is hereby *MODIFIED* and judgment is hereby *RENDERED*:

(1) finding the accused Emmanuel Planta and John Dichoso guilty of the crime of homicide under Article 249 of the Revised Penal Code;

(2) sentencing each of them to suffer imprisonment for an indeterminate period the minimum of which shall be ten (10) years and the maximum of which shall be seventeen (17) years and four (4) months; and

(3) ordering Emmanuel Planta and John Dichoso, jointly and severally, to indemnify the heirs of the victim Ramon Torres in the amount of ₱50,000.00, without subsidiary imprisonment in case of insolvency, and to pay the costs.

SO ORDERED.

Bidin, Romero, Melo, and *Vitug, JJ.*, concur.

THIRD DIVISION

[G.R. No. 104209. November 16, 1993]

PHILNABANK EMPLOYEES ASSOCIATION (PEMA), DBP EMPLOYEES UNION (DBPEU), LBP EMPLOYEES ASSOCIATION (LBPEA), ALERT AND CONCERNED EMPLOYEES FOR BETTER SSS (ACCESS), and KAPATIRAN NG MANGGAGAWA SA GSIS (KMG), all under the name and style of KAPATIRAN NG MGA MANGGAGAWA SA GFI (KAMAGFI), *petitioners, vs.* **HON. JESUS P. ESTANISLAO, in his capacity as Secretary of the Department of Finance and HON. RUBEN D. TORRES, in his capacity as Secretary of the Department of Labor and Employment,** *respondents.*

SYLLABUS

1. REMEDIAL LAW; SPECIAL CIVIL ACTIONS; *CERTIORARI*; PROPER REMEDY, NOT A CASE OF. — The respondent department secretaries, in promulgating the questioned rule did so in accordance with the mandate of Republic Act No. 6971. Concededly, in the process, neither did said respondents act in any judicial or quasi-judicial capacity nor did they arrogate unto themselves any such performance of judicial or quasi-judicial prerogative. A petition for *certiorari* is a special civil action that may be invoked only against, a tribunal, board, or officer exercising judicial functions.

2. ID.; ACTIONS; PREMATURE ACTIONS, DECLINED BY THE COURT. — Although not inflexible, we have repeatedly declined on grounds of prematurity, as well as in the interest of good order, a hasty recourse to the courts when administrative avenues are still open.

3. ID.; COURTS; SUPREME COURT; HAS NO ORIGINAL JURISDICTION OVER AN ACTION FOR DECLARATORY RELIEF. — While this case is styled as a petition for *certiorari*, there is, however, no denying the fact that, in essence, it seeks the declaration by the court of the unconstitutionality and

illegality of the questioned rule, thus partaking the nature, in reality, of one for declaratory relief over which this Court has only appellate, not original, jurisdiction.

4. ID.; ID.; ID.; SUPREME COURT IS NOT AN INITIAL EVALUATOR OF FACTS. — The principal issue raised by the petitioners, *i.e.*, whether or not the government financial institutions herein involved out which have not even been impleaded) are embraced by the phrase "government-owned and controlled corporation *performing*, proprietary functions" in the context of Republic Act 6971, is itself not necessarily a mere question of law that, for certain, can totally discard a factual assessment of the respective operations of said institutions and the degree that such operations interrelate, as the case may be, to their governmental or proprietary functions. This Court has said, more than once, that it is not an initial evaluator of facts.

APPEARANCES OF COUNSEL

Alfredo L. Bentulan for petitioners.

Nestor C. Montemor for Philna-Bank Employees' Association.

Salvador C. Bunye, Cristina A. Mortel and *Jaime T. de Veyra* for movants.

The Solicitor General for respondents.

R E S O L U T I O N

VITUG, *J.*:

Assailed in this petition for *certiorari* is a provision of the Supplemental Rules Implementing Republic Act No. 6971 (Productivity Incentives Act of 1990), jointly promulgated by the Secretary of the Department of Finance and the Secretary of the Department of Labor and Employment, excluding from the coverage of said Act the employees of the Philippine National Bank ("PNB"), Development Bank of the Philippines ("DBP"), Land Bank of the Philippines ("LBP"), Social Security System ("SSS") and Government Service and Insurance System ("GSIS").

Parenthetically, certain rank and file employees of the Public Estates Authority filed a motion for intervention to join the petitioners[1] which they later withdrew, nonetheless, asserting that "any resolution in the instant petition would likewise apply" to them.[2]

Republic Act No. 6971 was signed into law on 22 November 1990 by then President Corazon C. Aquino. It took effect on 9 December 1990 (fifteen days after its publication in two newspapers of general circulation).

Section 3 of the law states:

"SEC. 3. *Coverage*. This Act shall apply to all business enterprises with or without existing and duly recognized or certified labor organizations, including government-owned and controlled corporations performing proprietary functions. It shall cover all employees and workers including casual, regular, supervisory and managerial employees."

The same Act empowers the Secretary of Labor and Employment and the Secretary of Finance, "after due notice and hearing," to "jointly promulgate and issue within six (6) months from the effectivity of (the) Act such rules and regulations as are necessary to carry out (its) provisions" (Sec. 6, R.A. 6971).

On 03 June 1991, the then Labor Secretary Ruben D. Torres and Finance Secretary Jesus P. Estanislao promulgated the Rules Implementing Republic Act No. 6971. The Rules took effect on 18 June 1991 following the required publication thereof in a national newspaper of general circulation.

Section 1, Rule II, of the aforesaid Rules provides:

"Section 1. Coverage. These Rules shall apply to:

(a) All business enterprises with or without existing duly recognized or certified labor organizations, including government-owned and controlled corporations performing proprietary functions.

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[1] *Rollo*, p. 123.

[2] *Ibid*., p. 159.

(b) All employees and workers including casual, regular, rank-and-file, supervisory and managerial employees."

Forthwith, petitioner organizations requested their respective employers to constitute and convene a Labor-Management Committee (LMC) to discuss and adopt a Productivity Incentives Program (PIP). In the meantime, productivity bonuses were distributed by the PNB, DBP, LBP, SSS and GSIS.[3]

On 24 December 1991, Secretary Estanislao sent the following memorandum to all heads of government financial institutions (GFIs):

"To : GFI Heads

From : Jesus P. Estanislao

On : Productivity Incentive Award

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1. The President has asked me to remind all the GFI heads about our agreement to desist from making any further payments/moves regarding productivity incentives until such time as DOLE/DOF can issue clarificatory guidelines.

2. In view of the move of SSS, the President has authorized me to indicate that GFIs may have a choice on granting productivity incentives under the new law or the traditional PIA (productivity incentive award), provided the terms and conditions of either choice are exactly the same.

3. She has also instructed me to coordinate with DOLE and the immediate issuance of a possible clarificatory guideline.

(Sgd.) JESUS P. ESTANISLAO"[4]

In accordance with this memorandum, PNB Executive Vice-President Domingo A. Santiago, Jr., sent a letter to petitioner Philnabank Employees Association, through its president Jerry P. Tan, advising the latter that in view of the Estanislao

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[3] Petition, p. 5; *Rollo*, p. 6.

[4] *Rollo*, pp. 37 & 65.

memorandum, PNB was "constrained to wait for the issuance of the said clarificatory guidelines."[5]

Allegedly without due notice and hearing, Secretary Estanislao and Secretary Torres subsequently issued the Supplemental Rules Implementing Republic Act No. 6971, clarifying or amending the previously promulgated rules because "the coverage of GOCCs (government owned and controlled corporations) performing proprietary functions would require harmonization with present definitions, concepts, strategies, policies and thrusts involving the rationalization of the government corporate sector." Paragraph (a), Section 1, Rule II, of the Rules was thereby modified to read, as follows:

> *Coverage*. These Rules shall apply to:
>
> (a) All business enterprises with or without existing duly certified labor organizations, including government-owned and controlled corporations performing proprietary functions which are established solely for business or profit or gain and accordingly excluding those created, maintained or acquired in pursuance of a policy of the state, enunciated in the Constitution or by law, and those whose officers and employees are covered by the Civil Service.
>
> Government-owned and controlled corporations meeting the criteria provided in the immediately preceding paragraph shall be certified to by the Government Corporate Monitoring and Coordinating Committee established by E.O. No. 236 of July 22, 1987." (Italics supplied.)

On 7 January 1992, under the letterhead, "*Kapatiran Ng Manggagawa Sa GFI*" (KAMAGFI), PEMA President Jerry P. Tan sent Secretary Torres and Secretary Estanislao a letter contesting the amendatory rule and giving them forty-eight (48) hours within which "to recall and revoke" the same. He also informed the heads of the two departments that the supplemental rules were creating "serious demoralization(s)" among the officers and employees of the GFIs and that failure to revoke and recall the Supplemental Rules "would mean drastic legal actions and

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[5] *Ibid*., p. 38.

massive concerted activities" on the part of GFI employees.[6] KAMAGFI also addressed an open letter, dated 09 January 1992, of similar tenor, to the President of the Philippines, Secretary Estanislao, Secretary Torres, Senate President Neptali Gonzales, Speaker Ramon Mitra, Jr., Senator Teofisto Guingona, and Congressmen Felicito Payumo and Alberto Veloso.[7] On January 10, 1992, the matter was referred by the Office of the President to Secretary Torres.[8]

On 09 March 1992, the instant petition for *certiorari* was filed.

The petitioners contend that by promulgating the Supplemental Rules, the respondents have "overstepped the bounds of their rule-making authority by amending the coverage of the Act as provided in Section 3 thereof." Arguing that Republic Act No. 6971 has been intended by the lawmakers to cover all government-owned and controlled corporations which are performing proprietary functions, without qualifications, the petitioners assert that the respondents have "arrogated upon themselves the power not only to make law, but also to unmake it by adopting rules inconsistent with and contrary to the clear intention and the end sought to be attained by the Act."[9] The petitioners conclude that the respondents have thus gravely abused their discretion, amounting to lack of jurisdiction.

The respondents, through the Solicitor General, contest the herein petition as being both an improper remedy, considering that the respondents "did not adjudicate the rights and obligations of the GFI employees," and precipitate, since the petitioners' recourse should have first been administratively pursued with the Civil Service Commission."[10]

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[6] *Ibid.*, p. 41.

[7] *Ibid.*, p. 42.

[8] *Ibid.*, p. 43.

[9] Petition, p. 12; *Rollo*, p. 13.

[10] Comment, p. 13; *Rollo*, p. 103.

The instant petition for *certiorari* cannot be granted.

Firstly, the respondent department secretaries, in promulgating the questioned rule did so in accordance with the mandate of Republic Act No. 6971. Concededly, in the process, neither did said respondents act in any *judicial* or *quasi-judicial capacity* nor did they arrogate unto themselves any such performance of judicial or quasi-judicial prerogative. A petition for *certiorari* is a special civil action that may be invoked only against a tribunal, board, or officer exercising judicial functions. Section 1, Rule 65, of the Revised Rules of Court is explicit on this matter; *viz*:

> SECTION 1. Petition for *certiorari*. When any tribunal, board, or officer exercising judicial functions, has acted without or in excess of its or his jurisdiction, or with grave abuse of discretion and there is no appeal, nor any plain, speedy, and adequate remedy in the ordinary course of law, a person aggrieved thereby may file a verified petition in the proper court alleging the facts with certainty and praying that judgment be rendered annulling or modifying the proceedings, as the law requires, of such tribunal, board or officer.

Secondly, although not inflexible, we have repeatedly declined on grounds of prematurity, as well as in the interest of good order, a hasty recourse to the courts when administrative avenues are still open.[11]

Thirdly, while this case is styled as a petition for *certiorari*, there is, however, no denying the fact that, in essence, it seeks the declaration by the court of the unconstitutionality and illegality of the questioned rule, thus partaking the nature, in reality, of one for declaratory relief over which this Court has only appellate, not original, jurisdiction.

Fourthly, even in cases, where this Court is conferred with primary jurisdiction, starting with the case of *Santiago vs. Vasquez et al.*,[12] we have stressed, thus —

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[11] *Cruz vs. del Rosario*, 9 SCRA 755; *Llarena vs. Hon. Lacson*, 108 Phil. 510; *Chua Huat, et al. vs. Hon. Bagatsing, et al.*, 199 SCRA 1.

[12] 217 SCRA 633.

"x x x We discern in the proceedings in this case a propensity on the part of petitioner, and, for that matter, the same may be said of a number of litigants who initiate recourses before us, to disregard the hierarchy of courts in our judicial system by seeking relief directly from this Court despite the fact that the same is available in the lower courts in the exercise of their original or concurrent jurisdiction, or is even mandated by law to be sought therein. This practice must be stopped, not only because of the imposition upon the precious time of this Court but also because of the inevitable and resultant delay, intended or otherwise, in the adjudication of the case which often has to be remanded or referred to the lower court as the proper forum under the rules of procedure, or as better equipped to resolve the issues since this Court is not a trier of facts. We, therefore, reiterate the judicial policy that this Court will not entertain direct resort to it unless the redress desired cannot be obtained in the appropriate courts or where exceptional and compelling circumstances justify availment of a remedy within and calling for the exercise of our primary jurisdiction."

Finally, the principal issue raised by the petitioners, *i.e.*, whether or not the government financial institutions herein involved (but which have not even been impleaded) are embraced by the phrase "government-owned and controlled corporation *performing* proprietary functions" in the context of Republic Act 6971, is itself not necessarily a mere question of law that, for certain, can totally discard a factual assessment of the respective operations of said institutions and the degree that such operations interrelate, as the case may be, to their governmental or proprietary functions. This Court has said, more than once, that it is not an initial evaluator of facts.

WHEREFORE, the instant petition for *certiorari* is *DISMISSED*. No costs.

SO ORDERED.

Feliciano, Bidin, Romero, and *Melo, JJ.*, concur.

FIRST DIVISION

[G.R. No. 106446. November 16, 1993]

NATIONAL MINES AND ALLIED WORKERS UNION (NAMAWU-MIF), *petitioner, vs.* **SECRETARY OF LABOR, FEDERATION OF FREE WORKERS-SAMAHANG MANGGAGAWA SA QUALITY CONTAINER CORPORATION and QUALITY CONTAINER CORPORATION,** *respondents.*

SYLLABUS

1. **LABOR AND SOCIAL LEGISLATION; LABOR RELATIONS; CERTIFICATION ELECTION; UNVERIFIED PETITION FOR CERTIFICATION ELECTION IS JUST A FORMAL DEFECT. —** Verification of a pleading is a formal, not jurisdictional requisite. Even if verification is lacking and the pleading is formally, defective, the courts may dispense with the requirement in the interest of justice and order the correction of the pleading accordingly. Generally, technical and rigid rules of procedure are not binding in labor cases; and this rule is specifically applied in certification election proceedings, which are non-litigious but merely investigative non-adversarial in character. Nevertheless, whatever formal defects existed in the first petition were cured and corrected in the second petition for certification election.

2. **ID.; ID.; ID.; REQUIREMENTS FOR FILING A PETITION FOR CERTIFICATION ELECTION. —** Granting that 36 signatures were falsified and that 13 were disowned, this leaves 92 undisputed signatures which is definitely more than 75%, 25% of the total number of company employees required by law to support a petition for certification election. The disclaimer by 13 employees of their respective signatures covers only their own personal participation and cannot in any way be extended to include the rest of those who did not question the same. Moreover, the fact that the list of signatures is undated does not necessarily mean that the signatures were obtained prior to the 60-day freedom period before the expiration of the existing collective bargaining agreement. What is important is that the petition for certification election must be filed during the

freedom period and that the 25% requirement of supporting signatures be met upon the filing thereof. These requirements have been complied by respondent FFWSMQCC in their first and second petitions, and it was thus incumbent upon the Med-Arbiter to order a certification election to be conducted among the rank and file employees of the company.

3. ID.; ID.; ID.; NATURE OF CERTIFICATION ELECTION. — A certification election is the most effective and expeditious way to determine which labor organization can truly represent the working force in the appropriate bargaining unit of the company.

APPEARANCES OF COUNSEL

Padilla & Associates Law Office for petitioner.
Gancayco Law Offices for Quality Container Corporation.
FFW Legal Center for private respondent union.
The Solicitor General for public respondent.

D E C I S I O N

QUIASON, *J.*:

This is a petition for *certiorari* and prohibition under Rule 65 of the Revised Rules of Court assailing the Decision dated August 4, 1992 of the Secretary of Labor in Case No. OS-A-4-102-92. In said decision, the Secretary of Labor affirmed the decision of the Med-Arbiter in Cases Nos. NCR-OD-M-91-09-106 and NCR-OD-M-91-10-131, which granted the petition of respondent Federation of Free Workers-Samahang Manggagawa sa Quality Container Corporation (FFW-SMQCC), for a certification election to be conducted among the rank and file employees of respondent Quality Container Corporation (QCC).

Petitioner and respondent FFW-SMQCC are local chapters of labor federations duly registered with the Department of Labor and Employment (DOLE). Petitioner is the exclusive bargaining agent of all the rank and file workers of respondent QCC, a domestic corporation engaged in the metal industry.

On September 27, 1991, 38 days before the expiration of the Collective Bargaining Agreement between petitioner and respondent QCC, respondent FFW-SMQCC through Reynito de Pedro filed with the DOLE Industrial Relations Division, National Capital Region (NCR-OD-M-91-09-106) a petition for certification election. The petition was accompanied by a list of signatures of company employees, who signified their consent to a certification election among the rank and file employees of QCC (*Rollo*, pp. 79-83).

Petitioner herein moved to dismiss the petition of respondent FFW-SMQCC on the grounds that: (a) the required consent to the certification election of at least 25% of the rank and file employees had not been met; (b) the petition was not verified as required by law; and (c) Reynito de Pedro, who was also the president of petitioner, had no personality to file the petition on behalf of FFW-SMQCC.

On October 30, 1991, respondent FFW-SMQCC, filed a second petition for certification election, this time signed and verified by De Pedro (NCR-OD-91-10-131).

On January 24, 1992, the Med-Arbiter granted the petition for certification election of respondent FFW-SMQCC in a decision, the dispositive portion of which, reads as follows:

"WHEREFORE, premises considered, let a certification election be conducted among the rank-and-file employees of Quality Container Corporation within twenty (20) days from receipt hereof with the usual pre-election conference of the parties to thresh out the mechanics and other details of the election. The payroll of the company three (3) months prior to the filing of the petition shall be used as the basis in determining the list of eligible voters.

"The choices are:

a) Federation of Free Workers (FFW)-Samahang Manggagawa sa Quality Container Corporation Chapter;

b) National Mines and Allied Workers' Union (NAMAWU); and

c) No union" (*Rollo*, pp. 24-25).

Petitioner appealed this decision to the Secretary of Labor (OS-A-4-102-92). On June 17, 1992, the Secretary of Labor rendered a decision, denying the appeal for lack of merit and affirming the order of the Med-Arbiter.

Hence, this petition.

Petitioner contends that the assailed decision was issued in grave abuse of discretion for the following reasons: (1) that Reynito de Pedro is not the authorized representative of respondent FFW-SMQCC, he being the duly elected president of petitioner; (2) that the filing of the second petition for certification election did not cure, much less correct, the defects in the first petition; and (3) that in the first and second petitions, the signatures of the 141 employees, who signified their support thereto, were either forged or pre-maturely obtained prior to the 60-day period before the expiration of the existing collective bargaining agreement.

The petition is not impressed with merit.

First, although Reynito de Pedro was the duly elected president of petitioner, he had disaffiliated himself therefrom and joined respondent FFW-SMQCC before the petition for certification election was filed on September 27, 1991. The eventual dismissal of De Pedro from the company is of no moment, considering that the petition for certification election was filed before his dismissal on August 22, 1992.

Second, verification of a pleading is a formal, not jurisdictional requisite (*Buenaventura v. Uy*, 149 SCRA 22 [1987]; *In the Matter of the Change of Name of Antonina B. Oshita*, 19 SCRA 700 [1967]). Even if verification is lacking and the pleading is formally defective, the courts may dispense with the requirement in the interest of justice and order the correction of the pleading accordingly. Generally, technical and rigid rules of procedure are not binding in labor cases; and this rule is specifically applied in certification election proceedings, which are non-litigious but merely investigative and non-adversarial in character (*Associated Labor Unions v. Ferrer-Calleja*, 179 SCRA 127 [1989]; *Tanduay Distillery Labor Union v. NLRC*, 149 SCRA

470 [1987]). Nevertheless, whatever formal defects existed in the first petition were cured and corrected in the second petition for certification election.

Third, attached to the original petition for certification election was a list of 141 supporting signatures out of the 300 employees belonging to the appropriate bargaining unit to be represented by respondent FFW-SMQCC. Respondent QCC sought to delete from the list some 36 signatures which were allegedly forged and falsified. Petitioner, likewise, submitted a joint affidavit of 13 employees, disclaiming the validity of the signatures therein.

Granting that 36 signatures were falsified and that 13 were disowned, this leaves 92 undisputed signatures which is definitely more than 75- *i.e.*, 25% of the total number of company employees required by law to support a petition for certification election. The disclaimer by 13 employees of their respective signatures covers only their own personal participation and cannot in any way be extended to include the rest of those who did not question the same.

Moreover, the fact that the list of signatures is undated does not necessarily mean that the signatures were obtained prior to the 60-day freedom period before the expiration of the existing collective bargaining agreement. What is important is that the petition for certification election must be filed during the freedom period and that the 25% requirement of supporting signatures be met upon the filing thereof. These requirements have been complied by respondent FFW-SMQCC in their first and second petitions, and it was thus incumbent upon the Med-Arbiter to order a certification election to be conducted among the rank and file employees of the company (Labor Code of the Philippines, Art. 256; *Warren Mfg. Workers' Union v. Bureau of Labor Relations,* 159 SCRA 387 [1988]; *Samahang Manggagawa ng Pacific Mills v. Noriel,* 134 SCRA 152 [1985]).

If indeed there are employees in the bargaining unit who refuse to be represented by respondent FFW-SMQCC, with all the more reason should a certification election be held where the employees themselves can freely and voluntarily express by secret ballot their choice of bargaining representative. A

certification election is the most effective and expeditious way to determine which labor organization can truly represent the working force in the appropriate bargaining unit of the company (*Central Negros Electric Cooperative, Inc. v. Sec. of Labor,* 201 SCRA 584 [1991]; *National Association of Free Trade Unions v. Bureau of Labor Relations*, 164 SCRA 12 [1988]).

We find no grave abuse of discretion on the part of the Secretary of Labor.

WHEREFORE, the petition is *DISMISSED.*

SO ORDERED.

Cruz (Chairman) and *Davide, Jr., JJ.*, concur.

Bellosillo, J., on leave.

FIRST DIVISION

[G.R. No. 106830. November 16, 1993]

R. TRANSPORT CORPORATION, *petitioner, vs.* **HON. BIENVENIDO E. LAGUESMA, in his capacity as Undersecretary of the Department of Labor and Employment, CHRISTIAN LABOR ORGANIZATION OF THE PHILIPPINES (CLOP), NATIONAL FEDERATION OF LABOR UNIONS (NAFLU), and ASSOCIATED LABOR UNIONS (ALU-TUCP),** *respondents.*

SYLLABUS

1. REMEDIAL LAW; CIVIL PROCEDURE; *RES JUDICATA*; REQUISITES; NOT PRESENT IN CASE AT BAR. — Before the principle of *res judicata* can be operative, the following

requisites must be compresent: a) the former judgment or order must be final; b) it must be a judgment or order on the merits; c) it must have been rendered by a court having jurisdiction over the subject-matter and the parties; and d) there must be, between the first and second actions, identity of parties. In the case at bench, it cannot be said that the parties in the first and second actions were identical. The first action was dismissed by the Med-Arbiter because it excluded parties essential to the bargaining unit such as inspectors, inspectresses, dispatchers and washer boys. The second petition included all the employees who were excluded in the first petition. Therefore, the Med-Arbiter was correct when he gave due course to the second petition for certification election after respondent CLOP corrected its mistake.

2. LABOR AND SOCIAL LEGISLATION; "FINAL CERTIFICATION ELECTION RESULT," CONSTRUED; CASE AT BAR. — The phrase "final certification election result" means that there was an actual conduct of election *i.e.*, ballots were cast and there was a counting of votes. In this case, there was no certification election conducted precisely because the first petition was dismissed, on the ground of a defective petition which did not include all the employees who should be properly included in the collective bargaining unit.

3. ID.; CERTIFICATION ELECTION; EMPLOYEES ELIGIBLE TO VOTE. — Devoid of merit is petitioner's contention that the employment status of the members of respondent CLOP who joined the strike must first be resolved before a certification election can be conducted. "Employees who have been improperly laid off but who have not abandoned their right to or re-employment, are eligible to vote in certification elections. Thus, and to repeat, if the dismissal is under question, as in the case now at bar whereby a case of illegal dismissal and/or unfair labor practice was filed, the employees concerned could still qualify to vote in the elections." Therefore, the employees of petitioner who participated in the strike, legally remain as such, until either the motion to declare their employment status legally terminated or their complaint for illegal dismissal is resolved by the NLRC. It should be noted that it is petitioner, the employer, which has offered the most tenacious resistance to the holding of a certification election.

This must not be so for the choice of a collective bargaining agent is the sole concern of the employees. The employer has no right to interfere in the election and is merely regarded as a bystander.

4. REMEDIAL LAW; "FORUM-SHOPPING"; ESTABLISHED IN CASE AT BAR. — Petitioner's Comment and Objection to the Order dated October 29, 1992 with Urgent Motion to Dismiss the Petition for Certification Election is still pending with the Undersecretary of Labor. The resort to judicial action by petitioner is premature. Hence, it is also guilty of forum-shopping in pursuing the same cause of action involving the same issue, parties and subject matter before two different *fora*.

APPEARANCES OF COUNSEL

Gaspar V. Tagalo for petitioner.
Jose Barrios for intervenor ALU-TUCP.
Villy Cadiz for National Federation of Labor Unions.

D E C I S I O N

QUIASON, *J.*:

This is a petition for *certiorari* under Rule 65 of the Rules of Court which seeks to set aside the Resolutions of the Undersecretary of the Department of Labor and Employment (DOLE), dated July 22, 1992, affirming the order of the Med-Arbiter calling for the conduct of the certification election, and August 25, 1992, denying petitioner's motion for reconsideration.

On January 4, 1991, respondent Christian Labor Organization of the Philippines (CLOP), filed with the Med-Arbitration Unit of the DOLE a petition for certification election among the rank and file employees of the petitioner (NCR-OD-M-91-01-002).

On April 8, 1991, Med-Arbiter A. Dizon dismissed the petition on the ground that the bargaining unit sought to be represented by respondent CLOP did not include all the eligible employees of petitioner but only the drivers, conductors, and conductresses

to the exclusion of the inspectors, inspectresses, dispatchers, mechanics and washer boys.

On May 10, 1991, respondent CLOP rectified its mistake and filed a second petition for certification election, which included all the rank and file employees of the company, who hold non-managerial and non-supervisorial positions.

Petitioner filed a motion to dismiss the second petition and contended that the dismissal of the first petition constituted *res judicata*. Petitioner argued that respondent CLOP should have interposed an appeal to the dismissal of the first petition and its failure to do so barred it from filing another petition for certification election.

On July 3, 1991, Med-Arbiter R. Parungo rendered a decision, which ordered that a certification election among the regular rank and file workers of petitioner company be conducted (*Rollo*, pp. 87-91).

On October 16, 1991, the Associated Labor Unions (ALU-TUCP) filed a motion for intervention (NCR OD-M-91-01-002) and alleged that it has members in the proposed bargaining unit. Subsequently, the National Federation of Labor Unions (NAFLU) filed a separate petition for certification election (NCR-OD-M-91-10-058) and a motion to consolidate related cases to avoid confusion.

Dissatisfied with the Decision dated July 3, 1991 rendered by Med-Arbiter R. Parungo, petitioner appealed to the DOLE Secretary, who, through Undersecretary Bienvenido E. Laguesma, affirmed the order of the Med-Arbiter in its Resolution dated July 22, 1992 calling for the conduct of the certification election (*Rollo*, pp. 25-28). The Resolution, in pertinent part, reads as follows:

x x x x x x x x x

"The defense of *res judicata* is not obtaining in the present petition for certification election. It is settled that for *res judicata* to apply there must be a final judgment on the merits on matters put in issue. *In the instant case, it could not be said that there is a final judgment*

on the merits of the petition simply because the composition of the present proposed bargaining unit is different from that in the first petition. Moreover, there are now other parties involved, and therefore, it would not be correct to say that the parties in the said two cases are identical.

x x x x x x x x x

With regard however, to the question on propriety of consolidation, there is merit in the argument of respondent-appellant on the need to consolidate the separate petitions for certification election because they involve the same bargaining unit. Case No. NCR-OD-M-91-10-058 should be consolidated with that of Case No. NCR-OD-M-91-05-062, where the petition of NAFLU should be treated as an intervention and resolved by the Med-Arbiter together with the intervention of ALU-TUCP.

PREMISES CONSIDERED, the Order of the Med-Arbiter calling for the conduct of the certification election is hereby affirmed subject to the resolution of the Med-Arbiter of the motions for intervention aforementioned" (*Rollo*, pp. 27-28; italics supplied).

On July 31, 1992, petitioner filed a Motion for Reconsideration, again stressing the principle of *res judicata*. Petitioner further argued that the second petition for a certification election by respondent CLOP, NAFLU and ALU-TUCP were barred at least for a period of one year from the time the first petition of CLOP was dismissed pursuant to Section 3, Rule V, Book V of the Omnibus Rules Implementing the Labor Code as amended.

On August 25, 1991, Undersecretary Laguesma denied the motion for reconsideration (*Rollo*, pp. 32-34).

On September 3, 1992, petitioner filed a Motion to Suspend Proceedings Based on Prejudicial Questions as an *Addendum* to the Motion for Reconsideration filed on July 31, 1992. Petitioner argued that the present case must be indefinitely suspended until the following cases are resolved by the NLRC and the Supreme Court: a) NLRC-NCR Case No. 00-08-04708-91 entitled "*R. Transport Corporation v. Jose S. Torregaza, et al.*, wherein Labor Arbiter de Castro declared the strike staged by respondent CLOP illegal and ordered the strikers to pay

petitioner the amount of ₱10,000.00 as exemplary damages; b) NLRC-NCR Case No. 06-03415092 filed by respondent CLOP and its members for illegal dismissal; and c) NLRC-NCR Case No. 00-08-04389-92 filed by respondent CLOP in behalf of its affected members for illegal dismissal (*Rollo*, pp. 139-145).

On September 29, 1992, Undersecretary Laguesma in a resolution denied the motion to suspend the conduct of the certification election. The pertinent portion of said resolution reads as follows:

"The pendency of NLRC-NCR Cases Nos. 00-08-04708-91, 06-03415092 and 00-08-04389-92 before the NLRC is not a valid ground for the suspension of the already stalled petition for certification election which must be resolved with dispatch.

This must be so, *because the employees subject of the pending cases before the NLRC legally remain as employees of respondent until the motion to declare them as having lost their employment status by reason of the illegal strike or their complaint for illegal dismissal is finally resolved*" (*Rollo*, pp. 181-182; italics supplied).

On October 14, 1992, petitioner filed a motion for reconsideration of the Resolution dated September 29, 1992 which was subsequently denied by Undersecretary Laguesma on October 29, 1992 (*Rollo*, pp. 29-31).

Petitioner filed a Comment and Objection to the Order dated October 29, 1992 with Urgent Motion to Dismiss the Petition for Certification Election. Without waiting for the resolution of the motion to dismiss, petitioner resorted to this Court by way of the instant special civil action.

This petition is without merit.

Before the principle of *res judicata* can be operative, the following requisites must be compresent: a) the former judgment or order must be final; b) it must be a judgment or order on the merits; c) it must have been rendered by a court having jurisdiction over the subject-matter and the parties; and d) there must be, between the first and second actions, identity of parties (*Nabus v. Court of Appeals*, 193 SCRA 732 [1991]).

In the case at bench, it cannot be said that the parties in the first and second actions were identical. The first action was dismissed by the Med-Arbiter because it excluded parties essential to the bargaining unit such as inspectors, inspectresses, dispatchers and washer boys. The second petition included all the employees who were excluded in the first petition. Therefore, the Med-Arbiter was correct when he gave due course to the second petition for certification election after respondent CLOP corrected its mistake.

Likewise untenable is petitioner's contention that the second petition for certification election should have been filed after one year from the dismissal of the first petition for certification election under Section 3, Rule V, Book V of the Omnibus Rules Implementing the Labor Code as amended. Said section provides as follows:

"When to file- In the absence of collective bargaining agreement duly registered in accordance with Article 231 of the Code, a petition for certification election may be filed any time. However, *no certification election may be held within one year from the date of issuance of a final certification election result*" (italics supplied).

Apparently, petitioner misread the above-mentioned provision of law. The phrase "final certification election result" means that there was an actual conduct of election *i.e.*, ballots were cast and there was a counting of votes. In this case, there was no certification election conducted precisely because the first petition was dismissed, on the ground of a defective petition which did not include all the employees who should be properly included in the collective bargaining unit.

Devoid of merit is petitioner's contention that the employment status of the members of respondent CLOP who joined the strike must first be resolved before a certification election can be conducted.

As held in the case of *Philippine Fruits and Vegetables Industries, Inc. v. Torres*, 211 SCRA 95 (1992):

"At any rate, it is now well-settled that employees who have been improperly laid off but who have a present, unabandoned right to or expectation of re-employment, are eligible to vote in certification elections (Rothenberg on Labor Relations, p. 548). Thus, and to repeat, if the dismissal is under question, as in the case now at bar whereby a case of illegal dismissal and/or unfair labor practice was filed, the employees concerned could still qualify to vote in the elections."

Therefore, the employees of petitioner who participated in the strike, legally remain as such, until either the motion to declare their employment status legally terminated or their complaint for illegal dismissal is resolved by the NLRC.

It should be noted that it is petitioner, the employer, which has offered the most tenacious resistance to the holding of a certification election. This must not be so for the choice of a collective bargaining agent is the sole concern of the employees. The employer has no right to interfere in the election and is merely regarded as a bystander (*Divine Word University of Tacloban v. Secretary of Labor and Employment*, 213 SCRA 759 [1992]).

Finally, petitioner's Comment and Objection to the Order dated October 29, 1992 with Urgent Motion to Dismiss the Petition for Certification Election is still pending with the Undersecretary of Labor. The resort to judicial action by petitioner is premature. Hence, it is also guilty of forum-shopping in pursuing the same cause of action involving the same issue, parties and subject matter before two different *fora*.

WHEREFORE, the Court Resolved to *DISMISS* the petition.

SO ORDERED.

Cruz (Chairman) and *Davide, Jr., JJ.*, concur.

Bellosillo, J., on leave.

THIRD DIVISION

[G.R. No. 97962. November 17, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **SALVADOR BALIGOD, MACARIO MALAGYAB *alias* Baliling and Ten (10) John Does,** *accused.* **MACARIO MALAGYAB *alias* Baliling,** *appellant.*

SYLLABUS

1. **REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; NOT AFFECTED BY MINOR INCONSISTENCIES. —** Appellant assails the testimony of prosecution witnesses Mildred Narcisa and George Narcisa that appellant was one of the 12 armed men who ransacked their house and killed their father Federico Narcisa on the ground that their testimony as to the clothes he (appellant) was wearing at the time of the incident is conflicting. Mildred Narcisa testified that appellant was wearing a long-sleeve shirt and maong pants while George Narcisa testified that appellant was wearing a checkered short-sleeve shirt with maong pants. This inconsistency is a minor matter which does not militate against the veracity of Mildred Narcisa and George Narcisa. Inconsistencies on minor details do not indicate prevarication and will not adversely affect the credibility of witnesses.

2. **ID.; ID.; IDENTIFICATION OF ACCUSED BY THE SOUND OF HIS VOICE, SUFFICIENT IN CASE AT BAR. —** Identification by the sound of the voice of the person identified is sufficient and acceptable means of identification where it is established that the witness and the accused had known each other personally and closely for a number of years. It is not disputed that Mildred had known appellant since 1977, or ten years prior to the assault, when Mildred regularly took and rode appellant's Ford Fiera to and from school for a number of years. On these occasions, appellant used to engage Mildred in conversation, exchanging jokes with her and his other passengers. Mildred entertained no doubts whatsoever as to the identity of appellant. Immediately after the incident she told her brother that one of the masked men was appellant.

When she went to the PC barracks, and conversed with appellant and heard his voice, their conversation bolstered her conclusion that appellant was one of the masked men.

3. ID.; ID.; CREDIBILITY OF WITNESSES; FAILURE TO IMMEDIATELY DISCLOSE IDENTITY OF ACCUSED DOES NOT IMPAIR CREDIBILITY THEREOF. — Mildred's failure to immediately disclose to the authorities that one of the masked men was accused-appellant does not detract from the veracity of her testimony. The armed men who killed her father were vicious killers and she was obviously fearful that to identify appellant would alert the others who might cause her harm. Delay or vacillation in making an accusation does not impair the credibility of the witness as such delay is satisfactorily explained. Mildred's failure to immediately reveal to the authorities the identity of appellant is fully justified under the circumstance of the case. In one case, a delay of thirty-five days before the victim reported the sexual assault upon her was not considered an unreasonable delay. Tardiness in making an accusation due to fear of reprisal does not impair the credibility of a witness. Anyway, soon after hearing over the radio that certain members of the "*Kurakot*" gang had been apprehended and that possible victims were requested to identify the malefactors, when thereby her fear of reprisal had been dispelled, Mildred went to the PC barracks and identified appellant as one of the robbers.

4. ID.; ID.; ALIBI; CANNOT PREVAIL OVER POSITIVE IDENTIFICATION OF ACCUSED. — In the face of the positive identification of accused-appellant by Mildred, the defense of alibi put forth by appellant cannot prevail.

5. ID.; ID.; CREDIBILITY OF WITNESSES; FINDINGS OF FACT OF TRIAL COURT, RESPECTED IN CASE AT BAR. — This Court has consistently hewed to the rule that findings of fact of the judge who tried the case and heard the witnesses should not be disturbed on appeal, unless there are substantial facts or circumstances, which if properly considered, might affect the result of the case. A painstaking search of the record fails to unearth the presence of any fact or circumstance of such weight and significance which would sufficiently negate the correctness of the findings of fact of the trial court.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Public Attorney's Office for accused-appellant.

D E C I S I O N

MELO, *J.*:

Salvador Baligod, Macario Malagyab *alias* Baliling, and ten other persons whose identities and whereabouts are unknown were charged with the crime of robbery with homicide in Criminal Case No. 17-87 of the Regional Trial Court of the Second Judicial Region stationed in Tabuk, Kalinga-Apayao in an Information which pertinently alleged:

That on or about January 14, 1987, at *Barangay* Cawagayan, Pinukpuk, Kalinga-Apayao and within the jurisdiction of this Honorable Court the above-named accused, conspiring and confederating together and helping one another, with ten (10) others whose identities and whereabouts are still unknown, did then and there wilfully, unlawfully and feloniously and by means of force and violence take and with intent of gain and against the consent of the owner took and carried away the following properties to wit:

Adidas shoes worth ₱380.00

2 Maong pants worth ₱300.00 and

Five Thousand One Hundred Pesos ₱5,100.00

or a total of ₱5,780.00, belonging to Federico Narcisa to the damage and prejudice of the owner in the aforesaid amount; that on the occasion of the said Robbery and for the purpose of enabling them to take, steal and carry away the articles above-mentioned, herein accused, in pursuance of their conspiracy did then and there wilfully, unlawfully and feloniously and with evident premeditation and taking advantage of their superior number and strength and with intent to kill, sho[o]t Federico Narcisa with different kinds of unlicensed firearms causing his instantaneous death; and on the same occasion of the said robbery with homicide, the same accused did then and there wilfully, unlawfully and feloniously and with evident premeditation and with intent to kill sho[o]t George Narcisa, a son

of Federico, inflicting gunshot wounds upon the right side of his stomach and right upper arm, which ordinarily would cause the death of said George Narcisa, thus performing all the acts of execution which should have produced the crime of robbery with homicide as a consequence, but nevertheless did not produce it by reason of causes independent of the accused's will, that is by the timely and able medical assistance rendered to said George Narcisa which prevented his death.

The crime is aggravated by evident premeditation abuse of superior strength, treachery and employment of craft. (pp. 5-6, *Rollo*)

Both accused Baligod and Malagyab pleaded not guilty and after trial, the court *a quo*, on October 22, 1990, rendered judgment, the dispositive portion of which reads as follows:

WHEREFORE, judgment is hereby rendered finding the accused SALVADOR BALIGOD and MACARIO MALAGYAB *alias* BALILING guilty beyond reasonable doubt as principals of the crime of ROBBERY WITH HOMICIDE AND FRUSTRATED HOMICIDE under Article 294, par. 1, Revised Penal Code, sentencing each of the accused to suffer the penalty of *RECLUSION PERPETUA* with the accessory penalties provided for by law, and to indemnify the heirs of Federico Narcisa jointly and severally the sum of ₱30,000.00 without subsidiary imprisonment in case of insolvency pursuant to Article 39 Revised Penal Code as amended by RA 5465.

Both accused are further ordered to pay the amount of ₱5,780.00 to the heirs of Federico Narcisa which is the cash and the value of the personal properties stolen by the said accused.

The detention of the accused starting from August 24, 1987 up to the present shall be deducted from the service of their sentence in accordance with Article 29, Revised Penal Code as amended by RA 6127. (pp. 50-51, *Rollo*)

Both accused appealed. However, accused Salvador Baligod later filed a motion withdrawing his appeal which this Court granted on November 25, 1992 (pp. 69 and 99-A, *Rollo*). Thus, only the appeal of Macario Malagyab remains to be disposed of. Said appellant simply argues in his single assigned error that the prosecution failed to prove guilt beyond reasonable doubt.

The summary by the Office of the Solicitor General of the background facts of the case is supported by the evidentiary record, and for this reason, the same is hereby adopted, to wit:

In the evening of January 13, 1987, George Narcisa slept in the house of his cousin Antonio Narcisa, which is about two hundred (200) meters from his own house in Cawagayan, Pinukpuk, Kalinga-Apayao (TSN, November 14, 1987, p. 37).

The following morning at around 6:15 A.M., George was roused from sleep by someone kicking him and he saw a man, whom he later identified as Salvador Baligod, and a companion pointing their guns at his face (TSN, November 14, 1987, pp. 37-38). Salvador Baligod had an Armalite Rifle while his companion, whom George Narcisa did not recognize, had a .45 caliber pistol (TSN, November 14, 1987, pp. 38-39). The two had ten (10) other companions all of whom were armed (TSN, November 14, 1987, pp. 39, 51). Some of the men wore masks (TSN, November 14, 1987, p. 51).

Salvador told George "We will go to your house" (TSN, November 14, 1987, p. 39). George and his cousin Antonio Narcisa were taken by Salvador and his companions to George Narcisa's house (TSN, November 14, 1987, p. 39). Eight (8) men went ahead while the remaining four walked behind George (TSN, November 14, 1987, p. 55).

About twenty (20) meters from the house, Salvador ordered George to call out his father (TSN, November 14, 1987, p. 40). George called for his father shouting "*Papa*, *Papa*" (TSN, November 14, 1987, pp. 40, 56).

Inside the house, George's sister Mildred and his father Federico were having a cup of coffee when they heard George shouting "*Papa*, *Papa*" (TSN, October 15, 1987, p. 4). As soon as Federico Narcisa came out of the house, Salvador shouted "assault!" (TSN, November 14, 1987, p. 40) and Salvador's companions started shooting at Federico who died on the spot due to multiple gunshot wounds (TSN, November 14, 1987, p. 40; Exhibit "A" and "A-1"). The armed men then turned their guns at George and shot him hitting him in the right side of his body (TSN, November 14, 1987, p. 41). One bullet entered the back side of the right arm and exited in the front part (TSN, November 14, 1987, p. 41). Another hit George in the hip and a third hit him in the shoulder below the clavicle (TSN, November 14, 1987, p. 41).

Immediately after Mildred heard the gunshots, three (3) armed men entered their house and pointed their guns at Mildred (TSN, October 15, 1987, p. 5). They took Mildred out to the porch and a fourth man who was wearing a mask that showed only his eyes and mouth came and guarded her (TSN, October 15, 1987, pp. 5-8). The three men went back inside the house and ransacked it (TSN, October 15, 1987, p. 15). They took cash totalling five thousand one hundred pesos (₱5,100.00), a pair of "adidas" shoes belonging to her father, and two pairs of maong pants (TSN, October 15, 1987, pp. 14, 16). The masked man guarding Mildred at the porch talked to her and said "Why is it that you are still here. Why did you not transfer you should have built your house near the road, you see what is happening now" (TSN, October 15, 1987, p. 8). Mildred recognized the masked man as appellant Macario Malagyab whom she had known since 1977 when, as a jeepney driver, appellant used to fetch her and George, then in high school, every Friday afternoon from school and take her back every Sunday afternoon to the Sta. Theresita Dormitory (TSN, October 15, 1987 pp. 5-8). Appellant used to talk and joke a lot with his passengers (TSN, October 15, 1987, p. 8).

Another masked man came saying "*Bakit ayaw buksan yong baril*?" (TSN, October 15, 1987, pp. 9, 10). Mildred answered "who told you that we have a gun (TSN, October 15, 1987, p. 9)." Whereupon the second masked man tried to lunge at her but the appellant prevented him saying "Don't do that because she's a girl she is a woman" (TSN, October 15, 1987, p. 9).

George was lying down on the ground after he was shot when he heard the assailants decide to finish him off (TSN, November 14, 1987, p. 42). Upon hearing this, George decided to fight back. He immediately got up and grabbed a round piece of wood to hit Baligod who stepped backwards about ten (10) meters to avoid being hit. Baligod tripped and fell down whereupon George threw the piece of wood at Baligod hitting the latter on the left shoulder (TSN, November 14, 1987, pp. 42, 64-65). He ran inside their house, which was only twenty (20) meters away, just as he heard the sound of gunshots behind him (TSN, November 14, 1987, p. 43).

His sister Mildred was at the porch (TSN, November 14, 1987, p. 43) and inside their house George found that their belongings had been ransacked and topsy-turvey (TSN, November 14, 1987, p. 42). George grabbed a *bolo* and went out again and those who were

chasing him stepped back upon seeing him (TSN, November 14, 1987, p. 43). They retreated while firing at George but they missed (TSN, November 14, 1987, p. 44). George chased the attackers who were shooting as they retreated but about fifty meters from the house he became dizzy and collapsed (TSN, November 14, 1987, p. 44). He regained consciousness only at the hospital.

Antonio Narcisa was also hit as a result of the gunfire, sustaining two gunshot wounds, one in the arm and another on his chest.

After the attackers had fled, George was taken to the Provincial Hospital in Bulanao where he stayed for sixteen (16) days before being transferred to the Cagayan Valley Regional Hospital in Tuguegarao where he stayed for twenty-five (25) days or until February 24, 1987 (TSN, November 14, 1987, pp. 43, 44).

Mildred told her brother George that she knew one of the men to be "Baliling", a person who was also known to George, but they did not report this to the police because the man was still at large (TSN, November 14, 1987, pp. 70-71). They informed their mother and their Manong about Baliling but agreed to keep the matter to themselves for the meantime out of fear of reprisal (TSN, November 14, 1987, pp. 71-72).

On June 15, 1987, or about five months after the incident, George and Mildred who were now residing in Pantikian, Kalinga-Apayao (TSN, Oct. 15, 1987, pp. 3, 32) heard over the "*Radyo Ng Bayan*" program an announcement that certain members of the "*Kurakot*" gang were apprehended by PC soldiers and that the victims were requested to come and identify them (TSN, November 14, 1987, p. 44).

On the same day, George went to the PC barracks where he saw and identified Salvador Baligod from among the nine (9) people arrested by the PC (TSN, November 14, 1987, pp. 45, 46). On June 18, 1987, Mildred went to the PC barracks and identified appellant as one of the twelve men who shot her father (TSN, October 15, 1987, p. 16). Appellant denied the accusation and told Mildred that he was in Manila at the time of the incident (TSN, October 15, 1987, p. 11). Their conversation confirmed her conclusion that the masked man who guarded her was appellant Macario Malagyab (TSN, October 15, 1987, p. 11). (pp. 5-11, Appellee's Brief)

Appellant assails the testimony of prosecution witnesses Mildred Narcisa and George Narcisa that appellant was one of

the 12 armed men who ransacked their house and killed their father Federico Narcisa on the ground that their testimony as to the clothes he (appellant) was wearing at the time of the incident is conflicting. Mildred Narcisa testified that appellant was wearing a long-sleeve shirt and maong pants while George Narcisa testified that appellant was wearing a checkered short-sleeve shirt with maong pants. This inconsistency is a minor matter which does not militate against the veracity of Mildred Narcisa and George Narcisa. Inconsistencies on minor details do not indicate prevarication and will not adversely affect the credibility of witnesses (*People vs. Segwaben*, 194 SCRA 239 [1991]).

In another flimsy attempt to discredit the testimony of Mildred and George, appellant points out that their testimony do not tally as to the exact number of persons presented to them at the PC barracks. There is no conflict between the testimony of Mildred and that of George for the simple reason that they did not go to the barracks on the same day and, therefore, would not have seen the same persons detained or even the same number of persons, detained or otherwise, who were presented as possible suspects.

Appellant casts doubt on Mildred's testimony that she recognized appellant by way of his voice despite the fact that the man she identified as appellant was wearing a mask during the incident. Identification by the sound of the voice of the person identified is sufficient and acceptable means of identification where it is established that the witness and the accused had known each other personally and closely for a number of years (*U.S. vs. Manabat*, 7 Phil. 209 [1906]). It is not disputed that Mildred had known appellant since 1977, or ten years prior to the assault, when Mildred regularly took and rode appellant's Ford Fiera to and from school for a number of years. On these occasions, appellant used to engage Mildred in conversation, exchanging jokes with her and his other passengers. Mildred entertained no doubts whatsoever as to the identity of appellant. Immediately after the incident she told her brother that one of the masked men was appellant. When she went to the PC barracks,

and conversed with appellant and heard his voice, their conversation bolstered her conclusion that appellant was one of the masked men.

Furthermore, the statements and behavior of the masked man who guarded Mildred attest to acquaintance of long standing with Mildred. Thus, the masked man who guarded Mildred asked her the following questions:

"Why is it that you are still here? Why did you not transfer? you should have built your house near the road, you see what is happening now." (TSN, October 15, 1987, p. 8)

The foregoing statements of the masked man clearly indicate that he knew the Narcisas and was aware that they had always lived far from the road, circumstances that appellant could have known only because of his long acquaintance with the Narcisas and the fact that he had driven Mildred to and from school. By imputing the tragedy that befell the Narcisas to their own failure to move their residence closer to the road, the masked man appeared to deplore the fact that their victims were the Narcisas, especially Mildred whom he had known for a long time, and whom he protected from injury. When another masked man lunged at Mildred, the masked man who guarded her intervened and told the attacking masked man not to hurt Mildred as she is a woman. All these clearly indicate the familiarity and acquaintanceship between Mildred and the masked man whom she identified as the accused-appellant.

Mildred's failure to immediately disclose to the authorities that one of the masked men was accused-appellant does not detract from the veracity of her testimony. The armed men who killed her father were vicious killers and she was obviously fearful that to identify appellant would alert the others who might cause her harm. Delay or vacillation in making an accusation does not impair the credibility of the witness as such delay is satisfactorily explained (*People vs. Elizaga,* 73 SCRA 524 [1976]; *People vs. Roxas*, 73 SCRA 583 [1976]). Mildred's failure to immediately reveal to the authorities the identity of appellant is fully justified under the circumstance of the case.

In one case, a delay of thirty-five days before the victim reported the sexual assault upon her was not considered an unreasonable delay (*People vs. Santiago*, 197 SCRA 556 [1991]). Tardiness in making an accusation due to fear of reprisal does not impair the credibility of a witness (*People vs. Artieda*, 90 SCRA 144 [1979]). Anyway, soon after hearing over the radio that certain members of the "*Kurakot*" gang had been apprehended and that possible victims were requested to identify the malefactors, when thereby her fear of reprisal had been dispelled, Mildred went to the PC barracks and identified appellant as one of the robbers.

In the face of the positive identification of accused-appellant by Mildred, the defense of alibi put forth by appellant cannot prevail (*People vs. Esmael*, 37 SCRA 601 [1971]; *People vs. Carandang*, 52 SCRA 259 [1973]). At any rate, this Court has consistently hewed to the rule that findings of fact of the judge who tried the case and heard the witnesses should not be disturbed on appeal, unless there are substantial facts or circumstances, which if properly considered, might affect the result of the case (*People vs. Brioso*, 37 SCRA 336 [1971]). A painstaking search of the record fails to unearth the presence of any fact or circumstance of such weight and significance which would sufficiently negate the correctness of the findings of fact of the trial court.

WHEREFORE, with the modification that the civil indemnity is increased to ₱50,000.00, the appealed decision is hereby *AFFIRMED* in all other respects.

SO ORDERED.

Feliciano (Chairman), Bidin, Romero, and *Vitug, JJ.*, concur.

FIRST DIVISION

[G.R. No. 56122. November 18, 1993]

RENE KNECHT, *petitioner, vs.* **THE COURT OF APPEALS, DEVELOPMENT BANK OF THE PHILIPPINES, LUZ RUBIO, ELIZABETH KEON, UNITED COCONUT PLANTERS BANK, DBP GOVERNOR RECIO GARCIA, *ET AL.*,** *respondents*.

SYLLABUS

1. REMEDIAL LAW; PROVISIONAL REMEDIES; WRIT OF INJUNCTION; PURPOSE; NOT SERVED IN CASE AT BAR. — For petitioner to be entitled to the injunctive writ, he must show that there exists a right to be protected and that the facts against which the injunction is directed are violative of said right. Petitioner here failed to, pay his amortizations due respondent DBP, the latter foreclosed the Tower Hotel on August 18, 1977 after several postponements were granted to petitioner. On September 5, 1977, a Sheriff's Certificate of Sale in favor of DBP was registered. It was only on February 17, 1978 when petitioner filed a complaint for the nullification of the foreclosure sale. The object of the writ of injunction is to preserve the *status quo*, which is the last actual peaceable uncontested status that preceded the pending controversy. The *status quo* before petitioner filed his complaint for nullification of foreclosure sale was that respondent DBP was in possession of the Tower Hotel. Thus, it cannot be said that petitioner Knecht was in actual, peaceful and uncontested possession of the Tower Hotel as the time he filed his complaint with the trial court. Moreover, it is a settled rule in this jurisdiction that a writ a preliminary mandatory injunction is not proper where its purpose is to take property out of one's possession and place the same in the hands of another without a *prima facie* showing of the title of the latter.

2. CIVIL LAW; LAND REGISTRATION; NOTICE OF *LIS PENDENS*; SUFFICIENT PROTECTION AGAINST PROSPECTIVE BUYERS. — Petitioner has registered a notice of *lis pendens* over the disputed property with the Registry of Deeds of Manila, which notice will bind any prospective

buyer to the outcome of the civil case pending before the trial court. With said precautionary notice, petitioner is adequately protected of whatever rights he may still have over the Tower Hotel.

APPEARANCES OF COUNSEL

Ramon A. Gonzales for petitioner.

Luz A. Rubio for and in her own behalf.

Encanto, Mabugat & Associates for United Coconut Planters Bank.

Romeo R. Bringas for Elizabeth Marcos Keon.

Office of the Legal Counsel, DBP for Development Bank of the Philippines.

D E C I S I O N

QUIASON, *J.*:

This is a petition for review on *certiorari* under Rule 45 of the Revised Rules of Court to annul and set aside the Decision dated October 28, 1980 of the Court of Appeals in CA-G.R. No. SP-09227 entitled "*RENE KNECHT, petitioner versus HON. TOMAS R. LEONIDAS, as Judge CFI of Manila, Branch XXXVIII, ET AL., respondents*" and the Resolution dated January 21, 1981 of the same court, denying petitioner's motion for reconsideration. In said case, the Court of Appeals upheld the trial court's Order dated March 26, 1979, denying petitioner's prayer for the issuance of a writ of preliminary injunction in Civil Case No. 113873.

The facts as found by the Court of Appeals are as follows:

"x x x [O]n December 5, 1969, petitioner Rene Knecht and respondent Levy R. Garcia bought a parcel of land located at No. 1314 A. Mabini St., Ermita, Manila, including an eleven-storey building known as the "Tower Hotel" and other improvements standing on the lot, which was then mortgaged to respondent Development Bank of the Philippines, hereinafter to be referred to as DBP. The buyers assumed the mortgage and the DBP approved

the assumption. From December 5, 1969 to August 20, 1973, petitioner did not pay the amortizations to the DBP supposedly for just causes, among which was his inability to take possession and management of the Hotel.

x x x [O]n August 21, 1973, a decision based upon a compromise agreement was rendered in Civil Case No. 89501 of the Court of First Instance of Manila, Branch XIV, which enabled petitioner to regain possession and management of the Hotel. Petitioner claims that in February, 1977, he executed a deed of trust, supposedly antedated November 15, 1976, in favor of respondent Elizabeth Keon, assigning to said respondent 50% interest, in the equity of petitioner in the Tower Hotel, and constituting petitioner as mere trustee in the management of the Hotel.

In April, 1977, petitioner opened a savings account with the respondent United Coconut Planters Bank, hereinafter to be referred to as UCPB, in the name of the Tower Hotel, and included respondent Elizabeth Keon's name as one of those with the right to withdraw monies therefrom. On May 4, 1977, petitioner claims that respondent Elizabeth Keon took over the management of the Hotel.

On August 18, 1977, DBP foreclosed the mortgage over the disputed property. The property was sold at public auction pursuant to Art (sic) 3135, as amended by Art (sic) 4114, with the DBP as the highest bidder for the sum of ₱6,292,300.00. On August 22, 1977, a certificate of sale was issued by the *Ex-officio* Sheriff of Manila in favor of the DBP, and same was registered on September 5, 1977 with the Registry of Deeds. The DBP leased the Hotel to respondent Luz Rubio" (*Rollo,* pp. 24-25).

On February 17, 1978, petitioner filed with the trial court an action for the nullification of the foreclosure sale with preliminary injunction (Civil Case No. 113873). In his prayer for the issuance of a writ of preliminary injunction, petitioner asked the trial court, among other reliefs, to stop the running of the one-year redemption period and to restore to him the possession and management of the Tower Hotel and all its equipment and facilities.

On September 2, 1978, the one-year period expired without the petitioner exercising said right and without the trial court issuing a writ of preliminary injunction to restrain the running

of the redemption period.

On March 26, 1979, the trial court issued two separate orders. The first order reads as follows:

"The resolution of the question as to whether or not this court is empowered to suspend the period of redemption of the foreclosed property in dispute is withheld until after the trial since the same necessitates the presentation of special facts and circumstances for consideration of the court" (Annex "2"; *Rollo*, p. 213).

The second order reads as follows:

"The right to the disputed property not having been clearly established in favor of the plaintiff, the petition for the issuance of a preliminary mandatory injunction to restore the possession and management of the disputed property in his favor is hereby denied" (Annex "3"; *Rollo*, p. 214).

On May 26, 1979, petitioner filed with the Court of Appeals a petition for *certiorari* with preliminary mandatory injunction, alleging that the trial court in issuing the two aforementioned orders had "decided a novel question of substance not in accordance with law and with the applicable decisions of the appellate court and departed from the accepted and usual course of judicial proceeding thereby causing petitioner irreparable injury and leaving him without remedy except to file this petition" (*Rollo*, p. 281).

On October 28, 1980, the Court of Appeals rendered its decision, the dispositive portion of which reads as follows:

"WHEREFORE, the petition should be, as it is hereby dismissed, with costs against petitioner. The restraining order issued by this Court is hereby dissolved" (*Rollo*, p. 30).

In a resolution dated January 21, 1981, the Court of Appeals denied petitioner's motion for reconsideration (*Rollo*, p. 32).

Hence, this petition.

Pending the resolution of the petition, respondent DBP advertised in the Philippine Star the sale through sealed bidding

of the Tower Hotel (*Rollo*, p. 185).

On February 20, 1989, we directed the parties to maintain the *status quo* and enjoined the respondent DBP from selling the Tower Hotel and its fixtures to a third party without prior approval of the Court pending resolution of the petition for review on its merits. This Court further resolved to require petitioner to post a cash bond or surety bond from a reputable company of indubitable solvency in the amount of ₱1,000,000.00 within ten (10) days from receipt hereof (*Rollo*, p. 202). On March 17, 1989, petitioner posted the required bond (*Rollo*, p. 229).

Petitioner contends that the Court of Appeals erred in sustaining the trial court's order which denied the prayer for a writ of preliminary mandatory injunction (*Rollo*, p. 13).

For petitioner to be entitled to the injunctive writ, he must show that there exists a right to be protected and that the facts against which the injunction is directed are violative of said right (*Searth Commodities Corporation v. Court of Appeals*, 207 SCRA 622 [1992]).

Petitioner does not deny that since December 5, 1969, he has failed to pay the amortizations on the loan granted to him by DBP. He justifies his non-payment of the amortizations by raising "just causes," among which were his detention by the military and the non-restructuring of his loan by respondent DBP (*Rollo*, p. 16). These so-called "just causes" are within the competence of the court to determine in the main case for the nullification of the foreclosure sale. The validity of the same may be proven at the trial of the case.

As stated earlier, because of petitioner's failure to pay his amortizations due respondent DBP, the latter foreclosed the Tower Hotel on August 18, 1977 after several postponements were granted to petitioner. On September 5, 1977, a Sheriff's Certificate of Sale in favor of DBP was registered. It was only on February 17, 1978 when petitioner filed a complaint for the nullification of the foreclosure sale.

The object of the writ of injunction is to preserve the *status quo*, which is the last actual peaceable uncontested status that preceded the pending controversy (*Rodulfa v. Alfonso*, 76 Phil. 225 [1946]).

The *status quo* before petitioner filed his complaint for nullification of foreclosure sale was that respondent DBP was in possession of the Tower Hotel. Thus, it cannot be said that petitioner Knecht was in actual, peaceful and uncontested possession of the Tower Hotel as the time he filed his complaint with the trial court.

Moreover, it is a settled rule in this jurisdiction that a writ a preliminary mandatory injunction is not proper where its purpose is to take property out of one's possession and place the same in the hands of another without a *prima facie* showing of the title of the latter (*Navarro v. Court of Appeals*, 205 SCRA 429 [1992]).

It is worth noting that petitioner has registered a notice of *lis pendens* over the disputed property with the Registry of Deeds of Manila (*Rollo*, p. 278), which notice will bind any prospective buyer to the outcome of the civil case pending before the trial court. With said precautionary notice, petitioner is adequately protected of whatever rights he may still have over the Tower Hotel.

WHEREFORE, the petition is *DENIED* and the decision of the Court of Appeals is *AFFIRMED*. The restraining order issued by this Court is *LIFTED*.

SO ORDERED.

Cruz (Chairman) and *Davide, Jr., JJ.*, concur.

Bellosillo, J., on leave.

SECOND DIVISION

[G.R. No. 95226. November 18, 1993]

FLORENTINO C. OZAETA, doing business under the name and style of "GLASIK", *petitioner, vs.* **THE HONORABLE COURT OF APPEALS, EARRN GENERAL MERCHANDISING, INC., and ANGELA T. CHU, doing business under the name and style of "MIRASHL CRYSTALETCH",** *respondents.*

SYLLABUS

1. CIVIL LAW; OBLIGATIONS AND CONTRACTS; CONTRACTS TAKE EFFECT ONLY BETWEEN PARTIES; CASE AT BAR. — Contracts take effect only between the parties and cannot be binding upon nor be enforced against one who is not a party to it. Granting that Virra committed itself to give Glasik exclusive rights to display and sell etched glass within Virra Mall, Earrn cannot, by any stretch of the imagination, be bound to such a commitment where it has no knowledge of it and of which it was not informed. This was made clear in the testimony of Mr. Eduardo Ngan Tian. We find that petitioner has no cause of action against Earrn nor against Angela Chu, who is merely a lessee of Unit A-12. Petitioner should have pursued its case against Virra, which is the real culprit, for not protecting his interest. It is however unfortunate that petitioner did not appeal the dismissal of the complaint against Virra.

2. ID.; LEASE; LEASE CONTRACT; RESTRICTION TO ENGAGE ONLY ON DISPLAY AND SALE OF "ARTWORK & FURNISHING"; ETCHED GLASS, UNDER BOTH CONCEPTS. — Even assuming the existence of a restriction on Earrn to engage only on the display and sale of "Artworks and Furnishings" as stated in provision 2 of the contract, we agree with the appellate court that etched glass could fall under the general concepts of artworks and furnishings. Which ever way it is argued, however, an etched "mirror" is functional and therefore can be considered as furnishing or a decorative artwork, because the making of an etched glass requires craftsmanship and application of artistic skill.

APPEARANCES OF COUNSEL

Leovillo C. Agustin Law Offices for petitioner.
Marlon P. Ontal for respondent EARRN.
Pedro D. Diwa Law Office for respondent Chu.

D E C I S I O N

NOCON, *J.*:

Can a third party be legally bound to an agreement in which he did not take part? The answer would seem to be obvious, but the present case had to be brought before us because of the conflicting decisions of the Regional Trial Court[1] and the Court of Appeals.[2] The former says yes on the ground that said third person in the exercise of his rights and in the performance of his duties, failed to act with justice, give everyone his due and observe honesty and good faith as provided for by Article 19 of the Civil Code. But the appellate court thinks otherwise.

The facts, as summarized by the appellate court are as follows:

"Virra Realty and Development Corporation (hereinafter referred to as Virra), a corporation existing and organized under Philippine Laws, obtained from Ortigas and Co., Inc. leasehold rights over Virra Mall, a building located at Greenhills, San Juan Metro Manila.

"On June 30, 1982, Virra, thru its Vice-President and General Manager Eduardo G. Ngan Tian, wrote a letter to Florentino Ozaeta confirming its commitment to the latter for an exclusive right to display and sell glass etchings at Virra Mall Shopping Center (Exhibit 'A').

"On October 8, Ozaeta, who is doing business under the name and style of 'Glasik,' entered into a 'Contract to Sell Unit and to Assign Leasehold Rights' with VIRRA over Unit No. A-9 (Exhibit 'B'). The provision of the contract pertinent to this controversy reads:

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[1] Civil Case No. Q-43090, Branch 85, Quezon City.

[2] CA-G.R. CV No. 16385, Justice Alfredo L. Benipayo, *ponente*, Justices Ricardo Pronove, Jr. and Salome A. Montoya, concurring.

'2. Use of the Unit - the UNIT, as determined by VIRRA with the express consent of ORTIGAS, shall be used only as Etched Glass/Home Decor. In no case shall cars, trucks, motorcycles, motor vehicles, machinery and heavy equipment be sold or display from and/or in the UNIT. The BUYER-ASSIGNEE should not alter the use of the UNIT without the prior written consent of ORTIGAS, VIRRA and the Corporation or Association of Owners/Buyers-Assignee of units within the BUILDING, mentioned in Paragraph 11 hereof. Furthermore, it is understood that the use of the UNIT shall be subject to the terms and conditions of the LEASE CONTRACT, to the Articles and By-Laws and the rules and regulations to be promulgated by the aforesaid, Corporation or Association.'

"On October 3, 1993, VIRRA entered into another 'Contract to Sell Unit and to Assign Leasehold Rights' with Earrn General Merchandising, Inc. (hereinafter referred to as EARRN) over Unit No. A-12 of the same building (Exhibits 'C' plaintiff, '1' defendant EARRN). This contract provides that `the UNIT, as determined by VIRRA with the express consent of ORTIGAS, shall be used only as Artworks & Furnishings x x x.'

"One year after, in its letter dated September 6, 1984, EARRN advised VIRRA that it had decided to change its commercial activity in Unit No. A-12 to glass etching (Exhibit 'D'). Because of its prior commitment to give GLASIK the exclusive right to sell and display glass etching at Virra Mall, VIRRA 'disapproved the request' (Exhibit 'E'). The opposition notwithstanding, EARRN proceeded with the change. It displayed and sold glass etchings in the premises.

"It was later found out that weeks prior to EARRN'S letter of September 6, 1984, Unit A-12 had already been (leased) by EARRN to a certain Angela T. Chu, doing business under the name and style of MIRASHL CRYSTALETCH' (Annex 'A', Records, pp. 101-103). Chu had also made use of the leased premises to sell and display glass etchings.

"Alleging that the acts of EARRN and Chu infringed his exclusive right to sell glass etchings at Virra Mall and that he suffered financial losses as a consequence, Ozaeta filed this action for injunction, specific performance and damages with a prayer for writ of preliminary prohibitory and/or mandatory injunction against EARRN and VIRRA.

The complaint was later amended on November 27 to implead Angela Chu as additional defendant."[3]

After trial, the Regional Trial Court rendered its judgment ordering Earrn and Angela Chu to pay damages to petitioner but dismissed the case and all other claims, counterclaims and crossclaims against Virra. The trial court said that notwithstanding its want of privity to the contract between Ozaeta and Virra, Earrn is still bound by the prohibition and restriction embodied in the contract. It stressed that the provision of the contract is "crystal clear," that the owners of the units are limited or restricted to the commercial activity as stated in the agreement; in this case, "Etched Glass/Home Decor" for Glasik and "Artworks & Furnishings" for Earrn.[4]

It ignored Earrn's argument that it did not violate its contract with Virra as "Artworks and Furnishings" are broad enough to include etched glass or glass etching. Furthermore, the trial court opined that in pursuing the change in its commercial activity despite Virra's objections and its prior knowledge of the exclusivity rights of Glasik, Earrn failed to act with justice, and observe honesty and good faith as required in Art. 19 of the New Civil Code.[5]

Reversing the decision of the trial court, the appellate court is of the view that it is immaterial whether the controversial provision of the contract is meant to control or regulate the use of the unit. Instead it construed the phrase "glass etchings or etched glass" as "used for home decoration (and) clearly (coming) under the general concepts of artworks and furnishings."[6] The appellate court further stressed that not only were Earrn and Chu not privy to the agreement between Virra and Ozaeta, but that they were not aware of the supposed exclusivity in favor of petitioner to display and sell etched glass. Thus, it concluded that petitioner has no cause of action against them.

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[3] *Rollo,* pp. 32-33.

[4] Original Record, p. 227.

[5] *Id.*, at p. 228.

[6] *Rollo,* p. 36.

Disagreeing with the ruling, petitioner submits that the above findings of the Court of Appeals are not in accord with the evidence and the law.

We do not agree. Much as we sympathize with the cause of petitioner, we do not find any reversible error in the judgment of the appellate court.

Based on the facts presented, we find no cogent reason to deviate from the general rule that contracts take effect only between the parties[7] and cannot be binding upon nor be enforced against one who is not a party to it. Granting that Virra committed itself to give Glasik exclusive rights to display and sell etched glass within Virra Mall, Earrn cannot, by any stretch of the imagination, be bound to such a commitment where it has no knowledge of it and of which it was not informed. This was made clear in the testimony of Mr. Eduardo Ngan Tian, to wit:

"Q. And the exclusivity that you mentioned, you are referring to the exclusive contract you had between Virra Realty and the plaintiff Florentino Ozaeta?

"A. Yes sir.

"Q. That was a contract only between Virra Realty and Ozaeta?

"A. Yes sir.

"Q. Nobody was involved in the contract except Virra Realty which you were the representative and the plaintiff Florentino Ozaeta?

x x x x x x x x x

"A. Yes sir.

x x x x x x x x x

"Q. And you did not inform the other occupants and buyers of commercial units with respect to this exclusivity of the contract with the plaintiff?

"A. No. sir."[8]

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[7] Article 1311, New Civil Code.

[8] TSN, June 26, 1986, pp. 4-5.

And even assuming the existence of a restriction on Earrn to engage only on the display and sale of "Artworks and Furnishings" as stated in provision 2 of the contract, we agree with the appellate court that etched glass could fall under the general concepts of artworks and furnishings.

Webster's Dictionary defines "Artworks" as "1a: the making of decorative or artistic objects by hand; b: the decoration of artistic objects so made 2: artistic work produced in quantity."[9] While furnishings, is defined as "1: the act or process of supplying furniture or equipment; 2a: an article or accessory of dress x x x; 3: an object of fixture that tends to increase comfort or utility x x x."[10] Petitioner contends that glass etchings or etched glass "is basically a mirror; only that a design is etched on it; but the primary purpose is not for decoration but as a mirror- a mirror with a particular design."[11]

Which every way it is argued, however, an etched "mirror" is functional and therefore can be considered as furnishing or a decorative artwork, because the making of an etched glass requires craftsmanship and application of artistic skill.

From the foregoing, we find that petitioner has no cause of action against Earrn nor against Angela Chu, who is merely a leasee of Unit A-12. Petitioner should have pursued its case against Virra, which is the real culprit, for not protecting his interest. It is however unfortunate that petitioner did not appeal the dismissal of the complaint against Virra.

WHEREFORE, judgment is hereby rendered *DISMISSING* the petition for lack of merit and *AFFIRMING* the decision of the Court of Appeals *in toto*.

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, Regalado, and Puno, *JJ.*, concur.

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[9] Webster's Third New International Dictionary.

[10] *Id.*

[11] *Rollo,* p. 75.

FIRST DIVISION

[G.R. Nos. 101127-31. November 18, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **CRESENCIA C. REYES,** *accused-appellant.*

SYLLABUS

1. REMEDIAL LAW; CRIMINAL PROCEDURE; DOUBLE JEOPARDY; TWO INFORMATIONS FILED, ONE UNDER BATAS PAMBANSA BLG. 22 AND ANOTHER UNDER THE REVISED PENAL CODE ON ESTAFA, BASED ON IDENTICAL FACTS; NOT A CASE OF. — We re-affirm at the outset the established doctrine that: While the filing of the two sets of Information under the provisions of Batas Pambansa Bilang 22 and under the provisions of the Revised Penal Code, as amended, on estafa, may refer to identical acts committed by petitioner, the prosecution thereof cannot be limited to one offense, because a single criminal act may give rise to a multiplicity of offenses and where there is variance or differences between the elements of an offense in one law and another law as in the case at bar there will be no double jeopardy because what the rule on double jeopardy prohibits refers to identity of elements in the two (2) offenses. Otherwise stated, prosecution for the same act is not prohibited. What is forbidden is prosecution for the same offense. Hence, the mere filing of the two (2) sets of information does not itself give rise to double jeopardy.

2. CRIMINAL LAW; BATAS PAMBANSA BLG. 22; MERE ACT OF ISSUING A BAD CHECK, A *MALUM PROHIBITUM*. — The gravamen of the offense punished by BP 22 is the act of making and issuing a worthless check or a check that is dishonored upon its presentment for payment. The law has made the mere act of issuing a bad check a *malum prohibitum*, an act proscribed by the legislature for being deemed pernicious and inimical to public welfare.

3. ID.; ID.; APPLICABLE TO CHECKS ISSUED FOR DEPOSIT OR GUARANTY. — It is now settled that BP 22 applies even in cases where the dishonored checks were issued merely

in the form of a deposit or a guaranty and not as actual payment. The law does not make any distinction. Criminal liability attaches to the drawer of the check whether it was issued in payment of an obligation or merely to guarantee the said obligation. As we held in *Que v. People* (154 SCRA 160): x x x Inasmuch as the law does not make any distinction in this regard, no such distinction can be made by means of interpretation or application. Furthermore, the history of the enactment of subject statutes evinces the definite legislative intent to make the prohibition all embracing, without making any exception from the operation thereof in favor of a guarantee. This intent may be gathered from the statement of the sponsor of the bills x x x which was enacted later into BP 22, when it was introduced before the Batasang Pambansa that the bill was introduced to discourage the issuance of bouncing checks, to prevent checks from becoming "useless scrap of paper" and to restore respectability to checks, all without distinction as to the purpose of the issuance of the checks x x x. Consequently, what are important are the facts that the accused had deliberately issued the checks in question to cover accounts and that the checks were dishonored upon presentment regardless of whether or not the accused merely issued the checks as a guarantee.

4. ID.; REVISED PENAL CODE; ESTAFA, ELUCIDATED. — To constitute estafa under this provision, the act of postdating or issuing a check in payment of an obligation must be the efficient cause of the defraudation; as such, it should be either prior to or simultaneous with the act of fraud. The offender must be able to obtain money or property from the offended party because of the issuance of the check, whether postdated or not. It must be shown that the person to whom the check was delivered would not have parted with his money or property were it not for the issuance of the check by the other party. Stated otherwise, the check should have been issued as an inducement for the surrender by the party deceived of his money or property and not in payment of a pre-existing obligation.

5. ID.; BATAS PAMBANSA BLG. 22; FAILURE TO MAKE GOOD THE CHECKS WITHIN THREE (3) DAYS FROM RECEIPT OF NOTICE OF DISHONOR AND DEMAND FOR THEIR VALUE, A *PRIMA FACIE* INFERENCE OF FRAUDULENT ACT. — The three postdated checks that were subsequently dishonored were issued at a time when funds

in her account were insufficient and even nil. Two of these checks were dated April 10, 1986, and the third April 15, 1986. The records of the drawee bank showed that Reyes had a zero balance at the time the checks were issued and also when they were presented for payment. The dishonored checks she had issued to Garcia had a total value of ₱96,290.00, and this represented the damage sustained by Garcia because of the appellant's deceit. Reyes had issued these checks upon her fraudulent assurance to Garcia that they were fully funded. Her situation worsened when she failed to make good the checks within three days from receipt of notice of their dishonor and the demand from the complainant for their value. Her failure to take advantage of this grace period offered by the law raised the *prima facie* inference of deceit consisting of "false pretense or a fraudulent act."

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Timoteo A. David for Oriental Assurance Corporation.
Rosendo C. Ramos for accused-appellant.

D E C I S I O N

CRUZ, *J.*:

The appellant has instituted this proceeding for the reversal of the decision of the Regional Trial Court of Manila dated March 12, 1991, convicting her of estafa and violation of BP 22 under five separate informations which had been consolidated and tried jointly on her own motion.

From the unrebutted evidence of the prosecution, the trial court found that complainant Lorie Garcia came to know Cresencia Reyes through Manny Cabrera, a friend and business acquaintance of Garcia, who requested her to deliver rice to Reyes because he had no more stock to sell. Garcia initially refused but eventually agreed to sell to Reyes but only on the condition that Reyes first make a purchase order and, upon delivery, pay 50% of the cost of the rice, the balance to be paid with a postdated check.

The first purchase order was for 200 sacks. On April 4, 1986, Garcia delivered to Reyes 100 sacks of rice worth ₱31,500.00, for which two checks were issued by Reyes, each in the amount of ₱15,750.00. One was dated April 4, 1986 and the other April 10, 1986. On April 9, 1986, Garcia delivered 98 more sacks of rice to Reyes, and Reyes again issued two checks, each in the amount of ₱14,210.00, the first dated April 10, 1986, and the other April 15, 1986.

On April 9, 1986, Reyes placed another order for 200 sacks of rice, which Garcia delivered to her on the same day. While the 200 sacks were being unloaded, Reyes asked to buy an additional 200 sacks, and since there were 400 sacks of rice loaded on the trucks, Garcia agreed to sell the whole stock to her.

For the 400 sacks (plus 2 more sacks to complete the first purchase order for 200 sacks), Reyes again issued two checks, each for ₱66,330.00, one dated April 9, 1986 and the other April 15, 1986.

All the checks were drawn against the Bank of the Philippine Islands at its España Branch.

Of the six checks issued by Reyes, only three were made good, to wit, the check dated April 4, 1986 for ₱15,750.00, which was encashed by Garcia; the check dated April 10, 1986 for ₱14,210.00, which was redeemed by Reyes; and the check dated April 9, 1986 for ₱66,330.00, which was paid by Reyes by installments.

The other three checks were, either upon encashment or deposit, returned by the drawee bank to Garcia due to "insufficient funds." Garcia notified Reyes of their dishonor and the latter promised to pay her their total value. Despite repeated demands on Reyes, however, she failed to make good the checks or to replace them with cash.

The five criminal cases filed against Reyes were Criminal Cases Nos. 86-51206 to 86-51208, for violation of BP 22 in connection with the issuance of BPI Check No. 308202 for

₱15,750.00,[1] BPI Check No. 308223 for ₱14,210.00,[2] BPI Check No. 308226 for ₱66,330.00,[3] and Criminal Cases Nos. 86-51209 and 86-51210, both for estafa involving the same checks.

After the prosecution had rested its case, Reyes manifested through her counsel that she would file a demurrer to evidence. She did not do so during the 10-day period allowed her, whereupon the trial court, on motion of the prosecution, declared the cases submitted for decision. Instead of filing a motion for reconsideration, Reyes, assisted by her counsel, submitted a waiver of appearance.[4] Judge Angelina S. Gutierrez thereafter rendered the challenged decision in which she disposed as follows:

ACCORDINGLY, finding the guilt of the accused beyond reasonable doubt, she is hereby sentenced as follows:

In Criminal Case No. 51206, to suffer imprisonment of six (6) months and to pay the fine of ₱15,750.00;

In Criminal Case No. 51207, to suffer imprisonment of six (6) months and to pay the fine of ₱14,210.00;

In Criminal Case No. 51208, to suffer one year imprisonment and to pay the fine of ₱66,330.00;

In Criminal Case No. 51209, to suffer 22 years of *reclusion perpetua* together with the accessory penalties and to indemnify the complaining witness by way of actual damages in the sum of ₱80,540.00 and to pay the costs; and

In Criminal Case No. 51210, there being no modifying circumstances that attended the commission of the offense, to suffer an indeterminate penalty of six (6) years and 1 day of *prision mayor* as minimum to 14 years, 8 months and 1 day of *reclusion temporal* as maximum together with the accessory penalties and to indemnify the complaining witness by way of actual damages in the sum of ₱15,750.00 and to pay the costs.

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[1] Exhibit "B", Original Record, p. 252.

[2] Exhibit "B-1", *Ibid.*, p. 254.

[3] Exhibit "B-2", *Id.*, p. 253.

[4] Original Record, p. 288.

On May 13, 1992, the First Division referred *en consulta* to the Court *en banc* the question of whether the appellant, having been sentenced to serve 22 years of *reclusion perpetua*, should be allowed to remain on bail during the pendency of her appeal.[5] On August 7, 1992, the Court *en banc* ordered the surrender of Reyes by her bondsman to the Regional Trial Court of Manila, Branch 37, for her confinement by the Bureau of Corrections.[6]

In the appellant's brief, it is alleged that the trial court committed grave errors:

(1) In convicting Reyes of estafa and violation of BP 22 when on the face of the evidence itself it is clear that the issuance of the checks in question was involved in a credit transaction and that the said checks were issued by the latter as guarantee for the payment of her civil obligation to the complainant;

(2) In holding her guilty of estafa under Art. 315, par. 2(d) of the Revised Penal Code when there was no deceit employed by her in the issuance of the checks in question;

(3) In holding that there was sufficient evidence against her to justify her conviction for estafa under Art. 315, par. 2(d) of the Revised Penal Code and for violation of BP 22; and

(4) In convicting her for the crime of estafa under Art. 315, par. 2(d) of the Revised Penal Code for having issued a bad check, even if the check had been issued in payment of a pre-existing obligation.

The Court, after deliberating on the above assignment of errors and the briefs submitted by the parties, finds for the People.

We re-affirm at the outset the established doctrine that:

While the filing of the two sets of Information under the provisions of Batas Pambansa Bilang 22 and under the provisions of the Revised Penal Code, as amended, on estafa, may refer to identical acts committed by petitioner, the prosecution thereof cannot be limited to one offense, because a single criminal act may give rise to a

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[5] *Rollo*, p. 40.

[6] *Ibid*., pp. 103-116.

multiplicity of offenses and where there is variance or differences between the elements of an offense in one law and another law as in the case at bar there will be no double jeopardy because what the rule on double jeopardy prohibits refers to identity of elements in the two (2) offenses. Otherwise stated, prosecution for the same act is not prohibited. What is forbidden is prosecution for the same offense. Hence, the mere filing of the two (2) sets of information does not itself give rise to double jeopardy (*People v. Miraflores*, 115 SCRA 570).[7]

The gravamen of the offense punished by BP 22 is the act of making and issuing a worthless check or a check that is dishonored upon its presentment for payment.[8] The law has made the mere act of issuing a bad check a *malum prohibitum*, an act proscribed by the legislature for being deemed pernicious and inimical to public welfare.[9]

According to Chief Justice Pedro L. Yap in the landmark case of *Lozano v. Martinez*:[10]

> The effects of the issuance of a worthless check transcends the private interests of the parties directly involved in the transaction and touches the interest of the community at large. The mischief it creates is not only a wrong to the payee or holder, but also an injury to the public. The harmful practice of putting valueless commercial papers in circulation, multiplied a thousandfold, can very well pollute the channels of trade and commerce, injure the banking system and eventually hurt the welfare of society and the public interest.

The appellant argues that the questioned checks were not intended for deposit or encashment but merely to guarantee payment of her obligations to Garcia who, she stresses, admitted that for every delivery of rice the corresponding checks were given in return. She contends that in credit transactions, a check may serve merely as a guaranty for the payment of the amount

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[7] *Nierras v. Dacuycuy,* 181 SCRA 8.

[8] *Lozano v. Martinez,* 146 SCRA 338.

[9] *People v. Laggui,* 171 SCRA 305; *People v. Nitafan,* 215 SCRA 79; *Que v. People,* 154 SCRA 160; *People v. Manzanilla,* 156 SCRA 279.

[10] 146 SCRA 340.

indicated therein, to be redeemed later by the drawer "on the maturity date of the check or on a much later date, depending on the availability of funds of the latter."

It is now settled that BP 22 applies even in cases where the dishonored checks were issued merely in the form of a deposit or a guaranty and not as actual payment. The law does not make any distinction. Criminal liability attaches to the drawer of the check whether it was issued in payment of an obligation or merely to guarantee the said obligation. As we held in *Que v. People*:[11]

> x x x Inasmuch as the law does not make any distinction in this regard, no such distinction can be made by means of interpretation or application. Furthermore, the history of the enactment of subject statutes evinces the definite legislative intent to make the prohibition all embracing, without making any exception from the operation thereof in favor of a guarantee. This intent may be gathered from the statement of the sponsor of the bills x x x which was enacted later into BP 22, when it was introduced before the Batasang Pambansa that the bill was introduced to discourage the issuance of bouncing checks, to prevent checks from becoming "useless scrap of paper" and to restore respectability to checks, all without distinction as to the purpose of the issuance of the checks x x x.
>
> Consequently, what are important are the facts that the accused had deliberately issued the checks in question to cover accounts and that the checks were dishonored upon presentment *regardless of whether or not the accused merely issued the checks as a guarantee*. (Italics supplied)

Even on the assumption, then, that the subject checks were given by the appellant as a mere guaranty and not as payment, this circumstance will not absolve Reyes from her violation of BP 22.

The appellant has also been convicted under Art. 315 (2) (d) of the Revised Penal Code, as amended by R.A. No. 4885, which penalizes any person who shall defraud another "by postdating a check, or issuing a check in payment of an obligation when

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[11] 154 SCRA 160.

the offender had no funds in the bank, or his funds deposited therein were not sufficient to cover the amount of the check."

To constitute estafa under this provision, the act of postdating or issuing a check in payment of an obligation must be the efficient cause of the defraudation; as such, it should be either prior to or simultaneous with the act of fraud.[12] The offender must be able to obtain money or property from the offended party because of the issuance of the check, whether postdated or not.[13] It must be shown that the person to whom the check was delivered would not have parted with his money or property were it not for the issuance of the check by the other party. Stated otherwise, the check should have been issued as an inducement for the surrender by the party deceived of his money or property and not in payment of a pre-existing obligation.

It is recalled that Garcia was unwilling at first to deal with Reyes but was finally persuaded when she issued the two checks in payment for the first 100 sacks of rice. One of these checks was encashed before the second could mature and be subsequently dishonored. Believing that Reyes's credit was good, Garcia accepted two more checks from her in payment for another 100 sacks, and Reyes redeemed one of them before the other could mature and be subsequently dishonored. Garcia was still unaware of Reyes's deception when she entered into their last sale of 400 sacks, for which Reyes issued another two checks in payment, one of which was also to be dishonored later. In all this series of transactions, Garcia was induced to sell because of the checks issued by the appellant which the complainant believed to be funded.

The deceit practiced by Reyes on Garcia is all too palpable. Reyes was able to maintain Garcia's confidence by making good three of the checks she had issued and thus giving Garcia the impression that the other checks, which she could not yet present

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[12] *Vallarta v. Court of Appeals*, 150 SCRA 336.

[13] *People v. Tugbang*, 196 SCRA 341; *People v. Sabio*, 86 SCRA 568; *Bañares v. Court of Appeals*, 194 SCRA 59; *Vallarta v. Court of Appeals*, 150 SCRA 336.

for payment, would be honored. Reyes's timing was clever. She saw to it that one of her checks for the first delivery was valid (and was subsequently encashed) before she made her second purchase, for which she issued two more checks. She redeemed one of these checks before she bought the final 400 sacks, for which she issued another two checks. All this time, Garcia believed that the remaining postdated checks she had yet to encash were all good when they were in fact all worthless.

The three postdated checks that were subsequently dishonored were issued at a time when funds in her account were insufficient and even nil. Two of these checks were dated April 10, 1986, and the third April 15, 1986. The records of the drawee bank showed that Reyes had a zero balance at the time the checks were issued and also when they were presented for payment.[14] The dishonored checks she had issued to Garcia had a total value of ₱96,290.00, and this represented the damage sustained by Garcia because of the appellant's deceit. Reyes had issued these checks upon her fraudulent assurance to Garcia that they were fully funded.

Her situation worsened when she failed to make good the checks within three days from receipt of notice of their dishonor and the demand from the complainant for their value. Her failure to take advantage of this grace period offered by the law raised the *prima facie* inference of deceit consisting of "false pretense or a fraudulent act."[15]

The appellant's final contention is that, prior to the delivery of the rice, she had agreed that only 50% of the purchase price would be paid upon delivery and that the remaining 50% would be covered by a postdated check. Hence, as the subject checks covered the balance of the purchase price of the 600 sacks of rice, they were issued in payment of a pre-existing obligation and so did not violate Article 315 of the Revised Penal Code or BP 22.

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[14] Original Record, p. 255.

[15] *People v. Singson*, 215 SCRA 534; *Bañares v. Court of Appeals*, 194 SCRA 59.

The facts established by the prosecution belie this assertion. The evidence to the contrary is overwhelming. There is no doubt that the subject checks were issued by Reyes (and accepted by Garcia) in exchange for the three deliveries of rice as each delivery was made. We are satisfied that the postdated checks were issued by the appellant not as payment for a pre-existing obligation but as the consideration for each shipment of rice she received from the complainant.

The argument that the postdated checks were promissory notes and not for negotiation is so unsubstantial as to deserve no serious attention.

The Court notes the following observations of the trial court on the personality of the appellant:

> Accused, past 50, is a physically handicapped lady whose height is barely two (2) feet. In fact, whenever she came to court, she was always assisted by one or two companions. But she is well educated and speaks English fluently. The Court discerns that it is this unique combination of bizarre physical make-up and seeming trustworthiness which led others, like herein complainant, to repose their confidence in her. Her counsel manifested that she is also facing similar charges in other branches of this Court.

It is indeed pathetic that the appellant should suffer the physical handicap above described, but what is especially tragic is that she has chosen to use this handicap for the deception of Garcia, who trusted her partly out of sympathy for her abnormal appearance. By her deceitfulness, Reyes has forfeited all feelings of charity or kindness toward her and earned instead the punishment of the laws she has scorned.

WHEREFORE, the challenged decision is *AFFIRMED* and the appeal is *DENIED*, with costs against the appellant. It is so ordered.

SO ORDERED.

Davide, Jr. and *Quiason, JJ.*, concur.

Bellosillo, J., on leave.

SECOND DIVISION

[G.R. No. 104235. November 18, 1993]

SPOUSES CESAR & SUTHIRA ZALAMEA and LIANA ZALAMEA, *petitioners, vs.* **HONORABLE COURT OF APPEALS and TRANSWORLD AIRLINES, INC.,** *respondents*.

SYLLABUS

1. REMEDIAL LAW; EVIDENCE; FOREIGN LAWS, HOW PROVED. — That there was fraud or bad faith on the part of respondent airline when it did not allow petitioners to board their flight for Los Angeles in spite of confirmed tickets cannot be disputed. The U.S. law or regulation allegedly authorizing overbooking has never been proved. Foreign laws do not prove themselves nor can the courts take judicial notice of them. Like any other fact, they must be alleged and proved. Written law may be evidenced by an official publication thereof or by a copy attested by the officer having the legal custody of the record, or by his deputy, and accompanied with a certificate that such officer has custody. The certificate may be made by a secretary of an embassy or legation, consul general, consul, vice-consul, or consular agent or by any officer in the foreign service of the Philippines stationed in the foreign country in which the record is kept, and authenticated by the seal of his office.

2. ID.; ID.; ID.; U.S. LAW OR REGULATION AUTHORIZING OVERBOOKING, NOT PROVED BY MERE TESTIMONY OF RESPONDENT'S AIRLINE CUSTOMER SERVICE AGENT. — Respondent TWA relied solely on the statement of Ms. Gwendolyn Lather, its customer service agent, in her deposition dated January 27, 1986 that the Code of Federal Regulations of the Civil Aeronautics Board allows overbooking. Aside from said statement, no official publication of said code was presented as evidence. Thus, respondent court's finding that overbooking is specifically allowed by the US Code of Federal Regulations has no basis in fact.

3. CIVIL LAW; APPLICATION OF LAWS; CONTRACT GOVERNED BY LAWS OF PLACE WHERE EXECUTED; CASE AT BAR. — Even if the claimed U.S. Code of Federal Regulations does exist, the same is not applicable to the case at bar in accordance with the principle of *lex loci contractus* which requires that the law of the place where the airline ticket was issued should be applied by the court where the passengers are residents and nationals of the forum and the ticket is issued in such State by the defendant airline. Since the tickets were sold and issued in the Philippines, the applicable law in this case would be Philippine law.

4. ID.; DAMAGES; OVERBOOKING AMOUNTS TO BAD FAITH ENTITLING PASSENGERS TO AWARD OF MORAL DAMAGES. — Existing jurisprudence explicitly states that overbooking amounts to bad faith, entitling the passengers concerned to an award of moral damages.

5. ID.; ID.; BREACH OF CONTRACT OF CARRIAGE AMOUNTS TO BAD FAITH. — In fact, existing jurisprudence abounds with rulings where the breach of contract of carriage amounts to bad faith. A contract to transport passengers is quite different in kind and degree from any other contractual relation.

6. ID.; ID.; NON-INCORPORATION OF STIPULATIONS ON OVERBOOKING AND IN NOT INFORMING PASSENGERS OF ITS POLICY GIVING LESS PRIORITY TO DISCOUNTED TICKET, CONSTITUTE BAD FAITH; PASSENGERS ENTITLED TO BOTH MORAL AND EXEMPLARY DAMAGES; CASE AT BAR. — Even on the assumption that overbooking is allowed, respondent TWA is still guilty of bad faith in not informing its passengers beforehand that it could breach the contract of carriage even if they have confirmed tickets if there was overbooking. Respondent TWA should have incorporated stipulations on overbooking on the tickets issued or to properly inform its passengers about these policies so that the latter would be prepared for such eventuality or would have the choice to ride with another airline. Moreover, respondent TWA was also guilty of not informing its passengers of its alleged policy of giving less priority to discounted tickets. It is respondent TWA's position that the practice of overbooking and the airline system

of boarding priorities are reasonable policies, which when implemented do not amount to bad faith. But the issue raised in this case is not the reasonableness of said policies but whether or not said policies were incorporated or deemed written on petitioners' contracts of carriage. Respondent TWA failed to show that there are provisions to that effect. Neither did it present any argument of substance to show that petitioners were duly apprised of the overbooked condition of the flight or that there is a hierarchy of boarding priorities in booking passengers. It is evident that petitioners had the right to rely upon the assurance of respondent TWA, thru its agent in Manila, then in New York, that their tickets represented confirmed seats without any qualification. The failure of respondent TWA to so inform them when it could easily have done so thereby enabling respondent to hold on to them as passengers up to the last minute amounts to bad faith. Evidently, respondent TWA placed its self-interest over the rights of petitioners under their contracts of carriage. Such conscious disregard of petitioners' rights makes respondent TWA liable for moral damages. To deter breach of contracts by respondent TWA in similar fashion in the future, we adjudge respondent TWA liable for exemplary damages, as well. However, the award for moral and exemplary damages by the trial court is excessive in the light of the fact that only Suthira and Liana Zalamea were actually "bumped off." An award of ₱50,000.00 moral damages and another ₱50,000.00 exemplary damages would suffice under the circumstances obtaining in the instant case.

7. ID.; ID.; PASSENGER ENTITLED TO REIMBURSEMENT FOR COST OF TICKETS BOUGHT FOR ANOTHER FLIGHT ON ANOTHER AIRLINE; CASE AT BAR. — The respondent court erred, however, in not ordering the refund of the cost of the American Airlines tickets purchased and used by petitioners Suthira and Liana. The evidence shows that petitioners Suthira and Liana were constrained to take the American Airlines flight to Los Angeles not because they "opted not to use their TWA tickets on another TWA flight" but because respondent TWA could not accommodate them either on the next TWA flight which was also fully booked. The purchase of the American Airlines tickets by petitioners Suthira and Liana was the consequence of respondent TWA's unjustifiable breach of its contracts of carriage with petitioners. In accordance with Article 2201, New Civil Code, respondent

TWA should, therefore, be responsible for all damages which may be reasonably attributed to the non-performance of its obligation. In the previously cited case of *Alitalia Airways v. Court of Appeals*, this Court explicitly held that a passenger is entitled to be reimbursed for the cost of the tickets he had to buy for a flight on another airline. Thus, instead of simply being refunded for the cost of the unused TWA tickets, petitioners should be awarded the actual cost of their flight from New York to Los Angeles.

8. ID.; ID.; ATTORNEY'S FEES; RECOVERABLE WHERE A PARTY WAS COMPELLED TO LITIGATE TO PROTECT HIS RIGHTS. — The award to petitioners of attorney's fees is also justified under Article 2208(2) of the Civil Code which allows recovery when the defendant's act or omission has compelled plaintiff to litigate or to incur expenses to protect his interest.

APPEARANCES OF COUNSEL

Sycip, Salazar, Hernandez, Gatmaitan for petitioners.
Quisumbing, Torres & Evangelista for private-respondent.

D E C I S I O N

NOCON, *J.*:

Disgruntled over TransWorld Airlines, Inc.'s refusal to accommodate them in TWA Flight 007 departing from New York to Los Angeles on June 6, 1984 despite possession of confirmed tickets, petitioners filed an action for damages before the Regional Trial Court of Makati, Metro Manila, Branch 145. Advocating petitioners' position, the trial court categorically ruled that respondent TransWorld Airlines (TWA) breached its contract of carriage with petitioners and that said breach was "characterized by bad faith." On appeal, however, the appellate court found that while there was a breach of contract on respondent TWA's part, there was neither fraud nor bad faith because under the Code of Federal Regulations by the Civil Aeronautics Board of the United States of America it is allowed to overbook flights.

The factual backdrop of the case is as follows:

Petitioners-spouses Cesar C. Zalamea and Suthira Zalamea, and their daughter, Liana Zalamea, purchased three (3) airline tickets from the Manila agent of respondent TransWorld Airlines, Inc. for a flight from New York to Los Angeles on June 6, 1984. The tickets of petitioners-spouses were purchased at a discount of 75% while that of their daughter was a full fare ticket. All three tickets represented confirmed reservations.

While in New York, on June 4, 1984, petitioners received notice of the reconfirmation of their reservations for said flight. On the appointed date, however, petitioners checked in at 10:00 a.m., an hour earlier than the scheduled flight at 11:00 a.m. but were placed on the wait-list because the number of passengers who had checked in before them had already taken all the seats available on the flight. Liana Zalamea appeared as No. 13 on the wait-list while the two other Zalameas were listed as "No. 34, showing a party of two." Out of the 42 names on the wait-list, the first 22 names were eventually allowed to board the flight to Los Angeles, including petitioner Cesar Zalamea. The two others, on the other hand, at No. 34, being ranked lower than 22, were not able to fly. As it were, those holding full-fare tickets were given first priority among the wait-listed passengers. Mr. Zalamea, who was holding the full-fare ticket of his daughter, was allowed to board the plane; while his wife and daughter, who presented the discounted tickets were denied boarding. According to Mr. Zalamea, it was only later when he discovered that he was holding his daughter's full-fare ticket.

Even in the next TWA flight to Los Angeles Mrs. Zalamea and her daughter, could not be accommodated because it was also fully booked. Thus, they were constrained to book in another flight and purchased two tickets from American Airlines at a cost of Nine Hundred Eighteen ($918.00) Dollars.

Upon their arrival in the Philippines, petitioners filed an action for damages based on breach of contract of air carriage before the Regional Trial Court of Makati, Metro Manila, Branch 145. As aforesaid, the lower court ruled in favor of petitioners in its

decision[1] dated January 9, 1989 the dispositive portion of which states as follows:

"WHEREFORE, judgment is hereby rendered ordering the defendant to pay plaintiffs the following amounts:

"(1) US $918.00, or its peso equivalent at the time of payment, representing the price of the tickets bought by Suthira and Liana Zalamea from American Airlines, to enable them to fly to Los Angeles from New York City;

"(2) US $159.49, or its peso equivalent at the time of payment, representing the price of Suthira Zalamea's ticket for TWA Flight 007;

"(3) Eight Thousand Nine Hundred Thirty-four Pesos and Fifty Centavos (₱8,934.50), Philippine Currency, representing the price of Liana Zalamea's ticket for TWA Flight 007;

"(4) Two Hundred Fifty Thousand Pesos (₱250,000.00), Philippine Currency, as moral damages for all the plaintiffs;

"(5) One Hundred Thousand Pesos (₱100,000.00), Philippine Currency, as and for attorney's fees; and

"(6) The costs of suit.

"SO ORDERED."[2]

On appeal, the respondent Court of Appeals held that moral damages are recoverable in a damage suit predicated upon a breach of contract of carriage only where there is fraud or bad faith. Since it is a matter of record that overbooking of flights is a common and accepted practice of airlines in the United States and is specifically allowed under the Code of Federal Regulations by the Civil Aeronautics Board, no fraud nor bad faith could be imputed on respondent TransWorld Airlines.

Moreover, while respondent TWA was remiss in not informing petitioners that the flight was overbooked and that even a person with a confirmed reservation may be denied accommodation on

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[1] Penned by Judge Job B. Madayag.

[2] *Rollo*, pp. 47-48.

an overbooked flight, nevertheless it ruled that such omission or negligence cannot under the circumstances be considered to be so gross as to amount to bad faith.

Finally, it also held that there was no bad faith in placing petitioners in the wait-list along with forty-eight (48) other passengers where full-fare first class tickets were given priority over discounted tickets.

The dispositive portion of the decision of respondent Court of Appeals[3] dated October 25, 1991 states as follows:

"WHEREFORE, in view of all the foregoing, the decision under review is hereby MODIFIED in that the award of moral and exemplary damages to the plaintiffs is eliminated, and the defendant-appellant is hereby ordered to pay the plaintiffs the following amounts:

"(1) US$159.49, or its peso equivalent at the time of payment, representing the price of Suthira Zalamea's ticket for TWA Flight 007;

"(2) US$159.49, or its peso equivalent at the time of payment, representing the price of Cesar Zalamea's ticket for TWA Flight 007;

"(3) ₱50,000.00 as and for attorney's fees.

"(4) The costs of suit.

"SO ORDERED."[4]

Not satisfied with the decision, petitioners raised the case on petition for review on *certiorari* and alleged the following errors committed by the respondent Court of Appeals, to wit:

I.

"X X X IN HOLDING THAT THERE WAS NO FRAUD OR BAD FAITH ON THE PART OF RESPONDENT TWA BECAUSE IT HAS A RIGHT TO OVERBOOK FLIGHTS.

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[3] Penned by Associate Justice Venancio D. Aldecoa, Jr. and concurred in by Associate Justices Jose C. Campos, Jr. and Filemon H. Mendoza.

[4] *Rollo*, p. 38.

II.

"X X X IN ELIMINATING THE AWARD OF EXEMPLARY DAMAGES.

III.

"X X X IN NOT ORDERING THE REFUND OF LIANA ZALAMEA'S TWA TICKET AND PAYMENT FOR THE AMERICAN AIRLINES TICKETS."[5]

That there was fraud or bad faith on the part of respondent airline when it did not allow petitioners to board their flight for Los Angeles in spite of confirmed tickets cannot be disputed. The U.S. law or regulation allegedly authorizing overbooking has never been proved. Foreign laws do not prove themselves nor can the courts take judicial notice of them. Like any other fact, they must be alleged and proved.[6] Written law may be evidenced by an official publication thereof or by a copy attested by the officer having the legal custody of the record, or by his deputy, and accompanied with a certificate that such officer has custody. The certificate may be made by a secretary of an embassy or legation, consul general, consul, vice-consul, or consular agent or by any officer in the foreign service of the Philippines stationed in the foreign country in which the record is kept, and authenticated by the seal of his office.[7]

Respondent TWA relied solely on the statement of Ms. Gwendolyn Lather, its customer service agent, in her deposition dated January 27, 1986 that the Code of Federal Regulations of the Civil Aeronautics Board allows overbooking. Aside from said statement, no official publication of said code was presented as evidence. Thus, respondent court's finding that overbooking is specifically allowed by the US Code of Federal Regulations has no basis in fact.

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[5] *Rollo,* p. 15.

[6] *The Collector of Internal Revenue v. Fisher and Fisher v. The Collector of Internal Revenue,* 110 Phil. 686 (1961).

[7] Salonga, Private International Law (1979), pp. 82-83.

Even if the claimed U.S. Code of Federal Regulations does exist, the same is not applicable to the case at bar in accordance with the principle of *lex loci contractus* which requires that the law of the place where the airline ticket was issued should be applied by the court where the passengers are residents and nationals of the forum and the ticket is issued in such State by the defendant airline.[8] Since the tickets were sold and issued in the Philippines, the applicable law in this case would be Philippine law.

Existing jurisprudence explicitly states that overbooking amounts to bad faith, entitling the passengers concerned to an award of moral damages. In *Alitalia Airways v. Court of Appeals*,[9] where passengers with confirmed bookings were refused carriage on the last minute, this Court held that when an airline issues a ticket to a passenger confirmed on a particular flight, on a certain date, a contract of carriage arises, and the passenger has every right to expect that he would fly on that flight and on that date. If he does not, then the carrier opens itself to a suit for breach of contract of carriage. Where an airline had deliberately overbooked, it took the risk of having to deprive some passengers of their seats in case all of them would show up for check in. For the indignity and inconvenience of being refused a confirmed seat on the last minute, said passenger is entitled to an award of moral damages.

Similarly, in *Korean Airlines Co., Ltd. v. Court of Appeals*,[10] where private respondent was not allowed to board the plane because her seat had already been given to another passenger even before the allowable period for passengers to check in had lapsed despite the fact that she had a confirmed ticket and she had arrived on time, this Court held that petitioner airline acted in bad faith in violating private respondent's rights under their contract of carriage and is therefore liable for the injuries she has sustained as a result.

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[8] *Ibid*, p. 300.

[9] G.R. No. 77011, 187 SCRA 763 (1990).

[10] G.R. No. 61418, 154 SCRA 211 (1987).

In fact, existing jurisprudence abounds with rulings where the breach of contract of carriage amounts to bad faith. In *Pan American World Airways, Inc. v. Intermediate Appellate Court*,[11] where a would-be passenger had the necessary ticket, baggage claim and clearance from immigration all clearly and unmistakably showing that she was indeed a confirmed passenger and that she was, in fact, included in the passenger manifest of said flight, and yet was denied accommodation in said flight, this Court did not hesitate to affirm the lower court's finding awarding her damages.

A contract to transport passengers is quite different in kind and degree from any other contractual relation. So ruled this Court in *Zulueta v. Pan American World Airways, Inc*.[12] This is so, for a contract of carriage generates a relation attended with public duty- a duty to provide public service and convenience to its passengers which must be paramount to self-interest or enrichment. Thus, it was also held that the switch of planes from Lockheed 1011 to a smaller Boeing 707 because there were only 138 confirmed economy class passengers who could very well be accommodated in the smaller plane, thereby sacrificing the comfort of its first class passengers for the sake of economy, amounts to bad faith. Such inattention and lack of care for the interest of its passengers who are entitled to its utmost consideration entitles the passenger to an award of moral damages.[13]

Even on the assumption that overbooking is allowed, respondent TWA is still guilty of bad faith in not informing its passengers beforehand that it could breach the contract of carriage even if they have confirmed tickets if there was overbooking. Respondent TWA should have incorporated stipulations on overbooking on the tickets issued or to properly inform its passengers about these policies so that the latter would be prepared for such eventuality or would have the choice to ride with another airline.

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[11] G.R. No. 74442, 153 SCRA 521 (1987).

[12] G.R. No. L-28589, 43 SCRA 397 (1972).

[13] *TransWorld Airlines v. Court of Appeals*, G.R. No. 78656, 165 SCRA 143 (1988).

Respondent TWA contends that Exhibit I, the detached flight coupon upon which were written the name of the passenger and the points of origin and destination, contained such a notice. An examination of Exhibit I does not bear this out. At any rate, said exhibit was not offered for the purpose of showing the existence of a notice of overbooking but to show that Exhibit I was used for Flight 007 in first class of June 11, 1984 from New York to Los Angeles.

Moreover, respondent TWA was also guilty of not informing its passengers of its alleged policy of giving less priority to discounted tickets. While the petitioners had checked in at the same time, and held confirmed tickets, yet, only one of them was allowed to board the plane ten minutes before departure time because the full-fare ticket he was holding was given priority over discounted tickets. The other two petitioners were left behind.

It is respondent TWA's position that the practice of overbooking and the airline system of boarding priorities are reasonable policies, which when implemented do not amount to bad faith. But the issue raised in this case is not the reasonableness of said policies but whether or not said policies were incorporated or deemed written on petitioners' contracts of carriage. Respondent TWA failed to show that there are provisions to that effect. Neither did it present any argument of substance to show that petitioners were duly apprised of the overbooked condition of the flight or that there is a hierarchy of boarding priorities in booking passengers. It is evident that petitioners had the right to rely upon the assurance of respondent TWA, thru its agent in Manila, then in New York, that their tickets represented confirmed seats without any qualification. The failure of respondent TWA to so inform them when it could easily have done so thereby enabling respondent to hold on to them as passengers up to the last minute amounts to bad faith. Evidently, respondent TWA placed its self-interest over the rights of petitioners under their contracts of carriage. Such conscious disregard of petitioners' rights makes respondent TWA liable for moral damages. To deter breach of contracts by respondent

TWA in similar fashion in the future, we adjudge respondent TWA liable for exemplary damages, as well.

Petitioners also assail the respondent court's decision not to require the refund of Liana Zalamea's ticket because the ticket was used by her father. On this score, we uphold the respondent court. Petitioners had not shown with certainty that the act of respondent TWA in allowing Mr. Zalamea to use the ticket of her daughter was due to inadvertence or deliberate act. Petitioners had also failed to establish that they did not accede to said arrangement. The logical conclusion, therefore, is that both petitioners and respondent TWA agreed, albeit impliedly, to the course of action taken.

The respondent court erred, however, in not ordering the refund of the cost of the American Airlines tickets purchased and used by petitioners Suthira and Liana. The evidence shows that petitioners Suthira and Liana were constrained to take the American Airlines flight to Los Angeles not because they "opted not to use their TWA tickets on another TWA flight" but because respondent TWA could not accommodate them either on the next TWA flight which was also fully booked.[14] The purchase of the American Airlines tickets by petitioners Suthira and Liana was the consequence of respondent TWA's unjustifiable breach of its contracts of carriage with petitioners. In accordance with Article 2201, New Civil Code, respondent TWA should, therefore, be responsible for all damages which may be reasonably attributed to the non-performance of its obligation. In the previously cited case of *Alitalia Airways v. Court of Appeals*,[15] this Court explicitly held that a passenger is entitled to be reimbursed for the cost of the tickets he had to buy for a flight on another airline. Thus, instead of simply being refunded for the cost of the unused TWA tickets, petitioners should be awarded the actual cost of their flight from New York to Los Angeles. On this score, we differ from the trial court's ruling which ordered not only the reimbursement of the American Airlines tickets but

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[14] TSN, August 12, 1985, p. 19.

[15] *Supra*.

also the refund of the unused TWA tickets. To require both prestations would have enabled petitioners to fly from New York to Los Angeles without any fare being paid.

The award to petitioners of attorney's fees is also justified under Article 2208(2) of the Civil Code which allows recovery when the defendant's act or omission has compelled plaintiff to litigate or to incur expenses to protect his interest. However, the award for moral and exemplary damages by the trial court is excessive in the light of the fact that only Suthira and Liana Zalamea were actually "bumped off." An award of ₱50,000.00 moral damages and another ₱50,000.00 exemplary damages would suffice under the circumstances obtaining in the instant case.

WHEREFORE, the petition is hereby *GRANTED* and the decision of the respondent Court of Appeals is hereby *MODIFIED* to the extent of adjudging respondent TransWorld Airlines to pay damages to petitioners in the following amounts, to wit:

(1) US$918.00 or its peso equivalent at the time of payment representing the price of the tickets bought by Suthira and Liana Zalamea from American Airlines, to enable them to fly to Los Angeles from New York City;

(2) ₱50,000.00 as moral damages;

(3) ₱50,000.00 as exemplary damages;

(4) ₱50,000.00 as attorney's fees; and

(5) Costs of suit.

SO ORDERED.

Narvasa, C.J. (Chairman), Padilla, Regalado, and *Puno, JJ.,* concur.

EN BANC

[G.R. No. 105278. November 18, 1993]

FRANCIS PANCRATIUS N. PANGILINAN, *petitioner, vs.* **COMMISSION ON ELECTIONS, BOARD OF CANVASSERS OF QUEZON CITY, 4TH LEGISLATIVE DISTRICT, AND FELICIANO BELMONTE, JR.,** *respondents.*

SYLLABUS

1. POLITICAL LAW; CONSTITUTIONAL LAW; COMMISSION ON ELECTIONS; WITH NO JURISDICTION OVER CONTESTS RELATING TO THE ELECTION, RETURNS, AND QUALIFICATIONS OF MEMBERS OF THE HOUSE OF REPRESENTATIVES. — Sec. 3, Article IX-C of the 1987 Constitution should be read in relation to Sec. 2, Article IX-C of the same Constitution which provides, among others, as follows: "Sec. 2 The Commission on Elections shall exercise the following powers and functions: . . . (2) Exercise exclusive original jurisdiction over all contests relating to the elections, returns, and qualifications of all elective regional, provincial, and city officials, and appellate jurisdiction over all contests involving elective municipal officials decided by trial courts of general jurisdiction, or involving elective *barangay* officials decided by trial courts of limited jurisdiction." x x x It will be noted that the aforequoted provision of the Constitution vests in the COMELEC "exclusive original jurisdiction over all contests relating to the elections, returns, and qualifications of all elective regional, provincial and city officials." It has no jurisdiction over contests relating to the election, returns, and qualifications of Members of the House of Representatives. On the other hand, under Sec. 17, Article VI of the 1987 Constitution, the Electoral Tribunal of the House of the Representatives is the "sole judge of all contests relating to the election, returns, and qualifications" of its members. Consequently, the phrase "including pre-proclamation controversies" used in Sec. 3, Article IX-C of the Constitution should be construed as referring only to "pre-proclamation controversies" in election cases that fall within the exclusive

original jurisdiction of the COMELEC, *i.e.*, election cases pertaining to the election of regional, provincial and city officials.

2. ID.; ID.; OMNIBUS ELECTION CASE; DOCTRINE ENUNCIATED IN OLFATO CASE (103 SCRA 741), ABANDONED WITH THE EFFECTIVITY OF THE 1987 CONSTITUTION. — The petitioner's reliance on the case of *Olfato, et al. vs. COMELEC, et al.* wherein this Court held that the word "all" in Section 242 of the Omnibus Election Code covers all pre-proclamation controversies involving elections of *Batasan*, provincial, city and municipal officials, is misplaced. The *Olfato* case was decided under the regime of the 1973 Constitution. Under the said Constitution, the Commission on Elections was "the sole judge of all contests relating to the elections, returns, and qualifications of all Members of the *Batasang Pambansa* and elective provincial and city officials." Since the COMELEC had jurisdiction over election contests pertaining to the election of Members of the *Batasang Pambansa*, it had, likewise, as held in the *Olfato* case, the power and authority to hear and decide pre-proclamation controversies involving the election of Members of the *Batasang Pambansa*.

3. ID.; ID.; LEGISLATIVE DEPARTMENT; SENATE AND HOUSE OF REPRESENTATIVES NOW HAVE THEIR RESPECTIVE ELECTORAL TRIBUNALS; TRIBUNALS ARE THE SOLE JUDGE OF ALL CONTESTS RELATING TO THE ELECTION, RETURNS AND QUALIFICATIONS OF THEIR RESPECTIVE MEMBERS. — Since the 1973 Constitution has been replaced by the 1987 Constitution, the *Batasang Pambansa* stands abolished and the legislative power is now vested in the Congress of the Philippines consisting of the Senate and the House of Representatives. The Senate and the House of Representatives now have their respective electoral Tribunals which are the "sole judge of all contests relating to the election, returns, and qualifications of their respective Members," thereby divesting the Commission on Elections of its jurisdiction under the 1973 Constitution over election cases pertaining to the election of the Members of the *Batasang Pambansa* (Congress). It follows that the COMELEC is now bereft of jurisdiction to hear and decide pre-proclamation controversies against members of the House of Representatives as well as of the Senate.

4. ID.; ID.; ELECTION LAWS; PRE-PROCLAMATION CONTROVERSIES; MOOT AND ACADEMIC AFTER PROCLAMATION AND ASSUMPTION OF OFFICE. — The private respondent Feliciano Belmonte, Jr. has already been proclaimed as the winner in the congressional elections in the fourth district of Quezon City. He has taken his oath of office and assumed his duties as representative; hence, the remedy open to the petitioner was to have filed an electoral protest with the Electoral Tribunal of the House of Representatives.

APPEARANCES OF COUNSEL

Robles, Ricafrente & Aguirre Law Firm for petitioner.
Brillantes, Nachura, Navarro & Arcilla for private respondent.

D E C I S I O N

PADILLA, *J.*:

This is a petition for *certiorari*, prohibition and *mandamus* with a prayer for the issuance of a temporary restraining order to: (1) compel the Commission on Elections (COMELEC) to hear and decide the petition for disqualification of private respondent in SPA No. 92-127; (2) declare unconstitutional Section 15 of R.A. No. 7166 disallowing pre-proclamation controversies in the election of members of the House of Representatives; (3) compel the Board of Canvassers in the fourth legislative district of Quezon City to give due course to petitioner's objections to 120 election returns; and (4) prohibit and enjoin said Board of Canvassers from making further canvass of the returns and to suspend the proclamation of the winning candidate or to nullify the canvass and set aside said proclamation.

The antecedents are as follows:

The petitioner Francis Pancratius N. Pangilinan and private respondent Feliciano Belmonte, Jr. were both candidates for congressman in the fourth legislative district of Quezon City in the 11 May 1992 elections.

On 23 April 1992, Elmer Candano and Jose Umali, Jr. as registered voters of the fourth legislative district of Quezon City, filed with the COMELEC a petition for disqualification[1] against the private respondent for violation of Section 68 of the Omnibus Election Code of the Philippines (B.P. Blg. 881), docketed therein as SPA Case No. 92-127, alleging *inter alia* that: (a) during a rally held on 1 April 1992 at Agno Street, Barangay Tatalon, Quezon City, private respondent boasted and acknowledged that he gave one (1) sack of rice, ₱5,000.00 and medicines to the community and had made available to them the services of a lawyer; (b) similarly, in Barangay San Vicente, during the coronation night on 4 April 1992 of the winner of the Miss San Vicente pageant, private respondent gave tickets for two to Hongkong to the winner, Miss Ana Marie Debil.[2]

Acting upon the said petition, the respondent COMELEC referred the same to its Law Department (Investigation and Prosecution Division) for preliminary investigation.[3]

On 20 May 1992, the petitioner herein together with the petitioners/complainants in SPA Case No. 92-127 filed in the said case an Urgent Motion to Suspend Canvass and/or Proclamation,[4] alleging therein that the election returns for the fourth district of Quezon City were being canvassed by the City Board of Canvassers and that in order that the petition for disqualification against private respondent may not become moot and academic, there was need for an immediate order directing the City Board of Canvassers of Quezon City to suspend at once the canvassing of the election returns and the proclamation of the winning candidate for Representative of the fourth district of Quezon City. The COMELEC, however, failed to act on the said motion.

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[1] *Rollo,* p. 29.

[2] *Rollo,* pp. 30-33.

[3] *Ibid*., p. 122.

[4] *Ibid*., p. 91.

On 22 May 1992, five (5) other petitions for disqualification against private respondent were filed with the COMELEC,[5] for violation of Section 68 of the Omnibus Election Code outlawing the giving of money or other material consideration to influence, induce or corrupt the voters and Section 261(k) of the same Code making it unlawful to solicit votes during the day of the election.

During the canvass of the returns, the petitioner, thru his counsel, objected to over 120 election returns being canvassed by the City Board of Canvassers on the ground that they were tampered, altered or spurious. The City Board of Canvassers, however, overruled petitioner's objections on the ground that under Section 15 of R.A. No. 7166 and Section 23 of COMELEC Resolution No. 2413, entitled "General Instructions for the Provincial/City/District and Municipal Board of Canvassers" pre-proclamation controversies are not allowed in the election of members of the House of Representatives.

On 21 May 1992, the Board of Canvassers created canvassing committees to canvas the returns. The petitioner objected to the creation of such committees on the ground that he was not duly informed thereof and was not given the opportunity to appoint watchers and/or counsel before the said committees.

The Board of Canvassers, however, ignored the petitioner's objections and proceeded to canvass the returns.

The petitioner, therefore, filed the present petition, claiming that public respondents acted with grave abuse of discretion and/or exceeded their respective jurisdictions and/or unlawfully neglected to perform acts that the law requires them to do, and that there was no plain, speedy and adequate remedy in the ordinary course of law other than the present petition, and in support thereof, the petitioner argues that:

1. Private respondent violated the penal provisions of the Omnibus Election Code, which is a ground for his disqualification to run for Congressman in accordance with Sec. 68 of the said

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[5] *Ibid*., pp. 49, 59, 65, 73, 78.

Code and which justified the suspension of the canvass and proclamation of private respondent pursuant to Sec. 6 of R.A. No. 6646.

2. Section 15 of R.A. No. 7166 and Section 23 of COMELEC Resolution No. 2413 disallowing pre-proclamation controversies in the election of members of the House of Representatives are unconstitutional.

3. Petitioner was denied his right to due process when canvass committees were formed without prior notice to him and without affording him the opportunity to appoint watchers therein.

We will first discuss the constitutional issue raised in the petition. Section 15 of R.A. 7166 provides:

"Sec. 15. *Pre-proclamation Cases Not Allowed in Elections for President, Vice-President, Senator, and Members of the House of Representatives.* For purposes of the elections for President, Vice-President, Senator and Members of the House of Representatives, no pre-proclamation cases shall be allowed on matters relating to the preparation, transmission, receipt, custody and appreciation of the election returns or the certificates of canvass, as the case may be. However, this does not preclude the authority of the appropriate canvassing body *motu proprio* or upon written complaint of an interested person to correct manifest errors in the certificate of canvass or election returns before it."

Petitioner contends that the above-quoted provision is unconstitutional, insofar as it disallows pre-proclamation controversies in the election of members of the House of Representatives because it violates Sec. 3, Article IX-C of the 1987 Constitution which provides that:

"Sec. 3. The Commission on Elections may sit *en banc* or in two divisions, and shall promulgate its rules of procedure in order to expedite disposition of election cases, including pre-proclamation controversies. All such election cases shall be heard and decided in division, provided that motions for reconsideration of decisions shall be decided by the Commission *en banc*."

The petitioner claims that the Constitution vests in the COMELEC the power to hear and decide pre-proclamation controversies without distinction as to whether the pre-proclamation controversy involves the election of Members of the House of Representatives or provincial or local elective officials. Hence, the petitioner concludes, the phrase "pre-proclamation controversies" in Sec. 3, Article IX-C of the 1987 Constitution embraces all pre-proclamation controversies, including pre-proclamation controversies involving the election of Members of the House of Representatives.

We do not accept petitioner's contention, Sec. 3, Article IX-C of the 1987 Constitution should be read in relation to Sec. 2, Article IX-C of the same constitution which provides, among others, as follows:

"Sec. 2. The Commission on Elections shall exercise the following powers and functions:

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(2) Exercise exclusive original jurisdiction over all contests relating to the elections, returns, and qualifications of all elective regional, provincial, and city officials, and appellate jurisdiction over all contests involving elective municipal officials decided by trial courts of general jurisdiction, or involving elective *barangay* officials decided by trial courts of limited jurisdiction.

x x x x x x x x x

It will be noted that the aforequoted provision of the Constitution vests in the COMELEC "exclusive original jurisdiction over all contests relating to the elections, returns, and qualifications of all elective *regional*, *provincial* and *city officials*." It has no jurisdiction over contests relating to the election, returns, and qualifications of Members of the House of Representatives. On the other hand, under Sec. 17, Article VI of the 1987 Constitution, the Electoral Tribunal of the House of Representatives is the "sole judge of all contests relating to the election, returns, and qualifications" of its members. Consequently, the phrase "including pre-proclamation

controversies" used in Sec. 3, Article IX-C of the Constitution should be construed as referring only to "pre-proclamation controversies" in election cases that fall within the exclusive original jurisdiction of the COMELEC, *i.e.*, election cases pertaining to the election of regional, provincial and city officials.

The petitioner's reliance on the case of *Olfato, et al. vs. COMELEC, et al.*[6] wherein this Court held that the word "all" in Section 242 of the Omnibus Election Code covers all pre-proclamation controversies involving elections of *Batasan*, provincial, city and municipal officials, is misplaced. The *Olfato* case was decided under the regime of the 1973 Constitution. Under the said Constitution, the Commission on Elections was "the sole judge of all contests relating to the elections, returns, and qualifications of all Members of the *Batasang Pambansa* and elective provincial and city officials."[7] Since the COMELEC had jurisdiction over election contests pertaining to the election of Members of the *Batasang Pambansa*, it had, likewise, as held in the *Olfato* case, the power and authority to hear and decide pre-proclamation controversies involving the election of Members of the *Batasang Pambansa*.

Since the 1973 Constitution has been replaced by the 1987 Constitution, the *Batasang Pambansa* stands abolished and the legislative power is now vested in the Congress of the Philippines consisting of the Senate and the House of Representatives.[8] The Senate and the House of Representatives now have their respective Electoral Tribunals which are the "sole judge of all contests relating to the election, returns, and qualifications of their respective Members."[9] thereby divesting the Commission on Elections of its jurisdiction under the 1973 Constitution over election cases pertaining to the election of the Members of the *Batasang Pambansa* (Congress). It follows that the COMELEC is now bereft of jurisdiction to hear and decide pre-proclamation

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[6] 103 SCRA 741.

[7] Sec. 2(2), Article XII-C, 1973 Constitution.

[8] Sec. 1, Article VI, 1987 Constitution.

[9] Sec. 17, Article VI, 1987 Constitution.

controversies against members of the House of Representatives as well as of the Senate.

Section 15 of R.A. 7166 is not, therefore, unconstitutional. On the contrary, it is in harmony with the 1987 Constitution. As aptly observed by the Solicitor General in his Comment

"The petitioner's arguments are totally misplaced. In fact, Section 15, R.A. 7166 is consistent with Section 17, Article VI which makes the Electoral Tribunal of the Senate and the House of Representatives the sole judge of all contests relating to the *election, returns*, and *qualifications* of their respective members. Petitioner's objection relating to the preparation, transmission and appreciation of the *election returns* or *certificates of canvass* falls within the sole jurisdiction of the (House) Electoral Tribunal."[10]

Finally, the private respondent Feliciano Belmonte, Jr. has already been proclaimed as the winner in the congressional elections in the fourth district of Quezon City. He has taken his oath of office and assumed his duties as representative; hence, the remedy open to the petitioner was to have filed an electoral protest with the Electoral Tribunal of the House of Representatives.

Having arrived at the above conclusion, We find it unnecessary to pass upon the other issues raised in the petition.

WHEREFORE, the petition should be, as it is, hereby *DISMISSED*.

SO ORDERED.

Narvasa, C.J., Cruz, Feliciano, Bidin, Regalado, Davide, Jr., Romero, Nocon, Melo, Quiason, Puno, and *Vitug, JJ.*, concur.

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[10] *Rollo,* p. 135.

SECOND DIVISION

[G.R. No. 107192. November 18, 1993]

PEOPLE OF THE PHILIPPINES, *plaintiff-appellee, vs.* **RODOLFO SALINAS *y* HERNANDEZ,** *accused-appellant.*

SYLLABUS

1. CRIMINAL LAW; DANGEROUS DRUGS ACT; ILLEGAL SALE OF PROHIBITED OR REGULATED DRUGS; CONSUMMATED ONCE SALE TRANSACTION IS ESTABLISHED. — It is a long settled rule that the commission of the crime of illegal sale of prohibited or regulated drugs is considered consummated once the sale transaction is established.

2. REMEDIAL LAW; EVIDENCE; CREDIBILITY OF WITNESSES; FINDINGS OF FACTS OF THE TRIAL COURT, GENERALLY NOT DISTURBED ON APPEAL. — In the case before us, the sale of "*shabu*" by the accused Rodolfo Salinas to the poseur-buyer PO2 Benito Basilio, Jr. was established by the latter's testimony. The trial court gave credence to the testimony of Basilio over the testimonies of the defense witnesses. A close and careful scrutiny of the records of this case shows no reason to disturb the findings of the trial court regarding the credibility of the witnesses for the prosecution, specially since they are police officers who are presumed to have regularly performed their official duties, the contrary not having been proven.

3. ID.; ID.; ID.; MINOR AND IMMATERIAL INCONSISTENCIES MAY BE CONSIDERED BADGES OF TRUTH RATHER THAN FALSEHOOD.— The alleged contradictions and inconsistencies are, in the main, minor and immaterial since the sale of the regulated drug was clearly and categorically established by the testimony of the poseur-buyer, PO2 Benito Basilio, Jr. The testimony of SPO3 Ely Ramos regarding the sale of "*shabu*" by the accused Rodolfo Salinas to PO2 Basilio cannot be expected to be as detailed and as accurate as the latter's account because it was only Basilio who actually approached and transacted with Salinas while SPO3 Ely Ramos

stayed some distance away and strategically positioned himself so he could see Basilio make the pre-arranged signal for the arrest of Salinas. The minor inconsistencies as to the details of the sale of "shabu" may be considered as badges of truth rather than of falsehood.

APPEARANCES OF COUNSEL

The Solicitor General for plaintiff-appellee.
Public Attorney's Office for accused-appellant.

D E C I S I O N

PADILLA, *J.*:

Accused-appellant Rodolfo Salinas *y* Hernandez was accused by the Assistant City Prosecutor of Pasay City of violation of Section 15, Article III of Republic Act No. 6425, as amended, otherwise known as "The Dangerous Drugs Act of 1972" committed as follows:

"That on or about the 27th day of January, 1992, in Pasay, Metro Manila and within the jurisdiction of this Honorable Court, the above-named accused, Rodolfo Salinas *y* Hernandez, without authority of law, did then and there wilfully, unlawfully and feloniously sell and deliver to another *Methamphetamine Hydrochloride* (*shabu*), a regulated drug.

Contrary to law."[1]

Rodolfo Salinas pleaded not guilty and after trial the Regional Trial Court, Branch 116 of Pasay City rendered a decision[*] dated 31 July 1992, the dispositive part of which reads:

"WHEREFORE, accused Rodolfo Salinas *y* Hernandez is found guilty beyond reasonable doubt of selling and delivering *methamphetamine hydrochloride* or '*shabu*', a regulated drug, in violation of Section 15 of Republic Act No. 6425, The Dangerous

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[1] *Rollo*, p. 12.

[*] Penned by Judge Alfredo J. Gustilo.

Drugs Act of 1972, as charged in the aforequoted Information; and he is sentenced to suffer the penalty of life imprisonment and to pay a fine of ₱20,000.00."[2]

On appeal to this Court, the accused-appellant assigns the following errors to the trial court:

"X X X IN HOLDING THAT THE TOO MANY DISCREPANCIES AND CONFLICTING TESTIMONIES OF PROSECUTION WITNESSES REFER ONLY TO MINOR DETAILS WHICH THEREFORE CANNOT AFFECT THEIR CREDIBILITY.

X X X IN NOT HOLDING THAT THE PROSECUTION MISERABLY FAILED TO PROVE THE GUILT OF THE ACCUSED BEYOND REASONABLE DOUBT, ANCHORING ITS VERDICT NOT ON ESTABLISHED FACTS BUT RATHER ON CIRCUMSTANTIAL EVIDENCE NOT DULY PROVEN.

X X X IN APPLYING AGAINST THE ACCUSED THE DISPUTABLE PRESUMPTION THAT OFFICIAL DUTY HAD BEEN REGULARLY PERFORMED."[3]

The evidence for the prosecution is contained in the testimonies of P02 Benito Basilio, Jr., SPO3 Ely Ramos both policemen assigned to the Southern Police District and Leslie B. Chambers, a Forensic Chemist of the Philippine National Police Crime Laboratory Service.

Briefly stated, the circumstances which led to the arrest of the accused-appellant are as follows:

1. At about 10:00 a.m. on 27 January 1992, a civilian informant reported to the office of the Intelligence Operations Group of the Southern Police District Command the rampant "*shabu*" peddling along Vergel St., Pasay City. Accused-appellant Rodolfo Salinas was identified as one of those engaged in the illegal trade.

2. Commanding Officer Danilo Caseres then formed a team composed of SPO3 Ely Ramos, SPO1 Manolito Tobias, PO2

[2] *Rollo*, p. 17.

[3] *Ibid*., p. 32.

Benito Basilio, Jr., PO2 Richard Palomata and PO2 Rolando Losaria to verify the report and conduct a buy-bust operation.

3. After confirming the information given by the civilian informant, a buy-bust operation was planned with PO2 Basilio acting as the poseur-buyer. Four (4) ₱100-bills were then marked with the letters "IOG", meaning Intelligence Operations Group, and xerox copies thereof were made.

4. At around 9:30 p.m. on the same day (27 January 1992), the buy-bust team proceeded to Vergel St. together with their informant who introduced Basilio to Rodolfo Salinas as a buyer of "*shabu*". Rodolfo Salinas asked Basilio how much "*shabu*" he was buying. PO2 Basilio said he wanted ₱400 worth and handed the four (4) marked ₱100-bills to Salinas who then handed him (Basilio) a small plastic packet containing a white crystalline substance. Basilio then made the pre-arranged signal by scratching his head, whereupon the other members of the team who were positioned at strategic places and who were observing the transaction, arrested the accused-appellant, Rodolfo Salinas.

5. The four (4) marked ₱100-bills were recovered from Salinas and the white crystalline substance was verified to be *Methamphetamine Hydrochloride* (*shabu*) by Forensic Chemist Leslie B. Chambers.

For his defense, accused-appellant Rodolfo Salinas asserts that he was "framed". He claims that at about 8:00 in the evening of 27 January 1992, he was on his way home when he passed by Clarita's store and some friends invited him to have a few rounds of beer with them. After having a bottle of beer, he excused himself so he could buy bread at a nearby bakery for his breakfast the next morning.

Rodolfo Salinas testified that it was while he was on his way to the bakery that two (2) men confronted him. One of them pointed a gun at him while the other showed him a white plastic packet and told him. "This is yours; you are a pusher."[4] He was then brought to Fort Bonifacio and questioned by the police

[4] *Rollo,* p. 39.

and asked to name the drug pushers in Vergel St. One of the policemen allegedly asked him for ₱20,000.00 in exchange for his liberty. It was when he told them he had no money that he was brought to the Pasay City Prosecutor's Office for further investigation.[5] Marlyn Salazar corroborated Salinas' version of the events which led to the arrest.[6]

In this appeal Rodolfo Salinas enumerates the following alleged contradictions and inconsistencies in the prosecution's evidence, which support his acquittal:

1. It was not clear whether a surveillance operation was conducted prior to the alleged buy-bust operation; and assuming that a surveillance operation was conducted, the exact time was not established as the testimonies of the police officers mention a surveillance operation at 11:30 a.m. on 27 January 1992 and another, after the team was formed at around 6:00 p.m. on the same day.

2. It was not clear who designated PO2 Benito Basilio to act as the poseur-buyer. PO2 Basilio had testified that it was his commanding officer Lt. Caseres who designated him to be the poseur-buyer while SPO3 Ely Ramos testified that it was he who assigned Basilio to be the poseur-buyer.

3. It was not clear what time the buy-bust team was formed. PO2 Basilio testified that the team was formed after a civilian informant came and reported to Lt. Danilo Caseres the rampant selling of shabu along Vergel St., Pasay City. SPO3 Ely Ramos, on the other hand, testified that the team was formed at around 6:00 p.m. of 27 January 1992.

4. It is not clear how many vehicles the buy-bust team used in going to Vergel St. PO2 Basilio testified that they hired three (3) tricycles while SPO3 Ely Ramos said they used only two (2).

5. It is not clear whether or not the members of the buy-bust team arrived simultaneously at Vergel St. PO2 Basilio

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[5] TSN, 2 June 1992, pp. 10-15.

[6] TSN, 27 May 1992, pp. 3-7.

testified that they arrived simultaneously while SPO3 Ely Ramos testified that the other members arrived five (5) minutes later.

6. It is not clear how the sale of the "*shabu*" took place. PO2 Basilio testified that the accused, Rodolfo Salinas asked him how much "*shabu*" he was buying and he answered ₱400.00 and he handed the four (4) ₱100 marked bills to the accused who after counting the money handed the small plastic packet to him (Basilio). On the other hand, SPO3 Ely Ramos testified that after Basilio was introduced to the accused, he asked for ₱400.00 worth of "*shabu*" and after some conversation the accused handed the "*shabu*" to Basilio who then gave the pre-arranged signal for the buy-bust team to arrest the accused Rodolfo Salinas.[7]

It is a long settled rule that the commission of the crime of illegal sale of prohibited or regulated drugs is considered consummated once the sale transaction is established.[8]

In the case before Us, the sale of "*shabu*" by the accused Rodolfo Salinas to the poseur-buyer PO2 Benito Basilio, Jr. was established by the latter's testimony. The trial court gave credence to the testimony of Basilio over the testimonies of the defense witnesses. A close and careful scrutiny of the records of this case shows no reason to disturb the findings of the trial court regarding the credibility of the witnesses for the prosecution, specially since they are police officers who are presumed to have regularly performed their official duties, the contrary not having been proven.[9]

The alleged contradictions and inconsistencies are, in main, minor and immaterial since the sale of the regulated drug was clearly and categorically established by the testimony of the poseur-buyer, PO2 Benito Basilio, Jr. The testimony of SPO3 Ely Ramos regarding the sale of "*shabu*" by the accused Rodolfo Salinas to PO2 Basilio cannot be expected to be as detailed and

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[7] *Rollo,* pp. 43-47.

[8] *People vs. Santiago*, G.R. No. 94472, 3 March 1992, 206 SCRA 733.

[9] *People vs. Collantes*, G.R. No. 97146, 8 May 1992, 208 SCRA 853.

as accurate as the latter's account because it was only Basilio who actually approached and transacted with Salinas while SPO3 Ely Ramos stayed some distance away and strategically positioned himself so he could see Basilio make the pre-arranged signal for the arrest of Salinas. The minor inconsistencies as to the details of the sale of "*shabu*" may be considered as badges of truth rather than of falsehood.

WHEREFORE, it having been clearly established that the accused-appellant Rodolfo Salinas did indeed sell and deliver "*shabu*", a regulated drug, to PO2 Benito Basilio, Jr., the constitutional presumption of innocence has been overcome by proof beyond reasonable doubt. The appealed decision is hereby *AFFIRMED* with costs against the appellant.

SO ORDERED.

Narvasa, C.J. (Chairman), Regalado, Nocon, and *Puno, JJ.*, concur.

THIRD DIVISION

[G.R. No. 107481. November 18, 1993]

GEORGE TIU AND ROSALINA TIU, *petitioners, vs.* **THE HON. COURT OF APPEALS, JUAN GO, SPS. JUANITO LIM and LIM YEE SHOW FONG,** *respondents*.

SYLLABUS

1. REMEDIAL LAW; JUDGMENTS; SUMMARY JUDGMENT; DEFINED. — A summary judgment is one granted by the court, upon motion by either party, for an expeditious settlement of the case, there appearing from the pleadings, depositions,

admissions, and affidavits that there are no genuine questions or issues of fact involved (except as to the amount of damages)-and that, therefore, the moving party is entitled to a judgment as a matter of law.

2. ID.; ACTIONS; CAUSE OF ACTION; A COMPLAINT SHOULD AVER ULTIMATE FACTS THAT WOULD CONSTITUTE A CAUSE OF ACTION FOR REFORMATION OF INSTRUMENT. — On the feasibility of reformation of the deed of sale with right of repurchase, we also agree with the appellate court, that the Tius' complaint did not aver ultimate facts that would constitute a cause of action for reformation of instrument despite the Tius' insistence that paragraphs 11, 12, 13, 14, and 15 of their complaint contain allegations of fraud and inequitable conduct, upon which reformation may be premised. A perusal of these paragraphs (reproduced earlier) would show that indeed, as pointed out by the Court of Appeals, the allegations therein are mere conclusions of law or opinion; hence, reformation is not feasible. Section 5 of Rule 8 of the Revised Rules of Court directs a party averring fraud or mistake to state *with particularity* the circumstances constituting such fraud or mistake, which particularity is conspicuously absent in the complaint.

3. CIVIL LAW; OBLIGATIONS; SOLIDARY OBLIGATION, NOT A CASE OF. — We shall also not disturb the ruling of the Court of Appeals that George and Joaquin Tiu are not solidary liable with Rosalina Tiu on the amount of ₱1,060,000.00, for apt and correct are the findings of the appellate court on this point: The various receipts clearly show that the appellant George Tiu never signed the receipts nor received any money from appellant Go while appellant Joaquin Tiu signed and received the money for and in behalf of Rosalina. Consequently, they are not liable solidarily for the said amounts even if the money were used for their tobacco business. And even if they admitted that they received the money, both are not liable *in solidum* because there was no express provision in said receipts that appellants George and Joaquin Tiu should be liable *in solidum*. There is solidary obligation only when the obligation expressly so states or when the law or nature of the obligation requires solidarity.

4. ID.; DAMAGES; UNSUCCESSFUL RESULT OF A SUIT CANNOT BE A BASIS FOR AN AWARD OF ATTORNEY'S FEES AND DAMAGES. — On Go's prayer for attorney's fees, moral and exemplary damages, all that has to be said perhaps is that simply because the Tius did not prevail in their suit against Go would it necessarily follow that they should be made liable for attorney's fees and damages. An adverse result of a suit in law does not mean that the same is wrongful as to justify assessment of damages against the actor.

APPEARANCES OF COUNSEL

Benito O. Ching, Jr. for petitioners.
Benigno M. Puno for Juan Go.
Angel A. Daquigan for Juanito Lim and Lim Lee Show Fong.

D E C I S I O N

MELO, *J.*:

Before us is a petition seeking the review and the consequent reversal of the decision of the Court of Appeals in CA-G.R. CV No. 249671 entitled, "*George T. Tiu and Rosalina Tiu vs. Juan Go and Sps. Juanito Lim and Lim Lee Show Fong,*" promulgated on September 30, 1992, which affirmed the summary judgment dated August 21, 1989 and the Order dated October 30, 1989 of the Regional Trial Court of Manila Branch 35 in its Civil Case No. 88-43782.

The facts of the case are as follows:

Petitioner George T. Tiu and his mother, Rosalina Tiu, filed an action for reformation of contract, delivery of personal property, and damages before the regional trial court against Juan Go and Spouses Juanito Lim and Lim Lee Show Fong.

Among the allegations of the complaint, as quoted by the Court of Appeals, are the following:

4. That plaintiff George Tiu is the registered owner of Two (2) CONDOMINIUM UNITS identified and described as follows

"UNIT 9-A of the Condominium located on the ninth floor, with an area of 133.48 sq. mts., more or less, with 3 rooms and 3 comfort rooms, of the Blue Diamond Tower Condominium Project,

"UNIT 9-B of the Condominium located on the ninth floor, with an area of 98.26 sq. mts., more or less, with 3 rooms and 3 comfort rooms, of the Blue Diamond Tower Condominium Project," covered by CONDOMINIUM CERTIFICATE OF TITLE NOS. 4583 and 4584, respectively, of the REGISTER OF DEEDS FOR THE CITY OF MANILA, copies of which are hereto attached as Annexes "A" and "B", respectively;

5. That sometime in March, 1986, plaintiff GEORGE TIU and plaintiff ROSALINA TIU, his mother, negotiated a loan of ₱300,000.00 with defendant JUAN GO who then asked for a mortgage of the aforesaid CONDOMINIUM UNITS of plaintiff GEORGE TIU as security for the payment therefor and in additional thereto, a pledge of jewelries and checks from plaintiff ROSALINA TIU;

6. That in that transaction, defendant JUAN GO agreed to extend the loan without any fixed period of re-payment and with the further condition that the plaintiffs shall have ample time to pay when demanded and that they can remain in possession of the said CONDOMINIUM UNITS of plaintiff GEORGE TIU in the event of mortgage;

7. That with that agreement, defendant JUAN GO then prepared, based on copies of the CONDOMINIUM CERTIFICATE OF TITLE NOS. 4583 and 4584 of plaintiff GEORGE TIU earlier given to him, a document denominated as "DEED OF SALE OF A CONDOMINIUM WITH RIGHT TO REPURCHASE" and another as "CONTRACT OF LEASE", the former was prepared in favor of defendant spouses JUANITO LIM AND LIM LEE SHOW FONG, while the latter was prepared in favor of plaintiff GEORGE TIU;

8. That when the said documents were presented to the plaintiffs by defendant JUAN GO, plaintiff GEORGE TIU asked him why the documents had to be drawn in that form and why was there a need to involve the defendant spouses JUANITO LIM and LIM LEE SHOW FONG, both total strangers to the plaintiffs, when the transaction of loan was purely between GEORGE TIU, plaintiff ROSALINA TIU, his mother, and defendant JUAN GO, but defendant

JUAN GO then said that he can not carry a real estate property in his own name, as he is a Chinese National, and that there was no harm in having the covering instruments made that way and in that form, as their agreement of mortgage intended to secure the loan will always prevail, stand and govern over the said instruments, for which reason plaintiff GEORGE TIU agreed to sign the said DEED OF SALE OF A CONDOMINIUM WITH RIGHT TO REPURCHASE and CONTRACT OF LEASE and after signing them plaintiff ROSALINA TIU handed to defendant JUAN GO jewelries with a value of ₱200,000.00 and PCIB Check No. 51405, drawn to the sum of ₱200,000.00, signed by plaintiff ROSALINA TIU but undated, and another PCIB Check No. 51428, signed by plaintiff ROSALINA TIU but without any stated amount and date, as additional collateral for the loan just received and which the defendant JUAN GO then required in their agreement;

9. That the said DEED OF SALE OF A CONDOMINIUM WITH RIGHT TO REPURCHASE and CONTRACT OF LEASE were later verified before a notary public and then later registered by the defendants' agent with the REGISTER OF DEEDS FOR THE CITY OF MANILA and subsequently annotated at the back of CONDOMINIUM CERTIFICATE OF TITLE NOS. 4583 and 4584, as now evidenced by certified true copies hereto attached as Annexes "C" and "D", respectively;

10. That from the date of execution of said documents, Annexes "C" and "D", to this time of filing, plaintiff GEORGE TIU, with plaintiff ROSALINA TIU, has remained and continue to remain in possession of the said Condominium Units as lessee;

11. That plaintiff GEORGE TIU, in executing the said DEED OF SALE OF A CONDOMINIUM WITH RIGHT TO REPURCHASE, has merely agreed to a mortgage of the properties, for which reason reformation is proper, pursuant to the provisions of the Civil Code which state, thus

> "ART. 1365. If two parties agree upon the mortgage or pledge of real or personal property, but the instrument states that the property is absolutely sold or with a right to repurchase, reformation is proper."

12. That the said DEED OF SALE OF A CONDOMINIUM WITH RIGHT TO REPURCHASE executed by plaintiff GEORGE TIU is in law an equitable mortgage at the same time on two of the

specified grounds, for which reformation is also proper on either one, in accordance with the provisions of the Civil Code, thus —

> "Art. 1602. The contract shall be presumed to be an equitable mortgage, in any of the following cases:
>
> x x x x x x x x x
>
> (2) When the vendor remains in possession as lessee or otherwise;
>
> x x x x x x x x x
>
> (6) In any other case where it may fairly be inferred that the real intention of the parties is that the transaction shall secure the payment of a debt or the performance of any other obligation."

13. That the real intention of the parties on the transaction covered by the DEED OF SALE OF A CONDOMINIUM WITH RIGHT TO REPURCHASE being a mortgage, and not a sale, plaintiff GEORGE TIU is entitled to the redemption of the property as sanctioned by Article 1601 of the Civil Code;

14. That, after the lapse of the lawful period of repurchase stated in the DEED OF SALE OF A CONDOMINIUM WITH RIGHT TO REPURCHASE, plaintiff GEORGE TIU tried to redeem the mortgaged condominium units, but the defendants refused redemption;

15. That when plaintiff GEORGE TIU tried to redeem the said properties, plaintiff ROSALINA TIU also attempted to get back the jewelries and checks given as additional collateral, but defendant JUAN GO who refused redemption of the mortgaged properties also refused to return the said jewelries and checks to plaintiff ROSALINA TIU;

16. That, after the redemption offer was made by plaintiff GEORGE TIU and the return of the personal properties were asked by plaintiff ROSALINA TIU, defendant JUAN GO, after filing the blanks in PCIB Check No. 51405 and PCIB Check No. 51428, presented them to the bank for encashment, but were returned, for which there is now a demand made upon plaintiff ROSALINA TIU for her to pay for the value thereof;

17. That defendant JUAN GO and JUANITO LIM have acted with evident bad faith, unlawfully and contrary to the agreement, and in violation of the plaintiffs' rights;

18. That by reason of the unlawful acts of the said defendants, the plaintiffs suffered sleepless nights, anxiety, besmirched reputation and social humiliation, for which they now seek the sum of not less than ₱100,000.00 as payment for moral damages, plus litigation expenses;

19. That the plaintiffs were forced to litigate in this action and in so doing, they were compelled to engage the services of the undersigned counsel for an attorney's fee of ₱50,000.00;

20. That as corrective measure to those who unlawfully act contrary to their agreements and in violation of the rights of others, an exemplary damage to be determined by the Honorable Court is also sought.

(pp. 25-29, *Rollo*.)

The Spouses Lim filed a separate answer with counterclaim, denying the material allegations of the complaint and, as special and affirmative defenses, claimed that by virtue of George Tiu's failure, as vendor a retro, to exercise his right to repurchase the condominium units within the period expressly stipulated in the contract, the spouses thereupon irrevocably acquired the absolute ownership of said condominium units; that absolute ownership thereof has been consolidated in their names; that the deed of sale is clear, without any ambiguity, mistake, or imperfection and the deed is and should be the only repository of the truth of the contractual relations of the parties and no parol evidence is admissible to alter the stipulations, terms, and conditions of the contract (See CA Decision, p. 29, *Rollo*).

The Tius filed a reply and answer to the counterclaim of the Spouses Lim.

On the other hand, Go, in his answer with counterclaim, alleged that while indeed, the Tius had incurred various amounts of loans on different dates, the totality is much greater than the sum of ₱200,00.00 alleged in the complaint, and which remained unpaid; that the two checks mentioned in Paragraph 8 of the complaint issued in partial payment on the Tius' various loans were dishonored when presented by Go for encashment; and that the Tius had not offered or given any other security to

answer for the payment of their overdue loans and obligations to Go; that he (Go) is merely one of the instrumental witnesses to, and has nothing to do with, the Tius' transactions with the Spouses Lim, which should thus be treated separately and distinctly from the various loan transactions between the Tius and Go; that Go never committed the supposed acts of misrepresentation in the execution of the deeds as alleged in the complaint.

As compulsory counterclaim, Go alleged that Rosalina Tiu had secured, on different dates, loan advances in the total amount of ₱1,060,000.00, which has remained unpaid despite demands.

The Tius filed a reply and answer to the counterclaim of Go, admitting receipt by Rosalina Tiu of the money stated in respondent Go's counterclaim, but alleging that the loans had already been paid for by tobacco delivered to Go.

Go subsequently filed a motion for leave to admit third party-complaint for a sum of money and damages against Joaquin Tiu, alleging that on different dates, the latter had, for himself and in behalf of the Tius, received the money as loan or advances in connection with the latter's tobacco business, in the total amount of ₱700,000.00, for which amount Joaquin Tiu should be held jointly and severally liable with the Tius.

Over the opposition of the Tius, the motion for leave to admit third-party complaint was granted by the trial court on June 22, 1988.

Pre-trial was conducted on May 13 and November 14, 1988.

On August 21, 1989, the trial court rendered summary judgment, disposing as follows:

WHEREFORE, Judgment is hereby rendered as follows:

1. The complaint of the plaintiffs is DISMISSED;

2. Plaintiff Rosalina Tiu is ordered to pay defendant Juan Go the sum of ₱1,060,000.00;

3. The third party complaint of Juan Go against Joaquin Tiu is DISMISSED;

4. The respective counter-claim of the two groups of defendants in their separate answers for moral and exemplary damages, and for attorney's fees are DENIED and DISMISSED;

5. Plaintiffs George Tiu and Rosalina Tiu are ordered to pay the costs of the present action.

SO ORDERED.

(p. 30, *Rollo*.)

The Tius and Joaquin Tiu (third-party defendant) appealed while the Lims filed a "Motion for Supplemental/Additional Relief or Decision".

Go filed a motion for reconsideration of the summary judgment.

On October 30, 1989, the trial court issued an order resolving the respective motions of the Lims and Go, thus:

ACCORDINGLY, the motion of defendants-spouses Juanito Lim and Lim Lee Show Fong is hereby GRANTED, and the Register of Deeds of the City of Manila is hereby ordered to make the corresponding note of consolidation and cancel the Condominium Certificates of Title Nos. 4583 and 4584 in the name of George Tiu, and, in lieu thereof, issue a new Condominium Certificate of Title in the name of Juanito Lim and Lim Lee Show Fong.

The motion for reconsideration filed by defendant and third party plaintiff is Denied for lack of merit.

The Tius, including Joaquin, appealed, arguing that the trial court erred when it (1) accepted the Deed of Sale of Condominium Units with Right of Repurchase as the true agreement of the contracting parties; and (2) held Rosalina Tiu liable for the total amount of ₱1,060, 000.00 claimed by Go.

Go, who also appealed, on the other hand, lamented the failure of the trial court to hold George Tiu and Joaquin Tiu jointly and solidarily liable with Rosalina Tiu on the amount of ₱1,060,000.00, and for dismissing both his third-party complaint and counterclaim for moral and exemplary damages, and for attorney's fees.

The Court of Appeals (Paras[P]), Ordoñez-Benitez, Montenegro, *JJ*.) upheld and affirmed the summary judgment rendered by the trial court. Hence, the instant petition anchored on the general assertion that the decision of respondent Court of Appeals is not in accord with law.

We vote to sustain the appellate court. The summary judgment of the trial court was properly rendered.

A summary judgment is one granted by the court, upon motion *by either party*, for an expeditious settlement of the case, there appearing from the pleadings, depositions, admissions, and affidavits that there are no genuine questions or issues of fact involved (except as to the amount of damages) and that, therefore, the moving party is entitled to a judgment as a matter of law (Sections 1, 2, and 3, Rule 34; Justice E.L. Paras, *Revised Rules of Court,* Ann., Vol. I, 1989 Ed., p. 632.).

In the present case, the Tius maintain that there are as yet unresolved questions of fact that preclude summary judgment, such as whether there was indeed a loan contract between the Tius and Go, which was secured by a mortgage on the condominium units owned by George Tiu and a pledge by Rosalina Tiu of her pieces of jewelry and checks; and, assuming the existence of a loan, whether reformation is feasible in order that the true agreement of the parties on an equitable mortgage may be reflected in the deed of sale.

In the instant petition, the Tius narrate a series of events and loan transactions between Rosalina Tiu and Juan Go that would negate, in their opinion, the sale transaction between the Tius and the Spouses Lim, and would thus necessitate trial on the merits to determine the true agreement or intention of the parties. The appellate court, however, brushed aside this argument thusly:

> Under Rule 34 of the Rules of Court, summary judgment may be rendered by the court upon application of a party when there is no genuine issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. By genuine issue is meant an issue of fact which calls for the presentation of evidence as distinguished from an issue which is sham, fictitious, contrived,

set up in bad faith and patently unsubstantial so as not to constitute a genuine issue for trial. The court can determine this on the basis of the pleadings, admissions, documents, affidavits and/or counter affidavits submitted by the parties to the Court. Where the facts pleaded by the parties are disputed or contested, proceedings for a summary judgment cannot take the place of a trial. (*Paz vs. CA*, 181 SCRA 26).

(p. 32, *Rollo*)

The appellate court then continued:

The lower court correctly rendered the summary judgment on the basis of the pleadings, admissions, documents and affidavits submitted by the parties.

Appellants Tiu admitted not only the due execution, genuineness and authenticity of the Deed of Sale of Condominium with Right to Repurchase and Contract of Lease (Exhs. C & D). They also admitted that they read and understood the contents of said deeds before they signed the said documents (tsn., May 13, 1988, p. 26) which deeds were later annotated at the back of Condominium Certificate of Title Nos. 4583 and 4584. They failed to offer any counter-affidavit to controvert the statement of the Notary Public, Florante C. de la Cruz before whom the parties acknowledged and ratified their agreement that he (de la Cruz) ascertained the agreement of the parties before preparing the document. In his affidavit, Notary Public Florante C. de la Cruz swore:

> "That on March 25, 1986 George Tiu, together with Sps. JUANITO LIM and LIM LEE SHOW FONG requested me to prepare a DEED OF SALE of Condominium Units with a Right to Repurchase and a CONTRACT OF LEASE over the same CONDOMINIUM Units which I notarized as Doc. No. 412; Page No. 64; Book No. 83; Series of 1986 and Doc. 413; Page No. 64; Book No. 83; Series of 1986 respectively, both documents signed by the parties therein and their instrumental witnesses, copies of said Deed of Sale and Contract of Lease is hereto attached and marked as Annex A & B respectively;
>
> "That prior to March 25, 1986 George Tiu accompanied by Juan Go came to my office and requested me to prepare a Contract of which they would sell the two (2) Condominium Units in favor of Sps. JUANITO LIM and LIM LEE SHOW

FONG with a reservation for Vendor to Repurchase the same within one (1) year for the amount of FOUR HUNDRED THOUSAND PESOS (₱400,000.00), and that Tiu shall remain in possession for one (1) year from March 1986 but since Sps. Vendees Juanito Lim and Lim Lee Show Fong were not around, I instructed George Tiu to return with said Sps. Vendees;

"That it was on March 25, 1986, that all the parties mentioned in the documents above mentioned were present and after determining and ascertaining what they have agreed I prepared said documents after explaining to them both in Tagalog and in Ilocano; that there is no other Contract of Agreement written or verbal regarding the subject matter of sale or lease that I prepared except the two (2) aforementioned DEED OF SALE of a Condominium Units with a Right to Repurchase and the CONTRACT OF LEASE as aforementioned."

In addition thereto, appellants Tiu admitted that they have updated the real estate taxes due on the condominium only up to the time of the transaction after which they had never paid anymore the taxes thereon belying their claim that they continued paying the taxes even after the execution of the deeds (tsn., Nov. 24, 1988, pp. 15 & 16). Also the said appellants admitted that they did not file an opposition to the petition for consolidation of ownership and that they filed the present complaint for reformation six (6) days after receipt of a copy of the said petition (tsn, Nov. 24, 1988, pp. 23 & 26). If it were true that their agreement was one of mortgage, then, they could have filed at least an opposition to the said petition.

(pp. 32-34, *Rollo*.)

The Court of Appeals also disregarded the claim of the Tius that a deed of sale with right of repurchase was drawn up in favor of the Spouses Lim instead of a mortgage with Go as creditor-mortgagee because Go can not own real estate being a Chinese citizen, re-echoing, in the process, the conclusion of the trial court that aliens or non-Filipino citizens are not disqualified from being mortgagees of real estate property.

Upon the foregoing premises, we agree with the Court of Appeals that summary judgment was properly rendered by the trial court as there was no genuine issue of fact that would

necessitate formal trial.

On the feasibility of reformation of the deed of sale with right of repurchase, we also agree with the appellate court, that the Tius' complaint did not aver ultimate facts that would constitute a cause of action for reformation of instrument despite the Tius' insistence that paragraphs 11, 12, 13, 14, and 15 of their complaint contain allegations of fraud and inequitable conduct, upon which reformation may be premised.

A perusal of these paragraphs (reproduced earlier) would show that indeed, as pointed out by the Court of Appeals, the allegations therein are mere conclusions of law or opinion; hence, reformation is not feasible. Section 5 of Rule 8 of the Revised Rules of Court directs a party averring fraud or mistake to state *with particularity* the circumstances constituting such fraud or mistake, which particularity is conspicuously absent in the complaint.

Further, in view of Rosalina Tiu's failure to controvert the allegations of the Mario Obar Trading Center denying any trading partnership with Go, (and in effect, debunking Rosalina Tiu's claim that payments to the trading firm were payments to Juan Go), summary judgment holding Rosalina Tiu liable was proper.

We shall also not disturb the ruling of the Court of Appeals that George and Joaquin Tiu are not solidary liable with Rosalina Tiu on the amount of ₱1,060,000.00, for apt and correct are the findings of the appellate court on this point:

> The various receipts (Exhs. 1-15-Go) clearly show that the appellant George Tiu never signed the receipts nor received any money from appellant Go while appellant Joaquin Tiu signed and received the money for and in behalf of Rosalina. Consequently, they are not liable solidarily for the said amounts even if the money were used for their tobacco business. And even if they admitted that they received the money, both are not liable *in solidum* because there was no express provision in said receipts that appellants George and Joaquin Tiu should be liable *in solidum*. There is solidary obligation only when the obligation expressly so states or when the law or nature of the obligation requires solidarity (Article 1207, NCC).

And there is no truth to the allegation that appellants George and Joaquin Tiu admitted that they are jointly and solidarily liable for said amount. What they admitted was that they received said money. Appellants' failure to deny the allegations in pars. 8, 9, 10 of appellant Go's third party complaint does not amount to an admission that they are solidarily liable. Be it noted that appellants Tiu, in their reply and answer to the counterclaim of appellant Go, admitted that only appellant Rosalina Tiu received the monies. The allegations in appellant Go's third party complaint is essentially the same with the allegations in the counterclaim of appellant Go. Thus, it was not necessary for them to deny the allegations in the third party complaint.

Assuming *arguendo* that they admitted their solidary liability, still they are not liable. As aptly held by the lower court:

> At any rate, the doctrine laid down on the case of *Un Fak Leang vs. Nigurra*, 9 Phil. 381, falls squarely on the point wherein the Supreme Court ruled that an admission of two debtors in their brief that their liability in the contract is a solidary one does not convert the joint character of their obligation as appearing in their contract, for what determines the nature of the obligation is the tenor of their contract itself, not the admission of the parties.
>
> (pp. 56-57, *Rollo*)

On Go's prayer for attorney's fees, moral and exemplary damages, all that has to be said perhaps is that simply because the Tius did not prevail in their suit against Go would it necessarily follow that they should be made liable for attorney's fees and damages. An adverse result of a suit in law does not mean that the same is wrongful as to justify assessment of damages against the actor (*Rubio vs. Court of Appeals*, 141 SCRA 488 [1986]).

WHEREFORE, the decision appealed from is *AFFIRMED in toto*. No special pronouncement is made as to costs.

SO ORDERED.

Feliciano, Bidin, Romero, and *Vitug, JJ.*, concur.

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Duties — Invested with greater responsibility of ensuring that administrative duties in court and other judicial concerns are performed properly. (*Re*: Report of Judge Enrique Jocson, A.M. No. P-92-1-029 RTC, Nov. 16, 1993) p. 564

Ignorance of the law — Punishing a party with indirect contempt without a written charge and opportunity to be heard constitutes ignorance of the law. (Que Lim *vs*. Judge DomagaS, A.M. No. RTJ-92-899, Oct. 15, 1993) p. 23

Inefficiency — Manifest in granting motion for execution knowing that there was nothing to execute. (Santos *vs*. Judge Paguio, A.M. No. MTJ-93-781, Nov. 16, 1993) p. 578

Inefficiency and neglect of duty — Rendering decisions flawed with grammatical and syntactic errors constitutes inefficiency and neglect of duty. (Santos *vs*. Judge Paguio, A.M. No. MTJ-93-781, Nov. 16, 1993) p. 578

Misconduct — Failure to decide a case within the reglementary period from date of submission constitutes misconduct. (Alfonso-Cortes *vs*. Judge Maglalang, A.M. No. RTJ-88-170, Nov. 8, 1993) p. 262

— Failure to decide a motion for issuance of writ of preliminary injunction within thirty (30) days constitutes misconduct. (Dumaya *vs*. Judge Mendoza, A.M. No. MTJ-89-301, Nov. 8, 1993) p. 269

JUDGMENTS

Promulgation of — Judgment is deemed valid even if promulgated after the expiration of the judge's temporary detail in a vacant branch. (People *vs*. CFI of Quezon, Br. X, G.R. No. L-48817, Oct. 29, 1993) p. 235

Res judicata — Elucidated. (Lantican *vs*. CA, G.R. No. 97929, Oct. 22, 1993) p. 138

Summary judgment — One granted by the court, upon motion *by* either party, for an expeditious settlement of the case, there appearing from the pleadings, depositions, admissions, and affidavits that there are no genuine

questions or issues of fact involved, except as to the amount of damages, and that the moving party is entitled to a judgment as a matter of law. (Tiu *vs*. CA, G.R. No. 107481, Nov. 18, 1993) p. 700

JUDICIAL DEPARTMENT

Decisions — Decision rendered by any court must express clearly and distinctly the facts and the law on which it is based. (People *vs*. Bravo, G.R. No. 101191, Oct. 18, 1993) p. 45

JUSTIFYING CIRCUMSTANCES

Self-defense — Not appreciated in case at bar. (People *vs*. De La Cruz, G.R. No. 101000-01, Oct. 18, 1993) p. 36

LABOR ARBITER

Jurisdiction — The case must be referred to the Labor Arbiter when the employer contests the findings of the Regional Director. (Albay I Electric Cooperative, Inc. *vs*. Martinez, Sr., G.R. No. 95559, Nov. 9, 1993) p. 399

— The Labor Arbiter has jurisdiction over claims exceeding ₱5,000. (*Id*.)

LABOR RELATIONS

Backwages — Computation of backwages is limited to three years. (Kunting *vs*. NLRC, G.R. No. 101427, Nov. 8, 1993) p. 360

Certification election — Employees who have been improperly laid-off but who have a present, unabandoned right to or expectation of re-employment, are eligible to vote in certification elections. (R. Transport Corp. *vs*. Hon. Laguesma, G.R. No. 106830, Nov. 16, 1993) p. 631

— Final certification election result means that there was an actual conduct of an election. (*Id*.)

— Requirements. (Nat'l. Mines and Allied Workers Union *vs*. Sec. of Labor, G.R. No. 106446, Nov. 16, 1993) p. 626

— The most effective and expeditious way to determine which labor organization can truly represent the working force in the appropriate bargaining unit of the company. (*Id*.)

— Unverified petition for certification election is just a formal defect. (*Id*.)

Fixed contracts of employment — Requisites for validity. (Pines City Educational Center *vs*. NLRC, G.R. No. 96779, Nov. 10, 1993) p. 450

— Validly terminated by reason of the expiration of the periods of their respective contracts. (*Id*.)

Regional Director — When a Regional Director acted beyond the scope of his jurisdiction, all orders and processes issued by him are null and void. (Albay I Electric Cooperative, Inc. *vs*. Martinez, Sr., G.R. No. 95559, Nov. 9, 1993) p. 399

Separation pay — Earned sales commission is included in computation thereof. (Phil. Duplicators, Inc. *vs*. NLRC, G.R. No. 110068, Nov. 11, 1993) p. 552

LABOR STANDARDS

13th month pay — An employee is entitled to thirteenth month pay if she served more than 3 months for that year. (Kunting *vs*. NLRC, G.R. No. 101427, Nov. 8, 1993) p. 360

Wages — Basic salary is different from fixed or guaranteed wage. (Phil. Duplicators, Inc. *vs*. NLRC, G.R. No. 110068, Nov. 11, 1993) p. 552

— Defined. (*Id*.)

— Sales commission is a part thereof. (*Id*.)

— Sales commission is not in the nature of an allowance or additional fringe benefits. (*Id*.)

LAND REGISTRATION

Notice of lis pendens — Sufficient protection against prospective buyers. (Knecht *vs*. CA, G.R. No. 56122, Nov. 18, 1993) p. 649

LEASE

Contract of — Implied lease is created if the party continues to enjoy the thing leased after the contract expired. (Santi *vs*. CA, G.R. No. 93625, Nov. 8, 1993) p. 328

— Interpretation of stipulation. (*Id*.)

LEGISLATIVE DEPARTMENT

Bills — Every bill passed by Congress shall embrace one subject which shall be expressed in the title thereof. (Phil. Judges *vs*. Hon. Prado, G.R. No. 105371, Nov. 11, 1993) p. 502

Electoral tribunals — Senate and House of Representatives now have their respective electoral tribunals; tribunals are the sole judge of all contests relating to the election, returns and qualifications of their respective members. (Pangilinan *vs*. COMELEC, G.R. No. 105278, Nov. 18, 1993) p. 685

Legislation — Effect of legislative enactment declared unconstitutional. (Rep. of the Phil. *vs*. CA, G.R. No. 79732, Nov. 8, 1993) p. 291

LOCAL GOVERNMENT CODE

Application of — Does not provide upon its effectivity that the Katipunan ng mga Barangay under B.P. Blg. 337 automatically became the Liga ng mga Barangay under the Local Government Code. (Galarosa *vs*. Judge Valencia, G.R. No. 109455, Nov. 11, 1993) p. 530

— Hold-over doctrine; purpose is to prevent the hiatus in the government pending the time when the successor may be chosen and inducted into office. (*Id*.)

— Presidents of the Katipunang Bayan could remain as such after June 30, 1992 but not as members of Sangguniang Bayan because their term of office expired. (*Id*.)

— Secs. 491 and 494 of the Local Government Code of 1991 should be applied prospectively. (*Id*.)

MEDICAL ACT OF 1959 (R.A. NO. 2382)

Violation of — Illegal practice of medicine, committed. (People *vs*. Hatani *y* Abolhassan, G.R. Nos. 78813-14, Nov. 8, 1993) p. 278

MITIGATING CIRCUMSTANCES

Voluntary surrender — Not applicable in case at bar. (People *vs*. Ramilla *y* Ausente *alias* "Chem-Chem," G.R. No. 101435, Nov. 8, 1993) p. 372

MOTIVE

Ill motive — Bolstered by absence of ill motive on the part of the prosecution witness to falsely testify against appellants. (People *vs*. Galanza *y* Valdez @ Ed, G.R. No. 89685, Nov. 8, 1993) p. 311

Proof of — Not essential where the culprit has been positively identified. (People *vs*. Bravo, G.R. No. 101191, Oct. 18, 1993) p. 45

OMBUDSMAN

Powers — Empowered to investigate and prosecute any illegal act or omission of any public official. (Sanchez *vs*. Judge Demetriou, G.R. Nos. 111771-77, Nov. 9, 1993) p. 421

PARTIES TO CIVIL ACTIONS

Indispensable party — A person whose office is challenged is an indispensable party in an action for declaratory relief and injunction. (Galarosa *vs*. Judge Valencia, G.R. No. 109455, Nov. 11, 1993) p. 530

Legal Standing — Taxpayer has legal standing to file an action founded on what he believed to be an illegal disbursement of public funds. (Galarosa *vs*. Judge Valencia, G.R. No. 109455, Nov. 11, 1993) p. 530

Real party in interest — One who stands to be benefited or injured by the judgment or the party entitled to the avails of the suit. (UP Board of Regents *vs*. Judge Ligot-Telan, G.R. No. 110280, Oct. 21, 1993) p. 108

— U.P. Board of Regents is a real party in interest in a disciplinary action against a student who violated the rules and regulations of the school. (*Id*.)

POSSESSION

Right of — One who is in actual possession of a piece of land claiming to be owner thereof may wait until his possession is disturbed or his title is attacked before taking steps to vindicate his right. (Heirs of Jose Olviga *vs*. CA, G.R. No. 104813, Oct. 21, 1993) p. 93

PRELIMINARY INVESTIGATION

Concept — Absence of a preliminary investigation does not impair the validity of the information or otherwise render the same defective and neither does it affect the jurisdiction of the court over the case or constitute a ground for quashing the information. (Sanchez *vs*. Judge Demetriou, G.R. Nos. 111771-77, Nov. 9, 1993) p. 421

PRESUMPTIONS

Presumption of innocence — Cannot prosper when there is overwhelming evidence against the accused. (People *vs*. Madridano *y* Tacbao *alias* Tata, G.R. No. 93435, Oct. 22, 1993) p. 131

Presumption of regularity in the performance of official duties — Does not include the right to take the law into their hands. (People *vs*. De La Cruz, G.R. No. 101000-01, Oct. 18, 1993) p. 36

— Presumed in the absence of improper motive. (People *vs*. Clapano *y* Salvador, G.R. No. 106525, Nov. 8, 1993) p. 389

PRE-TRIAL

Concept — Grant or denial of postponement is subject to the sound discretion of the trial judge. (Aguilar *vs*. CA, G.R. No. 76351, Oct. 29, 1993) p. 252

Non-appearance at pre-trial — Appearance of parties at the pre-trial is mandatory; a party who fails to appear at a pre-trial conference may be non-suited or considered as in default. (Aguilar *vs*. CA, G.R. No. 76351, Oct. 29, 1993) p. 252

PUBLIC OFFICERS

Liability of — Not immune from damages in their personal capacities arising from acts done in bad faith. (Vidad *vs*. RTC of Negros Oriental, Br. 42, G.R. No. 98084, Oct. 18, 1993) p. 29

QUALIFYING CIRCUMSTANCES

Abuse of superior strength — Not established in case at bar. (People *vs*. Deuna *y* Dimdam, G.R. No. 87555, Nov. 16, 1993) p. 600

Evident premeditation — Absence of evidence as to how and when the plan to kill was hatched or what has elapsed before it was carried out. (People *vs*. Buela, G.R. No. 92536, Nov. 8, 1993) p. 320

— Elements; (1) the time when the offender determined to commit the crime; (2) an act manifestly indicating that the offender had clung to his determination to execute a criminal act; and (3) a sufficient lapse of time between the decision and execution that would permit the malefactor to reflect upon the consequences of his act and allow his conscience to overcome the resolution of his will. (People *vs*. Deuna *y* Dimdam, G.R. No. 87555, Nov. 16, 1993) p. 600

Treachery — Absence of clear and positive showing that the victim was completely defenseless when assaulted. (People *vs*. Buela, G.R. No. 92536, Nov. 8, 1993) p. 320

— Construed. (People *vs*. De La Cruz, G.R. No. 101000-01, Oct. 18, 1993) p. 36

— Not considered by mere suddenness of attack. (People *vs*. Buela, G.R. No. 92536, Nov. 8, 1993) p. 320

QUASI-DELICT

Liability — Basis of liabilities of manufacturer or seller of injury-causing products; rule. (Coca-Cola Bottlers Phil., Inc. *vs*. CA (Fifth Div.), G.R. No. 110295, Oct. 18, 1993) p. 52

— Liability may still exist despite the presence of contractual relation. (*Id*.)

RAPE

Commission of — A freshly broken hymen is not an essential element of rape. (People *vs*. Madridano *y* Tacbao *alias* Tata, G.R. No. 93435, Oct. 22, 1993) p. 131

— Absence of physical injuries does not negate the commission of rape. (People *vs*. Hatani *y* Abolhassan, G.R. Nos. 78813-14, Nov. 8, 1993) p. 278

— Rape and illegal detention should be considered as separate crimes even if one is used for the purpose of the other. (People *vs*. Lactao, G.R. No. 56768, Oct. 29, 1993) p. 243

— Slightest degree of penetration is sufficient for conviction. (People *vs*. Arce *y* Borromeo, G.R. No. 101833-34, Oct. 26, 1993) p. 177

RECRUITMENT

Illegal recruitment — Illegal recruitment in large scale committed in case at bar. (People *vs*. Ondo @ Baby, G.R. No. 101361, Nov. 8, 1993) p. 351

Recruitment and placement of workers — Elements. (People *vs*. Ondo @ Baby, G.R. No. 101361, Nov. 8, 1993) p. 351

RES JUDICATA

Principle of — Requisites; a) the former judgment or order must be final; b) it must be a judgment or order on the merits; c) it must have been rendered by a court having jurisdiction over the subject-matter and the parties; and d) there must be, between the first and second actions, identity of parties. (R. Transport Corp. *vs*. Hon. Laguesma, G.R. No. 106830, Nov. 16, 1993) p. 631

ROBBERY IN BAND WITH HOMICIDE

Commission of — Designation of crime not appropriate in the absence of four armed men. (People *vs*. Galanza *y* Valdez @ Ed, G.R. No. 89685, Nov. 8, 1993) p. 311

ROBBERY WITH HOMICIDE

Commission of — The prosecution need not prove that the person who committed the robbery is the same person who killed the victim; it is enough that the connection between the robbery and the homicide was sufficiently established. (People *vs*. Java *y* Mercado, G.R. No. 104611, Nov. 10, 1993) p. 464

SALES

Contract of sale — Remedies of vendee in respect to warranty against hidden defects. (Coca-Cola Bottlers Phil., Inc. *vs*. CA (Fifth Div.), G.R. No. 110295, Oct. 18, 1993) p. 52

SANDIGANBAYAN

Jurisdiction — For the Sandiganbayan to have jurisdiction over the offense committed by public officials, there must be a direct relation between the crime and his office. (Sanchez *vs*. Judge Demetriou, G.R. Nos. 111771-77, Nov. 9, 1993) p. 421

— The Sandiganbayan has no jurisdiction over the crime of rape with homicide committed by a municipal mayor. (*Id*.)

SHERIFFS

Grave misconduct — Failure to remit collection constitutes grave misconduct. (OCAD *vs*. Anquilo, Jr., A.M. No. P-92-701, Nov. 8, 1993) p. 274

Gross misconduct — Harsh and premature implementation of writ of possession constitutes gross misconduct. (GVM, Inc. *vs*. De Guzman, A.M. No. R-284-P, Nov. 11, 1993) p. 480

Neglect in the performance of duty — Delay in service of summons deserves a sanction. (Judge Principe *vs*. Florendo, A.M. No. P-93-825, Oct. 20, 1993) p. 62

SOLICITOR GENERAL

Powers — Scope. (Vidad *vs*. RTC of Negros Oriental, Br. 42, G.R. No. 98084, Oct. 18, 1993) p. 29

STATE IMMUNITY

Implied consent — Not all contracts entered into by the government operate as a waiver of its non-suability; distinction must still be made between sovereign and governmental acts (*jure imperii*) and private, commercial and proprietary act (*jure gestionisis*); State immunity now extends only to acts *jure imperii*. (Dept. of Agriculture *vs*. NLRC, G.R. No. 104269, Nov. 11, 1993) p. 491

Non-suability — Exception on non-suability of the state; States' consent may be given expressly or impliedly; express consent may be made through a general law or a special law; implied consent is conceded when the State itself commences litigation or when it enters into a contract. (Dept. of Agriculture *vs*. NLRC, G.R. No. 104269, Nov. 11, 1993) p. 491

— Royal prerogative of dishonesty; it grants the state the prerogative to defeat any legitimate claim against it by simply invoking its non-suability. (*Id*.)

State liability — Consent is not synonymous with liability. (Dept. of Agriculture *vs*. NLRC, G.R. No. 104269, Nov. 11, 1993) p. 491

— Money claims against the state requires filing with the Commission on Audit. (*Id*.)

— When the state gives its consent to be sued, it does necessarily consent to unrestrained execution against it; claimant's action is limited only up to the completion of proceedings anterior to the stage of execution and that the power of the Courts ends when the judgment is rendered; disbursements of public funds must be covered by the correspondent appropriation. (*Id*.)

STATUTES

Application — Principle of prospectivity of statutes applied in judicial and administrative decisions. (Co *vs*. CA, G.R. No. 100776, Oct. 28, 1993) p. 221

Construction of — Contemporaneous construction of a statute by executive officers of the government is entitled to great respect. (Phil. Duplicators, Inc. *vs*. NLRC, G.R. No. 110068, Nov. 11, 1993) p. 552

Interpretation of — Details of a legislative act need not be stated in its title. (Phil. Judges *vs*. Hon. Prado, G.R. No. 105371, Nov. 11, 1993) p. 502

Repeal of — Need not be stated in the title of the new statute. (Phil. Judges *vs*. Hon. Prado, G.R. No. 105371, Nov. 11, 1993) p. 502

Stare decisis et non quieta movere — Once a case has been decided one way, then another case, involving exactly the same point at issue, should be decided in the same manner. (Pines City Educational Center *vs*. NLRC, G.R. No. 96779, Nov. 10, 1993) p. 450

SUMMARY PROCEDURE

Application of — Not applicable in cases of forcible entry and unlawful detainer involving a question of ownership. (Dumaya *vs*. Judge Mendoza, A.M. No. MTJ-89-301, Nov. 8, 1993) p. 269

SUPREME COURT

Jurisdiction — Has administrative supervision over court personnel. (GVM, Inc. *vs*. De Guzman, A.M. No. R-284-P, Nov. 11, 1993) p. 480

— Has administrative supervision over lower court personnel. (*Re*: Report of Judge Enrique Jocson, A.M. No. P-92-1-029 RTC, Nov. 16, 1993) p. 564

— Has no original jurisdiction over an action for declaratory relief. (Philnabank Employees Assn. *vs*. Hon. Estanislao, G.R. No. 104209, Nov. 16, 1993) p. 618

— Not a trier of facts. (Isabelo, Jr. *vs*. Perpetual Help College of Rizal, Inc., G.R. No. 103142, Nov. 8, 1993) p. 382

(Martinada *vs*. Bautista, G.R. No. 100700, Nov. 8, 1993) p. 345

— Not an initial evaluator of facts. (Philnabank Employees Assn. *vs*. Hon. Estanislao, G.R. No. 104209, Nov. 16, 1993) p. 618

TAXATION

Tariff and Customs Code — Forfeiture of vessel engaged in smuggling; conditions for imposition. (Commissioner of Customs *vs*. Mla. Star Ferry, Inc., G.R. No. L-31776-78, Oct. 21, 1993) p. 79

— Forfeiture proceedings are proceedings *in rem* and are directed against the res; it is no defense that the owner of the vessel sought to be forfeited had no actual knowledge that his property was used illegally. (*Id*.)

— The term "vessel" which includes every sort of boat, craft or other artificial contrivance used, or capable of being used, as a means of transportation on water. (*Id*.)

— Vessel engaged in smuggling in a port of entry cannot be forfeited. (*Id*.)

TRUSTS

Constructive trust — Created when the property of a spouse was adjudicated to a common law spouse after the former's demise. (Belcodero *vs*. CA, G.R. No. 89667, Oct. 20, 1993) p. 65

— Prescriptive period for an action for reconveyance of the property by the beneficiaries is ten (10) years. (*Id*.)

WAGES

13-month pay — Sales commission is included in computation thereof. (Phil. Duplicators, Inc. *vs*. NLRC, G.R. No. 110068, Nov. 11, 1993) p. 552

WITNESSES

Credibility of — Absence of circumstances that discredit. (People *vs*. Hatani *y* Abolhassan, G.R. Nos. 78813-14, Nov. 8, 1993) p. 278

(Cuison *vs*. CA, G.R. No. 88539, Oct. 26, 1993) p. 162

(People *vs*. Remollo *y* Retes, G.R. No. 104498, Oct. 22, 1993) p. 145

— Appellate courts will generally not disturb the findings of the trial court considering that the latter is in a better position to decide the question since it had heard the witnesses and observed their deportment and manner of testifying during trial. (People *vs*. Hangad, G.R. No. 102954, Oct. 14, 1993) p. 6

— Failure to immediately disclose identity of the accused does not impair credibility. (People *vs*. Baligod, G.R. No. 97962, Nov. 17, 1993) p. 639

(People *vs*. Pastores *y* Avila, G.R. No. 104731, Oct. 27, 1993) p. 199

— Findings of fact of the trial court thereon is generally upheld on appeal; exceptions. (People *vs*. Salinas *y* Hernandez, G.R. No. 107192, Nov. 18, 1993) p. 694

(People *vs*. Clapano *y* Salvador, G.R. No. 106525, Nov. 8, 1993) p. 389

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(People *vs*. De La Cruz, G.R. No. 101000-01, Oct. 18, 1993) p. 36

— Findings of the trial court on the issue of credibility of witnesses and their testimonies are entitled to great respect and are accorded the highest consideration by appellate courts. (People *vs*. Deuna *y* Dimdam, G.R. No. 87555, Nov. 16, 1993) p. 600

— Identification made by the witness-victim is normally accepted. (People *vs*. Galanza *y* Valdez @ Ed, G.R. No. 89685, Nov. 8, 1993) p. 311

— Identification of the accused not sufficiently established. (People *vs*. Hangad, G.R. No. 102954, Oct. 14, 1993) p. 6

— May be affected by serious inexplicable discrepancies between the executed sworn statement and the testimonial declaration. (People *vs*. Lactao, G.R. No. 56768, Oct. 29, 1993) p. 243

— Minor and immaterial inconsistencies may be considered badges of truth rather than falsehood. (People *vs*. Salinas *y* Hernandez, G.R. No. 107192, Nov. 18, 1993) p. 694

— Minor inaccuracy in the testimony should not destroy the credibility of the witness. (People *vs*. Pastores *y* Avila, G.R. No. 104731, Oct. 27, 1993) p. 199

— Minor inconsistencies in the testimony of a witness does not destroy credibility. (People *vs.* Baligod, G.R. No. 97962, Nov. 17, 1993) p. 639

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(People *vs*. De La Cruz, G.R. No. 101000-01, Oct. 18, 1993) p. 36

— Not vitiated by reasons of friendship nor blood relationship to the victim. (People *vs*. Deuna *y* Dimdam, G.R. No. 87555, Nov. 16, 1993) p. 600

— Substantial inaccuracies and inconsistencies in the testimonies of the prosecution witnesses cast doubt to its veracity. (People *vs*. Pastores *y* Avila, G.R. No. 104731, Oct. 27, 1993) p. 199

— Trial court is in a better position to observe and evaluate the demeanor of the witnesses. (People *vs*. Ondo @ Baby, G.R. No. 101361, Nov. 8, 1993) p. 351

Identification of — Identification of the accused by the sound of his voice is sufficient in case at bar. (People *vs*. Baligod, G.R. No. 97962, Nov. 17, 1993) p. 639

Presentation of — Non-presentation of informer as a witness is not fatal. (People *vs*. Clapano *y* Salvador, G.R. No. 106525, Nov. 8, 1993) p. 389

Testimony of — Testimony of the complainant-witness prevails over the medical report. (People *vs*. Alegado *y* Bullo @ "Totoy", G.R. No. 80532, Nov. 8, 1993) p. 297

— Testimony of the injured woman should not be received with precipitate credulity. (People *vs*. Lactao, G.R. No. 56768, Oct. 29, 1993) p. 243

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REFERENCES

I. LOCAL AUTHORITIES

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Aquino, The Revised Penal Code, Vol. I, 1976 Ed., pp. 338-339 380
Paras, E.L., Civil Code of the Philippines Annotated, 1985 Ed., Vol. I, pp. 22-23 226
Paras, E.L., Civil Code of the Philippines, Vol. V. 1990 Ed., 995-996 61

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Paras, E.L., Revised Rules of Court, Ann., Vol. I,
1989 Ed., p.632 709
Pimentel, Jr., A.Q., The Local Government
Code of 1991, the Key to National Development,
1993 Ed., 552 543
Regalado, Remedial Law Compendium, Vol. I,
5th Revised Ed., 56 541
Regalado, Remedial Law Compendium Book 2,
1989 Ed., p. 318 434
Salonga, Private International Law (1979), pp. 82-83 679
Tolentino, A.M., Commentaries and Jurisprudence
on the Civil Code of the Philippines, Vol. V,
1992 Ed., 123 60

II. FOREIGN AUTHORITIES

BOOKS

5 Am Jur 2d, p. 696 432
47 Am Jur 855 486
63 Am Jur 2d Products Liability § 25 61
63 Am Jur 2d Public Officers and Employees
@ 160 (1972) 550
Cooley, Constitutional Limitations,
8th Ed., pp. 295-297 507-508
Mechem, F.R., A Treatise on the Law of Public
Offices and Officers @ 397 (1890) 550